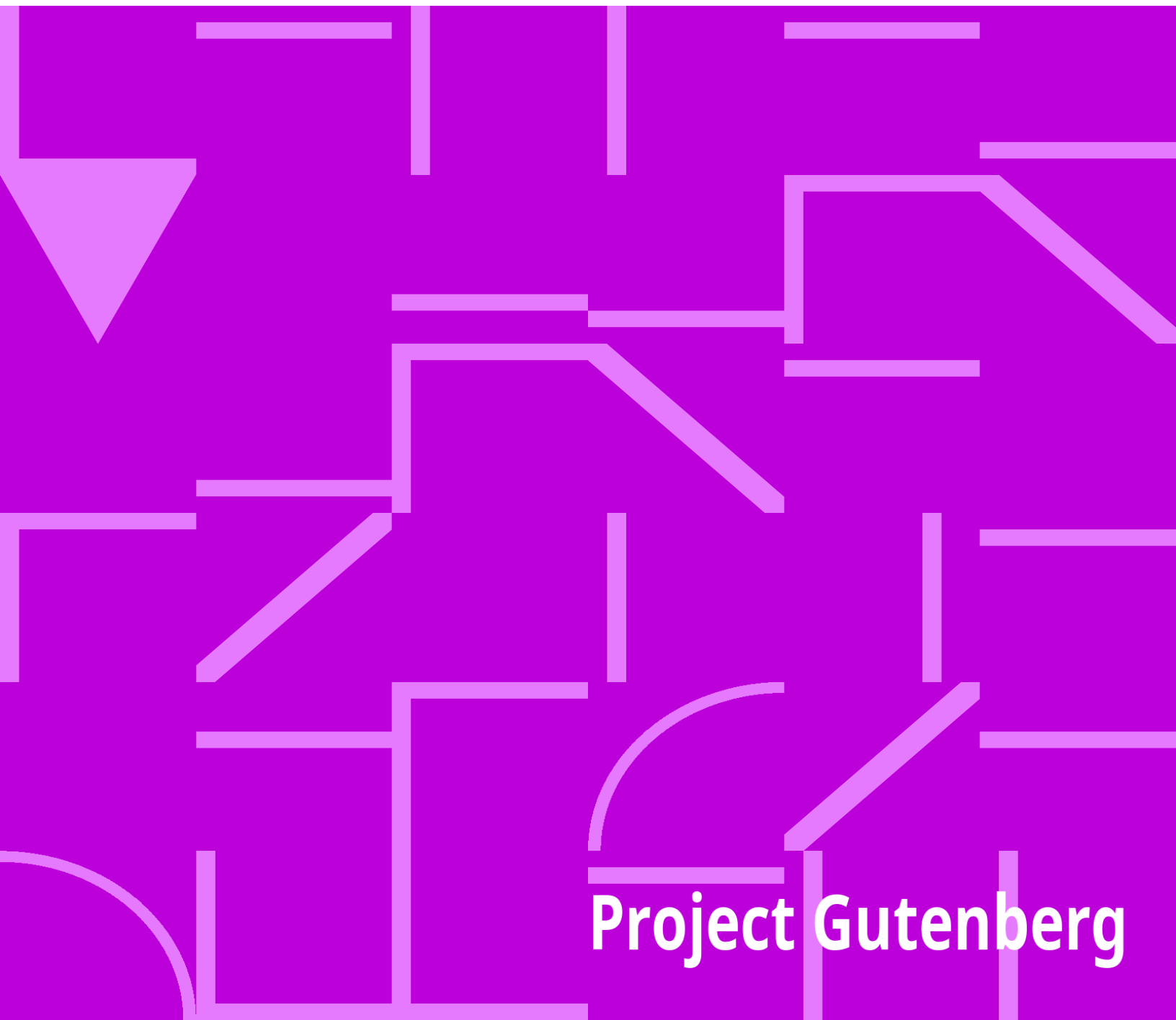


Letters From Rome on the Council

Johann Joseph Ignaz von Döllinger

An abstract geometric pattern consisting of various white lines, including straight horizontal, vertical, and diagonal lines, as well as some curved lines, creating a complex, maze-like design on a black background.

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Title: Letters From Rome on the Council

Author: Johann Joseph Ignaz von Döllinger

Release date: November 23, 2011 [eBook #38116]

Language: English

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ROME ON THE COUNCIL ***

Letters From Rome on the Council

By “Quirinus”

(Johann Joseph Ignaz von Döllinger)

Reprinted from the *Allgemeine Zeitung*.

Authorized Translation.

Rivingtons

London, Oxford, and Cambridge

1870

Contents

[Preface.](#)

[Views of the Council. \(Allgemeine Zeitung, May 20, 1869.\)](#)

[The Future Council. \(Allg. Zeit., June 11, 1869.\)](#)

[Prince Hohenlohe and the Council. \(Allg. Zeit., June 20 and 21, 1869.\)](#)

[The Council. \(Allg. Zeit., Aug. 19, 1869.\)](#)

[The Fulda Pastoral. \(Allg. Zeit., Sept. 25, 1869.\)](#)

[The Bishops and the Council. \(Allg. Zeit., Nov. 19 and 20, 1869.\)](#)

[First Letter.](#)

[Second Letter.](#)

[Third Letter.](#)

[Fourth Letter.](#)

[Fifth Letter.](#)

[Sixth Letter.](#)

[Seventh Letter.](#)

[Eighth Letter.](#)

[Ninth Letter.](#)

[Tenth Letter.](#)

[Eleventh Letter.](#)

[Twelfth Letter.](#)

[Thirteenth Letter.](#)

[Fourteenth Letter.](#)

[Fifteenth Letter.](#)

[Sixteenth Letter.](#)

[Seventeenth Letter.](#)

[Eighteenth Letter.](#)

[Nineteenth Letter.](#)

[Twentieth Letter.](#)

[Twenty-First Letter.](#)

[Twenty-Second Letter.](#)

[Twenty-Third Letter.](#)

[Twenty-Fourth Letter.](#)

[Twenty-Fifth Letter.](#)

[Twenty-Sixth Letter.](#)

[Twenty-Seventh Letter.](#)

[Twenty-Eighth Letter.](#)

[Twenty-Ninth Letter.](#)

[Thirtieth Letter.](#)

[Thirty-First Letter.](#)
[Thirty-Second Letter.](#)
[Thirty-Third Letter.](#)
[Thirty-Fourth Letter.](#)
[Thirty-Fifth Letter.](#)
[Thirty-Sixth Letter.](#)
[Thirty-Seventh Letter.](#)
[Thirty-Eighth Letter.](#)
[Thirty-Ninth Letter.](#)
[Fortieth Letter.](#)
[Forty-First Letter.](#)
[Forty-Second Letter.](#)
[Forty-Third Letter.](#)
[Forty-Fourth Letter.](#)
[Forty-Fifth Letter.](#)
[Forty-Sixth Letter.](#)
[Forty-Seventh Letter.](#)
[Forty-Eighth Letter.](#)
[Forty-Ninth Letter.](#)
[Fiftieth Letter.](#)
[Fifty-First Letter.](#)
[Fifty-Second Letter.](#)
[Fifty-Third Letter.](#)
[Fifty-Fourth Letter.](#)
[Fifty-Fifth Letter.](#)
[Fifty-Sixth Letter.](#)
[Fifty-Seventh Letter.](#)
[Fifty-Eighth Letter.](#)
[Fifty-Ninth Letter.](#)
[Sixtieth Letter.](#)
[Sixty-First Letter.](#)
[Sixty-Second Letter.](#)
[Sixty-Third Letter.](#)
[Sixty-Fourth Letter.](#)
[Sixty-Fifth Letter.](#)
[Sixty-Sixth Letter.](#)
[Sixty-Seventh Letter.](#)

[Sixty-Eighth Letter.](#)

[Sixty-Ninth Letter.](#)

[Appendix I.](#)

[Appendix II.](#)

[Appendix III.](#)

[Appendix IV.](#)

[Appendix V.](#)

[Advertisement.](#)

[Footnotes](#)

[pg v]

Preface.

These Letters of the Council originated in the following way. Three friends in Rome were in the habit of communicating to one another what they heard from persons intimately acquainted with the proceedings of the Council. Belonging as they did to different stations and different classes of life, and having already become familiar, before the opening of the Council, through long residence in Rome, with the state of things and with persons there, and being in free and daily intercourse with some members of the Council, they were very favourably situated for giving a true report as well of the proceedings as of the views of those who took part in it. Their letters were addressed to a friend in Germany, who added now and then historical explanations to elucidate the course of events, and then forwarded them to the *Allgemeine Zeitung*.

Much the authors of these Letters could only communicate, [pg vi] because the Bishops themselves, from whose mouth or hand they obtained their materials, were desirous of securing publicity for them in this way, That there should be occasional inaccuracies of detail in matters of subordinate importance was inevitable in drawing up reports which had to be composed

as the events occurred, and not seldom had only rumours or conjectures to rest upon. But on the whole we can safely affirm that no substantial error has crept in, and that these reports supply as faithful a portrait as can be given of this Council, so eventful in its bearings on the future history of the Catholic Church, and not only conscientiously exhibit its outward course, but in some degree unveil those more secret and hidden movements whereby the definition of the new dogma of infallibility was brought about. If it were necessary here to adduce testimonies for the truth of these reports, we might appeal to the actual sequence of events, which has so often and so clearly confirmed our predictions and our estimate of the persons concerned and their motives, as well as to the Letters and other works of the Bishops, whether published with or without their names.

This collection of Letters then is the best authority for the history of the Vatican Council. No later historian [pg vii] of the Council will be able to dispense with them, and the Liberal Catholic Opposition, whose ecclesiastical conscience protests against the imposition of dogmas effected by all kinds of crooked arts and appliances of force, will find here the most serviceable weapons for combating the legitimacy of the Council.

In order to preserve the original character of the Letters, as a chronicle accurately reflecting the opinions and feelings of the Bishops of the minority, they are published now in a complete collection without any change, with the exception of a few corrections here and there in a footnote. Some articles from the *Allgemeine Zeitung* are prefixed to the Letters, which have an important bearing on the previous history of the Council;¹ and an appendix is subjoined containing documents partly serving to throw a further light on the history of the Council and partly to corroborate our statements.

September 1870.

Views of the Council. (Allgemeine Zeitung, May 20, 1869.)

Cardinal Antonelli is said on good authority to have replied very lately to the question of the ambassador of a Northern Government, that it is certainly intended to have the dogma of Papal Infallibility proclaimed at the ensuing Council; and, moreover, as this has long been the belief of all good Catholics, that there would be no difficulty about the definition. It by no means follows, if this report is correct, that the importance of the new principle of faith to be created is not well understood at Rome. The *Civiltà Cattolica* leaves no room for doubt that one of its principal effects is already distinctly kept in view, and that a further principle, which again must involve an indefinite series of consequences, is being deliberately aimed at.² In the number for April 3, it has [pg 002] spoken with full approval, with reference to the approaching Council, of the famous Bull of Boniface VIII., *Unam Sanctam*, doubly confirmed by Papal authority, and addressed as a supreme decision on faith to the whole ecclesiastical world, and treats it as self-evident that all the contents of the Bull, with other doctrinal decrees issued throughout the Church, will come into full force after the Council, and thenceforth form the basis of Catholic doctrine on the relations of Church and State. The maxims that will have to be adopted, as well by the learned as in popular instruction, when once Papal Infallibility has been defined, are these:—

The two powers, the temporal and spiritual, are in the hands of the Church, *i.e.* the Pope, who permits the former to be administered by kings and others, but only under his guidance and during his good pleasure (*ad nutum et potentiam sacerdotis*). It belongs to the spiritual power, according to the Divine commission [pg 003] and plenary jurisdiction bestowed on Peter, to

appoint, and, if cause arise, to judge the temporal; and whoever opposes its regulations rebels against the ordinance of God.

In a word, the absolute dominion of the Church over the State will next year come into force as a principle of Catholic faith, and become a factor to be reckoned with by every Commonwealth or State that has Catholic inhabitants; and by “Church” in this system must always be understood the Pope, and the Bishops who act under absolute control of the Pope.

From the moment therefore when Papal Infallibility is proclaimed by the Council, the relations of all Governments to the Church are fundamentally changed. The Roman See is brought into the same position towards other States which it now occupies towards Italy in regard to the provinces formerly belonging to the States of the Church. All States find themselves, strictly speaking, in an attitude of permanent revolt against their lawful and divinely ordained suzerain, the Pope. He indeed on his side can and will tolerate much which properly ought not to be—for it has long been recognised in Rome that right, even though divine, by no means implies the duty of always exercising it. In numberless cases [pg 004] silence will be observed, or some such formula adopted as that of the Austrian Concordat, art. 14: “Temporum ratione habitâ Sua Sanctitas haud impedit,” etc. But that must only be understood “during good behaviour,” or so long as the times do not change or it seems expedient. In conscience every Catholic is bound to be guided, in the first instance, in political and social questions, by the directions or known will of his supreme lord and master the Pope, and of course, in the event of a conflict between his own Government and the Papal, to side with the latter. No Government therefore can hereafter count on the loyalty and obedience of its Catholic subjects, unless its measures and acts are such as to secure the sanction, or agreement of the Pope. As to non-Catholic Governments, moreover, the former declarations of Popes against heretical princes, which receive fresh life from the dogma of Infallibility, come into full force. If it is already a common complaint that in countries where the Government or the majority are Protestant, Catholics are treated with suspicion when they take any part in the service of the State, and are purposely excluded from the higher and more important posts, how will this be after the Council?

The Future Council. (Allg. Zeit., June 11, 1869.)

We have received the following interesting information from a trustworthy person, who is returned to Germany after a long sojourn in Rome, where he was in a position, among other things, to get to know the projects for the Council. The relations of Pius IX. to the *Civiltà* may be fully understood from the fact—attested by the officials of the Chancery—that the editors are regularly admitted to an audience with the Holy Father, like the prime minister, usually once a week, never less often than every fortnight. At these audiences the manuscripts prepared for the next number are laid before the Pope, who reads them, and, according to his interest in the contents, comments on them or returns them unaltered to the Chancery. The ideas of the *Civiltà* are therefore not only not unknown to the Pope, but are published with his express and personal approval. The chosen model of Pius IX. is Gregory VII., and his favourite notion is to discharge that *rôle* in the present Church which Gregory did in the middle ages. He is therefore thoroughly given up to theocratic tendencies in the contest against the modern State, and the attacks [pg 006] of the *Civiltà* upon it and the whole system of modern civilisation express his innermost thoughts. Even the General of the Jesuits is said often to be uneasy about the language used by members of his Order in their journal, and unable to avoid the apprehension that it may seriously prejudice the Order hereafter.

In the Chancery, where Antonelli's confidant Mgr. Marini revises the *Civiltà*, it very seldom happens that any alterations are made in the articles, partly because the Cardinal Secretary of State would at no price get into bad odour with the Jesuits. Only the record of contemporary events (*Cronaca Contemporanea*) is submitted *pro formâ* to the Dominican Spada, the Master of the Palace, for inspection. But although there can be no shadow of doubt that in all its utterances about the approaching Council the *Civiltà*, is simply the organ of the Holy Father himself, Antonelli does not cease to give the most reassuring answers to questions addressed to him on the subject by the various diplomatic agents. Rome, he assures them, will not take the initiative in making either the propositions of the Syllabus or Papal Infallibility into dogmas. Many representatives of foreign Governments have been deceived by these declarations, and have written home in that sense, the [pg 007] immediate consequence of which was seen in the reception accorded in some Courts to the despatch of the Bavarian Government. But they will not allow at Rome that they mean themselves to give the first impulse for these solemn dogmatic decisions. That only proves the confidence felt in the Vatican that a considerable number of the Bishops will come forward to demand it. It is a secret already pretty well published in Rome, how the play is to be put on the stage, and who is to be the protagonist. Nor does any one there venture seriously to deny the fact that a version of the Syllabus, composed by Father Schrader, at the wish of the Pope himself, changing its negative theses into positive, is already drawn up.

Archbishop Manning and Cardinal Reisach are the leading persons in all these designs. Reisach,³ who is accounted in Rome a man of eminent learning and wisdom, and who always manifests the most unbounded devotion to the Pope, takes an unfavourable view of German affairs. It was through him that Dr. Mast, well known through what occurred at Rottenburg, was placed on two of the preparatory Commissions (*Politico-Ecclesiastica* [pg 008] and *De Disciplinâ Ecclesiæ*) as consultor. So again, he has sought out Moufang of Mayence and Molitor of Spire, for his own Congregation, because he presumes them to be like-minded with himself. The general rule in selecting persons for the preliminary work has been to consider their devotion to the cause, not their scientific capabilities. First among them, in the directing Congregation of Cardinals, must be named

Bilio, who never loses an opportunity in conversation of eloquently extolling Papal Infallibility. To the same class belongs Panebianco, a zealous friend of the extremest claims of the Bourbons. Neither of them is known for learned labours of any note, as neither are Barnabo and the aged Patrizzi, who is named President of this Congregation merely on account of his name and age. Among the domestic consultors of the Commission on dogma, known in literature, and as its very soul, sits the Jesuit Perrone, who is become indispensable to the Pope; then comes Spada, the Dominican, Master of the Palace, who gained his theological reputation by a controversial treatise in defence of eternal punishment; Cardoni, who exhibited his strong views in a work advocating the obligation of religious when named to bishoprics [pg 009] still to live according to the rules of their Order; and finally, Bartolini, who has vindicated the identity of the Holy House of Loretto with the house of the Blessed Virgin at Nazareth—all simply men of the most rigid type. Among those employed in these preliminary labours, Professor Biondo, of St. Apollinare, excels all the rest, if in nothing else, in his conviction that true devotion to the Church can only be found in Italy. We may take as a significant illustration of the method of choosing foreign consultors, the appointment of Mgr. Talbot for England, who, when appointed, was out of his mind, and has now been for four months in a lunatic asylum. Among the French who are invited the Abbé Freppel appears to be the most moderate. But even in Rome there are many clergymen, and even Cardinals, who do not conceal their opinion that with such designs the Council will be an embarrassment for Rome, and a danger for the Church. But nothing of this comes to the ear of the supreme authority, nor would information of it directly conveyed to the Pope be likely to effect any change. Even the *Curia* measures the sentiment of the Catholic world by the homage paid to the Pope, and therefore the solemnity can only encourage them in their designs about the [pg 010] Council. It is sometimes feared that the French Bishops may give trouble; any opposition on the part of secular governments is not taken into account, for the *Curia* has completely broken with the modern State, and has systematically ignored it both in the project and the proclamation of the Council, while according to the precedent of nearly all former Œcumenical Synods, an understanding should have been come to with the Catholic States as to the time and place of holding it, and the subjects to be discussed. The separation of Church and State in this last procedure is the act of Rome,

although the opposite theory is sanctioned in the Syllabus. Anything like a literary and scientific opposition, or a movement among the laity, such as has here and there begun to show itself, is regarded in the Vatican as a mere tempest in a tea-cup.

Prince Hohenlohe and the Council. (Allg. Zeit., June 20 and 21, 1869.)

In former times, the assembling of an Œcumenical Council was caused by a general sense throughout the Catholic world of some religious need, whether the definition of an article of faith or the abolition of grave evils [pg 011] and abuses—in short, a reformation—was felt to be necessary. It was universally known what questions the Council was to treat of. The sovereigns communicated, for this end, with the heads of the Church and the Pope, and brought forward their own wishes and requirements, as at the last Œcumenical Council of Trent, which had at least to be taken into consideration. But how entirely different is this Council under Pius IX.! Already, in 1854, an episcopal assembly, at Rome, raised to the dignity of a dogma the thesis of a theological school of the middle ages, combated even by Thomas Aquinas, but which happens to have become a favourite opinion of the Pope, although no ground had been discovered for this new article of faith in any want of the religious life which the Church has to cultivate. And this was done against the judgment of a considerable number of the prelates who were consulted, without any basis for the doctrine being able to be found in Scripture and Tradition, by the acclamations of the assembled bishops—after a fashion, that is, in which no dogma had ever been defined

before. The Abbé Laborde, who craved permission to lay his objections before the assembly, received for answer his banishment from Rome, and the name of another priest was [pg 012] subscribed to the Bull proclaiming the dogma without his knowledge or consent, so that he found himself compelled to protest publicly against it. In view of these facts, and under the just anticipation that at the approaching Council the dominant party in Rome will be equally tyrannical in their treatment of dissentients,—it is already reported that three members of the present Commission, who are opposed to Jesuit tendencies and practices, have been suffered to retire—several distinguished heads of the Church have renounced the idea of delivering their testimony there. And how is this Council the outcome of any urgent requirements of the Church's life, and does Catholic Christendom know what end it is designed to serve, and what is to be expected of it? Nothing of the sort. The necessity of the Council, if it will not put its hand to a reformation of the Church, in accordance with the needs of modern civilisation, is not everywhere understood by the clergy themselves. Only this winter wishes were loudly expressed by some of them that its assembling might be dispensed with, considering the position of the Church in Austria and Spain; but in the Holy Father's state of exaltation on the subject these wishes could have no effect. Then again,—what is perhaps without precedent in all Church history—the [pg 013] the matters to be treated of in the Council have been carefully kept secret; the Bull of Indiction confines itself to vague generalities, and the theologians employed in the preliminary labours were bound to silence by the oath of the Holy Office,—i.e., the Inquisition—imposed under pain of excommunication to be incurred *ipso facto*. It seems not to be necessary, therefore, at least for the present, that Christendom should have even any inkling of the doctrines on the acceptance or rejection of which salvation or damnation is to be made dependent.

It is not the satisfaction of real religious needs that is contemplated—there would be no need to shun publicity in that case—but chartering dogmas which have no root in the common convictions of the Catholic world. Leibnitz used to call even the Council of Trent a “concile de contrabande;” the way in which this last Council is to be brought on the stage would make the designation for the first time fully applicable.

If these circumstances alone are enough to make Governments that have Catholic subjects suspicious of the designs of the *Curia*, there are also further proofs that their designs are not confined to strictly ecclesiastical affairs, but involve direct encroachment on the life [pg 014] of the modern State. Not to dwell here on the too open-hearted confidences of the *Civiltà*, which, although published with the approval of the Holy Father himself, have been characterized by him as an “imprudenza,”⁴ we will pass to other facts which sufficiently indicate the projected decrees of the Council.

To the inquiries of ambassadors about the reasons for summoning a General Council, Antonelli could only reply by referring to the great revolution and fundamental change in civil and political relations. It may be inferred from this declaration that the Council is intended to discharge a political office also, and in what sense, Rome has told us in the Syllabus and the condemnation of the Austrian Constitution. For this object an ecclesiastico-political consulting committee has been formed, subordinate to the Commission intrusted with the supreme control of the Council, with Cardinal Reisach at its head, and whose Italian members are as conspicuous for their want of scientific culture as for their opposition to any concession to the requirements of the age, and their hostility to all foreign countries, and especially to the non-Roman portions of Italy. The Syllabus will be put into shape in its [pg 015] affirmative form by this Section, in order thus to be submitted for sanction to the Council. One of its members lately expressed himself in the following terms, with the applause of his colleagues and of the Holy Father himself:—“The Syllabus is good, but raw meat, and must be carefully dressed to make it palatable.” This skilful dressing, which is to make it everywhere acceptable, it is hoped to effect by publishing the propositions in the form of exhortations, instead of commands, which, however, will come to the same thing, as the exhortations emanate from the head of the Church.

It is with good reason that Prince Hohenlohe, in his despatch, expresses the fear that the Council, according to the programme of the *Curia*, will publish decrees on political rather than ecclesiastical questions, and he rightly states that the projected dogma of Papal Infallibility is also an eminently political question. For when once that is defined, the mediæval pretension of the Pope to dominion over kings and nations, even in secular matters, which

has never been abandoned, is thereby also raised to the rank of an article of divine faith. Thiers lately made the remarkable observation that the temporal power alone holds the Pope in check;—a monk, who was Pope, would think himself [pg 016] omnipotent. Certainly, without the temporal power, the maintenance of which depends on the goodwill of the French Government, and the administration of which keeps the Pope within a political area, he would give freer rein, when it was possible, to his views of the corruption of the modern State. Once seat a monk on the Papal throne, as many have already sat there, unacquainted with the actual world, and in heart alienated from it, and arm him with the prerogative of infallibility,—his decrees in the present condition of society are sure to evoke the most deplorable conflicts.

The ultramontane press in Germany, which is itself beginning to find the decisions sketched out by the *Civiltà* intolerable, now adopts the tactics of denying the official character of the Jesuit journal, and clings to the straw of hope that neither Papal Infallibility nor the Syllabus will be made dogmas. But it is no secret in Rome that those alarming communications of the *Civiltà* were letters written by French Jesuits, prepared and published with the sanction of the Holy Father himself, and cannot therefore be treated as mere chance contributions of private correspondents.

For several years past the Court of Rome, with the aid of its indefatigable allies the Jesuits, has been preparing [pg 017] the way for securing beforehand the votes of the Bishops on Papal Infallibility. Thus some years ago the Bishops of different countries received, quite unexpectedly, an urgent admonition from Rome to hold Provincial Synods, and frame decrees at them. These decrees had to be sent to Rome, to the Congregation exclusively charged with the revision of such ordinances, and were then returned, after correction and enlargement by the Cardinals and Committees of the Congregation. When they came to be printed, it was found that all these Synods had shown a wonderful unanimity in adopting Papal Infallibility as a self-evident principle into their exposition of universally known Catholic doctrine. The Jesuit organs have not failed to point triumphantly to these decisions of so many Bishops and Synods.

It is a fact that Antonelli publicly declared there could be no difficulty about the promulgation of Papal Infallibility, because it was a doctrine already held by all good Catholics. And this is the watchword of the whole ultramontane party at Rome. It is also a fact that the question was brought before the directing Commission in order to be put into shape, and then submitted for confirmation to the Council. And although it is certain that the discussion of it by the Commission is [pg 018] finished, the decision will be carefully kept secret for a time, because as yet courage fails them for a straightforward course of procedure, and they hope to gain their end by a sort of *coup d'état*, viz., carrying the dogma by spontaneous acclamation, to be evoked by a foreign prelate.⁵ And thus Governments will be deprived of the opportunity of gaining any influence over the decisions of the Council, and protecting themselves against threatening eventualities.

Well-informed persons, who do not deny the intention of making Infallibility into a dogma, think that some innocuous formula will at last be discovered, such as prefixing a “quasi” to “infallibilis,” so that all the trouble expended in gratifying this darling wish of Pius IX. will be almost labour lost. But so long as the decision rests with the Jesuits, who have an overwhelming majority in the preparatory Congregation, there is no ground for this hope. They foresee the possibility of being again driven from the helm a few days after the death of the Pope, and therefore press for an unqualified definition, that they may make capital out of the infallible Pope for conquering a new position of influence for themselves in civilized Catholic countries. And if they [pg 019] could not reckon without some regard to other factors also, still their calculations had a good prospect of success, for Pius IX. is completely in the hands of the Jesuits, especially of Father Piccirillo, the chief person on the *Civiltà* staff, who will act as *spiritus rector* of the Council. The Pope is seldom left alone, lest he should fall under the influence of others who judge more correctly of the situation of the modern world and the real wants of the Catholic Church; he lives in an artificial atmosphere of homage poured forth by the ultramontane journals. He is so possessed with a sense of his own power that he believes he ought not to regard or fear any possible opposition of the French Government to the decisions of the Council.

Meanwhile there are growing signs that at least a portion of the French episcopate are not willing to degrade themselves to the humiliating *rôle* of mere acclaimers to the propositions of the *Curia*. In two articles of the *Français* (for March 18 and 19) Dupanloup has already decisively disclaimed sympathy with the tendencies and insinuations loudly expressed in the notorious correspondence of the *Civiltà*. He gives a specimen of the hopes and wishes about the Council intimated by the French Bishops in their pastorals, [pg 020] where he shows that they are all far from expecting it to assail political and social liberty and freedom of conscience, to condemn modern civilisation and widen the breach between the Catholic Church and other Christian bodies, by proclaiming new dogmas; but, on the contrary, that they look for a reformation of Church discipline adapted to the age, and a work of general reconciliation with the great ideas of cultivation, freedom, and the common weal. These declarations of the French episcopate excited great surprise and deep disgust at Rome, without, however, to all appearance, having disturbed the *Curia* in their plans, as they know from the statistics that they can count on an imposing majority in the Council.

Seats are prepared for 850 Bishops at the Council, but the question whether Bishops *in partibus* are to have decisive votes is not yet decided. Since, however, their admission will not materially affect the relative position of the two parties, they may be left out of the account. To these voting members of the Council must be added 57 Cardinals, and the number might be raised before its opening to 72, by the bestowal of the 15 hats vacant at present. There are thus about 920 decisive votes, including 40 Italian Cardinals, 294 Italian [pg 021] Bishops, 66 Spanish, 22 Portuguese, 90 French,—in all 512 prelates of the Romance race in Europe, to whom must be added 77 Brazilian, Mexican, and South American Bishops, raising the whole Romance representation to 600 votes. From this number about 60 must be deducted for vacant Italian Sees, and some 140 who may presumably be unable to attend. And so about 400 are left, whose votes, with the exception of a number of French Bishops, are counted upon by the *Curia*. The Court also reckons on the votes of 48 from England and Ireland, 52 from North America, 20 from Greece and Turkey, 6 from Belgium, 5 from Holland, and 16 from Canada. If the Polish and Russian Bishops are allowed to come, they too will swell the majority; and so, it is believed, will

the Armenian and Uniate Bishops in Austria, Russia, and Bulgaria, numbering about 40. Of the 65 German and Austrian Bishops scarcely half will side with the Opposition. And so, if matters are to be settled by majorities, the *Curia* is fully assured of its victory. Cardinal Antonelli counts on from 500 to 600 votes of those actually present.

Under these circumstances the Governments of countries with Catholic populations should be urgently pressed to devote their serious attention to what is [pg 022] already going on in Rome, and not to let themselves be taken by surprise by the decrees of the Council, which, when once promulgated, will place their subjects in a painful dilemma between their duties towards the State and their obedience to the Church; will everywhere create disquiet and conflicts; and must, above all, involve their Bishops in contradictions with the Constitutions they have sworn to observe. In the present difficulties of the general political and social situation in Europe, a conflict in the highest degree fatal might ensue with the Church, whose mission of culture is not yet diminished even for the time, and whose co-operation for its own purposes the State cannot dispense with. In this contest the Church cannot conquer, because the spirit of the age is against her; but the very crash of so mighty an edifice would cover and destroy with its ruins the institutions of the State itself, perplex consciences, and entail universal mischief by for the first time fully confirming the spirit of absolute negation of the ethical and ideal conception of life. The proceedings of Prince Hohenlohe may have sprung from this statesmanlike consideration; they are inspired by a friendly spirit towards the Church herself, and are of a thoroughly loyal character. He [pg 023] wishes the Governments openly to communicate with their Bishops, in order to point out to them the deplorable consequences which must follow from so premeditated and systematic a revolution of the existing relations between Church and State, and also, while there is still time, to take precautions against the event of conciliar decrees encroaching on the political domain. He challenges the learned corporations of the State most directly competent, to give their opinion publicly as to the practical results involved in making the Syllabus and Papal Infallibility into dogmas. This proceeding is far from being premature, for it is the business of a statesman not only to legislate in view of accomplished facts, but to provide for menacing dangers, nor will his conduct be blamed by any true friend of Church and State, whose

faculty of judgment is not utterly blinded by hatred. The repressive measures which Governments would be compelled to employ after the promulgation of the contemplated dogmas would not be at all in the interest of the Church. Suppose, for instance, freedom of conscience, already condemned in the Syllabus, were anathematized by the Council, and the doctrine of religious compulsion sanctioned, the Bavarian Bishops who had assented to this decree, or wished to obey it, would [pg 024] have broken their oath to the Constitution, the Constitution which guarantees freedom of conscience would be under the ban of Rome, and the Government would have to answer by publishing the Concordat.

The Council. (Allg. Zeit., Aug. 19, 1869.)

If the present situation in regard to the Council is considered, the triumph of the Jesuit ultramontane party there appears highly probable. The demonstration of the Rhenish Catholics has as yet assumed no larger dimensions, and will evidently gain nothing by the projected Catholic meeting at Düsseldorf; for not only is red-hot ultramontanism a decisive obstacle, but the widely growing and deepening religious indifference hinders men from taking any part in movements based on a spirit of loyalty to the Church. In Rome, accordingly, little notice is taken of the movement, and satisfaction is felt at the prospect of expelling this mischievous liberal element from the Church, because then it is hoped the kernel which remains true may be more boldly dealt with. Our German ultramontane press, which lost no time in making a bitter and contemptuous [pg 025] attack on the address of the Rhenish Catholics, is therein only the exponent of the mind

of the *Curia*. Meanwhile the German Bishops are preparing themselves to commit an act of doctrinal and ecclesiastical suicide, by renouncing for ever their long obscured but not as yet surrendered rank and authority as supreme judges of faith.⁶ Two of them, Bishops Ketteler of Mayence and Fessler of St. Pölten, have already pronounced in separate works for the infallibility of the Pope.

The diplomatic action of Prince Hohenlohe in regard to the Council has indeed created for the time a sensation, which still continues among the States interested in the matter, and which eventually culminated in the desire to obtain further information about the propositions to be submitted for the acceptance of the assembled Bishops, but even the representative of France has been baffled by the arts of the *Curia*. When, in June, M. Banneville put the decisive question whether they were not prepared to deny the alarming rumours as to the propositions to be laid before the Council, and to take immediate steps for facilitating the representation of Catholic States in the Council through ambassadors [pg 026] of their own, Antonelli replied that he had no knowledge of what was going on in the Commissions, but as to the second point, the Church in her present changed relations with Catholic States, which sometimes persecute her and sometimes put her on an equality with other religious bodies, could not take the initiative. M. Banneville, who had simply spoken of the presence of an ambassador at the Council, but had said nothing of his rights, stated that this conversation had “profoundly humiliated him.” Thenceforth the Court of Rome was the more confirmed in its resolve to keep out diplomatists from the Council. To an indirect question as to the admission of an ambassador from non-Catholic States, which have a large Catholic population, an instant negative was returned. The quarrel of the Austrian Government with the Bishop of Linz has given a further impulse in the same direction, for then Antonelli began to declare more openly that it was indeed possible, but not likely, that any ambassadors would be admitted, till now at last he makes no secret of its being out of the question for Rome, under existing circumstances, to think of allowing Governments to be represented. It would not be feasible, he opines, to admit France alone, and what other Catholic States are [pg 027] there that have not already disqualified themselves for taking part in the Council? Thus by degrees France too is gently thrust aside with her inquiries and demands, and the only question is

whether Napoleon's Government will be content with this. Unless the clerical party in France itself causes the Emperor to assume an attitude of opposition to the Jesuit ultramontane programme of the Council, there is not much to be expected from him, since in view of the internal difficulties his Government at present has to contend with, he is obliged to take that party into account as an important factor in his calculations.

The Jesuits work assiduously in France, as well as Germany, to form a propaganda for the projected dogmas, and to familiarize men's minds with the idea that absolute certainty and inerrancy are only to be found with one man, viz., the Pope. Bouix in Paris, and Christophe at Lyons, have, with the *Monde*, and *Univers*, already most urgently inculcated on the Bishops what "good Catholics" expect of them in regard to the acclamation. But, with the exception of the Bishop of Nîmes, none of them have openly adhered to the Jesuit programme of the Council; on the contrary, the attitude of the French episcopate is perhaps at this [pg 028] hour the only black speck on the horizon of the *Curia*. And in fact with them rests the decision in the present ecclesiastical crisis. To the French episcopate it belongs to show that they still preserve the great traditions of internal freedom in the Church, newly brought to light since the mediæval reforming Councils by French theologians, and thenceforth always conspicuously represented among them, and that they are filled with the spirit of Bossuet, who did not confound loyalty to the Church with blind devotion to unfounded claims of the Pope, but understood it to mean, above all things, loyalty to the ancient spirit and original institution of the Church.

But there are good grounds for hoping that at least a majority of the French Bishops will constitute a free-spoken opposition at the Council; the two French theologians Freppel and Trullet, as well as Cardinal Bonnechose, are said to have exercised a most powerful influence in this direction.⁷ The latter openly complains that words of moderation are not listened to in Rome, and that, up to this time, giving any definite declarations of a reassuring nature has been avoided. He is understood to have said plainly that the great majority of the [pg 029] French episcopate wished to keep peace with the State, and would lend no hand to the sanctioning of extreme tendencies. It is even rumoured that a collective remonstrance of the French Bishops on the notions prevalent at Rome is already contemplated, but has

not yet been able to be carried out on account of some hesitation about the mode of action. Much may be hoped from Dupanloup's attitude at the Council; in him freedom of discussion and voting is sure to find a representative equally bold and eloquent.

But even the opposition of the French Bishops will produce no results, if the decisions of the Council are to depend on majorities, for there can be no doubt that Rome may safely count on the great majority upholding her designs. We should have a repetition of what occurred in the Doctrinal Commission, when the question of Infallibility came before it, and a Monsignore and titular Bishop, residing in Rome, produced a memorial intended to prove that this high prerogative of the Pope had been the abiding faith of the Church all along, and arguing from this belief for the opportuneness of promulgating the new dogma, on the ground especially, among others, that at no period had the Bishops been so devoted to the Holy See as now. It is natural to expect of men so submissive, [pg 030] and so ready to follow every hint of the Papal will, that they should joyfully seize the occasion for offering this grand homage also to the Pope. This was so conclusive to the Committee that they all decided at once, without any discussion, for the promulgation of the new dogma. Only one of the two German theologians, Alzog of Freiburg, opposed it; Schwetz of Vienna, on the other hand, fully agreed. For Rome, therefore, the question is settled, and whoever is otherwise minded at once forfeits his character for Catholic orthodoxy.

Nor is there any more doubt about making the Syllabus dogmatic, for Roman prelates, who wish to have the character of being very enlightened, openly affirm that the propositions contained in it might already be regarded as dogmas. And it is stated on the best authority, even by high dignitaries themselves, that the whole of the seventeen questions laid before the assembled episcopate by Cardinal Caterini at the time of the Centenary, are to come before the Council for discussion, on the basis of the opinions then transmitted by the Bishops to Rome. And as a considerable number of these questions concern the relations of Church and State—*e.g.*, civil marriage, the relations of Bishops to the civil power, etc.,—it is clear enough what credit is [pg 031] to be given to the assurances that the Council will not deal with any matter that could involve the Church in

conflict with the State. It was found almost necessary, after public opinion had been alarmed by the *Civiltà*, to change the method of procedure. It was either expressly denied that the Council would deal with such matters as the *Civiltà* had indicated, or it was said that even in Rome what subjects would come on for discussion and decision was unknown, since the intentions of the Bishops, at present scattered over all parts of the world, were not known, and on the general ground that the decisions of a Council acting under Divine guidance cannot be conjectured beforehand. As if the recent Provincial Synods, and the answers of the Bishops to the questions laid before them by Caterini, had not supplied Rome with a perfectly clear understanding of their views! As if it was not notorious that the work the Council was desired to accomplish had been already cut out for it in detail in the preparatory Congregations!

Now, at length, if we may trust a communication dated from Rome in the *Donau Zeitung*, the authorities seem inclined to abandon this system of playing at hide-and-seek with the public, and find it necessary, in some [pg 032] measure at least, to lift the mask from their designs for the Council. Pius IX. himself is said no longer to make any secret of his intention to bring forward the question of Infallibility; but he declares that the Council will be left entirely free in discussing and deciding on it, and that it will only be raised to a dogma if a large majority pronounce for it. And with this agrees a recent statement of Antonelli, made in the teeth of his earlier declarations, that the Holy Father will meet the Council with positive proposals of his own, and that no doubt can be allowed as to the acceptance of his authority. This last clause shows what is meant in Rome by the so-called freedom to be enjoyed by the Council. If then that freedom is all of a sudden pointedly dwelt on, this is only one of the devices of the *Curia* for hoodwinking public opinion, just as eminent theologians of liberal tendencies were summoned to the previous Commissions, which were none the less occupied with duties of a precisely opposite kind.

It may be conceived that loyal but far-sighted Catholics, like Montalembert, are profoundly afflicted at the course things are taking in questions of decisive interest for the authority and the whole future of the [pg 033] Church, The religious indifference of the age will prevent any open schism in the Catholic Church, but the internal apostasy will be all the more

extensive. All modern culture will separate itself in spirit from the Church, which has nothing but anathemas for the development of the human mind. And when an Œcumenical Council, which is the highest teaching authority in the Church, degenerates into the instrument of an extreme party, and sanctions doctrines in glaring contradiction to the teaching and history of the Church, the very foundation on which the confidence of faith has hitherto reposed is undermined and destroyed. And thus the ever growing rejection of Christianity will be powerfully strengthened, so that even believing Protestants watch with sorrow an Œcumenical Council preparing to compromise its authority. Very different, of course, is the view of men like Manning and Ward, who fancy the definition of Papal Infallibility will be a short and easy way for restoring their countrymen to the bosom of the Catholic Church. Pius IX. himself is indeed convinced that he is only building up the Church and crowning her work in placing the dogma of Infallibility on it as a cupola.

It has been thought fit by statesmen to exercise no [pg 034] constraint on the designs of the *Curia*, but to await its decisions, and afterwards, if they should be menacing to political interests, to employ measures of repression. This conduct cannot, of course, accord with the mind of believing Catholics who are not ultramontanes, as it leaves their obligations towards those articles of faith untouched, and cannot annul the definitions for their consciences. But the question arises, whether from a political point of view this expedient must not be pronounced a mistake. Consider the dangerous influence conciliar decrees provoking hostility against the modern State and its civilisation may exert on those numerous classes, which are always in the hands of the clergy, and form an important factor in the life of the State. Consider, again, what is to be expected in this respect of a clergy who, as everything serves to indicate, will hereafter more than ever before be alienated from all modern culture, on the express ground of the decrees of the approaching Council, educated in a spirit of hostility to the State, and made into a mere passive instrument of Rome. It is difficult to exaggerate the conflicts between Church and State that may be expected to follow.

The Fulda Pastoral. (Allg. Zeit., Sept. 25, 1869.)

The Pastoral which the Bishops assembled at Fulda ordered to be read in all the Churches under their jurisdiction is an important document. It reflects the excited and abnormal state of feeling prevalent among Catholics, since the Jesuits, and some Prelates allied with them, have announced the design of using the Council for proclaiming new dogmas, especially that of Papal Infallibility. “Even among loyal and zealous members of the Church,” say the Bishops, “anxieties calculated to weaken confidence are being excited.” The object and main substance of their Pastoral is directed to allaying those anxieties, and assuring German Catholics that their Bishops at least will not assent to the projected dogmas. They have solemnly pledged their word, before the whole nation, that they will avouch at the Council the three following principles—*first*, “That the Council can establish no new dogmas, or any others than are written by faith and conscience on all your (German Catholics’) hearts;” *secondly*, “That a General Council never will or can proclaim a new doctrine not contained in Holy Scripture [pg 036] or Apostolic Tradition;” *thirdly*, That only “the old and original truth will be set in clearer light.”

This indeed is very re-assuring. The Jesuits have proclaimed that the bodily Assumption of the Holy Virgin and the Infallibility of the Pope are to be made dogmas at the Council. The Bishops are aware that the two Jesuit organs, the *Civiltà*, and *Rheinischen Stimmen*, from the Monastery of

Laach, as well as the Archbishop of Mechlin (Deschamps), and Bishop Plantier of Nîmes, have put forward the erection of Papal Infallibility into a dogma of the Universal Church. Moreover, the assembly at Fulda knew well enough that the preliminary materials for this definition were already prepared at Rome. Now nobody will seriously maintain that these two opinions are written by faith and conscience on the heart of every Catholic, or are doctrines contained in Scripture and Tradition, and ancient and original truths. The Pastoral therefore contains a promise, worded with all the distinctness that could be desired, that, so far as it depends on the votes of the German Bishops, the yoke of the new articles of faith shall not be laid on the German nation.

The German Bishops cannot of course pledge themselves beforehand for the whole Council, for they will [pg 037] have at most only about 25 votes at their disposal—a small number in an assembly of 400 or 500 bishops. But if these 25 votes, which represent nearly eighteen million Catholics, and the whole of a great nation, remain united and firm, they are a guarantee that the new dogmas will not be decreed. For it is not majorities or minorities that decide on dogmas, but the Church requires the actual or approximate unanimity of the whole assembly. And it may be assumed as probable that the Austrian Bishops will not separate themselves from their German colleagues in these weighty questions, except, of course, the Bishop of St. Pölten, who already openly declares himself for the principal new dogma, and will therefore no doubt vote for it. It may, moreover, be confidently asserted that a considerable portion of the French Bishops will unite with the German Opposition against the new dogmas. And an Opposition so numerous and so compact will make it impossible for the Latin Prelates to carry through their pet doctrines, powerful as they may appear, if their votes are counted and not weighed.

From another point of view, too, the Pastoral is noteworthy and gratifying. It markedly discountenances that pessimism which for some thirty years past has characterized Papal documents, and which gave occasion [pg 038] to the observation that Pius ix. and his predecessor whine whenever they talk Latin. Occurrences in Italy, Spain, and Germany, and the history of the Austrian Concordat, with many other things, have led most of the clerical organs to take a gloomy view of the state of the world; and we frequently

find them maintaining that a universal overthrow of the whole order of society in the Christian world, a universal deluge, is inevitable, but that the ship of the Church, the one asylum of safety, will float, like the ark, upon the waves, and then will begin a new order of things, and new period of history corresponding to the ultramontane ideal. In sharp antithesis to these gloomy pictures and predictions, the Bishops declare, *first*, that throughout the world the kingdom of God increases with fresh vigour, and brings forth fruit; *secondly*, that all attacks on the Church, and sufferings brought upon her, work for her good; and *thirdly*, that religious and ecclesiastical life is strengthened. Such a view as this is better calculated to arouse and sustain attachment to the Church and confidence in her indestructible powers of life and providential guidance than the opposite view, which exhibits to Catholics everywhere nothing but the humiliation of their Church and the triumph of her enemies.

[pg 039]

The Bishops and the Council. (Allg. Zeit., Nov. 19 and 20, 1869.)

As the moment for the opening of the Council approaches, the excitement and disquiet, not only of Catholics but of all who concern themselves with the movements of the day, increases in view of so important an event. For

the notion that the Council is merely an internal affair of the Catholic Church, and that its decrees will be confined to the sphere of the religious conscience, will be accepted by nobody who has heard of the projects entertained by the *Curia*, and who is not ignorant of the close connection of the Church with the culture of modern life, and the powerful position this gives her in the State and in the social order generally.

We may safely state that the Fathers of the Council are already divided into two camps, and that anxiety and painful uncertainty prevail in both of them. The occurrences of the last few weeks have brought out their opposite views and designs into sharp contrast. It is now known in Rome that a considerable number of Northern Bishops are not disposed to accept the *rôle* assigned to them of simple assent to ready-made decrees, and that the German Bishops, except those trained by the [pg 040] Jesuits, most decisively object to making new articles of faith. Many Bishops also dread the far-reaching consequences of Papal Infallibility, and the retrospective effects of the new dogma, and they know that the establishment of such doctrines would drive the educated classes of the country, if not into open schism, to an internal and lamentable breach with the Church. Accordingly, remonstrances have been forwarded to the Pope from three quarters—from the Prelates of Hungary, Bohemia, and Germany,—expressing the most emphatic desire that the Council should not be forced to any decision on Papal Infallibility, or on matters affecting the relations of Church and State, in the sense of the Syllabus. What reception this document met with in Rome may readily be divined from the great astonishment the Fulda Pastoral is known to have excited there, when a translation of it was laid before the Pope. It is now thought politic in Rome to deny the existence of these letters of remonstrance, but they have taken such effect that the highest authorities begin to hesitate, and ask themselves the question whether they have not gone too far in their confident assurance of victory. The idea of being able to carry the Infallibility dogma off-hand by acclamation seems at least to have been abandoned. [pg 041] It is understood that some less summary method of gaining their object must be resorted to, if it is to be gained at all. And hence at the last moment they have begun to look out for some Council Chamber where the Bishops may discuss the matters to be decided upon, for the chapels appropriated to the Council in St. Peter's are only designed for solemn sessions.⁸ It is said in

Rome that the pungent remark of a Cardinal to the Holy Father has had something to do with the change of the original scheme of an acclamation. Pius IX. had asked his opinion as to the most effective way of carrying the decrees, and he replied, that obviously the *theatrical* effect would be greater if there was no debating, but simply decision by acclamation, as though by inspiration of the Holy Ghost. And thus the hope of getting the Council over in three weeks is also given up, and it is now expected to last to the Feast of St. Peter and St. Paul.

The drawing up of the letter of remonstrance at Fulda is said not to have been such plain sailing. The Pastoral originally sketched out by Heinrich, Canon of Mayence, but to which important additions were made subsequently, was subscribed by all the Bishops, even those who had been pupils of the Jesuits, who consoled [pg 042] themselves with the belief that the dogma of Infallibility did exactly combine the conditions specified there as requisite for a dogmatic decree, and was really scriptural, primitive, and written on the hearts of all good Catholics. So their Jesuit masters had taught and assured them. But the secret document sent to the Pope had necessarily to be more explicit, and though it was limited to pointing out how inopportune the definition of new dogmas, especially of Papal Infallibility, would be, that was precisely opposite to what the Jesuitizers among the Bishops were convinced of. The Jesuits themselves lose no opportunity of proclaiming that nothing can be more opportune than this dogma, and from their own point of view they may be right enough, for the rich and ripe fruits of the dogma would fall into their own laps, and would help the Society to absolute dominion over science, literature, and education within the Catholic Church. The proposed dogma would give canonical authority to the Jesuit theology, and identify it with the doctrine of the Church, and the Order, or the spirit of the Order, would always be required for teaching and vindicating the new system. The Bishops of Paderborn and Würzburg therefore refused to sign, and the representative of the Bishop of Spire followed their example.

[pg 043]

The scruples of these Northern Bishops were so utterly unexpected that they must have created great surprise at Rome. Their informant in the matter of the Infallibility dogma had assured the authorities, in the teeth of the

Northern Prelates, and with the full concurrence of all the members of the Commission, that no fitter or more favourable time could be found for establishing the new dogma, for at no former period could the Court of Rome reckon so securely on the unconditional devotion of the Bishops, nor was there ever a time when they were so ready as at this moment to surrender before the Pope all exercise of their own judgment or independent examination. The remonstrances of the Hungarian, Bohemian, and German Bishops have of course poured water into this wine, to the no small astonishment and indignation of the Roman Prelates, with whom it is an axiom that nobody is a good Christian who does not believe the infallibility of the Pope as firmly as the divine mission and truthfulness of Christ. Accordingly, the *Correspondance de Rome* cast in the teeth of Prince Hohenlohe, that since all true Catholics already hold the infallibility of the Pope when speaking *ex cathedrâ*, a decree of the Council will only confirm what is universally [pg 044] known and believed.⁹ Let those good souls who flatter themselves that the *Civiltà*, with its expectations and demands, stands alone, weigh well the utterances of so well-known a journal.

The Austrian Bishops have not thought it well to follow the example of their Hungarian, Bohemian, and German colleagues. One of them, Dr. Fessler, is notoriously the most determined advocate of the whole ultramontane system, and was the first Bishop to declare the definition of the new dogma to be at once a natural and suitable work for the Council. His services were promptly rewarded; he is already named chief secretary of the Council, and his hand will press heavily on its decrees. The *Curia* may congratulate itself on its choice. The silence of the Austrian Bishops is further explained by the differences of opinion among them about the questions coming before the Council.

In their secret letters the Northern Bishops have opposed the new definition only as being inopportune, and it is known that the French Opposition Bishops mean to take the same ground. But it deserves careful [pg 045] consideration whether this line of action can be really tenable or effective at the Council. Surely it may be certainly foreseen that the far more numerous, and, from its determined attitude, stronger party on the other side will answer, "If your only objection to the dogma is that it is unsuited for the times, you thereby admit its truth; for if you thought it doubtful or

erroneous, you must have opposed the definition on that ground. By not venturing to assail its truth, you deprive your objection to its opportuneness of all weight, for when was ever a religious truth, on which eternal salvation depends, suppressed on such a ground as this? Does this holding back, inspired merely by fear of men, correspond to the ancient spirit and lofty mission of the Church? How many of her doctrines would she have dared to proclaim if she had chosen to wait on the approval of the age? Rather, for that very reason, must religious truths be loudly and emphatically proclaimed, when a contrary opinion is growing among men, because thereby an insidious heresy is marked out and judged by the supreme authority in the Church. Your plea of inopportuneness is therefore a fresh and urgent ground for adhering firmly to the solemn definition of Infallibility by the Council.”

[pg 046]

How far better then would it be if these Prelates were to declare simply and directly, what the German Bishops have indeed said in their Pastoral, but, of course, in general terms only, and without express mention of the Infallibilist hypothesis; “This doctrine possesses none of the requisite conditions of an article of faith; it has no guarantee either of Scripture or Tradition, and no roots in the conscience and religious mind of the Christian world.” Such a line would be incomparably worthier of the Bishops, and would make their position far stronger and more unassailable. Instead of letting themselves, as is intended, be yoked, like willing prisoners, to the triumphal chariot of the sole infallible and sole defining Pope and lord, they would be making a beginning for the revendication of their ancient apostolical rights, which the Papacy has sequestered or robbed them of. They would be asserting, by implication, that the Papacy and the Church are not identical, and therefore that the Church cannot be made responsible for all decrees and actions of the Popes. Half-and-half courses, and false piety, in the tremendous crisis the Catholic Church is now entering upon, are not only powerless but fatal. And this half-heartedness, which looks only too like fear, will make [pg 047] the Ultramontane and Jesuit party all the bolder and stronger in their plans. And they continue still as firm as the rock of Peter. In the number for Oct. 2, p. 64, the *Civiltà* maintains, against a new French paper, the *Avenir Catholique*, that the relation of the Bishops assembled in Council to the Pope is simply one of most absolute subjection

and obedience to Papal commands, and declares, on the authority of Ferraris, who is a classical authority at Rome, what is meant by *præsidentia auctoritativa*, viz., the Pope's right, not only to decide on everything, but to coerce all opponents, by ecclesiastical censures—excommunication, suspension, and deposition—and other judicial means.¹⁰ If the Pope strikes down every contradiction or refusal of a Bishop at once, with the thunderbolt of his anathemas, according to the *Civiltà* he no more violates the freedom belonging to the Fathers of the Council, than a man who keeps within his own rights in his dealings violates his neighbour's rights of property. We must remember, as to this definition of freedom, that the logic of the Jesuits has always gone [pg 048] its own way without troubling itself with the logic of the rest of mankind.

It deserves notice, however, that two months before the opening of the Council the Jesuits had traced out for the Bishops the extent and nature of the freedom they are to enjoy there. They do their part frankly enough in dispelling any illusion on the subject. If any complaint from the Bishops should be heard in Rome, such as was made by the Spanish and French Bishops at Trent, the *Curia* can reply that they were told all this beforehand. The *Civiltà* has the most direct sources of information, and may therefore be safely trusted when it says, in a recent number, “We are not the authors of the Papal thoughts, nor does Pius ix. speak and act under our inspiration, but *we are certainly the faithful echo of the Holy See.*” And, as an echo of the Pope, the *Civiltà*, in its last number, p. 182, gives a more precise explanation or statement of the infallibility of *ex cathedrâ* decisions, as extending, not only to all dogmas, but to “all truths and doctrines connected with the various kinds of revealed dogmas, and so to all sentences and decrees concerning the common weal of the Church, her rights and discipline.” In truth, if the Bishops don't even yet see the precipice to the edge of which they have [pg 049] been led step by step for years, and which they are just going to spring into, that is no fault of the Roman Jesuits, who have honestly done what they could to open their eyes. It is therefore to be earnestly wished that the *Civiltà* may be read and well weighed as widely as possible, for then one may hope they will be “forewarned, forearmed.” They have certainly had no lack of signs and warning voices, who are expected and are willing to subscribe the intended decrees of the Council. “The true echo of the Holy See” proclaims to the world that every Pope is,

ever has been, and ever will be infallible, *first*, when he teaches or maintains anything in any way connected with revealed truths of faith or morals; *secondly*, when he decrees anything affecting the welfare, rights, or discipline of the Church. Clearly therefore, henceforth the question will be, not in what cases the Pope is infallible, but what are the few cases where he is not infallible. He, as being infallible, will have the first and only right to determine what is the welfare of the Church, and what it requires. And since, in the whole range of public life, of politics and science, there is scarcely anything not permanently or incidentally connected with the weal of the Church, and with its real or assumed rights and discipline, he will have it in his [pg 050] power to make every secular question a Church question. For it must certainly be anathematized as an error, as the Syllabus says, to affirm that the Pope has exceeded the limits of his power. How can he possibly do so on this theory? He is infallible alike in the definition of doctrine and in its application to concrete cases. He is therefore always right in every claim and every decision, and whoever opposes him, or does not at once unconditionally submit, is always wrong. Whatever demand he makes of any State or Sovereign, whatever law or constitution he abrogates, he must at once be obeyed, for he acts for the good of the Church, and he, as being infallible, can alone judge and settle what that is. The episcopate and clergy must blindly submit to his infallible guidance and serve dutifully under his banner, when he proclaims war against a State, or an institution.

Need we explain in detail what painful conflicts with their Governments and the Constitutions they have sworn to, Bishops and clergy, nay all Catholics, might be precipitated into on this system? What caused that lamentable persecution and oppression of Catholics in Great Britain, and their loss of civil privileges for centuries, but Paul v.'s prohibiting their taking the oath of allegiance [pg 051] to their Sovereigns? Although the oath contained nothing against the religious conscience of Catholics, the Pope condemned it because, identifying his own pretensions with the interests of the Church, he thought it intolerable that it denied the power of Popes to depose kings, absolve subjects from their allegiance, and excite revolt and treason against the Sovereign and the State. It is a maxim of the Decretals that no oath against the interests of the Church is binding.¹¹ But what is for the benefit of the Church the infallible Pope determines. How often have Popes identified their own political interests with the good of the

Church, and required and occasioned the breach of oaths and treaties! Thus Innocent III. absolved John from his oath to observe Magna Charta, on his consenting to receive back his crown as a gift from him. When, in the fifteenth century, Eugenius IV. was at war with Francis Sforza, and the general Piccinino had promised not to attack him, the Pope absolved him from his promise, because it was prejudicial to the interests of the Papacy, and “a treaty prejudicial to the Church is not binding.” Charles V. and Francis I., in their treaty of Madrid, had stipulated [pg 052] that neither should have his oath dispensed without the consent of the other; but Pope Clement VII. was the first to seduce the King to commit perjury, in order that he might form an alliance with him against the Emperor. So again did Paul IV. release Henry II. from his five years' truce with Charles V., confirmed by oath, in order to gain the King of France as an ally against Spain.

The Jesuit theory of the infallible Pope and the extent of his powers is in no way less extravagant than that which deluded Agostino Trionfo into his deification of the Pope under John XXII.¹² Once admit the maxim of the Syllabus, that the Popes have never exceeded the just limits of their power, and it must obviously be their right to dispose of crowns and peoples, property and freedom, since they have in fact claimed and exercised the right. Thus, for instance, Nicolas V. did not at all violate the common rights of men, but only made a proper use of his own absolute authority, when he gave full power to King Alfonso of Portugal, and his successors, to subjugate unbelieving nations, appropriate their territories and all their possessions, and reduce their persons to perpetual slavery. Nor was Alexander VI. [pg 053] less justified in conferring on Ferdinand and Isabella of Spain and their successors the newly discovered countries of America, and then drawing the famous line from north to south through the New World, and dividing it between Spain and Portugal. It was to the authority of the Pope, as the lord of all mankind, to whom all men are subject, wherever born, and of whatever religion, since God has subjected the whole earth to his jurisdiction, and made him master of it, that the Spanish conquerors appealed against the natives. On this plea they treated all refusal to submit as rebellion, for which they meant to take vengeance on the natives—as in fact they did in the most horrible manner—by cruel wars, confiscation of property, and slavery. Their lust of conquest, with all the abominations they perpetrated, could always be excused and justified by the

remembrance that they were only acting with the sanction of God's earthly representative, and punishing the refusal to recognise his legitimate dominion over the world.

In the article we have cited, the *Civiltà* affirmed anew, on the authority of the Minorite, Bonaventure of S. Bernardino (*Trattato della Chiesa*), that the Pope can dispose of the whole “Temporal” of kings and princes, their authority and possessions, whenever, in his judgment, [pg 054] the good of the Church requires it. The work of a French writer, Maupied, gives the Fathers of the Society of Jesus the desired opportunity of again commending their *Magna Charta*—their favourite Bull, *Unam Sanctam*—as the completest exposition of the relations of Church and State (p. 213): “Fall down on your faces, and adore your lord and master in Rome, who can after his pleasure depose you, deprive you of your rights and bishoprics, and bid you draw or sheathe the sword.” This is a compendium of the teaching the *Civiltà* addresses to princes and magistrates. If Papal Infallibility is defined by the Council as an article of faith, the whole system is sanctioned, down to its extremest consequences, and the Jesuits will not fail to point to it as proving that their political doctrines also are now approved.

Under such auspices does the Council open, when the Bishops, according to the *Civiltà*—“the faithful echo of the Holy See,”—have only to say Yea and Amen to the teachings and commands of their master. Never in her whole history has the Church had a severer task imposed upon her, or passed through a more perilous and decisive crisis than the present. It is not only a question of internal freedom; it is, above all, the question [pg 055] whether she is to be involved in an endless war with the political order and civilisation of the modern world, or by keeping to the really religious sphere, and thus guarding her rightful independence, is for the future too to fulfil throughout the widest area her blessed mission towards mankind. The Council, which has to decide on this alternative, acquires a weight and significance such as none had before it.

First Letter.

Rome, December 1869.—The Council is opened. It is, we may say, in full swing, and the situation has to a certain degree revealed itself. Two great questions are in every mind and on every tongue—*first*, “Wherein will the freedom promised to the Council consist, and how far will it extend?” and *secondly*, “Will Papal Infallibility be erected into a dogma?”

As regards the freedom of the Council, the position of the episcopate is in some respects better and in others worse than at Trent three centuries ago. Then the Italians had the most complete and undeniable preponderance over the Spanish and French Prelates, who were the only others that came into the reckoning at all. The opposition of the latter could at best only stop the passing of some particular decrees, but, generally speaking, whatever the legates and their devoted troop of Italian Prelates desired was carried, and as [pg 060] they desired it. The numerical relations are entirely changed now, and there is a far more comprehensive representation of National Churches. The Italian Bishops, even if unanimous among themselves, do not form a third of the whole Synod. But what they have lost in numbers is abundantly made up by the lion's share the Papal Court seizes beforehand for itself, and thereby for the Italian *prelatura*.

The first step taken, and the regulations already made by Pius IX. for the present Council, prove that it is not to follow the precedents of the ancient free Councils, or even of the Tridentine. At Trent all decrees still ran in the name of the Council. “The Œcumenical Tridentine Synod, lawfully

assembled in the Holy Ghost, ordains and decrees, etc.,” is the heading of every session and its decrees. Very different is to be the arrangement at Rome. There has already been distributed to the Bishops a *Methodus in primâ Sessione Concilii observanda*, which prescribes thus: “The Pope will hand over the decrees to the Secretary or another Bishop to read, who reads them with the heading, ‘Pius, Episcopus, servus servorum Dei, *sacro approbante Concilio*, ad perpetuam rei memoriam.’ ” After reading them he asks the Cardinals and Bishops whether they [pg 061] assent. If all say *Placet*, the Pope declares the decrees carried “*nemine dissentiente*.” If some answer, *Non placet*, he mentions the number, and adds, “*Nosque, sacro approbante Concilio, illa ita decernimus, statuimus atque sancimus ut lecta sunt*.” This is the formula first introduced after Gregory VII.'s time, when the Papacy had climbed to its mediæval eminence. The first to use it was Alexander III., at the Roman Synod of 1079.¹³ It stands in glaring contrast to the practice of the ancient Synods for the first thousand years of Church history, which drew up and promulgated all their decisions freely, independently, and in their own name. Here the Pope appears as the author of the decrees, the one authoritative legislator, who out of courtesy allows the Bishops to express their opinions, but finally decides himself, in the plenitude of his sovereign power, as seems good to him. In another Papal document communicated to the Bishops it is said still more emphatically, “*Nos deinde supremam nostram sententiam edicemus eamque nunciari et promulgari mandabimus, hâc adhibitâ solemni formulâ, Decreta modo lecta, etc.*” Meanwhile one concession has been made, which might possibly have some value: [pg 062] the Pope has declared that, though the right of initiating measures belongs entirely to himself, he is willing to allow the Bishops to exercise it. This would give them the opportunity of at least bringing forward for discussion some of the worst evils—such as, *e.g.*, what many of them feel to be the hateful nuisance of the Index—and preparing remedies. But then it must be borne in mind that on every question the *Curia* has at its disposal a majority of Prelates, who are its own creatures, and many of them in its pay. With the help of this troop of devoted followers it can get rid of every disagreeable proposal before it is even submitted to discussion.

The Sessions of the Council are solemnities only held for the formal promulgation of decrees already discussed and passed; the real business is

done in the previous Congregations. Every Bishop who wants to speak there is to give notice the day before, but those who wish to speak without having given notice are not to be prevented. A congregation of twenty-four members is to be chosen by the Bishops from among themselves, for the purpose of specially investigating subjects on which differences of opinion have been expressed, and reporting on them. At least nine-tenths of the Prelates [pg 063] are condemned to silence simply from being unable to speak Latin readily and coherently through want of regular practice. And to this must be added the diversities of pronunciation. It is impossible, *e.g.*, that Frenchmen or Italians should understand an Englishman's Latin even for a minute.^{[14](#)}

There will no doubt be some subjects on which the Bishops may really speak and determine freely. But the moment a question in any way affects the interests and rights of the Roman *Curia*, there is an end of their freedom. For every Bishop has sworn not only to maintain but constantly to increase all the rights of the Pope, and it is notorious that at Rome, and in regular intercourse with the Papal Congregations, one can take no step without being reminded, directly or indirectly—by courtly insinuation, or rudely and openly,—of this oath, and the enormous extent of the obligations incurred by it, which embrace the whole range of ecclesiastical life. The Bishops then are so far free in Council, that no Bishop who expresses an opinion unpalatable to the *Curia* is threatened with imprisonment or bodily injury.^{[15](#)} Those Bishops enjoy a larger [pg 064] freedom who have the moral courage to incur the reproach of perjury and the threat of Papal displeasure and its consequences; who, knowing well that they can only carry out the most indispensable rights and duties of their office by virtue of Papal privileges and delegations—quinquennial faculties and the like,—yet vote simply according to their convictions.^{[16](#)} The only question is how many Bishops will act thus.

The members of the Court of Rome vie with one another in assurances that perfect freedom will be left to the Bishops in the grand question of the proclamation of the new dogma of Papal Infallibility. This is confidently asserted by those Germans who are more deeply initiated into the views of the *Curia*, such as the Jesuits Franzelin, Schrader, and Kleutgen. And above all, Bishop Fessler, the Secretary of the Council and favourite of the *Curia*,

who was the first among the Bishops to declare that it was the main business of the Council to formulate and proclaim the new dogma, takes especial pains to convince the Bishops that the Pope has no intention of bringing the subject before them [pg 065] himself. He admits that the preparatory Commission has discussed this most important and comprehensive of all doctrines, and has almost unanimously decided it to be both true and opportune; and that their reporter has shown conclusively, that considering the boundless devotion to Rome of the present episcopate (at least the majority of them), no more favourable moment could be chosen for enriching the Church with this new and fundamental article of faith.

This is now their watchword. All the initiated repeat it, and some episcopal optimists try to persuade themselves and others that the danger is really past, and the scheme abandoned for this time. But the truth is this: the authorities know well enough that the absolutists among the Bishops—all those who hope to strengthen their dominion and extend it over secular matters by means of Papal Infallibility—are both numerous and organized, and only await the intimation that the right moment has arrived to come forward themselves with a motion powerfully supported. To begin with the Germans, there is the Bishop of Paderborn, whose Jesuit theologian, Roh, says that, precisely because Papal Infallibility is called in question by Bishops like Dupanloup and Maret, the Council must [pg 066] define it, to make any repetition of this atrocity impossible for the future. Then there are the Bishops of Regensburg, Würzburg, St. Pölten, and Gratz, the Belgian and English Prelates, and those of French Switzerland, among whom Mermillod rivals Manning in his fanatical zeal for the new dogma; the Spanish Prelates—men selected for promotion by Queen Isabella and the nuncio at Madrid, simply for their thorough-paced ultramontanism—pure absolutists in Church and State, who would gladly see the new dogma ready-made at once, but have to be restrained for a while. To these must be added such French Prelates as Plantier of Nîmes, Pie of Poitiers, the Bishops of Laval and Montauban, and others. One knows least of the votes of the Italian and United States Bishops, who, like the Irish, will probably be divided. In any case the Court party can count on a considerable majority in favour of the new dogma.

Of course the opposite party, who wish to stave it off, is strong and numerous. To it belong the majority of the German and Austrian, as well as the Bohemian and Hungarian Prelates, and among the French, the Archbishops of Paris, Rheims, and Avignon, the Bishops of Marseilles, Grenoble, Orleans, Chalons, and many more. [pg 067] And on the point of the time being inopportune for defining the Infallibilist dogma, a portion of the “old Papal guard,”—viz., the Italian Bishops—will join them, not to speak of American and Irish Prelates.

But—and in this lies their weakness—they are only held together by a very loose bond. The one point they are agreed upon is that the promulgation of the new dogma will cause great embarrassments to the Church and to themselves personally, and involve them in all sorts of conflicts. On the main question, whether this substitution of an infallible man for an infallible Church is true, and attested by Scripture and Tradition, they are themselves divided. If the confidants of the *Curia* understand how to insert the wedge into this split, and drive it home, they may perhaps contrive to break up the whole Opposition, and carry through, by an imposing and apparently almost unanimous vote, this Alpha and Omega of ultramontaniam, in which all their wishes and hopes are concentrated. Meanwhile no stone will be left unturned, and very various methods will be applied, and arguments used, in working upon different Bishops. The earnest desire of the Holy Father will be urged on some soft-hearted Prelates; they will be told that the only way the Council can [pg 068] rejoice his heart amid his bitter trials, and brighten the evening of his life, is by freely offering him that crown of personal infallibility which former Popes have striven for, but never obtained. To others it will be intimated that the Council itself must look like a play with the chief figure left out, or an abortion, if the Syllabus and Infallibility are not made into dogmas, for there is no other question important enough to justify collecting 500 Bishops from five quarters of the world. Those who agree with the doctrine, but shrink for the present from the unpleasant consequences it might entail upon them, will be told, “Now, or perhaps never.” With freedom of the press established everywhere, it will be impossible much longer to keep the poison of historical criticism, so especially rife in Germany, out of the theological schools and seminaries, and so perhaps the next generation of clergy will not believe so absolutely in Papal Infallibility as the clergy in

many countries do now, and then the new dogma will come at an unseasonable time, and encounter powerful opposition. Besides, it is best to lose no time in putting the iron bar of the new dogma across the way, for then all historical facts that witness against Infallibility, all results of criticism and investigation, all appeals to the forgeries and fictions which helped to [pg 069] build up the edifice, are once for all got rid of and destroyed, at least within the Church. No Catholic will any longer venture to appeal to them, and if he is an historical student, he will only be able to console himself by saying, *Credo, quia absurdum*. The dogma has triumphed over history, as Manning has so admirably explained in his last Pastoral.

Their favourite argument is the common one about increasing the strength and security of the coercive power of the Church. The Bishops are told that the personal infallibility of the Pope will make not only him but them, his delegates and plenipotentiaries, much more powerful, and that under its shadow they will rule with a stronger hand, for resistance will, in most cases, be blasphemy against the Holy Ghost, speaking through the Pope and his chosen instruments. Who, for instance, would any longer dare to defend a book condemned by the Congregation of the Index, after it had become infallible? On the other hand, the Bishops have their scruples, and some of them may be heard saying that this would be a poor consolation for losing half their episcopal authority, and that it is hard to ask them to degrade themselves, and renounce their former dignity as the supreme tribunal of faith, by making the [pg 070] Pope infallible. It might not be pleasant to return home from the Council with the consciousness of having themselves abdicated at Rome the best, and what has hitherto been held in the Church the highest, part of their authority, and burned it as a holocaust on the altar of Papal autocracy. The *rôle* of a Papal courtier, however convenient at Rome, has its dark side north of the Alps.

Already many symptoms of uneasiness betray themselves. Pius IX. said the other day to a German Prince of the Church, who formerly gave his opinion against the Immaculate Conception, and has now again pronounced openly against the Infallibilist dogma, *Ce dogme de l'infailibilité passera, comme l'autre, malgré vous*. On the other hand, the *Regolamento* has excited great discontent, for it unmistakeably indicates the design of giving the Pope the

decision, and making the Bishops only consultors. Had the assembly been in some degree prepared for it, and had time allowed them for coming to an understanding, there would certainly have been opposition to it. But the heads of the French episcopate have only just come together, and no attempt even has been made to bring the German and French Bishops into communication with each other. And a feature of [pg 071] Roman policy about the Council, now first introduced, is not exactly calculated to promote confidence and a happy expectation of the prosperous results of the Synod. I mean the rigid secrecy. According to the last directions, all, bishops and theologians, are to maintain the strictest secrecy about everything, and the preliminary labours, as is well known, had to be carried on under the seal of secrecy of the Holy Office (the Inquisition). Nothing was communicated to the Bishops themselves, who came to Rome in complete ignorance of what they were to vote about—a procedure without any precedent in Church history. It really seems sometimes as if the object was to turn the Church topsy-turvy, and take pleasure in doing exactly the contrary to what the Church of earlier ages did when nearer her original foundation. Formerly the idea of a Council was associated with the notion of the fullest publicity, and the common participation of all the faithful; the deliberations were conducted with open doors, and all were admitted who wished to hear them,—for from the beginning all secrecy was strange and unnatural to the Church, which was distinguished from heathenism in the very point of neither having nor tolerating any esoteric doctrine or secret compact. But the Roman *prelatura* [pg 072] too shares the Italian predilection for making mysteries,—as evidenced in the number of secret societies in the Peninsula,—and then the Jesuits of the *Civiltà*, and their French and German copyists, had so solemnly promised that the Council would provide in its decrees a sure and effective remedy for humanity, sorely diseased as it is, and threatened with destruction. As yet we have waited in vain for any intelligible intimation of what this panacea is to be. Beyond Papal Infallibility and the Syllabus, nothing has transpired. Were the curtain to be drawn back at the beginning, and the secret betrayed,—that the much lauded panacea is only moonshine, and that the Council is not in a position to prescribe any other medicine to the patient named mankind than the usual and well-known remedies of faith, hope, and charity—the discord, already growing, would be still further increased. It is well therefore to lay the finger on the lips.

Meantime the Pope has united the most thorough-paced Infallibilists, Manning, Plantier of Nîmes, Pie of Poitiers, Mermillod of Geneva, and Deschamps of Mechlin, on a Committee said to be intrusted with the discussion of very important questions. Manning appears to be recognised as their leader by all the adherents of [pg 073] the new dogma, and Mermillod strongly supports him. Cardinal Pitra, the French Benedictine formerly intrusted with a mission, which proved unsuccessful, to the Archbishop of Rouen, Cardinal Bonnechose, has lately tried the same plan with the German Bishops. He began by describing the Bishop of Orleans as a mischievous teacher of error, and was obliged to hear, much to his surprise, that these German Bishops quite agreed with Dupanloup, and the Hungarians with the Germans. Thus all have taken their side, or will do so in the next few days. All the Spanish, Belgian, and English¹⁷ Bishops, the majority of the Italians, and a considerable number of the French, have ranged themselves under the banner of the new dogma. They all declare that it must now be decreed that every one, without exception, must inwardly believe and outwardly confess Papal Infallibility on pain of damnation; and all the more so, since Pius himself has now abandoned the reserved attitude he had maintained up to this time in presence of the diplomatists, and openly proclaims, that, being himself profoundly convinced of his own infallibility, he neither can nor will tolerate [pg 074] any further doubt about it in others. And thus the influence of this party is very powerful, and already preponderates; the whole mechanism of the Council, the order of business, the *personnel* of its officers, in short everything, is substantially in their hands, or will be placed at their disposal. All preparations were made in their interest, and all alternatives were foreseen. That great ecclesiastical polypus, with its thousand feelers and arms, the Jesuit Order, works for it under the earth and on the earth; *Mea res agitur* is its watchword.

On the other side, ready for the contest, and resolved at least to show fight, stand the German, Bohemian, and Hungarian Bishops,—with the exception, of course, of Martin, Senestrey, Fessler, and some others—and all among the French, American, and Irish Bishops who possess any culture and knowledge. These men still hope to see a portion of the Oriental Bishops—the real ones, not the mere Italian so-called Vicars-Apostolic—join their side, and there is indeed a very general anxiety as to what position the Orientals, especially the Armenians, will take up in reference to the great

questions at issue. They would all like to keep the Church free from the millstone of the new dogma intended to be hung about [pg 075] her neck, though very few even among them have a clear perception of the momentous consequences it would entail, in science and literature, in politics, and in the relations of the Catholic Church to other Churches. But the whole party has wind and sun against it, and has to join battle in the most unfavourable position, on slippery soil, and confined to acting on the defensive under the greatest difficulties. The Infallibilists, from the nature of the case, are far clearer and better agreed, both as to end and means, than their adversaries, many of whom do not conceal their predilection for the dogma, though they tremble at the consequences of it. Moreover, many of them will allow themselves to be gained over before long, whether through devotion to Pius IX., or by the threats and enticements the *Curia* knows so well how to apply, and for which it possesses an inexhaustible treasury to choose from. There is, for instance, the honorary title granted by Rome to about 250 Bishops, *solio Pontificio assistens*, which seems to the short-sighted only fit for lackeys, but is in fact greatly sought after, and will be most graciously accorded to those who unconditionally surrender themselves. And then there are those manifold concessions out of the rich store of Papal reserved [pg 076] rights, special benedictions, and the like, so that there are always nine out of every ten Bishops who want one at least of these privileges.

We may readily conceive the excitement in the Jesuit camp. After the patient, indefatigable toil of years of seed-time, the harvest-time seems to them to be come at last. Up to 1773, their Order, from its numbers, the cultivation of its members, the influence of its schools and educational establishments, and its compact organization, was unquestionably the most powerful religious corporation, but at the same time was limited and held in check by the influence and powerful position of the other Orders. Augustinians, Carmelites, Minorites, and, above all, Dominicans, were likewise strong, and, moreover, leagued together for harmonious action through their common hatred of the Jesuits, or through the natural desire to escape being mastered by them. Dominicans and Augustinians possessed by long prescription the most influential offices in Rome, so much so indeed that the two Congregations of the Index and the Holy Office were entirely in the hands of the Order of Preachers, to the exclusion of the Jesuits. Since

the restoration of the Jesuits this is completely changed, and entirely in their interest. All the ancient Orders are now in [pg 077] decline, above all, in theological importance and influence; they do but vegetate now. Moreover, the Dominicans have been saddled with a General thoroughly devoted to the Jesuits, Jandel, a Frenchman, who is exerting himself to root out in his Order the Thomist doctrines, so unpalatable to the Jesuits. The youngest of the great Orders, the Redemptorists or Liguorians, act—sometimes willingly, sometimes unwillingly—as the serving brothers, road-makers, and labourers for the Jesuits. And hence, now that they enjoy the special favour of the Pope, they have come to acquire a power in Rome which may be called quite unexampled. They have, in fact, become already the legislators and trusted counsellors of the Pope, who sees with their eyes and hears with their ears. To those familiar with the state of things at Rome, it is enough to name Piccirillo. For years past they have implanted and fostered in the mind of Pius IX. the views he now wants to have consecrated into dogmas, and have managed to set aside, and at last reduce to impotence, the influence of wise men, who take a sober view of the condition of the times. When the Dominican Cardinal Guidi, who was then the most distinguished theologian in Rome, freely expressed to the Pope his views about the projected Council and the [pg 078] measures to be brought before it, from that hour he was not only allowed no audience of Pius IX., but was excluded from all share in the preparatory labours of the Council, so that he remained in entire ignorance of the matters to be laid before it. But the Jesuits are also the oracles of many Cardinals, whose votes and opinions are very often ready-made for them in the Gesu. The Congregation of the Index, which they used formerly so often to attack, blame, and accuse of partiality, when their own works were censured by it, is now becoming more and more their own domain, though the chief places are still in the hands of the Dominicans; and this may gradually take place with most of the Congregations in whose hands is centralized the guidance and administration of Church affairs in all countries.

And thus, if Papal Infallibility becomes a dogma, what inevitably awaits us is, that this Infallibility will not merely be worked in certain cases by the counsel and direction of the Jesuits; much more than that. The Jesuits will for the future be the regular stewards of this treasure, and architects of the new dogmas we have to expect. They will stamp the dogmatic coinage and

put it into circulation. It is enough to know the earlier history of the Society to know what this means, [pg 079] and what an immense capital of power and influence it will place at their command. “Rulers and subjects”—that will henceforth be the relation between the Jesuits and the theologians of other Orders. Worst of all will be the position of theologians and teachers who belong to no Order. At the mercy of the most contradictory judgments, as is already, *e.g.*, the case in France, constantly exposed to the displeasure of the Jesuits, of the *Curia*, and of their Bishop or his adviser, and daily threatened in their very existence, how are they to get spirit, perseverance, or zeal for earnest studies, deep researches, and literary activity? Every Jesuit, looking down from the impregnable height of his privileged position, will be able to cry out to the theologians of the secular clergy, “Tu longe sequere et vestigia prorsus adora;” for now is that fulfilled which the Belgian Jesuits demanded 230 years ago in their *Imago Societatis Jesu*. Their Order is now really, and in the fullest sense, the Urim and Thummim and breastplate of the High Priest—the Pope—who can only then issue an oracular utterance when he has consulted his breastplate, the Jesuit Order.¹⁸ [pg 080] Only one thing was still wanting for the salvation of a world redeemed and regenerated once again: the Jesuits must again become the confessors of monarchs restored to absolute power.

It is one of the notes of an age so rich in contradictions that the present General of the Order, Father Beckx, is not in harmony with the proceedings of his spiritual militia. Here, in Rome, he is reported to have said, “In order to recover two fractions of the States of the Church, they are pricking on to a war against the world—but they will lose all.” But for that reason, as is known, he possesses only the outward semblance of Government, while it is really in the hands of a conference. With this the fact seems to be connected that he has appointed for his theologian at the Council the most learned and liberal-minded man of his Order, Father de Buck—a man whose views stand in much the same relation to those of his fellow-Jesuits Perrone, Schrader, and Curli, as the Bishop of Orleans's views to those of the Archbishop of Westminster.

Second Letter.

Rome, Dec. 18, 1869.—After the solemn receptions, and the formal opening of the Council, visits, audiences, and homages, the time for serious business has arrived, and the Fathers have emerged from the dim twilight of early synodical dawn into the clear daylight. People have begun to get mutually acquainted, and to question one another. The first chaotic condition of an exceedingly mixed assemblage, some of whose members scarcely understand one another, or not at all, has been succeeded by a sort of division, through the *rapprochement* and closer combination of men of similar views. As we related before, two great parties of very unequal strength have organized themselves, and the shibboleth which caused this division is the question of Papal Infallibility, which is universally and consistently taken to imply that whoever is resolved to vote for this dogma is also ready to give his vote for all [pg 082] the articles of the Syllabus, and generally for every dogmatic proposition emanating from the Pope.

The Synod is unquestionably the most numerous ever held; never in the early or mediæval Church have 767 persons entitled to vote by their episcopal rank been assembled. It is also the most various in its national representation. Men look with wonder at the number of missionary Bishops from Asia, Africa, and Australia. If one considers the constant complaints of want of funds in the missionary journals, the great distance, the difficulty and expense of the journey, and how much these men are wanted in the ill-organized state of their dioceses, with so few priests, the question occurs,

Who bears the cost, and what means were employed to rob so many millions for a long time of their spiritual guides? Meanwhile most of the Bishops are pupils of the Roman Propaganda, and obedient to every hint of its will. And the more the new dogma is combated, the more necessary is the imposing *consensus* of five quarters of the world—of Negroes, Malays, Chinese, and Hottentots, as well as Italians and Spaniards.

More than two-thirds of the Council are either completely agreed, or at least won over to the necessity of [pg 083] making the personal infallibility of the last 256 Popes, and their future successors, an article of faith now. Since the original design of carrying it by simple acclamation has been given up, Manning has renounced the *rôle* assigned to him of initiating it. But the Bishops of the Spanish tongue on both sides the ocean—in South America and the Philippine Isles—have declared, in a meeting held in the apartments of their Cardinal, Moreno, that they are ready to propose the dogma. A Roman Cardinal said lately of Bishops of this sort, “If the Pope ordered them to believe and teach four instead of three Persons in the Trinity, they would obey.”

The other party, opposed to the dogma, includes towards 200 Bishops, and this is more than even the most sanguine ventured to hope at first. To it belong the majority of the German, Austrian, and Hungarian Bishops, half the French, all the Portuguese, some Irish, at least half the North American and Canadian, and a considerable number of the Oriental. If the votes were not only counted, but weighed according to the intellectual standard of the voters, the 200 would be far the majority. Among the German Bishops, besides those already named, the two Tyrolese, Gasser [pg 084] and Riccabona, Leonrod Bishop of Eichstadt, and the Vicar of Luxembourg, belong to the Infallibilists. Ketteler of Mayence, half won over by his hosts—he lives in the German College¹⁹—half succumbing himself, is said to purpose deserting to the same camp. He, as well as Stahl, Leonrod, and Martin are hampered awkwardly by the Fulda Pastoral, which they subscribed, but when once the knot is loosened or cut, they have only to bring their assent to the new dogma.

It is said in the ruling circles that an opposition of 40 Bishops and under is so small and insignificant in so large a Council that no account need be

taken of it. This would be to give up the principle always hitherto maintained, even at Trent, that no decision in points of faith could be issued without the physical or moral unanimity of the Council. But as the dogma in question is one which for the future will make all majorities and minorities of episcopal votes superfluous and valueless, it may very well be that by anticipation, or by virtue of an exception which is now to be made into a rule, the minority should in this case be pronounced non-existent and undeserving of any notice. I hear other curialists say that, as soon as the Opposition [pg 085] is reduced to 40, they, under a sense of their impotence, will give up all resistance, and either quit the field, or come over to the conquering side. And so the present strength of the Opposition must be greatly diminished, and this is being strenuously laboured at. There are plenty of means for the purpose, and as long as there are Bishops who think themselves fortunate if they gain the title of "Domestic Prelate to the Pope," a gentle pressure or insinuation, the prospect of a privilege, or a robe of distinguished colour, will produce the desired effect on many. Such things act like those insects which bore through the hardest wood. The episcopate of course has still many men to show who are inaccessible to threats or seduction. But we should like to count up at the end of the Council how many have passed unscathed through the fiery ordeal. Meanwhile a confident certainty of victory prevails among the majority. Manning said the other day to an acquaintance of mine, "So sure as I stand here, the dogma of Infallibility will be proclaimed," and on the other hand, one of the leading Bishops of the Opposition said lately, "I came here with small hopes, and with a feeling of oppression, but I have found everything worse than I expected." A German priest had been summoned to [pg 086] Rome as theologian of his Order by the General, a Spaniard. At first greeting him the General said that the great end they were all bound to work for was to come to an understanding on the dogma of Papal Infallibility. And when the German professed an opposite opinion, and handed him a work he had written in that sense, the conclusion was soon arrived at: he was sent home at once as useless, and even mischievous. When he was taking leave of certain Bishops, one of them said to him, "I should rejoice if any one recalled me or sent me home; we Bishops have been ordered here to the Council, without being told what we are to deliberate upon, and now that I know it I would gladly turn my back on the Council and on Rome."

The 500 Infallibilists have good ground for their confidence. It is but natural, to begin with, that they should trust the magical power of those resources of the *Curia* they have themselves had experience of. And, next, they are well aware of their excellent organization, which has hitherto proved irresistible. They are commanded from two centres acting in common, the Gesù and the Propaganda. The Jesuit General, Beckx, if by no means in harmony with the line taken by the *Civiltà*, which has been removed from his jurisdiction, [pg 087] thinks and feels about the Infallibility question in strict accordance with the doctrine and rules of his Order, and knows how to hold fast the threads with the support and counsel of his assistants. Not a few Bishops, without knowing it themselves, get drawn and moved round by these wires which meet in the Gesù. If they cannot be commanded at once, they will be slowly but surely led into the right road by a chaplain or secretary or consultor devoted to the Order. The Propaganda, as we said before, provides for all missionary Bishops, and it again is inspired from the Gesù. The whole machine works so accurately that lately, in the selecting of a Commission, 450 voting papers contained the same names. So admirably is the discipline managed that many a Cabinet majority might envy this scarcely attainable ideal of the Council.

[pg 088]

Third Letter.

Rome, Dec. 19, 1869.—Since I have been here, breathing physically and morally the air of Rome, and have heard some of the most prominent Infallibilists, I can understand a good deal which was an enigma to me when in Germany. The leading spirits of this party believe in the advent of a new spiritual dispensation, a period of the Holy Ghost, which is to depend on the turning-point of this definition of Papal Infallibility. Archbishop Manning declared some years ago, in a speech received with enthusiastic applause by the Roman dignitaries, “*La Chiesa Cattolica di oggidí esce tutta nuova del fianco del Vicario di Gesù Cristo.*” This reference to the formation of the woman from Adam's rib is very suggestive, for Eve, by the Divine ordinance, was to be subject to the man,—and it includes the notion which I have met with in several quarters here, that the proclamation of the new dogma will be [pg 089] immediately followed by an outpouring of the Holy Ghost, and a renewal of the Pentecostal miracle. There will of course be this difference, that henceforth the Bishops will no longer speak with tongues, like the apostles and disciples on the day of Pentecost, but only with the tongue of the Infallible Pope, and will utter in this way the thoughts and words of the Holy Ghost. Hence not the slightest effect is produced when any one, say a German or Englishman, points to the terrible intellectual stumbling-block that will thereby be obtruded on the faithful, and the perplexity and inward alienation of so many thousands, and those too the higher and leading minds, which may be certainly foreseen. The gain will far exceed the loss; numberless Protestants and schismatics, attracted by the powerful magnet of Papal Infallibility, and the power of the Holy Ghost, hidden in Papal utterances, will stream into the Church—that is the sort of vision hovering before these men. And a man who believes in an age of the Holy Ghost cares nothing for what is said of the breach with the views and traditions of the ancient Church involved in the new article of faith: he thinks it quite in order that a new dogma should inaugurate a new era. Compared with such fanaticism, the speech [pg 090] of another Infallibilist leader, a Frenchman, at a public dinner, sounds sober, though in its way it is no less extravagant, when he assures us that the great connoisseur and discoverer of subterranean Rome, the Cavaliere de Rossi, has detected Papal Infallibility in the Catacombs, and whoever wants to see and appreciate it there, has only to descend into them.

Pius IX. finds that he can undertake what he likes with a majority so absolutely devoted to him and simply at his beck. The assurance, so often reiterated not long ago, that nothing was meant to be decreed which could disturb Governments or introduce conflicts between Church and State, seems to be already forgotten or held superfluous, and a number of Bishops, at a general audience, heard, not without consternation, from the mouth of the highest authority, the statement that the Syllabus must be made dogmatic: it would be better to yield in other points than give that up.

Meanwhile the Opposition grows visibly stronger, and men like Darboy, Dupanloup, and MacHale, Archbishop of Tuam,²⁰ are not to be despised as leaders. They are not content with getting rid of Infallibility and the [pg 091] Syllabus, but strive for some freedom in the Council, and here they find sympathy even among the Infallibilists. For to have their hands so completely tied by the Pope's regulations, has surpassed all, even the worst, anticipations of the Bishops. That first gleam of hope, excited by the announcement that the Bishops would be allowed to propose motions, has speedily vanished. For it has become clear that this was merely intended to save the Pope from having to propose his own Infallibility to the Council, and provide for the motion emanating from the Bishops—according to the present plan, the Spanish Bishops. The right of initiation is rendered purely illusory by the fact that the Pope has reserved to himself and the Commission he has named, composed of the stanchest Infallibilists, the sanction or rejection of every motion. To this must be added the regulations for the order of business, and the naming by the Pope of all the officials of the Council, as well as the scrutators and presidents of Congregations or Commissions. This is an act of arbitrary power, and a gagging of the Council, far beyond anything attempted even at Trent. Yet at Trent the want of freedom was felt to be so great that for 300 years the Catholic world has manifested no desire to repeat the experiment of a [pg 092] Council. But what will be the impression made by the present Council, where the order of business is so managed as to make any serious discussion impossible? The strongest expressions of discontent come from the French Prelates, they feel how undignified, not to say ridiculous, is the *rôle* assigned to them,—of saying *Placet* to ready-made decrees—even more keenly than the Germans, who are also greatly disgusted. Attempts to protest against this oppressive code in the Congregation were suppressed by the declaration of the

President, Cardinal de Luca, that the Pope had so ordained, and no discussion could be allowed on the subject. He would allow neither the courageous Bishop Strossmayer nor Archbishop Darboy to say a word on these intolerable restrictions. The whole scene made a profound impression.

On December 14 the two parties measured their strength and organization in electing the twenty-four members for the Commission *de Fide*, which is, of course, the most important of all. The Liberals were completely overmatched, and, notwithstanding their 200 votes, not indeed properly combined, failed to carry one of their candidates. Neither Dupanloup nor Hefele could be brought in. A list of names to be [pg 093] voted for from the Propaganda was handed to every trusted partisan; the Italians and Spaniards were also furnished with one, and so all the Infallibilist leaders appear on the list of the Committee, Manning and Deschamps, Martin and Senestrey, Pie of Poitiers, Reynier of Cambray, then some Italians, Spaniards, and South Americans,—these therefore are the flower of theological learning among the Bishops. One of these men they must keep their eye fixed on, for he seems called to take a place of supreme importance and honour in this Council, and if all goes well, will certainly be counted with the heroes of ancient Councils, Athanasius, Cyril, and Augustine. This is Mgr. Cardoni, Archbishop of Edessa, Secretary to the Congregation for examining Bishops, Consultor of several other Congregations, theologian of the Dataria, and President of the Ecclesiastical Academy. Yet this man was not long ago a very obscure personage, even in Rome, but as First Consultor of the Preparatory Commission of Dogmas, he composed the report or *Votum* of forty pages on Papal Infallibility. This is now printed and distributed, and serves as the basis for the discussion on the subject to be introduced in Council. Cardoni himself, as reporter, will discharge the necessary [pg 094] offices of midwife at the birth of the new dogma; he will have the last word if any doubts or objections are raised, and then at least 500 votes will proclaim at once the Infallibility of the Pope and the triumph of the greatest and most fortunate of Roman theologians. Cardoni will immediately be made Cardinal; as he brings this Divine gift to the Pope, he will himself partake in the enjoyment of what is so much indebted to him, and will reap the harvest of his labours.

[pg 095]

Fourth Letter.

Rome, Dec. 20, 1869.—It may truly be said that theology is now rare, very rare, in Rome. There is, of course, no lack of theologians; the Pope himself has no less than a hundred, chiefly monks; but if they were all pounded together in a mortar into one theologian, even this one would find some difficulty in getting his claims recognised in Germany. If any one here were to demand of the so-called theologians what, between the North Sea and the Alps, is considered the first requisite for a theologian,—the capacity of reading the New Testament and the Greek Fathers and Councils in the original language,—he would be ridiculed as a dreamer. And as to the theology of many Bishops, one is often reminded of the daughters of Phorcys, who had only one eye and one tooth, which they lent each other by turns to use. Not a few of them flutter about Infallibility like flies about a candle, in evident fear of [pg 096] getting burnt. But when the critical moment comes, they will vote obediently as the master whose power they have sworn to increase bids them. If the Prelates were even slightly acquainted with Church history, they would certainly recoil in terror from the maxims and doctrines their decision will recall from the realm of shadows they seem to have sunk into, and clothe again with flesh and blood. They would recoil from the complications and contests they and their successors must hereafter be involved in with all nations and governments, as forced executors of every infallible utterance of 256 Popes.

The sudden departure of Cardinal Mathieu, Archbishop of Besançon, is connected with the election of the Commission on Faith, which turned out so unfortunately for the Germans; the French Bishops after the previous consultation had divided their forces, the Infallibilists voting for Bonnechose, their opponents for Cardinal Mathieu. The defeated party

wanted to protest against a scandalous intrigue about the election, carried on by a man whose name I suppress; and Mathieu's sudden departure was in order to avoid being mixed up with the conflict, and from disgust at the whole affair.

A singular incident not long since created some [pg 097] sensation and amusement in English circles. The English Bishops, like their Archbishop, Manning, are declared Infallibilists—a tendency first introduced among the clergy there since Wiseman's time, for before that Gallican views prevailed almost universally in England, and definite assurances were given on the subject at the time of Catholic Emancipation. And as Papal Infallibility implied necessarily the doctrine of the Pope's dominion over monarchs and governments, which was formally abjured—*e.g.*, in the Irish clerical seminary of Maynooth—the Infallibilist theory was supposed to be shelved also. It chanced that lately the *Pall Mall Gazette*, which is much read even here, under the heading, “The Infallibility of the Pope a Protestant Invention,” quoted the following question and answer from a widely-used manual of instruction, approved by many Bishops, and highly praised even in Manning's journal, the *Tablet*, called *The Controversial Catechism*:—“Q. Are not Catholics bound to believe that the Pope is in himself infallible?—A. This is a Protestant invention, and is no article of Catholic belief; no Papal decision can bind under pain of heresy, unless received and prescribed by the teaching body, the Bishops of the Church.”

[pg 098]

At the moment I am writing, there is a pause, but by no means a truce. *Le Concile ne marche pas, mais il intrigue*, I heard a Frenchman say this morning. The acoustic qualities of the Assembly Hall, which is the whole height of St. Peter's, make it quite unfit for use. If anything is to be proclaimed, it must be shouted at full pitch to the four sides. It happened the other day that the Bishops on one side were crying *Placet*, while those on the other side expressed their opinion by *Non placet, quia nihil intelleximus*. Pius IX., who was long ago made aware of the state of the case, really thought that all discussion was superfluous. And as the hall must be abandoned as utterly useless, the 120,000 scudi lavished on preparing it are wasted. There is no lack of funds, however; so much so, that 20,000 scudi have been spent already on laying the foundation of the memorial pillar of

the Council. These things must make an indescribable impression on those who have heard most touching pictures drawn in the pulpit at home of the wants and poverty of the Head of the Church.

Antonelli, to whom the impossibility of carrying on the Council in this place has been represented, has now taken the matter in hand, and another chamber is to be [pg 099] found and got ready. A room in the Quirinal is talked of, or the *atrium* over St. Peter's in the Sistine. The latter would be an ominous place, for in the *Sala Regia*, which the Bishops must pass through to enter the Sistine, is Vasari's famous picture, painted by order of Gregory XIII., for the glorification of the massacre of St. Bartholomew. The contemplation of this picture, which now, since the publication of the nuncio Salviati's despatches, the Pope is proved to have ordered with full knowledge of the real nature of that horrible occurrence, and full intention of sanctioning it, might perhaps somewhat indispose the Prelates to vote for the articles of the Syllabus on religious coercion and the power of the Church to inflict bodily punishment. Antonelli means now to take up the Council in earnest. For him, indeed, who was formerly an advocate, the theological side of Infallibility has little interest; but he is too skilful and experienced a statesman and financier not to appreciate keenly the gain to be derived from the new dogma in all countries, in the shape of power, influence, and revenue. He understands well enough, and better than many statesmen this side the Alps, the incalculable consequences of having it henceforth taught and insisted on as a first principle in [pg 100] every catechism, public school, and country pulpit, that Papal decrees and decisions, not only in the domain of faith but of morals, the relations of Church and State, and the whole life of society, are absolutely infallible,—of its being made the first and crucial question for Catholics in all cases, What has the infallible Pope, either the reigning pontiff or one of his predecessors, decided on this point, or what will he decide if asked?

A Bull appeared yesterday, which, if read and understood, would create great excitement. It professes to abolish a part of the numerous excommunications *latæ sententiæ*,²¹ which the Popes have gradually accumulated; but virtually it is intended as a renewal or confirmation of the Bull *In Cænâ Domini*, which Clement XIV. (Ganganelli) first dropped the custom of publishing annually, and which, from his time, had been

regarded, everywhere out of Rome, as abrogated, though the *Curia* always maintained that it was binding in principle, as Crétineau-Joli shows in his *Memoirs of Consalvi*. I am only giving here the judgment of a [pg 101] friend who has read the Bull. If he is rightly informed, it is but the first link in a chain of decrees embodying the retrospective force of the anticipated dogma, for the saying will hold good then, “Quod fuimus erimus, quod fecimus faciemus.” Every claim once advanced must be maintained, every doctrinal proposition renewed, and so the living body will be chained to a corpse.

Desertions from the ranks of the Opposition to the majority of 500, must, no doubt, be reckoned on, and the renegades will say, like Talleyrand, that they are not deserting, but only coming in earlier than others. Whether these desertions will be numerous enough to reduce the minority to 40 or 50, as the authorities hope, will be determined when the question of opportuneness gets disentangled from the question of principle. For it requires more than common courage to make open profession of disbelief in the Infallibilist dogma at Rome, since the Pope, in his letters to Manning and Deschamps, has indulged in severe censures of those who question his infallibility; and every Cardinal and Monsignore is accustomed to express himself in the same sense.

Can this Council, then, which can move neither hand [pg 102] nor foot, be called free? Is an assembly free, when no speech can be made, no single decision come to, without the express permission of an external master? If this is freedom, there has never been an unfree Council. So I hear many saying, as well clergy as laity, and even Bishops. The Pope, of course, has not forgotten that, on the day of his election, sitting on the High Altar of that very church where the Council is now being held, he was adored by the Cardinals, and four days afterwards crowned with the triple tiara, with the words, “Scias te esse rectorem orbis.” It has been summoned to arrange and negotiate the transition from the previous condition of the Church to a new one. Till now, at least in theory, Councils were, or were supposed to be, assemblies deliberating and deciding freely. But, in the new condition of the Church, under the rule of Papal Infallibility, assemblies of Bishops are purely superfluous, or only useful as machines for acclamation. The present assembly stands midway between the old Church and the new, and

participates in both. The vital breath of freedom and independence it is deprived of, but it is not yet a mere acclamation-machine: it can still dissent and say, *Non placet*. On the day when the new dogma is proclaimed, and the [pg 103] eternal city again, as in 1517,²² declares its joy by illuminations, the Synod will have killed itself with its own hand, and marched into the grave as the last of its generation. And just as when a knight died the last of his race, his shield was broken and his arms obliterated, so will the usual chapter *De Conciliis* be obliterated from the dogmatic manuals.

[pg 104]

Fifth Letter.

Rome, Dec. 23, 1869.—The Council is suspended for a while, for want of an available place of meeting, or is occupied only in studying the *Schemata* that have been distributed at home, and deliberating in different sections. The German Bishops have resolved to address a memorial to the Pope, protesting against being put into a strait-waistcoat by the regulations for the order of business, and claiming the right of proposing motions freely. They think it intolerable that every proposal, wish, or motion should have first to be examined, revised, and mutilated or changed at their pleasure by two Commissions, before it can even come on for discussion. And how are these two Commissions composed? Of course, the eight German Bishops who

have already separated themselves from their countrymen, and prefer to associate with Spaniards and South Americans, hold aloof from this proceeding too. If I am correctly informed, [pg 105] a similar memorial has been handed in from the French Bishops; it was, at least, being circulated for signature during the last few days.

You will have received, or found in the French and English papers, the Bull of Excommunications I mentioned in my last. As I said before, it is a re-issue of the Bull *In Cænâ Domini*. Certain excommunications nobody paid any attention to are dropped out, as, *e.g.*, of sovereigns and governments who levy taxes without permission of the Pope. But new censures of wide application have come into their place. In reading the Bull, one feels as if one had got into the thick of a tempest, so fierce and frequent are the lightning-flashes of the Vatican ban, darting and burning in all directions. If they were to be treated seriously, there would not be many houses in the cities of Europe that would not be struck. The Bishops are hit hard; one unpleasant surprise follows on another. While they are considering how to secure a minimum of freedom in the Council, they are suddenly overwhelmed with a hailstorm of excommunications, many of which are directly aimed at themselves, but all of which are to be administered and executed by them and their clergy. They are summoned to Rome, and hardly have they got [pg 106] there when this Bull of anathemas, drawn up without their knowledge or participation, and which thrusts the souls intrusted to them by thousands out of the Church, is sent to them; and the whole burden of it, with all its endless consequences and complications, is laid on their shoulders. They seem intended to drain the cup of humiliation to the dregs. The only persons pleased with the Bull, as far as I can see, are the Jesuits, who are in the very best spirits here in Rome, and see both present and future in the most rosy hues. The view of the pious Bishops is simple and unanimous: the more excommunications, so many more reserved cases and perplexed and tormented consciences. But the confessionals of the Jesuits will be doubly thronged, who are furnished with all sorts of plenary powers of absolution, and are thus made indispensable, and placed in a very superior position to the secular clergy. Moreover, the Bishops are deprived of the power of absolving from these censures. So each of these multiplied excommunications is worth its weight in gold to the Order, and helps to build Colleges and Professed Houses.

The Bull containing directions in the event of the Pope's death occurring during the Council was not [pg 107] issued by Pius IX. from any real anxiety to provide for such an occurrence,—for he enjoys the best health, and in all probability will falsify the old proverb, “Non numerabis annos Petri.”²³ No one really supposed the Council would claim the right of electing in Conclave, as occurred once under totally different circumstances, after the deposition of a Pope (John XXIII.) at Constance. The real point of the document lies in the declaration that the Council is to be at once dissolved on the Pope's death, as a corpse from which the soul has departed. And this is a decisive intimation of the relations not only of the dead but of the living Pope to the Council. The Bull might be summed up in the words, “Without me you are nothing, and against me and my will you can do nothing.”

The opposition of German and French Bishops to the new dogma was more or less anticipated here; what was not expected was that the Orientals, numbering about sixty, and the North American Bishops, would pronounce against it. The former declare openly that no surer means could be found to throw back their [pg 108] Churches into schism, and place them under the holy Synod in St. Petersburg or the Patriarch in Stamboul. The Americans ask how they are to live under the free Constitutions of their Republic, and maintain their position of equality with their (Protestant) fellow-citizens, after committing themselves to the principles attested by Papal Infallibility, such as religious persecution and the coercive power of the Church, the claim of Catholicism to exclusive mastery in the State, the Pope's right to dispense from oaths, the subjection of the civil power to his supreme dominion, etc. The inevitable result would be that Catholics would be looked upon and treated as pariahs in the United States, that all religious parties would be banded together against them as common enemies, and would endeavour, as far as possible, to exclude them from public offices. One of the American Bishops lately said, “Nobody should be elected Pope who has not lived three years in the United States, and thus learnt to comprehend what is possible at this day in a freely governed Commonwealth.”

But even in the apparently compact and admirably organized mass of the 500 Infallibilists, softly whispered doubts are beginning to be heard here

and there. [pg 109] Before the eyes of some of these devoted Prelates hovers a pale and warning ghost, called exclusion of the clergy and of Catholic instruction from the public schools. It would indeed be impossible to put more effective weapons into the hands of the powerful and increasing party who are aiming at this, than by giving its due prominence henceforth in all Catechisms to the supreme article of faith of Papal Infallibility, with some of its consequences expressed, and others left to be orally supplied by the teacher, so that boys and girls would be trained in full knowledge of the glaring contradiction between religion and the order of the State, the Church and the Constitution of their country.²⁴ A Belgian layman here assured me yesterday that the result of the new dogma in his country would be a powerful movement against the position of the clergy in the primary schools; the gymnasia and middle schools they have lost already. One of the Belgian Bishops even is said to begin to be troubled with these apprehensions. And now a cry of distress is rising from England. The National Education League has published its programme for a system of compulsory [pg 110] education of the people, excluding all denominational teaching, and only allowing the Bible for religious reading. The English Bishops now in Rome, who are fanatical for the new dogma, may ask themselves if on their return home they could make a more acceptable present to the Committee of this already very powerful League than by issuing a corrected Catechism, enriched with the new article of faith. A penny edition of it would bring in hundreds of thousands of members to the League, and admirably further the design it now openly proclaims of “absorbing in a friendly way” the schools already existing.

[pg 111]

Sixth Letter.

Rome, Dec. 24, 1869.—The first part of a tolerably comprehensive document, or *Schema*, has been distributed, it is said, to the Bishops, “sub secreto pontificio,” and no less than seventeen parts equally comprehensive are to follow. The *Schema* of a dogmatic constitution *contra multiplices errores ex Rationalismo derivatos Patrum examini propositum* is a sort of doctrinal compendium, divided into chapters, and, as is easily seen, is only an amplification of the opening propositions of the Syllabus. In this way we shall have the unprecedented occurrence of a Papal decree, extending to the length of a book, issued with the approval of the Council. If it is received and promulgated in this shape, it will create astonishment by its wholly unconciliar form. It is thrown into a declamatory shape; it indulges in complaints and reproaches about the blindness and misery of men, who have fallen into so many deadly [pg 112] errors, even materialism and pantheism; it carries on its front the impress of the new Jesuit school, and seems to be inspired by the aim of bringing before the contemporary world, in their crudest form, all the hardest and most offensive principles of particular doctrinal schools, which it has hitherto been endeavoured to soften or set aside. For the originator of this tractate assures us that the aversion of men for such doctrines is only one of the poisonous fruits of Rationalism. Here is a characteristic specimen. At that Florentine Synod of 1439, which bequeathed such painful recollections both to East and West, Eugenius IV. had it defined “that the souls of those who die only in original, or in actual mortal sin, descend into hell, but are unequally punished.”²⁵ This proposition has sadly tormented theologians, and they have devised all sorts of ways of softening or explaining it, even assuming the very doubtful authority of this Council, which was rejected by the whole Gallican Church. For even the most resolute faith recoils in horror from the logical inference, that God has created the human race in order from generation to generation to plunge into hell far the larger portion of mankind, [pg 113] simply because they have not received the baptism which in most cases was never offered them. The vast gulf between this proposition and the Scriptural doctrine that God is Love, and wills all men to be saved, no theologian has

undertaken to bridge over. But the Roman Jesuit to whom we owe this *Schema* really thinks these are just the doctrines best adapted to cure men of this age of the fatal Rationalism they have fallen into.²⁶ This reminds one strongly of Antonelli's saying, that these Fathers have a special talent for ruining whatever they touch.

The death of Cardinal Reisach is considered here an irreparable loss, and above all by the Pope himself, whose confidence he enjoyed more than any other Cardinal. He had the greatest share in preparing the propositions laid before the Council, and had he been able to make his influence felt, he would certainly have given powerful support to the new dogmas. He passed here for a man of comprehensive learning and great penetration. His friends used to commend his friendly and genial nature. For us Germans he was a sort of phenomenon, a show specimen of his kind, so to speak. [pg 114] In him we saw how far a German can go in the process of being Italianized, so radically was his whole being metamorphosed into that of the Italian *prelatura*, and the peculiar circle of thought in which Roman clerics and dignitaries move had become a second nature to him. What distinguishes a Roman Prelate is, first, that liturgical endowment—that willing absorption in the *cæremonia*, as the old Romans partly originated and partly borrowed it from the Etruscans—and next, the faculty of calculating quickly and surely what loss or gain in power and influence the settlement of any ecclesiastical question will bring. Reisach was eminent in both respects. No one excelled him in reverence for every line of the rubric and every ceremonial detail, as practised here. And again, in his dislike for German science, literature, and theology, he had become a thorough Italian, so that his ignorance of even the most famous intellectual products of Germany was quite fabulous. To him principally were addressed the denunciations of German works not composed exactly to the taste of the Roman Jesuits, and it was he who arranged with the Congregation of the Index the censures pronounced during recent years on the works of learned Germans.

Thus then there is a niche left vacant in the Roman [pg 115] temple of heroes. Another Reisach will not so easily be found; for it is given to very few men to transmute their originally single nature into the form of the Siamese twins, inhabited by two souls, a German and an Italian.²⁷ If the vacant Hat is not to be the price of desertion from the ranks of the

Opposition, but the reward of past services, three German Bishops may put in a claim for it, Martin, Senestrey, and Fessler. In fiery zeal for the good cause, restless activity, and unquestioning devotion, they are on a par, and were all Germany like-minded with this trio, the great sacrifice—"il sacrificio del intelletto"—so variously commended by the *Civiltà*, would have long since been accomplished, and the Jesuits might hold up the Germans as a model for all nations to follow. Meanwhile for the moment Fessler occupies the most conspicuous position.

Postscript.—I have just learnt that the Pope is not disposed to give up his Council Hall in St. Peter's. Another attempt to hold a General Congregation there is to be made on Tuesday, which can hardly be a success. The natural consequence will be that the second Solemn Session, announced for January 6, will fall [pg 116] through from lack of any decrees ready to promulgate. The protest of a portion of the French Episcopate against the order of business has really been sent in, and this has inspired fresh courage into the German and Hungarian prelates, who have drawn up a protest against the innovations differing so widely from the form of the ancient Councils; they dwell especially on the violation of the right belonging by Divine institution to the Bishops. I need not say that the notorious eight—the Jesuit pupils and the Tyrolese Bishops—declined to join in this proceeding. Meanwhile scruples have arisen among the other pupils of the Jesuits, which again bring the whole affair into doubt. There is a notion among the French of dividing the Council into assemblies, formed according to the different languages, so as to get over the difficulty or impossibility of carrying on a free discussion in Latin. But then it became clear at once that, through the number of missionary Bishops, and Swiss or Belgians of the Romance tongues, the majority would be on the side of the Infallibilist party. And the Pope, who hates all these assemblies of Bishops, has interposed by causing a sort of standing order to be proclaimed, through the curialistic Cardinal Bonnechose, that he will allow no meetings of more than twenty Bishops.

Seventh Letter.

Cardinal Schwarzenberg has been the subject of conversation in Rome for the last few days. He is said to have formally gone over to the Infallibilist camp, and the report will no doubt make the round of Europe. But it is not true, and he himself declares, notwithstanding appearances, that he has not changed, and does not mean to change, his attitude and mind. The circumstance which has given occasion to the rumour is as follows:—

In a combined meeting of German and Hungarian Bishops, it was resolved, on Haynald's motion, to request of the Pope a better representation, and one more accordant with the dignity of the two Churches, on the Commissions. It was hoped that a majority of the French and a considerable number of the North American and Oriental Bishops, and even some Spanish and Italian Prelates, would join in this step. For [pg 118] Haynald's object was to propose that the whole assembly should be divided into eight national groups, and that each of these “eight nations” should be entitled to have two or three members, elected from its own body,—some sixteen or twenty-four in all—added to the four elected Commissions, and to the Commission nominated by the Pope for examining all motions proposed. This, it was thought, would secure a counterpoise to the skilfully disciplined majority which was crushing out all opposition. For it has already become evident that the strength of the Romanist party lies in the number of titular Bishops selected by the Pope, and Vicars-Apostolic or missionary Bishops; in persons, that is, who, having no flocks, or only having them in expectation, represent in fact nothing and nobody, and can therefore bear no testimony to the faith of their Churches, which have no existence. The Germans were greatly elated by this project; they admired and congratulated themselves on having shown so much spirit, and daring to tell the Pope something widely different from the assurance that they were ready to die in absolute

subjection to him. Hereupon Schwarzenberg came forward to declare that he would not sign the petition, as he did not choose to compromise himself [pg 119] further with the Pope, and Rauscher of Vienna, and Tarnóczy of Salzburg, sided with him. This caused great consternation, and at the first moment many thought it betokened an entire apostasy, and that in Schwarzenberg's case the Cardinal had triumphed over the German. But he has so emphatically denied this that he must be believed. It is very conceivable that Schwarzenberg, seeing more deeply into the situation at Rome, was led by grounds of expediency to take this course; possibly the mere wish to make as sparing use as they could of the fund of high spirit and courage brought from Germany, and the fear of using it up too quickly, in case the Council should last some time, may have determined the three Prelates to decline subscribing. Already a new demand has been made upon the Bishops, to adopt the *Schema* the Pope had intrusted the preparation of to the Jesuits.

The contest over this *Schema* has begun in good earnest, according to the impression made by the General Congregation held yesterday, Dec. 28. The first part of the *Schema* was the one the speakers dwelt on,—as far, that is, as they could be heard, for the acoustic uselessness of the hall makes itself felt before and behind, and the pulpit had to be carried about all round the room [pg 120] before the right position could be hit upon for it. Meanwhile it had transpired, who were the authors of the *Schema* which the Pope meant to promulgate, “with the approbation of the Council,” as a binding rule of faith. They were two German Jesuits, Schrader, and another, either Franzelin or Kleutgen. It is remembered how, a year ago, a great deal was made in the newspapers of distinguished German scholars having been summoned to Rome for the preliminary labours of the Council. If several of the names mentioned created surprise from their obscurity, it gave satisfaction to find among those invited men like Hefele and Haneberg. It is now clear that every work of real importance was intrusted to other hands, chiefly to the Jesuits, while Hefele was summoned to Rome to extract the ceremonial from the Acts of the Council of Trent, after which he was dismissed, and Haneberg was commissioned to prepare a report on Eastern monasteries. Schrader has become notorious as the advocate of the extremest Papal system by his book *De Unitate Romanâ Commentarius*, where he treats all episcopal authority as a mere emanation of the Papal.

According to him, every article of the Syllabus is to be so understood that the contradictory statement contains the true doctrine. It was [pg 121] therefore with very good reason that he was chosen out to draw up the *Schema*, or, in other words, to fabricate a second strait-waistcoat for theology, after the Council had already been put into one in the regulations for the order of business.

The *Schema* has aroused manifold displeasure, even among allies of Schrader and his brethren, and men who, like them, are Infallibilists. What I hear said everywhere is that the whole thing is a poor and very superficial piece of patchwork, with more words than ideas, and, as the blind old Archbishop Tizzani said in the Congregation, is above all designed to stamp the opinions of the Jesuit school as dogmas, and to substitute a string of new obligatory articles of faith for the *theologumena* or doctrines of the theological schools hitherto left open to the judgment of individuals. For a Society, like that of Loyola's disciples, it is of supreme importance to possess in the multitude of new anathemas what will always supply abundant matter for accusations; it appertains to their "arcana dominationis" always to keep alive the fear of being charged with heresy. It makes other theologians dependent on the Order, and cramps their literary energies. And it must be borne in mind that there are no longer any [pg 122] powerful theological corporations which might meet the Jesuits on equal terms. Were the *Schema* to be adopted, very few professors of Old Testament Exegesis could escape the charge of heresy, so far is the inspiration of the scriptural books, even the deuterio-canonical, extended here for the first time.

And thus it happened yesterday that there was no single speaker for the *Schema*, but all, beginning with Cardinal Rauscher, spoke against it; and Archbishop Conolly of Halifax said in so many words, "Censeo *Schema* cum honore esse sepeliendum." This of course has only been the beginning of the discussion, and we are naturally in suspense as to how it will proceed. But so much is already gained, that a spirit of independence is roused among the Bishops. Much is said here about the desertion of certain Bishops from the ranks of the Opposition, and new names are mentioned every morning, often with the remark that So-and-so has let himself be caught with the bait of one of the fifteen vacant Hats. These Hats are held here to be capable of working miracles. There is thought to be no more

effective means of working the conversion of a hardened anti-Infallibilist than a decoration of that kind, and, in truth, the number might not be great of those who would say [pg 123] with Darboy, “Je n'ai point de rhumer de cerveau, je n'ai pas besoin de chapeau.” As long as fifteen of these Hats are suspended in the air ready to descend on a willing head, so long, every Italian is convinced, there can be no lack of conversions. The example of the Synod of Constantinople in 859 is quoted, where the Bishops were induced to vote for the deposition of Synesius by promising each of them separately the Patriarchal throne. Yet of the majority of French, German, Hungarian, and American Bishops, no one who knows them would expect this weakness; and so on closer inspection these rumours come to nothing. Even Ketteler, who had been given up for lost on account of his intimate relations with the Jesuits,—he lives in the German College—shows himself firm, and the most important personage who as yet has deceived the expectations formed of him is Cardinal Bonnechose, Archbishop of Rouen. It is stated in German circles that fifteen Spanish Bishops are wavering, and show a disposition to join the Opposition. The apprehension that the other party, whose admirable organization and adroitness in manœuvring deserves the highest praise, will carry through Infallibility by a *coup* still survives, and only yesterday several Bishops entered the Council Hall in [pg 124] dread of being taken by surprise by the acclamation. Cardinal di Pietro says it is no longer possible to drop the affair; things have gone too far already.

I understand the feeling of the Roman clergy, and their indignation at these stubborn Hyperboreans. It is as though one wanted to snatch from the hands of the thirsty wanderer, who, after long toil, had at length reached the fountain, the cup he was raising to his lips. With Infallibility, as it is now defined and made clear as the sun at noonday by the Jesuits, all resistance is broken, every attack triumphantly parried, every end brought within reach. If the *Curia* once becomes by this means the horny Siegfried, no vulnerable point even in the back will be left. The Jesuit Schrader, in his book on Roman unity, has proved that every act and every ordinance of the Pope is infallible. For, as he says, “all Papal measures, as regards their truth, belong to the order of faith, or morals, or law. All decrees, whatever their subject, always contain a true doctrine, whether speculative, moral, or juridical. But the Pope is infallible in the order of truth and doctrine, and therefore in all

his decrees.” Your readers will believe I am ridiculing or calumniating the valiant Jesuit, who shines at present [pg 125] as a star of the first magnitude in the theological heavens of Rome; but I have only given a faithful translation, as any one may ascertain for himself. That is the logic which prevails here, and which no Roman cleric doubts to be of triumphant force.

Dec. 30.—The second Session of the General Congregation on the *Schema* took place yesterday. About a third of the hall had been cut off by a partition, so that the speakers could be somewhat better understood. Among the five speakers, who, like the seven that had preceded them, pronounced for the rejection of the *Schema*, Strossmayer, and Ginoulbiac, of Grenoble, who is considered the best theologian among the French Bishops, commanded most attention. The *Schema* was again censured for going much too far in its statements and condemnations, and it was shown that the Council, by accepting it, would enter on a wholly new path, widely different from that of the earlier Councils, where the Church would be forced into constantly narrower definitions, until a complete dogmatic philosophy, stiff and rigid, had been formalized. Strossmayer also observed on the formula of promulgation selected by Pius, which represents the Pope as a dogmatic lawgiver, and the Council as a mere consultative body called in to assist [pg 126] him, that it is an unheard-of innovation, departing from all conciliar traditions. This led to an opposite statement by Cardinal Capalti, one of the Presidents, and a reply from Strossmayer. As yet no single one of the host of 500 has said a word in defence of the *Schema*. The excitement is, as may be conceived, great. That even Rauscher came forward against the *Schema* created the more sensation, as it was he who brought its author, Schrader, to the University of Vienna.

[pg 127]

Eighth Letter.

Rome, Jan. 8, 1870.—One month is now gone by without any result, or, as many here say, simply wasted. The first real Session, on January 6, went off without any single decree being published. It has produced a very painful impression generally, that, for the obvious purpose of something to do, the unmeaning ceremony has been adopted of swearing to the profession of faith which every Prelate had already sworn to at his ordination and at other times. The question was inevitably forced on men's minds whether this profusion of superfluous swearings, in an assembly of men on whose orthodoxy no shadow of suspicion had been cast, was at all fitting or reconcilable with the Scriptural prohibition of needless oaths. But the Session had been announced, and the Opposition Bishops, contrary to expectation, had found a great deal to censure in the *Schema* in general and in detail, so that in four General [pg 128] Congregations nothing had been effected. The simplest plan would have been to defer the Session, and anywhere else that course would have been followed. But in Rome? That would have been a *de facto* confession of having made a mistake, and it is here a first principle that the *Curia* is always right. So they had 747 oaths taken, and thus the Solemn Session was held.

It is exceedingly convenient to have to deal with a majority of 600 Prelates, who are simply your creatures, obedient to every hint, and admirably disciplined. Three hundred of them are still further bound to Pius IX. by a special tie, for they are indebted to him, as the *Civiltà* of January 1 reminded them, for both food and lodging, “sono da lui alloggiati e sostentati e assistiti in tutto il bisognevole alla vita.” Nor does that journal fail to point to the extreme poverty of many of the Bishops or Vicars-Apostolic, drawn hither from Asia, Africa, and Australia; even among the European Bishops it calls many “poverissimi.” Who has paid their travelling expenses, it says not. The *Civiltà* may be easy; none of them will swell the ranks of the Opposition, or attack the *Schema*, or refuse their votes and acclamations to the infallibility of their benefactor. And then the *Civiltà* has another powerful factor to [pg 129] rely upon; it says, and confirms

what it says by the words used by the Pope at the Centenary, June 27, 1867, that from the tomb of St. Peter issues a secret force, which inspires the Bishops with a bold and enterprising spirit and great-hearted decisions. If I rightly understand the *Civiltà*, it means that for many Bishops it is a risk, and requires a lofty courage, to vote for Papal Infallibility here in Rome, while the clergy and laity of their own dioceses, excepting a few old women of either sex, never hitherto knew, or wished to know, anything of this Infallibility, and the prevalent belief has always been that the business of Bishops at a Council was only to bear witness to the faith and tradition of their Churches, not to construct new dogmas strange to the minds of their flocks. “Nous avons changé tout cela,” thinks the Roman journal, and therefore is the Council held in St. Peter's, and not in the Lateran, that the “secret force” may take full effect. Certainly there is no lack of secret forces here, They are in full activity; there is an address being hawked about, praying the Pope to take up the Infallibility question at once, and put the Council in a position to vote upon it. This time the movement originated with two German Bishops, Martin of Paderborn and Senestrey of Regensburg. [pg 130] Slender causes and great effects! When the pond is full, a couple of moles can produce a flood by working their way through the dam. Both of these men have become perceptibly impatient at the obstinate and rebellious disposition of their German and Austrian colleagues, and are seeking to hasten the day, when, with the new dogma in their hands, they may triumph as willing believers over the forced belief of their brethren, only converted at the last moment. The address seems to have flashed suddenly upon the world, for—so said Mermillod and the rest of the initiated—its very existence was hardly known of; and it had 500 signatures. It was not shown to Bishops of notoriously anti-Infallibilist sentiments, but no labour is spared with the doubtful, and others who have not yet declared themselves, so that it is quite possible 600 signatures may be scraped together. Papal Infallibility is here limited to cases where the Pope addresses his dogmatic decision to the whole Catholic Church.²⁸ That was Bellarmine's view, and it would certainly offer many advantages; for all difficulties and objections drawn [pg 131] from the first twelve centuries of Church history would be cut off at a stroke, as it is notorious that no Pope during that entire period addressed any decree on matters of faith to the whole Church. The idea never occurred even to a Gregory VII. or Alexander III. or Innocent III. The two last only issued decrees at the head and in the

name of General Councils. Boniface VIII., in 1302, was the first who in the title addressed his Bull *Unam Sanctam* to the whole Christian world. This Bull therefore, which makes the Pope king of kings and sole lord in political as in religious matters, would indeed be covered with the shield of Infallibility, and we should have a firm and immovable foundation for the policy and civil law both of the present and the future. At the same time the various hypotheses and attempted denials rendered necessary by the case of Pope Honorious would be got rid of at one blow. Only this little difficulty would remain: how it came to pass that the Popes, who only needed to prefix the word “Orbi,” or “Ecclesiæ Catholicæ,” to their decrees, in order to make them infallible and unassailable, so persistently despised this simple means, and thereby tolerated or produced so much uncertainty in the world? All their decrees before 1302, and most of [pg 132] them since, are addressed to particular individuals or corporations, and therefore fallible.

The question now is, whether the minority of some 200 Prelates have spirit and harmony enough for a counter-address. On this thread the fate of the Catholic Church seems to hang. Pius IX. says, “As to Infallibility, I believed it as plain Abbé Mastai, and now, as Pope Mastai, I *feel* it.”²⁹ He could therefore give us the best information, if he “feels” his infallibility, as to whether he only feels it when he signs a decree addressed to the whole Church, or also whenever his dogmatic anathemas, of which we possess such an abundance, are addressed to a single Bishop or national Church only. Meanwhile, if that large section of the Infallibilists who are fanatical get the upper hand, no distinctions will be admitted; the matter will be settled straight off by acclamation, and the Pope will be simply told, “Thou alone art always inspired by the Holy Ghost, whether speaking to all, to many, or to one, and every word of thine is for us the command of God.” Others naturally opine that the matter cannot be so easily arranged, but that the question must be [pg 133] taken up in good earnest and sifted to the bottom, that it may be demonstrated to the whole world that Infallibility admits of historical illustration.

In a conversation which took place to-day between two leading men of the opposite parties, a Belgian and a Frenchman, the former said, “Je veux que l'on discute à fond tous les textes et tous les faits.” The Frenchman answered, “Je souffre de penser que le Saint Siège va être discuté et

disséqué de la sorte!” That is, in truth, a serious anxiety. To begin with, no discussion among the Fathers can be dreamt of so long as the Council Hall in St. Peter's is kept to, for the speeches made there already for the most part were not understood at all, or only by very few. What is heard is waves of sound, not words and sentences. But even if at last a room better suited for human voices and ears is found, the question of Infallibility would never be submitted to a regular and really free discussion. How would the Romance majority of Spaniards and Italians, who are the slaves of the *Curia* but the masters of the Council, and whose whole intellectual outfit is based on the scholasticism of the seminaries—how would they receive it, if an audacious German or Frenchman were to throw the light of history and [pg 134] criticism on the rambling Infallibilist evidences of, *e.g.*, a Perrone? What scenes should we witness! The offenders would be reduced to silence, not only by the throats but the feet of the majority.³⁰ Either the discussion will be broken off, when it is begun, or it will never be allowed to begin. And therefore so many favour the plan of acclamation; and it is related how Archbishop Darboy assured the Cardinal de Luca that such an attempt would be followed by the immediate departure and protest of a number of Bishops.³¹

[pg 135]

Ninth Letter.

Rome, Jan. 9, 1870.—The Opposition has become exceedingly troublesome. The successive gradation of Roman judgments about it is noteworthy. First, it was said that the Council ran like a well-oiled machine; that all were of one mind, and only vied with each other in their devotion to the Supreme Head. Then the local correspondents of foreign papers reported that something which looked like opposition was manifesting itself, but it was a mere drop in the ocean. So said the London *Tablet* and *Weekly Register*. Next they allowed there was certainly an Opposition, but it was already demoralized, or, as Antonelli said, must speedily fall to pieces. In diplomatic circles it was said that they were good people enough, but one must wait a little till the impressions of Fulda had worn off, and they had imbibed the *spirito Romano*; “il leur faut deux mois de Rome, et tout le monde sera d'accord.” One [pg 136] month more, January, has to pass, and then in February conversions and desertions will begin. Meanwhile, Simor, Primate of Hungary, Tarnóczy of Salzburg, and Manning, are favourites for vacant Hats. It is hoped that the first will split up the harmony of the Hungarian Bishops, and bring over some with him as trophies into the Infallibilist camp.

Cardinals Schwarzenberg and Rauscher—that is now become perfectly clear—have not budged an inch; both of them feel thoroughly as Germans, and are nowise minded to desert, cowardly and despairing, into the great Romance camp. Schwarzenberg has circulated an excellently composed treatise, which speaks out very judiciously on the real needs of the Church, and certain reforms which are become urgently needed, and emphasizes the perversity shown in the demand for the Infallibilist dogma.³² Cardinal Rauscher has [pg 137] done the same, and his treatise against Infallibility is now in circulation. Something more has occurred also: on the 2d of January, 25 Austrian and German Bishops, with Schwarzenberg at their head, subscribed a protest, drawn up by Haynald, Ketteler, and Strossmayer, which is said to have been read and talked over fifteen times before it gave entire satisfaction. They appeal to their inherent rights, not dependent on Papal grace, but on Divine institution; ready as they are to guard the rights of the Head, they must also demand that the rights of the members shall be preserved and respected; the forms and traditions of the Tridentine Synod should not be so far departed from. The tone of the document is dignified. Rauscher has not subscribed though he thoroughly agrees with it, it is said

from considerations the force of which the other Prelates acknowledged. The petition handed in by 15 French Prelates for an alteration of the order of business the Pope has answered by a mere dry refusal. We shall soon see whether the Germans will meet with similar treatment; in the eyes of these Italians the most modest criticisms and demands are open rebellion. To many of the German and Hungarian Bishops even this Protest seemed too bold and audacious, and they [pg 138] have prepared another representation, with forty signatures, expressed in much more moderate terms. They entreat the Pope to be graciously pleased to allow them to inspect the stenographic reports, and to let the Bishops print their treatises on the questions laid before them without the censorship, for the information of their colleagues. Posterity will marvel at the humble submissiveness of these Bishops, and the wisdom of the Roman policy, which, after two years' preparation for the Council, provides a hall where all discussion is impossible, and furthermore prohibits the Bishops from inspecting the stenographic reports of their own speeches.

Some ten of the leading Bishops of different nations have formed themselves into an International Committee, so as not, for the future, to ask concessions of the Pope in the name of one nation only—the French or German. They wish that every Bishop should be admitted to speak in Congregation according to the order of inscription, irrespective of hierarchial rank or age, and that the speeches should be at once printed, and distributed to the Bishops before the next Session; and finally, that the Papal Commission for revising motions, which holds the whole Council in its hands, [pg 139] should be increased by the introduction of members freely elected. Some further requisitions which I am not acquainted with are said to be added.

Against these things, which make the Pope very irritable, two principal remedies are adopted. In the first place, an attempt is made to prevent any number of Bishops meeting together, either by direct prohibition or by announcing the displeasure of the supreme authority against those who take part in such separate deliberations, which are said to be revolutionary. And next, the Bishops are worked upon individually, and every one is watched and taken stock of, on the assumption that everybody has his price, if one could only discover what it is. Two examples of this may be cited here. One

of the most distinguished German Bishops, who is free from the usual clerical vanity, and could neither be bought with titles nor with the cut or colour of a vestment, was quite lately accosted by the Pope—in full consciousness of his Vicarship of Christ—with the question, asked in the most affectionate tone, “Amas me?” What inference was attached to an affirmative answer need not be specified. The other case occurred somewhat earlier. Lavigerie, Bishop of Nancy, came to Rome coveting some striking mark [pg 140] of distinction. It seemed worth while to bind him closer to the *Curia*, and so an article of ecclesiastical dress was hit upon, which he and no other Bishop of the Western Church was to wear. It was called a superhumeral, and is described as a somewhat broader stole, thrown over the shoulders, and adorned with fringes, with two maniples of the shape of shields hanging down from it. The effect is said to have been enormous, and of course since then Mgr. Lavigerie is a profoundly convinced Infallibilist. “C'est avec de hochets qu'on mène les hommes,” said the first Napoleon; but it moves one's pity to look at Bishops who let themselves be led by the nose by these childish toys.

Very instructive considerations may be formed here on the representation of particular nations and national Churches at the Council. Frenchmen and Germans must practise themselves in the virtues of humility and modesty, and learn how insignificant they are in the Catholic Church, in all that concerns doctrine and legislation. There is the diocese of Breslau, with 1,700,000 Catholics, but its Bishop has not been chosen for any single Commission, while the 700,000 inhabitants of the present Roman States are represented by 62 Bishops, and the [pg 141] Italians form half or two-thirds in every Commission. For the Kingdom of God, wherein the least is greater than John and all the Prophets, lies, as is well known, between Montefiascone and Terracina, and whoever first saw the light in Sonnino, Velletri, Ceccano, Anagni, or Rieti, is predestinated from the cradle “imperio regere populos.” It is true the 62 Bishops of this chosen land and people have not succeeded in restoring the most moderate standard of morality in their little towns and villages; there are still whole communities and districts notoriously in league with brigands—but the Council has no call to trouble itself with matters of that sort. There are the Archbishops of Cologne with 1,400,000, of Cambray with 1,300,000, and of Paris with 2,000,000 Catholics, but any four of the 62 Neapolitan and Sicilian Bishops

can out-vote these Bishops with their 5,000,000 Catholics at their back. Thus the 12,000,000 Catholics of Germany Proper are represented at this Council by fourteen votes. Their relative positions may be expressed in this way: in Church matters twenty Germans count for less than one Italian. And should a German indulge any fancy that his nation, with its numerous theological High Schools, and its learned theologians, might reasonably [pg 142] claim some weight at a Council, he only need come here to be cured at once of that notion. There is not in all Italy one single real Theological Faculty, except in Rome; Spain gets on equally without any higher theological school or any theology; yet here at the Council some hundreds of Italians and Spaniards are masters, and are the appointed teachers of doctrine and dictators of faith for all nations belonging to the Church.

Count Terenzio Mamiani has lately observed, in the *Nuova Antologia*, published at Florence, that in Italy there are not so many religious books printed in half a century as appear in England or North America (or Germany) in one year. And we must remember too that the theological literature published in Tuscany and Lombardy might almost be called copious in comparison with the nearly absolute sterility of the States of the Church. Here in Rome you may find a lottery dream-book in almost every house, but never a New Testament, and extremely seldom any religious book at all. It seems as though it were a recognised principle that, the more ignorant a people, the greater must be the share their hierarchy have in the government of the Church. And thus we have the question of nationalities within the bosom of the Church. Everything done here is but [pg 143] the expression of one idea and the means to one end, and this idea and end are that the spiritual domination of the Italians over the other nations, especially over the Germans and French, should be extended and confirmed. Above a hundred Spaniards have come from both sides of the ocean to let themselves be used as instruments of the Italians at the Council. They have no thought, or will, or suggestion of their own for the good of the Church. It is difficult to form a notion of the ignorance of these Latins in all historical questions, and their entire want of that general cultivation which is assumed with us as a matter of course in a priest or bishop. And up to this time I have always found here that the predilection for the Infallibilist theory is in precise proportion to the ignorance of its advocates. It has been deemed necessary still further to help on this immense numerical superiority, and so

the Pope, as I am informed, has appointed during the two years since the proclamation of the Council 89 Bishops *in partibus*, whose flocks are in the moon or in Sirius.

And now for something about the course of procedure in the Council as to the *Schema* during the last ten days. There are only constantly speeches on each [pg 144] side, for a real discussion is impossible in the Hall, and it is obvious that it was chosen, and is still kept to in spite of daily experience, for that very reason.³³ Some speakers, however, whom nature has endowed with a specially ringing voice, have made an unwonted impression. The most significant occurrence was Cardinal Capalti's interruption of Strossmayer's speech. The Bishop had touched on the novel and unconciliar form in which the decrees were to be published, as decisions of the Pope, with the mere approval or forced consent of the Council. It was an ominous circumstance that the assembly sacrificed by its silence the man who was speaking for its rights. Meanwhile there has been a wholly unexpected attack on the *Schema* by a host of speakers, so that Antonelli, on leaving the Council, said, in visible excitement, to a diplomatist who was waiting for him, that this could not continue, or the Council would go on for ten years. Strossmayer was followed by Ginoulhiac, the learned Bishop of Grenoble, who spoke in the same sense. The proportion of speakers against the *Schema* is overwhelming. In the Session of January 3, all four spoke against it, even [pg 145] the Patriarch of Venice. An impression was produced by the warning of the Eastern Patriarch, Hassoun, against embittering the Orientals, and driving them into schism by dogmatic innovations. The Italian, Valerga, named by the Pope to the Latin Patriarchate of Jerusalem, represented the Roman standpoint in its crudest form, but he had his speech read for him by Bishop Gandolfi.

It is now said to be certain that Darboy, Simor, and Tarnóczy have been apprised of the intention to make them Cardinals. As regards the two last, the abandonment of all opposition to the Infallibilist dogma, and to every other decree on faith in a Papal sense, is an indispensable condition. But with Darboy the case is different: the *Curia* must take him as he is or let him alone, for he cannot be bought at any price. The irritation, complaints, and sighs of the Pope at having to make this man a Cardinal, who will not yield or apologize, have already lasted some years. The Romanist party

have published in a Quebec newspaper the Pope's bitter and reproachful letter to him, to which he made no reply. Darboy was and is resolved to be the *bonâ fide* Bishop of his diocese, the largest in the world, and will not admit any arbitrary encroachments [pg 146] or concurrent jurisdiction of the Court of Rome to annul his acts at its caprice. "This stinks of schism," say the Romans here.³⁴ And therefore, according to Roman notions, he is "a bad Christian," for he does not believe in Papal Infallibility, and will not vote for it even as a Cardinal. Moreover, nobody sees better through the whole web of curialistic policy, with its artifices, small and great, and he shows not the slightest sympathy for it, so that in any case he will be a very inconvenient and unprofitable Cardinal. At the same time he is a man of rare eloquence, rich experience and knowledge of mankind, and easily outweighs ten Italian Cardinals in culture and learning. And the worst of it is that this bitter necessity of elevating Darboy has to be accepted with a good grace, for France wills it, and France must still remain the magnanimous champion of Rome and the Council. Some consolation is found for it in the now openly proclaimed apostasy of Archbishop Spalding of Baltimore, who has hitherto been wavering, for it is hoped that other American Bishops will follow his example.

If at the end of the first month we take a view of the situation, it is clear that the word "Council" requires [pg 147] to be taken in a very wide and general sense to include this assembly. It cannot be compared with the ancient Councils in the first thousand years of Church history, before the separation of East and West, for there are no points of contact. In the first place, the whole lay world, all sovereigns and their ambassadors, are entirely excluded from the Synod, which has never happened from the Council of Nice downwards. That was, of course, necessary, for even at Trent the French ambassador announced, on entering the Council, that his King had sent him to watch over the freedom of the Bishops; and certainly the ambassadors of Catholic Powers would have protested against the present arrangements and order of business, which give much less security than even at Trent. Here the Bishops are in a sense the Pope's prisoners. Without his permission they cannot leave the Council, they are forbidden to meet together for common deliberation, are not allowed to print anything till it has passed the censorship, or to bring forward any motion without the Pope's approval. It is the Pope who makes the decrees and defines the

dogmas; the Council has simply to assent. Two rights only are left to the Bishops; they can make speeches in the General Congregation, and [pg 148] they can say *Placet* or *Non placet*. There is a quite luxurious abundance of means of coercion, impediments and chains;—with the Pope's 300 episcopal boarders, the 62 Bishops of the Roman States, the 68 Neapolitans, Sicilians, etc., all manœuvring with a precision a Prussian General could not wish to surpass on the reviewing-ground, the *Curia* might have fairly hoped to gain its ends, even were a little more freedom allowed to the Opposition section of the Assembly.³⁵[—](#)

[pg 149]

Tenth Letter.

Rome, Jan. 15, 1870.—On Sunday last the Pope gave audience to a great crowd of visitors,—some 700 or 1000, it is said,—at once, and took occasion to express before them his displeasure at the Opposition Bishops. He said there were some Prelates who lacked the temper of perfect faith, and hence arose difficulties, which however he, the Pope, should know how to overcome. In Church matters no attention was to be paid to the judgment of the world, as he himself despised it, for the Church's kingdom is not of this world. It has hitherto of course been held in the Church that the judgment of the world—that is, of their flocks, who constitute their own immediate world—is exactly what the Bishops ought to attend to very

much, and to avoid giving offence to them and perplexing their consciences in matters of religion.

The prohibition to hold large episcopal meetings, communicated [pg 150] to the French Bishops only through Cardinal Bonnechose, is not obeyed either by the French or Germans, who continue to take counsel together. The united Germans and Hungarians have accepted in substance an address drawn up by Cardinal Rauscher, and on Sunday, January 9, bound themselves by a reciprocal obligation, with forty-three signatures, to vote against and combat in all conciliar methods the erection of Papal Infallibility into a dogma. The Austrian Prelates stand foremost in clearness, decision, and courage. Rauscher, Schwarzenberg, Haynald, and Strossmayer know what they want, are full of true love for the Church, understand the greatness of the danger, and are perfectly aware that no positive gain, nor any of the important reforms so urgently needed, can be expected from this Council—the Spanish and Italian phalanx is too strong and impenetrable for that,—but they hope, at least, by energetic resistance to ward off positive mischief from the Church.

The French on their part are active; Cardinal Mathieu, who returned to Rome, January 5, has opened a saloon in his house for the deliberations. Next to Dupanloup, Bishop Place of Marseilles, Meignan of Châlons, Landriot of Rheims, and Ginoulhiac of Grenoble, speak [pg 151] most decidedly. There are some thirty-five like-minded with them, and the inopportunist among them and the Germans are gradually coming to perceive that their position is quite untenable, and that to persist in treating Infallibility as a mere question of time and convenience, is to give their adversaries a safe and easy victory. But the Germans are further advanced in this conviction than the French. The now famous Infallibilist Address seems to have been simultaneously hawked about from two quarters, viz., by the trio of Manning, Deschamps, and Spalding, and by Martin and Senestrey. Who composed it, and how many Bishops have signed it, is still uncertain; the movement has come to a dead-lock, perhaps because the Spaniards, who talk of presenting an address of their own, don't want to sign it. Several Italians too refused to sign, and so the result has not been as satisfactory as was hoped, although it can hardly be doubted that the dogma will have 450 or 500 votes when it is laid before the Council.

It is a characteristic feature of the case, that throughout Italy prayers are offered in all the monastic communities still surviving, and in all zealously Catholic families, for the definition of the new dogma. The fact is mentioned in English journals, and I have heard it [pg 152] confirmed here. It reveals the patriotic feeling, that Papal Infallibility is an Italian possession more or less profitable to every member of the nation. "The Pope," as one hears it said here, "will always feel and think above all as an Italian; his decrees are manufactured by a Court nine-tenths of whom, at least, are Italians, and with his infallibility under our management, we Italians shall be able to dominate and make capital out of all other nations, in so far as they desire to be Catholic." The Italian is generally a good calculator. However, Italian priests and prelates feel and know right well what every nation and national Church owes to itself. If the Papacy belonged to any other nation, the Italians would never dream for a moment of acknowledging the system of Papal absolutism with its grand prop of Papal Infallibility. One soon observes, in conversing with these Monsignori, how they despise in their hearts the French and German Ultramontane Bishops, while at the same time admitting the correctness of their views, and praising them liberally for rolling in the dust before the infallible *Curia*, and crying out to the Romans, as that orator Ekebolius cried out to the Emperor Julian, "Only trample us under your feet, the salt that has lost its savour."

[pg 153]

Thirty-five German Bishops have declared at the beginning, that they are ready to subscribe the above-mentioned counter address against the dogma of Infallibility, pretty fully expressed in the form of a petition to the Pope, and among them are included those who were before of opinion that they had sufficiently discharged their duty by the letter they sent to him from Fulda. This is a praiseworthy example of harmony, but at the same time the greatness of the danger, which has now become evident to even the most trustful mind, is shown by the fact that all present at the consultation on this address bound themselves in writing to subscribe it. It is needless to say that the Tyrolese and the pupils of the Jesuits, with Bishop Martin, held aloof from the meeting.

Another proof was given on this occasion of the very different measure dealt to the two parties. The Infallibilist Address was at once printed,

though everything else here has first to undergo the most rigorous censorship. The Roman censors would, of course, have refused their *imprimatur* to the counter address, and there was some scruple felt about printing it out of the country, as though by an evasion of the Papal laws, and so it cannot be printed at all. Even Bishop Dupanloup [pg 154] has been refused permission to print his answer to Deschamps. The address will probably be subscribed by the Bishops of each nation in separate batches, so that there will be five addresses, coinciding in substance. Forty-seven Germans and Hungarians are reckoned on—so many have subscribed already—and thirty-five French. The Anglo-Americans have somewhat altered the wording of the address, and say they can command twenty-five signatures. But what is most remarkable is, that a considerable section of the North-Italian Bishops from Piedmont and Lombardy now come out as opponents of Infallibilism, and give promise of twenty-five signatures for the counter address. The decisive point with them is their relation to the Italian nation and government, for the Infallibilist dogma must inevitably lead to a hopelessly incurable rupture between it and the Church. To these must be added six Irish and four Portuguese, making in all an Opposition of from 140 to 150 votes.

The great question daily mooted in the Vatican is now, how Infallibility can be erected into a dogma in spite of the resistance of the Opposition minority, for there is no longer any illusion as to an obstinate residue of anti-Infallibilist protesters being sure to be left, after [pg 155] allowing for the fullest effects of all the alluring seductions used. Precedents are sought for in the history of Councils where the majority has passed decrees according to its own will, without regard to the opposite representations and negative votes of the minority. But no such precedents are to be found. At all Councils from Nice downwards the dogmatic decrees have always been passed only with entire or approximate unanimity. Even at Trent, where the Italians, commanded from Rome through the legates, dominated everything, many very important decrees were abandoned after being drawn up, as soon as a few Bishops only had pronounced against them. If only this fatal precedent of the Tridentine Synod could be got rid of! The Jesuits investigate and refine, but, unluckily for them, one of their own body, Father Matignon, in 1868, when an Opposition was still believed to be impossible, himself established the fact, and justified it on doctrinal

grounds;³⁶ and that is made use of now. So there is nothing left but to labour indefatigably for the conversion of opponents. But people in Rome seem not to [pg 156] know “qu'on ne prend pas les mouches avec du vinaigre;” and that methods of coercion, intimidation, and discrediting character, are not quite the most effectual means, psychologically, for converting adverse Bishops, is clear from the tone again and again manifested in the speeches on the *Schema*, which has gained conspicuously in sharpness and explicitness. On January 10, a Northern Prelate, distinguished for gentleness and refinement, but accustomed to parliamentary contests, said he had been obliged to speak in the vigorous style usual in his own country of the entire absence of real freedom in the Council, for the insolence of the other party was becoming daily more intolerable.

[pg 157]

Eleventh Letter.

Rome, Jan. 17, 1870.—It is a remarkable phenomenon that Pius IX., who is every way inferior to his predecessors of this century in theological culture, lets himself be so completely dominated by his passion for creating new articles of faith. Former Popes have indeed had their hobbies: some wanted to aggrandize and enrich their families; others, like Sixtus VI., were zealous in building, or, like Leo X., in fostering art and literature, or they waged wars like Julius II., or, finally, they wrote learned works, and composed

many long Bulls full of quotations, etc., like Benedict XIV. But not one of them has been seized with this passion for manufacturing dogmas; it is something quite unique in the history of the Popes. Herein, therefore, Pius IX. is a singular phenomenon in his way, and all the more wonderful from his hitherto having kept aloof from theology, and, as one always hears, not being in the habit of ever reading [pg 158] theological books. If it is inquired how this strange idiosyncrasy has been aroused in the soul of a Pope who began his reign under such very different auspices, as a political reformer, the answer given by every one is, that it is the Jesuits, whose influence over him has been constantly growing since he took Father Mignardi of that Order for his confessor, and who have created and fostered in him this passion for dogma-making.

The displeasure and discontent of the Bishops finds constant nutriment in the conduct of the *Curia*. They say that if these momentous propositions had been laid before them in good time, some months before the opening of the Council, so that they might have carefully examined them and pursued the theological studies requisite for that purpose, they should have come duly prepared, whereas now they are in the position of having to speak and vote on the most difficult questions almost extempore. The attacks and objections directed against the first part of the *Schema* in their speeches have not applied so much to the separate articles as to the general scope and tendency of the whole, and I have not been able to ascertain anything more certain about the matter, for the real elaboration of the *Schema*, and discussion [pg 159] of its articles in detail, has to be managed in the Commission; in the Council Hall it is impossible. As yet there have been only long speeches on either side, as in academies or in a school of rhetoric, which, for the most part, were not understood, and in which the main question—what shape the decrees are to take, if issued at all—was never grappled with.

On Friday, January 14, the debate on the *Schema* opened. This is occupied with the duties of Bishops—their residence, visitation of their dioceses, and obligation of frequently travelling to Rome and presenting regular reports on the state of their dioceses; the holding of Provincial and Diocesan Synods, and Vicars-General. The duties of Bishops are the one thing spoken of, and the design is everywhere transparent of increasing their dependence

on the *Curia*, and centralizing all Church government in Rome still more than before. Archbishop Darboy observed on it, that it was above all necessary, in examining this second *Schema*, to discuss the rights of Bishops, instead of only the duties Rome assigned them. Cardinal Schwarzenberg had really opened the debate in this sense, and he had the courage to speak of the College of Cardinals, and the reforms it needed. A simple Bishop would not have [pg 160] been suffered to do this, but they dared not interrupt a Cardinal. The speakers who followed, too, had a good deal to find fault with in the *Schema*, especially Ballerini, formerly rejected as Archbishop of Milan, and now titular Patriarch of Alexandria, and Simor the Primate of Hungary. This Prelate has protested so emphatically against the *Schema* and the treatment the Bishops have experienced at the hands of the *Curia*, that the offer of a Cardinal's Hat seems by no means to have produced the desired effect upon him. There are said to be still sixteen portions or chapters of the *Schema* in reserve, so that the authorities are already displeased at the length of the Bishops' speeches; and lately one Bishop gained general applause by saying he renounced his right to speak.

We may gain some very valuable evidences in Russia and Poland as to how Papal Infallibility is already conceived of, and what hopes and fears respectively are entertained in reference to the projected new dogma. The six or seven million Catholics of that empire are very variously situated, and have different interests, and therefore, in some sort, opposite wishes. Among the Polish Catholics, who are just now being denationalized and Russianized, many are always looking [pg 161] out for the overthrow of the Russian dominion, and the restoration of a kingdom of Poland. To this party belongs Sosnowski, formerly administrator of the diocese of Lublin, whom the Pope has admitted to the Council. He is to represent the whole Polish Church at the Council, and is an ardent Infallibilist; he has accordingly given a severe snubbing, by way of answer, to the Polish priests who had communicated to him certain proposals of reform, with a view of restricting Papal absolutism, to be laid before the Council. His reply circulates here, and is also to be printed in a newspaper published at Posen. Sosnowski represents to the Polish clergy that the emancipation of Poland from Russia must continue to be the great object; and that for this a Pope recognised as completely absolute and infallible is indispensable. He appears to mean that such a Pope, being supreme lord over all monarchs and nations, can even

depose the Russian Czar, or at least absolve the Poles from their oath of allegiance. He moreover assures them that Pius IX. has told him he reckons confidently on this emancipation of Poland from Russia. Here in Rome it is said and taught that the Pope is supreme master even of heretical and schismatical just as much as of Catholic sovereigns; for [pg 162] through baptism, whether received within or without the Church, every one at once becomes his subject. And we are reminded, in proof of this, how Pope Martin IV., in 1282, deposed the Greek Emperor, Michael Palæologus, and absolved his subjects from their allegiance, simply because he had made a treaty with the King of Aragon. This explains why the Russian Government told the Bishops who requested leave to attend the Council, that they might go to Rome, but should not return. The 2,800,000 Catholics in Russia Proper, in the ecclesiastical province of Mohilew, think very differently from Sosnowski. A clergyman from thence said to-day, "If Papal Infallibility is made an article of faith, put into the catechisms and taught in the schools, it will bring us into a most difficult and desperate position as regards the Russian Government and people. We shall be told that our Czar sits in Rome, and that we obey him rather than the Czar at St. Petersburg, to whom we only swear a conditional allegiance, holding ourselves ready to rebel, if our infallible master at Rome absolves us from the oath; that we put his commands and prohibitions above the law of the land and the will of the Emperor. And thus, if Papal Infallibility is defined at Rome, it will be [pg 163] almost equivalent for us to a sentence of death on the Catholic Church in Russia, for everything will be done to undermine a Church regarded as an enemy and standing menace to the State."

Two new works have arrived here, each of which, in its own way, touches on the great question of the day. The one is a book of Dr. Pusey's, on the relations of the English Church to the Catholic, where he declares that making Papal Infallibility a dogma would destroy all hope of a reunion of the Churches, or of the adhesion of any considerable section of the English Church.³⁷ Manning has assured them in Rome of precisely the reverse. The other work is the first Letter of the famous Oratorian, Father Gratry, to the Archbishop of Mechlin, a pungent criticism on that Prelate's brochure in favour of Infallibility, and on his gross misrepresentations of the history of Pope Honorius.³⁸ Gratry also exposes the Roman falsifications introduced into the Breviary. It may alarm the curialists, when they discover how all

the most intellectually conspicuous among the French clergy pronounce [pg 164] against their favourite doctrine, and their design of imposing it on the whole Church, and how the disreputable means employed for building up this system, by trickery and forgeries, are more and more being brought to light.

The Pope's attempt to reduce 740 members of the Council to complete silence on all that goes on there has proved a failure, as might have been foreseen. A great deal has come out, and the Pope manifests great displeasure at it. In a conversation with a diplomatist, who asked him how, with this rule, trustworthy reports could be sent to the different Governments, he accused the French Bishops of violating the secrets of the Council, and called them “chatterboxes” (*chiacceroni*). Accordingly, in the Session of January 14, a more rigorous version of the order of business was read, to the effect that the Pope had made it a mortal sin to communicate anything that took place in the Council; so that any Bishop who should, for instance, show a theologian, whose advice he wanted, a passage from the *Schema* under discussion, or repeat an expression used in one of the speeches, incurs everlasting damnation! If your readers think this incredible, I can only assure them that it is literally true, and must refer them to the [pg 165] moral theology of the Jesuits on the foundation of the Pope's right to brand human actions, forbidden by no law of God, with the guilt of mortal sin, at his good pleasure. A Papal theologian, whom I questioned on the subject, appealed simply to the statement of Boniface VIII., that the Pope holds all rights in the shrine of his breast.

[pg 166]

Twelfth Letter.

Rome, Jan. 26.—The grand topic of all conversations is Bishop Strossmayer's speech of yesterday; and it is possible to give a pretty correct description of its contents, which seem to have made a profound impression on his 747 hearers. The Bishop declared it to be unseemly to begin with the disciplinary decrees about Bishops and their obligations, because this might raise the suspicion in their dioceses that their recent conduct had given occasion to it. When their duties were spoken of, their rights should also be put forward. But, in fact, the reform must be carried through from the highest ranks of the hierarchy to the lowest, so that the Bishops should be introduced in their proper order. He spoke of the necessity of making the Papacy common property, *i.e.*, making non-Italians eligible; for it is now a purely Italian institution, to the immense prejudice of its power and influence. He pointedly [pg 167] insisted on a similar universalizing of the Roman Congregations, so that the important affairs of the Catholic Church should not be arranged and settled in a narrow and jealous spirit, as had unfortunately been the case hitherto. And all matters not necessarily pertaining to the whole Church must be withdrawn from the competence of the Congregations, so that it might no longer be the case, as before, “ut qui superfluis et minimis intendit, necessariis desit.”

Strossmayer insisted on a reform of the College of Cardinals, in the sense of its containing a representation of all Catholic countries in proportion to their extent and importance. The impression produced is said to have been most thrilling, when he exclaimed that it was to be wished the supreme authority in the Church had its throne, where the Lord had fixed His own, in the hearts and consciences of the people, and this would never be the case while the Papacy remained an Italian institution. And with regard to the more frequent holding of Councils, he is said to have reminded the Fathers of the *Decretum Perpetuum* of Constance, that a Council should be assembled every ten years. But the presiding Legates seemed to be greatly disturbed at the mention of Constance. The Bishop proceeded to [pg 168] point out that ordinary prudence urgently dictated to the Church the more

frequent holding of Councils. The increased facilities of intercourse supplied means to the Church to gather more frequently in Council round its head, and thus show an example to the more advanced nations, who transact their affairs in common assemblies, of the open-heartedness and freedom, the patience and perseverance, the charity and moderation, with which great questions should be treated. Once, when Synods were more frequent in the Church, the nations had learnt from her how to bring their affairs to a settlement, but now the Church must offer herself teacher in the great art of self-government.

Strossmayer urged that an influence over episcopal appointments should be given to Provincial Synods, in order to remedy the dangers connected with the present system of nominations, which have become incalculable. He lashed with incisive words and brilliant arguments those who preach a crusade against modern society, and openly expressed his conviction that henceforth the Church must seek the external guarantees of her freedom solely in the public liberties of the nations, and the internal in intrusting the episcopal Sees to men filled with the spirit of Chrysostom, [pg 169] Ambrose, and Anselm. It cut to the quick when he spoke of the centralization which is stifling the life of the Church, and of the Church's unity, which only then reflects the harmony of heaven and educates men's spirits, when her various elements retain inviolate their proper rights and specific institutions. But as the Church now is, and in the organization designed to be imposed on her, her unity is rather a monotony that kills the spirit, excites manifold disgust, and repels instead of attracting. On this point the Bishop is said to have made very remarkable statements from his own experience, proving that, as long as the present system of narrow centralization endures, union with the Eastern Church is inconceivable, and, on the contrary, new perils and defections will be witnessed. He called the canon law a Babylonish confusion, made up of impractical and in most cases corrupted or spurious canons. The Church and the whole world expect the Council to make an end of this state of things by a codification adapted to the age, but which must be prepared by learned and practical men from every part of the Catholic world, and not by Roman divines and canonists. In repudiating the proposal of a previous speaker, that the Pope should take a general oversight of the Catholic [pg 170] press, he seized the opportunity of pronouncing a glowing panegyric on a man who had been shamefully

maligned by that press, but to whom is chiefly owed any real freedom that exists in this Council. Every eye was turned on Dupanloup.

Many single sayings are quoted from this magnificent speech. A French Prelate had desired that Bishops should not sit in the confessional; Strossmayer replied that he must have forgotten he was the countryman of St. Francis of Sales. Another speaker had maintained that the reformation of the Cardinals should be intrusted to their Father, the Pope; Strossmayer replied that they had also a Mother, the Church, to whom it always belongs to give them good advice and instruction.

The speech lasted an hour and a half, and the impression produced was overwhelming. Bishops affirm that no such eloquence in the Latin tongue has been heard for centuries. Strossmayer does not indeed always speak classical Latin, but he speaks it with astonishing readiness and elegance. Cardinal di Pietro, who answered him yesterday, spoke of the “*rara venustas*” of his speech. It is related in proof of his noble manner, and the spirit in which he spoke and was listened [pg 171] to, that the opponent he most sharply attacked immediately asked him to dinner. He is said to have received 400 visits in consequence of his speech. The President paid him a singular compliment in putting out a special admonition the day after his speech against any manifestation of applause.

There was the greatest excitement beforehand. His eloquence was already known from his former speech, which was rendered more significant from the Legates interrupting him. Had he been again interrupted this time, every one felt that the freedom of the Council would be in the greatest danger. Strossmayer's tact and moderation prevented it, although it was observed that Cardinal Bilio wished on one occasion to make the Presidents interfere. When Strossmayer mounted the tribune, somebody was heard to say, “That is the Bishop against whom the bell will be used.”

Thirteenth Letter.

Rome, Jan. 30, 1870.—A great deal has happened since my letter of January 17. My last was exclusively devoted to the impression produced by Strossmayer's speech, and I must go back to several previous occurrences. I will therefore enter directly on the most important facts of the last few days. You have already heard from the telegrams that the Pope has returned the addresses of the Opposition, of which there were several, divided according to nationality. They will be at once handed over to the Commission *de Fide*, composed of twenty-four members. These counter addresses are subscribed by 137 Bishops, while 400 or 410 have signed the first address in favour of the dogma. This document, I can now inform you definitely, was the joint production of a committee consisting of Manning, Deschamps, Spalding, the German Bishops Martin and [pg 173] Senestrey, Bishop Canossa of Verona, Mermillod of Geneva, and perhaps one or two more. That none of these gentlemen, or of the 400 signatories, have observed the gross and palpable untruths and falsifications of which this composition is made up, is marvellous, and justifies the most unfavourable inferences as to the theological and historical cultivation of these Prelates. If the names of the Bishops on either side are, not counted simply, but weighed, and the fact is taken into account that the main strength of the Infallibilist legion consists of the 300 Papal boarders who go through thick and thin in singing to the tune of their entertainer—that all the host of titular Bishops, with very few exceptions, and of the Romance South Americans, who are even more ignorant than the Spaniards, are ranged on the same side—and if we then compare the countries and dioceses represented respectively by the 400 and the 137, we shall come to the conclusion that the overwhelming preponderance in number of souls, in intelligence, and in national importance, is wholly on the side of the 137 of the Opposition. It is besides affirmed now that the Address of the 400 was not really presented to the

Pope at all, but withdrawn at the last moment. If that is true, it must have been in consequence of a [pg 174] command or hint from the Pope, either from his advisers even yet feeling ashamed of exposing him by the reception of a document bristling with falsehoods, or because they thought he could not in that case reject the hated counter address, as he has done, without too glaring an exhibition of partisanship. The Spaniards have drawn up an address of their own, which harmonizes so well with the address of the 400, that Manning declared himself quite ready to sign it.

The second important occurrence of the last few days is the treatment of the Chaldean Patriarch, an aged man of seventy-eight. He had commissioned another Bishop to deliver a speech he had composed, when translated into Latin, in the Council, expressing his desire to preserve the ancient *consuetudines* of his Church and to lay a new compendium of them before the assembly. He added, with indirect reference to the Infallibilist dogma, a warning against innovations, which might destroy the Eastern Church. The Pope at once ordered him to be summoned, he was to bring nobody with him; only Valerga, whom the Pope has named Patriarch of Jerusalem, one of the most devoted courtiers of the Vatican, was present as interpreter. He found the Pope in a state of violent excitement, trembling with passion, and after a great [pg 175] deal of vehement language he was commanded either to resign his office on the spot, or renounce all the prerogatives and privileges of his Church. His request for two days to consider the matter was instantly refused, as also the request for leave to consult his own suffragans then in Rome. Had he refused, he would certainly have been incarcerated in a Roman prison; for it is notorious that according to the Roman theory every cleric is the subject, not only spiritually but bodily, of his absolute lord the Pope. So nothing was left him but to subscribe one of the papers laid before him, and make his renunciation.

The third recent circumstance to be mentioned is the confidential mission of Lavigerie, Archbishop of Algiers, to Paris. I have spoken of this man before as Bishop of Nancy, and forgot to add that he had been translated to Algiers. He is to persuade the Emperor and the ministers Ollivier and Daru to make no opposition to the passing of the Infallibilist dogma, and to offer in return that the articles of the Syllabus on Church and State shall be either dropped, or modified in their application to France. He of course asserts that he has

no mission of the kind, and is only going to Paris about an educational question, just as Cardinal Mathieu professed [pg 176] to have only gone to France to hold an ordination.³⁹ In Paris the strangeness of the situation is remarked on, that the very State which used always most vigorously to assert its independence against the domineering pretensions of the Pope is now suffering, not only the infallibility but the supreme dominion of the Pope, and his right of interference in its political affairs, to be decreed under cover of its bayonets. And in Rome it is understood that, if the French troops were suddenly to disappear during the rejoicings and illuminations following on the Infallibilist triumph, the situation might become very uncomfortable. It is therefore thought that a couple of articles of the Syllabus might the more easily be surrendered, as the shield of Infallibility would cover the whole Syllabus, and no one could hinder an infallible Pope from taking the first opportunity, in spite of all secret promises, of again utilizing the principle now made into a dogma. The Roman clerics, whether high or low, are unable to comprehend that not only the German but the Latin nations feel so decided an antipathy to the domination of the priesthood over civil and social life, and on that account only [pg 177] must resist the Infallibilist theory, because it involves the doctrine that the Pope is to encroach on the secular and political domain with commands and punishments, the moment he can do so without too great prejudice to his office and fear of humiliation. It seems so natural and obvious to a Roman Monsignore or Abbate that the chief priest should rule also over monarchs and nations in worldly matters; from youth up he has seen clergymen acting as police-officers, criminal judges, and lottery collectors, and has no other experience than of the parish priest, the Bishop, and the Inquisition, interfering in the innermost concerns of family life, and the “paternal government” often taking the shape of a strait-waistcoat; he lives in a world where the confusion of the two powers is incarnated in every college, congregation, and administrative office. Nowhere but in Rome would it have been possible for Leo XII., with universal consent of all the clergy, high and low, to re-introduce the Latin language into the law courts after it had been abolished under the French occupation.

Lately, for the first time, a local priest, Leonardo Proja, in a work published here, has openly expressed his confidence that the Council will at once condemn the shocking error of setting aside the supreme dominion [pg 178]

of the Pope over the nations, even in civil matters (“vel in civilibus”) as an invention of the Middle Ages.⁴⁰—

The Court of Rome and the Bishops are at present studying in a school of mutual instruction. The *Curia* studies the Bishops individually, especially the more prominent among them, and watches for their weak points and the ways of getting at them and making them pliable, and, above all, of dissolving national ties. They don't always manage matters skilfully, for the want of all real freedom, the use of coercive measures, and this apparatus of bolts and bars, cords and man-traps, by which the Prelates are surrounded and threatened at every step in Council, by no means produce a *couleur de rose* state of feeling, and the contrast between the title of Brother, which the Pope gives officially to every Bishop, and his way of treating them all, both individually and collectively, like so many schoolboys, is too glaring. Even the boasted freedom of speech does not extend very far, for every Prelate speaks under threat of interruption by the bell of the presiding Cardinal, directly he says anything displeasing to Roman ears. [pg 179] On the other hand, the Bishops, during their stay here of six or seven weeks, have learnt a good deal more than the curialists, and many of them have really made immense advances, before which the Romans would recoil with a shudder, if they could see how things stand. A great many of these Prelates came here full of absolute devotion to the Pope, and with great confidence in the integrity of the *Curia* and the purity of its motives. When they found themselves oppressed and injured at home by its measures or decrees, they still thought it was so much the better in the other branches of ecclesiastical administration. But now, and here, scales have, as it were, fallen from their eyes, and they are daily getting to understand more clearly the two mighty levers of the gigantic machine. The dominant view in Roman clerical circles here is, that the Church in its present condition needs, above all things, greater centralization at Rome, the extension and deepening of Papal powers, the removal of any limitations still standing in the way in national Churches, and the increase of the revenues accruing from Papal innovations. This it is the business of the Council to accomplish. When, therefore, two Bishops lately attacked in their speeches the abuse of expensive [pg 180] marriage dispensations, it was at once said, “Well, then, if any change is made, what is to become of our Congregations and the revenues of their members?”

The Bishops will return home poorer in their happy confidence, but richer in such impressions and experiences. They will also carry back from Rome with them a fuller knowledge of the Jesuit Order, its spirit and tendencies. They now see clearly that the grand aim of the Order is to establish at least one fortress in every diocese with a Papal garrison, and to hold bishops, clergy, and people under complete subjection to Rome and her commands. A French Bishop observed the other day, "If matters go on in this way, we shall have even our holy water sent us ready-made from Rome." And the Jesuits' business is to see that things do go on in this way. The Bishops have now an opportunity of seeing through the tacit compact, perfectly understood on both sides, between the *Curia* and the Order. The Pope accepts the Jesuit theology, and imposes it on the whole Church, for which he requires to be infallible; the Jesuits labour in the pulpit, the confessional, the schoolroom, and the press for the dominion of the *Curia* and the Romanizing of all Church life. One hand washes the other, and the [pg 181] two parties say, "We serve, in order to rule." So far the relations of parties are clear enough, and result from the nature of the case. It is less easy to define the attitude and disposition of the Bishops towards each other.⁴¹

[pg 182]

Fourteenth Letter.

Rome, Feb. 2, 1870.—There is evidently a deep split running through the Council. It is not merely the question of Infallibility which divides the Bishops, though this rules the whole situation. Each party has an opposite programme. The majority, with their reserve of the 300 Papal boarders, speak and act on the principle that they are there to accept without objection or substantial change whatever their master, the Pope, puts before them; that they are as Bishops what the Jesuits are as Priests—the heralds of the Pope's omnipotence and infallibility, and the first executors of his commands—and accordingly they mean to vote against every motion not introduced or sanctioned by the Pope, and to impede, both in Council and out of Council, whatever would displease him or curtail the revenues of the *Curia*. And thus the 130 or 140 Bishops, who wish for improvement in Church matters, are thwarted and paralysed at every step by an adverse majority of 400, [pg 183] admirably generalised. Cardinal Barnabó, Prefect of the Propaganda, is one of the most deserving men in the *Curia* from this point of view. He maintains good discipline among the missionary Bishops, and is not ashamed to besiege an individual Bishop who is under Propaganda, or supported by it, for a whole evening, and threaten him with the withdrawal of his pay if he does not vote just as the Pope desires.

Midway between the two opposite camps there stands a body of some 150 Prelates of different nations, averse to the new dogma and to the whole plan of fabricating dogmas, to which the Jesuits are impelling the Pope, and alive to the necessity and desirableness of many reforms, but who, on various grounds, shrink from speaking out plainly and with the guarantee of their names.

As far as I can gather from personal intercourse of various kinds with many of the Infallibilist Bishops, their zeal is chiefly due to the following notions:

First, They are more or less impressed by the representation that there is a general need for new dogmas, and that the old ones are no longer sufficient; but for preparing and enforcing these a single infallible dictator is better adapted than an episcopal assembly. For, [pg 184] besides the inevitable opposition of a minority to every new dogma, the Bishops could never come forward as more than witnesses of the tradition of their respective

Churches, whereas the infallible Pope, under direct inspiration of the Holy Ghost, can at once make into a dogma and article of faith whatever is clear to himself, without troubling himself about the past or the tradition of particular Churches, even the Roman,—as, for instance, at present, the doctrine of the bodily Assumption of the Virgin Mary.

Secondly—and this is a crucial point,—The distinction between Bishops learned or ignorant in theology will become immaterial, because henceforth they will be mere promulgators and executors of Papal decrees on faith, and therefore ignorance of theology and Church history, which still has some importance, and is felt as a defect to be ashamed of, will no longer be any reproach to a Bishop. He who has no judgment of his own to form may well be incapable of forming one; he is the mere speaking-trumpet of one above him.

Thirdly, Theology itself will be greatly simplified, and its study rendered shorter and easier. Those lengthy historical proofs of dogmas, the investigations as to the range and consequences of a doctrine and the [pg 185] like, will all become superfluous, and matters will be settled out of hand by a brief question to the Pope and his reply. A collection of these rescripts, under the title of “The Art of Learning Theology in a Week,” may henceforth be placed in the hands of every candidate for the priesthood, and would supply the place of a whole library. Even as a matter of economy this is no despicable advantage. The majority of 400 and minority of 137 are then opposed to each other in this way:—the majority, or the Spanish and Italian section (*a fortiori fit denominatio*) say, “We are resolved to abdicate as a teaching body and integral constituent of the ecclesiastical ministry; we desire to commit suicide for the benefit of the Church, in order that the authority of a single man may be substituted for the collective authority of the whole episcopate and of all Churches.” The minority think, on the other hand, “We are resolved to hand down inviolate to our successors the inheritance of eighteen centuries, bequeathed to us by our predecessors. Our spiritual forefathers were judges and definers in matters of doctrine, and such we desire to remain; we do not choose to give a helping hand to making ourselves and our successors mere acclaimers instead of definers.”

For the rest, it involves a logical contradiction on the part of the Infallibilists to lay any special weight on mere numbers, for nothing turns on the votes of the Bishops in their system, but everything depends on the decision of the Pope. If 600 Bishops were ranged on one side and the Pope with 6 Bishops on the other, the 600 would be thereby proved to be in error and the 6 in possession of the truth. Cardinal Noailles observed very correctly, 150 years ago, that 300 Bishops, who proclaim a doctrinal principle on the mere word of a Pope whom they regard as infallible, have no more weight than one single Bishop who votes on his own personal conviction. The opposition of the minority, as might be expected from their antecedents of the last twenty years, is indeed wrapped up in cotton, but at bottom it is positive enough. It comes to saying that, if the Pope really wishes the Council to take in hand the question of Infallibility, witnesses must be heard on the subject.

The Address of the forty-five German and Hungarian Bishops objects to the boundaries, as they had been hitherto drawn by the Pope for the teaching of the Church, being transgressed, and the Council being compelled to enter on a discussion of the grounds *pro* and [pg 187] *con*, which must necessarily bring much suspicious matter into public debate. The definition itself would be sure to excite hostility against the Church, even with men of the better sort (*melioris notæ viros*) and lead to attacks upon her rights. It may be said that the whole German episcopate, and the immense majority of the German Catholic Church by their mouth, has spoken out against the Infallibilist dogma.

Simor, Patriarch of Hungary, has not, or at least not yet, subscribed the Address, but he spoke emphatically against the dogma in the meeting of German Bishops on January 16. All the other Hungarian Bishops at Rome, thirteen in number, have signed the Address; only the Greek Uniate Bishop of Papp-Szilaghy has, like Simor, omitted to do so. The North Italian Bishops too have determined on an address, substantially identical with the German one.

The French Address, which thirty-three Bishops agreed to on January 15, at a meeting at Cardinal Mathieu's, differs somewhat in wording from the German, but the contents are the same in the main, and it is hoped to get

forty signatures for this; twenty French Bishops wish to abstain from signing anything, and something under twenty have signed Manning's [pg 188] address, so that there are still twice as many French on the side of the Opposition as of the definition. We may add seventeen North Americans, who have accepted the German Address, with the omission of the clauses omitted in the French one, while the North Italians adopted it unaltered. The opposition to the dogma has thus maintained an universal character, including the most various nationalities. But it would be hardly feasible to decide a new dogma by mere counting of heads, treating the Bishops, like the privates of a regiment, as all equal, so that one vote is worth just the same as another. An analysis of the component elements of this majority, and a comparison of it with the Opposition in scientific culture and representation of souls, would give sufficiently impressive results.

The most startling phenomenon is presented by the Belgian and English Bishops. The former are all on the Infallibilist side, and there can be no doubt that they understand the political importance of the new dogma. They apparently wish to make the breach incurable between the Catholics of the younger generation and the Liberal party, who adhere to the Belgian Constitution; for no Catholic for the future can at once recognise the doctrine of Papal Infallibility and the [pg 189] principles of the Belgian civil law, without contradiction. What makes the majority of English Bishops zealous adherents of Infallibilism it is hard to say; they are not in other respects disposed to be led by Manning. Nor can we assume that, like the Belgians, they deliberately wish to make the Catholic Church of their country the irreconcilable foe of the British Constitution, though that would be the inevitable consequence of the doctrine. It has been pointed out to these Prelates from England, that the solemn declarations of English and Irish Catholics are still preserved in the State Archives, in which they formally renounced belief in Papal Infallibility, and purchased thereby the abolition of the old penal laws and Emancipation. Thus it is said in the "Declaration and Protestation," signed by 1740 persons, including 241 priests, "We acknowledge no infallibility in the Pope." In the "Form of Oath and Declaration," taken in 1793 by all Irish Catholics, occur the words, "I also declare that it is not an article of the Catholic faith, neither am I thereby required to believe or profess, that the Pope is infallible." And a Synod of Irish Bishops, in 1810, declared this oath and declaration to be "a

constituent part of the Roman Catholic religion, as taught by the Bishops; [pg 190] a formula affirmed by the Roman Catholic Churches in Ireland, and sanctioned and approved by the other Roman Catholic Churches.”

I hear that, among the Irish Bishops, Moriarty is averse to breaking with the ancient tradition of his Church. Bishop Brown of Newport, an open and decided opponent of Infallibilism, is kept away by ill health; Ullathorne of Birmingham and Archbishop MacHale of Tuam wish also to keep clear of it, but without signing the address. Bishop Clifford of Clifton, on the contrary, as I hear, has signed it. So Manning's following among his countrymen is a very divided one.

[pg 191]

Fifteenth Letter.

Rome, Feb. 4.—There is a good deal of interesting matter to report of the Sessions of the last few weeks. And, first, as to the Council Hall: notwithstanding the great curtain, it remains a wretched apology for a Council-chamber, and I must repeat emphatically that such a discussion as, *e.g.*, was possible in St. Paul's Church, at Frankfort, in 1848, would be hardly practicable here. Bishops whose voices are feeble and not penetrating enough, must give up the idea of speaking, and even strong men among them feel thoroughly exhausted after they have spoken. A French Bishop, whose speech had produced a great effect, said afterwards of the hall, “Elle est sourde, muette, et aveugle.” But the Pope persists, on account of the neighbourhood of the so-called “Confession of St. Peter,” from which he thinks a force issues to bind the Bishops closer to him, and fill them with contempt of the world. This influence, however, has been very little manifested as [pg 192] yet—rather the reverse. There have been many Opposition speeches, and the bell of the presiding Legate not unfrequently interrupts them with its shrill dissonance; in the latter Sessions a new method has been practised of reducing unpleasant speakers to silence—by scraping with the feet. It is a striking fact that talent, eloquence, and force of thought are observed to be almost entirely on the side of the Opposition; very few men of mark or able speakers can be mentioned on the Infallibilist side. Manning and Mermillod would be good and versatile speakers, only they are not sufficiently masters of Latin. Deschamps alone on that side has won great applause as an eloquent speaker, though with sufficient poverty of thought.

Among the Cardinals, de Angelis, de Luca, Bilio, and Capalti are considered the four Papal pillars of the Council. Bilio, a Barnabite, and still

a young man, passes in Rome for an eminent theologian, and while the other Cardinals and Monsignori would hold it a sin to understand German, he knows two German words, which he constantly repeats, but always with a shudder, “deutsche Wissenschaft.” He thinks German science something like the witches' caldron in Macbeth—full of horrible ingredients.

[pg 193]

The first dogmatic *Schema* has gone back to the Commission on Faith after a long, many-sided, and severe criticism, and is to be revised and again laid before the Council as little altered as possible. The revision is intrusted to three of the most zealous Infallibilists, Martin, Deschamps, and Pie, with the indispensable Jesuits, Schrader and Franzelin. The Bishops are then simply to accept it without discussion. It is not to be discussed, first, because there can be no discussion in the Hall; secondly, because this wretched patchwork does not bear discussion; thirdly, because there would be no coming to an end this way; fourthly, and chiefly, because an excellent precedent will be created, which may be made a rule for the forthcoming *Schemata*, and will open the prospect of carrying through matters far more important and more valuable for the *Curia*.

If once the first *Schema* were voted without discussion, by the help of the devoted majority of 400, though against the opposition of many Bishops, the same method might be pursued with subsequent *Schemata*, and thus the most important of all, on the Church and the Pope, could be carried, which contains the most exorbitant assertions of Papal omnipotence, and implies Papal Infallibility, which is introduced by a side-wind. [pg 194] By this means the maxim observed at former Councils, and even at Trent, that decisions can only be settled by a unanimous vote, would be happily got rid of, and the resistance of the Opposition broken or rendered useless. Such a victory of the curialistic party would exceed all other successes in importance and practical value. The Council is accordingly come to a momentous crisis. Father Theiner, the Prefect of the Papal Archives, has had a part of the first volume of his *Acts of the Council of Trent* printed. We find there a *modus procedendi*, which secures to the Fathers of the Council much more freedom and action than the present regulations, of which Italian Prelates say themselves that they leave no freedom, and only allow a sham Council. Theiner has been altogether forbidden, by the management

of the Jesuits, to publish his work, and has received the most strict commands not to show the part already printed to any Bishop.

The introduction of the second *Schema*, on Discipline, gave occasion to many earnest and important speeches. The Germans at first had to blush for one of their number, Martin of Paderborn, who made a speech overflowing with the most unqualified devotion to the will of the supreme master, the authorship of which was [pg 195] attributed to his Jesuit domestic chaplain, Father Roh. But the speech of Archbishop Melchers of Cologne made all the more favourable impression. He spoke, with quiet dignity and freedom, of the perversity and shamefulness of the meddling Roman domination, the system of dispensations, and the unmeasured centralization. Great was the astonishment of the assembly; Cardinal Capalti went on urging, with impatient look and sign, on de Luca, the President for the day, to stop the German Archbishop. At last, when he had nearly finished, de Luca interrupted him, and said he must hand in his proposals to the Commission. Melchers did not let himself be put down; he replied that he had done that long ago, and had received no answer, and observed that he spoke in the name of more than a million German Catholics. And then he quietly went on with his speech. The words of Archbishop Haynald cut deeper still; he is the best speaker in the Council after Strossmayer, and is also subtle and circumspect, so that the Legate, who was visibly anxious to interrupt him, could not discover the right moment for putting his bell in motion.

As little did they dare to interrupt Darboy, Archbishop of Paris, when he ascended the tribune and began as follows:—"We are told we are not to make [pg 196] long speeches, but I have a great deal to say. We are told again not to repeat what has been said by others, but at the same time we are kept shut up in this Hall, where for the most part we cannot understand one another; we are not allowed to examine the stenographic reports of our speeches, and the only answer made to our representations is always the same—"The Pope wills it." I don't know therefore what has been said by the speakers who have preceded me." He then went on to speak of the rights of the Bishops, their degradation by the Roman centralizing system, "the caves, wherein the Roman doctors have buried themselves from the light of day," etc. He spoke in admirable style, and was listened to with rapt attention, though at every word his auditors expected an interruption from

the Legate; but it never came. Darboy himself said afterwards that he had done like Condé, and flung his marshal's staff into the ranks of the enemy.

On January 22, Dupanloup made a speech in the same sense, which has already been reported to you, and took occasion to mention those courtiers who have learnt never to tell the truth to the Pope. Courtiers of this sort from various nations sat and stood in crowds around him. He might have added what was said to [pg 197] the Pope—vainly, of course—300 years ago, in a work composed by his order, and is just as true now as then: that the dream of omnipotence and infallibility, so studiously produced and cherished in his soul by flatterers, is the main cause, next to the avarice of the *Curia*, of the decline and corruptions of the Church. Meanwhile it is truly wonderful that so much could be said at all; it was felt to be a moral discomfiture or capitulation of the *Curia* in its state of siege. Cardinal Schwarzenberg, and after him the Primate of Hungary, had certainly struck the note which still rang on, but the Legates had not dared to silence them with the bell, and so missed the opportunity of *principiis obsta*. Schwarzenberg had already created a great sensation by recommending the periodical recurrence of Councils, afterwards taken up by Strossmayer, and then falling back on the decree of Constance (for decennial Councils), which is an abomination at Rome. No doubt they would have no objection in Rome to Councils every ten or twenty years, suitably modernized, manipulated, and obedient to every wink, like the present majority; but the fatal Opposition embitters this enjoyment, and when once the great work is accomplished, and Infallibility proclaimed, it will be found at Rome that all this [pg 198] machinery is not worth its pay, “que le jeu ne vaut pas la chandelle;” for it costs too much money to entertain 300 *Placet*-saying Bishops, to make it worth while often to reproduce the drama, or rather the pantomine.

Other Prelates, whom the *Curia* reckons among the *Dî minores gentium*, have no indulgence shown them. When an American Bishop spoke of the corruptions and gross falsehoods in the Roman Breviary, and of the fabulous interpolations in the works of some Fathers, *e.g.*, St. Augustine, inserted there, Capalti rang his bell violently—the Fathers were not to be so spoken of. But the American did not let himself be disturbed, and proceeded

at once to quote the Breviary lections from St. Gregory. He was again called to order, and told he must change the subject or leave the tribune.

In this second *Schema*, compiled by Jacobini, the second Secretary of the Council, the gross ignorance of the author is glaringly exposed. With the usual self-sufficiency of Rome, and with the aim of making the Bishops still more dependent on the *Curia* than before, the special conditions of whole countries had been ignored. Thus every Bishop, who wished to leave his diocese, was first to get the Pope's permission from Rome, and the Archbishops were to delate all who [pg 199] acted otherwise at Rome. Simor observed sharply on that, "This then is the position Rome assigns to Metropolitans, after robbing them of all their ancient rights: to be the accusers of their conprovincial Bishops." Another declared roundly that, if his physician sent him to a watering-place, he should not think of asking leave from Rome. Jacobini would not even recognise the right of Bishops to attend the political assemblies of their countries, of which they are members by the Constitution, because, as the *Schema* words it, "*assembleæ generales*" no longer exist in the sense allowed by Urban VIII. The Pope was further to have the right henceforth of giving away the benefices in the Bishop's gift during the vacancy of the See, which would bring in a large increase of taxes for the *Curia*, and draw a number of candidates to Rome again, as in the palmy days before the Reformation. In Germany we should get back the class of so-called *Curtisanen*,⁴² who notoriously did so much to promote the Protestant division. The Bishops inflicted many a blow on the abuse of expensive dispensations to be elaborated at Rome from artificially derived impediments of marriage (as of [pg 200] cousins, godfathers, and the like) before the Legate's bell could stop them. Then a Hungarian Bishop related, how it often happens that a poor woman comes weeping to the Bishop, to beg him to save her marriage and her very existence by a dispensation. But the Bishop must let the poor woman be ruined, for not he but the Pope only can dispense, and "*mulier non habet pecunias—pecunias.*" The Court Prelates said afterwards that this Hungarian had made himself very disagreeable with his "*mulier non habet pecunias.*"

The following occurrence was comic:—You know in what repute the supple and complaisant Fessler, Bishop of St. Pölten, is held here, the first herald for retailing the new dogma to the world. Not long ago, Charbonnel, the

Capuchin Bishop of Sozopolis, placed himself near him, and began to speak of clerical place-hunting, the eagerness for distinctions and promotions among Bishops, and the crooked ways they often take to obtain them, and pointed so unmistakeably by look and gesticulation at his neighbour, the Secretary, that on going out Fessler said it was high time to put an end to the Council, which was every day getting more disagreeable. The question was then started by German and Hungarian Bishops whether it would not be better, as Martin [pg 201] thought, to substitute lay-brothers for clergymen's housekeepers, or whether the restoration of “the common life”—the Chrodogang institute—of course in a very modified form, should be attempted. They overlooked the fact that such matters cannot be regulated by a Council, but must be arranged according to the disposition and circumstances of the clergy in the various dioceses. Haynald, Meignan, Bishop of Châlons, and the Chaldean Patriarch, insisted that mere school questions should not be decided by the Council without any necessity, and that some freedom of movement must be left to Science. But the word freedom has nowhere so ill a sound as at Rome. Only one kind of freedom can be spoken of here—the freedom of the Church; and, in their favourite and accustomed manner of speech, by the Church is intended the Pope, and by freedom domination over the State, according to the Decretals. And to talk of freedom of Science! The Council, if it entertained such views, would be forgetting altogether that it was only called together for two purposes—to increase the plenary power of the Pope, and to aggrandize the Jesuits. But the Order has, like the Paris labourer of 1848, “le droit du travail;” it is not content to exist only, but must work—of course in its own way,—and for this it requires two things: [pg 202] first, new dogmas; and secondly, plenty of condemnations and anathemas. The business of the Council is to provide both.

The Cardinals, with the exception of Rauscher, Schwarzenberg, and Mathieu, have taken no part in the speaking, nor have the Generals of Orders and Abbots. Only when the need for a reform of the Cardinals themselves was spoken of, Cardinal di Pietro rose, who is regarded as the most liberal-minded of the Italians in the Sacred College, to show that such a reform could only be a financial one, *i.e.*, that the Cardinals required larger incomes. What the Bishops meant was something very different, *viz.*, a better and fuller representation of different nations in the *Curia*, and a

limitation of the Italian monopoly. But scattered observations of that kind could elicit no sort of real apprehension in the minds of the Italians, who are firmly seated in the saddle; so secure do they feel in their possession of a dominion many centuries old, and so very odd do the claims of other nations appear to them. In this point the present Romans or Latins are of the same mind as the old Romans of the sinking Republic, who sacrificed 600,000 men in the Confederate war rather than allow equal political rights to their Italian allies.

[pg 203]

The great blow, which brings matters near a decision, has now been just struck, and all that the Jesuit and anti-German party longed for, and the French and Germans feared, is now before our eyes, the third *Schema*, "on the Church and the Pope," has been distributed, and leaves hardly anything to be desired in point of clearness and plain speaking. These transparent decrees and anathemas may be thus summed up: "The Christian world consists simply of masters and slaves; the masters are the Italians, the Pope and his Court, and the slaves are all Bishops (including the Italians themselves), all priests, and all the laity."

This third *Schema*, which was distributed to the Bishops on January 21, is a lengthy document of 213 pages, entitled *De Ecclesiâ*, and it is the one the *Curia* is chiefly bent on getting received. It is said to be the work of a red-hot Infallibilist, Gay, Vicar-General of the Infallibilist Bishop Pie of Poitiers, and is so drawn up that by a slight addition the Infallibility of the Pope, which it already leads up to and implies, can be inserted in express form very easily, and as the necessary logical supplement; and thus the internal harmony of this important document, with its appended anathemas, would be completely secured. Three main [pg 204] ideas run through the *Schema*, and are formulated into dogmatic decrees guarded with anathemas: *First*, to the Pope belongs absolute dominion over the whole Church, whether dispersed or assembled in Council; *secondly*, the Pope's temporal sovereignty over a portion of the Peninsula must be maintained as pertaining to dogma; *thirdly*, Church and State are immutably connected, but in the sense that the Church's laws always hold good before and against the civil law; and therefore every Papal ordinance that is opposed to the

Constitution and law of the land binds the faithful, under mortal sin, to disobedience to the Constitution and law of their country.

[pg 205]

Sixteenth Letter.

Rome, Feb. 5.—On reviewing the situation, I believe I may venture to say that it has become better, far better, than it was a few weeks ago. For this the Christian world is mainly indebted to the noble, dignified and united attitude of the German and Hungarian Bishops. These men,—I speak of course only of the majority of the forty-six—while taking frequent and most conscientious consultation with one another, and knowing the three German Cardinals to be in substantial agreement with them, have gained almost daily in clearness of view, confidence and decision; and their example, again, has encouraged the Bishops of other nations. If, as many fear, Ketteler should, at the critical moment, go over to the Papal side, and let his sympathy for the convenient Infallibilist doctrine get the better of his love for the German Church and nation, his loss will be more than made up by forces newly [pg 206] gained. Hefele, who is the first living authority about Councils, has signed the Opposition address, and would, I believe, have still more gladly signed a stronger one. Three Cardinals of one nation who don't want to have anything to do with Papal Infallibility! “It is an unheard-of, an abominable thing,” say the Romans. “O that we still had Reisach! his loss is

bitter at so critical a moment, and that we should have to console ourselves for his death by the living voices of Martin, Senestrey, Leonrod and Stahl, is still bitterer!”

The Hungarians are greatly influenced by knowing that they would find themselves isolated in their own country, if they, the representatives of ecclesiastical reform, were to return from Rome conquered, and as forced believers in Papal Infallibility and the complete system of ecclesiastical despotism. Their position is one of close union, and by its union is imposing; whereas the fifteen or sixteen Bishops of Austrian Germany are somewhat weakened by the desertion of Martin and the three Bavarians and the approaching apostasy of Ketteler, who is already preparing the way for it in the *Mainzer Journal*. From thence, as I perceive, has the falsehood gained currency, that the Opposition are ready to accept Spalding's (professedly) [pg 207] modified proposals, and thus to acknowledge Infallibility in its grossest form and vote the whole third *Schema*—that Magna Charta of ecclesiastical absolutism—absolutely and without any change. That would indeed be a catastrophe almost without precedent in Church history. We should have to assume that the Opposition Bishops had resolved to verify in their own case Mazarin's saying about Parliaments, that their policy is always to say “No,” and act “Yes.” Ketteler, moreover, has special grounds of his own for gaining or preserving the particular favour of the Pope; for remembering his retirement from the candidature for the Archbishopric of Cologne, he might effect the abolition of the compact of Rome with the Governments, which secures a veto to the latter, and the introduction of either entirely free elections with Papal confirmation, or, still better, of simple nomination of Bishops by the Pope. He has spoken in Congregation in this sense, and was of course cheered by the Infallibilists.

No less strong and dignified is the attitude of half the French Bishops, who have attached themselves to men like Darboy, Dupanloup, Landriot of Rheims, Meignan of Châlons and Ginoulhiac of Grenoble. On the other side, there are about twenty decided Infallibilists, [pg 208] while the rest of the French Bishops wait or avoid speaking out. The party of Darboy and Dupanloup have the double advantage of being supported by their Government—while the Austrian ministry assumes a wholly apathetic and indifferent position,—and of belonging to the nation whose troops make the

Council and the civil Government of the Pope possible, and whose Bishops therefore the *Curia* is obliged to treat with respect. A French Bishop can say a good deal without, as a rule, having to fear being called to order by the Legate's bell.

The North American Bishops too are being gradually educated to ecclesiastical maturity in the school of Rome and the Council, and have already grown out of that naïve belief in the disinterested generosity and superhuman wisdom of the *Curia* which most of them brought here. To-day the Pope paid them a visit at the American College, conversed in a friendly way with the Bishops individually, said obliging things, and, in a word, displayed those well-known powers of fascination he has such a command of. "A month ago this would have taken effect," said an American priest who was present, "but now it comes too late." He also assured me that not five of the forty-five American Bishops [pg 209] would sign the Infallibilist Petition or vote for the dogma.

I have heard many, and especially French, Prelates say, during the last few days, sometimes in obscure hints, sometimes clearly, that the Council will soon—in a few weeks—be closed or dissolved; an opinion all the more surprising, because nothing as yet has been done. In that case the Bull with the many Excommunications will have to be treated as issuing from the Council.⁴³ But the only relation of the Bishops to that Bull is as the suffering and punished party.

The third Solemn Session was to have been held on February 2, but had again to fall through from the want of any materials. And there are still mountains of work and numbers of elaborate *Schemata* awaiting the Council; for the decrees it is summoned to make, or rather which Pius IX. intends to proclaim to the world, "with the approbation of the Council," are to be veritable pandects embracing the entire doctrine and constitution of the Church, regulating all relations between Church and State, and restoring the Papal supremacy over the bodies and souls of all men. The domain of morals, properly so called, is alone excluded; for there the Jesuits [pg 210] have good reasons for wishing to keep their hands free. In short, the projected work that still remains to be done would occupy at least a year and a half. And for this end everything has been chosen and sharpened into

the form of canons, which can only introduce complications, provoke conflicts with the civil Governments, embitter the relations of rival Confessions, prejudice the position of the Bishops, and foster the hatred of the lay world against the clergy. And accordingly, with many Bishops, the wish to escape taking any part in these discussions may be father to the thought, and a speedy end of the Council may appear to them a sort of conciliar euthanasia. To many a Bishop has the old proverb already occurred, in reference to the Council, that the best thing would be not to have been born and the next best to die early. It is not the Swiss only who have a home-sickness. And then there is the treatment; I heard a French Count here say to-day, "On les traite d'une manière brutale."

I have just received the last number of the Paris *Correspondant*, with its article by the Viscount of Meaux, Montalembert's son-in-law, who is here. His account of how the Council is treated is so much to the point, and so thoroughly confirms my own statements, that I will quote it for you.

[pg 211]

"The *Schemata*," he says, at p. 347, "are prepared beforehand, the order of business is imposed by authority (*imposée*), the Commissions are elected before any consultation, from official lists, by a disciplined majority which votes as one man. On these Commissions the minority is not represented, and there are no other deliberations except in Congregation. Before these Congregations the subjects are brought in all their novelty and laid before the 700 members, without any previous explanations. It is difficult to understand the speeches, and there are no reports which the Fathers can inspect, so that no Bishops have the opportunity of submitting their thoughts to the deliberate examination of their colleagues. Moreover, they are forbidden to have anything printed here for the Council. All these characteristics indicate an assembly summoned to approve, not to discuss, intended to exalt, not to moderate, the power which has summoned it. And with what haste does it push on in this direction! How impatiently does the majority press for a declaration of Papal Infallibility!" So far the Viscount. Matters must indeed have come to a pass when so cautious and strictly Catholic a journal as the *Correspondant* presents its readers with this picture of the Council.

[pg 212]

There are two serious dangers to which we are always exposed. The first I have already spoken of, which is introducing the plan of passing the *Schemata* by majorities, so that the desired dogma would be carried as it were by assault. The second danger—and it seems to me far more threatening—is that one of those involved and disguised formulas which the Infallibilists vie with one another in devising, in order to deceive and catch the votes of the less sharp-sighted Prelates and thus incorporate it into the third *Schema*, may really succeed with the greater number of the hitherto opposing and protesting Bishops. This notion is in fact implied in the phrase one has heard so often, that a middle party must be formed among the Bishops; for the programme or shibboleth of this middle party is to be an elastic formula, or one only expressing the thing metaphorically, or, again, one not sharply dogmatic but rather pious and edifying in sound. By the help of this middle party the formula might be made acceptable to the rest of the Prelates, and the desired end be happily attained. Thus Mermillod and two others have to-day invented a phrase, which seems to them suited to square the circle and to satisfy and unite all. They say they wish to declare that the Pope, whenever he speaks on doctrine, [pg 213] speaks *tanquam os et organum Ecclesiæ*. And by this they understand that the Church has no other mouth than him and without him is dumb, from which it obviously follows that he is infallible. I doubt if many Bishops will be detained in the meshes of a net so coarsely spun. No better is the formula invented by Spalding, which might be called a pretty downright one,—that everybody must inwardly assent to every doctrinal decision of the Pope on pain of everlasting damnation.⁴⁴ That goes far beyond even the Manning-Deschamps Address, which limits his infallibility to decrees addressed to the whole Church, while this formula of Spalding's declares every conceivable Papal utterance (*judicium*) infallible; for a Christian can only give the assent of inward belief, when there is no possibility of error and when there is a really divine authority and revelation. Every theologian must declare this invention of the Archbishop of Baltimore's to be the most monstrous demand ever made on the conscience and understanding of the Catholic world. It is as if a courtier at Teheran were to say, “I will not indeed affirm that our Shah is almighty, [pg 214] but I do assert confidently that he can create out of nothing whatever he will and that his will is always accomplished.” The reverend Fathers who torment themselves with

inventing such devices would perhaps do best if they were to make a collection among themselves, and offer a prize of 100 ducats for that form of circumlocution or involution most securely adapted for entrapping the innocent souls of Bishops. Then the most ingenious heads from all Europe would compete in sending in their suggestions, and the right bait might be discovered among them.

[pg 215]

Seventeenth Letter.

Rome, Feb. 5.—To supplement and partly to verify the news in my last letter, I will now tell you some facts that came to light yesterday and the day before.

The Opposition Addresses were presented to the Pope on January 26, subscribed by forty-six Germans and Hungarians, thirty French, and twenty Italian Bishops, together with some of the North American Bishops, the Portuguese, and certain others. Cardinal Barnabo had employed all available means of intimidation to prevent the Orientals from signing, and hence the number of signatures was somewhat below what had been expected. Of the Germans, Martin, Senestrey, Stahl and Leonrod had signed the Infallibilist Address, which, as was only afterwards discovered, has not been presented, because—it was countermanded. It is not, as I first

informed you, composed by the Episcopal Committee, but by the [pg 216] Jesuits, and emanates from the bureau of the *Civiltà*; the abiding marvel is that 400 Bishops could be induced to sign such a document without even verifying a single one of the pretended facts cited in it. That an Infallibilist should subscribe in blind confidence, and without examination, a document coming from the Pope himself, is natural; but that 400 pastors of the Church, assembled for deciding and therefore for examining ecclesiastical questions, should endorse on faith the composition of a nameless Jesuit, is an occurrence the Order may pride itself on.

A Petition has been set on foot by the Jesuits, and hawked about with the Pope's approval, proposing that the bodily Assumption of the Mother of the Lord should be made an article of faith, and all who henceforth doubt of it, or point to the notorious origin of the notion from apocryphal writings, be anathematized. This anathema would inevitably fall on every one who is acquainted with Church history and patristic literature. This passionate delight in anathemas, curses and refusals of absolution has been powerfully aroused, as you may see from the canons which reproduce the Syllabus and are added to the third *Schema*. [pg 217] The augurs of the Gesù do not indeed smile, but simper, when they meet each other, for they know that the rich harvest from these seeds will drop into the bosom of their Order. Here again it is shown plainly that the interests of the Bishops and of the Jesuits are sharply opposed.

That Bull, with its many curses and cases reserved to the Pope, which fills the Jesuits with hope and joy (though not they but the Dominicans of the Inquisition are its authors), is for the Bishops a source of discouragement and despair, so that the Bishop of Trent is said to have lately observed that he would rather resign his See than publish it. It is now asserted that the Pope has again suspended it, partly on account of remonstrances of the French Government, partly to put the Bishops in better humour for the Infallibilist definition.

The Petition for the new Marian dogma had 300 signatures on January 31. In managing such affairs the Jesuits are unrivalled, for the Order is like a great actor, such as Garrick, *e.g.*, whose every limb from top to toe moves, speaks, and conspires to express the same idea. Then they have an

Infallibilist Petition from the East, the only one known to have been got [pg 218] up; that is to say, they made the Maronite boys and youths of their educational establishment sign the Petition they had drawn up.

As I now hear, the majority, on January 25, resolved to let their Address and Petition drop, if the minority will accept Spalding's proposed addition to the third *Schema*. They are indeed very magnanimous, for that addition, as was observed just now, goes much further and stands to the Address somewhat as Dido's ox-hide cut up into thongs to the hide before it was cut: it will embrace whole countries and cities. Spalding desires too to have the Index placed completely under the shield of Papal Infallibility, and therefore the opinion that the Pope can have made any mistake about the sense of a book is to be condemned. Next day, the Petition of the minority, who knew nothing of the decision of the other party, was presented to the Pope and rejected by him. The Infallibilists appear to have spread the report that their Address had been actually given in simply for the purpose of catching their opponents in a trap.

On Sunday, January 23, the Commission named by the Pope for examining motions proposed held its first [pg 219] sitting, under the presidency of Cardinal Patrizzi and not of the Pope himself, as was thought—seven weeks after the Council met and when a number of motions had long been awaiting its scrutiny. This delay had evidently been designed. It has now been resolved to arrange and examine proposals, not according to subjects but nations, so that the proposals of the French, Germans, etc., will be separately discussed and decided upon.

Cardinal Rauscher has written, or got written, a treatise on the Infallibility question in German, which is now being translated into Latin, and which does not merely oppose the dogma as inopportune, but attacks the whole principle and, as I am assured, on fundamental grounds. But it cannot be printed here, where the Roman censorship is constantly growing stricter. It will be printed in Vienna, and copies will then have to be sent here under cover to the Austrian Embassy. To the representations of the German and French Bishops against the oppressiveness and injustice to the minority of the order of business, the Pope has not seen fit to make any reply. *Væ victis!* Woe to them who do not belong to the faithful and devoted majority! This is

what resounds here, morning, noon and night. [pg 220] Meanwhile the Papal Committee of the Council has devised a new means for paralysing the minority, and cutting short discussions which might easily become inconvenient. It is directed that all objections or proposals for modifications of the *Schemata* are first to be handed over in writing to the Presidents and referred by them to the Commission *de Fide*, which rejects or admits them at its pleasure. If the authors of the proposals appeal against the decision of the Commission, the whole Council decides, of course by simple majority of votes. If this arrangement were really to be introduced, the minority—*i.e.*, the German and French Bishops—would be deprived of all possibility of exerting any influence on the composition of the decrees or warding off any decree they considered injurious; they would always be outvoted, and the Council would more and more take the form of a mere machine for outvoting them. The Bishops would soon learn to spare themselves the useless trouble of proposing changes, and a much closer approach would be effected to the great object of making new articles of faith and decrees by a mere majority of votes. The only question is what the French and Germans intend to put up [pg 221] with from the Italians and Spaniards, for it is clear that here again the question of nationalities turns up in the background, and the Brennus sword of the Southern and Latin majority is always ready to be thrown into the scale.

[pg 222]

Eighteenth Letter.

Rome, Feb. 6.—The report of the dissolution or prorogation of the Council gains in strength. Manning has found it important enough to have it contradicted in his journal, the *Tablet*. He writes, or makes somebody write, “The Holy Father is full of strength and confidence, and has no intention of proroguing the Council, as his enemies say.” As far as the Pope is concerned, I hold the statement to be true. Pius is still absolutely confident of success and firmly convinced of two things—*first*, of his divine, legitimate and irresistible fulness of power, which requires that a conspicuous example, memorable for all future ages, shall be made of the Bishops who oppose him; *secondly*, of the special protecting grace and guidance accorded to the Council by the Holy Virgin, on whose benevolence he notoriously maintains that he has very special [pg 223] claims. He has issued an Indulgence for the whole Church, which gives us some insight into his connection of ideas and religious views. In the Bull of December 1869, he says that the Dominican General, Jandel, has represented to him that the new method of prayer, consisting of 150 repetitions of the “Hail, Mary,” was first introduced at the time the grand crusade against the Albigenses was organized. But our own age is infected with so many monstrous errors that this new method of prayer should be employed now also, in order that under the mighty protection of the Mother of God the Council may destroy these monsters. Whoever, therefore, after confession and communion, recites the Rosary daily for a week, for the Pope's intention and for the happy termination of the Council, may gain a plenary indulgence of all his sins, applicable also to the dead. The Pope adds that even when a child, and far more as Pope, he has always placed his whole confidence in the Mother of God, and that he firmly believes it to be given to her alone by God to destroy all heresies throughout the world. How this special power of the Holy Virgin consists with the fact that many heresies have now lasted quietly for fourteen centuries, it would be interesting [pg 224] to know. The rest the reader may find himself in the German Pastorals.

Pius has even had his naïve but robust belief in his own heavenly illumination and vocation to proclaim new doctrines sensibly embodied in a picture. In a chamber beyond the Raphael Gallery there is a picture painted by his order; he stands in glorified attitude on a throne proclaiming his favourite dogma of the Immaculate Conception, while the Divine Trinity

and the Holy Virgin look down from heaven well pleased upon him, and from the Cross, borne in the arms of an angel, flashes a bright ray on his countenance. Thus Pius stands in a special mystical relation to Mary; she guides and inspires the Council through him, and he in turn will proclaim, with its assent, the decrees she has inspired and which will destroy the monstrous errors of the present day, or will at least give them a fatal blow. Unfortunately, not one single decree has yet been brought out after exactly two months, and all the heresies continue just as strong as before the Council met. And yet the pregnant and successful Councils of the ancient Church did not require a longer time for their decisions; the Council of Nice was finished in two months, the Council of Chalcedon in [pg 225] six weeks. Certainly it was not then supposed that Mary had first to give the Pope, and then he to give the Council, the weapons for destroying heresies: they were content to rely on the Paraclete promised by Christ.

Meanwhile the present assembly has nothing in common with those ancient Synods, except in being composed of persons called Bishops. But our Bishops are unlike those of the ancient Church, for they have to yield up to the *Curia* three-fourths of the rights possessed by their predecessors, and it would be simply ridiculous to liken the state of tutelage and restraint they are now placed under by the *Curia* to the free and independent attitude of the fifth-century Councils. The more free-spoken among them have just addressed, on 2d February, another Petition to the Pope, requesting that the so-called Council Hall in St. Peter's may be exchanged for a more suitable chamber; for now that serious discussions on the dogmas and decrees are to begin—and the third *Schema* will be met with strong and persevering opposition in many of its articles—the present arrangement becomes still more intolerable than before. Any regular discussion is simply impossible in the present Council Hall; there is no doubt of that. “That is just right,” say the Papal [pg 226] officials; “we neither desire nor need discussion, but simply that the propositions should be voted.” “But this is an unheard-of thing, against all conciliar usage and all natural right,” reply the Bishops. Archbishop Darboy said, “We are called on to anathematize doctrines and persons; to pass sentences of spiritual death. But would any jury in the world pronounce capital sentence without first having heard the defence?” And thus the Council has entered on a very critical period, and a spirit of irritation is becoming visible, increased by the constantly deepening

conviction that the Bishops are to be used for purposes alien to their minds and suicidal. One word describes the entire plot—outvoting by majorities. The united German, French and North American Bishops are opposed to a well disciplined army of about 500, who will vote as one man at the beck of the Pope. This army consists of 300 Papal boarders, the 62 Bishops of the Roman States who are doubly subject to him, 68 Neapolitans, 80 of the Spanish race, some 110 titular Bishops without dioceses, the Italian Cardinals, 30 Generals of Orders, etc.⁴⁵ In a word, the Latin South is arrayed [pg 227] against the French and German North. And therefore the design of the *Curia*, to carry decrees or dogmas on every question of Church and State, etc., by a mere calculation of *plus* and *minus*, is doubly monstrous and utterly unchurchlike. For, *first*, it must inevitably produce a deep national irritation, if it is said hereafter in Germany, Bohemia, Hungary, France and the United States, “The Italians and Spaniards have triumphed over our views and interests at Rome, simply because their dioceses are much smaller than ours and they have 50 Bishops for 100,000 souls, while we have only one.” *Secondly*, it involves a complete break with the past of the Church and the practice of Councils. Some Bishops have examined the official records of the Council of Trent by the Roman historian Pallavicini, and have found there that Pius IV. directed his Legates—and that too with special reference to a decree on the fulness of Papal jurisdiction—to make no decrees the Bishops were not *unanimously agreed upon*.⁴⁶

But now just the contrary is to take place. The decisive contest on that point—if it comes to an open contest—will not be fought on the third *Schema*, On [pg 228] *the Church and the Pope*, but at once on the first *Schema*, the handiwork of the Jesuits, when it is returned to the Council, professedly modified but in substance unchanged, from the Commission of two Jesuits and three Infallibilists. As we hear, no attention has been paid to the counter representations of the Bishops, some of whom have objected to it altogether as superfluous and mischievous, some as erroneous and exaggerated. It will now without further discussion, which is simply impossible in the Council Hall, be accepted by the mere majority of votes of the compact troop of Infallibilists, who are at the Pope's command as *valets à tout faire*, and proclaimed as a dogma by Pius, *approbante Concilio*, as the form runs. Thereby, according to approved Roman doctrine, has the Holy Ghost

spoken by the mouth of His divine representative, “*causa finita est*,” and it only remains for the 150 or 200 opposing Bishops to make all haste to perform a great mental evolution, to change their laws of thought, to reverence as revealed truth what they have hitherto rejected as error, and to force the clergy and laity under them by excommunication and suspension to perform the same gymnastic feat of leaping at one jump from unbelief into firm and immoveable faith.

[pg 229]

The modern and purely mechanical scholasticism has brought matters to such a pass that many seriously look upon the Council as a machine, which only needs turning to get new dogmas carried and authorized by the Holy Ghost. Formerly, theologians used to say that the voice of a General Council is nothing but the voice of the whole Church concentrated in one place; that every Bishop bears witness to the traditional belief of his Church and of his predecessors; and that the harmony of these testimonies proves what is the universal belief, and thus attests the truth and purity of the profession of faith sanctioned by the Council. But now all this is entirely changed. The Bishops have come, without any previous knowledge as to what they were to vote about; long-winded and ready-made documents are laid before them on questions most of them have never examined in their lives, of which their flocks at home know nothing and have never heard; they are expected to pass decrees the necessity and opportuneness of which appear to them highly problematical, and to pronounce a string of anathemas, because the Pope and Jesuits will it. They are cooped up in a treadmill called a Council, and must willingly or unwillingly grind what is thrown into it. It cannot [pg 230] indeed be exactly said that this procedure is new and unprecedented, for the same thing occurred, on a much smaller scale, at the Fifth Lateran Council under Julius II. and Leo. X.; but then only the Italian Bishops were made use of, who had long been broken in to the *rôle* of flunkies. Now, on the contrary, the Bishops of all nations have been brought into prison at Rome, and are to say Yea and Amen to the decrees the *Curia* and the Jesuits have drawn up and mean to make obligatory.

But the minority have taken courage, and stand on the defensive; and so the machine is at a standstill. The opponents of Infallibilism have not decreased; on the contrary, it is now thought that about 200 will vote

against it. Many, who at first were only “inopportunists,” have now through more careful investigation of the question become decided opponents of the doctrine itself.

Antonelli does not spare assurances, that the Governments may be quite at ease as to the decrees to be issued by the Council; he says they only affect theology, that nothing will be changed in practical life by them, and that the *Curia* has no intention of employing them for the purpose of interfering with political affairs. But these reassuring declarations are only made orally; [pg 231] great care is taken to avoid putting them into a written, and therefore binding, form. Meanwhile the French Government perfectly comprehends the situation and the objects aimed at, and has already announced that it will fully support its Bishops and protect them against the threatened domination by majorities. Archbishop Lavigerie has gained nothing in Paris, and the decision of France has been communicated to the Cardinal Secretary of State, to the effect that the Government will not allow the 33 French Bishops and their allies of the German and English tongue to be crushed and forced into adopting dogmas they have rejected. The *Civiltà* has just been singing the praises of Count Daru, who is a living proof that there are still real statesmen; it will very soon adopt just the opposite tone.

Among the points which make the Bishops the more astonished, the longer they stay here and the more narrowly they inspect the condition of things, is the decline of study in Rome, and the want, not merely of learned men but even, and most especially, of well-grounded theologians. Rome was never a favourable soil for serious study and true learning; a resource was found in attracting foreigners here, which could easily be done by means of the great Religious Orders [pg 232] whose Generals reside here. But now these Orders, with the exception of the Jesuits, are in the same state of decay. Where are men of distinguished learning to be found among the Dominicans, Carmelites, Cistercians and Franciscans of our own day? To the Pope himself and those immediately about him this is a matter of indifference; Pius feels instinctively that, if there were real theologians at Rome, they would all offer at least a passive resistance to his *penchant* for creating new dogmas. Only the Jesuits and their pupils favour that sort of thing; and as long as there were real theologians in Rome, history knows of

no Pope who was possessed with this abnormal passion for fabricating dogmas.

Now, indeed, among the 41 Italian Cardinals, only two are named as theologians, the Thomist Guidi and the Barnabite Lulio. Of the achievements of the latter nothing is known, and he has left the Jesuits to their own devices in the elaboration of the *Schemata*; but in the Council he is the chief representative of Roman theology. More distinguished than Lulio is the Piedmontese Prelate and Professor, Audisio, author of a History of the Popes, which of course cannot be measured by a German standard. Vincenzi, a good [pg 233] Orientalist and author of a learned—but in the main erroneous—apology for Origen, being a quiet, modest man who goes his own way, is thought nothing of here, and has neither title, dignities, nor benefices, although in knowledge he outweighs twenty Monsignori. De Rossi, the most acute and learned among the genuine Romans, who has educated himself by the study of German works, is a layman and therefore cannot be anything. The Dominican Modena, Secretary of the Congregation of the Index and as such director of the whole institution, who died a few weeks ago, passed here for a learned theologian, but no monuments of his knowledge and research are extant outside the Index. When a foreigner observed to him shortly before his death that, in order to condemn German or English books, one should understand something of the language, he showed great surprise at so unheard-of a demand, and replied that for Italians, who notoriously far excel all nations in genius and acuteness, if a foreigner translated a couple of passages from a book into Latin or Italian, that supplied quite enough materials for pronouncing a censure on the book. The Dominican Gatti has now succeeded Modena as Secretary of the Index, and therefore as [pg 234] supreme judge *ex officio* of the literature of the world. On his scientific capacity and literary achievements history is silent. And so the few learned works produced here have to be provided by foreigners domiciled at Rome.

Theiner publishes documents from the Archives, so far, that is, as they serve “the good cause;” much he is notoriously forbidden to publish. The French Benedictine, Pitra, now a Cardinal, edits the original documents of Greek canon law; the French Chaillot writes the single important Church journal or record, *Analecta Juris Pontificii*, where, notwithstanding its rigid

Ultramontane line, useful collections or ancient treatises not previously printed may here and there be found. Dogmatics and theological philosophy—*i.e.*, philosophy adapted to dogmatic needs and ends—are provided here by the three German Jesuits, Schrader, Franzelin and Kleutgen. For here Germans are only thought available when they have first been transformed into Jesuits and thereby, as far as possible, un-Germanized. That Order, on which the features of the Spanish national character of the sixteenth century are still indelibly impressed, cannot tolerate a genuine German in his natural shape; it would be compelled to eject [pg 235] him as Etna vomited out the brazen slipper of Empedocles. It is well known that the most industrious and learned of the Roman Prelates, Liverani, was obliged to leave Rome; he lives, I believe, at Florence.⁴⁷

If we examine the names of the Professors at the Roman University of the Sapienza, we find among the teachers of theology, with the solitary exception of the Canon-Regular, Tizzani, who is now blind, only monks—Dominicans, Carmelites and Augustinians—and these mere names wholly unknown beyond the walls of Rome. No less lamentable is the view presented by the philosophical, mathematical and philological departments. The best that can be said of this University, the intellectual metropolis of 180,000,000, is about this, “que c'est une fille honnête qui ne fait pas parler d'elle.”

On the whole, the air here is much too raw, the soil inhospitable, the Index too near, and the censorship too merciless, for scientific works and serious investigations. The Italians say of a mindless work, “É scritto in tempo di Scirocco.” And here there is an intellectual scirocco established in permanence. And [pg 236] thus the brave German Benedictines, who assembled here some years ago under an Italian Abbot, Pescetelli, in St. Paul's without the Walls, have become victims of the unhealthy atmosphere—that is, besides the mental scirocco indigenous here, the sharp north wind blowing from the Gesù. They had energetic men among them, such as Nickes and others, were anxious to work in German fashion, and made a good beginning in a volume of *Voices from Rome*, published in 1860; a German Cardinal was their protector. But no sooner had they been denounced to the Pope by the Jesuits—German and of ill-repute for orthodoxy are synonymous terms here than they had to decamp. The Abbot,

weary of these chicaneries, resigned his office and returned to Montecassino. But the Benedictines generally are looked on most unfavourably by the authorities here. As it was said in a capital sentence at Paris, in 1794, that the condemned man was “suspected of being suspected of deficient sense of citizenship,” so must it be said of the Benedictines here that they “are suspected of being suspected of a deficient sense of Papalism.” They are not devoted enough towards the *Curia*; these little religious communities cannot be so entirely kept in hand, the [pg 237] Jesuits from of old are hostile to them, and it is found in Rome that they have not hitherto rendered sufficient service to the great cause of strengthening Roman domination. They are therefore to be revolutionized, and, like the Jesuits and the Mendicant Orders, to receive a monarchical constitution. Their autocratic General will then reside in Rome, and the Pope will do with them what he did with the Dominicans, when he made Jandel, the Jesuit pupil, their General. Then the Benedictines will be for the Jesuits what the Gibeonites were for the Israelites, their “hewers of wood and drawers of water.”⁴⁸

Such a project for revolutionizing the Benedictines, who would then of course cease to be sons of St. Benedict, is reputed to be among the measures prepared for the Council. If the present condition of Rome be compared with earlier ages, as late as Benedict xiv.'s reign, or even twenty or thirty years later, there is truly an enormous difference, and this deep decay and intellectual collapse cannot be explained by external causes merely; inward and more hidden motives must be taken into account, which I think I well understand, but will not here speak of. That does not trouble our [pg 238] Roman clergy of to-day; they institute no comparisons, and don't even know the names of the men who dwelt in the same spot a century ago. And the thought of their own poverty of intellect and culture, if it ever occurs to the Roman clerisy, does not at all hinder their always admiring themselves, like Dante's Rachel,

“Mai non si smaga

Dal suo miraglio, e siedo tutto giorno

Ell' é de' suoi begli occhi veder vaga.”⁴⁹

Nineteenth Letter.

Rome, Feb. 8, 1870.—It is a most exciting drama that is being exhibited here, and notwithstanding much that is both little and painful in its details, one of great and moving import; and those who have the opportunity of inspecting its machinery more narrowly, can hardly at times avoid feeling very strongly on the subject. The figure of Laocoon, with the snakes coiled round him, is constantly recurring to my mind; for I seem to be witnessing the strategical arts and skilful evolutions of a general, who is trying to surround a little band of opponents with his immensely superior forces, so as to compel them to lay down their arms and surrender at discretion without striking a blow. The disproportion is indeed enormous; first there is the Pope, whose mere name still is a host in itself, and that Pope is Pius, who for twenty-four years has had such homage and flatteries heaped upon him as no Pope ever had before, [pg 240] and who is accustomed to shake the Roman Olympus by his nod. Then there are the Cardinals and Prelates, the whole spiritual staff of Congregations—the Papal family—all fully united and resolved, and the *contribuens plebs* of foreign Bishops, who are fairly caught in the net, and will not be suffered to escape without the bonds and chains of the most stringent decrees securing their obedience. On the other side stand from 150 to 200 Bishops, of divers tongues and nations and now for the first time united by a common need and a common danger, like a snowball liable to melt at the first breath of milder air, and fighting like those Spaniards of the Cortes, who, with one foot chained to a stone, compelled the Mexicans to spare their lives. One asks every morning in

doubt and terror, how far the solvents employed have attained their end? Many would gladly capitulate if only they were met half-way by tolerable conditions, and such would secure them a rather less cold reception on their return to their dioceses. Meanwhile the eyes and the hopes of all educated Catholics, not only in Germany but in Italy, France and North America, are fixed on the chosen band of 300 Bishops.

But how are matters likely to proceed? The Opposition is tough and tenacious. Every new *Schema* bears [pg 241] so unmistakeably the impress of the interests of either the Jesuits or the *Curia*, that the Bishops cannot help growing constantly more cautious, suspicious and reserved. And to make their designs still clearer, the Jesuits supply the practical commentary in their official journal, the *Civiltà*, to the effect that no measures of the Governments against the encroachments of the Church on the civil jurisdiction, or her summons to transgress the laws of the country, would bind the consciences of their subjects. The subjoined anathema against every one who refuses to acknowledge that laws are annulled by the ordinances of the Church (*i.e.*, the Pope), is a sorry consolation for the Bishops; for experience has shown too often that courts of justice and statesmen don't trouble themselves about the excommunications incurred in the discharge of their official duties. The Bishops accordingly foresee nothing but endless rubs and collisions with the civil power, as well as with whole classes of the population at home; and when the Jesuits are commended to them as pledged and triumphant allies in the contest to be waged against Governments, constitutions and laws, they generally shake their heads suspiciously and with no particular feeling of triumphant joy.

[pg 242]

The Pope's 300 episcopal foster-sons cost him 25,000 francs daily, and that makes the pleasant little sum of 1,500,000 francs for two sterile months, during which these doughty warriors have sat a good deal, but accomplished nothing by their sitting; for the old Roman proverb, "Romanus vincit sedendo," has not been verified here. The Pope is gradually getting frightened at this daily expenditure, and, after the fashion of great lords, who readily lay the blame of the failure of their own plans on the bad advice of their subjects, he said to-day, in an outbreak of disgust, "per furia di farmi infallibile, mi faranno fallire."

The proceedings of the Council must therefore be expedited and curtailed. At the same time nothing must be remitted of the matters it is to deal with and vote into canons and decrees. Therefore the order of business must be changed. Cardinal Antonelli says now that “the speeches have been too long and too many, and must be entirely put an end to; the Bishops must be content with handing over their observations in writing to the Commission of twenty-four or the Commission for Petitions.” He tries to sweeten the bitter draught to their lips by remarking that this decision is for their own advantage, for, after being so [pg 243] wearied out with the long sittings and listening to speeches, they must be glad to be relieved of the burden. The Bishops, however, experience no such joyful feeling, but say that the last vestige of conciliar freedom is now abolished. They have the more reason for saying so, since it is notorious that the Infallibilist and purely Romanist party is exclusively represented on the Commissions, so that it may be clearly foreseen that the remarks and suggestions of the liberal-minded and reforming Bishops will simply be thrown into the waste-paper basket, or, under the most favourable circumstances, be buried in the archives of St. Angelo. At the moment I am writing the new *Regolamento* has not yet been published, owing to the urgent requests and representations of certain Bishops. But to judge from Antonelli's statement, the authorities seem determined to drop the last veil, and show quite openly to the world that the Council has been arranged as a mere machine of Roman administration, and must therefore of course be forced back into the path from which it had wandered. Many a Bishop now looks back with painful regret to the Council of Trent, where, notwithstanding the haughty insolence of the Italians, the ambassadors of Spain and France acted as protectors [pg 244] to the foreign Prelates, and were a great check on the arbitrary violence of the Legates. Now, Antonelli assures every diplomatist who says a word on the unprecedented method of procedure, and the hostile character of the proposed decrees towards the State, that these things have only a theoretical and doctrinal significance, and that in practice the *Curia* will study a wise moderation, and place itself on a friendly footing with the Governments. He means, that when one fills one's arsenal with new and effective weapons, that is no proof that they will at once be discharged. I don't know whether this satisfies the diplomatists. Perhaps Count Trautmansdorff is satisfied, for his Government has repeatedly announced its resolve to wait quietly till the Council is over and the *Curia* is put in

possession of all the decrees and dogmas it wants. Then, when the new doctrines are already inserted in all the catechisms and taught in all seminaries and enforced in every confessional, it will be time enough to consider what line the civil power should take in the matter. M. de Banneville and the Paris Government do not seem to be of this opinion. I don't imagine they are minded at Paris so entirely to sacrifice the Bishops to the arbitrary will of the *Curia* and its [pg 245] paid majority, and for the last few days the French ambassador has been engaged in a lively telegraphic correspondence with his own Government. We may very soon expect important disclosures.

As far as I can make out, the conviction still prevails among the Roman clergy and their episcopal allies that the dogma of Infallibility in the third *Schema* will be accepted by the Council, at least in a somewhat modified form, but one easily capable of being extended and quite sufficient for present exigencies. They say, "We will first take the vote on the question of opportuneness, and a mere majority may very well decide that. It has decided already by the 400 or 410 signatures to the (Infallibilist) Address, and the Bishops who have themselves answered No, will be obliged to yield to this decision, and so to come to the vote on the dogma itself, *i.e.*, to declare whether they personally hold the Pope to be dogmatically fallible or infallible." The Romans expect that, when matters have come to this point, not a few Bishops—especially Ketteler of Mayence, and, it may be hoped, many more with him—will come over to their side and profess their faith in Papal Infallibility. In whatever form they clothe their belief, it comes to the same thing [pg 246] in the end. At last there will only remain a little band of obstinate Prelates who will protest. They may talk if they please, and then it will be proclaimed to the world, by an overwhelming majority of perhaps 700 votes, that it has become Infallibilist. Then might a new St. Jerome say, with greater force than the former one said of Arianism, "Miratus est orbis se esse factum infallibilistam." A Roman clergyman, who expressed this expectation to me with peculiar confidence, added that there had been a like occurrence at the Council of Trent and it would now be repeated. I perfectly understood him, and the matter deserves to be mentioned here as a striking parallel to certain recurring possibilities. The Council, which was meant to reform and thereby to save the Church, was brought to an early consideration of the universal neglect of Bishops to reside in their dioceses

and the need for recognising this duty as one of Divine obligation. But it appeared at once, in the first period of the Council, that the Court of Rome and its faithful Italians in the assembly had the strongest interest in preventing the assertion of this simple and logically necessary truth. For, as regards the past, it would have implied severe censure of the practice followed by the Popes since the beginning [pg 247] of the thirteenth century, which would be shown to be a constant violation of the Divine law; while, in regard to the present and future, it would have seriously limited the plenary power of the Popes, for it was always held a principle in the Church that no one could dispense from the law of God. But the non-Italian Bishops, and nearly all the Italians themselves, were at first in favour of declaring it to be “the Divine law,” so strong was the evidence. And it was seen clearly enough that from the divinely imposed obligation must again be inferred the equally divine rights and institution of the episcopate. Meanwhile the Jesuit General made his two famous speeches to show that all episcopal authority was a mere emanation from the Pope. For ten months, from September 18, 1562 to July 14, 1563, all sessions of the Council had to be suspended to prevent any decree being made on the subject; and at last, on July 14, 1563, the twenty-eight Spanish Bishops and “the Divine right of residence” succumbed to the majority of 192 votes, about three-fourths being Italians. *Absit omen!*

The *Civiltà* of February 5, 1870, in its article, “I Politicastri ed il Concilio,” has supplied a noteworthy commentary on the canons or decrees of the third [pg 248] *Schema*, which affirm the Church to be an institution armed with coercive powers of inflicting bodily punishments; for that is obviously the meaning. The “Politicastri” are those statesmen who imagine that the State has a sphere of its own, independent of the legislation of the Church and the interposition of the Pope. That, according to the Roman Jesuits, is a most abominable error. A law which contradicts a law of the Church has not the slightest validity for men's consciences. For the authority of a Council—and *a fortiori* of a Pope, from whom, on the Jesuit theory, Councils derive all their force and validity—is above the authority of the State.⁵⁰ Should the State therefore require obedience to a law opposed to an ordinance of the Council, it would do so without any real right (*senza vero titolo giuridico*), and, should it enforce compliance, would be introducing a suicidal tyranny. It is further explained that this by no means applies to those religious laws

only which rest on Divine ordinance, but also to those which are purely ecclesiastical, and therefore on Catholic principles are variable.

Let us take the twelfth of the *Canones de Ecclesiâ*, [pg 249] which anathematizes all who doubt the Church's power to inflict corporal punishment; and consider further that the Popes have most solemnly declared that by baptism all heretics are become their subjects, are amenable to the laws of the Church, and must, if needful, be compelled to obey them.⁵¹ Consider further that the Syllabus condemns the toleration or equality of different religions, and no doubt can remain as to what system it is intended to introduce.

The second Letter of the famous Oratorian and member of the French Academy, Father Gratry, has just come here, and has produced a great impression. It treats of the gross forgeries by which the way for the introduction of the doctrine of Papal Infallibility has been gradually prepared, first in the ninth and then in the thirteenth century; and dwells especially on the fact that the theologians—above all Thomas Aquinas, who rules [pg 250] in the schools, and his many disciples and followers—were deceived by these fabrications, and that even the Popes themselves were misled by them. Gratry's exposition is clear and convincing; but he goes beyond the middle ages. He shows how dishonestly the Breviary was tampered with at Rome at the end of the sixteenth century, and how, up to the present time the Jesuits, Perrone and Wenninger,—the latter in a truly amazing fashion—have followed the practice of citing fabulous or corrupted testimonies.

One grand result of the Council its authors have not foreseen or reckoned upon, which, however, has already attained alarming dimensions; I mean the scandal it has given. They seem to have really believed with a childish *naïveté* that the Council could be hermetically sealed up, like birds under a glass bell, and its members shut up apart,—that 3000 persons could be reduced to silence by a Papal edict about matters they feel there is the strongest necessity for speaking of. Such a notion could only grow up in the heads of Roman clerics, who are wont to look at the world beyond their own narrow sphere only through crevices of the open door, or through the key-hole. Only too much has become known. The Jesuits, the *Civiltà*, the

Univers, the [pg 251] *Monde*, *et id genus omne*, have done their best to reveal the sharp contrast of opposite parties, and the world of to-day, sceptically disposed as it is and little inclined to cover the shame and nakedness by turning away its face, is present at a double spectacle: it witnesses the system of force and intrigue by which a Council is managed, and it watches with keen observation the process of manipulating a new dogma. Men say now, what Cardinal Bessarion said before, according to an anecdote current here, that the way Saints were canonized in his own time made him very suspicious about the older Saints and Canonizations. In the same way the Protestant and Catholic laity, who are here in such numbers at present, say, “We know and see now how matters are managed in the Church when a new dogma is to be made; what artifices, and deceptions, and methods of intimidation are employed to gain votes. Must it not have been the same at former Councils?” I have heard even Bishops here say that such thoughts pressed upon them, and were severe temptations against faith. And if these things are done in the green tree, what shall be done in the dry? Is it different with you in Germany?

[pg 252]

Twentieth Letter.

Rome, Feb. 9, 1870.—In commencing the discussion on the Catechism the Council passed into the last stage of the peaceful proceedings, which are to

precede the battle on the claims of the Roman authority. The speech of Cardinal Rauscher, who is ill, was delivered by the Bishop of Gurk, and made a great impression. He was followed by Cardinal Mathieu, one of the best Latinists in the French episcopate, the Primate of Hungary and the Archbishop of Tours. After them Dupanloup spoke, who was again, as on the former occasion, not well heard. He lashed those who think that the cultivated nations of the Catholic world are to have a Catechism dictated to them by Rome. The Session was not favourable to the propositions, but men can no longer fix their minds on themes of lesser importance. All are thinking of the decisive contest which is imminent. Many indeed on both sides wish [pg 253] that it could be avoided. The threatening attitude of the policy of France has roused serious misgivings. It was known in Rome at the end of January, but the decisive instructions only arrived on Saturday, February 5, and produced a deep and unpleasant sensation. Hitherto the Court of Rome was able to hinder the withdrawal of the French troops, by threatening to take refuge under English protection at Malta; but with the good understanding that now prevails between the French and English Governments this is no longer possible. It is perfectly well known in the Vatican that neither of the two powers will stretch out a hand to uphold Papal absolutism. It is a proof of the strong impression produced by the French note that the Papal Court has kept it secret. No appeal is tried to Catholic public opinion or the loyal episcopate, for it is well ascertained that the Infallibilist doctrine has very different enemies from the temporal power. To Cardinal Antonelli it seems like a denial of the whole work of his life to stake the temporal power of the Pope for the sake of a new dogma. But if this is to be saved, the dogma must be sacrificed. So the Opposition now has the assurance that the neutrality and non-intervention of the Catholic powers is come to an end, and it is encouraged [pg 254] at the same time by the part the learned world has begun to take on its side, since the publication in Germany of the addresses which attest the antagonism of eminent Catholic scholars and professors of theology to the new dogma.

Nevertheless the minority is composed of heterogeneous elements, and it may be safely calculated that they will not all hold out to the last. Some opponents of the definition are friends of the doctrine, and oppose it on grounds not of a purely abstract or theological nature. No one has calculated the numerical proportion of these inopportunist to the real opponents of

Infallibility. Any serious discussion of the question has long been avoided, and many think it ought to be avoided, because therein lies the dangerous weakness of the party. The ground of inopportuneness, which had already been adopted in the Letter to the Pope from Fulda, was taken up from the first, in the hope of paralysing the majority by an imposing number of dissentients. They hoped to be strong by their numbers, and to look strong by a certain kind of unity. The theory of inopportuneness seemed to provide a common ground for the decided opponents of the dogma and for the timid and vacillating or moderate adherents of the [pg 255] doctrine itself. That a really united Opposition has been formed on this basis is mainly due to the Bishop of Orleans. He attacked the opportuneness with such a powerful array of testimonies in his famous Pastoral, that every one saw clearly the doctrine itself was involved, though he never entered in so many words on the theological question. The position he provided has served its purpose for two months, without the party being brought to a declaration for or against the dogma. It has served to bring in adherents to the Opposition, who in the strictest sense of the word belong to the Roman Court party, and to provide waverers with a comparatively innocent method of resistance. It has prevented the victory of the *Curia* in the days of their greatest ascendancy, but it is untenable for a permanence. The position of the inopportunists has the fatal disadvantage that it can be out-flanked. That would have happened, had the Bishops been separately requested to give their opinions “sub secreto,” with a promise that no public declaration in the Council should be desired.

Then, again, it is a position that can easily be mastered by means of the majority. A minority may be invincible on the ground of dogma, but not of [pg 256] expediency. Everything can be ventured to combat a false doctrine, but not to hinder an imprudence or a premature definition. In questions of faith one dare not give in; not so in questions of discretion only. And then the Council must have been sooner or later driven from the ground of inopportuneness, if it was not shipwrecked on the order of business; for it was a point of view the decision could not finally hinge upon, in presence of a preponderating majority.

The defection of part of the Opposition was thus only a question of time, though it became more difficult for individuals after each act done in union,

and many an inopportunist has advanced to theological contradiction of the dogma. But the attempt to make the rejection of the doctrine the principle of the party forced the contrast more and more on the minds of individuals. Among the Germans primarily, and in the groups of leading Bishops from different countries who took counsel together, a more determined spirit gradually developed itself, and it was seen that their adversaries made capital out of every sign of unclearness of view among the Opposition. They were constantly spreading reports that on the main point all were united, and that at most there were not above twenty opponents [pg 257] of the dogma, including only two Germans, who were adherents of Hermes and Günther; perhaps only five opponents in all, or none at all. In presence of these assertions a public declaration seemed necessary, less for the faithful at home than for non-Catholics, who ask about the doctrine. The Bishops of the Opposition told themselves that honour and episcopal duty demanded that a Bishop should not withhold his belief on a fundamental question, at a moment when all have to speak, the moment of danger. The very success of the inopportunist policy is no true success. It is no victory of the truth, when it is not openly proclaimed in the contest. Those who do not fight under the banner of their own convictions are not on equal terms with their adversaries.

Thus the view has been more and more making way, that not only must every definition be avoided as dangerous, but that the doctrine of the Roman theologians and their adherents in the Episcopate must be rejected as false. And this brought men more and more to the scientific ground. It was no longer a mere affair of personal conviction, but of direct evidence, and the moment was come for literary argument to assert its place in the proceedings of the Council. The position [pg 258] of the mere inopportunists became more difficult, and the band which held the party together was loosened. Their adversaries at once zealously availed themselves of this favourable crisis; nearly every Bishop of the minority was plied with various intermediate formulas and conciliar proposals. Attempts were made to sow disunion among the leaders; political jealousies at home, and whatever else could be made use of, were seized upon to undermine mutual confidence. Some were to be deceived by the phantom of a middle party, and were told that they might take a position as peacemakers at the head of a mediating section—of course in the

anticipation that every one who makes concessions and admits the principle of the definition will pass over to the majority. Against all these attempts the Bishops of the minority have, on the whole, though not without some wavering, kept firm and true. But still the transition to the strictly theological standpoint, where individual conviction on the question of Infallibility must be decisively recognised and represented, cannot be accomplished without an internal conflict and shaking of the party.

[pg 259]

Twenty-First Letter.

Rome, Feb. 11, 1870.—When once literature began to be brought to bear actively on the proceedings of the Council, the crisis could not long be delayed, for science, which has to do with truth only, knows nothing of diplomatic considerations, and makes no concessions to the requirements of the moment. It brings back the discussion inevitably from theory to fact, from the sphere of dogma to the sphere of history. In remorselessly exposing the inventions and forgeries which form the basis of the doctrine of Papal Infallibility, it necessarily attacks the whole ultramontane system of which that doctrine is the logical consequence. The fundamental refutation of the dogma is fatal to much in the specifically Roman theology and the modern claims of the Popes, which would not otherwise have been assailed in Council by any Bishop. Those who shrink from collision with

the *Curia*, and [pg 260] would desire to spare it a public exposure of error before the whole world, and who have therefore hitherto remained on the defensive, will now be driven further and placed in a position they would never have chosen. They see their adversaries in a light—whether as deceived or deceivers—which seriously disturbs their daily intercourse with them. For it is no longer possible to conceal by any periphrasis the fact that the spirit the Opposition has to combat is no other than the spirit of lying. And so, when the voice of honest science cannot be excluded, no peaceful issue is possible. The contest takes the form of an internecine strife against that absolute Papal system for which the Court had at first confidently expected to gain the almost enthusiastic sanction of the Council. The aid of science can be purchased at no cheaper price. No wonder then if the Bishops recoil in trembling before the weighty task of winning the victory for that view which specially prevails among learned Germans of this day, first in the Council, and then among the mass of the clergy and the faithful. There are few among them who are not inwardly conscious that they will themselves come in for some of the heavy blows.

Father Gratry's first Letter on its arrival at Rome [pg 261] roused serious reflection in many. His skilful handling of a subject familiar to all, and his repeated application of the solemn passage, “Numquid indiget Deus mendacio vestro?”⁵² together with his unmistakeable allusion in his division of mankind into “viri veraces” and “viri mendaces,” contributed to make clear the full significance of the contrast—to many for the first time. Döllinger's printed criticism of the Address was not calculated to quiet the excitement it caused. The Roman party, in the hope of effecting an internal split in the party, seized the handle which Döllinger's statement that he was in harmony on the main question with the majority of the German Bishops seemed to supply, and tried to extract a counter declaration from the Bishops. The first attempt, to induce the Archbishop of Munich to exert his authority, failed. Then the Bishop of Mayence brought the matter before the Assembly of German Opposition Bishops. He angrily disclaimed for himself any solidarity with Döllinger's view, and averred his belief in Papal Infallibility, saying it was only the difficulty and danger of a dogmatic declaration quite unnecessary in itself that made him an opponent of the definition. Had his motion been accepted, and the [pg 262] German Opposition renounced their hostility to the dogma and retired to the ground

of mere expediency, the complete victory of the Infallibilists would have been a matter of a few weeks only. But when the German Bishops rejected Ketteler's urgent demand, and decisively refused to give up their assault on the dogma, the half-and-half character and weakness of their position vanished, and they ceased to subordinate or sacrifice the theological standpoint to the question of expediency. And thus the difficult word has been spoken; they have already pronounced against the doctrine itself in the Addresses they have signed. The reproach incurred thereby does not, of course, apply in full force to the Bishop of Mayence, who has always told his colleagues that he is on their side on the question of opportuneness only. The Bishop of Rottenburg (Hefele) has already declared in his speech at Fulda that it is necessary to advance further and assail the doctrine itself. And he repeated this in reply to Ketteler's proposal. The great majority of the Bishops were unfavourable to that proposal. While in this way they testified their agreement with Döllinger, some of them—especially Strossmayer—declared emphatically for the œcumenicity of the Council of Florence. They [pg 263] have weighty reasons for this. The more strongly the minority hold to Döllinger's interpretation of the famous Florentine decree, the less can they afford to depreciate the authority of the Synod. For in their opinion it is just that decree which serves to expose the dishonesty of the other party, and to overthrow the extreme doctrine. It will do them good service too in the discussion on the *Schema de Ecclesiâ* and the new *Schema de Romano Pontifice*, which is now announced.

But while the German Bishops rejected Ketteler's proposal, and left to the *Civiltà Cattolica* and the Mayence *Katholik* the war against the Munich School, they did not venture to come to an open breach with the less homogeneous elements of their party, wishing to retain Ketteler on their side—who is as zealous against the Roman principles in Church and State as against German science—as an active ally in the contest against the *Schema*. For this end there have been consultations, especially between the Archbishop of Cologne on one side and the Archbishop of Munich on the other. The commotion produced by Döllinger's essay in the learned world of Germany gives them an opportunity for helping the minority over this discomfiture, and averting for the immediate moment of [pg 264] danger the threatened disruption. It cannot be denied that to a certain extent the latest declarations of German Catholics are very acceptable to the Bishops,

for the very reason that they partly emanate from men who belong to the more moderate opponents of Infallibility. It is a piece of good luck for the Bishops staying at Rome that men who are independent, and at a distance from the flatteries and threats of the Vatican, undertake to call things by their right names, that reason makes itself heard by the side of passion, and science by the side of authority. It is moreover very convenient that the materials can be used while the writer is disowned. But although the Bishops know well how to value the importance of the support given to their cause from Germany, yet this new movement is not altogether to their taste; their dignity demands that they should not succumb to pressure from without, or owe too much to the public press. A Bishop is indeed presumed to be a theologian. And as it is impossible that the considerations which for the moment are decisive in the Council should always be taken into account by writers, there cannot fail to be manifold embarrassments. From the intra-conciliar point of view it is easy to go too far. And then it may be [pg 265] regarded as almost inevitable that many Bishops should receive these manifestations of opinion from Germany with outward coldness, or reply by advising that it should be left in their hands alone to secure the victory of truth. In their eyes silence is in itself a kind of vote of confidence. A too zealous participation might almost look like a sign of doubt as to the Bishops having strength and perseverance and coherence enough to conquer. To be sure, none feel such doubts more strongly than the Bishops themselves, but nothing can better serve to give them the confidence in themselves which is so much to be desired as showing them that others feel it.

And thus among the German Bishops in Rome Hefele's view has triumphed over Ketteler's, the logical and decided over the half-and-half policy, and the difficult turning-point has been passed without loss or breach in the party. And not a day too soon! Next week a new *Schema* and a new order of business will bring the disunion and irritation in the Council to a point.

Twenty-Second Letter.

Rome, Feb. 15, 1870.—If I wrote a fortnight ago that the situation was essentially improved since the first weeks, this must be taken with important reservations. The most keen-sighted of the North American Bishops then said, “We have done nothing at all, and that is a great deal.” He thought it an important gain that of the proposals laid before the Council, the two *Schemata*, nothing had passed, and none of the objects for which it had been convoked had, up to that point, been attained. But this has only been the damming up of a stream which eventually bursts through the more violently, and carries away the dam with it. For the majority of 500, who are resolved to indorse everything and vote every measure proposed, holds firmly together, before and behind; while the minority, on the other hand, is in danger of being shivered to pieces on the rock of opportuneness.

[pg 267]

The *Schema* now under discussion, of a common Catechism for the whole Catholic world, is clearly connected with the general programme cut out for the Council; for if the new dogmas are fabricated, they will at once be inserted into this universal Catechism, and thereby inculcated in the simplest and most convenient manner on the youth and the whole body of the faithful. The Jesuits have found the experiment very successful in Germany with their own Catechism, and have thereby naturalized the doctrine of Infallibility gradually, with a precision rendered more explicit in each successive edition in the boys' and girls' schools, especially those conducted by nuns. The Catechism has also proved a great financial success, and thus whole countries have become tributary to the Order. In the same way the new Catechism of the Council will be a source of manifold profit to both the *Curia* and the Jesuits. The *Curia* treats the Council with scientific skill, like a patient who has first to be gently physicked, and then

has stronger doses given him by degrees. First came the *Schema* of philosophical and theological doctrine, then of discipline, and now the question of a common Catechism. Behind this looms the deeply-cutting *Schema* on the Church; [pg 268] and when that is triumphantly passed, the *Schema* on the Pope appears as the crown of the grand legislative work. While the former tractate propounds the *supremum magisterium* of the Church, as holding sovereign power over lands and seas, souls and bodies, in the last *Schema* this supreme *magisterium* crops out in the person of Pius IX., who now enters into the possession of the supreme dominion and powers marked out for him in the dogmatic chart, if we can speak of any marking out when, in principle, everything is laid claim to, and the master himself alone and conclusively draws the line of demarcation where he chooses. He presents himself to the world as infallible teacher and legislator in the realm of science, as supreme judge of the literature of the world, as supreme lord and master in all that pertains to religion, or is related to it, and as infallible judge of right and wrong in all points. Many will say with Polonius, “Though this is madness there is method in it.” Let us examine these principles more closely.

First, The Pope possesses the supreme and immediate dominion and jurisdiction, not merely over the Church in general, but over every individual Christian. Every baptized person is directly and immediately subject to [pg 269] the Pope, his ordinances, special commands and penalties. His power is “suprema tum in Ecclesiam universalem, tum in omnes et singulos Ecclesiarum pastores et fideles jurisdictio;” or, as the twenty-one Canons say, “ordinaria et immediata potestas.” Whoever disbelieves this incurs anathema.^{[53](#)}

Secondly, The Church stands as high above the State as heavenly beatitude above the profits and goods of this earthly life.—(*Can.* 13.)

Thirdly, Every one must therefore prefer the advantage of the Church to the welfare of the State, “Si quando videantur utilia regno temporali, quæ bonis sublimioribus Ecclesiæ et æternæ salutis repugnent, ea nunquam habebunt pro veris bonis, etc.”—(*Can.* 13 ad fin.)

Fourthly, The supreme *magisterium* of the Church, *i.e.* the Pope, whether alone or in union with a Council, has to decide what Princes and

Governments should do or leave undone in questions of civil society and public affairs. “De ipsâ agendi normâ judicium, quatenus de morum honestate, *de licito vel illicito* statuendum est pro civili societate publicisque negotiis, ad supremum Ecclesiæ magisterium pertinet.”

[pg 270]

Fifthly, As the Pope possesses not only the supreme office of teacher, but also the supreme right of coercion and punishment, he not only distinguishes as teacher what is and what is not permissible for States and nations, but he can enforce his decision on political matters by penalties upon every one—be he monarch or minister or private citizen. He has the right “devios contumacesque exteriori judicio et salubribus pœnis coërcendi atque cogendi.”—(*Can.* 12.)

Sixthly, Whenever a law of the Church conflicts with a law of the State, the latter must give way; and whoever maintains that anything forbidden by the law of the Church is allowed by the law of the State incurs anathema.—(*Can.* 20.)

These ecclesiastical maxims, which deprive the laws of the land of all force and of all obligation for the conscience, are partly those already in existence, partly those any Pope may issue hereafter whenever it pleases him.

Thus marriage, primary instruction and education, the toleration or suppression of dissenting communions, the jurisdiction and privileges of the clergy, the acquisition and control of ecclesiastical property, oaths, wills, and the whole of the unlimited domain taken into her [pg 271] hands and legislated for by the mediæval Church, and in short whatever comes under the head of permissible or forbidden—this, *en masse*, forms the sphere of the Pope's jurisdiction, wherein he rules with absolute and sovereign power, and puts down all opposition by coercion and punishments. Truly this reminds one of the Prophet's words, “The bricks are fallen down, but we will build with hewn stones; the sycamores are fallen, and we will plant cedars in their place.” Since Paul iv.'s time, 260 years ago, no Pope has so openly and undisguisedly spoken out the thoughts and wishes of his heart. The kernel of the doctrine, then, is this: there is on earth one sole lord and master over kings and subjects alike, over nations as over families and

individuals, against whom no right or privilege avails, and whose slaves all are. The only difference is that some, viz., the Bishops, can on their side rule and lord it in their dioceses as upper servants in the name of the Church or the Pope, so far as their master does not interfere to stop them, while all others are mere slaves and nothing more. This obviously goes far beyond the Syllabus. This is the Bull *Unam Sanctam* modernized and, so to speak, translated out of military language (about the two swords) into political and juristic [pg 272] terms. Innocent III., Innocent IV., and Boniface VIII., said that, “ratione peccati,” they could interfere anywhere, and bring any affair or process before their Court, for it belongs to the Pope to decide what is sin and to punish it. What is said here comes to the same thing, that the Pope determines what is or is not allowable, and acts accordingly.

It is a stately edifice of universal Papal dominion whereon the keystone of Infallibility, which bears and upholds the whole, is to be placed, so that every command and ordinance of the Pope, even in political matters, is infallible, as the Jesuit Schrader has so clearly and forcibly pointed out. And to this must be added further (according to Canon 9) a vast and infinite domain for infallible decisions, viz., “all that is requisite for preserving the revealed deposit in its integrity.” Who can specify what is included here, or fix any limits to it?

Two other links in this world-embracing chain are not visible, which are yet necessary for its coherence. The Interdict, which robbed whole populations of divine service and sacraments, must be restored in its ancient splendour, and the Pope's right to dispense from oaths must be distinctly asserted.

[pg 273]

The Fathers of the Council have daily opportunities of feeling how useful the temporal power is for the plenary jurisdiction of the Papacy. Were they assembled anywhere else than in Rome, there would be the possibility of holding a real Synod in the sense and manner of the Ancient Church, while the so-called Synod in Rome is in fact the mere painted corpse of a Council laid out on a bed of state.

Soul and freedom are wanting. On any other soil than that of the States of the Church, the Bishops could assemble in a room where they could debate and understand one another, while they are now forcibly detained in the

Council Hall. They could come to a mutual understanding by means of the press, by printed proposals or statements of opinion, weekly reports and the like. Anywhere else such treatment as the Patriarch of Babylon experienced would have been impossible; he has now taken refuge under the protection of the French Embassy. But here the King of Rome lends to the Pontiff the means of enforcing unreserved submission, and it is like the lion's den, “*vestigia nulla retrorsum.*”

Many a French Bishop has shared the experiences of the famous Lamennais thirty-eight years ago, who [pg 274] came to the Eternal City full of ardent devotion to the Chair of Peter and firm faith in its infallibility, and on his departure, after a long stay there, wrote to a friend, “*Restait Rome; j'y suis allé et j'ai vu là la plus infame cloaque qui ait jamais souillé les regards humains.*” I will not transcribe what follows, though it was lately read to me by a Bishop. It may be seen in his Letters.⁵⁴ But this I can testify: there are men in the French Episcopate who used to be zealous champions of the temporal power, but who would now bear its loss with great equanimity, if only the calamity of the decrees chartered for the Council could be thereby warded off.

Yesterday, February 14, the ice was broken at last. The Bishop of Belley for the first time mentioned the Infallibility doctrine in the General Congregation, observing that the Council should at once proclaim it and go home, as that was the only object they had been summoned to Rome for.

Meanwhile an instructive calculation has been made of the proportion in which the different nations and Catholic populations are represented in the Council. It appears from them that the Catholics of North Germany [pg 275] have *one* vote in Council for every 810,000 souls, and those of the States of the Church for every 1200, so that one Roman outweighs 60 Germans. It has been further ascertained that the 512 Infallibilists in the Council represent a population of 73,011,000 souls, while only 94 opponents of the dogma represent 46,278,000. With the Infallibilists one vote represents 142,570, with the Opposition, 492,320 souls.

Austria has now announced by her ambassador, Count Trautmansdorff, that the Government will not allow decrees in contradiction with the Constitution to be promulgated in the country. This threat will produce little

effect, for all the doctrinal decrees have full force throughout the whole Church from the mere fact of being promulgated at the Council; only the disciplinary regulations require to be promulgated in the various countries and dioceses. Thus the Council of Trent has never been promulgated in France, notwithstanding all the endeavours of the *Curia*, but the dogmatic decrees have always been in full force there as elsewhere.

[pg 276]

Twenty-Third Letter.

Rome, Feb. 16, 1870.—The order of business is now to be altered, which means that an end is to be put to the speeches. The Bishops are to hand in their views, scruples and suggestions in writing to the Commission for revising motions, which will use its own discretion as to noticing or leaving unnoticed the proposals made with a view to their being submitted to the Council. There will then, in place of a discussion, be a mere voting, which individuals may give their reasons for, if they have previously stated the particular point they wish to speak on and obtained leave for it. And in the new order of business, the Pope's right to make and promulgate decrees on faith with a mere majority is said to be emphatically laid down. When this and the anticipated and dreaded *Schema* “On the Pope” are promulgated, we shall see what attitude the Bishops will assume towards them. Both are now suspended like [pg 277] two swords over the heads of the Fathers. All

at last depends on whether the Opposition remains compact, or crumbles to pieces under the efforts of the curialists.

If the general war required by the principles of the new *Schema* against modern systems and governments, which conflict in numberless cases with the laws of the Church, is to be undertaken, the question arises, Where is the army to carry it on, and what weapons are to be employed? No doubt the trumpeters of the army are ready at hand, viz., the Jesuits of the *Civiltà* and the monastery of Laach, but it seems a doubtful look-out about soldiers. The Jesuits, indeed, command at present a considerable number of distinguished and wealthy females, but that will not go far in the great contest against laws, parliaments and governments. The Pope himself must principally supply the arms, which can only be the old ones of excommunication, interdict and processes of the Inquisition. Excommunication was formerly very effective, when the excommunicated could be proceeded against as heretics after a twelve-month, but that is no longer feasible. Interdict, too, is become a blunted instrument, which no Pope has ventured to make use of since Paul v. succumbed in his battle with Venice. The Inquisition only survives now [pg 278] for the 700,000 souls of the present States of the Church. That drastic means of giving up refractory populations *en masse* to slavery and spoliation, as applied by Clement v., Nicolas v., Julius II., and Paul III., cannot easily be adopted now. So they will be content for the time with establishing the principle, and must await more favourable circumstances for realizing it. But the Bishops are between two fires: they are discredited with Rome, because they must continue to acknowledge the civil laws, which are in fact condemned; they are exposed with their Governments and people to the constant suspicion of being on the watch for some political complication to secure the triumph, at least in particular cases, of the ecclesiastical principles recognised as valid at Rome—in other words, the Decretals—over the laws of the State.

It seemed to me important to ascertain more precisely the attitude of the Dominicans—who are still a powerful corporation, through their possessing such influential offices as the Inquisition, Index, Mastership of the Sacred Palace, etc.—towards Infallibilism. They have always been the standing rivals and opponents of the Jesuits, and before 1773 were often able to resist them successfully. Now, of course, everywhere out of [pg 279] Rome,

they are out-flanked and repressed by the Jesuits, while in Rome they have no influence with the Pope. Yet they too are all decided Infallibilists, and that because of their great theologian, Thomas Aquinas. That he himself became implicated in this notion only through means of the forgeries in Gratian, and of another great fabrication, with spurious passages of the Fathers, specially devised for his own benefit, they neither know, nor are willing to believe when told of it. They say they have once sworn to the doctrine of St. Thomas, and must therefore adhere to the Infallibilist doctrine introduced by him into the schools, to avoid perjury.⁵⁵

A certain feeling of discouragement betrays itself among many Infallibilists, and there is much in the occurrences of the last few weeks to account for it. Thus the Archbishop of Milan, whose diocese nearly equals in extent the whole States of the Church, has received an address from his clergy and people expressing agreement with his work against the dogma, which has greatly rejoiced him. And the news of the state of [pg 280] feeling in Germany is disheartening. Golden results had been reckoned on from the efforts of the Jesuits and their pupils there for the last twenty years. It was supposed here that a very considerable number of people beyond the Alps must be inspired with zeal for Papal Infallibility. When the impulse given by Döllinger evoked so many and such weighty expressions of opinion on the other side, it was confidently expected in Rome that a strong popular demonstration in favour of the dogma would burst out, like a mighty hurricane, from every district in Germany, as the 800 Jesuits at work there would easily be able to bring that to pass. But now it is evident that no single man of influence in the whole country will make himself responsible by name for this opinion, and that all who are eminent for authority and knowledge—especially historians and theologians—protest against the proposed new dogma. Even the Jesuit Catechism has not been able to effect everything in this respect. Can a new dogma be fabricated for Spaniards, Italians and South Americans exclusively? And even in North Italy an opposition is being manifested. It is a questionable policy to show to the German people so openly the gulf between their religious thoughts and desires and those of the [pg 281] Latin nations, and even to widen that gulf. And in what position would the episcopal signatories of the Fulda Pastoral find themselves, after giving such an explicit assurance to Catholic Germany, “that the Council would establish no new or different dogmas

from those already written by faith on the hearts and consciences of all German Catholics”? The faith and conscience of the German Catholics, both theologians and laity, have now spoken loudly and unequivocally enough. And it is utterly impossible for a German Bishop to return home from the Council with the new dogma ready-made in his hand, and say to his flock, like St. Paul, “Ye foolish Germans, who hath bewitched you?” “You don't know yourselves what you have hitherto held in your faith and conscience. See, here is the true bread for your souls, just brought fresh from the bake-house of the Council. This is what you ought long ago to have believed; be converted, and confess that to be white which you have thought was black, and that to be a divine truth which you have taken for an invention of man.” It cannot be presumed that a Bishop would willingly contemplate exposing himself to the ridicule of all Germany.

The rumour of a speedy prorogation of the Council [pg 282] is constantly growing more definite. As this depends on one capricious will, it is quite possible in itself. But some striking result would have first to be attained, some conspicuous act accomplished by the Council; or else the fraud would be too glaring, the nakedness of the land too strikingly exhibited to the whole world. To the question, why ten precious weeks had been idly wasted without a single decree being achieved, the only answer would be, that the desire to deprive the Council of all independent action had led to the machine being cramped and fettered till it was brought to a standstill altogether. In accordance with the advice of the Jesuits the whole Council had in fact been pre-arranged, and nothing was to be left to the Fathers on their arrival at Rome but to affirm the thoughts and formulate the decrees suggested by others. The *Schemata* prepared shall be read one after the other, and the Fathers shall say *Placet*, and to prevent their having any temptation to criticise and mangle and curiously dissect and combat the motions laid before them, the Sessions shall be held in a Hall where the speeches cannot be heard, and all discussion is impossible. That was the programme; the result has proved that the Court had judged rightly of about 500 out of the 700 members, [pg 283] but had deceived itself as to the remaining 200. Veuillot, who communicates the correct views about the Council daily to the French, has declared that it was right to deprive the Bishops of the freedom of evil (*qu'il ne fallait pas laisser aux Évêques la liberté du mal*). This beneficent care for the health of the Bishops' souls has

however been extended a little too far. Many of them are so ungrateful as to think they are treated too much like automatons, and that with the “liberté du mal” they have also been deprived of the “liberté du bien.” The Roman lists of names from which the Commissions had to be chosen are not forgotten. The right of proposing motions has been made illusory by the composition of the Commission appointed for examining them, and the arrangement for making the permission to bring them forward dependent on the pleasure of the Pope. And thus great uneasiness, not to say exasperation, prevails among the 200 Bishops. And on the other hand, the Pope has been for several weeks past in a chronic state of mingled indignation and astonishment at finding so many Bishops—even at Rome, in his own immediate neighbourhood—daring to think and say the contrary to what he, Pius IX., thinks and says.

[pg 284]

This rebellion of thought has not indeed yet been directly and openly manifested in the Council Hall. But when the *Schema de Ecclesiâ*, and with it Infallibility, really come to be discussed, then even within the sacred precincts of St. Peter's, and close to the Tomb of the Apostles—which the Pope had assured himself would inspire very different thoughts into the Bishops' heads—bold utterances of contradiction will be heard, and will resound throughout Europe, for “publicity discloses the Acheron of the Council.” The expected and decisive sealing up of 3000 mouths is at an end once for all, and even that most correct and devoted of Romanists, Veuillot, has declared in his *Univers* that such a silence of the grave is impossible, especially for the French, and has accordingly blurted out such of the secrets of the Hall as seemed to him desirable without scruple. Nor have the authorities taken it at all ill of him. But to hear Bishops publicly in Council, and in the hearing of the Papal Legates, proclaiming views diametrically opposed to those of the Pope—and that, too, in a question so fundamental and so completely dominating the whole future life of the Church—would be a scandal which must be averted even at the heaviest cost. Some time before the Indiction [pg 285] of the Council, in 1866, Pius himself formally asserted, in the most significant terms, and in presence of a numerous assemblage of foreigners who had come to offer him their homage, his true attitude towards the world and the Bishops, whether assembled or dispersed. He spoke in French, and in words carefully prepared beforehand,

and I give the speech precisely as it was reported, with the reporters' names subscribed, in the *Monde*, the *Union*, and the *Observateur Catholique* of April 1, 1866, p. 357:—“*Seul, malgré mon indignité, je suis le successeur des apôtres, le vicaire de Jésus Christ; seul, j'ai la mission de conduire et de diriger la barque de Pierre, je suis la voie, la vérité, et la vie. Il faut bien qu'on le sache, afin de ne pas se laisser tromper et aventurer par la parole de gens qui se disent Catholiques, mais qui veulent et enseignent tout autre chose que ce que veut et enseigne l'Église.*”

Whether he really intended thereby to deny the office of the Bishops as successors of the Apostles, which has always hitherto been recognised in theology, I cannot say. But this much is clear, that every Bishop who in any important question of faith differs from the views of Pius, departs from “the way,” swerves from “the truth,” excludes himself from “the life.” [pg 286] Nothing of the sort has ever been suffered at Rome; no dissent has ventured into the light of day. The censorship and the Inquisition have taken care of that. It would be a supremely dangerous precedent if that were now to happen for the first time, and with many Bishops of different nations for the dissidents. The contradiction between the Liberal Bishops and the Pope would be the more glaring, as Pius has only in the last few days addressed a very categorical letter to the Liguorian Jules Jacques on his own infallibility. He praises this man for having collected from the writings of Liguori his statements about Papal Infallibility, and thus exhibited the “sound doctrine.” The “unsound” doctrine cannot be freely proclaimed in St. Peter's, and besides it has such a peculiar power of infection, that for centuries Rome has surrounded herself with a threefold *cordon* and all sorts of disinfecting remedies against this epidemic. And accordingly, from the Roman standpoint, the adjournment of the Council must obviously appear to be in any case the lesser evil in comparison with so unheard-of a scandal. Just think of a philippic in the Council Hall against the infallibility of the Pope, an exposure of the errors of Popes—there in St. Peter's, close to the Vatican, and before 700 Prelates! [pg 287] That would indeed be, in the words of Daniel, the abomination of desolation in the holy place.

Moreover, an adjournment and subsequent reassembling would have this advantage, that the order of business and the locality could be changed. So long as these remain unchanged, it is impossible to speak seriously of a

Council, and if the Roman censorship prevents any complaints on the subject being heard, the *Curia* cannot conceal from itself that after the close of the Council the real state of the case will be universally recognised as a notorious fact, and the entire want of freedom or examination or discussion be insisted upon as a ground and justification for rejecting the decrees. But a Council universally questioned or rejected would be an endless source of embarrassment and distress for the *Curia* themselves. They would have at last to exclaim, "All I have gained is a loss."

These and the like thoughts are now occurring to many. The advice of the French Government, which would on all accounts gladly welcome an adjournment, the admonitions of Austria, which has at last, at the twelfth hour, receded from its attitude of coldness and indifference, and the knowledge that the two Protestant [pg 288] powers, Prussia and England, maintain the same views on the threatened decrees and intended ecclesiastical conquests, though without making any direct representations on the subject—all this more or less contributes to the gravity of the crisis. There are some drops of wormwood mingled with the joyous goblets quaffed daily to the Pope by the majority of 500 obsequious and courtly Latins. As the obedience of these Bishops and the Vicars-Apostolic, who can at any moment be deposed by Propaganda, is unlimited, they will vote the *Schemata* exactly as the Pope desires; but most of them do it at least with an inward repugnance, and say, like the Aragonese Cortes of old, "We obey, but we don't execute."

[pg 289]

Twenty-Fourth Letter.

Rome, Feb. 20, 1870.—The following classification of the French Bishops here according to their parties may be interesting.

The French themselves distinguish three factions, Liberal, Ultramontane, and the Third Party—*i.e.*, those who have signed no address, and have openly refused to do so. To the Liberal section belong Alby, Gaz, Marseilles, Nizza, Cahors, Mende, Perpignan, Bayonne, Montpellier, Valence, Viviers, La Rochelle, Luçon, Besançon, Metz, Nancy, Verdun, Annecy, Autun, Dijon, Grenoble, Paris, Orleans, Rheims, Chalons, S. Brieux, Vannes, Bayeux, Coutances, Evreux—thirty votes altogether.

The Ultramontanes are—Rodez, Aire, Nîmes, Angoulême, Poitiers (in the superlative), Belley, St. Diez, Strasburg, Le Puy, Tulle, St. Jean de Maurienne, Langres, St. Claude, Blois, Chartres, Meaux, Versailles, [pg 290] Amiens, Beauvais, Rennes (a malcontent Ultramontane), Seez, Moulins, Toulouse, Carcassonne, Montauban, Laval and Le Mans—twenty-seven votes.

In the Third Party, headed by the Cardinal-Archbishop of Rouen, are included Périgueus, Bourges, Tarantaise, Cambray, Arras, Nevers, Troyes, Pamiers, Tours—ten votes.

The Bishops of Digne, Fréjus, Toulon and Soissons are described as doubtful.

The English Bishops are similarly divided. Manning has only been able to get one single Bishop over to his side. Two, Errington and Clifford, have signed the Address against Infallibility. Six, including Bishop Ullathorne of

Birmingham, form a third party, who decline to sign anything on either side. It is the same with the Irish Bishops. The Romanized Cullen, whom the Pope forced as Primate on the Irish Bishops, with the same view as he imposed Manning on the English Bishops, against their will, is of course an Infallibilist, and would rejoice to enforce this dogma, which they detest, on the educated classes of Ireland by the help of the lower orders. Bishops Moriarty and Leahy (of Dromore) have signed the Petition against Infallibility. Archbishop MacHale of Tuam, and some others with [pg 291] him, belong to the third party, while the majority of the Irish Bishops see in Papal Infallibility a means for increasing their influence over the people. What view the South Italian Bishops take is illustrated by the following anecdote. An Italian statesman spoke to two of them about the immoderate claims contained in the *Schema de Ecclesiâ*, and asked them whether they really meant to assent to such decrees? "We cannot go against the Holy Father," was their reply. When he reminded them of the independent attitude of the German Bishops, they replied, "They can take that line, for they are rich." Another of the South Italians amused the Council by urging that the constant wearing of the long cassock should be enforced, because Christ rose and ascended into heaven in that dress.

Since the *Schema de Ecclesiâ* has been in the hands of the Bishops, it is clear to all that the Council has been convoked simply for the purpose of extending the power of the Pope and strengthening the influence of the Jesuits, and that everything is designed to subserve this one end. The Bishops are to forge chains for binding, first the secular powers, and then themselves and the whole clergy with them. The feeling they are [pg 292] possessed with is a bitter and painful one. They feel outwitted and caught in a trap. They were summoned to Rome, without being told a word of the objects aimed at or the matters to be dealt with; on their arrival they were strung and fixed, like the keys of a harpsichord, into the great conciliar instrument, and they find that they are to be used by the hand of the mighty musician to produce tones which sound to themselves most utterly nauseous. They know well enough that the most eloquent speeches and most forcible arguments don't change a single vote of the majority, who would remain firm and unmoved as the rock of Peter if a Chrysostom or Augustine was among them. In an outburst of disgust at the *Schema de Ecclesiâ*, a German Prelate, formerly Roman in his sympathies, exclaimed,

“This *Schema* deserves to be thrust down into hell.” One hears these men congratulating their colleagues who stayed at home under a presentiment of what was coming. The news of the adjournment of the Council, begun under such evil auspices, would be welcomed by them with delight.

But these reports of an adjournment are rather wishes than hopes. The prorogation would imply an [pg 293] admission that the Council had been a failure through the fault of the *Curia*, in the perversity of the regulations it imposed on the Bishops, and the extravagance of the measures it brought forward. “*Perissent les colonies plutôt qu'un principe*”—this saying, uttered in the Paris Convention of 1793, may often be heard here in various applications. The world will be enlightened in a few days by the publication of the new or altered order of business. It is not prorogation that is the immediate business, but the subjection of the minority more than ever to the rule of the majority and its wire-pullers who stand behind it, the outvoting them by majorities.

In French circles a paper called the *Moniteur Universel* is making no small sensation. It contains a detailed account of the proceedings of the Council, drawn up by a learned Frenchman residing here and under the inspiration of French Bishops. It is thoroughly authentic and carefully weighed—far the best and most accurate account of the Council in that language. You may perhaps find room for the following, which substantially confirms and partly supplements and rectifies my own statements:—

“The Council of Trent arranged the order of business for itself. In this case just the contrary has been [pg 294] done: everything was pre-arranged and imposed on the Council by the Pope, and even the secretaries and scrutators were named beforehand. No initiative is allowed to the Bishops; the Commission for examining motions is formed of the hottest Infallibilists and members of the *Curia*, but the final decision is reserved to the Pope. The proposers of a motion are not even allowed to explain and defend it, so that the freedom nominally conceded to the Bishops of proposing measures is rendered purely illusory. By the composition of the four Commissions, elected from Roman lists of names, all work of critical importance is kept in the hands of the few Infallibilists chosen for the purpose by the *Curia*, to the exclusion of 700 Bishops, among whom are all the German Bishops

who signed the Fulda Letter to the Pope, and the most influential French Prelates. In short, all Bishops not known to be thorough-going Infallibilists have been systematically excluded from the Commissions. Very different was it at Trent, where all the Fathers, divided into four Congregations, took a real part in the work. We must add the monstrous disproportion of national representation—the enormous and overwhelming preponderance of the Italians, still further strengthened by the host of Vicars-Apostolic, who can at any [pg 295] moment be deposed by the Propaganda without any legal formality. Thus the Italian Bishops alone outnumber all the French, German, Hungarian and North American together, though these last represent a population nearly three times as large. The weakness of the two French Cardinals, Bonnechose and Mathieu, who ought to have taken the lead, has frustrated the attempt to unite the French Bishops in a national group. Bonnechose consulted Antonelli, who said the French must not assemble in larger bodies than fifteen or at most twenty together. The evil consequences were at once shown in the elections.

“The Bishops are compelled by the Pope to hold their sittings in a place where at least a third cannot understand a word that is said, so that, *e.g.*, Cardinal di Pietro long since declared he had not really understood a single speech, and another Cardinal said that not twenty words of all the speeches had reached his ear. A really searching discussion and living interchange of observations and replies is out of the question. No speaker can hope to produce any impression on this audience. And thus the first *Schema*, which consists of 140 pages, was the subject of general discussion for weeks without any detailed discussion of the separate [pg 296] articles being arrived at, or any point certainly ascertained, notwithstanding the number of speakers. The only result was a great waste of time, bodily fatigue and a deep discouragement. Had the object been to satiate the assembly with speeches *usque ad nauseam* it could not have been better managed. It would be something if the Fathers could read the speeches they can't hear, but neither are they allowed to be read; the Bishops may not even print their addresses at their own cost. Thus many of them are wholly deprived of the opportunity of expressing their views, knowing that they will not be heard.

“Vigorous preparations were made for two years before the opening of the Council. There is matter enough for ten Councils, but it is only

communicated to the Bishops piecemeal, so that they can get no insight into the connection and plan of the separate propositions. Thus a ready-made Council has been put before 700 Bishops, which they are obliged again to unstitch like a web. As the Bishops had no means of gaining previous information, the Council is mostly deaf and dumb, and has at last got driven into a narrow pass from which there is no exit without a thorough alteration of the order of business. No one [pg 297] can say how it will be with the examination of the separate articles of the *Schemata*, and yet the Council ought to have most carefully weighed every word of decrees which are to be imposed on the world under anathema.”

[pg 298]

Twenty-Fifth Letter.

Rome, Feb. 24, 1870.—Since my last letter, the Council, whose movements for a long time were like those of a tortoise, has made gigantic strides. The Goddess of Insolence (ὕβρις) rules here just as the Greek tragedians—especially Sophocles—describe her. All rumours of an adjournment of the Council were partly well-meant wishes of several Bishops, partly produced by the fact of the Governments—the French in particular—earnestly desiring it. Here in Rome no one of the Vatican party has thought of it for a moment. All who know the real state of things and persons here must be convinced that the Council will certainly be gone through with to the end,

either completely—in full accordance with the well-calculated plan sketched out during the last two years for partly Jesuitizing and partly Romanizing everything in the Church, in theology and in the religious life, and carrying [pg 299] out centralization to the utmost extent—or that, at least, there will be no adjournment till the most precious jewel hitherto wanting to the Papal tiara, dogmatic Infallibility, has been inserted there. Then, and not till then, will the *Curia* have obtained the irresistible talisman which opens every gate, fulfils every desire and brings every treasure. That dogma is Aladdin's magic lamp for Rome.

There are three powers who wish to gain by the Council, and who decide on its proceedings and destiny—the Pope, the Jesuits, and the *Curia*. Among the members of the *Curia* there are indeed very few who have not long since made their calculations, with that appreciation of the realities of life which is peculiar to the Italian nation, and who do not know as well what a dogma is worth for Rome as people know what a man is “worth” in England. Every assailant of the dogma is their personal enemy; he is simply emptying their gold-mine. Nor is the doctrine less valuable and indispensable to the Jesuits, at this day more than before, since they no longer have to fear the rivalry of any other Order in making capital out of the prerogative of Infallibility.

As regards the Pope, he has constantly changed in [pg 300] his official life and vacillated from one side to the other, and those about him say that in many, nay in most, things he follows capricious and momentary impulses. But Pius is inflexible and immutable where he fancies he is a divine instrument and has received a divine mission, and that is the case here. He is persuaded that he is ordained by the special favour of God to be the most glorious of all Popes. Among his predecessors there are three to whom he seems to me to have a great likeness. I should say that he had chosen them as models, if I could assume that he knew their history. But Pius has never occupied himself with the past; he is purely the child of his age, and lives only in the present. The three are Innocent x., Clement xi., and above all Paul iv. He has in common with the first his strong experimental belief in his own personal inspiration without any theological culture. He resembles the second in giving himself up to the theological guidance of the Jesuits, and in his highhanded treatment of such Bishops as dare to have an opinion

of their own. And just as Paul IV. used to boast that hereafter men would be obliged to tell of the lofty plans conceived by an aged Italian who, as being near his death, might have rested and bewailed [pg 301] his sins,⁵⁶ so does Pius too desire in his old age to make great though peaceful conquests, and to establish the Papal sovereignty as a “rocher du bronze,” to borrow the phrase of another autocrat. With the help of the Council he hopes to render the universal dominion of the Papacy an impregnable fortress, by means of new walls, bastions and batteries, and to hand it down to his successors as an omnipresent and omnipotent power. He believes that the thoughts and desires of his soul are in reality the counsels of God made known to him by inspiration, and that if by following these counsels he accomplishes the deliverance of the Church and of mankind, it is the Hand of God which uses him as an instrument. And why should not Pius see a sign of his election to high and extraordinary destinies in the circumstance of his having already sat longer than any of his 256 predecessors, even Pius VI., on the apostolic throne? A history of his Pontificate has already been written in this sense by one of the Jesuits of the *Civiltà*, and Pius has the chapters read to him one after the other. I am told that a chapter on the Council is already written. The French Court historiographer, Vertot, who had to describe a Belgian campaign including [pg 302] the siege of a fortress, wrote the history of the siege before it was finished, and said quietly, “Mon siège est fait.” And thus the Jesuit historian of the Pope can already say, “Mon Concile est fait.” And in one sense the Council is indeed finished since the 23d inst.—finished by the new order of business.

If the merit of this clever invention is primarily due to the Cardinals on the Commission for revising motions, and the Jesuits who were probably taken into partnership with them, its introduction must be counted among the most eventful acts of Pius, past or future. If it is carried out and adhered to without opposition, it is unquestionably the most conspicuous of all the victories of the Pope. Margotti, the editor of the *Unita Cattolica*, will hardly be able to find words to do justice to the great day, February 23, 1870, with its boundless wealth of happy results, in the next edition of his work, *Le Vittorie della Santa Chiesa sotto Pio IX. A Te Deum* will have to be sung in every Jesuit College of the old and new world.

Great anxiety was felt beforehand about the new order of business. It was said that the Sessions were to be something more than mere votings, that there would still be speeches made, that the written memorials [pg 303] would not be so directly thrown into the waste-paper basket, but would be considered and—if they approved of them—made use of by the Commission. But everything will be settled by the Commission and by a simple majority of votes; the minority may talk, but only so long as the Commission and the majority choose to listen to them. *Væ victis!* The Council belongs to the Italians and the Spaniards, who are in close alliance with them: from henceforth to wish to reject any *Schema* or decree brought before it, is like wanting to stop water from flowing downwards. All the proposals of the minority for a change in the order of business have been left unnoticed. It had already been resolved that a debate could only be cut short by the votes of a majority of two-thirds, but this has been reversed. What will the French and Germans do now? This is naturally the question which trembles on every lip and is written on every countenance. Will they simply acquiesce in the *fait accompli* with a good grace, and obediently assume the rôle of the Greek Chorus in the drama of the Council—simply to reflect and moralize, but take no active part in the proceedings? The next few days will show. So much every one perceives; the order of business is the noose which, once fixed on the minority, [pg 304] cannot be got out of, and will only be drawn tighter and tighter till it strangles them at last. It is clear that the majority has the hide of a rhinoceros, from which every arrow shot by the Opposition, however skilfully aimed, glances off harmless. Where are now the wise and foolish virgins? “Give us of your oil, for our lamps are gone out,” must the Germans, French, and Spanish say henceforth to the Italians, and the answer will be more friendly than in the Gospel: “You need not buy any more oil; come over to our side and be content to use our store.”

It is hardly necessary to observe to your readers that everything which takes place here turns on the question of Infallibility. The new order of business is merely the outer covering for this kernel. “With Infallibility we have all we desire or need,” say the Italians, if that is gained we may “let the nigger go,” and can dispense with his services for the future. But for German theologians, whose hair stands on end at the new order of business and all it involves, I can find no other consolation than what they may derive from

the following Persian tale. An English ambassador sent to Persia—I think it was Morier—paid the usual visits at Teheran, and was introduced [pg 305] to the younger son of the Shah. He found him groping about blindfold in the room, and feeling for the furniture in it. The Prince explained this strange business by telling him that it was the rule for the younger sons to be blinded at the death of the Shah, in order to make them incapable of succeeding, and that he wished to prepare and practise himself beforehand for the fate impending over him. “Go ye, and do likewise.”

If the German theologians should still have courage to present an address to their Bishops, the subscription might be, “Morituri vos salutant.” Why have these theologians come to such utter discomfiture?

Here one already hears shouts of triumph; the day of retribution will soon come for those proud Transalpines, when they must bend their necks under the Caudine yoke of the new dogma, or await suspension, degradation, etc.

If German theology had long been decried and hated by the *Curia* and the Italian Jesuits, and if the *Civiltà* gladly took occasion to pour out its wrath on the scholars of “foggy” Germany, you may conceive the extent this fury has reached in Italian clerical papers and curialist circles, since it has become known that [pg 306] the most influential theologians have pronounced against Infallibility, and that not one—with the exception of a couple of pupils of the Jesuits—has said a word to defend it. It is well that one of the most distinguished Italians, a man whose devotion to the Church is unimpeached even in Rome, and whom the Pope has commissioned to write a history of the Council—I mean Cantù—has some years ago confessed and censured this characteristic of his countrymen. “To call laziness superiority, and evade the trouble of examining questions by depreciating them, this is only too much the habit of Italians, and then they mock at the ponderous, long-winded, hair-splitting Germans. But we must endure the reproach of negligence and thoughtlessness from the Germans, while we blindly accept falsified documents.”⁵⁷ [—](#)

Cantù has hit on the sore place there; for it is precisely their having pointed out the long line of numerous and systematic forgeries, on which the [pg 307] Roman claims of Infallibility are based, and which are used to further other aims of the Italians, that is the main ground of the hatred of the

Germans. And now Frenchmen too, like Gratry, come forward and publish these facts over land and sea in their cosmopolitan tongue and clear incisive style.

To return to what preceded the publication of the new order of business; in the last sittings of the Council coming events threw their shadows before. The Bishops of Carcassonne and Belley declared roundly that Infallibility must be proclaimed, and in order, said the latter, to restore the menaced or broken unity of the Church. The impatience and vexation of the authorities are constantly on the increase. Manning said there was only one way of stopping the definition, and that was to cut the throats of half the 500 Bishops of the majority. Of course the Prelates who heard him cried out, like the Emperor Charles V. at the Diet of Augsburg, when Count George of Brandenburg wanted to cut off heads for another doctrine, “No heads off! no heads off!” At the last sitting on the *Schema de Catechismo*, on the 22d, a scene occurred which presages what is to become the regular practice. The Bishop of Namur had said, in reference to some previous attacks [pg 308] on the Breviary, that no one who spoke against it could be a good Christian. For the information of your readers I must premise a few words here. The Breviary is a collection of prayers and lections for the clergy, introduced by Rome, consisting chiefly of psalms and passages from the Bible and the Lives of the Saints.⁵⁸ The *Curia* has used this, like so many other things, as an *instrumentum dominationis*, and a number of fables and forgeries devised in the interest of the Papal system have been interpolated into it. The French Church had long since adopted the precaution of employing a Breviary of her own, much better and purer than the Roman. It was against observations made about this in the Council that the harsh comment of the Bishop of Namur was directed.

[pg 309]

Twenty-Sixth Letter.

Rome, Feb. 28, 1870.—Our last letter closed with an account of a scene in the Session of February 22, occasioned by some attacks on the Roman Breviary. The Bishop of Namur had maintained that no one who attacked it could be a good Christian.

Haynald was one of those who had censured the present condition of the Breviary, and he now replied to Bishop Gravez that in criticising it he had the Fathers of Trent and the Popes themselves for accomplices (*complices*). A tempest broke out at these words. But Haynald went further and said, with reference to Bishop Langalerie of Belley, that the majority, with their proposals for new dogmas, were the cause of the disunion which had broken out in the Church, and that it would be much better for the heads of the Church to confine themselves to preserving the ancient doctrines in their purity, instead of adding new [pg 310] ones. The Church had succeeded very well with the old doctrines. At this first open attack in Council on the Infallibilist project the storm grew fiercer, and Capalti seized the bell of the President, De Angelis, rung it violently and forbade the speaker to proceed. “Taceas et ab ambone descendas,” he exclaimed. When Haynald went on all the same, a wild cry broke from the majority. The Archbishop of Calocsa at last came down, and so great was the excitement that the sitting was closed and the next postponed to March 2.

Meanwhile more attention and care than before has been devoted in Paris to what is going on at Rome. The Emperor and his present ministers understand the gravity of the situation; they know what would be meant by such journals as the *Monde* and the *Univers* daily appealing to infallible Papal decisions, and under their authority calling in question every institution and law of France, and proving beforehand to their readers that there is no obligation in conscience to submit to them, because the Pope has directly or indirectly signified his disapproval. Archbishop Lavigerie of Algiers brought back word to Cardinal Antonelli, on returning to Rome from his mission, that France was in no condition to tolerate the definition of Infallibility, [pg 311] which might lead to a schism, since not only the

whole body of State-officers, but the writers, and even the Faubourg St. Germain, were opposed to the new dogma. Antonelli is not apt to be much influenced by such representations, which he views as mere idle threats; he is spoilt by the courtly flatteries of the ever obsequious M. de Banneville, whom he has managed completely to disarm. He has three devices of domestic diplomacy by which he knows how to make excellent use of both Banneville and Trautmansdorff. At one time he says, "It is not we—Pius, the *Curia* and I—who want the dogma, but the foreign Bishops, and we should be encroaching on the freedom of the Council by impeding them. And we ought not to subject ourselves to that reproach." Then, for a variety, he adopts another line. "The Pope," he says, "has all he wants already, and the dogma of Infallibility would not give him anything more. As it is, and with a Council assembled, all the decrees emanate from him and receive from him their validity, and he can summon or dissolve the Council at his pleasure, so that it only exists by his will and would crumble into dust without him. It is therefore the interest of the Bishops, not ours, that is in question here, and they will know well why [pg 312] the dogma is so valuable to them." His third formula is, "Every good Christian believes the doctrine already, and therefore little or nothing will be changed in the Church by defining it, and we have not the least desire to use the new decree for calling in question the existing compacts and Concordats. We shall gladly leave alone the concessions we have already granted." These resources of the Cardinal have hitherto sufficed. But new powers and demands seem to be coming to the front, which his diplomatic counters will no longer satisfy. I have copies of two letters of Count Daru, of January 18 and February 5. These official expressions of opinion from Paris have made the *Civiltà* Jesuits bitterly angry, and their famous article on the *Policastri*, in its original form, contained a violent attack on the French statesmen, who were classed with the other ministers and diplomats in such ill repute at Rome. But this roused the alarm of the supreme authority, and so the Jesuits had to eat their own words, and to substitute for their attack a high commendation of Count Daru and the loyalty of France to the Concordat. There is some good in having the articles of the *Civiltà* regularly revised in the Vatican. I understand that it is intended at Paris to send a special ambassador to Rome to the Council.

Meanwhile the Bishops of the minority are consulting how they shall deal with the new order of business. It was announced to the Fathers at the Session of February 22 that, in accordance with these new regulations, they must hand in all their observations on the first ten chapters of the *Schema de Ecclesiâ* in writing within ten days.

Archbishop Spalding of Baltimore has not receded from his ludicrous notion that his Infallibilist formula is milder and more tolerable than that of the 400. He has laid it before the thirty-five French Bishops (of the minority), who have unanimously rejected it. Its essence consists, as was mentioned before, in asserting that everybody must receive with unconditional inward assent every Papal decision on every question of faith or morals or Church life. On all theological principles such faith can only be accorded in cases where all possibility of error is excluded, or, in other words, where a revealed truth is concerned; and therefore to accept this formula would be to set aside the limitation of Papal Infallibility, hitherto recognised even in Rome, to decisions pronounced *ex cathedrâ*. And thus, in the crush and confusion of the innumerable and often contradictory decisions of Popes, theology would degenerate [pg 314] into a lamentable caricature of a system—“science” it could no longer be termed—involved in hopeless contradictions. If the good Spalding had the slightest acquaintance with Church history, he would know that he was bound, in virtue of his inward assent paid to all Papal decrees, first of all to reject his own orders as invalid.⁵⁹

And now I must notice more particularly what Bishop Ketteler has published against me in some German newspapers. He says that in the telegram of February 13, published in the *Allg. Zeitung* of February 15, he has found the opportunity he had long desired for convicting the writer of the *Letters from Rome* of building up “a whole system of lying and deceit.”⁶⁰ It is “an indescribable dishonesty,” a “detestable untruth,” etc. His short letter bristles with such accusations. The untruths he complains of are the following:—

[pg 315]

(1.) The telegram called the statement made by Bishop Ketteler and his ally, Bishop Melchers, a “proposal.” He replies that it was only a

“communication.”

(2.) It treats the occurrence as a “negotiation,” whereas it was only a “short conference.”

(3.) There was no debate with “a serious opposition.” The Bishops indeed had expressed different views, and some had disapproved Döllinger's pronouncement, while the others thought only certain individual Bishops might have occasion to come forward against it. (They accordingly understood Ketteler's “communication” just as my informant did, and therefore spoke out against accepting it.)

(4.) Ketteler did not hear any Bishop say, as stated in the telegram, that Döllinger really had the majority of (German) Bishops with him.

And now let us compare Ketteler's account, deducting the abusive comments subjoined to every sentence, with the—of course extremely compressed—account in the telegram, and we shall find the two in substantial agreement. The Bishop is obliged to interpolate something into the telegram, in order to find fuel for the fire of holy indignation his delirious fancy has betrayed him [pg 316] into. He quarrels with me fiercely for saying there was a debate and a negotiation, whereas there was only a conference; but I never made use of those words. He says he made no motion, but he himself recounts statements of the Bishops which show clearly that they understood his “communication” as an invitation to do as he did. Only one somewhat important point of difference remains, viz., whether the Bishops named in the telegram said what they are there reported to have said or not. Bishop Ketteler can only say that he did not hear them say it. But considering that in an informal meeting of forty or forty-five persons, broken up into groups, a great deal is said which every one in the room does not hear, and that I received my information the same day from one who was present, I still adhere to my assertion that they did say it. For the rest, I am much indebted to Bishop Ketteler; he assures us that he has long desired an opportunity for saying all the evil he can of me and my Letters. He has now made a grand onset. If he had found anything in the eighteen long Letters before him better suited to his purpose, he would certainly not have taken refuge in such petty trivialities and, like a boy with snowballs, have flung what has turned into water in his hand. He

has [pg 317] thus unwillingly given testimony to the truthfulness of my Letters. And for this I pardon him his exaggerated rhetoric, but will not suppress the remark made by an Englishman who knows mankind well: “There are certain women, says Fielding, always ready to raise a cry of ‘Murder, fire, rape’ and the like, but that means no more in their mouths than any one else means in going over the scale, Ut, Re, Mi, Fa, Sol,” etc.

[pg 318]

Twenty-Seventh Letter.

Rome, March 8, 1870.—“Habemus Papam falli nescium!” The Bishops of the Manning and Deschamps party are in raptures; all Rome, say the Infallibilist devotees, is in the highest spirits. The great doctrine, on which, as all the Jesuits and their disciples assure us, hinges the salvation of humanity and the regeneration of science and literature, was published on March 6 in the form of a supplement to the *Schema de Ecclesiâ*. The Pope bears witness of himself that he is infallible as teacher of the Church, and the great majority of the Council will readily assent. Already they are exulting in that moment of triumph when the Pope from his throne in the Hall, “sacro Concilio approbante,” and amid the pealing of all the bells in Rome, will proclaim to the world that it is now fortunate enough to possess an infallible teacher and judge in all questions of faith and morals, guaranteed by God Himself. Day and hour for [pg 319] the proclamation

will be chosen with the greatest deliberation and foresight, and here another ground for clinging so pertinaciously to the present Council Hall comes out. It was thought quite incomprehensible why “the master” insulted 750 aged men by compelling them, in spite of all wishes and representations and the evidence of his own senses, to hold their sittings in a Chamber so utterly unfit for the purpose. In a city so abounding in churches and halls as Rome this seemed an act rather of ill-tempered caprice than of hospitable care. It was known of course that the previous expectations of the Vatican had been disappointed, that it had been hoped the *Schemata* would be received by acclamation or by storm, as it were, without discussion, and that the Hall had been chosen on the very ground of its acoustic defects being adapted to that end. Now however a new recommendation of the Hall betrays itself. At a certain hour on a clear and cloudless day the rays of the sun fall exactly on the place where the Pope's throne stands, so that Pius may hope, by help of careful arrangements about the time, to stand in a glory of sunlight at the moment when he announces to the world the divine revelation of his own infallibility. It is on this wise, as we said before, that he has had himself represented [pg 320] in the memorial picture of the proclamation of the Immaculate Conception. At the Coronation of Charles x. of France doves were let fly into the church. And so in Rome also a dove might be trained, so as to make it hover above the Pope at the moment of his apotheosis being proclaimed by his own mouth, which would make the effect quite irresistible.

In this state of things the eyes of all men are turned on the Bishops united, or rather not united but only assembled, in Council. The great majority are much in the disposition of the Athenians, when Alexander sent word to them that he had become a god, and wished to be worshipped as such. The popular assembly cried out that, if Alexander really wished to be a god, he was one. So say 300 Bishops: “We eat the Pope's bread and drink his wine and rest under his roof, so—let him be infallible.” And 100 Bishops say: “We are nothing but titular Bishops, with no dioceses or flocks; from whom but the Pope do we get our titles? So—let him be infallible.” Others again say: “We call ourselves Bishops or Vicars-Apostolic by favour of the Pope, and during his good pleasure. Let him then be infallible.” Lastly others say: “The *Curia* has us in its power, and we need it at every step; [pg 321] the Pope must be infallible, since he desires it.” Thus we have 550 born

infallibilists. And to them must be added those whom the Italians—*e.g.*, Mamiani—call more curtly than courteously “gli Energumeni stranieri,” prelates of the Manning type *et id genus omne*, who really take part as volunteers in this campaign for the triumph of papal infallibility and the domination of souls. Many, like Sieyès formerly, will vote “la mort et sans phrase,” but we shall read of unctuous motives alleged by the volunteers for their votes. They want infallibility for themselves as well as others; for themselves, because then there will be no further need “to dig,” for which they have “neither hand nor foot,” but all doctrines will be received ready made, measured and cut out by the Jesuits and stamped and guaranteed as genuine in the Roman printing-office; for others, because thereby every doubt or suspicion or inconvenient demand in matters of doctrine will be summarily got rid of and suppressed.

It is three months to-day since the Council was opened. Viewed from without, the circumstances could hardly have been more favourable; in national diversities and universality of representation the assembly surpassed all former Councils, nor was it so obvious at the [pg 322] beginning that under this bright outside was concealed a crying and iniquitous inequality of representation, and that here again the mastery was placed in the hands of the Italians. But how have all hopes been deceived now, and who had thought of this lamentable upshot!

Lamartine desired of his age that Italy should produce “des hommes et non de la poussière humaine.” For three months have these 750 prelates been assembled—in theory the very flower of the Catholic world, the pastors of 180 million souls, men with a rich experience at their back. They were at once separated into two parties, one of 600 and the other of about 150. On which side are the men and on which the human dust? What have these 600 done in the three months they have been together, what have they brought to an issue, and what thoughts or sparks of intelligence have been struck out of this daily contact with so many high dignitaries from the four quarters of the world? Their utter sterility, aimlessness and poverty of thought—their passively resigning themselves to a mere assent to the thoughts and words of others—all this, when watched close at hand, makes a painful impression. It is true that European history since 1789 has accustomed us to the infirmities and follies and the unproductiveness [pg 323] of great

deliberative assemblies; it has become an every-day phenomenon, and in our days one's expectations from an ecclesiastical assembly can only be of the most moderate kind. There is no fear there of rash and hasty decisions or revolutionary measures. But La Bruyere's saying, "A great assembly always becomes a rabble," is verified even at Rome, and the Italians of 1870 have already begun to emulate the example of their ancestors in 1562. Just as the majority at Trent knew how to reduce a disagreeable speaker to silence by wild cries and coughing and scraping with their feet, so is it now at the Vatican Council. It is the humiliating feeling of intellectual impotence and of deficiency alike in knowledge, eloquence and mind, as compared with the minority, from whom almost everything emanates that can be called life or thought in the Council. They feel their abject littleness, in their thankless rôle of being a mere echo of the *Schemata* and Canons proposed, and having to present in so unadorned and undisguised a form that "sacrificio dell' intelletto" which the Jesuits so eagerly commend. The honour of being afterwards lauded, as one of the 600 organs of the Holy Ghost at this Council, has to be purchased rather dear. But we cannot in fact come to close quarters and converse with [pg 324] these Bishops of the majority, without being reminded of the reply of a Dane to a Frenchman, who said to him (before the Revolution) that the highest Order in France was that of the Holy Ghost. "Notre Saint Esprit est un éléphant," answered the Dane. But the situation is almost too serious for such thoughts.

A synopsis of the outstanding measures has been presented to the Council. There are altogether 51 *Schemata*: 3 on "Faith," 28 on "Discipline," 18 on "Religious Orders," 2 on "Oriental Church affairs:" of these 39 have not yet been distributed, and 46 not discussed; 12 are in the hands of the Bishops, of which 5 have been already discussed and are to be again presented and examined, after being modified by the Commission. This is obviously matter enough for two years' work; yet the Council Hall and the hitherto irresistible and invulnerable majority will conspire to push the 51 *Schemata* expeditiously through the Council, unabbreviated and hardly altered. If only the master at last praises and rewards his servants!

Meanwhile 34 French Bishops have signed a Statement of Protest against the new order of business. I hear that the perversity of deciding doctrines by counting heads is emphatically dwelt on. The same document [pg 325] has

been subscribed by 33 German Bishops, with certain additions. Cardinals Mathieu and Rauscher, while professing their agreement, did not think it well to sign. Some 10 or 12 Germans have accepted a shorter but more precise and pointed address, maintaining the same principles. Some Orientals too have signed, while the deliberations of the Americans, on the other hand, came to no result.

Such declarations are necessary for the outer world and for the satisfaction of their own consciences, but they can hardly be expected to produce any effect, nor do the signatories themselves anticipate any important change being made in the new *regolamento*. Would that their representations were formal protests, declaring that they would take no further part in an assembly lacking the necessary conditions of a true Council! But neither the French nor Germans could resolve on that. It would be hard even for a man like Dupanloup, who may be reckoned a leader of the Opposition, openly to contradict his own earlier writings about the Pope. The question suggests itself, If Pius, before his infallibility is made a dogma, has said, “I am the way, the truth, and the life,” what will he say when his apotheosis is accomplished? What words of human language [pg 326] will suffice adequately to denote the sublimity of his position? A former saying of a member of the Italian aristocracy, well known for his witty remarks, occurs to me, “Gli altri Papi credevano esser Vicarii di Christo, ma questo Papa crede che nostro Signore sia il suo Vicario in cielo.”

We live here in the place whereof Tacitus wrote eighteen centuries ago, “Cupido dominandi cunctis affectibus flagrantior est.”⁶¹

If infallibility is defined, every member of the Roman Congregations has the pleasing certainty that he possesses “divinæ particulam auræ.” Pius is as firm and resolved as ever; the Jesuits have told him that, if the new dogma produces any confusion and scandal in the Church, it matters nothing—other dogmatic decisions have led to great confusion, but have remained triumphant; in a hundred years all will be quiet. Father Piccirillo, the editor of the *Civiltà* and special favourite of Pius, has consoled other prelates in the same way.

The *Schema de Ecclesiâ* has been compared with the lecture notes of a Jesuit Professor at the Collegio Romano, and the two are shown to agree

precisely. [pg 327] Even the most abject *Placet*-men of the majority feel rather ashamed of this; they had not quite expected to be summoned to Rome, simply in order to formulate the lecture notes of a Jesuit into dogmatic decrees for the whole Church.

An individual so insignificant intellectually, that I never expected to have any occasion for mentioning his name, and who is regarded in German circles as the standing joke of the Council, a certain Wolanski, has just been placed on the Congregation of the Index, as censor for German books. He would be utterly incompetent even to transcribe the work of a German theologian for the press. But in Rome they like, from time to time, to give a kick of this sort to foreigners.

Postscript.—I have just been put in a position to tell you something of the contents of the episcopal protest against the new order of business. In respect to the thirteenth article it is objected, that in former Councils a method of voting simply designed to secure expedition (“eo expedito modo”) has never been adopted—a form “quo nullus certe alius gravitati et maturitati deliberationis, imo et ipsi libertati minus favet.” It is added, that even in political assemblies the right is [pg 328] granted of demanding that votes should be taken by calling names. It is not rapidity of decision, but prudence and the utmost possible security, that is the important point. “Quod in Concilio maxime refert, non est ut cito res expediatur, sed ut caute et tutissime peragatur. Longe satius est paucas quæstiones expendere et prudenter solvere, quam multo numerosiores proponere et decurtatis discussionibus suffragiisque præcipitanter collectis res tam graves irrevocabiliter definire.” The document goes on to protest against the regulation for first counting the votes of those who assent to the proposed decrees, and not till after this has been done of those who reject them. This is quite wrong; “Cum in quæstionibus fidei tutius sit sistere et definitionem differre, quam temere progredi, ideo conditio dissentientium favorabilior esse debet, et ipsis prioritas in dandis suffragiis excedenda esset.” The memorialists further desire that, in the definition of a dogma or the establishment of a canon armed with anathema, the votes should be orally given by *Placet* and *Non placet*, not by rising and sitting down. And then great stress is laid on the point of dogmas not being decided by a mere majority but only by moral unanimity, so that any decree opposed by a

considerable number of [pg 329] Bishops may be held to be rejected. The Bishops say, “Cum dogmata constant Ecclesiarum consensu, ut ait Bellarminus,” moral unanimity is necessary. There is a further demand or request of the Bishops, “ut suffragia patrum non super *toto Schemate* et quasi *in globo*, sed seorsim super unâquâque definitione, super unoquoque Canone, per *Placet* aut *Non placet* sigillatim rogentur et edantur.” The Fathers should also be free, according to the Pope's previous arrangement, to give in their remarks in writing. But the following is the most important passage:—“Id autem quod spectat ad numerum suffragiorum requisitum ut quæstiones dogmaticæ solvantur, in quo quidem rei summa est et totius Concilii cardo vertitur, ita grave est, ut nonnisi admitteretur, quod reverenter et enixe postulamus, conscientia nostra intolerabili pondere premeretur. Timeremus, ne Concilii Œcumenici character in dubium vocari posset, ne ansa hostibus præberetur, S. Sedem et Concilium impetendi, sicque demum apud populum Christianum hujus Concilii auctoritas labefactaretur, ‘quasi veritate et libertate caruerit,’ quod his turbatissimis temporibus tanta esset calamitas ut peior excogitari non possit.” On this we might however observe with all respect, that a greater calamity is quite conceivable, [pg 330] and that is the sanctioning of a doctrine exegetically, dogmatically and historically untenable by an assembly calling itself a Council. The Protest ends with these words:—“Spe freti futurum ut hæ nostræ gravissimæ animadversiones ab Eminentissimis vestris benevolenti animo accipiantur, earumque, quæ par est, ratio habeatur, nosmet profitemur: Eminentiarum Vestrarum addictissimos et obsequentissimos famulos.”

[pg 331]

Twenty-Eighth Letter.

Rome, March 9.—The decree on infallibility appeared on Sunday, March 6, just a year after the project was announced in the *Allgemeine Zeitung*. The Bishops knew three weeks before, through an indiscretion of Perrone's, that it was drawn up. But its extreme and unqualified form will have taken many by surprise. Men could hardly believe that the Roman See would publicly confess so huge an excess of ambition, and itself court a reproach of which the Catholic Church may indeed be cleared, but the Papacy never. The circumstances preceding the appearance of this composition, which will be a phenomenon in the world's history, are hardly less remarkable and significant than the text itself.

It was decided on February 21, at a meeting of the French Cabinet presided over by the Emperor, to send a special ambassador to the Council. A despatch [pg 332] to this effect was forwarded to Rome the same evening. The notion so greatly displeased the Marquis de Banneville, that he delayed carrying out his instructions and sent word of his anxieties to Paris. Here he said quite openly that he could remain no longer, and must go to Paris to get the decision reversed. He contented himself however with sending an *attaché* to France. At last, on March 1, the design of the French Government was communicated to Cardinal Antonelli, and three days afterwards, on March 4, the Marquis de Banneville came to receive his reply. The Cardinal was unfortunately prevented by an attack of gout from seeing him. And thus the answer has been given in the unexpected form of a dogmatic decree.

Not less remarkable is the coincidence of the decree with the publication of Count Daru's Letter. Its publication, which proclaims to the world the policy of the French Cabinet towards the Court of Rome, has excited the greater sensation in Rome, as it could not have emanated from any ordinary correspondent. The letter was only known to the English Government, and there was no copy in England except in the hands of the Ministry. It cannot be supposed that it would be offered for publication without the connivance of [pg 333] Count Daru himself, and this conjecture is confirmed by the

tone of the *Français*, Count Daru's organ, on the subject. It was open to it to disavow the letters, which are addressed to a private individual, and not, as the *Times* incorrectly stated, to a French prelate. But instead of seizing on this loophole, the *Français* says that the private letters of the minister contain nothing different from his public despatches. What gives these things the greater weight is that they imply the probability of interpellations, in Paris as well as in Florence, and the ministry must be presumed to be determined to persist to the end in the path it has entered upon.

But the clearest light is thrown on the act of the *Curia*, when we look at its relation to the simultaneous movement among the minority.

The new order of business seemed to many calculated to bring the internal split in the Opposition to the surface. To accept it was equivalent to accepting the dogma itself. To reject it was to intimate the resolution not to surrender the rights of Bishops, of whom St. Thomas says, “*Obtinens in Ecclesiâ summum potestatem*,” and therefore not to recognise the Pope's infallibility. But it has just been explained in the most [pg 334] emphatic terms in Father Gratry's Letters, which are in the hands of all the Bishops, how difficult it is to coquet with the Jesuit dogmas without falling into the old Jesuit system of morality. However, this much desired division only occurred on a very limited scale.

The Opposition resolved to protest against the order of business. The Protest is said to have been drawn up by skilful French hands, and was subscribed on March 4 by thirty-four French Bishops, and another, signed by almost the same number of German Bishops, was presented to the Legates two days later. A very high estimate is formed of its importance here. According to the Roman view the majority of the Council has no better right than the minority to proclaim a new dogma, for the right belongs to the Pope alone, who can just as well elevate the teaching of the minority as of the majority into a dogma. And therefore, in maintaining that no dogma can be defined without the universal consent—the moral unanimity—of the Episcopate, and that a Council which receives a dogma without that consent is liable to be rejected as not free and Œcumenical, the Bishops are not only protesting against the threatened encroachments of the

majority, but just as much against the claim of the Pope to define dogmas by his own [pg 335] authority. I have lately cited the words of Pius IV. on that point. In putting forward and defending their right and qualification to be witnesses of the faith and representatives of their Churches, the Bishops are not only vindicating a position very difficult to assail, but at the same time shaking the principal foundation of the present Council. In the first place the minority represent relatively far greater numbers of Catholics than their adversaries, and in the next place the bulk of the majority is artificially swelled by a crowd of prelates who really represent no Churches and only bear witness for themselves. That many of them have been simply created to give their services at this Council, is notorious. According to the official Roman register, fifty-one Bishops *in partibus* were named between June 1866 and August 1869. By every one of these creations the Pope has neutralized by his own plenary power the vote of an Archbishop of Paris or Vienna; in other words, he has put some favourite Roman monsignore on an equality, as regards the decisions of the Council, with a venerable Church containing more than a million of souls. The presence of such elements in the assembly gives grounds for doubting whether it can be regarded as a real representation [pg 336] of the whole Church, and so this declaration of the Bishops is like knocking a nail in the coffin of the Œcumenical Council.

I have mentioned that the Protest of the French Bishops was handed in on March 4. That day was the beginning of the decisive crisis for the Opposition. The adhesion of the Germans was next awaited; it followed on the 6th March, and their example is pretty sure to be followed by other nations. The prospect of this danger, combined with the news from France, brought the long preconceived resolve of the other side to sudden and immediate maturity. A few days before they had not intended to come forward with the decree yet. But now the great object was to cut short any further development on the part of the Opposition, and, if possible, to hinder the German Protest. The existing situation seems even to have influenced the form of the decree. For a moment the French middle party—Bonnechese, Lavigerie, etc.—had fancied a professedly moderate formula would be carried, but now the counsels of the most determined infallibilists prevailed, and the Pope, in great visible excitement, gave his assent to the decree in the form in which it has been published. This took place on March 5. The [pg 337] decree is dated March 6. With the view of stopping the

German Protest, they did not wait for the next sitting to distribute the printed copies to the Fathers in Council as usual, but sent them direct to their houses. This was the answer to the protesting movement.

Considering that none of the former addresses of the minority—some twelve have been presented—have been taken the slightest notice of, there were of course the best reasons for anticipating no better fate for this last. But it has served another purpose. It was an intimation on the part of the signatories that their patience has reached its limits. The Protest did not indeed pledge them to any definite course of action. But it certainly imposes on them the duty of not tolerating anything further of the same kind, and not lending a hand to any decision affecting the whole future of the Church, under conditions they have themselves declared to imperil the authority and solidity of the Council. Either the Protest means nothing, and the signatories are as persuaded of its worthlessness and insincerity as their adversaries, or it means that they will not allow the great dogma to come on for discussion unless they obtain an assurance that no dogma shall be proclaimed by Pope or Council without a moral [pg 338] unanimity. The *Curia* have known how to give so emphatic an expression to their contempt for the Opposition, that even the sharpest and bitterest words would show less scorn and insolence than their act. By choosing the precise moment, when the minority declare that their conscience is troubled and in doubt about the legitimacy and result of the Council altogether, for bringing forward the very decree which has all along been the main cause of that doubt and trouble of conscience, they proclaim plainly and emphatically that they know the Opposition regards its own words as nothing but words, and that there is no earnest manly decision or religious conviction behind them. The conscientiousness of the Opposition, *i.e.* of the most distinguished French and German Bishops, could not be put to a prompter, a more crucial, or a more decisive test.

How will this test be borne? How will the doctrine of the Church and the honour of two nations be saved? The events of the next few days will decide.

Twenty-Ninth Letter.

Rome, March 15.—Livy relates that, in the battle at the Thrasimene Lake, the combatants on either side, Romans and Carthaginians, felt nothing of the earthquake under their feet. Here in Rome it is not so much the heat of the contest that makes the great body of Bishops unconscious of the moral earthquake which has begun to shake the Church, for there is no strife in the ranks of the majority, and their intercourse with the other party is very small. But every one thinks first of his own home and diocese, and the Italians, Spaniards and South Americans—nearly 500 prelates in all—have abundant cause for reckoning on absolute indifference and ease, on a passive and generally willing assent. In those countries it is only money questions, the contest about Church property, that stirs men's minds. How much is to be left to the clergy or taken from them, that is the question here. And the Bishops hope that papal [pg 340] infallibility will give some added force to the papal decisions on the inviolability of Church property.

Among the Opposition Bishops many are still in good spirits and full of confidence. “We are too many, and we represent too considerable portions of the Christian world, for our resistance to be ignored and our votes thrust aside,” is what many of them still assert. But the dominant party don't admit this. Antonelli says: “As soon as the Pope promulgates a decree with the assent of a great number of Bishops, he is infallible, and therefore a minority of opposing votes need not be attended to.” Naturally—for he, like other Italians, moves in the circle of papal infallibility which he, as

advocate and financier, considers to belong to the “grandes idées de l'Église.” He would certainly, if asked, agree with the view of Cardinal Jacobazzi, about 1530, that the Pope could hold an Œcumenical Council with one Bishop only and issue an infallible decree. The state of the case is this: if the decree is published by the Pope with the assent of the majority of the Council, it is ruled that the gift of infallibility has all along resided in the Popes alone, and that the supreme authority in dogmas has only been derived to General Councils from them, whether by their taking part in [pg 341] the proceedings or confirming them. On this theory, even a very considerable number of opposing Bishops have no rights; the Pope could issue a dogmatic decree with the minority against the votes of the majority, for he and he alone would always be the organ of the Holy Ghost. Either no reply will be given to the complaints of the Bishops about the new order of business, any more than to their previous memorials, or they will be told that it is reserved to the Pope to settle whether a decree or *Schema* voted by a majority only shall be promulgated, since he, being alone infallible, can do what he pleases. In this sense the silence of Section 14 may well be interpreted.

All the talk about “inopportuneness” is now quite at an end. I had predicted that from the first. Any Bishop who wanted to discuss now, whether it was the right time for making the new dogma, would be laughed at rather than listened to. It has been decided by 500 Bishops with the Pope that the decree is opportune, and in saying that the question is about the truth of articles of faith, not their convenience, they have reason and history on their side.

There are said to be 100 Opinions or Objections of the Bishops about or against the *Schema* on the Church, [pg 342] already in the hands of the Commission of Faith. Among them is the memorial of an eminent German Bishop, whose bosom two souls seem to inhabit, and who therefore occupies the singular position at once of a friend of papal infallibility and an opponent of the definition and member of the Opposition. He read his paper in the meeting of German Bishops, and it was received with general approval, in spite of the pungent comments it contained on the new order of business in connection with the publication of the *Schema* on infallibility a few days later, as being a disgrace to the Council and the Church.

Count Trautmansdorff and M. Beust have received from Antonelli one of those quieting and entirely conciliatory answers that clerical statesman is so fond of pouring forth in all directions.⁶² Its substance is as follows: in theory, and as regards what the scholastics called universals, where high and far-reaching principles have to be established, the Church is inexorable; [pg 343] there she cannot abandon an iota of her claims, and must draw and force home the sword of anathema. She must therefore necessarily pronounce modern civilisation, with its freedoms, a medley of soul-destroying errors, must raise the banner of coercion and forcible suppression, and accordingly condemn freedom of religious profession and of the press. But in practice—in Concordats and special Indults and concessions of graces—the Pope is not so strict and inexorable; there he is open to negotiations, and the separate Governments can obtain from him as a favour the actual toleration of what in theory he most solemnly condemns, of course only *durante beneplacito*, so long as it pleases him and the Governments behave well and don't deserve to be punished by the withdrawal of their indults and privileges. And that is so long as circumstances remain unaltered, for it is self-evident that, as soon as the temper of public opinion and the political situation become such as to offer any prospect of an ecclesiastical pretension being successfully urged, the indult will be abrogated and the practice conformed to the theory. Antonelli always has both pockets full of such distinctions between the strict and hard theory and the mild and indulgent pliability in practice, and [pg 344] no diplomatist leaves him without such consolation. De Banneville has always been satisfied with the fare thus set before him by the Secretary of State. Trautmansdorff has so far the advantage, that the doctrines of Church and State imposed by the Court of Rome on the Council give the Austrian Government a very convenient handle for declaring the legal abolition of the Concordat, which is practically torn to pieces already; for with a Pope who has become infallible and feels himself called to be the supreme judge of right and wrong, though there may indeed be an armistice, no real and genuine peace and no treaty is possible.

Moreover nothing can be more convenient and elastic than the theory Antonelli expounds with all the unction of priestly diplomacy to the representatives of the European Governments. It makes everything—persons and institutions, governments and peoples—ultimately dependent

on the indulgence and favour of the Pope. By the higher and divine law, so runs this doctrine, everything in the world should properly be differently arranged; the censorship of the Holy Office, religious coercion and clerical immunities, in a word the whole system of canon law, should flourish everywhere in full vigour as in the States of the Church. [pg 345] But the Vicar of God is merciful; he condescends to the evil condition of States and of mankind, and does what is so easily done in Rome, he dispenses—for at Rome obsolete laws are maintained simply to supply matter for dispensations,—he declares his readiness to tolerate what in itself is to be condemned, out of regard for the unfavourable circumstances of the age, and thus all at last falls under the sceptre of the Pope, who rules at one time by favour and dispensations, at another by strict law. Constitutions and laws will be allowed to exist for awhile, and until further notice. This however is no recognition of them, but only an “indult,” for which sovereigns and statesmen and nations must be thankful while it lasts, but which may at any moment be revoked.

The plan of acclamation, announced by the Jesuits as far back as February 1869, still counts many friends. There are 600 episcopal throats ready to shout, and these prelates had the rather get the affair settled in that summary fashion, because they would then be spared the hearing of things which bring a blush to many a face. For the Opposition Bishops could bring forward reasons and facts which, if once spoken in this place, would make a powerful echo and come unrefuted [pg 346] before the present and future generations. Of all possible questions that of infallibility is certainly the one which can least be discussed here and before 275 Italian prelates. What has happened in the last sittings, the exaltation of some and the bitterness of others, gives no hope of a quiet examination, but on the contrary leads us to expect that the majority will make the fullest use either of their physical preponderance or of the new rights given them by the Pope for reducing their adversaries to silence. Many who are resolved to gratify the Pope's desire by their *Placet*, are apprehensive that the objections of their opponents might leave the unpleasant taste of an unanswered argument in their mouths, and that the sting of a vote given without adequate knowledge and examination might remain fixed in the conscience of the Bishops. In this connection the answer of a North American Bishop of the infallibilist party is significant. He said that he remembered having heard, when in the

theological class in his seminary, that the condemnation of Pope Honorius by the Sixth Council meant nothing, and now in his old age nobody could require him to study and examine the question for himself.

Since the appearance of Gratry's Letters, what is most [pg 347] especially dreaded is the mention and discussion of the forgeries and fictions that have been perpetrated for centuries past in the interest of the Papacy. Should they really come to be spoken of in the Council Hall, one may be quite prepared for Legate Capalti, even if he is not presiding, striking his bell till it bursts. The Italian and Spanish majority would sooner let a speaker teach Arianism and Pelagianism than touch on this sore. Cyprian, pseudo-Isidore, Anselm, Deusdedit, Gratian, Thomas Aquinas and Cyril—these are now terrible names, and hundreds here would fain stop their ears when they are uttered. “Is there then no balm in Gilead, no physician?” Just now a theologian or historian would be worth his weight in gold, who could produce evidence that all these forgeries and inventions are genuine monuments of Christian antiquity, and that the whole edifice of papal absolutism has been built up with the purest and most conscientious loyalty to truth. For this “horse” they would now, like Richard III. of England, offer a kingdom. For the first time the world, with a free press in full possession, is to accept a new dogma with all its extensive belongings—to accept it in faith, at a time when historical criticism has attained a power against which Rome is impotent, and when its conclusions [pg 348] pass into the literature and the common consciousness of all thinking men with a rapidity hitherto unprecedented. The works will soon be counted not by hundreds but by thousands, which relate and make capital out of the fact that from the year 500 to 1600 deliberate fraud was at work in Rome and elsewhere for disseminating, supporting, and finding a basis for, the notion of infallibility. If they imagine in Rome that they can escape this power by means of the Index and similar fulminations, such as some French Bishops have hurled at Father Gratry, that is like sending a couple of old women with syringes to put out a palace on fire.

The leader and oracle of the infallibilists, Archbishop Manning, knows something of the contradictions of history to his pet dogma. He has heard something of the long chain of forgeries, but he demonstrates to his associates by a bold method of logic, that it is an article of faith that is at

issue here, and that history and historical criticism can have nothing to say to it. “It is not, therefore, by criticism on past history, but by acts of faith in the living voice of the Church at this hour, that we can know the faith.”⁶³ The faith which removes mountains will be equally ready—such is [pg 349] clearly his meaning—to make away with the facts of history. Whether any German Bishop will be found to offer his countrymen these stones to digest, time will show.

Of what French infallibilists are capable has been evidenced in the case of Bishop Pie of Poitiers, who is, next to Plantier of Nîmes, the leader of this faction. He introduces into his Lenten Pastoral the history of Uzza, who wanted, with a good object, to support the tottering Ark, and was punished by being burned to death. The Ark, he says, is the Church and its doctrine, and whoever touches it with the best intentions, be he layman or priest, commits a grievous crime and audacious sacrilege, which must bring down on his head the most terrible wrath of God. The animals, which draw the waggon containing the Ark, are the Bishops. If then, proceeds Pie, any of these oxen swerve from the road and kick (*regimbent*), there are plenty more at hand to bring back the cart into the right track, for—and here the oxen suddenly become horses (*coursiers*)—all the steeds of the sacred cart do not stumble at the same time. Thus does this prelate expound to his flock the position of the majority and minority at the Council, and for their full consolation [pg 350] he adds: “Moreover there is one supreme and divinely enlightened driver of the cart, who is liable to no error, and he will know how to deal with the shying and stumbling of the horses.” According to Bishop Pie therefore, the waggon of the Church is sometimes drawn by horses—the Opposition who make *sou-bresaut* and *écarts*; sometimes by steady-going oxen—the great majority,—and among these last the Bishop of Poitiers with amiable modesty reckons himself. If the readers of the *Allgemeine Zeitung* doubt whether a highly respected leader of the majority and member of the Commission on Faith has really written such nonsense, I can only refer them to the document itself, which will no doubt be reprinted in the *Univers* or *Monde*.⁶⁴

There are many indications that the wishes of the clique of zealots, who wanted to get the infallible Pope made out of hand on St. Joseph's day, will not be realized, but that a longer interval will have to be allowed. The

Schema “on Faith” prepared by the Commission, viz., by the above-named Bishop Pie, and containing [pg 351] the philosophical and theological matter for the Council, was to have been distributed last week, and even Bishops of the minority had received professedly confidential notice of it; but no such distribution took place. So the Session of this week too will fall through, and it is not easy to see how this first fruit of the Council can well be imparted to the expectant world before Easter. And here I constantly come across the view that the postponement of the discussion on the grand *Schema de Ecclesiâ*, with the article on infallibility, is done with a purpose. The Opposition is still too strong and compact; it is hoped that some members will be detached from it every week, and that several will leave Rome; some Austrians are gone already. Everything depends on making the Opposition so small and weak, that they may be walked over, and may seem only to exist as a captive band of German Barbarians to grace the triumphal procession of the Latins, and then to be surrendered to those “exécuteurs des hautes œuvres de la justice de Rome,” MM. Veuillot and Maguelonne, the editors of the *Univers* and the *Correspondance de Rome*.⁶⁵ This delay is of course a severe trial of [pg 352] patience for the majority who are hungering after the new bread of faith.

I will not conceal that even among the highest Roman dignitaries the infallibilist dogma provokes expressions of discontent. Are they honestly and sincerely meant? The voting will show. The *mot d'ordre* has gone forth to correspondents of foreign journals, to say that the whole Opposition is thoroughly broken up, and that some are deserting and the rest running away. But as yet these are wishes rather than facts. As far as I can see, the French and German Bishops, who wish to maintain the ancient doctrine of the Church and reject the new dogma, hold firmly together. Some Bishops said, directly after the publication of the supplementary *Schema* on infallibility, that their only choice lay between a schism or a false doctrine; nothing else was left them except to resign their Sees. And your readers would be astonished if I could venture to mention their names—names of the highest repute.

The war of extermination against the Theological [pg 353] Faculties of the German Universities is to be energetically carried on. The Bishop of Ratisbon's measure is only a premonitory feeler. Some particular exceptions

however might be made, as long as the chairs were filled by pupils of the Jesuits. The German College is now to be the nursery for professors of theology and philosophy at German Seminaries and High Schools. This reminds one of the Alexandrian Psaphon, who kept a whole aviary of parrots, and taught them to scream, "Great is the God, Psaphon," and then let them fly, so that they carried over land and sea the fame of his godhead. In Rome there is fortunately an abundance of such aviaries. There are colleges here for England, Scotland, Ireland, France, Germany and Hungary, Belgium, Poland, and North and South America, and thousands of their inmates have already been indoctrinated in Psaphon's fashion.

[pg 354]

Thirtieth Letter.

Rome, March 20, 1870.—At last the greatest theologian of Catholic England, in fact the only man of learning there who would be called in Germany a real theologian, has spoken out in the great controversy. Dr. Newman is superior of the Birmingham Oratory. It has long been notorious that he deplored the condition of the English (Catholic) Church, which has for many years been brought under the convert yoke, and sympathized with the old Catholics, both clergy and laity, who are now crushed under it; so much so, that the convert party there tried to brand him with the reputation of heterodoxy, and strangers intending to visit the illustrious Oratorian were

warned not to incur suspicion by doing so. Newman had accordingly maintained a persistent silence in the controversies going on in England, desirous as everybody was and is to know his judgment upon the question which is now [pg 355] “gladius animam Ecclesiæ pertransiens.” But in the midst of this silence he had opened his heart, in a letter to a Bishop who is a friend of his own, on the uncomfortable and dangerous position into which an “aggressive and insolent faction” has brought the Church, and disturbed so many of the truest souls. He says:⁶⁶

“... Such letters, if they could be circulated, would do much to reassure the many minds which are at present distressed when they look towards Rome.

“Rome ought to be a name to lighten the heart at all times, and a Council's proper office is, when some great heresy or other evil impends, to inspire hope and confidence in the faithful; but now we have the greatest meeting which ever has been, and that at Rome, infusing into us by the accredited organs of Rome and of its partisans (such as the *Civiltà* [the *Armonia*], the *Univers*, and the *Tablet*) little else than fear and dismay. When we are all at rest, and have no doubts, and—at least practically, not to say doctrinally—hold the Holy Father to be infallible, suddenly [pg 356] there is thunder in the clearest sky, and we are told to prepare for something, we know not what, to try our faith, we know not how. No impending danger is to be averted, but a great difficulty is to be created. Is this the proper work of an Œcumenical Council?

“As to myself personally, please God, I do not expect any trial at all; but I cannot help suffering with the many souls who are suffering, and I look with anxiety at the prospect of having to defend decisions which may not be difficult to my own private judgment, but may be most difficult to maintain logically in the face of historical facts.

“What have we done to be treated as the faithful never were treated before? When has a definition *de fide* been a luxury of devotion and not a stern, painful necessity? Why should an aggressive, insolent faction be allowed to ‘make the heart of the just sad, whom the Lord hath not made sorrowful’? Why cannot we be let alone when we have pursued peace and thought no evil?

“I assure you, my lord, some of the truest minds are driven one way and another, and do not know where to rest their feet—one day determining ‘to give up all theology as a bad job,’ and recklessly to believe henceforth [pg 357] almost that the Pope is impeccable, at another tempted to ‘believe all the worst which a book like Janus says,’—others doubting about ‘the capacity possessed by bishops drawn from all corners of the earth to judge what is fitting for European society,’ and then, again, angry with the Holy See for listening to ‘the flattery of a clique of Jesuits, Redemptorists, and converts.’

“Then, again, think of the store of Pontifical scandals in the history of eighteen centuries, which have partly been poured forth and partly are still to come. What Murphy inflicted upon us in one way M. Veuillot is indirectly bringing on us in another. And then again the blight which is falling upon the multitude of Anglican ritualists, etc., who themselves, perhaps—at least their leaders—may never become Catholics, but who are leavening the various English denominations and parties (far beyond their own range) with principles and sentiments tending towards their ultimate absorption into the Catholic Church.

“With these thoughts ever before me, I am continually asking myself whether I ought not to make my feelings public; but all I do is to pray those early doctors of the Church, whose intercession would decide [pg 358] the matter (Augustine, Ambrose, and Jerome, Athanasius, Chrysostom, and Basil) to avert this great calamity.

“If it is God's will that the Pope's infallibility be defined, then is it God's will to throw back ‘the times and moments’ of that triumph which He has destined for His kingdom, and I shall feel I have but to bow my head to His adorable, inscrutable Providence.

“You have not touched upon the subject yourself, but I think you will allow me to express to you feelings which, for the most part, I keep to myself....”

Thus writes Newman in most glaring contrast to Manning. The latter was long nothing but his admiring disciple, and does not possess a tenth part of the learning of his master. He owes simply to his infallibilist zeal acquired in Rome his elevation to the Archbishopric of Westminster, to which the

Pope appointed him, in anticipation of his present services, against the will of the English Catholics and the election of the Bishops. The Roman correspondent of the *Standard* having published extracts from Newman's letter, he took occasion to come forward and say that he had no wish to conceal that he “deeply deplored the policy, the spirit, the measures of various persons [pg 359] lay and ecclesiastical, who are urging the definition of that theological opinion” (of papal infallibility), while on the other hand he has “a firm belief that a greater power than that of any man or set of men will overrule the deliberations of the Council to the determination of Catholic and Apostolic truth, and what its Fathers eventually proclaim *with one voice* will be the Word of God.”

No one knows better than Newman that, next to the Jesuits, two of his old Oxford friends and disciples, Manning and Ward, are the chief authors of the whole infallibilist agitation. Well for him that he does not live in Manning's diocese! In the English clerical journals, *e.g.*, the *Weekly Register*, the fact has lately several times come to light, that English priests who utter a word against infallibility are promptly reduced to silence by threats of suspension and deprivation. Every infallibilist, who has the power, is also a terrorist, for he feels instinctively that free and open discussion would be the death of his darling dogma. Under these circumstances it is very significant that some of the English Bishops are bold and honest enough to speak their minds plainly, to the effect that the English Catholics had gained all their political rights on the repeated assurance, [pg 360] and with the express condition, that the doctrine of papal infallibility would not be taught and received in the English Church, and that on that ground they have felt bound to repudiate this opinion. The chief among these Bishops are Clifford, Bishop of Clifton, and Archbishop Errington.⁶⁷

I can give you the precise facts of the affair about Montalembert's Requiem from the most authentic sources, and it is worth while to do so, for it speaks volumes on the present state of things. The news of his death had reached Rome some hours, when a considerable number of foreigners, chiefly French, were admitted to an audience with the Pope. Immediately after the first words of blessing and encouragement, which they had come to request of him, Pius went on to speak of the man whose death had just been

announced to him, saying that he had done great services to the Church, “mais il était malheureusement de ces Catholiques libéraux qui ne sont que demi-catholiques. Il y a quelques jours il écrivait des paroles”—here the [pg 361] Pope made a pause, and then proceeded—“Enfin, j'espère qu'il est bien mort”—or probably “qu'il a fait une bonne mort”—“L'orgueil était son principal défaut, c'est lui qui l'a égaré.”

While this was going on in the Vatican, Bougaud, one of the Vicar-Generals of the Bishop of Orleans, was inviting his countrymen from the pulpit of the French church of St. Louis to a Requiem for the illustrious dead, to be held next day in the church of Ara Celi. Archbishop Merode, Grand Almoner of the Pope and brother-in-law of Montalembert, had so arranged it, because it is an ancient privilege of the Roman patricians to have funeral services solemnized for them in this church, and Montalembert had been named a patrician by Pius IX. in recognition of his services in restoring the States of the Church and bringing back the Pope to Rome. He had contributed more than any of his contemporaries to that restoration, and it was he whose speech in the National Assembly at Paris in 1848 had decided the question of the Roman expedition. Bougaud had also mentioned that. Many had heard on the day before the service that it had been suddenly forbidden; nevertheless at the appointed hour in the morning about twenty French Bishops appeared with [pg 362] many priests and a large assemblage of laymen, the *élite* of the French visitors now in Rome. There before the entrance of the church they found M. Veuillot, the old and implacable opponent and accuser of Montalembert, standing among a group of sacristy officials, who announced to all comers that the Pope had forbidden any service being held or any prayers offered there for the departed Count. They thought this incredible and forced their way into the church, and here the sacristans informed them that, by special order of the Pope, not only was the intended Requiem stopped but the usual masses must be suspended, as long as the French remained in the church. By degrees the congregation broke up, and about an hour afterwards, when the church was empty, a French priest contrived to say a low mass in a side chapel.

It was probably Banneville who intimated to the Pope, at his audience for taking leave on the 17th, what a feeling this had created in French circles in Rome, and what impression it must produce in France. So on the morning

of Friday the 18th, to the amazement of the court officials, the Pope went to Sta. Maria Transpontana, an out-of-the-way church, without his usual cortège. Several Bishops passed the church on [pg 363] their way to the Council, and were surprised to see the Pope's carriage waiting at the door, as they knew nothing of what had taken him there. In the church the Pope sent orders to a Bishop to say mass "for a certain Charles," at which he assisted, and the following notice then appeared in the *Giornale di Roma*: "His Holiness, in consideration of the former services of Count Montalembert, ordered a mass to be celebrated for him in Sta. Maria Transpontana, and himself assisted at it from the tribune." Meanwhile the journalists were instructed to say in their correspondence columns, that the prohibition had been issued, because the Requiem was meant to be made into a demonstration.⁶⁸ That insinuation implicates Archbishop Merode also, who resides in the Vatican, for he had given the order. The charge of pride, which the Pope brought against Montalembert, will excite astonishment and something more in France, where it was precisely his gentleness and modesty that had made him so universally beloved.

[pg 364]

Thirty-First Letter.

Rome, March 21, 1870.—A feeling of weariness, lethargy and disgust has been forced on many Bishops by the treatment they have received and the

whole course of affairs in the Council up to this time. The news of its dissolution would be welcome tidings to their ears. And not only strangers, but many residents here, would joyfully hail their deliverance from the existing situation; even one of the Legates said lately that, if the Council were to be suddenly dissolved by a death, the Church would be freed from a great distress. The Assembly Hall alone would suffice to disgust a prelate with the idea of taking part in a Council for the rest of his life. Yet they are obliged to sit hours in this comfortless chamber, without understanding what is said. A sense of time unprofitably wasted is the only result of many a sitting for men, to whom at home every hour is precious for the care of a large diocese. They say that, for the first [pg 365] time since Councils came into being, the Bishops have been robbed of their essential and inalienable right of free speech on questions of faith; that they are compelled to vote, but not allowed to give reasons for their vote and bear witness to the doctrine of their Churches. They complain that, though they can hand in written observations, no one but the Commission of twenty-four knows anything about them, and that for the Council itself and their fellow Bishops they can do nothing. The Commission will perhaps present a summary report of a hundred of these memorials and counter representations, according to the new order of business. This means that the work carefully matured by a Bishop through weeks or months of severe study will be summed up in two or three words, and in the shape it is thrown into by a hostile Committee. If the Bishops regard it as an intolerable oppression at home to have to submit their Pastorals for previous inspection to their Governments, here they can have nothing printed, even after it has undergone the censorship.

It is no mere phrase, when the Bishops say in their Protest against the new order of business that their consciences are intolerably burdened, and that the Œcumenical character of the Council is likely to be assailed [pg 366] and its authority fundamentally shaken (*labefacteretur*). They consider the arrangement for deciding doctrines by simply counting heads intolerable, and they recognise as of immeasurable importance, and the very turning-point of the whole Council (*totius Concilii cardo vertitur*), the question as to the necessary conditions of a definition of faith binding the consciences of all the faithful. The Pope wants to have a new article of faith made by the Council, on the acceptance or rejection of which every man's salvation or

condemnation is henceforth to depend. And now this same Pope has overthrown the principle always hitherto acknowledged in the Church, that such decrees could only be passed unanimously, and has made the opposite principle into a law.

The Opposition Bishops are well aware that any regular examination and discussion of the infallibility question is rendered impossible by the nature of the Council Hall and the plan of voting by majorities. They have therefore proposed to the Legates that a deputation of several Bishops chosen from among themselves should be associated with the Commission on Faith, or with certain Bishops of the majority, to discuss the form of the decree, and that, when they have come to a common understanding, the formula as finally [pg 367] agreed upon should be submitted to the vote of the Council in full assembly. The authorities will not readily yield to this demand on many accounts, and chiefly because what Tacitus said of the Roman people 1800 years ago is well understood at Rome now, “*Juvit credulitatem nox et promptior inter tenebras affirmatio.*”

It was a prudent foresight which led the Pope so strictly to prohibit the Bishops from printing anything here during the sitting of the Council; the Jesuits of the *Civiltà* must retain their exclusive monopoly of free speech. But such conferences as the minority wished for were no less dangerous than printing, and would naturally lead to the grounds of their decision being made public. They have been summoned to affirm, not to deny, and “*promptior inter tenebras affirmatio.*” Meanwhile the Germans say that a thorough sifting of the question is the first thing necessary to be insisted upon, and that for two reasons: first to satisfy their own consciences, and secondly for the sake of their flocks. For they would not think it enough to enforce the new dogmas on the faithful of their dioceses by mere official acts and by referring them to the authority of the Council, which is ultimately reduced to the authority of the Pope, but would feel bound to give them sufficient [pg 368] reasons for its acceptance; and they have not been able to discover the cogency of these reasons themselves. Pius IX. considers this superfluous. He feels his infallibility, as he says, and therefore thinks it very scandalous that the Bishops do not choose to be content with this testimony of his feeling. However, the negotiations with the Legates about these conferences are still going on.

It must be allowed that there is not the slightest exaggeration in the words of the seventy-six protesting Bishops. It is strictly true that the new order of business, if it is carried out, must raise the greatest doubts as to the Œcumenical character of the Council among all thinking Catholics, especially such as are familiar with the history of Councils. And it is undeniable that this would excite a terrible disturbance in the Church, a contest the end of which cannot be foreseen. The Jesuits are now stirring the fire with the same assiduity and malicious pleasure as their predecessors in the Order of 1713 and the following years, when the whole of France and the Netherlands was plunged into a state of ecclesiastical strife and confusion by the Bull *Unigenitus*, which they procured. They enjoy such contests, and have always carried them through with the merciless [pg 369] harshness which is peculiar to them, relying on the strength of their organization. It may sound hard that the Order should so often be reproached with making its members at once accusers and bailiffs, but they would themselves consider this rather a note of praise than of blame.

The retribution for their conduct in 1713 and afterwards came in 1763 and 1773. But the Order, or at least its Roman members, who are all-powerful through the favour of the Pope, have no fear of such consequences now. A Jesuit can make a home for his theology, now here now there. If the Order is driven from one country, it is received into another; its property is moveable and can be transferred easily and without loss, and moreover it possesses, so to speak, an itinerant mint in its carefully elaborated skill in the direction of female souls, whether lodged in male or female bodies. They are thorough adepts too in the speculations of the money market, and manage their transactions in banknotes as successfully as the most practised merchant, so that they are quietly but surely recovering their prosperity in many cities of the Italian Kingdom, even in Florence, while all other Orders have been suppressed there. So they are well equipped and in excellent [pg 370] spirits for meeting the future. If their system of doctrine is now raised to full dominion by Pope and Council, and if they succeed in the next Conclave in procuring the election of a Pope thoroughly devoted to them and resolved to carry on the present system, the ship of the Order will ride majestically on the waves of future events, and fear no storms. A thoroughly well-informed man has assured us that the Pope said the other day to a Roman prelate, that “the Jesuits had involved him in this business of the

Council and infallibility, and he was determined now to go through with it, cost what it might. They must take the responsibility of the results.” A very similar statement was made by the Emperor Francis I. He said that “he could not tell how his finance minister would answer hereafter for having precipitated so many men into poverty and misery by establishing a national bankruptcy.”

For the fourth or fifth time since the opening of the Council, the ultramontane correspondents have been instructed to say, that the acoustic defects of the Hall have been remedied through new arrangements. This is not true; the speeches are never understood in many parts of the Chamber, not even where the secretaries sit. Meanwhile the Pope has conceived a desire to appear [pg 371] again in the midst of the Bishops and hold a Solemn Session. Hitherto he has been invisible and generally unapproachable to his “venerable brethren,” as he officially styles them. The last time the assembly saw him was at the unsuccessful Solemn Session of January 6, when the Bishops had to go through the useless ceremony of swearing oaths, in order to fill up the vacant time. For Pius does not feel that there is the slightest need for ascertaining the views of the Bishops about the measures in hand, or their wishes and proposals, and hearing their report of the state of Church matters in their own countries. He stands too high for that. A French prelate remarked lately that the Council does not thrive, because the Pope stands at once too near it and too far from it—so near that he robs it of all freedom, so far that there is no community of feeling and views and understanding.

There has never indeed been a period in Church history where it has been made so palpably plain to the Episcopate how much the name of “brother,” which the Pontifex gives to every Bishop, is worth, and how immeasurable is the gulf between the “brother” on the Roman throne, the Pope-King, and the brother in Paris or Vienna or Prague.

[pg 372]

On the 16th a part of the first *Schema* was distributed in a revised form, and a General Congregation was held upon it on the 18th, at the very time when the Pope was hearing a mass for Montalembert in reparation for his treatment of the illustrious dead on the 15th and 16th. He wanted to hold a

Solemn Session on the 25th, and thought there would be some decrees ready to be published. In defiance of the order of business the Bishops had only a day and a half, instead of ten days, allowed them to get acquainted with the revised text. However, so large a number of speakers sent in their names, and so many new difficulties came to light, that Pius had once more to abandon his design of proclaiming new articles of faith on that day to the expectant world. It looks as if the fourth month of the Council would pass by with as little result as the three first. Easter Monday is already named as the period fixed for publishing the first doctrinal decree. Meanwhile a new power has been introduced in the person of the Jesuit, Kleutgen. He had been condemned some time ago by the Holy Office on account of a scandal in a convent. But he has now been rehabilitated, as the Jesuits have no superfluity of theologians, and is to take part in drawing up the *Schemata*. The time fixed for sending [pg 373] in representations on the infallibility decree has been extended for ten days more, to the 25th. There is no lack of criticisms and counter-statements; the Bishops, although foreseeing that their intellectual progeny will be strangled directly after birth, seem anxious to gain the satisfaction of saying, “dixi et salvavi animam meam.” The German Bishops remember the assurances they gave at Fulda. The Archbishop of Cologne reminded the faithful of his diocese, as late as Feb. 9, of this Pastoral, to set their minds at rest. To-day, March 21, in view of the infallibilist *Schema* and the new order of business, he would no doubt hardly think it prudent to say any longer to the Germans, “Be confident that the Council will establish no new dogma, and proclaim nothing which is not written by faith and conscience on your hearts.” The Germans will now be curious to see the circumlocutions and explanations appended, in the fresh Pastorals compiled after the fabrication of the new dogma, to the Pastoral issued from the tomb of St. Boniface.

The Bishops should take care that they are not, like the eagle in the Libyan fable, struck with arrows feathered from their own wings. Banneville, who succeeded two men very unacceptable in Rome, Lavalette [pg 374] and Sartiges, was amicably received, and found it agreeable to keep on the best footing with Antonelli, and to treat the whole affair of the Council easily and superficially. Whatever he said was always very mildly expressed. It was so convenient to enjoy the favour both of the Pope and the Secretary of State, and to be commended by the majority of the Council as a pious and

enlightened statesman. The differences between him and Count Daru were accordingly inevitable. For Daru appreciates the extent of the danger, not only as a statesman but as a zealous Catholic, while Banneville's one thought has ever been to please the Roman authorities, so that a French prelate said to him shortly before his departure, "Pensiez-vous que vous étiez ambassadeur auprès de Jésuites?" And thus at last the necessity of instructing him has been recognised at Paris. But at the same time Bishop Forcade of Nevers has been sent there, intrusted with the mission of representing Banneville's conduct to the Government as exactly right, and advocating the views and desires of Antonelli and the majority of the Council. He has told them at Paris that the majority do not want to hear anything of the admission of a French ambassador to the Council—which is credible enough—but [pg 375] that the Government has nothing to fear from the decrees, for the Court of Rome would in any case respect the Concordat. Antonelli, as may be seen, abides by his panacea. The only question is whether they are disposed at Paris to be paid with such diplomatic counters. Meanwhile it has been rumoured that Count Daru would send a memorial to the Council. To the Council? Say rather to the Pope and his Secretary of State. This putting forward of the Council, whose freedom and self-determination the Roman Court is neither able nor willing to anticipate, is a device which no one can take seriously. The Bishop of Orleans in his last publication has pierced a hole in the mask, which renders it nearly useless. He remarks (p. 54), "Whatever is to come before the Council can only come through the Commission appointed by the Pope, that is ultimately through himself. He is the master, the sole and absolute master, with whom it rests to admit a proposal or set it aside."

Antonelli says that no ambassadors can be admitted, for if it were conceded to the French, it could not be refused to other powers, Austria, Bavaria, or even Prussia. He is quite right there. It has been a main object from the first with this Council to give a striking [pg 376] example of the entire exclusion of the lay element in ecclesiastical deliberations. It is just because the Governments and States are so deeply concerned in the projected decrees, because their rights and laws and their whole future are affected, that they are not to be heard or admitted. In presence of the representative of his Government, many a Bishop would think twice before assenting to a decree flatly contradicting the laws and political principles of his country. And then

the admission of ambassadors would break through the mystery, and make the strict silence imposed on the Bishops almost useless. A large number of them, and above all the entire Opposition, would be very glad of this, but for that very reason the ruling powers detest it the more. As a foretaste and practical illustration of what the maxims of the *Schema de Ecclesiâ* will lead to, when made into dogmas, it is worth while to notice the decision issued by the Pope and his Penitentiary in September 1869, when this Schema had just been drawn up, on the question whether a priest could swear to observe the Austrian Constitution. To take the oath absolutely was forbidden; he can only take it with an express reservation of the laws of the Church, and—which is very significant—he must state [pg 377] publicly that he only takes the oath, even with this reservation, by virtue of papal permission. That is a new and very important step on the road to be trodden with the aid of the Council. Every clergyman is to be reminded, and to remind others, in merely discharging a simple civil obligation, that he is dependent on the Pope in the matter, and may not properly speaking swear civil fealty and obedience to the laws without papal permission, not even in the conditional form which makes the oath itself illusory. This is quite after the mind of the Jesuits, who have always shown a special predilection for the doctrine that every cleric is not a subject and citizen with corresponding rights, but simply a subaltern and servant of the Pope. This is a prologue to the twenty-one Canons of the *Schema de Ecclesiâ*.

I have just learnt from the *Kölner Volkszeitung* that the chaplain of a prelate here charges me with a gross falsehood in reference to the words of the Pope. He appeals to the Paris *Union*, which has the words used by the Pope, “Je suis la voie, la vérité, et la vie,” with the passage inserted by the editor. I had cited the words from the *Observateur Catholique* of 1866 (p. 357), where they are authenticated by the signature of an ear-witness, MacSheeby, and correspond entirely with the statement [pg 378] of the *Union*. But in the *Monde*, which was not in my reach, a totally different version is given, which has no similarity to that authenticated by Roman correspondents in the *Union* and *Observateur*, and does not connect the words, “I am the way,” etc., with the Pope at all. It must remain uncertain after this whether the version of the *Monde* or of the two other journals is the genuine one.

Thirty-Second Letter.

Rome, March 28, 1870.—The Bishops who have attacked the new order of business, because it brought into view the possibility of a dogmatic definition being carried without the *consensus moraliter unanimis*, received the desired answer in no doubtful form at the sitting of Tuesday, the 22d. The measures of the *Curia* for a month past have been unmistakably contributing more and more to produce a worthy and loyal-hearted attitude among the minority. After long dallying, Rome has brought the secrets of her policy a little too boldly and conspicuously into view. Hardly was the domination of the majority in matters of faith fixed by the stricter *regolamento*, when the Pope had the proclamation of his own infallibility proposed in the most arrogant form. On this followed the attempt to press it to an immediate decision, and then the determination to admit no ambassadors of the Governments. If these [pg 380] proceedings were not enough to lay bare the perilous nature of the whole situation, the Pope and the zealots of his party supplied the remaining proof,—the former, by his conduct about Falloux, about Montalembert on the day the news of his death arrived, about the Munich theologians in secret consistory, and about the so-called Liberal or “half-Catholics” on every occasion; the latter by their growing impatience about the infallibility definition, and their assurances that there is no real opposition to this dogma, and that, if there was, it could not hold its ground after the promulgation had taken place. And so the opponents of the decree must know at last that they have to deal with a blind and unscrupulous zeal, not with a theological system carefully

thought out and placed on an intellectual basis; that the contest has to be carried on against the whole power and influence of the Pope, and not, as had been maintained with transparent hypocrisy, only against the wishes of the noisy and independent party of the *Civiltà* and its allied journalists. They begin to use more earnest and manlier language, the language of clear apprehension and conscientious conviction. If the comments handed in last week on the *Schema de Ecclesiâ*, and the protests against any hurrying of the discussion [pg 381] on it, were known to the world, the Catholic Episcopate and the strong reflux current here would appear in a very different light from what might be gathered from the previous course of things. Not a few of these opinions drawn up by the Bishops breathe a truly apostolic spirit, and deal with the Roman proposals in the tone of genuine theology. An influential theologian of a Religious Order has pronounced of one of them, that it exceeds in force and weight the treatise which appeared in Germany last year, *Reform of the Church in Her Head and Her Members*.⁶⁹ It has been urged by English prelates that it concerns their honour to resist the promulgation of a dogma, the explicit repudiation of which by the Irish Bishops was an efficacious condition of Catholic Emancipation. The American Protest contains a more threatening warning than the German, and the German is stronger than the French.

After these declarations the attitude of the minority was clearly defined, and invincible by any foe from without. Their contention is, that no right exists in the Church to sanction a dogma against the will and belief of an important portion of the Episcopate, and that only by abandoning any claim to such a right can [pg 382] the Council be regarded as really Œcumenical. To be quite consistent, the minority ought to take no further part in the Council till this point, on the decision of which they rightly hold its authority to depend, is settled; for their protest implied the doubt whether they were taking part in a true or only a seeming Council, whether they were acting in union with the Holy Ghost or co-operating to carry out a gigantic and sacrilegious deception. Yet the words expressly stating this doubt, and making the distinct withdrawal of the theory of voting dogmas by majorities a condition of any further participation in the proceedings, were not adopted into any of the Protests. This implied that the signatories would appear in the next General Congregation, that they refrained from a suspicious attitude, and were unwilling to interpret the ambiguous order of

business *in malam partem*, until facts compelled them to do so. A conflict which might have such incalculable results was to be avoided, till necessity made it a positive duty; and that was not the case as long as a favourable interpretation of the *regolamento* continued possible.

Thus the minority committed the strategical blunder of postponing a conflict which they saw to be inevitable, [pg 383] and when they could not know whether any more favourable opportunity for entering on it for the benefit of the Church would occur in the future. There is hardly anything doubtful or open to double interpretation in the order of business, when more closely examined. Every Bishop sees quite clearly that it is specially arranged for overcoming the opposition of the minority, and will be used without scruple for that end.⁷⁰ And who knows how many members of the present Opposition, if once the *Curia* applies its last lever, will have strength to resist to extremities? how many are ready, by humble submission or by resigning their Sees, to quiet their consciences and sacrifice their flocks to error? There are men among them better fitted for the contest against the principle formally enounced in the revised order of business, than for the contest against infallibility. The Bishop of Mayence, *e.g.*, passes for one of the strongest and most decided opponents of the *regolamento*, which I mention as a point of great importance at this moment. The resolve of the protesting Bishops, to avoid the threatened conflict at present, can only be justified if another and better opportunity for [pg 384] defending the cause of the Church occurs in the future course of the Council and before any decision is arrived at. Had they been willing, after handing in their protests, to go on quietly joining in the proceedings, without doing anything to give emphasis to the step they had taken, they would in fact have bent under the yoke of the majority. They only needed to keep silent: that implied everything. For it would necessarily be assumed that they had withdrawn or forgotten their protests, and to continue to act upon and submit to the new order of business themselves would imply that they had renounced their resistance to any of its particular details. It was therefore all the more essential for them to let it be clearly known how far their concessions would extend, and what was their final limit. Unless they did this, they would either seem not quite sincere, or would have really accepted the *regolamento* with its obvious consequences. The Council, the Presidents, the Pope, the expectant Catholic world without, had a right to

know their real intentions, and whether they meant to adhere to their declarations. The first voting on the propositions of the *Schema de Fide* could not fail to decide this point. Thus it became a necessity to put this question of principle in the [pg 385] front at the reopening of the deliberations of the Council.

Meanwhile the concessions of the Presidents and the majority on some points had elicited a more friendly feeling in the Opposition. The discussion on infallibility was postponed, and the first *Schema* was returned from the Commission with important modifications. Even the shameful treatment of Montalembert could not altogether destroy this conciliatory state of feeling. Ginoulhiac, the learned Bishop of Grenoble, who was to be preconised as Archbishop of Lyons on Monday the 21st, undertook on the 22d to meet the discreet concessions of the infallibilists in a kindred spirit. He was indeed obliged to make his speech on the Tuesday, though he had not been preconised on the day before. The French, who have no Cardinal—for Mathieu's custom is to go away at any critical moment, and he was not then returned—had gladly left to one of the Austrian Cardinals the less pleasing duty of declaring their attitude towards the *regolamento*. Schwarzenberg did but slightly glance at it in his speech and yet was called to order. Archbishop Kenrick of St. Louis, one of the most imposing figures in the Council, touched on the theme more closely, and dwelt on the office of Bishops [pg 386] as witnesses and judges of faith, in the sense which forms the basis of the opposition of the minority. Lastly, Strossmayer ascended the tribune, and then followed a scene which, for dramatic force and theological significance, almost exceeded anything in the past history of Councils. He began by referring to that passage at the opening of the *Schema*, where Protestantism is made responsible for modern unbelief—“systematum monstra, mythismi, rationalismi, indifferentismi nomine designata.” He blamed the perversity and injustice of these words, referring to the religious indifference among Catholics which preceded the Reformation, and the horrors of the Revolution, which were caused by godlessness among Catholics, not among Protestants. He added that the able champions of Christian doctrine among the Protestants ought not to be forgotten, to many of whom St. Augustine's words applied, “errant, sed bonâ fide errant;” Catholics had produced no better refutations of the errors enumerated in the

Schema than had been written by Protestants, and all Christians were indebted to such men as Leibnitz and Guizot.

Each one of these statements, and the two names, were received with loud murmurs, which at last broke out into [pg 387] a storm of indignation. The President, De Angelis, cried out, “Hicce non est locus laudandi Protestantess.” And he was right, for the Palace of the Inquisition is hardly a hundred paces from the place where he was speaking. Strossmayer exclaimed, in the midst of a great uproar, “That alone can be imposed on the faithful as a dogma, which has a moral unanimity of the Bishops of the Church in its favour.” At these words a frightful tumult arose. Several Bishops sprang from their seats, rushed to the tribune, and shook their fists in the speaker's face. Place, Bishop of Marseilles, one of the boldest of the minority and the first to give in his public adhesion to Dupanloup's Pastoral, cried out, “Ego illum non damno.” Thereupon a shout resounded from all sides, “Omnes, omnes illum damnamus.” The President called Strossmayer to order, but he did not leave the tribune till he had solemnly protested against the violence to which he had been subjected. There was hardly less excitement in the church outside than in the Council Hall. Some thought the Garibaldians had broken in: others, with more presence of mind, thought infallibility had been proclaimed, and these last began shouting “Long live the infallible Pope!” A Bishop of the United States said afterwards, not [pg 388] without a sense of patriotic pride, that he knew now of one assembly still rougher than the Congress of his own country.

This memorable day has already become the subject of myths, and so it is no longer possible to define with certainty how many prelates were hurried into these passionate outbreaks. Some speak of 400, some of 200; others again say that the majority disapproved of the interruption. The excitement was followed next day by a profound stillness, which was not broken even when Haynald and the North American Bishop Whelan said very strong things. It seemed as if a sense of what they owed to the dignity of the Council and a feeling of shame had got the better of those turbulent spirits. But enough has occurred to show the world what spirit prevails here, and what sort of men they are who support infallibilism. That up to this time this Council does not deserve the respect of the Catholic world, is the least point; it is of more importance, that an internal split in the Church is more

and more revealing itself. Henceforth it will no longer be possible to throw in the teeth of genuine Catholics their compromising or dishonourable solidarity with error and lies, for this has given place to an open and avowed [pg 389] opposition. On one side stands the small but morally powerful band of those who accept Strossmayer's noble words with head and heart, on the other a crowd of “abject”⁷¹ fanatics and sycophants. This division is of supreme significance for the future course of the Council, because it strengthens and consolidates the minority in their harmony and determination, and obliges them to take a further step, as soon as the majority have made it unmistakably clear that they will not acknowledge and respect their claim to prevent a dogmatic definition.

The Presidents, by denouncing Strossmayer's speech but not the interruption of it, as it was their duty to do, gave evidence of an undisguised partiality, and justly incurred the suspicion of sympathizing with the shouters and not with the speaker, and thinking the proclamation of infallibility allowable without the moral unanimity of the Council. Accordingly a categorical demand was sent in to them to declare themselves on this point, and, in case of their giving no answer, another last step is reserved, which will have the nature of an ultimatum and will bring the Œcumenicity of the Vatican Council to a decisive test. And so it may be said that the Bishops of the minority have [pg 390] delayed but not wavered. The moment for a decisive move, which may test the existence of the Council, must come when a dogmatic decree has to be voted on. This crisis seemed to have arrived on Saturday, March 26, when the preamble of the *Schema de Fide* was to have been voted on. Various amendments had been proposed, one very important one by Bishop Meignan of Chalons, in which the Fathers were designated as definers of the decrees, and another equally important, implicitly containing infallibility, by Dreux-Brézé, Bishop of Moulins. Moreover this preamble contained the obnoxious passages immortalized by the glowing eloquence of Strossmayer. The antagonistic principles seemed to have reached their ultimate point. Votes were to be taken on dogmatic decrees before any agreement had been come to on the necessary conditions of such voting. At the last moment the Presidents resolved to evade the crisis. The very day before the sitting, Friday, March 25, Cardinal Bilio went to the authors of the amendments and persuaded them to withdraw them, and so on Saturday the text of the

preamble was brought forward without any amendment. Nor was there any voting on that either, but they passed at once to the discussion on the first chapter of the *Schema*, [pg 391] in which the Primate of Hungary (Simor) made an adroit and conciliatory speech as advocate of the Commission on Faith. The debate then proceeded. By the eleventh article of the new order of business, every separate part of a *Schema* must be voted on before the next can come on for discussion.

It was a breach of this rule to pass on straight to the first chapter of the *Schema*, without having voted on the preamble. The Bishops asked themselves what this meant. Was it intended, by the withdrawal of the amendments and the abandonment of the discussion, to declare the preamble tacitly accepted? Was it intended to correct that objectionable passage? But the wording of the *regolamento* was too strict to allow of that being done except in the General Congregation. It seemed at any rate as if more prudent counsels had prevailed and it was intended to avert the dreaded contest on the main principle by concessions, so as to pass such decrees as were possible, that they may be unanimously promulgated in the Easter session. Thus time would be gained for loosening the compact phalanx of the Opposition, and at the same time getting it more deeply implicated in a compromising actual acceptance of the new order of business, in its form as well as its [pg 392] spirit. This double danger is always imminent, but in fact the Opposition as yet has suffered no loss.

We are at the end of the fourth month of the Council, and yet they have not dared to put one decree to the vote. The amendments, which were so obnoxious, have disappeared. The passage about unbelief being the offspring of Protestantism, which Strossmayer assailed, will perhaps be corrected, though in an irregular manner. The simple and sanguine spirits among the Opposition Bishops exult over a victory obtained. One of the most famous of them exclaimed, "It is clear the Holy Ghost is guiding the Council."

Thirty-Third Letter.

Rome, March 30, 1870.—Yesterday (the 29th) the first voting in Council took place, on the preamble of the *Schema de Fide*. As I told you in my last letter, this preamble had been objected to by Strossmayer on account of the passage representing rationalism, indifferentism, the mythical theory of the Bible and unbelief as consequences of Protestantism. Several amendments had been proposed; two of them I have mentioned already, one introduced by Bishop Meignan of Chalons, substituting for a mere approbation of the decree a statement expressly guarding the right of the Episcopate to define,—the other, proposed by Dreux-Brézé, designed to smuggle in the infallibilist doctrine in a form requiring a sharp-sighted eye to detect it.⁷² Many [pg 394] infallibilists had reckoned on the victory of their dogma last week by means of this amendment. The Presidents had got some of the amendments withdrawn on Friday, the 25th, but these two they suffered to remain. They were equally sure that the first would be rejected and the second accepted by the majority; nay they counted on a far larger majority for the passage implying infallibility than for the rejection of Meignan's proposal, and hoped that this occasion would tend to bring to light unmistakably the power and extent of the infallibilist party.

At the beginning of the sitting of Saturday, the 26th, the exact regulations for the method of voting were first read out, and this was repeated a second time to preclude any risk of misapprehension. Yet it was announced immediately afterwards that there would be no voting, and this unexpected change was made during the Session and in presence of the Fathers. There had in fact been a kind of fermentation going on since Tuesday, the 22nd, when Strossmayer's affair occurred. The justice of his criticism on the passage about Protestantism [pg 395] and unbelief had become evident to

many; at least fifteen Bishops made representations to the President about it as late as the Friday. According to a very widely-spread report, one of them was the Bishop of Orleans and the other the Bishop of Augsburg. But in spite of this, and of the prospect of a catastrophe, which the union of the Germans made imminent, they seem to have gone into Saturday's sitting firmly resolved not to yield. Yet a last attempt succeeded. After the mass, when all were assembled, a Bishop handed in a paper with a few lines to the Presidents, on which two of them at once left the Hall. Meanwhile the order of the day and the method of voting was read out. On their return the decision was announced; the preamble was withdrawn to be amended. It was an English Bishop whose paper produced such important results.⁷³

On Monday, the 28th, the preamble was distributed in its revised form; Dreux-Brézé's objectionable amendment had disappeared, the passage about Protestantism was altered, and even the style was improved. Primate Simor, speaking in the name of the Commission, had already stated officially that the Bishops were at liberty to subscribe the decrees by *definiens subscripsi*, i.e., to use [pg 396] the ancient conciliar formula by which the Bishops used to describe themselves as defining the decrees. And thus the principle for which Meignan, Strossmayer, and Whelan had contended, was conceded. In this form and after these concessions the preamble could no longer be opposed.

The strength of the minority has been proved, though in an irregular manner. But obviously this gives an opening to the majority for similarly setting aside the order of business when it is inconvenient for themselves. Beyond a doubt the spirit of conciliation has triumphed over all opposition at the critical moment. And it may be distinctly said that this result was attained, partly through the firm attitude of the minority, partly through the prudent and abundantly justified yielding of the Presidents. By this discreet procedure they have declined all responsibility for the conduct of those who, on Tuesday the 22d, would hear of no objections to that portion of the preamble. And their doing this so decidedly makes their silence on the other matter, which caused such an outbreak, the more surprising, and some explanation of it is all the more necessary.

The amended preamble was then accepted unanimously. But the chapter *De Deo Creatore* did not pass [pg 397] so easily, though it might have been expected that, at the end of four months, the Bishops would have arrived at some agreement on that point. The main difficulty arose from the tendency again to smuggle in statements favourable to infallibility, and paving the way for its definition by a sidewind. The first paragraph, *e.g.*, opens thus, “*Sancta Romana Catholica Ecclesia credit et confitetur unum esse Deum verum et vivum, Creatorem cœli et terræ.*” Two amendments were proposed on this: (1.) “*Proponitur, ut initio capitis primi simpliciter dicatur, ‘Sancta Catholica Ecclesia credit et confitetur,’*” etc. (2.) “*Proponitur, ut in capite primo verba ‘Romana Catholica Ecclesia’ transferantur, ita ut legatur ‘Catholica atque Romana Ecclesia.’ Sin autem non placuerit Patribus, ut saltem comma interponatur inter verba Romana et Catholica.*” There was a great deal of discussion about this word “*Romana.*” The German Opposition Bishops exhibit a better organization than the French. In spite of the great majority, it was announced that the voting would be only provisional, a “*suffragatio provisoria,*” and it is probable that the first chapter will be revised in this point, as in several others, before being presented for definitive acceptance.

[pg 398]

It is very noteworthy that the Italian Government has made no attempt to utilize the new complications, and the introduction of a new system of policy in France very hostile in principle to Roman absolutism. The Roman question has gone to sleep at the moment when a solution seemed to be in view. Indifference has taken the place of zeal at the very time when zeal had a prospect of success. Nowhere is the reason of this seeming apathy better understood than at Rome. The Italians are patient, because they see the settlement approaching in the natural course of things and without violence: they know that with the death of Pius IX. a far-reaching change must ensue. His successor will enter on the difficult inheritance under very different conditions.

The change of sovereigns will, in another point of view, be a very critical transition for the system dominant here. There is no point the non-Italian Episcopate with the foreign Cardinals and the Great Powers, are so united upon as throwing open the *Curia* and the Sacred College to foreigners. A

Papal election under present circumstances might be very dangerous for the centralization policy. The hardly-won domination of that party which Pius ix. has made into his [pg 399] instrument would be menaced, for after a long pontificate an election is always a reaction and not a continuation. The numerous elements of opposition, which have so long been suppressed, combine then for mutual aid. Pius ix. has created the College of Cardinals himself, but his successor will be the creation of the College. The ruling party runs the risk of getting a Pope who will no longer serve it and carry on its policy, and it is certain that the next Pope will be much weaker than the present one in his relations with the Governments, the Cardinals and the Episcopate. Much, very much, of the present resources of the Papacy depends on the person of Pius ix., and will be buried with him. It is the interest of all who are concerned in the continuance of the existing system, that his personal influence should survive his reign.

He alone can hand on to his successor his own special connection with France, and he alone can secure the choice of a successor in the Jesuit interest. But, to accomplish that, he must survive his own pontificate, must himself fix on the desired successor, must himself inaugurate him and support him with the whole weight of his personal influence. And thus the bold and ingenious device has been started of Pius ix. abdicating, [pg 400] and a new election being held during his life. It is said not to be quite a new project; in the honeymoon of the Council, just after the New Year, it first began to be somewhat inconsiderately spoken of. Pius ix. is nearly eighty, two years older than is generally said. He was elected June 16, 1846, and will therefore, on June 16, 1870, complete the twenty-fourth year of his pontificate. But there is an old saying, universally believed in Rome, that no Pope will reign twenty-five years, as it was the exclusive privilege of St. Peter to be Pope for a quarter of a century. "Non numerabis annos Petri." It is a fact that none of the 255 predecessors of the present Pope has held office for twenty-five years; even those elected at thirty-seven, like Innocent iii. and Leo x., died earlier. So according to this belief, which is not confined to the vulgar, Pius has only one year more to live. But in spite of his age he is healthy and wonderfully strong, and, as he belongs to a long-lived family, he has the prospect of still living some time, only not as reigning Pope. It is no pleasing prospect for a man, in whose character there is a large element of *amour propre*, to be treated as the setting sun, while all

are speculating on his speedy death. It would be another thing, at the very moment of his [pg 401] glorious triumph over the Council and after gaining infallibility, to resign it, to decline to enjoy his success, to renounce this mighty power in the first moment of fruition, and to transfer the splendid inheritance to the hands of a younger man. Thus next June might witness the most brilliant jubilee, and an example be given of such imposing grandeur that the world has seen nothing like it, of such wisdom and eventful significance that the present system would be immortalized and become the heirloom of the Papacy for all ages. The Pope would retire into a glorious privacy, like the founder of the North American Republic after his second Presidentship, and taste the honours of an ex-Pope, unequalled by any former ceremonial splendour, and close his days in a position of unprecedented elevation. This seductive dream has found little aliment in the course of the Council hitherto. The plan would be at bottom a conspiracy against existing law, against Cardinals, Governments, and the Episcopate, and notwithstanding its dazzling lustre, would make the very worst impression on the Council. A victorious Pope might conceivably attempt to carry it out, but in the present situation it would be a dangerous challenge.

[pg 402]

The abdication of a Pope is not without precedent in history. In 1294 a Pope took this step, which has never since been repeated; Celestine v. resigned the papal office, to which he felt himself unequal. After a long and quarrelsome Conclave, the Cardinals, at their wits' end, had elected the pious recluse of Einsiedlen, and dragged him from his mountain home; a few months later they got tired of him and urged him to abdicate, and he complied. Many doubted whether a Pope could resign; they thought that, according to the law established by the Popes themselves in the decretals, no Pope could dissolve of his own power the bond which unites him to the Church and the Church to him. It would require a superior in the hierarchy to do this, and none such exists. It had first therefore to be decided that a Pope could resign, and Celestine settled this by a special Bull. After that he solemnly and publicly laid down his office. Boniface VIII. succeeded, who shut up the unfortunate man in a mountain fastness, where he died soon afterwards in a damp unhealthy dungeon.

In the strictly initiated circles, where the above project is most definitely spoken of, the man selected by Pius for his successor is also known; it is Cardinal [pg 403] Bilio, aged forty-four, who possesses the confidence equally of the Pope and the Jesuits. He edited the Syllabus, and assisted the Jesuits in drawing up the first *Schema*; in short, Pius would have the satisfaction of reckoning securely on his carrying on the present system for many years. Of course, even if the seventeen or eighteen vacant Cardinals' Hats were given to men pledged to this scheme, it would still remain a question whether Pius could succeed in still controlling the Conclave after his abdication. Many think that the Cardinals would then, as has so often happened, elect a very aged man, and Cardinal de Angelis is named as the likeliest to be chosen.

[pg 404]

Thirty-Fourth Letter.

Rome, April 10, 1870.—When it became known that the Solemn Session for accepting and proclaiming the first dogmatic decrees was to be held, not on the 11th April as first intended, but on the 24th, the question of how this interval should be used came to the front. For the moment general attention is directed towards Paris. The answer of Cardinal Antonelli, drawn up by Franchi, Archbishop of Thessalonica *in partibus* and one of the most active curialists in the affairs of the Council, arrived there March 24. According to

the account of a French statesman, it produced the impression of being intended for a mediæval king, who could neither read nor write. The two main points in it are—(1.) that the *Canones de Ecclesiâ* contain no new claims and do not affect States which have a Concordat at all, and (2.) that no ambassador can be admitted to the Council.

The French Government oscillated a long time between [pg 405] the counsels of different advisers. The Bishop of Nevers represented the middle party, at whose head stands Cardinal Bonnechose; the Bishop of Constantine and afterwards the Bishop of Coutances might, as members of the Opposition, have come to a similar opinion. At first the plan found favour of not sending any special ambassador to the Council, but accrediting the ambassador to the Pope for the Council also. France would thereby have gained the start of Prussia, for it was hardly to be supposed that a Protestant diplomatist would claim the right of entering the Council. So much more important became the question, whether the Marquis de Banneville, who had meanwhile gone to Paris to justify his policy of inaction, would be superseded, or sent back to Rome in this double capacity, and therefore with increased powers. The latter course would be a significant concession to the inflexible Pope, a decided gain for the majority, and therefore a sensible blow for the Opposition. It would be a practical proof that Rome had only to resist, in order to intimidate France, and that the Imperial Government renounced all further interference with the Council. That was so obvious that a host of candidates for this weighty and honourable office were proposed to the [pg 406] minister. Baroche is said to have wished for it; Cornudet, a friend of Montalembert's, was much talked of, as well as Corcelles and Latour d'Auvergne, two men who seemed particularly well fitted to make the change of persons more acceptable at Rome. For some time the Duke of Broglie had the best prospect of it, who stands high among the Catholic laity as a political historian and student of Church history and the Fathers, but as a Liberal Catholic he belongs to the party the Pope hates above all others just now. To appoint him would have been at once to identify the French Government with the minority, and might, instead of conciliating, have led to results most abhorrent to the amiable and pious character of the Duke.

It was also a prevalent opinion that qualifications should be first attended to, and the best head among French statesmen be intrusted with this important mission—that men should be chosen like Rouher or Thiers, who had done service to the temporal power, but who stood quite aloof from the internal feuds of parties. To accredit them would make the withdrawal of the Romanizing Banneville less surprising and less irritating to the *Curia*. The Bishops of the middle party wanted the place for one of themselves. But [pg 407] they are not a body in much favour at Paris, and it was intimated to them that the best qualified prelates are not to be found in their ranks. Their representative, the Bishop of Nevers, came back in a state of irritation from Paris, where he is said to have found only three adherents of papal infallibility, two of whom were women. It is conjectured that the third was the Nuncio Chigi, who has affirmed that all Paris will illuminate the day the dogma is proclaimed.

The proposal for a Conference emerged again in the French Cabinet, but was rejected as inappropriate, for it would necessarily betray the weakness of a disunited ministry. At last the plan was adopted of sending a preliminary answer to Antonelli's letter, and waiting for the result of this before fixing on an ambassador. And so it was resolved at the beginning of April to draw up a note, which might at the same time be laid before the other powers, and serve as the basis for common action. It was communicated to the various Governments during last week, and is said to have been brought to Rome to-day by the Marquis de Banneville. But the Empress had meanwhile sent to Rome to get a more definite and authentic report of the views of the Bishops. But the answer did not [pg 408] reach Paris till after the note had been drawn up and despatched.

The only answer the minority needed to give was to communicate to the Government the various memorials they had presented to the Council, for these documents indicate the only policy which can be pursued with success, and which must be pursued. They deal not only with purely theological questions, but with the management of the Council, with questions of freedom and right which concern the lay world as much as the clergy. It is in the nature of things that the Governments should follow the lead of the Opposition, for to fall short of this would be to sacrifice their Bishops, while to go beyond it would be unjustifiable and dangerous.

It has now been again declared on the part of the minority, that their freedom is encroached upon by the order of business and the way the Presidents conduct affairs. The changes they asked for were not made, and their protests remained unanswered. In the opinion of many Bishops the legitimate freedom of the Council no longer exists, and over a hundred have said plainly that it would not be regarded as Œcumenical, if the question of making dogmatic definitions on faith and morals against the will of the minority is left [pg 409] doubtful. And this doubt, so far from being removed, has been changed into certainty at Rome. The Presidents passed over the demand of the Opposition in silence, although it threatened and called in question the very existence of the Council; they did not protect Strossmayer against the rude interruption which followed on his asserting the necessity for unanimity, but rather sided with it. The official press has openly attacked this view of the minority. Antonelli maintains the right of the Pope to make into a dogma the precise contrary of what the Council has unanimously accepted. According, therefore, to the well-known declarations already made by the minority, the Council has lost the character of Œcumenicity, and the See of Rome has abandoned the ground of Catholicism.

The various States must direct their attention to these points within these limits. They may pronounce in favour of the prorogation or reformation of the Council, but they cannot recognise it under its present conditions on any strictly Catholic principles. But to desire reforms now, after the experience of four months, during which the dominant spirit has manifested itself with such unscrupulous audacity, and after the determination to force through the infallibilist system in [pg 410] doctrine and practice in its crudest form by deceit and violence has become unmistakably clear, would betray a rare simplicity. The whole thing is settled by the question about majorities; and on that point, after what has passed, Rome can hardly yield now without giving up her claims altogether. An infallibility, which is subject to the veto of the minority of Bishops, ceases to be infallibility; the condition of moral unanimity in the Episcopate excludes it. And so the Council could not be saved without involving the *Curia* in a contradiction. A Council dominated by a Pope who holds himself infallible is *a priori* a nonentity. The Governments can only help it by securing it a speedy euthanasia. If they wished to act worthily and sincerely and in accordance with the gravity of

the situation, they would have to declare, in union with the most influential Bishops, that the arbitrary and crooked way of managing the Council makes the establishment of any important decrees impossible; that the Vatican Council has lost all moral authority in the eyes of the world, and that the best thing would be to put an end to it with the least sacrifice of its dignity.

The Governments might use such language, but only after an open breach between the minority and the [pg 411] Presidents. The minority must have spoken their last word, and they have not done so yet. The interest of the Catholic Church requires that the Bishops should have the necessary time for forming and carrying out their resolutions, and that the crisis should not be precipitated by a catastrophe. The Council can do no good by the decrees fathered on it, but it has already done much good by the declarations of different sections of its members, by the speeches of individual Bishops, and the spirit manifested by a portion of them, and it will do much more very shortly. More than once have words been spoken there which have fired millions of hearts, have strengthened the bond of love and unity among Christians, and have openly indicated the real defects and the real remedies required for them. This seed of a better future in the Catholic Church will not be lost, but will bring forth abundant fruit. In each successive utterance genuine Catholic principles have come out more and more clearly, as the progress of the combat has forced them on the minority. The false problems, only hypocritically pre-arranged to be laid before the Council, disappear more and more. It becomes more and more clearly ascertained and acknowledged, that the contest is one of first principles, for the [pg 412] maintenance of divine truths and institutions against arbitrary violence and impudent deceit.

New declarations on the rights of the State and the conditions of a really Œcumenical Council, directly condemning the new Roman system of the Syllabus and Infallibilism, may perhaps appear in a few days. While in the highest degree critical and threatening for the Council, they might form the basis of sounder developments for the future. If particular States are to bring the matter to a decisive issue, it seems desirable that the Bishops should come forward with their resolutions designed to promote this end.

Thirty-Fifth Letter.

Rome, April 12, 1870.—Veuillot says, in the *Univers* of April 2, that there are three great “devotions” in Rome, the Holy Sacrament, the holy Virgin, and the Pope. For the moment, and in regard to the Council and all that concerns the *Curia*, the devotion to the Pope is of course the chief affair. How that devotion may best be erected into the supreme law of religious thought and feeling—how to effect that henceforth, in all questions of the spiritual life, every one shall turn only to Rome and take his orders and look for certainty from thence alone—this is the task the Council has to achieve; all else is subordinate, or is merely the means to an end.

Next to the Jesuits Veuillot is unquestionably the man to whom infallibilism is chiefly indebted; and when it is made a dogma, a grateful posterity must give honourable place to his name among the promulgators of the new article of faith. He is much too [pg 414] modest, when he says his rôle in the Church is only that of the door-keeper who drives out the dogs during divine service. Veuillot is much more to his readers than any Father of the Church. Continual dropping hollows out the stone, and for years past Veuillot has been familiarizing his readers, in numberless articles where the copious verbiage concealed the poverty of thought, with the notion that papal infallibility is the first and greatest of all truths. His journal is read even in Rome in the highest circles, and read by those who read nothing else, except perhaps Margotti's *Unità Cattolica*.

The *Univers* is very successful in the business of stirring up the inferior clergy against their bishops in the dioceses of Opposition prelates, and getting them to present addresses in favour of infallibilism. In the number of April 2, *e.g.*, they are directed to get their petitions for the new dogma sent here through the Paris nunciature, and to take particular care that they are printed—“de plus, il importe de les publier.” The *Monde* has invented a peculiar means of advancing the good cause. It announces that the Freemasons are the people who disseminate writings against papal infallibility, and then intimates to the Italian Bishops the [pg 415] important fact that the minority of the Council are affiliated to Masonic Lodges.

The *Unità Cattolica*, the organ of Margotti, the Italian Veuillot, has 15,000 subscribers and 100,000 readers, and has more influence than all the 256 Italian Bishops put together. Their pastorals are powerless as compared with this daily paper, and they themselves are divided between their fear of the powerful Margotti and their regard for the judgment of the educated classes. But as most of these last are indifferentists, and give no moral support to a Bishop, the journalists carry the day, who treat every opponent of the pet Roman dogma as Veuillot does.

An Anglican clergyman named Edward Husband, who not long since became a Catholic, has again left the Church, because the dispute about papal infallibility and the extravagant *cultus* of Mary were too great scandals for him. It is only to the exasperation caused by proceedings at Rome, as an English statesman has written word, that we owe the passing in the House of Commons by a majority of two of a Bill for the civil inspection of Convents, which had always previously been rejected. The minority had done their best to avert it, but were overruled, and Newdegate—a person who [pg 416] was hitherto almost regarded as a joke—triumphed. All reports from England confirm the belief that this is only one symptom of the hostile state of feeling rapidly spreading there. Among English statesmen there is not one, within the memory of man, who has shown such sympathy for Catholics and their Church as Gladstone, as neither have any had so extensive a knowledge of theological and ecclesiastical questions. Yet he too took occasion, during the debate of April 1 on the Irish Education question in the Commons, to speak his mind on the tendencies of the Roman Jesuit party. After quoting an unfavourable

comment of his former colleague, Sir George Grey, on the demands of the Irish Bishops, he proceeded to say, with raised voice and in most emphatic tones, amid the “loud cheers” of the House, that “events have occurred and are occurring, in a great religious centre of Europe, of such a character that it is impossible for a statesman to feel himself in nearer proximity with the opinions of the Roman Catholic Hierarchy than he stood four years ago.”⁷⁴

I have already pointed out that, as soon as the new articles of faith are defined, their effects will be manifested in the education question throughout pretty well [pg 417] the whole of Europe. This enrichment of the creed will at once be repaid with losses and humiliations of the Church in the popular schools, and in the whole system of education. In England this is making itself felt already. The agitation for secularizing the schools, the immense majority of which have hitherto been denominational, gains continually in force and range under the influence of the news from Rome. The *Daily News*, *e.g.*, said that the fact of ultramontanes desiring denominational schools was quite enough to convince Protestants of the superiority of secular and national schools. Yet Manning goes on asserting in the Vatican, that the infallibilist dogma will be the powerful magnet to draw Protestants by thousands into the Church. They are only too glad to believe him.

You know already that the Roman Jesuits have declared it, in the last number of the *Civiltà*, to be a wicked error to require moral unanimity of the Council for a dogmatic decree. They call it a Gallican heresy to make the consent of the whole Church, or the whole Council, a condition of dogmatic decisions. A simple majority is quite enough, for it is ultimately the will and mind of a single individual, viz., the Pope, wherein resides the whole force and authority of the decision. [pg 418] If he assents to the judgment of a minority of the Bishops, it thereby becomes a law of faith for the whole Christian world; but if the majority is with him, all shadow of doubt vanishes. Whenever a controversy arises, whether in the scattered or assembled Church, it is the Pope's office to settle the difference by his decisive sentence, and to say, “This is truth: whoever believes it belongs to the Church, and whoever believes not, let him be accursed.” Once again it is clear that the Jesuits are of a different mind from the rest of the world. The world supposes that the Pope is to be declared infallible by the Council,

and that only then will this infallibility become an universal article of faith. The Jesuits of the *Civiltà*, on the contrary, think that the Pope—and he alone—is already and ever has been infallible, and that all authority in matters of faith is merely a light streaming forth from him and merging in his authority; the sole ultimate ground on which the Council, whether unanimously or by a majority, can declare the Pope infallible is because it knows that former Popes have held themselves to be infallible, and that the present Pope believes in and “feels” his own infallibility. And thus on the Jesuit theory we have the symbol of eternity, the snake biting [pg 419] its own tail. Why must we regard the Pope as infallible? Because he says so, and every one must believe his word on pain of damnation. Why must we believe his word? Because he is infallible. And why are the Bishops of the whole world summoned to Rome? To bear witness to this logic of the Jesuits and the *Curia*, much like the compurgators in German law. The Pope affirms, “I am infallible,” and the 700 Bishops affirm that he is a trustworthy witness, and because he says so it is certain. The infallibilist Bishops admit the new theory of the legal force of dogmatic decrees of a majority. They too say, “When the Pope adheres to the majority, the article of faith is already defined, and to reject it is heresy.” They too revolve in the logical circle of the Jesuits. “Infallibility is always on the side taken by the Pope.”

The pretence of impartiality maintained for some time by the Vatican, and under which Antonelli sheltered himself against diplomatic inquiries and warnings, has now been abandoned. The Pope has taken his side in the most emphatic way; he feels and denounces as a personal injury every hesitation about the projected dogma, and his expressions of displeasure [pg 420] grow constantly bitterer, and are sedulously disseminated, so that many Bishops are already terrified or driven into the infallibilist camp by the dread of his biting reproaches, for his words are immediately spread about in their dioceses and pass like a coin from hand to hand. Every work that appears anywhere in favour of his pet dogma is rewarded and sanctioned by a commendatory papal Brief, as being excellent, profoundly learned and conclusive, while the opponents of the dogma are branded in these documents as fools, blind or wicked assailants of what they inwardly know to be the truth. The *Univers* lately contained three such papal missives on the same day.⁷⁵ Meanwhile the opportunity of an allocution is seized for

whetting the consciences of the Bishops of the minority, and telling the world how impure are the motives of their opposition, and how virtuous and noble-hearted are the prelates of the majority, the Italians and Spaniards. On March 28, the *Osservatore Romano* published a speech addressed by Pius to the Oriental prelates and papal vicars of the Latin rite, in which he said, *totidem verbis*, that in the representative of Christ was renewed [pg 421] what happened to Christ Himself before the tribunal of Pilate. Pilate suffered himself to be terrified by the assurance that, if he delivered Christ, he was no friend of Cæsar, and gave him up through fear of men. And so now, when the principles of eternal life and the rights of the Church and the Papal See are at stake, they are attacked by men who call themselves friends of Cæsar, but are really friends of the Revolution. “Be united,” added the Pope, “with me, and not with the Revolution, and be not misled by the desire for popularity and applause; to me and not to public opinion must your minds be directed (*poiche dovete tener rivolte le menti a me e non alla opinione pubblica*). Put no trust in your own lights.” And he concluded, “On the basis of humility we will fight for the kingdom of God, without despairing and without fear of error.”

Thus does Pius lay bare the egotism and cowardice of the Bishops who demur to infallibility. They are afraid of conflicts with the modern State, which is the product of the Revolution, and are loath to alienate the educated classes of the Church, which is mere popularity-hunting. Pius is in earnest in what he says about humility, and applies it to himself as well as others; he frequently says that he too is a [pg 422] poor sinner, who has his place in the great hospital of diseased and sinful humanity, but with this difference,—in all other mortals sin begets error as its necessary consequence, but not with him. He is indeed a sinner, but in his case sin, through a special miracle, has no influence on the intellect, and when he feels his own infallibility, it would be presumptuous to dream of any self-exaltation or flattering illusion.

It is of course understood that other and very various methods are also being made use of to diminish the numbers of the Opposition. Leave of absence is most readily accorded to them. It has become visible now to the blindest eye that the infallibilist dogma is the real object of the Council, for which alone it was convoked. The great aim hitherto in all sessions and

votings has been gradually and imperceptibly to bring the Bishops to the point of practically accepting the decisions of the majority on questions of faith, and to get them to let the critical moment for protest and refusal of participation slip by unused. By this means precedents are created, and when the crucial question of infallibility comes on, they will be told that they have already virtually conceded the principle, and it is now too late to deny it.

[pg 423]

The Governments have made it quite clear that it is only encroachments on the secular and civil domain, such as the relations of Church and State, and especially the twenty-one canons, which give them any anxiety, and have led them to make representations and protests. They disclaim all intention of meddling with questions of pure dogma, and therefore leave untouched the infallibilist theory, which Count Beust regards as a mere internal question of Church doctrine. This admission breaks off the point of all diplomatic arrows shot from Vienna, Paris, or anywhere else, for with infallibility the *Curia* possesses all it wants for the attainment of its ends and the extension of its power over the social and political domain. Prévost-Paradol justly remarked the other day in the *Journal des Débats*, “The ministers who are so ready to let the infallibilist dogma slip through their fingers seem not to consider that it comprehends everything (*qu'il emporte tout*). If the Pope is declared infallible to-day, he was infallible yesterday, and, if so, the Syllabus has precisely the same force and validity as if the Council had confirmed it.” So it is in truth, and moreover the Bulls and decisions of former Popes, which claim absolute dominion over the State, become inviolable articles [pg 424] of faith. And then again it seems to pacify the Governments that Antonelli assures them he and his master are merely concerned with the theory, and have no intention of at once putting the new articles of faith into practice, summoning kings before their tribunal, overturning constitutions, and abrogating laws. On the contrary the Pope, if his mercy is appealed to, will look favourably on much belonging to the present civilisation and order of the State; only of course all this must be regarded as a mere indulgence which might at any moment be withdrawn. Meanwhile at Rome the disclaimers of the Governments of any desire to meddle with doctrine are sedulously made capital out of for working on the Bishops. They are referred to in proof that the whole lay

world has nothing to say to this purely dogmatic question, and that the Governments themselves treat the matter as politically innocuous, and the Bishops are admonished to lay aside their foolish resistance to a doctrine which with the power of the Pope will also so mightily increase their own.

[pg 425]

Thirty-Sixth Letter.

Rome, April 13, 1870.—The *Schema de Fide* has occupied the Fathers in almost daily sessions, and the Solemn Session for the public voting and promulgation of the decrees finally completed, which was first fixed for Easter Monday, has been postponed to Low Sunday. The number of amendments proposed gives the Bishops a great deal of labour, if the handling of these matters in the Council Hall is to be called a labour. What takes place is this: the Bishop who wishes to propose an alteration in the text of the Jesuit draft ascends the tribune and delivers an address, which as a rule the majority of his auditors cannot follow. Then he hands the President his motion, which however is not read, so that the Council gain their first knowledge of it through the Deputation, who have the amendments sent in to them—which of course are often very contradictory—printed and distributed [pg 426] in the order of precedence. Thus, *e.g.*,—there were no less than 122 amendments proposed on the third chapter of the *Schema*, occupying 44 folio pages. They began to be distributed on

April 3, and most of the Bishops only got their copies on the 4th, when there was a sitting of the Council, and on the 5th the voting was to take place, so that most of them had no time even for a cursory reading: still less was it possible to give explanations or attempt to come to any oral understanding or comparison of the various views. Meanwhile the discipline of the majority continues to be admirable; they always know exactly how they are to vote, and obey the signal given as one man. Nor has there been any repetition of the wild paroxysm of passion on March 22, which turned the Hall into a bear-garden of demoniacs while Strossmayer was speaking. Many who were most conspicuous that day in their screams and gesticulations, seem to have felt ashamed since, and have no doubt also received a hint that such excesses of zeal may injure the good cause. But however well organized and docile the majority show themselves, the defects of the order of business, combined with the bad qualities of the Hall, become very perceptible, and the result of the many votings is a [pg 427] confusion into which the Deputation tries afterwards to impart some sort of order.

Strossmayer has made a representation to the Legates; at the sitting of March 22 he was called “a damnable heretic,” without having given any intelligible occasion for it, and he expects and demands a public reparation for this injury in whatever way they deem most suitable. What is still more important, his conscience has constrained him to put the question from the tribune, whether articles of faith are really to be decided by mere majorities according to the 13th article of the new order of business. When he expressed his conviction that moral unanimity was essential in such cases, he was interrupted by a frightful tumult and could not say any more.

The Legates have given no answer either to the three representations of the Bishops about the second order of business with its principle of majorities, or to Strossmayer's complaint. But on April 1 an admonition of President de Angelis was again read, directing the Fathers to be as brief as possible in their speeches, that they might not produce disgust (*nausea*) in the assembly by their prolixity or digressions, in which case they had only themselves to thank for the marks [pg 428] of displeasure elicited. This was commonly understood as an indirect answer to Strossmayer; he had produced “nausea” in the prelates, and had therefore no cause for complaint. That was rather

too much for the minority, and their international Committee of about 30 Bishops resolved on presenting a common protest to the Presidents against the frequent interruptions and the wording of the admonition. Meanwhile Haynald was not interrupted, when he declared his agreement with Strossmayer. And it is worth notice that the Presidents have not as yet availed themselves of the right assigned them by the Pope to cut short the discussion, and get the speeches of the Opposition put an end to by the vote of the majority. There was nothing certainly in the subjects last under discussion to tempt them to do so. The Bishop of Rottenburg had proposed that the decree should contain no anathemas on persons but only on doctrines; the Germans and about six French Bishops agreed with him, but the rest would hear nothing of it. But it was significant that the most extreme section of infallibilists urged that in mentioning the Church in the *Schema de Fide*, the predicate “Romana” should alone be affixed to Church, with a perfectly correct instinct that the complete [pg 429] Romanizing of the Church which they desiderate must lead to the annihilation of its Catholicity, and that the particular predicate necessarily excludes the universal. But they did not carry their point.

It is the universally prevalent feeling that all these detailed discussions and motions are mere preliminary skirmishes in which both parties practise themselves for the great contest and the decisive blow to be struck when the *Schema de Ecclesiâ* comes on. The chief aim is to ascertain how far the minority can be induced to go, how much they will put up with, and what can be wrung from them by surprise or by quiet working on them individually. Public scenes, solemn protests before the whole world, are what the Legates want at any price to avoid. When the infallibilist dogma was to have been carried by sudden acclamation on St. Joseph's Day, four American Bishops handed in a paper declaring that, if this were done, they would immediately leave the Council and announce the reasons of their departure as soon as they got back to their dioceses. That took effect.

It is perhaps one of the most noteworthy and eventful changes in the policy of the Papal Court, that it now strains every nerve deliberately to exclude the [pg 430] laity from all share in Church affairs, and endeavours to hold them aloof in every case where formerly the Church not only allowed but desired and demanded their regular participation. Thirty years ago it was

quite different, but since the darling scheme of the Jesuits for complete ecclesiastical absolutism and centralization in Rome, both intensive and extensive, has been adopted, the maxims first avowed by Pius in his instructions to Pluym, his delegate at Constantinople, have been acted upon. The Pope there affirms that the participation of the laity in Church matters has been the greatest injury to the Church. In Germany and north of the Alps generally, all who thought they knew anything of the spirit and history of the Church had believed just the contrary, and considered those to have been the most prosperous ages of the Church when there was a cordial understanding and unsuspecting co-operation between clergy and laity; and they pointed to the example of earlier Popes, who attributed a priesthood to Christian princes, and exhorted them to take the most active part in ecclesiastical affairs. But historical reminiscences are of no account here; we must be content to float on the stream of the present, without looking backwards or forwards, with the great multitude. [pg 431] “Fear nothing; I have the Madonna on my side,” said the master the other day to a prelate who had warned him of the danger incurred by the present system. That word explains the enigma of our present situation.

The quarrels with the Orientals, which I shall perhaps relate more fully by and bye, have again thrown a clear light on the existing condition of things and the maxims adhered to. In a dispute about the privileges of a Convent here, an Armenian Archbishop with his secretary and interpreter were condemned by the Inquisition to imprisonment in one of the Jesuit houses—nominally “to make the exercises.” The unfortunates for whom this fatherly correction was decreed, were to “exercise themselves” till they were reduced to submission. They first betook themselves to the protection of the French embassy, but in accordance with instructions from Paris they were repulsed. Then they were taken under the charge of Rustem Bey, the Turkish ambassador at Florence, who has lately been residing here and transacting business with Antonelli. But the Cardinal soon intimated to him that Catholic priests, of whatever nation, were in Rome simply subjects of the Pope and under the jurisdiction [pg 432] of the Inquisition. So the helpless Armenians had to succumb, and were favoured with domestic imprisonment, while a monk of another Order was made Abbot of the convent. The affair has naturally excited double astonishment. German, French, and English priests, who are here in great numbers, have had the

unpleasant surprise of discovering that, according to the theory accepted here, they belong not only spiritually but bodily to the Pope, who is the absolute lord of their persons, and that the Inquisition can seize and incarcerate any of them at its pleasure. And the occurrence has recalled some very unlovely reminiscences. Men acquainted with Roman history have shown that Paul v. got Aonio Paleario and Carnesecchi to surrender themselves and had them burnt by the Inquisition; that Paul v. enticed to Rome by a safe-conduct the priest Fulgentio, who took the side of the State in the Pope's quarrel with Venice, and had him burnt there as "a lapsed heretic;"⁷⁶ that the English Benedictine Barnes, who was seized on Belgian soil and dragged to Rome, was first imprisoned in the Inquisition till he became insane, and then had to die in a lunatic asylum. It is [pg 433] true that the Inquisition no longer inflicts torture and death, but nobody who has once come into its power would escape without having an abjuration extorted from him. The best security for a Western priest consists in the dread of the *Curia* of involving itself in trouble with his Government; were it not so, a foreign clergyman would be compelled to confine his conversation with clerics here to the weather, for there is always the most stringent obligation of denouncing any one the least suspected of heresy to the Inquisition, and a German clergyman, who got into any theological talk could hardly avoid that suspicion, so many would be the points of difference and opposition.

There have been movements among the Hungarian Bishops, the connection of which is not quite clear. But the following facts are authentic. Simor, Archbishop of Gran and Primate, who for two months adhered with the rest of his countrymen to the minority, has gone over in the most demonstrative way to the majority, who pride themselves not a little on their conquest. It had been previously agreed between the Emperor and the Pope that he should be made a Cardinal, and he had been informed of this; but for a Cardinal-designate before his actual creation to vote against the [pg 434] formally and energetically expressed will of the Pope would be monstrous. Such a thing is quite inconceivable in Rome. Moreover, before he became Primate, Simor spoke in favour of infallibilism.⁷⁷ Another Hungarian Bishop is gone over with him. Other Hungarian Bishops whom the minority, whether rightly or not, reckoned deserters, have gone home, and have there, it is said, represented the state of things in the very darkest

colours, saying that there is no real freedom in the Council and the minority is breaking up. The Government at Pesth have consequently sent a confidential agent here to invite the Hungarian Bishops to escape the storm and return home. But they replied that the Government had better provide for the return of those already gone home, so as to add more strength to the minority on whom all the hopes of Catholics are now centred.

[pg 435]

Thirty-Seventh Letter.

Rome, April 15, 1870.—The *Constitutio Dogmatica de Ecclesiâ Christi* will receive its definitive form in the Congregation of Easter Tuesday, but the substance is already fixed. It received many significant alterations in the course of discussion, and the ready reception accorded to it as a whole is due to the many detailed amendments which have been conceded. These changes are so important that the spokesman of the Commission, Pie of Poitiers, said in his closing speech it was really the work of the whole Council, so that the Fathers might truly say, “*Visum est Spiritui Sancto et nobis.*” After the insertion of the word “*Romana*” before “*Catholica Ecclesia*,” the three first chapters were accepted in their amended form. The fourth, on faith and knowledge, was debated only cursorily and by a few speakers on April 8. But this chapter contains a passage of the greatest practical importance. At [pg 436] the end occur these words: “Since it is not

enough to avoid heretical pravity, unless those errors which more or less nearly approach it are shunned, we admonish all of the duty of observing the constitution and decrees where such evil opinions not expressly named here have been proscribed and prohibited by this Holy See.”⁷⁸ The Bishops with good reason saw in this passage a confirmation of the judgments and increase of the authority of the Roman Congregations, *i.e.*, of the tribunals through which the Pope exercises his power. It seemed to them desirable to give due expression to their objections, and accordingly a request was made to the President to appoint a further day for this subject. But as nobody had inscribed his name to speak, the request was refused and the whole debate was closed on that day, Friday, April 8. But to avoid the danger of opposition at the last moment and secure the decrees being unanimous, a certain concession was made by announcing that the closing paragraph should not be voted on till the whole *Schema de Fide*, four chapters of [pg 437] which only were as yet ready, should be completed. Thus a great point was gained,—a decree on matters of faith was carried by moral unanimity and not by surprise, but after a serious though compressed debate, which helped to win for the views of the minority a very perceptible influence on the form of the decree.

But on the following day, April 9, a notice was communicated that, as the closing paragraph of the *Schema*—beginning with the words “Itaque supremi pastoralis,” etc.⁷⁹—had not been treated with sufficient particularity at the last general sitting, it must be again brought forward for deliberation before the whole fourth chapter came to be voted upon. The Fathers were thereby admonished that they might produce their amendments on the fourth chapter at the next sitting. This Congregation was held on April 12, when the final paragraph was put to the vote, and this roused them from the dream of unanimity. It was observed in the debate that if the voting on the paragraph were put off [pg 438] till the whole *Schema de Fide* was completed, this would be putting it off to the Greek Calends. But if the fixing of this *Schema* was undertaken directly after Easter, the more important subject of the *Schema de Ecclesiâ* must give place to it, and so it might easily happen that infallibility would not come on at all this spring. To withdraw the closing paragraph would be not only not to maintain but to lose that favourite form of authoritative papal utterance through the medium of the Roman Congregations, which especially required to be upheld. Pie of

Poitiers insisted on the fact that the paragraph had been published in the *Allgemeine Zeitung*, and could not therefore without peril be withdrawn even for the moment only.

The Opposition were partly disposed themselves to treat the passage as unimportant. There were some who thought that in principle it was right for the Roman decisions to be respected and a certain authority attached to them, for this was necessary for the government of the Church; and the very wording of the passage distinguished these decisions from matters defined under anathema. So the minority resolved not to make any collective resistance to it, and many well-known members of the Opposition accepted it without [pg 439] contradiction. Notwithstanding this, when the whole fourth chapter came to be voted on on Tuesday, April 12, the desired unanimity was not attained; 83 Bishops gave a conditional *Placet* only. They handed in the grounds of their vote in writing, which seem to have been of various kinds, for even the Bishops of Moulins and Saluzzo, who are notorious infallibilists, were among them. Some, especially English Bishops, may well have demurred to the designation "*Romana Catholica*" before "*Ecclesiâ*;" others may have thought it necessary to guard their rights as against majorities; but far the greater number wanted to repudiate the concluding passage. The vote was understood here in this latter sense, and no stone was left unturned to induce the Opposition to yield on that point. The step they have taken makes the deeper impression, because it is known that they have not put forth their full strength.

It must be allowed that the final paragraph contained no actual doctrine which made the resistance of the Episcopate an absolute duty and required unanimous consent, but still it is obvious that the Council thereby sanctioned and strengthened what it ought to have reformed and limited, and therefore the carelessness manifested by a portion of the Opposition admits of no [pg 440] favourable explanation. For the chief cause of the weakness and corruption of the Church is to be found in those Roman Congregations,—in the principles of some and the defects of others. The Bishops who accept the paragraph give their approval, *e.g.*, to the Inquisition and the Index, and thereby prejudice not a little their moral influence and dignity. The vote of last Tuesday does not accordingly appear to me any proof of the firm organization or imposing power of the minority;

it only shows what they might accomplish if they chose, but that they do not choose to do as much as they can. But the event will show whether the *Curia* holds to its policy of securing unanimity by prudent and well-timed concessions. The minority will be urged and entreated first to withdraw their objections. If that fails, the Court must either give up the hope of unanimity or accept a very sensible humiliation. For if the text remains unaltered, those who have now given a conditional *Placet* can give no simple *Placet* next time.⁸⁰ Rome will certainly exhaust all her arts to avert the scandal of an open opposition in a Solemn Session.

[pg 441]

I said in a former letter that the Opposition had taken up a position which no enemy from without could dislodge them from, but this did not imply at all that all internal dangers are overcome. These by no means consist in the decomposing influences of hope and fear which the *Curia* makes such use of, or the prospect of a Cardinal's Hat, or again in party divisions at home, which might have disturbed and divided the French, Austrian and North American Bishops. The latter danger might have made itself felt at the commencement of the Council, but constant intercourse and community of experiences during this winter have put an end to it. The real disease which has weakened the minority in the past and threatens it in the future lies deeper—the great internal differences of Catholicism, which are now being brought to a decisive issue, do not coincide with the antagonism of the rival parties in the Council, but divide the minority itself. The main question, exclusive of the immediate controversy and partly independent of it, which divides Catholics into two sections so sharply that no sympathy or confidence can bridge over the gulf, remains unsolved within the minority and constantly endangers their coherence. The common designation of Liberal Catholics tends rather [pg 442] to obscure than to express the principle of this division. By Liberal Catholics may be understood those who desiderate freedom not only *for* but *in* the Church, and would subject all arbitrary power of Church as well as State in matters of religion to law and tradition; but that is the end they aim at, not their fundamental principle. Such requirements concern the constitution rather than the doctrine of the Church, law rather than theology. They are important, but they do not contain the crucial point of the present contest in the Church. The root of the matter lies not simply in the relation to be maintained

towards the chief authority in the Church, but in the right relation to science; it is not merely freedom but truth that is at stake. It is mainly as an institution for the salvation of men and dispenser of the means of grace that the Church has to deal with the labouring, suffering and ignorant millions of mankind. And in order to guard them from the assaults of popular Protestantism, a popular Catholicism and fabulous representation of the Church has been gradually built up, which surrounds her past history with an ideal halo, and conceals by sophistries and virtual lies whatever is difficult or inconvenient or evil, whatever, in short, is “offensive to pious ears.”

[pg 443]

But such a transfigured Catholicism is a mere shadow Catholicism, not the Church but a phantom of the Church. Its upholders are compelled at every step to employ various weapons, to ward off any triumph of their enemies and avoid disturbing the faithful in a religious sentiment artificially compounded of error and truth combined. The more the notion of the supreme glory, and even infallibility, of the Pope was developed, the greater solidarity with the past became requisite, that the history of the Popes might not be suffered to bear witness too strongly against such views. To quote a significant phrase in constant use here during this winter, “the dogma must conquer history.”⁸¹ A contest has arisen, not of dogma but of a theological opinion against history, that is against truth; the end sanctifies the means. It was held allowable in order to save the Church and for the interest of souls to commit what would in any other case have been acknowledged to be sin. Not only was history falsified, but the rules of Christian morality were no longer held applicable where the credit of the hierarchy was at stake. The very sense of truth and error, right and wrong,—in a word the conscience—was thrown into confusion. Thus, *e.g.*, [pg 444] when Pius v. demanded that the Huguenot prisoners should be put to death, he did right, for he was Pope and a Saint to boot. Since Charles Borromeo approved the murdering of Protestants by private persons, it is better to approve it than to call his canonization in question. Or one moral aberration is got rid of by another. Many of the leading Catholic writers of this century deny that Gregory XIII. approved the massacre of St. Bartholomew,⁸² or that heretics have ever been put to death at Rome.

This spirit, which falsifies history and corrupts morals, is the crying sin of modern Catholicism, and it reaches high enough. Of the three men who are commonly held in France to stand at the head of the Catholic movement, one wrote a panegyric on Pius v., another under the name of *Religion et Liberté* attacked absolutism in France while defending the double absolutism in Rome, and a third vindicated the Syllabus—all three thus manifesting the influence of this deplorable spirit.

On the other hand the genuine Catholic, who wishes also to be a good Christian, cannot separate love for his [pg 445] Church from the love of goodness and truth. He shrinks from lies in history as much as from present adulation, and is divided by a deep moral gulf from those who deliberately seek to defend the Church by sin and religious truth by historical falsehood. This contrast is most conspicuously exhibited in the question of infallibility, as one example may suffice to prove. The principles of the Inquisition have been most solemnly proclaimed and sanctioned by the Popes. Whoever maintains papal infallibility must deny certain radical principles of Christian morality, and not merely excuse but accept as true the opposite views of the Popes. Thus the Roman element excludes the Catholic and Christian. Such differences obviously cut deep into men's ethical character, and divide them far more decisively than any striving for common practical ends or community of interest and feeling can unite them on the ground of prudence. In presence of so profound an internal division the question of the opportuneness of the definition of infallibility assumes a very subordinate place, and the mere inopportunist is immeasurably removed from the decided opponent of the dogma. Between Bishops who consider Popes fallible and those whose conscience is easy enough to swallow certain [pg 446] doctrines of former Popes on faith and morals, and who do not see any deadly peril for souls in giving a higher sanction to these dogmas—between anti-infallibilists and mere inopportunists—the difference is far deeper than the union. The inopportunists stand nearer to the infallibilists than to those who oppose the dogma on principle. They are divided from the one party on a mere question of prudence, from the other on a question of faith and morality; with the one they are united by an internal bond, with the other by an external bond, only which circumstances may dissolve.

This is the true explanation of the halting policy so often observed in the Opposition. The honest opponents of infallibility wished to secure the support of those who do not properly speaking share their sentiments. But they should never for a moment have forgotten that they have to attack what Gratry has rightly described as an “*école de mensonge*.” And the greatest honesty and outspokenness is necessary for defending the honour and truth of Catholicism against that school. Instead of that they exhibit themselves in a false light and obscure the situation.

Meanwhile Pius IX. by his letters to Guéranger and Cabrière has completely and publicly identified himself [pg 447] with that school, at the very moment when Gratry was so unmistakeably exposing its spirit, and he has made this still clearer by the distinctions bestowed on Margotti and Veuillot at the very moment when Newman characterized them as the leaders of “an aggressive and insolent faction.” He said plainly to the French Bishop Ramadieu of Perpignan that “only Protestants and infidels denied his infallibility.” His official organ describes the Opposition as allies of the Freemasons, and he himself calls all who oppose his infallibility bad Catholics. It is true that the Opposition has gradually been brought to make very decided declarations of opinion, and has itself expressed doubts about the future recognition of the Council. But that has complicated its attitude still further. The other party may ask, “Why these doubts about Œcumenicity? The Bishops of various countries are assembled in great numbers; the Governments offer no hindrances, and the Council has united itself with the Pope in the greatest freedom in the capital city of the Church. Why then doubt the good results and œcumenical character of the Council and the validity and future recognition of its decrees?” And the Opposition can only answer, “For the sole and single reason that the Pope destroys all [pg 448] freedom of action by his regulations, that he has already overthrown the ancient constitution of the Church and exercises a power over the Council incompatible with the rights of the Bishops and the freedom of the Church.”

The French note is to be presented to-day to Antonelli and next week to the Pope, instead of to the Council. It is doubted whether Pius will communicate it to them.^{[83](#)}

Thirty-Eighth Letter.

Rome, April 17, 1870.—It is a good sign that the minority have at length recognised the imperative necessity of grappling directly with the problem of papal infallibility, and examining in their own writings this question on which the future of the Church depends. It has been perceived now that it was an unfortunate notion to put forward only grounds of expediency, discretion, and regard for public opinion; for no answer was left when Spanish, South American, Irish, Neapolitan and Sicilian Bishops said that no such public opinion existed with them, that some were apathetic and others had long held the doctrine, which would create not the slightest difficulty or inconvenience with them, and that they were the majority.

It was high time therefore to take firmer ground, and now this has been done by Cardinals Schwarzenberg and Rauscher and Bishop Hefele, three of the most influential [pg 450] prelates of the Church, or rather by four, for Bishop Ketteler too has either composed or got some one to compose a work on papal infallibility.⁸⁴ But the whole edition had the ill luck to be seized in the Roman Post-office, so that not a single Bishop got a copy. The authorities seem to know that the work opposes the dogma, on which all the thoughts and plans of the *Curia* now hinge, although Ketteler not long ago showed himself an adherent of the doctrine, and only assailed the opportuneness of defining it.

The *Univers*, as the official organ of the Court, now announces the principle on which the Papal Government acts. One must distinguish, it says,

between the Custom-house and Post-office. The Custom-house gives the Bishops the missives and packets addressed to them unopened, for it assumes that they will only have proper books sent them. It is different with the Post-office, which is bound not to favour the dissemination of error.⁸⁵ So the conscientiousness of the officials of the Roman Post-office is a model for the rest of the world, and it is understood that the habitual opening of letters, so far from being immoral, is an expression of [pg 451] the purest and most delicate morality; for might not a letter contain some error or attack on the rights of the Vicar of Christ? And how could the officials answer to God and His earthly representative for even unconsciously co-operating in the spread of such error?

As I have not seen Ketteler's publication, I can only quote the judgment of a friend who has read it and thinks it will do good service. The other three works are before me. They must all have been printed at Naples, for the Roman police has to look after the consciences not only of the Post-office secretaries and letter-carriers, but of the compositors, printers, bookbinders and booksellers. It cannot allow that any breath of error should sully the pure mirror of their souls, even though concealed under the veil of the Latin tongue; and the corroding poison becomes worse when prepared, as in this case, by Bishops and Cardinals.⁸⁶

I will speak first of Cardinal Rauscher's work, which is the most comprehensive of the three, and touches on many questions passed over in the other two. Written [pg 452] in a calm and dignified tone, it carefully avoids every word or phrase which could offend the *Curia*, and goes to the utmost length in making concessions possible for any one to accept without becoming an infallibilist; but it will nevertheless pour much oil on the flame of anger which has been blazing for weeks past, and sings now one Bishop and now another. Papal infallibility, says the Archbishop of Vienna, must extend to everything ever decided by any Pope, and the whole Christian world must hold with Boniface VIII. and his Bull *Unam Sanctam* that the Popes have received power from Christ over the whole domain of the State. That will be welcome news to those who want to exclude the Church altogether from civil society. That the Popes themselves in the ancient Church did not hold themselves infallible, that the whole history and conduct of the ancient Church in doctrinal controversies would be an

inexplicable riddle on the infallibilist hypothesis, and moreover that the Popes have often fallen into open errors rejected by the Church—all this is well established, though the author cites only some particular facts from the abundant sources he has to draw upon. He then shows the sharp antithesis between the ancient doctrine of the Church and the Popes [pg 453] on the relations of Church and State and the enunciations of Popes since Gregory VII. and Innocent III. With papal infallibility the whole mediæval theory of the unlimited power of Popes to depose kings, absolve from oaths of allegiance, abrogate laws, and interfere in all civil affairs at their will, must be declared to be an immutable doctrine with which the Church stands or falls. The Christian Emperors would have treated such a doctrine as high treason, and even in the days of Charles the Great it would have excited universal astonishment. If this doctrine really had to be preached now to the Christian people, it would be a triumph for the enemies of religion, for the best men would soon be convinced of the utter impossibility of paying any regard to the precepts of the Christian religion in civil matters. The Cardinal proceeds to dwell on the forgeries by which the great master of scholastic theology, the favourite and oracle of all Jesuits and ultramontanes, Thomas Aquinas, was led to adopt the doctrine of infallibility, and how again his influence shaped the whole scholastic system and drew the great Religious Orders, who were bound by oath to maintain his teaching, to adopt it. He concludes in these weighty words:—"If the Pope is declared to be, alone and [pg 454] without the Episcopate, infallible in faith and morals, the Œcumenical Councils are robbed of the authority recognised by Gregory the Great, when he said he honoured them equally with the four Gospels; for they would be and would always have been, even at the time of the Nicene Council, superfluous for deciding on faith and morals. This doctrine would be a declaration of war against the innermost convictions of the Church, and she would be robbed for the future of those aids supplied by the Council of Trent at her extremest need; even the See of Rome would lose the support the Bishops then assembled gave to it, for after the close of that Council, the power of the Popes became greater than it was before."

The remark of Cardinal Rauscher that, when the dogma of papal infallibility is defined the Church will be deprived of one of her most effective institutions, viz., General Councils, has made a great impression here, as far as I can see. It is readily understood that an assemblage of men, educated to

believe in the infallibility of one master, and to repeat mechanically without examination whatever he tells them, would have no influence among men and would be universally regarded as superfluous, a mere idle pageant rather than any [pg 455] real support to the Church. The Church would be impoverished by the loss of one member of its organism, and that very member would be paralysed which in moments of distress and danger had most effectually protected her.

Bishop Hefele's work is worthy of the man who is beyond question the most profound historical scholar among the members of the Council. One can only regret that a writer so pre-eminently qualified to pronounce a clear and weighty opinion on the whole controversy in all its bearings should have confined himself to the single question of the condemnation of Pope Honorius. Those who wish to know the history of Honorius and the Sixth Council in 681, and to see a flagrant example of the utterly crude and unscientific poverty of that modern scholasticism which is treated as theology in the Jesuit lecture-rooms, may be recommended a brief study of this question, which has already produced so many writings and hypotheses, simple and easily understood as it is in itself. A General Council, acknowledged by the whole Church in East and West, condemned a Pope for heresy after his death, and anathematized him on account of a dogmatic letter he issued. The sentence was without contradiction accepted throughout [pg 456] the whole Church, the Roman Church included, and even introduced into the profession of faith to which every new Pope had to swear at his election. It was repeatedly confirmed by subsequent Councils, and in short remained in full force for centuries, till the Popes were seized with a desire to become infallible. It is only since the fifteenth and sixteenth century, and especially since the Jesuits—beginning with Bellarmine—undertook to revise history according to the requirements of their new dogmatic system, that this extremely contradictory fact had to be submitted to a process of manipulation, and the rock on which all schemes of papal infallibility seemed to be wrecked had to be got out of the way. “*Si plus minusve secuerit sine fraude esto,*” was said in the old Roman law which allowed a creditor to cut a pound of flesh from the body of his debtor, and so do the knives of the Jesuits and curialists cut right into the flesh of history. The Acts of the Sixth Council were said to have been corrupted through the perfidy of the Greeks, and the whole history and even the letters

of Honorius to be forgeries. The Popes themselves, Rome, and the whole West had let themselves be fooled by the cunning Greeks into condemning [pg 457] an innocent and orthodox Pope as a heretic, and the letters of Pope Leo II. must also be forgeries. In short these reasoners were caught in the meshes of their own net, and when in 1660 Lucas Holstein got the Roman *Liber Diurnus* printed—an excellent edition of which Rozière lately brought out in Paris—the whole impression was suppressed, for it contained the old form of oath which expressly attested the condemnation of Honorius. But twenty years later the book appeared to the great chagrin of Rome, and the infallibilist school had to change their front. They now turned to the letters of Honorius and tried to show that they were perfectly orthodox. But that did not touch the fact that a General Council had solemnly condemned a Pope for heresy, and that the whole Church—the Popes and the Roman Church included—had accepted the sentence without demur. Hefele has shortly and pointedly exposed the shifts and dishonesties of this long controversy carried on in more than a hundred polemical works; and he has taken care, at the same time, to establish conclusively the wide-reaching facts and general results of the inquiry. He shows (page 11), how up to the eleventh century every Pope swore [pg 458] to the truth that an Œcumenical Council had condemned a Pope for heresy.⁸⁷

Cardinal Schwarzenberg's work is chiefly directed against Archbishop Manning.⁸⁸ Hitherto the infallibilists, to avoid pushing their theory into sheer absurdity, had appended the condition of *ex cathedrâ*, which everybody could interpret more or less stringently according to his own view, and theologians had actually given twenty-five different explanations of what was required for an *ex cathedrâ* decision. In order to get out of this labyrinth, Manning has propounded a simpler theory. Everything according to him depends on the Pope's intention; whenever he “intends to require the assent of the whole Church,” he is infallible.⁸⁹ Schwarzenberg points out with pungent irony to what monstrous consequences this would lead. He recalls the saying of Boniface VIII. that the Pope holds all rights locked up in his breast. And thus it must be assumed on Manning's theory that the Pope holds in his own mind all doctrines present and future, [pg 459] and draws from this internal treasure-house under divine inspiration what he wishes to reveal to the world, so that infallibility becomes inspiration. Has it occurred to the Cardinal that this is precisely the personal opinion of the very man

who has now, for the sake of his own infallibility, resolved to plunge the Church into an internal conflict, of which no one can see the end?

It is then further pointed out that, if the new dogma with its consequences prevails, all Governments will put themselves in an attitude of self-defence against the Church. Bishops as well as Councils cease to be any necessary part of the *magisterium* of the Church, and there is no longer any need for the distinct assent of the Episcopate; the only office left them is to praise and accept with thanks every decision of the Pope's. Perhaps they may still be allowed to give their advice before he decides, but they have nothing to say to the decision itself or after it, but only to obey and promulgate the papal revelations.

[pg 460]

Thirty-Ninth Letter.

Rome, April 23, 1870.—The four chapters of the *Constitutio Dogmatica de Fide* bear in their ultimate shape such evident marks of the influence of the minority, and so many concessions were made in them, that there is a danger of overlooking the greatness of their defeat and their change of mind, should they finally accept the supplemental paragraph mentioned in my last letter but one. Although it was determined that the minority should make no general opposition to this paragraph, there were not a few Bishops

who saw clearly enough its importance and danger. They consoled themselves at first with the promise that the suspicious passage, which clothed the Roman Congregations and the mischief they work in the Church with conciliar sanction, would not be voted upon till the still incomplete portion of the *Schema de Fide* came on for final settlement. And when, in spite of [pg 461] this promise, it was announced to be the general wish of the Commission that the voting should take place at once, the opponents were quieted by a written assurance that no new power was thereby to be given to the Roman Congregations, and nothing to be altered about them, but all to remain as of old. Gasser, Bishop of Brixen, had the courage to say, in the name of the Deputation, that the passage did not refer to heresy, though it expressly binds the Bishops to the observance of the constitutions and decrees of the Holy See, not only in regard to heresy (*hæretica pravitas*), but also theological errors and controversies. It is incredible that any one could be deceived by such a ruse as this, and yet it is a fact that not even forty Bishops made the omission of this paragraph a condition of their *Placet*. As the Opposition seemed thereby to be shrunk to less than five per cent. of the Council, the *Curia* was persuaded that it could get rid of them altogether by acting with spirit.

On April 18 appeared an admonition with the following passage: "It must be remembered that according to the Apostolic Brief, *Multiplikes inter* (of Nov. 27, 1869), prescribing the method of procedure in public Sessions, no other vote can be given in them than a simple [pg 462] *Placet* or *Non placet*."⁹⁰ The Fathers who had given conditional votes in Congregation had to choose now whether they would accept the chapter unconditionally or reject it "sans phrase." It was foreseen that this alternative would disclose the weakness of the Opposition, and that those of its number who shrank from a decisive rejection would be won for the majority, for the real test of an Opposition is not in words but acts. Protests which are not answered, and speeches which are not heard, may be patiently borne with, as long as all goes well in the public voting. The *Curia* reckons that the minority will not now dare to show itself, and thus the unanimity will not be disturbed: and its consequent resolve might decide the whole course and upshot of the Council. If the minority gives in here, it will have suffered a first defeat, and must reconstitute itself on a new basis, by taking part in decrees carried under anathema, which are against its own convictions, it breaks with its

past, accepts the responsibility and solidarity of the Council and complicity [pg 463] with the majority. This is to admit that all the petitions and protests it was thought necessary to present in the interests of the freedom of the Council were superfluous and aimless, and all the warnings offered of the threatened danger of its œcumenicity being questioned, etc., unmeaning. For the Council to publish anathemas implies the conviction that it is free, legitimate, and œcumenical, and that the order of business is acceptable. The minority thereby would themselves testify to everything they have hitherto assailed, and the only thing left for them would be to insist on their rights as guarded by the *consensus unanimitis*. All other grounds for calling the Council in question would be abandoned, and it might fairly be doubted whether the Opposition would adhere to that after giving up so much; at the same time it is morally certain that the Court and the majority do not acknowledge that right.

During the General Congregation of the 19th, four Bishops, Latour d'Auvergne, Dreux-Brézé, La Bouillerie, and Mermillod, went to the Pope and requested him to have the decree on infallibility brought forward directly after the Solemn Session of the 24th. They thought rightly enough the favourable moment had [pg 464] come and all was now ready. Pius received the Bishops, who came as deputies of the 400, with great distinction, and replied that he would discuss the matter with the Presidents.

As it is impossible to see how the Bishops or the Governments could get rid of the *regolamento* when once it is fairly established, the Opposition Bishops know that they will have to approach the great question in the position they take for themselves to-morrow in the first solemn voting, and with such power, unanimity, and influence as they thereby establish their claim to. It is still open to them up to to-night to use the present moment for a complete victory. They only need declare that their protests and warnings were not idle words but seriously meant, that the incongruities which endanger the freedom of the Council and suggest doubts of its legitimacy must be got rid of before any decrees are published under threat of everlasting damnation, and that until they are listened to on this point they refuse to take part in any solemn voting.

But, as far as I know of the Opposition, the majority of them have no ear or heart for such counsel; their grand object is to avoid any decisive conflict, and so to-morrow they will simply yield,—to consider quietly [pg 465] afterwards their future plan of campaign! Some have thought they might save their honour and conscience by a written explanation of their vote. In the public international meeting of the Opposition these plans were rejected, but two rough drafts of the kind were proposed the day before yesterday, one by the Germans, one by the French. Both are too strong and dignified to find many supporters, and too weak to justify the Opposition in the eyes of the Christian world.

It is the sacred duty of the Bishops in Council to bear witness to the ancient doctrine of the Church, and to reform it when it has been obscured by abuses in practice and in the rule of the hierarchy. The more abuses there are, so much the more difficult, and so much the more indispensable also is this reform. What the Catholic world expects of the Council is not a fresh sanction, still less an increase, of these abuses, but the deliverance and purification of the Church from them. But to accept the paragraph which recommends obedience to the constitutions and decrees of Roman Congregations is to make the fulfilment of this serious duty, on which the fate of the Church hinges, impossible. For that paragraph will confirm and clothe with new authority decrees which are a disgrace to the [pg 466] Church and an injury to civilisation, wherein the confused morality of dark centuries is taught and Christian morality denied; and that too without any examination or discussion, any limitation or exception. The Bishops will thereby degrade themselves to servants of the Roman *prelatura*, and sink into accomplices of the Inquisition. We are told indeed that the paragraph will not touch dogma, but for ethics and practice it is almost more important than infallibility itself. It gives full play beforehand for arbitrary caprice and paves the way for the infallibilist dogma.

If we look into the future, the questions come before us of unanimity in matters of faith, and of the confirmation and acceptance of the Council throughout the Church. As to the latter, the Bishops will make it far harder for the Governments to stand by them if to-morrow they virtually repudiate their own protests. The question of unanimity remains as weighty as before, and the gross errors of the *Civiltà* in its attack on Strossmayer's vindication

of the principle of moral unanimity in decisions on faith has greatly lightened the task of two learned Bishops, who undertook to put in a clear light the true doctrine of the Church on the subject.

If the voting of to-morrow goes altogether in the sense [pg 467] of the *Curia*, the inference will be that all the positions of the minority can be turned, and that as they are resolved to avoid any collision, they may be brought by skilful manipulation not to trouble the moral unanimity any further. Many of them console themselves with the thought that they are only sacrificing everything to peace and harmony, and are not responsible for the undertaking they have been deluded into.

The propositions of the *Schema de Ecclesiâ* give abundant room for manœuvring. There are many opportunities for apparent concessions and for dividing and perplexing the Opposition, and finally driving them into a corner, so that in mutual distrust of one another they may abandon all hope of making any successful resistance, and satisfy themselves that as nearly everything has been given up already it is not worth while to risk a catastrophe by taking any further step.

[pg 468]

Fortieth Letter.

Rome, April 24, 1870.—The final votes of *Placet* or *Non placet* on the four chapters of the *Schema de Fide* are to be taken in to-day's public Session. And thus after four months and a half a theological decree, or rather a batch of decrees and doctrinal decisions, will be brought to a successful issue, and the first ripe fruit plucked from the hitherto barren tree of the Council, so that there will be something in black and white to carry home. As these four chapters have been subjected to the pruning and toning down of the Opposition, they bear little resemblance to the original draft of the Jesuits, and the minority may lay claim to a victory which four months ago could scarcely have been hoped for. What has been gained for the future by these theological commonplaces and self-evident propositions is of course another question. The general view of the Bishops appears to be that there is no real [pg 469] gain for the Church in these propositions, which can only excite the wonder of believing Christians that it should be thought necessary to prohibit at this time of day such fundamental errors. The value of their labours they take to lie, not in what they have said, but in what they have with so much trouble expunged from the *Schema*.

Several Bishops attach great weight to the consent of the Deputation to substitute for “*Romana Ecclesia*” the words “*Ecclesia Catholica et Apostolica Romana*.” Others think it a matter of indifference. Hefele's pamphlet on Honorius has created such a sensation that the Pope has commissioned the Jesuit *Liberatore* and *Delegati*, Professor at the Sapienza, to white-wash Honorius, and make away with everything in his history incompatible with the new dogma. Pius is persuaded, and his infallible “feeling” tells him, that everything must have happened quite differently from what is represented; how, he knows not, but he thinks that the Jesuit and the Roman professor have only to make the proper investigations and they will soon discover the requisite materials for refuting the German Bishop.

On Wednesday, April 20, Rome was illuminated to [pg 470] celebrate the Pope's return from Gaëta. The Roman officials greatly dislike these illuminations on financial grounds, for they have to contribute to the cost out of their own pockets. A triumphal arch was erected for the Pope at the end of the narrow street leading to St. Peter's piazza, and the following inscription in letters of fire was conspicuous far and wide:—

Popoli chinatevi innanzi al Vaticano,
Ecco il Pontefice ch'io vi conservai nei giorni di pericolo,
Esso è la pietra angolare della mia chiesa,
Il refugio degli oppressi,
Il sostegno del povero,
Lo scudo della civiltà e della fede.

That is the witness Pius bears to himself. To theologians it may be a new idea that he personally is the corner-stone of the Church, but that is only one of the many predicates and prerogatives which may be deduced from infallibility. Two isolated voices cried “Evviva il Papa infallibile.” It was clear the multitude was to be stimulated to swell the cry, but, as before, all remained quiet. The attempt has been sometimes made before, whether by amateurs or under official inspiration I know not, and then Veuillot asserts in the *Univers* that he has heard this shout of vast multitudes breaking forth spontaneously from the exuberance of their [pg 471] hearts. It is like the music of the spheres which only Pythagoras heard.

Ketteler's pamphlet was finally published on April 18, and the Bishop has begun to distribute it. It is really directed against the dogma itself, which for a long time people could not believe, and not merely against the opportuneness of defining it. How much better would it have been for the interests of the Church, if the necessity had been recognised long ago for looking this Medusa's head straight in the face, and defying its petrifying gaze, and if our Bishops had plainly and decisively announced their resolution last December to have no dealings with it. Now at least Cardinal Rauscher does not spare warnings; he perceives the gravity of the danger and has had a new fly-leaf distributed, showing that the promulgation of papal infallibility will elevate the two Bulls *Unam Sanctam* (of Boniface VIII.) and *Cum ex Apostolatûs officio* (of Paul IV.) into rules of faith for the whole Catholic world, and thus it will be taught universally in Europe and America, henceforth, that the Pope is absolute master in temporal affairs also, that he can order war or peace, and that every monarch or bishop who does not submit to him or helps any one separated [pg 472] from him ought to be deprived of his throne if not of his life, besides the other wonderful doctrines in the second of these Bulls, which must reduce every theologian to despair.⁹¹ All that is nothing to the majority, for whom the law of logical

contradiction has no existence. It is their watchword that the dogma conquers logic as well as history. One of their German members gladly re-echoes the idea that the proper aim and office of the Council is to stop the mouth of arrogant professors; if that is accomplished everything is gained, according to this pastor of a flock feeding on red earth. On the other hand I heard very different words fall to-day from the mouth of another German Bishop, who said he was constantly asking himself how long the German Bishops would look on and put up with everything.

The great and all-absorbing question now is what will next be brought before the Council after April 24. In the natural order the second part of the *Schema de Fide* would come on, which is comparatively innocuous though abundantly capable of improvement. But is it not time to fabricate the talisman of absolute power, the infallibilist dogma? Then would the Council be in the fullest sense and for ever provided for and [pg 473] finished, and the master would praise his servants. Many will answer the question in the affirmative. The two modern Fathers, Veuillot and Margotti, strain every nerve daily for that end, and many of the most zealous French Bishops—as those of Moulins, Bourges, and Carcassonne, and the indefatigable Mermillod—have represented to the willing Pius, as I mentioned yesterday, that now is the nick of time, and that he may gratify the longing of his faithful adherents by placing infallibility in the order of the day. These Frenchmen consider that their Government, now occupied with the plébiscite, will not trouble itself with the acts and decisions of the Council, and moreover needs the help of the clergy. Amid the bustle of the plébiscite, they think the new dogma, and even the reproduction of the Syllabus in the twenty-one canons, will excite little stir or indignation, for the French can only embrace one idea at a time, and the Parisians only discuss one subject in their *salons*.

Banneville has at last actually presented the memorandum of his Government to the Pope, as President of the Council, and with the intimation that it should be communicated to the Fathers. That of course will not be done, for both Pius and Antonelli are irritated [pg 474] at the paper. Pius is annoyed at the innermost kernel of the dogma being so openly exposed to view, when Count Daru says, “You want to hand over all rights and powers to the Church, and then by the infallibilist dogma to concentrate

this plenitude of temporal and spiritual power in the one person of the Pope.” That is of course what the *Curia* does want, but it should be uttered in pious and somewhat obscure phraseology, as the *Civiltà* usually speaks, and not be called by its right name in this bold and naked fashion. Antonelli again is much displeased, because his favourite distinction between the principles in which the Church must be inexorable, and the practice in which Rome will graciously concede the very opposite, is met here by the inquiry whether the faithful are actually to be taught henceforth that they must believe what they need not carry out in practice, and accept as divinely revealed rules which they may without hesitation transgress? He had reckoned on a better understanding, on the part of the French Government, of the favourite Roman theory of infinite and inexhaustible papal indults and dispensations, and is glad that he need make no reply to the note which throws so glaring a light on the morality of the *Curia* and its notions of [pg 475] duty and truth. He contents himself with telling the diplomatists that there would be some difficulty in the Pope's communicating the note to the Council. Clearly, for they must at the same time be directed to attempt a refutation, and that would lead to very awkward consequences. The French Government might indeed have sent their memorandum to each Bishop separately, but then they would have had the prospect of the non-French Bishops of the majority returning it unopened.

Count Trautmansdorff has also presented the memorandum of the Austrian Government to the Cardinal Secretary of State. It runs as follows:—

“Nous voulons seulement élever aussi notre voix pour dégager notre responsabilité et signaler les conséquences presque inévitables d'actes qui devraient être regardés comme une atteinte portée aux lois qui nous régissent. Comme le Gouvernement français, c'est à un devoir de conscience que nous pensons obéir, en avertissant la cour de Rome des périls de la voie dans laquelle des influences prépondérantes semblent vouloir pousser le Concile. Ce qui nous émeut, ce n'est pas le danger dont nos institutions sont menacées, mais bien celui que courent la paix des esprits et le maintien de la bonne harmonie dans les relations de [pg 476] l'état avec l'Église. Le sentiment qui nous fait agir doit paraître d'autant moins suspect au St. Siège qu'il correspond à l'attitude d'une fraction

importante des Pères du Concile, dont le dévouement aux intérêts du Catholicisme ne saurait être l'objet d'un doute. Placés sur un tout autre terrain que cette fraction, puisque nous n'obéissons qu'à des considérations politiques, nous nous rencontrons toutefois aujourd'hui dans le désir commun d'écarter certaines éventualités. Cette coïncidence de nos efforts nous permet de croire qu'en prenant la parole au nom des seuls intérêts de l'État nous ne méconnaissions pas ceux de l'Église. Si la démarche du Gouvernement français, que nous désirons seconder de tout notre pouvoir, vient en ce moment donner un appui à la minorité du Concile et l'aider à faire prévaloir des idées de modération ou de prudence, nous ne pourrions que nous féliciter d'un tel résultat, bien que, je le répète, notre action soit parfaitement indépendante et doive rester en tout cas indépendante de celle des membres du Concile.”

Finally the observations of the French Government are urgently commended to the attention of the *Curia*.

[pg 477]

Forty-First Letter.

Rome, April 27, 1870.—We find ourselves in a remarkably critical position here. The great event so long expected of the first promulgation of dogmas is over, and the desired unanimity has been successfully attained for these

four chapters of the *Schema de Fide*, notwithstanding the supplemental paragraph. Two Bishops who could not overcome their dislike to that paragraph preferred to stay away or leave Rome for the day. All the curialists are in high feather, and are congratulating each other on their victory, boasting that they have gained three most important points without any public opposition. First, the Pope, for the first time for 350 years,⁹² and in contradiction to the practice of the first 1000 years of Church history, has defined and published the decrees in his own name as supreme legislator, just like those masters of [pg 478] the world, Innocent III., Innocent IV. and Leo X., merely with the addition that the Council also sanctions them. Secondly, the new order of business has now been virtually accepted by all, and the protest abandoned. Thirdly, the conclusion, which is meant to invest with conciliar authority the former dogmatic decrees of the Popes, has been accepted.

The excitement visible on the countenances of the majority, when Schwarzenberg, Darboy, Rauscher and Hefele were called up to vote, showed what had been expected. The mass of the majority say the same thing will happen when the *Schema* on the Church has to be voted on; the minority answer that it will not, and that they only want to avoid wasting their powder before the time; “la minorité se recueille,” like Russia after the last war, and on the division day will be found fully equipped for the fight. We shall soon see, for that day is not far distant. But now what next? The infallibilist party are afraid of this dogma being lost after all, like a ship wrecked in port. They reckon that the time is approaching when the Council must inevitably be prorogued, and therefore urge the Pope to break through the regular order of the *Schemata*, and bring forward at once either the whole *Schema de* [pg 479] *Ecclesiâ* or the article on papal infallibility which has been interpolated into it. The four French Bishops assured him that they spoke in the name of the 400. Pius would not of course feel any very constraining influence in their wishes *per se*, for he knows well enough that the 400 are composed mainly of his foster-sons and of the Bishops of the States of the Church and the Neapolitans, who all speak or hold their peace and sit or stand as they are bidden. But it would be an unspeakably bitter sacrifice for him to refuse to his trusty adherents what he so earnestly desires himself, and to let these 400 or at least many of them say, “Your own organ, the *Civiltà*, the Jesuits, Veuillot, Margotti—have forced this

question upon us; we have agitated for it and staked our name and theological credit on it, and now it is all to be labour lost!”

But now the writings of the German Bishops have appeared and the notes of the Governments have been delivered. To the French note is added a more urgent one from Austria, as well as a Prussian, a Portuguese and now also a Bavarian note, and all breathe the same spirit. All give warning that they shall regard the threatened decrees on the power and infallibility of the Pope as a declaration of war against the order and authority of [pg 480] the State. Even the English Government leaves no room for doubt about its mind, and if the Pope—as I know—fears above all things any manifestation of feeling there, he might learn from Manning that the strongest antipathy is felt among all classes, high and low, to the proposed dogmas, and that English statesmen see in them nothing less than a suicidal infatuation. Manning has thoroughly authentic proofs of that in his hands, but of course he won't produce them.

Pius is in a chronic state of extreme irritation. He sees with pleasure his two favourite journals—the *Univers* and *Unita*—abuse the Opposition Bishops in the most contemptuous language, and he indulges himself in outbreaks of bitterness against those who question his infallibility, which pass from mouth to mouth here but which one dares not write down. Even Cardinal Bilio is alarmed at such ebullitions, and affirms that he is constantly urging moderation and forbearance on the Pope, and has already warded off a great deal of mischief.

What strikes us foreigners is the evident indifference to the Council and its acts manifested by the inhabitants of the eternal city of every class. It is [pg 481] seldom spoken of in society, and what absorbs the attention of the world north of the Alps seems hardly to have the least interest for the Romans, what is there heard of with astonishment they hardly think worth a passing mention. And if ever the Council is spoken of, it is in hurried, mysterious, abrupt sentences, for every one says the espionage system has never been in such force here as since the opening of the Council, and a large staff lives by the trade. I know persons here whose doors are constantly watched by spies, who do not even conceal themselves, and if the Roman theologians had such rich materials for their investigations as is

possessed by the Roman police, they would not have their equals in the world.

The Romans as a rule are fully aware of the financial value of the infallibilist doctrine, and know right well that a large increase of revenue as well as power from all countries is looked for as its product. That in their eyes is already an accomplished fact. They know for certain that the dogma will be at once proclaimed, and there is hardly a Roman here who has not an uncle or brother or nephew in orders and may not hope to share the anticipated profits in his own person or in the person of his relatives. The curialists [pg 482] here say, “We have lost so much by the diminution of the States of the Church, and so many payments, benefices and lucrative posts have passed out of our hands, that we absolutely require to be indemnified in some other way, and this the new dogma is intended to do and must do for us.” If ever the Pope is acknowledged throughout Christendom as an infallible authority, it is inevitable that ecclesiastical centralization should take much larger dimensions than before. Not only doctrine, but everything concerning Church life will be drawn to Rome and there finally settled. Theologians may undertake to distinguish between matters to which the Pope's infallible authority extends or does not extend, but in practice everything signed with his name will be held to be an utterance of divine truth, and nothing which is not attested with that signature will be held valid. There is a proverb here—

Quei consigli son prezziati
Che son chiesti e ben pagati.

And who would not gladly pay a handsome sum to be armed with an infallible decision, which will at once crush all opposition and put down all adversaries? The golden age of papal chanceries and clerks lies not in the past, in the fourteenth and fifteenth centuries [pg 483] when, as a court prelate of the day tells us, the papal officials were daily employed in counting up gold pieces; it will first dawn on the day this truly golden doctrine of infallibility is promulgated. Were Cicero to re-appear in Rome now, he might repeat what he said in the Oration *Pro Sextio*, “Jucunda res plebi Romanæ, victus enim suppeditabatur large sine labore;” only he could

no longer add, “Repugnabant boni, quod ab industriâ plebem ad desidiam avocari putabant.” For such “boni” no longer exist at Rome; rather is the account of Tacitus completely verified, “Securi omnes aliena subsidia expectant, sibi ignavi, aliis graves.”⁹³ Another thing is the large and incurable deficit in the Roman finances, which must increase every year. There is an annual expenditure of thirty million francs to cover, and the Peter's pence, which came to fourteen millions in 1861, have sunk to about eleven millions, notwithstanding the collections ordered to be made everywhere twice a year. No further help can be obtained from loans. M. de Corcelles, who has exposed this uncomfortable state of things with the best intentions, has no other remedy to propose but a great increase of Peter's pence. [pg 484] It is hoped in Rome that the different nations will contribute larger sums than before to the Pope, now he is become infallible and thus more closely united to Deity. But they reckon much more on the enormous centralization and all-embracing monopoly of all possible dispensations, indulgences, consultations, canonizations, and decisions on moral, liturgical, political, dogmatic and disciplinary questions. They remember the treasures amassed in the temple of Delphi in ancient days, and expect the new oracle to be erected on the Tiber to attract, like a vast magnet, not iron but gold and silver.

Neither Pius nor the Monsignori and other curialists think it conceivable that the minority will hold out to the last in their opposition. They reckon securely on this fraction of the Council being broken up by fear and discouragement, and that few if any of them will let matters come to a *non placet* in the next public Session, and thus openly confess themselves unwillingly subdued. To those Roman clerics, who are accustomed to look at religious questions only as the ladder by which to mount to an agreeable life and good income, courage and steadfastness in the confession of ascertained truth is something strange and [pg 485] inconceivable. Fear and hope, calculations of loss and gain, will finally decide the Bishops' votes—that is the firm persuasion of every Italian member of the *Curia*. So much is certain: if on the very eve of the Solemn Session, when the new dogma is to be promulgated, it was certainly known that eighty Bishops would say *Non placet* next day, the Session would be countermanded and the Church saved. The first question for us Germans is of course whether we can trust our Bishops? Will they abide steadfast? Or will they at last sacrifice

themselves and the truth, their clergy and their flocks? As to what immediately concerns the clergy, this is not strictly a question of doctrine belonging to the sphere of religious faith and mystery, where one might make a willing submission of mind to a decree held to be the voice of divine revelation; it is a pure question of historical facts to be determined by historical evidence, of points on which every educated man capable of judging evidence, whether a Catholic or not, can form an independent judgment. Every one with eyes to see can answer with absolute certainty these three questions, on which the whole matter hinges—

1. Is it true that the admonition to Peter to confirm [pg 486] his brethren has always and in the whole Church been understood of an infallibility promised to all Bishops of Rome?
2. Is it true that this infallibility of all Popes has been taught and witnessed to in the whole Church through all ages down to our own day?
3. Is it true that no Pope has ever taught a doctrine rejected by the Church, and that no Pope has ever been condemned by the Church for his doctrine?

It is absolutely impossible for any one, who feels compelled by his own investigation of history to answer these three questions in the negative, to submit inwardly to the opposite decision of the Council, whatever external homage he may pay to it. Ten Councils will not be able to shake him for a moment in his conviction; he will only say, “*pur si muove.*” His doubts will be turned, not against what is historically certain but against the Council; he will call in question the real freedom, the intrinsic claims and authority of this Council, and—to go no further—the two successive regulations for conducting business supply in this case abundant materials for the question. And it is just as impossible for a man who has a notion of historical certainty to believe in any one else's mind being changed by the [pg 487] decree of an assembly of Bishops. If a well-educated man told me he had just come to the conclusion that Julius Cæsar never lived, I should not believe in his conviction but in some disorder of his mental faculties, and should advise him to undergo medical treatment. And so, if the new dogma is proclaimed and the clergy submit either tacitly or expressly, no cultivated man in all Germany will believe that the thousands of scientifically trained men who have had a German education have suddenly changed their

convictions, because some hundreds of Italians and Spaniards have chosen to decree away the testimony of history. "Facts are stubborn things." Public opinion will recognise only two alternatives in the case of those who submit, ignorance or dissimulation and falsehood. And the effect will be an immeasurable moral degradation of the Catholic clergy and a corresponding decay of their influence.

This consideration will not of course make the slightest impression on the majority of the Council, or even on those Germans who belong to it. We have psychological riddles to deal with here. How, *e.g.*, are we to explain the fact that a man, who has taught the very opposite doctrine in a manual of instruction for [pg 488] the higher class of colleges published seventeen years ago, and has let it pass through eleven or twelve editions without a word being altered, is now in Rome one of the most zealous promoters of the definition, and is constantly affirming that all the clergy except a few professors will readily submit?

[pg 489]

Forty-Second Letter.

Rome, April 29, 1870.—What I mentioned in my last letter as a pamphlet of Cardinal Rauscher's, is a printed memorial addressed to the Presidents of the Council, bearing the title of *Petitio a pluribus Galliæ, Austriæ et Hungariæ, Italiæ, Angliæ et Hiberniæ et Americæ Septentrionalis Præsidibus exhibita*, and dated April 20th. It states that papal infallibility is beset by many objections and difficulties, which require an examination such as is impossible in a General Congregation. Among them is one of supreme importance, bearing directly on the instruction to be given to the faithful on the divine commandments and the relation of the Catholic religion to civil society.

“The Popes have deposed Emperors and Kings, and Boniface VIII. in the Bull *Unam Sanctam* has established the corresponding theory, which the Popes openly taught down to the seventeenth century under [pg 490] anathema, that God has committed to them power over temporal things. But we, and almost all Bishops of the Catholic world, teach another doctrine. We teach that the ecclesiastical power is indeed higher than the civil, but that each is independent of the other, and that while sovereigns are subject to the spiritual penalties of the Church, she has no power to depose them or absolve their subjects from their oaths of allegiance. And this is the ancient doctrine, taught by all the Fathers and by the Popes before Gregory VII. But if the Pope, according to the Bull *Unam Sanctam*, possessed both swords—if, according to Paul IV.'s Bull *Cum ex Apostolatûs officio*, he had absolute dominion by divine right over nations and kingdoms,—the Church could not conceal this from her people, nor is the subterfuge admissible,⁹⁴ that this power exists only in the abstract and has no bearing on public affairs, and that Pius has no intention of deposing rulers and princes; for the objectors

would at once scornfully reply, 'We have no fear of papal decrees, but after many and various dissimulations it has at last become evident that every Catholic, who acts according to his professed belief, is a born enemy of the State, for he holds himself [pg 491] bound in conscience to do all in his power to reduce all kingdoms and nations into subjection to the Pope.' We need not define more precisely the manifold accusations the enemies of the Church might deduce from this.

"This difficulty then must be most carefully sifted before papal infallibility is dealt with. The Conference we demanded on March 11 may do much towards clearing it up. But the question, whether Christ really committed to Peter and his successors supreme power over kings and kingdoms is, especially in this day, one of such grave importance that it must be directly brought before the Council, and examined on all sides. It would be inexcusable for the Fathers to be seduced into deciding, without thorough knowledge and sifting, on a question which has such wide consequences and affects so deeply the relations of the Church to human society. This question therefore must necessarily be brought before them, before the eleventh chapter of the *Schema de Ecclesiâ* can be taken in hand. It might, if you please, be separately treated. But, as it cannot be adequately judged of without a thorough examination of the relations of the ecclesiastical to the civil power, it appears to us very desirable that the thirteenth and [pg 492] fourteenth chapters of the *Schema* should be discussed before the eleventh."

What first strikes one about this remarkable document is, that the German Bishops belonging to the minority—Martin, Stahl, Senestrey and the Tyrolese are of course out of the reckoning—are not represented here. Does this indicate a real divergence of view or only a difference of tactics? The former notion seems to me inconceivable. It is impossible that men like Hefele, Ketteler, Eberhard and the rest should have any doctrinal predilection for the system of papal absolutism extended over sovereigns and the whole political and civil domain. Certainly they too are so strongly opposed to the infallibilist dogma because it involves the mediatizing of all kings and governments. I can therefore at present discover no explanation of this phenomenon, and cannot allow any room for the suspicion that the

persistently active curialistic influences have succeeded in dividing the German Bishops from the rest of the minority.

What will the Presidents do with a document so serious, so moderate and so incisive? What have they done already? So far as I know, nothing. It is a principle, and has now become an habitual practice with [pg 493] them, to leave all representations and petitions of the minority unnoticed and unanswered. The directing Deputation, which is intrusted with the entire control of the Council, feels quite justified in adopting this line by the papal ordinances.

The policy hitherto pursued by the Jesuits and the *Curia* was, first to extend to the utmost the comprehensive office of the Church, as legislator for the nations and guardian of faith and morals; and then, by making the Pope absolute master and dictator of the Church, to assign to him all that had been claimed for the Church, so that he—acting of course in the interests of religion and morality, but simply according to his own good pleasure—should have every office, person and institution subject to him, and that the final appeal in every cause should lie to his tribunal. Since all this can only be secured and guaranteed by the infallibilist dogma, the inferences on the relations of Church and State drawn by the opposing Bishops form precisely the chief recommendation of that dogma in the eyes of the Legates, the Italian Cardinals, the Spanish and Italian Bishops and those of the French who are ultramontanes. They all say among themselves, if not aloud before the world, “That is just what we want; our very object is [pg 494] to get the doctrine on the relations of Church and State changed, the independence of civil society and the civil power abolished, and the complete temporal supremacy of the Church—*i.e.*, the Pope—at least gradually established.” It is not indeed advisable to say this as yet in such explicit and unreserved terms, but the reason why the infallibilist dogma is so opportune and indispensable is exactly because it implies jurisdiction over the temporal sphere, which the Pope can according to circumstances either leave unused and say nothing about it, or suddenly draw forth for use like a weapon concealed under a mantle. He has dealt thus with the Austrian Constitution; while he let alone other countries, whose constitutional systems must have been partly at least a scandal on Roman principles, he pronounced the Austrian Constitution abominable (*nefanda*). And any one,

who wishes to examine the practical significance of this infallible judgment, need only go to the Tyrol and observe how it has been already explained there to the inhabitants by their enthusiastic clergy.

At the audience, when he presented the French note to the Pope, Banneville expressed the wish of his Government that the discussion of the *Schema de Ecclesiâ* (with the chapter on infallibility) might at least not be [pg 495] taken before its time—which was equivalent to saying, “At least give us time, for the matter is not yet ripe for discussion.” Hitherto delay has been for the interest of the *Curia*, for it was expected that the minority would wither away and finally be extinguished; they trusted to the power so often proved of the Roman solvents. The article of the *Civiltà* which told the prelates, “We care nothing for your talk about moral unanimity in matters of dogma, and shall make the new dogma in spite of your opposition,” was written *in terrorem*, and was meant to hold up before the refractory the terrible perspective of a contest emerging in the abortion of an impotent schism. The article has not in the main produced the desired effect, for the Bishops still hold together and bind themselves by writings and public declarations, and the number of those who can no longer with any decency desert to the majority threatens to increase. Now therefore it is the interest of the *Curia* to allow no further delay, but to bring forward the *Schema* at once.

The Bavarian ambassador has presented the note of his Government, which appeals emphatically to the attitude of the German Bishops who represent in the Council sound principles on the relations of Church and [pg 496] State.⁹⁵ It cannot indeed appeal to its own Bishops, for three of them are active and fiery supporters of infallibilism and the supremacy of the Pope over Kings and States. It was previously thought impossible for a German Bishop to desire to see the day when the Popes could again grasp the reins of temporal dominion which had dropped from their hands, depose monarchs, give away countries, abolish constitutions, annul laws and dispense oaths of allegiance. But this spectacle we now enjoy! For the pastors of souls must be assumed to intend to make dogmas, not for a mere pastime or for the enrichment of theological commentaries and text-books, but in order to reduce the theory to practice.

Pius did not say, when receiving the French memorandum, whether he would communicate it to the Council. But Antonelli has now stated that the Pope, though President of the Council, will not find it at all advisable to do so. That is only consistent, for every curialist [pg 497] regards the Council as under strict tutelage, and in fact only existing by the will of the Pope and living by the breath of his mouth. It is simply from care for their health that he withholds so unsound a document from his Bishops. Antonelli says he will not reply to it, as it contains nothing new, and merely repeats the note of Feb. 20, which is not strictly true. He adheres to his favourite distinction, "In theory we are inexorable, grasping, high-flying, as Gregory VII. or Innocent III., but in practice full of forbearance and compassion. We take account of human weakness and blindness, and, if the Northern nations do not acknowledge the prerogatives of our priestly absolutism, and desire to retain their political and religious liberties in spite of our theoretical condemnation of them, we shall not force matters to an open breach and shall make no use of the old methods of compulsion."

Now are the Governments agreed or not in reference to the Council? They are no doubt all agreed in their aversion to the new dogma and the renewal of the Syllabus, but there is a great difference in their practical attitude. The rulers in some States mean to utilize the occasion for bringing about the entire separation of Church and State, *i.e.*, for gradually extruding the Church [pg 498] and the clergy from all the positions of public trust they still hold, and reducing the Church to the level of a sect tolerated and as far as possible ignored by the State, and secularizing education, marriage and family life. This is the attitude of Belgium, Italy and Spain towards the Council. Out of Belgium there is no country so remarkably indifferent about the Council and its decrees, whatever they may be, as Italy, *i.e.*, the Italian Government and many millions of Italians. The statesmen there say, "We have no Concordats to defend, for they have fallen with the old Governments; the State has no longer any concern with religion and the Church, which are mere private affairs of the individual. And thus the separation of Church and State is already in principle accomplished." I can vouch for the following saying of a high public official there: "There are hundreds of us who do not know whether we are among those excommunicated on political grounds or not. In a dangerous illness we may send for a confessor, and then we shall find out."

The number of those who desire and aim at this complete divorce of Church and State is legion. Their view predominates in the French cabinet since Daru's retirement, and most of them view what is going on in [pg 499] Rome with satisfaction and hope. The more frantic and insolent is the conduct of the Papalists, so much the better in their opinion, for so much easier and more painless will the separation be for civil society. To make papal infallibility and the Syllabus into dogmas is in their eyes a step which, far from hindering, one should wish to see thoroughly effected. When the Church is caught in this net, she must assume the full responsibility of all doctrines and principles established by any of the Popes, and she has herself pronounced judgment on their utter incompatibility with the whole existing order of society. The State can then no longer go hand in hand with her anywhere, and will dismiss her. It is impossible to be ignorant that this view is widely prevalent, and is rapidly and powerfully increasing.

[pg 500]

Forty-Third Letter.

Rome, April 30, 1870.—Now that the matter has gone so far, those about the Pope no longer make any secret of the fact that for many years—indeed from the beginning of his pontificate—he has formed the design of making papal infallibility an article of faith. A work has lately been distributed here, *Riflessioni d'un Teologo sopra la Riposta di Mgr. Dupanloup a Mgr.*

Arcivescovo di Malines, Torino 1870. The writer says, “Could the Bishop of Orleans be ignorant that Pius IX. has always intended to define this dogma and condemn Gallicanism? All the acts of his pontificate have been directed to this end. Nay, we affirm distinctly that he believed himself to have received a special mission to define the two dogmas of papal infallibility and the Immaculate Conception.⁹⁶ And as [pg 501] he is under the special guidance of the Holy Ghost, his will sufficiently establishes the opportuneness of this definition.”

This was obviously written for the eyes of the Pontiff, whose whole life is surrounded as with a rose-garland of miraculous deliverances, illuminations and divine inspirations. And thus the veil is now dropped, and the time come for speaking openly. Up to the end of last summer, and even till December, the answer given from Rome to all inquiries and anxieties of Bishops or Governments was, that there was no intention of bringing infallibility before the Council and that the *Civiltà* was mistaken; the Court of Rome was not responsible for what an individual Jesuit might write. Antonelli gave the most quieting assurances on all sides. But meanwhile the Committee of Theologians employed in preparing the materials for the Council had already voted this new dogma, under direction of the highest authority, and Archbishop Cardoni had sent in his report upon it, which was received by all against the single vote of Alzog. The subjects to be brought before the Council were carefully concealed from the Bishops, and an oath of silence imposed on the theologians who were summoned, in [pg 502] order that they might come to Rome unprepared and without the necessary books, and might simply indorse the elaborations of the Jesuits as voting-machines in the prison-house of the Council.

It is merely repeating what is notorious in Rome to say that Pius IX. is beneath comparison with any one of his predecessors for the last 350 years in theological knowledge and intellectual cultivation generally. One must go back to Innocent VIII. and Julius II. to find Popes of similar theological and scientific attainments. It is known here that, small as are the intellectual requisites for ordination in the Roman States, it was only out of special regard to his family that Giovanni Maria Mastai could get ordained priest. His subsequent career offered no opportunity or means for supplying this neglect, and thus he became Pope with the feeling of his entire deficiency in

the necessary acquirements. This unpleasant consciousness naturally produced the idea that the defect would be remedied without effort on his part by enlightenment from above, and divine inspiration would supply the absence of human knowledge. This illusion has been and will be so common, that we need not have troubled ourselves about it, did it not threaten now to become a destructive firebrand. [pg 503] The public letters which have passed of late between the assembled Fathers on the absorbing question of the day deserve attention. They show the deep gulf which divides the members of the Episcopate. There is Spalding, Archbishop of Baltimore, who first wanted to help the Pope to get his infallibility acknowledged indirectly by his now famous *postulatum*, where the real point was kept in the background, when he proposed a decree that every papal decision was to be received with unconditional inward assent. But now, in his letter to Dupanloup, he has changed his mind, and wants infallibility to be openly and explicitly defined. So again in the *postulatum* he had declared moral unanimity to be necessary for a dogma, but now on the contrary he considers a mere majority of votes to be sufficient. Two other American Archbishops have come forward in opposition to him, Kenrick of St. Louis and Purcell of Cincinnati. They say that Spalding's letter has fallen among them like a bomb-shell; it has hitherto been their custom for such matters to be discussed in an assembly of the American Bishops, but that has not been done in the present case, and he has written his letter alone and without any communication with his colleagues. Indeed he had previously [pg 504] advised them to oppose the definition of infallibility, as sure to produce nothing but difficulties, but now he has taken up just the opposite view, on what grounds they know not. The two prelates add that American Catholics have very special reasons for disliking the definition, for the notion of the Pope having the right to depose monarchs, dispense oaths of allegiance, and give away countries and nations at his will, is equally strange to Protestants and Catholics in their country. They think that Archbishop Spalding will find himself greatly embarrassed in America with his infallibilist doctrine, as has already been the case for some years with regard to the condemnation of religious freedom by the Syllabus. The two Archbishops, as one sees, tread lightly and cautiously. They are in Rome,—“incedunt per ignes suppositos cineri doloso.” Still they assert with American freedom of speech, “We, and several more of us, believe that the dogma contradicts the history and tradition of the Church.”

The citizens of the United States, whether Protestant or Catholic, will certainly be astonished when the new dogma comes into full force among them and its consequences are brought to light, suddenly recalling a long series of papal decisions into active life;—when, [pg 505] for instance, the recent Bull (*Apostolicæ Sedis*), with its many and various excommunications reserved to the Pope alone becomes known, and again the decision of the infallible Urban II. that it is no murder to kill an excommunicated man out of zeal for the Church, a decision which to this day stands on record in 200 copies of the canon law. And as a commentary on this the work of the present Jesuit theologian of the Court of Rome, Schrader (*De Unitate Romanâ*), will be put into their hands, from which they will learn that the contents of all papal decrees are infallible, for they always contain some “doctrina veritatis”—whether moral, juridical, or rational—and the Pope is always infallible “in ordine veritatis et doctrinæ.” Yet that is but one flower from the dogmatic garden, into which Archbishop Spalding will introduce the citizens of the United States after infallibility is happily proclaimed. They will then also hear, among other interesting truths, that according to the irrefragable decision of Leo X. every priest is absolutely free by divine and human law from all secular authority, and no layman has any right over him.⁹⁷ And they must be reminded, in order to [pg 506] make them more submissive, that in 1493 Pope Alexander VI. gave over their country with all its inhabitants, “in virtue of the plenitude of his apostolic power,” to the kings of Spain in the infallible Bull *Inter cætera*,⁹⁸ and then drew the famous line from the North to the South Pole, which included whole provinces of the present United States in his great and generous gift. By virtue of papal infallibility they are subjects of the Spanish Government, and who knows if right and fact may not some day again coincide? “Res clamat ad dominum.”

[pg 507]

Forty-Fourth Letter.

Rome, May 13, 1870.—The time for the most eventful decisions is come: to-morrow the debate on infallibility commences. The opponents of the dogma have taken every means to put off this decision, and now that they are foiled, enter upon the question with the greatest repugnance and a sense of being defeated by anticipation in the perilous contest. The diplomatists too, who had presented notes from their Governments to the Vatican or had been instructed to support the notes presented, made urgent representations that the existing order of business should not be departed from, so as to get the discussion of infallibility deferred. And then some Bishops made an attempt to move the Pope's conscience. They told him that by this undertaking he was sowing divisions among the faithful, shaking faith, preparing for the closing days of his life a terrible disillusionizing and bitter [pg 508] reproaches, and kindling a fire which after blazing up in various parts of the Catholic world would turn into a frightful conflagration. He was urgently entreated to listen to some of the Bishops, who were in a position to inform him of the real state of things in different countries.

There has unquestionably for some time past been a certain vacillation among the Pope's counsellors, but never for a moment did they think of giving up the whole enterprise, and confessing themselves defeated. And as it was clear that, if the *Schemata* preceding the infallibility question were discussed in their regular order, the hot season would set in with its miasmas, and the inevitable prorogation of the Council would most seriously imperil the dogma, the resolve to proceed at once with the matter, regardless of consequences, prevailed in the *Curia*. The Opposition tried to hinder this intention by a solemn act. A deputation, consisting of several Bishops of different nations—a German, a Hungarian, and a Bohemian Bishop for Germany—was to be sent to the Pope, with Archbishop Purcell of Cincinnati for its spokesman, to make the most earnest and direct representations to him. From fear of this demonstration, and in order at once to cut off all hopes [pg 509] placed upon it, the *Curia* had the *Synopsis Animadversionum* distributed in great haste, *i.e.* a selection from the

Opinions of the Bishops, partly in favour of the dogma, partly against it. The opinions are about equally divided, but some represent more than one author. Thus *e.g.* 4 Hungarians and 16 Dominicans, in one case 24 Bishops, gave in the same Opinion. They are all printed without the names, but some of the writers are easily recognised, as *e.g.* Rauscher, Schwarzenberg, Fürstenberg, Krementz, Dupanloup, Clifford, Kenrick, etc. It is to be observed that some of these opinions are printed word for word, while others—of the Opposition Bishops—are cunningly tampered with, to the great disgust of their authors. But in most cases the reader cannot tell whether he has the opinion of a man of high position or of a nobody before him.

In consequence of this rapid manœuvre of distributing the Synopsis, the Opposition did not think it well to send their deputation, which accordingly fell through. The dogmatic constitution on infallibility was known here on the 1st of May, but was not published for eight days afterwards. The *Curia* was evidently not yet quite clear about its tactics; perhaps the season might not appear sufficiently advanced, and they might feel [pg 510] more secure of carrying their point when the heat had driven the foreign Bishops away and the Council was left to the Italian and Spanish rump.

The minority however did not cease to labour for the postponement of the infallibilist discussion. The certainty that the *Curia* would be in earnest about it gave them somewhat more energy than they had shown in the debate on the Little Catechism. The voting on it on May 4 had been quite unexpected. For it had been resolved that the amendments modifying the text should first be voted on, and the whole text be decided afterwards, when printed and brought forward in the definitive form it had received through the voting on the amendments. But instead of that, amendments and text were voted upon on the same day, so that many Bishops—including Darboy and Kenrick—were absent, and the whole number of *non-placets* and conditional votes together did not reach 100. This voting on May 4 was however provisional; the definitive voting takes place to-day, Friday, May 13. The *Curia* of course does not wish to have so considerable an Opposition left, and has therefore somewhat altered the text, but not in their sense. All the German Bishops of the minority, amounting to about 40, will vote *Non placet*, [pg 511] as I hear, and the French also, with a single

exception, making some 30 more. Several others will join them, so that the previous 56 *Non-placets* will be augmented by most of the 44 prelates who voted *juxta modum*. The opposition to the Little Catechism may thus reach 100 votes, and will certainly exceed 80.

One might be tempted to ask why the Opposition, when it is so numerous, has no confidence of victory and is always shrinking from decisive measures. It is idle to suppose that the cancerous ulcer of infallibilism can ever be once for all cut out of the body of the Church, except by a scientific demonstration of its falsehood, or its adherents subdued without a decisive contest. This uneasy attitude of the minority arises from the want of sympathy and confidence among its various elements. The inopportunists are afraid of their allies not only hindering the definition but undermining belief in the doctrine and upsetting the whole Jesuitical system and school of lies, and thus exposing the contrast between the primacy as Christ founded it and as it has since been perverted. And the others judge from what they themselves say that their resistance will not be firm and persevering, and that they already think of yielding sooner or later. And even for [pg 512] those who hold the doctrine to be thoroughly false and unecclesiastical, it is much more convenient not to proclaim their conviction so roundly and maintain the opposition at all hazards, after the Pope has solemnly and formally committed himself and done all in his power to get the dogma defined and all condemned who reject it. For all who openly declared the doctrine to be an error would be declaring the Pope to be an innovator; and he must appear to every decided opponent of infallibilism no common innovator either, like any “doctor privatus,” but the most fearful and dangerous enemy of revealed truth and the pure doctrine of the Church, since he abuses his supreme authority to impose a false doctrine on consciences by terrorism, anathema and excommunication. But it is too much to demand of the Bishops to express such judgments, or give occasion for such conclusions and alternatives. While they wish to hold aloof from so tremendous a conflict, it is their interest to avoid a collision which must involve such considerations. The more many of them are ensnared in the delusion of the present papal system, the more vivid is their desire not to be forced into so public and decisive an announcement.

It is exactly those Bishops who are not the strongest [pg 513] dogmatically who display the most zeal in hindering the discussion on infallibility, and they have done a good deal to rehabilitate a force capable of resistance even after the abject surrender of April 24. This fact shows how little the astute and practised Roman Court has succeeded in gaining over the Fathers separately. The Hungarian primate notoriously signed the *postulatum* against infallibility with reluctance, and he has since openly adhered to the majority as spokesman of the Deputation *de Fide*, after he had previously retired from the assembly of German Opposition Bishops. He has a good right to reckon confidently on a Cardinal's Hat; and yet it is known that he, like almost all the Hungarians, will come forward to oppose the definition, and will probably speak against it to-morrow. Ginoulhiac, Bishop of Grenoble, who is perhaps the most learned Bishop in France, after Maret, though his learning is of a somewhat narrow and old-fashioned kind, is by nature and education one of those who are anxious to find some middle way, by which they may at once bow to authority and escape the consequences of an inexorable logic. The *Curia* has long believed his theologian's heart could be won by well-selected citations, but other means have been also [pg 514] employed. After he had been named to the Archbishopric of Lyons, the Pope refused him the desired audience and also the preconisation, so that the diocese will have to remain many months without a chief pastor. But he continued firm, and took part in the compilation of a document, which might well become the most important in its results of all the declarations of the Opposition. The Bishop of Mayence was predisposed by all his sympathies and antipathies to support the cause of Rome in this Council, and he has often, as well at Fulda as here, repudiated the notion that the Pope's claim to infallibility is an encroachment on the divine prerogatives. For a time he was a drag on his colleagues, but the policy of the Court and its treatment of the Opposition has more and more alienated him from the curialists; so that from seeming at first in Roman eyes to be divided by an immeasurable gulf from men like Dupanloup, he has become a powerful influence in the minority. The pamphlet on infallibility, written at his suggestion, and addressed from Solothurn to the Bishops, showed his changed attitude. This publication is well known to have been for a time kept back, and it was only after a contest of some weeks with the authorities that he succeeded in getting [pg 515] it issued. As the contemporaneous writings of Rauscher,

Schwarzenberg and Hefele met with no particular opposition, this hostile treatment of Ketteler was ascribed to the belief that the greater sharpness of the German protest against the order of business, as compared with the French, was due to him. Where the French text speaks of the Bishops as representing the Churches, the Germans added the remark that this was the more important to insist upon in the case of the Vatican Council, where so many Bishops were admitted to vote, whose claim to vote by divine right was doubtful.⁹⁹ This historical consideration has since been urged with great effect by Kenrick, whose decisive weight in fixing the value of the Vatican Council will only be known later. It was universally believed that Ketteler had co-operated in getting this passage inserted in the German Protest, and so one is not surprised that he should have taken a leading part in the last move of the Opposition. To-day a declaration, signed by 77 Fathers, has been presented to the Presidents, protesting energetically against the inversion of the established [pg 516] order in the interests of infallibility. It contains the severe remark that they well know no answer can be expected, but they are unwilling to let any doubts be cast on the freedom of the Council, and to have the Bishops made a public laughing-stock.

They cannot take much by this move. The arguments against inverting the purely arbitrary order of business, previously introduced, are weak in comparison with the objections to the definition on principle, and to insist on them is simply beating the air. The majority only see proofs of their weakness and grounds for increased confidence in the obstinate holding aloof of the Opposition from the main question, and in the fact that men who are not real assailants of the dogma play a prominent part in its proceedings. Wherever there has been any talk of hesitation, it has been only in the Vatican and the Commission *de Fide*, never among the mass of the party. Pius may for a moment have shared the scruples suggested to him by two of the Legates, and the Deputation may have believed that the dogma could be established without any violent precipitation, and regretted the indecent zeal of the French, but the ardent infallibilists—French, English, Belgian, Swiss, etc.—have never slackened in their confidence or their [pg 517] assiduity. They still affirm, as they ever have done, that infallibility has no real opponents or hardly any, and that the leading members of the Opposition privately hold the view or at least have never openly rejected it; there are but few even among the *Animadversiones*

which deny the admissibility of the definition. So they think that there is a bait for every one of these troublers of peace, and that they can all either be won over by concessions or frightened into submission. The example of the Prince Bishop of Breslau, who is known to have suspended a priest for attacking the doctrines of the Syllabus, is very interesting in this point of view. If the Pope were to issue a Bull condemning the opponents of his infallibility, and to deal in the same way or—as he easily might—more solemnly and harshly with other doctrines than the Encyclical of 1864, Prince Bishop Förster would at least punish all malcontents as severely as he punished the contemner of the Syllabus.¹⁰⁰ Yet in spite of all this, he is a member of the Opposition, and the majority believe it would probably soon melt away, if the Pope could resolve on adopting this policy. Moreover their leaders [pg 518] speak as though the Opposition had already incurred censures. They expect to make short work with the German Bishops who signed the Fulda Pastoral. In that document it is said, “The Holy Father is accused of acting under the influence of a party, and desiring to use the Council simply as a means of unduly exalting the power of the Apostolic See, changing the ancient and genuine constitution of the Church, and setting up a spiritual domination incompatible with Christian liberty. Men do not scruple to apply party names to the head of the Church and to the Episcopate, which hitherto we have been accustomed to hear only from the lips of professed enemies of the Church. And they plainly avow their suspicion that the Bishops will not be allowed full freedom of deliberation, and will themselves be deficient in the knowledge and straightforwardness requisite for the discharge of their duties in Council. And they accordingly call in question the validity of the Council and its decrees.”

Here in Rome the Bishops have to listen to these and similar observations *usque ad nauseam*, which their adversaries use only to remind them of this Pastoral. While denying before the world that the definition of infallibility was the object of the Council, [pg 519] or was intended at all by the holy Father, they at the same time wrote to Rome to deprecate it, being perfectly well acquainted with the designs of the *Curia*, and corresponded with friendly prelates on the means of averting it. And thus the other party may now say to them, “You acknowledge yourselves that the unity and strength of the Church is to be preferred to strict veracity, and that in so sacred a cause some measure of deception is allowable. Don't choose then to be

better than your neighbours. You have already abandoned the ground of objective truth, and you may as well come over to us altogether.” But the chief means of breaking the Opposition consists in the Pope's making the Bishops feel the full weight of his authority and compromising himself yet more deeply.

The *Curia* has succeeded in setting aside the attempted intervention of the Governments, and the battle will have to be fought out, as is fitting, by the Bishops themselves. In the mind of the majority it is already over; the Deputation has issued a reply to the objections of the minority, which deserves the most careful attention of the theological world. It contains a flat denial of the force of historical evidence, and closes with a repudiation of the necessity of moral [pg 520] unanimity.¹⁰¹ This points out the road which the loyal Bishops of the Opposition must follow.

Postscript.—I have just heard that the definitive voting on the Little Catechism, which was announced for to-day's sitting, has not taken place. The *Curia* had discovered that the German and French Opposition Bishops would vote *en masse* against it. No regard had been paid to the representations and objections of those who voted *juxta modum* on May 4, and accordingly this stronger resistance was foreseen, and the *Curia* shrank from appealing to a new vote. Matters remain as the voting of May 4 left them, and it is hoped that before the next Solemn Session the minority will be split up by a more important controversy.

[pg 521]

Forty-Fifth Letter.

Rome, May 14, 1870.—The sitting of May 4 requires a more particular mention which shall be added here. The reporter on the scheme of the Catechism was Zwerger, Bishop of Seckau, who is a special favourite of the *Curia*,—forming as he does with the Tyrolese Rudigier and Fessler the little party of Austrian infallibilists,—a youthful and elegant prelate, whose Latin is seasoned with such terms as *portraitus*, *præcautionibus*, etc. He gave the consoling assurance that the new Catechism should be compiled by a Commission of Bishops named by the Pope, so that it might be “*omnibus numeris absolutus*.” He added that unfortunately he could not introduce this masterpiece into his own diocese, but he would in principle vote for it.

The question of the Catechism is of course closely connected with that of infallibilism. For first the [pg 522] Catechism will quickly and strongly inoculate the rising generation with the dogma, and secondly, as being a papal text-book, it will familiarize all the young from an early age with the notion, that in religion everything emanates from the Pope, depends on him and refers to him. Thus every one will be taught that not only all rights, as Boniface VIII. said, but all religious and moral truths, are drawn forth by the Pope from the recesses of his own breast.

The notion is excellent, and does infinite honour to the Jesuits who invented it. It is like the egg of Columbus. One cannot think at first how it did not occur centuries ago to the astute members of the *Curia*. But to begin with, it would have been impossible earlier to fit this catechetical strait-waistcoat on such a Church as was the French; and then again a sufficient motive was wanting, for it is four centuries since any Pope thought of introducing new dogmas into the Church. The whole history of the Church offers but three examples of it. The first was the attempt of Gregory VII. and Innocent III. to alter the doctrine hitherto prevalent on the relations of Church and State, and to substitute the new doctrine of the Pope's divine right to exercise temporal sovereignty over princes and [pg 523] peoples. This did not succeed. The second instance was the attempt made from the thirteenth century downwards by the *Curia*, and especially by the Jesuits,—for which

a long series of forgeries and fictions paved the way,—to replace the primacy of the ancient Church by something totally different, viz., an absolute monarchy, so as to destroy the power and authority of the Episcopate, reduce the Bishops to mere delegates or commissioners of the Pope, and erect him into the irresponsible master of the whole Church and all its members, the sole source of all ecclesiastical jurisdiction. This scheme too was wrecked on the opposition, first of the great Councils, and afterwards of the French Church. The third attempt, to make all Popes infallible and thus establish the sole and universal monarchy of the Pope, is now going on. And as the teaching of the Church has to be altered and enriched with new dogmas, the Jesuits who inspire the Pope have quite rightly perceived that a Catechism clothed with supreme authority, such as never previously existed, must be introduced throughout the whole Catholic world. This undertaking promises special advantages to the Jesuit Order, and so it has been brought before the Council, and forced rapidly and unexpectedly to [pg 524] the vote. So little had it been anticipated, that over 100 of the Bishops in Rome were absent. Another attempt was made in this *Schema* to get papal infallibility accepted by a side-wind, by inserting a statement that the whole teaching office of the Church resided in the primacy, to the exclusion of the Bishops. It was felt at once that this would give the Pope a position and authority incompatible with any other, even that of the Church herself, and that the Bishops would entirely lose their judicial office in matters of doctrine. Partly on account of this passage, and partly on general grounds, 57 Bishops voted *Non placet*, among whom were Cardinals Schwarzenberg and Rauscher, Archbishops Scherr and Deinlein, and Bishops Dinkel and Hefe. It created a great sensation that Cardinal Mathieu, Archbishop of Besançon, also voted against it. He has only lately returned from his Easter visit to France, and is said now to belong decidedly to the minority. Among the 24 Bishops who voted *juxta modum*, were the Archbishops of Cologne and Salzburg, and the Bishop of Mayence. An interval of two days was given them to put into shape the condition on which they wanted to make their vote dependent. But we have already seen that, when the time was [pg 525] come, the Legates preferred not calling for any definitive vote.

Are we to infer from the collapse of so weighty and pregnant a question as this of the Catechism that henceforth everything will be settled much

quicker? I cannot say. But as early as January 22 the Pope declared, in a Brief addressed to M. de Ségur, that the delay in the proceedings of the Council was due to the powers of Hell, for as it was to inflict on them their inevitable death-blow, they wished to protract it as long as they could. Pius is persuaded that, as soon as the Council produces its fruits, all faults and vices will at once disappear from human society, and all who are in error be led into the truth. That is expressly stated in the Brief; and these are no mere phrases, such as the *Curia* frequently indulges in, but are uttered in sober earnest. Pius really holds his infallibility to be the divinely ordained panacea for effecting a thorough cure of mankind, who are now sick unto death. He is convinced that the fount of unerring inspiration, which will henceforth flow incessantly from the holy Father at Rome, will fructify all Christian lands like a supernatural Nile stream, and overflow all human science for its purification or its destruction. The Jesuits make [pg 526] the decrees, who are not indeed themselves infallible, but whose compositions, directly the Pope has signed his name to them, become inspired and free from every breath of error.

The psychological enigma presented by Pius can only be solved by looking steadily at the two root-ideas, which interpenetrate and supplement one another in his mind. There is first his belief in the objective infallibility of his 256 predecessors, and next his belief that he, Mastai, has through continual invocation and worship of the Madonna attained to an inspiration and divine illumination of which she is the medium. This last privilege is in his eyes, as all about him know and occasionally say, a purely personal one, which his predecessors did not all experience. But it strengthens his faith in infallibilism, and—which is the main point—he is certain by virtue of this infused illumination that he is God's chosen instrument for introducing the dogma. And this higher certainty naturally leads him to regard the opposing Bishops as unhappy men snared in the meshes of a fatal error, who rebel in their sinful blindness against the counsel of God, and will be dragged at the chariot-wheels of the triumphal car of the infallible Papacy in its resistless progress, like boys [pg 527] hanging on behind, in spite of their efforts to pull it back. And therefore sharp rebukes—*verbera verborum*—must not be spared these episcopal opponents. Pius knows that the German and American members of the party are infected by the atmosphere of Protestantism, and the French by that of infidelity, so that they are suffering

at least under a violent heterodox influenza, and require drastic remedies. But no one had imagined that all regard for decency would be so completely laid aside, and that the Pope would so far forget his high position as to actually descend into the arena, deal blows with his own hand, and assail all disputants with bitter and insulting words, as he has in fact done. He might have waited quietly till his unconditional majority of 500 had voted the dogma, and then have fulminated to his heart's content the plenitude of anathemas and curses at the still unbelieving “filii perditionis” and “iniquitatis alumni,” in the forms that are stored up ready for use in the Roman Chancery. But he is too impatient to wait for the decision, and exhausts all the weapons in his quiver by anticipation. When the Bishops of the minority presented their first remonstrance against the new dogma, he had it announced in his journals that it was only from the lofty impartiality [pg 528] which became him that he had not received their memorial, as neither had he received those of the other party. But now this mask is dropped, and no means are omitted for overreaching or intimidating the minority. It is confidently expected that fear and discouragement will soon do their work in splitting up the Opposition. Many of its members recoil in alarm from the position they will be placed in by persevering to the last. It needs more than ordinary episcopal courage, it needs a deep conscientiousness and faith firm as a rock in the ultimate victory of the true doctrine of the ancient Church, to confront in open fight the triple host of the *Curia*, the Jesuits and the ultramontanes.

And now for the first time the excellence of the Council Hall is proved, and the wise foresight of the *Curia* in choosing it and adhering to it with the firmness of old Romans in spite of all entreaties and representations to the contrary. It is precisely adapted to the present tactics of the majority. The Bishops will occupy a number of sittings with speeches, generally read, seldom spoken, which four-fifths of their auditors, as before, neither understand nor wish to understand. For the majority know everything already, they are [pg 529] armed with a triple breastplate, and have their short and powerful watchword, which renders them invincible. Those who frequent infallibilist circles here may hear St. Augustine's saying quoted ten times a day, “Roma locuta est, causa finita est,” or St. Ambrose's “Ubi Petrus, ibi Ecclesia,” or that St. Irenæus said every one must necessarily agree with the Roman Church. These are mere fables; Augustine and

Irenæus said nothing of the kind, but something quite different; and while Ambrose did indeed use the words, it was without the remotest reference to the Pope and his infallibility. But the words are quoted in a hundred books and pamphlets, and are used like theological revolvers which never miss fire. And then Mermillod will repeat in the Council what he lately said in a sermon here about the threefold manifestation of God in the crib of Bethlehem, in the Sacrament of the Altar, and—in the Vatican. Pie of Poitiers will utter some of those bold Oriental metaphors, which all France laughs at but which are gravely received in the Council Hall. Manning will commend infallibility as the one plank of safety for mankind who are sinking in the shipwreck of scepticism, while he sings a pæan over the triumph of the dogma over history. There will be room even for some [pg 530] flashes of genius from the German infallibilists, the Tyrolese and the three Bavarians, if they can resolve on opening their lips hitherto so firmly closed. And then the African heat and sultry atmosphere, drying up the brain, which have already begun to press on Rome like a leaden pall, will come in to expedite the close. The majority will avail themselves of the right the Pope has conferred on them to break off abruptly the discussion, in which nothing has been discussed, and the Pope will appear in a Solemn Session, in the full pomp of the earthly representative of Christ, to proclaim with infallible certainty his own infallibility and that of all his predecessors and successors, “*approbante Concilio.*” And thus will he enter on his new empire of the world; for he will then for the first time be the acknowledged master and sole teacher of mankind; before, he was only a pretender. The Bishops will bow their heads reverently under a profound sense of their own fallibility before the one divinely enlightened man, and the world will go to sleep to wake next morning enriched and blessed with the new and fundamental article of faith. The day of the promulgation will be a great day of creation. “God said, Let there be light, and there was light, and the evening and the morning were the [pg 531] first day” of the new Church, after the old Church for 1869 years had been unable to ascertain and formulize its chief article of faith. For the Popes were always infallible; “the light appeared in the darkness, and the darkness comprehended it not.” From the Pentecost of the blessed year 1870, as Manning has prophesied, dates the age of the Holy Ghost, and the Church is for the first time really complete. As the Pentecost of the year 33 was the birthday of the ancient Church, so will the Pentecost of 1870 be the birthday of the new and

infinitely more enlightened Church. Nearly all commentators now assume that the seven days of creation in Genesis are not seven ordinary days, but signify a great period of the world's history. It cannot then be taken ill if the Church, instead of distinctly putting forward her principal dogma on the first Pentecost, which would certainly have been the most natural course, should have waited nineteen centuries in the vain attempt to ascertain and formulate it, and have only now hatched the egg in the year 1870.

[pg 532]

Forty-Sixth Letter.

Rome, May 15, 1870.—Yesterday the discussion of the *Schema* on the Primacy began, *i.e.*, speeches were delivered for and against infallibility, for any regular discussion is of course impossible in the Council Hall. The Hall is really more patient than the proverbially patient paper, as long as the majority do not get excited. Things can be said there which would not be allowed to be written, still less printed. The names of 69 Bishops are inscribed to speak. Bishop Pie of Poitiers had already the day before, as reporter of the Deputation, exceeded the expectations generally formed of him. He had discovered a wholly new argument, to which he gave utterance with evident self-complacency. The Pope, he said, must be infallible, because Peter was crucified head downwards. As the head bears the whole weight of the body, so the Pope, as head, bears the whole Church; but he is

infallible who bears, not [pg 533] he who is borne.—*Q.E.D.* The Italians and Spaniards applauded enthusiastically. On the 14th Cardinal Patrizzi spoke. The Pope, he observed, certainly claims personal infallibility, but he does not therefore wish nor is he obliged to separate himself from the Episcopate. Certainly not, thought the minority, since we must all assent to that claim of the infallible, so that he cannot separate himself from us Bishops or shake us off if he wished it. Bishop Rivet of Dijon carried off the honours of the day among the Opposition. Bishop Ranolder of Vesprim referred briefly but forcibly to the dangers into which the new dogma would plunge the Hungarian Church. Dreux Brézé, who followed worthily in the footsteps of Pie, was this time eclipsed by a Sicilian prelate, who said that the Sicilians had a reason peculiar to themselves for believing the infallibility of all the Popes. It is well known that Peter preached in that island, where he found a number of Christians; but when he told them that he was infallible, they thought this article of faith, which they had never been taught, a strange one. In order to get at the truth about it, they sent an embassy to the Virgin Mary, to ask if she had heard of Peter's infallibility, to which she replied that she certainly remembered being [pg 534] present, when her Son conferred this special prerogative on him. This testimony fully satisfied the Sicilians, who have ever since preserved in their hearts faith in infallibility. This speech was really delivered in the Council Hall on May 14. The Opposition Bishops see a proof of the insolent contempt of the majority in their putting up such men as Pie and this Sicilian to speak against them.

Sicily is truly the land where faith removes mountains, and Pius would find himself among his most genuine spiritual children if he went to Messina. There the letter is still preserved, which the Virgin Mary addressed to the inhabitants and let fall from heaven, and the feast of the *Sacra Lettera* is annually observed with the full approval of the Roman Congregation of Rites, when the excited populace shout in the streets “Viva la Sacra Lettera.” The Jesuit Inchover has written a book to prove its authenticity to demonstration.

A great many copies of the remarkable pamphlet *Ce qui se passe au Concile* have been secretly disseminated—the Government naturally wants to suppress it—and it is eagerly read. I have learnt from a Frenchman that Pius

himself has read some pages, on which [pg 535] he observed, “C'est mal, c'est très-mal, excessivement mal.” It is clear that the author has himself collected his notices in Rome. If its revelations show how every usage of former Councils has been reversed and all true freedom carefully destroyed, a further evidence of this is supplied by the statement of the official *Giornale di Roma* about the departure of the Americans, where the Bishops are plainly reminded that they are liable to arrest, and that any of them who quit Rome without leave incur heavy censures. A German Archbishop, who had an audience of the Pope to-day, took the opportunity of speaking to him about the universal aversion and resistance of the Germans to the infallibilist dogma. It made not the slightest impression. Pius answered: “I know these Germans of old, who choose to know best about everything; every one wants to be Bishop and Pope.” Yet it is notorious that he does not understand a word of German, and has never been in Germany or read a German book, even in a translation. But he reads Veuillot and Margotti, and hears the Jesuits at least three times a week. Meanwhile the Protest drawn up by Ketteler against the arbitrary change of the order of business was presented on the 12th of March with 72 signatures. It [pg 536] contains, as I said before, the words: “We know well that we shall receive no answer to this any more than to our former memorials.”

All German Catholics count here for half Protestants. A German must here give special evidence of his orthodoxy, I do not say before he is trusted, but before he is reckoned a Catholic at all by the side of Spaniards and Italians. Above all is German theology in ill repute, and the mere word “history” in the mouth of a German acts like a red handkerchief on certain animals. The good times are gone by when Germany was considered the classical land of obedience in comparison with France, so copious was the influx of Peter's pence, the Jesuits, on whom the chief hopes are centred, have effected very little here except in Westphalia and the Tyrol.

It is hard for the Bishops, even after a five months' experience, to comprehend the rôle assigned them, and to understand that they have only been summoned to receive commands, to obey, and to do service. It is a saying current among the Monsignori that the Bishops are nothing but servants of the Pope. “Just consider the monstrosity,” said one of the youngest but most actively employed of the Cardinals to a French priest,

[pg 537] when the famous letter of censure addressed by the Pope to the Archbishop of Paris appeared in the newspapers, “this Archbishop dares to speak of rights which belong to him! What would you say if one of your lackeys were to talk of his rights, when you gave him your orders?”

[pg 538]

Forty-Seventh Letter.

Rome, May 16, 1870.—The Bishops of the minority want to bind themselves by subscribing an agreement to vote for no formula which contains the personal infallibility of the Pope. A calculation emanating from them has been shown me, according to which the strength of the Opposition is undiminished, or rather increased. It enumerates 43 Germans and Hungarians, 40 North Americans, 29 French, 4 Portuguese, and 10 Italians. The number of Bishops from the United States who are considered to be trustworthy is especially worthy of notice. They have been greatly influenced by the recent publications of the Bishops, and particularly by the excellent work of Archbishop Kenrick of St. Louis. When they first came to Rome they were nearly all inclined to the new dogma, but here their eyes have been gradually opened. The insolent and [pg 539] despotic treatment of the Bishops, the spectacle of adulation exhibited by persons who call themselves successors of the Apostles, and the lamentable sophistry employed in torturing historical facts—as *e.g.* the case of Honorius—all

this has gradually filled these Republicans with disgust and aversion, and driven them to the opposite side. But clearly what has chiefly influenced them has been the conviction produced by the controversy that, if they take home with them the new dogma of the Pope's political supremacy over all States, they will be exposed to the contempt and hatred of all educated America. And as many of them are Irishmen by birth, they have been reminded that, as Alexander vi. gave the American peoples to Spain, so Adrian iv. gave Ireland to the King of England and thereby brought misery on the emerald isle.

The Bishops of the Opposition know how to appreciate the strength and numerical preponderance of their rivals; they know too that, besides a cool calculation and passive subjection to the commands of their "lord," a certain enthusiasm and confidence also prevail among their ranks. There are first the numerous missionary Bishops and Vicars-Apostolic, who must certainly vote as they are told, for they are entirely in [pg 540] the power of the Propaganda, and Cardinal Barnabo is an inexorably strict master: the Orientals have experienced that. And moreover the Bishops engaged in converting the heathen say, "How conveniently the new dogma will simplify and facilitate our work with Negroes, Kaffirs, New-Zealanders, etc.! We have hitherto had to refer them to the Church, of whose nature and authority we could only impress a dim conception on their minds with much time and trouble. Henceforth we shall tell them that God inspires one man in Rome with all truth, from whom all others receive it. That is short, simple, and what a child can understand."

But the main strength of the papal army consists in the 120 Bishops from the kingdom of Italy with the the exception of 10, the 143 from the States of the Church, and the 120 titular Bishops without subjects or dioceses, most of them created by the present Pope, who represent nobody but themselves, or rather him who has raised them from the dust and set mitres on their heads. That makes altogether 373 Italians. This chosen band will remain here patiently through the heat so unendurable to the Northern Bishops, and the question has been already mooted in the Vatican, as I hear [pg 541] from the mouth of one who is in its confidence, whether it would not be best to protract the affair and defer the final voting till these recalcitrant Northerners have obtained the permission which will be readily accorded

them to flee from the heat and fevers, after which the Italian and Spanish prelates would vote the darling dogma with conspicuous unanimity. The idea deserves to be preferred to another, which is also under consideration. The Pope might issue a Bull defining that the moral unanimity, which has been so much talked of, is not necessary for Councils in voting articles of faith, and that a simple majority is sufficient. For it is thought that most of the minority Bishops, especially the inopportunist, would not dare to resist the new papal definition, and would thus be compelled at last to succumb to the infallibilist decree. We shall soon see. You may gather what the leaders of the minority think of the situation from a remark of Cardinal Mathieu's, "On veut jeter l'Église dans l'abîme, nous y jeterons plutôt nos cadavres."

The two Bavarian Bishops, Stahl and Leonrod, have thought fit after two months to make a public demonstration of their assent to Bishop Räss's condemnation of Gratry. The explanation accepted here is that, after [pg 542] the Bavarian note had been presented, the authorities wished the Bavarian Bishops to make an adverse move on the conciliar chess-board; and as these two prelates would not openly contradict their King, the expedient of a very late adhesion to the effusions of the Bishop of Strasburg was chosen.

It is commonly assumed that all the Cardinals are infallibilists as a matter of course, and the more so as this is at bottom the only doctrine which may be said to have been exclusively invented and built up by men who either were already or were soon about to become Cardinals. Still this is not quite the case. Apart from the non-resident Cardinals, Rauscher, Schwarzenberg and Mathieu, there are some among the residents who would gladly be dispensed from voting for the new foundation article of faith on which the whole edifice is henceforth to rest. But one of them said to-day, "We shall ruin our position, lose all influence, and become the mark of endless attacks. And as every one here has some weak and vulnerable point in his past life, he dare not expose himself to these fatal assaults on his character and honour from which there would be no escape." At the same time the Cardinal admitted that the whole College has so lost its influence and become [pg 543] so insignificant, that for six months the Pope has not once assembled them. Antonelli and a few favourites, with the Jesuits of the

Civiltà, are the people who now construct the history of the world and the Church.

[pg 544]

Forty-Eighth Letter.

Rome, May 20, 1870.—The first week of the great debate is drawing to a close. The Archbishops of Vienna, Prague, Gran, Paris, Antioch and Tuam have spoken against the infallibilist definition. So much is gained; the Catholic world knows that it is represented in Council, while the Court party is robbed of some illusions about the strength of the resistance to be looked for. The only fruit of its better knowledge as yet observable is seen in an increased obstinacy and a greater insolence of tone. The Commission has already declared by anticipation, in its reply to the remarks of the Bishops against the dogma, that the denial of infallibility is condemned under pain of censure, and scientific arguments are no longer available. The giving out of this watchword does excellent service to the majority, who are very shy of theological arguments and treat their opponents as heretics. That [pg 545] far-famed courtesy, which has hitherto been an ornament if not exactly a real excellence of Rome, has greatly diminished, and the hypocrisy so long spun out has disappeared; it has become necessary to recognise the broad gulf which divides parties. And this has produced a tendency on the side of the Court and the majority to push their claims to

the extremest point, to play for high stakes, and hold out no prospect of concessions beforehand. The minority is in their eyes not a power to be negotiated with but a gang of insolent mutineers to be put down. The mass of the majority have carried their leaders with them, and only passion now prevails in that camp. But the harshness and roughness the *Curia* has thought it necessary to display has done more to strengthen the Opposition than the changes and concessions already pre-arranged will do to dissolve it. They have been suffered in this way to gain a position which they might never have won if the *Curia* had exercised more foresight. Whether all the elements of the Opposition will be found reliable, pure in their aims and loyal in their hearts, the future will show. At present I only record the audacious policy of the majority based on cunning calculations, as it has been evinced in the early days of the discussion. But [pg 546] the majority naturally includes men of different minds; there are some who would like to be well rid of the affair, and others who would gladly discover a formula not looking like a positive innovation which might satisfy opponents, while the great mass of them want the blow to be struck so that, after crushing the Opposition within the Council, they may annihilate it without the Council also. These last have the upper hand in the majority, and will probably retain it till the general debate is over and the doctrine itself and its definition come to be discussed. They are led by cool, calculating heads, but consist for the most part of the uneducated and unlearned mass of the episcopate who have no independence, the people who during Strossmayer's speech presented the spectacle of a rabble of conspirators rather than an ordered assembly. To keep them in the requisite state of exaltation the speeches must be adapted to their intellectual level. And as they are more easily excited than controlled they do not of course exhibit the majority in a favourable light, and one may be prepared at any moment for the Council being disgraced by an outbreak of their frenzy. Nothing more of the kind however has happened yet.

[pg 547]

At the head of the extreme party stands the close ally of the Jesuits, the Archbishop of Westminster. He was the first to say out with the utmost distinctness that infallibility belongs to the Pope alone and independently of the Episcopate. The ultramontane speakers, Pie, Patrizzi and Deschamps, have vied with one another in their endeavours to get this extreme view of

Manning's accepted, which they themselves did not all share before. The emancipation of the Pope from the entire Episcopate is the very turning-point of the whole controversy, the object for which the Council was put on the stage; infallibility tied to the consent of the united or dispersed Episcopate nearly all the Bishops would accept, for very few indeed clearly understand that even Councils depend on another consent than that of the Episcopate. But such a definition of infallibility would cost Rome the very thing she has laboured so much and sinned so much to gain. It is a great advantage for the Opposition that in this matter there are no formulas of compromise possible but such as are manifestly perfidious and insincere.

On the 17th Deschamps, Archbishop of Mechlin, made perhaps the most important, certainly the most [pg 548] remarkable, speech delivered in favour of the *Constitutio*. He is considered the ablest speaker of his party, which notoriously has no superabundance of good speakers, and is said to be a superficial man who takes things easily. He not only committed himself to the extremest section of the party, but denounced his opponents as bad Christians not walking in the fear of God. The change of tone was much remarked in him, as in the Bishop of Poitiers. Manning exhibits the same change, who now maintains that all who do not submit to the majority might well be excommunicated directly after the promulgation of the decree. Two German Bishops, Greith and Hefeles, spoke on the same day; and indeed in this debate many weighty voices will be raised from every land where the contest about the Church is being fought, to point to the practical dangers involved in the circumstances of the case—a kind of argument Pius is wont to put aside with a “*Noli timere*.” Greith of St. Gallen spoke for Switzerland; as a learned theologian he declared himself against the definition on scientific grounds, and as a Swiss Bishop on account of the present circumstances of his country; for he is persuaded that his Swiss brother bishops, with their zeal for the infallibilist decree, are simply forging weapons against [pg 549] the Church for the Radicals. Bishop Hefeles of Rottenburg touched in the course of his speech on the affair of Honorius, which must later on come into the discussion. Next day Hefeles read Cardinal Rauscher's speech. But Cardinal Schwarzenberg's address exceeded all expectations and left a profound impression. Cardinal Donnet and the Archbishop of Saragossa, who spoke in the name of the Deputation, did not bring the defence any further or develop any new points

of history, and—which is more important—gave no further information about the plans and hopes of the *Curia* and the majority.

On Thursday the 19th Cardinal Cullen, Archbishop of Dublin, spoke, who for twenty years has been the protagonist of Romanism in the British isles. With sound tact he chose the most learned Bishop of the minority, Hefele, for attack, and assailed not his speech but his publications. Yet he did not attempt to refute him, but only to prove that he had contradicted himself, since the account of Honorius given in his History of Councils is different from that in his latest work. It is true that in the History, where no doctrinal inferences were to be drawn, the theological significance of the condemnation of Honorius does not receive the [pg 550] same exhaustive appreciation and exposition as in the little tractate on the question whether he was justly condemned for heresy. But there is no difference of principle between the two works; in both Hefele says plainly that Honorius was justly pronounced a heretic, even if he was no heretic at heart. But when the two passages are separated from each other, it can be made to look as though he had maintained in the former that Honorius was really orthodox whereas he now declares that he was a heretic. But the process could with equal reason be reversed, and the heresy of Honorius shown to be affirmed in the History and his orthodoxy in the pamphlet. But what use would even an orthodox Pope be for upholding the purity of the Church's doctrinal deposit, if he used heretical formulas to express his own really true opinion?

None the less however was Cullen's attack received with great satisfaction, for the ruling powers know well enough on what the Bishop of Rottenburg's opposition is based, and think to subdue German science—*i.e.*, the devil himself—in his person. On the same day the Patriarch Jussuf uttered words that deserve to be laid to heart on the consequences such a dogmatic blunder would entail in the East—a significant indication that [pg 551] the Orientals are not prepared to bend obediently under the yoke of a decree aimed at their ritual and their rights as well as their tradition. The Archbishop of Corfu answered him next day. There is very little that can be properly called debating, for the order of proceedings is better suited for academical addresses than for real discussion; the practice of making prelates speak in their order of precedence makes any honest interchange of blows impossible. But the Greek coming forward to speak looked like a

preconcerted answer to the Armenian. The Archbishop of Corfu insisted that, so far from the dogma rendering the reunion of the Greek Church more difficult, such a result was inconceivable without it, nor could the dogma excite any suspicion, because the Greeks found it in their tradition as well as their Fathers and Councils, and envied the Latin Church her infallible Pope. In evidence of this he cited the passages where the Pope's primacy is recognised. The great body of the Fathers listened to this with grave faces: it was only following the style of their own theologians.

But three more important speakers had been heard before the Corfiote. The first was Simor, primate of Hungary, who was chosen, as is well known, into the [pg 552] Deputation on Faith and has shown himself a more zealous advocate of its proposals and adherent of the *Curia* than ever. The majority believed that it possessed in him a master of Latin who could rival the eloquent leader of the Opposition, and Simor justified his reputation as an accomplished Latinist. But he spoke—assuredly to the no small disgust and amazement of the majority—as an unequivocal opponent of the proposed decree. And this implied that the whole Hungarian Episcopate would vote against it. He was followed by a feeble old man whose speech fell flat after that of the eloquent primate, and who could only be known to a few of his hearers, though he holds an important place in the history of the last generation. This was John MacHale, for the last thirty-five years Archbishop of Tuam and formerly the most powerful prelate in Ireland, a famous name in the days of O'Connell; but his political rôle has long been played out, and he belongs to a bygone age and an obsolete school. For the twenty years during which Cullen has been introducing Roman absolutism into Ireland his influence has been on the decline, and while he was expounding his antagonism to the definition to-day in a long and complicated address, men said to themselves, “magni [pg 553] nominis umbra.” It was the accumulated debt of twenty years he paid off to Cardinal Cullen. But he can hardly be expected to have gained over any of his countrymen to the Opposition besides the three or four of them who already belong to it.

MacHale was succeeded by the Archbishop of Paris, the most accomplished and skilful, and therefore the most feared, of all the Opposition prelates. Darboy was lately the most influential advocate of that system of dallying

and postponement which has so grievously injured the minority, and was involved through his intimate alliance with the Tuileries in the unhappy policy of his Government, so that he had become somewhat less trusted and influential. So much greater was the impression produced by his speech to-day, wherein he declared distinctly and repeatedly that a dogmatic decree not accepted by the whole Episcopate could not have any binding force. A suppressed murmur which ran through the ranks of the majority as he spoke seems to herald coming storms.

So far the Opposition has made its voice clearly heard. That it has on its side reason, Scripture and history signifies nothing for the moment; what is important is that it makes its strength felt, that it has [pg 554] won over waverers or doubters to its ranks, and that it has at last spoken plainly. The position of parties and the question itself will take many new shapes, when the separate chapters of the Constitution come on for discussion.

[pg 555]

Forty-Ninth Letter.

Rome, May 26, 1870.—The intellectual superiority of the Opposition has made itself so sensibly felt in the course of the debate on infallibility that they have visibly won in spirit and confidence, while a decrease of the assurance of victory hitherto manifested by the majority is observable.

There is no sign yet of the breaking up of the Opposition or the desertion of its members to the infallibilist camp. The Court party had confidently reckoned on a considerable number of mere inopportunist giving in and separating from the opponents of the actual doctrine of infallibility, as soon as the dogma came to be discussed. The latter was said to be a mere tiny fraction, who would eventually take fright at their own impotence and come over. But as yet this hope has not been realized, and there are many indications that it is not likely to be realized, for the course of events and their experiences in Rome, as well [pg 556] as the discussions, both oral and written, have converted inopportunist into decided fallibilists. Cardinal Schwarzenberg has spoken with great power and dignity, and even the most zealous adherents of the Roman dogma must have been somewhat impressed by his declaration that its effect in Bohemia would be to make the nation first schismatic and then gradually Protestant. It at the same time illustrated the conduct of the Jesuits in a way that will not be forgotten. When the Archbishop of Paris affirmed that the much desired infallibilist decree was not one of the causes of the Council, but its sole cause, every one felt what a bitter truth had been uttered, and that the veil would thereby be torn away from that web of untruths and dishonest reticences about the object of the synod, by which the Bishops had been deceived and enticed as it were into a trap to Rome. Veuillot indeed had openly said in his official organ at the end of April, that to decree the new dogma was the principal and at bottom the sole office of the Council. That was at the very time when about eighty Bishops put out their strong protestation that they had come to Rome under the erroneous impression, deliberately suggested by the *Curia*, that the question of infallibility would not be brought before [pg 557] the Council; while yet Cardoni had many months before, in the Commission on Faith, presented by command of the Pope the report which has lately been printed, and the whole Commission had agreed with him that papal infallibility should be defined. That same Commission, with the Jesuit Perrone and Dr. Schwetz of Vienna at its head, has now presented an address to the Pope urging the definition of the new article of faith, without which those worthies think they cannot exist any longer.

The infallibilist speaker who created most sensation was Cardinal Cullen, Archbishop of Dublin. He gained the warm applause of his party by the aggressive tone of his speech, in which he attacked especially Hefele and

Kenrick. He appealed to the testimony of MacHale to show that the mind of Ireland has always been infallibilist—a glaring falsehood, as is proved by the famous Declaration of the Irish Catholics in 1757 formally repudiating the doctrine. And it made no slight impression, when the grey-haired MacHale rose to repudiate the pretended belief in infallibility not merely for himself but for Ireland. But it is certainly true that in former times for more than a century the Irish people, like the Spanish, was victimized to papal [pg 558] infallibility. Every Irishman or Spaniard, who knew the history of his country, would recoil with horror from a theory which has borne such poisonous fruit for both nations in the past and may be equally injurious in the future. To acquaint the Catholic tenants in Ireland with the infallible decisions of Popes about heresy and heretics would be enough at once to increase ten-fold the agrarian crimes prevalent there, and would be the surest means for reproducing such a massacre as occurred there in 1641.

When Cullen replied to the Archbishop of St. Louis, “non est verum,” the aged prelate requested leave of the Legates to defend himself briefly. It was refused. Hefele was as little free to answer Cullen's attack, and has therefore had a pamphlet in his justification printed at Naples. A new work by one of the most illustrious of the French Bishops is also expected from Naples, designed to prove against the Jesuits of the *Civiltà* the necessity of moral unanimity for dogmatic decrees. Another Irishman, Leahy, Archbishop of Cashel, said such absurd things in favour of the Court dogma that his speech was considered a clear gain for the minority.

There are 89 speakers inscribed for the general debate, and not a third of them have yet spoken. This [pg 559] opens out a prospect of the debate being spun out to a great length, oppressive as the tropical heat is now become. The *Curia* still relies on the Northerners being tamed down. If only a good many of them would emulate the example of the Bishop of Hildesheim, and go away! The plan has often succeeded with English and Irish juries, of locking them up, when they could not agree, till they found a true verdict. But that won't answer here. On the contrary the longer the debate lasts, the more numerous the Opposition party becomes. At first many Bishops thought they might fairly gratify the good and amiable Pius, who won all hearts, even by making a new dogma, and give him the present he so greatly longed for. But Pius has completely cured his former

worshippers of this disposition to make an article of faith “pour les beaux yeux du Pape.” It has no doubt happened before that Italian Bishops have been treated by the Pope like servants, hired for the day's work and dismissed again if they did not obey the orders of the *Curia*. One need only refer to that parody on a synod, the fifth Lateran assembly, when Leo x. propounded downright forgeries and untruths to his Italian Bishops, who had to call themselves an Œcumenical Council, and dictated [pg 560] their votes. But even there no one ventured to treat Transalpine Bishops—Germans, French and Hungarians—with the insolent contempt now shown, to refuse even a reply to their urgent petitions and representations, and to make them drain the cup of humiliations and grievances to the very dregs. But the great task to be achieved in the first months of the Council was the kneading and manipulating the Bishops in all possible ways, so as to make them feel the immeasurable gulf between the master and the servants, that they might be more ready at last to sacrifice their episcopal dignity and ancient rights on the altar of Roman supremacy. When once they have assented to the infallibilist dogma, they neither can nor ought to be or desire to be anything else but passive and unintelligent promulgators and executors of papal commands and decrees on faith. That what is really required of them is to abdicate their office as a teaching body and themselves abolish their authority, Ketteler has lately declared without reserve in the Congregation; and he is a man who has profited much by his Roman schooling, though in a quite different sense from what his master intended. The Roman system of drill does not succeed with Germans, Hungarians and Americans.

[pg 561]

A note received a fortnight ago from Paris by M. de Banneville, to be communicated or read to Cardinal Antonelli, has created great excitement here, owing to his studiously concealing it from his diplomatic colleagues. Its substance is as follows: France renounces any further interference with what is going on here, and contents herself henceforth with taking note of the decisions of the Pope and the Council. The Government has done its duty, as a friendly Catholic power, in seeking to withdraw the Court of Rome from the perilous path on which it has entered. The attempt has proved fruitless. The *Curia* seems resolved to ruin itself. France will maintain the attitude of a passive spectator, but accepts the altered condition

of things introduced by this declaration of war on the part of the Roman Court. On the day of the definition the Concordat ceases to be in force and the previous relation of Church and State expires. The State separates itself from the Church and the French troops leave Rome. Separation of Church and State means in France and elsewhere that the budget of worship will be dropped, and the clergy must be supported by the faithful. And here I may mention a fact which has come to my knowledge on the best authority. When [pg 562] Count Daru was going to despatch his famous memorial to the Holy See, he wished for an interpolation in the Chamber on the attitude of the Government towards the occurrences in Rome, and a friend of his applied on the subject to one of the most celebrated orators of the Left, who declined, saying, "Rome fait trop bien nos affaires pour qu'il soit de notre intérêt de lui créer des embarras." The contents of the note mentioned above are confirmed by the words of a leading statesman at Paris, quoted by a Bishop who has lately returned from thence, that for his own part he considered the separation of Church and State in France inevitable. He had however assented to the well-meant attempt of Count Daru to warn the Pope, and if possible deter him from his short-sighted enterprise; but as that attempt had proved futile, it remained to take advantage of the blunders of the *Curia*. So enormous a spiritual power as the Court of Rome was aiming at was incompatible with the possession of secular power, and accordingly the French troops must be withdrawn from Rome, and matters left to take their course.

Even now there is a wish discernible among Cardinals like di Pietro, Corsi and Bilio, to discover some [pg 563] intermediate formula, while the party men, like Manning, Pie, Cullen, and all who have been concerned in the agitation and have staked their credit on its result, hold to the most uncompromising form, as laid down in the existing programme. The latter reckon on their overpowering preponderance of numbers, on the power of the Pope, and the dread of ecclesiastical methods of coercion, such as excommunication and the like, whereby all resistance will be certainly put down. On the other hand, the Cardinals and members of the Papal Cabinet just referred to prefer to set their hopes on the hazy views and yielding temper of many Bishops of the minority, and think that an ambiguous formula might serve at once to delude and divide them. Their watchword is "conciliazione, un partito di conciliazione." But all their ingenuity is

expended in the elaboration of a phrase which may contain in a somewhat allegorical and obscure form the infallibility and universal monarchy of the Pope. To this conciliatory section also belongs a man who understands the greatness of the danger clearly enough, and who so lately uttered words which have become notorious here: "This Pope began by destroying the State, and now will close his career by destroying the Church too." Yet the speaker of [pg 564] these words does not scruple to use his high position and influence for actively furthering the undertakings which must lead to the catastrophe.

It is impossible for outsiders to form anything like an adequate conception of the complication of views and plans and the multifarious activity of the Roman *prelatura*. Things happen which must appear incredible to every one who has heard of the proverbial skill and gift of accurate calculation possessed by the ruling clergy here. Thus a member of a powerful Order is sentenced to six years' imprisonment by the Holy Office on account of an occurrence in a nunnery here, the convent being at the same time broken up and the nuns distributed over other convents. Yet after scarcely two years' imprisonment this man, who is unhappily a German, is brought back here, and intrusted with the preparation of the draft decrees for the Council, and now the Court trusts to its favourite "segreto del S. Ufficio" for the cause of his sentence and of the dissolution of the convent not coming to the ears of the Bishops, but in vain. The matter has created too great a sensation, and the culprit is too well known.

Meanwhile the minority are being plied with reasons, which are only mentioned cursorily, or not at all, in [pg 565] the printed documents of the Court and the majority. They are told that all their own interests depend on the papal authority being preserved intact, and that the evils they fear from the proclamation of the dogma cannot come into comparison with this common interest. They are bidden to remember how far the Pope has already committed himself in this matter; since John XXII.—more than 600 years ago—no Pope has thrown the Brennus sword of his authority into the scale to decide a question of doctrine, but Pius has cut himself off from all possibility of retreat by his *Schema*, his conversations with many Bishops, and his letters of encouragement and commendation to infallibilist writers. He has declared, not once or twice but a hundred times, that he knows and

feels his infallibility, and wills the Catholic world to believe it. He might simply by a Bull condemn all who oppose it as heretics, and how many of the Bishops would summon courage to resist the Bull?

As yet these reasons, practical as they appear, have not produced much effect. The Opposition grows visibly, and the speeches of its members have produced an impression quite unexpected by themselves. The words of the Melchite Patriarch, Jussuf, have kindled [pg 566] a flame among the Orientals too, and there are Bishops who tell me they had not thought it possible for a discourse in the Council Hall to produce so great a revolution of feeling. But I will not conceal from you that you may find in Margotti's *Unita*, which draws its information from the highest authority, news in comparison to which my statements must appear pure fables. He writes from here on the 18th of May, "The action of the Holy Ghost is beginning to be felt; the Opposition diminishes daily. Cardoni has just issued his masterly work on papal infallibility, and now every one comprehends that it is the sole remedy and defence against the dominant pest of journalism and a free press. We must have a Pope who, being himself infallible, can *daily* teach, condemn and define, and whose utterances no Catholic ever dares to doubt."¹⁰² So runs the statement in the *Unita* of May 24. Inconceivable blindness of past generations, who allowed whole centuries to pass without needing or asking for a single papal definition! Henceforth the definition wheel, which the Pope is to turn, is never to remain still for a day—because of journalism.

[pg 567]

Thus does civilisation increase the wants of men. Our forefathers had to lead a joyless life without sugar, coffee, tea, alcohol and cigars, and stood on so low a level of cultivation that they fancied they got on very well without any infallible papal definition. But we, who are so gloriously advanced, require besides bodily enjoyments many—if possible very many—daily infallible definitions, and the Pope, out of sheer inexhaustible goodness, is on the point of acceding to the earnest prayers of 180 millions and opening the definition machine. Veuillot lately declared it was high time that the fact of the Pope's permanent divine inspiration should be universally acknowledged; Margotti says that we want not only this, but

daily definitions.^{[103](#)} In this noble rivalry of the two Court journalists the Italian has evidently stolen a march on the Frenchman.

In my former statistics the number of Americans was put too high and of French too low. Only 23 Americans were lately calculated to belong to the Opposition, to whom must be added 10 Orientals, 4 Portuguese, 10 Italians and 5 Spaniards, making the whole minority over 120.

[pg 568]

Fiftieth Letter.

Rome, May 27, 1870.—New speakers are continually inscribing their names for the debate on infallibility. And as only four can usually speak in one sitting, it is impossible to foresee the end of the general debate, after which the detailed discussion of the separate chapters is to follow. The minority seem resolved at this second discussion to enter thoroughly for the first time on the numerous separate points, exegetical, dogmatic and historical, which offer themselves for consideration. If the majority and the Legates allow this, the end will not be near reached by June 29; and after that date residence in Rome is held to be intolerable and the continuation of the Council impracticable. This last assumption I conceive to be mistaken. The Pope can very easily go to Castel Gandolfo for his summer holidays, while he leaves the Council to go on here. That it [pg 569] should consist of

hundreds of Bishops is quite unnecessary; former Popes have known how to manage in such cases. Eugenius iv. had his Florentine Council nominally continued, after the Bishops were all gone except a handful of Italians; Leo x. was content with about sixty Italians at his so-called fifth Lateran Council. What is to hinder Pius ix. from keeping on the Council, after the Northern and distant Bishops are departed, with the Bishops of his own States and the titular episcopate resident in Rome, together with a host of Neapolitans and Sicilians? Some too would be sure to remain of the leaders and zealots of the majority. But the Court party can cut short the discussion and push matters to a vote whenever they like. The order of business enables them to do so, but of course this imperial policy will only be applied when the Pope gives the signal.

Nearly the whole sitting of May 25 was taken up by a speech of Manning's, who justified the expectations formed of him by assuring the Opposition that they were all heretics *en masse*. But he left the question undecided, whether they had already incurred the penalties of heresy prescribed in the canon law. Ketteler's speech made a precisely opposite impression. [pg 570] Men were in a state of eager suspense as to what he would say, for he was known to have passed through a mental conflict. Ten months ago, in his publication on the Council which was then convoked, he had come forward of his own accord as the advocate of papal infallibility; he had come to Rome full of burning zeal and devotion for the Pope, though at Fulda he had declared the new dogma to be inopportune. I omit the intermediate steps of the process of disillusionizing and sobering he has gone through. His speech has shown that, like many others, he has become from an inopportunist a decided opponent of the dogma itself.

Such a change of mind based on a conscientious weighing of testimonies and facts is inconceivable and incredible to a regular Roman. When some of the Vicars Apostolic who are supported at the Pope's cost signed the representation against the definition, the indignation was universal among the Monsignori and in the clerical world here. "Questi Vicari, che mangiano il pane del Santo Padre!" they exclaimed in virtuous disgust. That a poor Bishop, and one too who is maintained by the Pope, should yet have a conscience and dare to follow it, is thought out of the question here; and this view comes out with a certain *naïveté*. [pg 571] The anxiety of the

German Bishops about the new dogma perplexing so many Christians and shaking or destroying the faith and adherence to the Church of many thousands can hardly be mentioned here, so impatient are the Monsignori and Cardinals at hearing of it. People here say, "That does not trouble us the least; the Germans at best are but half Catholics, all deeply infected with Protestantism; they have no Holy Office and have little respect for the Index. Pure and firm faith is to be looked for among the Sicilians, Neapolitans and Spaniards; and they are infallibilists to a man. And even in Germany your women and rustics are sound. Why do you have so many schools, and think every one must learn to read? Take example from us where only one in ten can read, and all believe the more readily in the infallible living book, the Pope. If thousands do really become unbelievers, that is not worth speaking of in comparison with the brilliant triumph of the Papacy now rendered infallible, and the inestimable gain of putting an end to all controversy and uncertainty in the Church for the future." When I look at the careless security of the majority, I could often fancy myself living in the year 1517. The view about foreign countries and Churches prevalent here is [pg 572] just what Molière's Sganarelli expresses about physicians and patients: "Les veuves ne sont jamais pour nous, et c'est toujours la faute de celui qui meurt."

The finance minister has had the bad condition of the papal treasury communicated to the Bishops; a standing annual deficit of 30 million francs, and the Peter's pence decreasing! Some new means of supply must be discovered, and the extremest extension of ecclesiastical centralization and papal absolutism has always been recognised at Rome as the most productive source of revenue. Every one here believes that the new dogma will prove very lucrative and draw money to Rome by a magnetic attraction. It will make the Pope *de jure* supreme lord and master of all Christian lands and their resources. The ultramontane jurists and theologians have long maintained that he can compel States as well as individuals to pay in to him such sums as are required for Church purposes. And there is no more urgent need for the Church now, than that an end should be put to the deficit of the Roman Government. And if it should be impossible or unadvisable to put in force these supreme monetary rights of the Papacy at once, still, when the temporal supremacy of the Pope is made an article of faith, Rome possesses [pg 573] the key which may be used at

the right moment for opening the coffers and money-bags. And therefore the opponents of the dogma are regarded as enemies of the Roman State economy and the wealth of the Roman clergy; and the variance between the two parties is embittered.

Meanwhile the Pope is never weary of carrying on his personal solicitations for the votes of the Bishops; he has the right of being a persevering beggar. But one hears less of conversions to the majority than of men going over to the Opposition; and the effluences from the Tomb of the Apostles close to the Council Hall, of which such great expectations were formed, seem to act in the opposite direction.

A new system of tactics has been for some time adopted, in France principally, and is now to be introduced into Germany. The clergy in the dioceses of Opposition Bishops are to be seduced into signing addresses expressing strongly their belief in papal infallibility and desire for its speedy promulgation. This device has been pursued with great success through means of the Paris nunciature and the *Univers*. The French parish priests who, since the Concordat, have been removeable at the will of the Bishops and have [pg 574] suffered sufficiently from their arbitrary caprice in transferring or depriving them, see their only resource in the *Curia*, and the notion has lately been disseminated among them that the infallibilist dogma will procure their complete emancipation from episcopal authority. Accordingly almost every number of the *Univers* contains enthusiastic addresses, which might be tripled by making all the nuns subscribe, as they would do with the greatest pleasure.

The plan which has proved so successful in France is to be adopted now in Germany also. The nuncio at Munich reports that there is a swarm of red-hot infallibilists there, and that the clergy are eagerly awaiting the news of the definition; the diocesan organs of Munich and Augsburg, together with the clerico-political daily papers, are quoted as indubitable testimonies, and the Bishops of Cologne, Augsburg, Munich, Mayence, etc., are told on high authority that they have nobody behind them, and that their claim to represent the faith of their dioceses is in contradiction with facts. There are indeed no numerous signed addresses to show in Rome, but the daily papers give weighty evidence. Silence, it is thought here, implies consent,

the women and the rustics are certainly for the Pope. [pg 575] The Pope says in his supreme self-satisfaction, “Scio omnia.” He knows the true state of things beyond the Alps far better than the Bishops; the Jesuits and their pupils and the nuncios take care of that. Hugo Grotius says, with reference to Richelieu, “Butillierius Pater et Josephus Capucinus negotia cruda accipiunt, cocta ad Cardinalem deferunt.” So it is here, the Jesuits do what the Fathers Boutillier and Joseph did in Paris. Pius receives only what is “cooked,” and twice cooked, first in the Cologne and Munich kitchen and then in the Roman. The German Bishops remember with some discomfort that they themselves sharply rejected and censured every declaration of adhesion, and violently suppressed the movement only just beginning.

The Cardinal General-Vicar has ordered public prayers for a fortnight by the Pope's command: the faithful are to invoke the Holy Ghost for the Council, since the whole world presents so wretched an appearance (*miserabile aspetto dell' orbe*), and the longer the conflict (of the Council) with the world increases, the more glorious will be the victory, and then, it is said, will all nations behold miracles—which appears from the context to mean that, considering the opposition of the world (and of so many Bishops), the erection of the [pg 576] new article of faith must be regarded as a miracle of divine omnipotence, but a miracle which will certainly be wrought. Many interpret this to mean that people must be prepared for a conciliar *coup d'état*. But as matters stand, it can hardly be supposed that the Court party will let matters come to a *non placet* of at least 120 Bishops, nor would anything be gained by cutting short the debate. In the last analysis the main ground of the dogma with the majority always resolves itself into this—that the present Pope and his predecessors for many years past have held themselves infallible. That is the only ground on which the Dominicans, Jesuits and Cardinals have interpolated it into the theology of the schools. Pius might certainly define it in a Bull to the entire satisfaction of the majority, and thereby put an end to the contention of the Bishops. An end? it may be asked. Well, yes—the end of the beginning.

Fifty-First Letter.

Rome, June 2, 1870.—The debate drags on its weary length without any turning. Of real discussion there is none, for very few of the prelates can speak in Latin without preparation. As I have said before, academical discourses are delivered, almost always without any reference to what has immediately preceded. Only the majority have the right of reply allowed them. If a Bishop is attacked or calumniated, he cannot answer till his turn comes, which is often not for some weeks, as was Kenrick's case; and if he has spoken already, he cannot speak again in the same debate, and cannot therefore defend himself at all, as occurred with Hefele. But the members of the Deputation can speak whenever they choose; they interrupt the order and interpose as often as seems necessary to them for defending their proposals or weakening the force of an important speech on the other side. Very often they break in on the [pg 578] course of proceedings quite arbitrarily and without any connection with previous speakers. They have the stenographic reports before their eyes, and thus know the exact words of the speaker and can answer them while their opponents have no similar advantage. That all this implies an iniquitous injustice and want of freedom never occurs to the dominant party, who are on the contrary astonished at the kindness and patience of the Pope in allowing an opponent of his omnipotence and advocate of doctrines long since condemned to use St. Peter's as the theatre, and his Council as the occasion, of a persevering attack on his dearest wishes, ideas and acts. They ask themselves how long he will tolerate so strange a reversal of his plans and views. It is certain that his excitement has reached fever heat, but it has not yet been resolved to break off the debate, which is so far remarkable, inasmuch as according to the opinion of the Court it can neither have any practical results nor any character of sober reality. As they did not regard it from the first as a means for establishing the truth, it must now appear to them simply a hindrance in

the way of the truth already ascertained. For those who attack infallibility, and thus utter error and blasphemy over the tomb of the Apostles, freedom of speech can [pg 579] be no right in the opinion of the majority, but simply a favour dependent on the pleasure of the deeply injured and offended chief. It is characteristic of the present stage of the affair, that during this debate there has been no disposition shown to interrupt the speakers of the minority. Signs of discontent have been frequent enough, but no further attempt to stop a speech by force.

There is still an immense and unprofitable number of speakers enrolled. Above a hundred have sent in their names since the beginning, who might easily have been debarred from doing so, and the tediousness of the discussion is aggravated by the members of the Deputation, who lengthen it out still further by their frequent and usually prolix interpositions.

The chief events of the last fortnight have been the speeches of Manning and Valerga for the dogma, and of Ketteler, Conolly and Strossmayer against it. The Bishop of Mayence spoke on Monday, May 23, when he expressed his opinion more forcibly and gave more offence than any previous speaker. He defended the constitution of the Church against the Roman conspiracy, citing the arguments contained in the pamphlet he had before distributed, and denounced against ecclesiastical [pg 580] centralization the same penalty of revolution, incident to a centralized State, which, he said, is already knocking at the doors. He gave his decisive adhesion to those who demand unanimous consent, and declared that he had always held the personal infallibility to be "*opinio probabilissima*," but could find no necessary certainty in it, neither "*certitudo dogmatica*" nor "*veritas dogmatizanda*."

One might think that a man who is so unclear about the logic of history and the principles of morals belongs to the majority. However the impression produced by Ketteler's speech was favourable to the minority, and all who have watched his attitude before the last four months, especially at Fulda, must have recognised the decided advance in the line taken by the Opposition. Many think the conversion is complete, and the great wound of the Opposition—its containing members ready sooner or later to turn renegades—finally closed. The Bishop of Mayence was at first believed to

be the author of the pamphlet he has distributed, but it was not composed under his eye or under his influence, nor even at his suggestion, and bears no trace of his mind. The general line is Maret's, but his leading idea, that in case of a conflict a Council [pg 581] is superior to a Pope, does not occur in it. Ketteler must have acquired a great deal of Roman experience and non-Roman development before he would denounce a papal decree to his country and his diocese as uncatholic. But the advance which he, like others, and more than many others, has already made, is unquestionably a gain, and gives a peculiar force to his words. But it has damaged and discredited the minority that so many Bishops are more careful about the position and influence of the Church than about the purity of doctrine.

I must return once more to Manning's speech of May 25, as it was very interesting and important. He asserted roundly that infallibility was already really a doctrine of the Church, which could not be denied without sin (*sine publico peccato mortali*) or proximate heresy (*proximâ hæresi*), and therefore they did not want to make a new dogma but simply to proclaim an existing one. In these bold but highly significant words Manning pointed to what many better men choose to be blind to. He no longer acknowledges the opponents of the doctrine as brothers in faith, as members of one and the same Church, since they do not satisfy his conditions of orthodoxy; his faith and theirs [pg 582] are not the same. He has been the first to proclaim this great truth in Council, and it is time for the minority to ask themselves, whether unity still really survives in the sense hitherto maintained against Protestants, whether the foe is really still outside and has not penetrated into the inmost sanctuary of the Church, for the temple must be cleansed before the nations are converted. The minority can no longer live in peace with Manning and his like, or imagine that the contest does not threaten the very existence of the Church. Manning has indeed said that he does not think the decree strong enough. The Spaniards agree with him, and an open difference on this point has arisen in the Deputation. The great majority would be glad to find a formula less offensive to the Opposition, but Manning has the Pope on his side, and gets him worked upon by certain sacristan-like natures, like the Bishops of Carcassonne and Belley, who have won the special confidence of Pius IX. through having a certain mental affinity with him. Manning's whole speech was an attempt to hinder concessions, and keep the *Curia* to the point of forcibly suppressing the

minority. And it counts also for a sign that the Pope is resolved to go all lengths. The fanatics would prefer the Church [pg 583] being exposed to the danger of schism to modifying their theory in the least particular, for the latter would be a humiliation for themselves, while the other kindles a contest the end of which they feel no doubt about. It is reckoned certain that of the Bishops who will vote against the dogma, not all have the courage for a protest, and that of those who do protest some will rather resign their sees than undertake the contest with the *Curia* under excommunication.

Manning's argument for infallibility from the condition of England was remarkable. It is unquestionably his chief motive, and what gives the stamp of sincerity to his position, to make Catholicism more compact and closely united in Protestant England. He hopes by means of the dogma to suppress those differences of opinion which are a source of disturbance and weakness, so that all will re-echo his words, uphold his theology in the face of a disintegrating Protestantism, and his policy in the face of political parties with the combined strength of five million men. He conceives that the Christian element is more and more disappearing from the Established Church and the sects of England, and sees a general dissolution of belief which offers a future to Catholicism as the one definite [pg 584] authority. But he maintained in the Council that the English Catholics were in favour of infallibility, and that even Protestants testified that it would strengthen his hands. That the leading English theologian, Newman, has spoken so strongly against the definition he of course did not say. It was only consistent with the bitter enmity between the two to ignore it. Nor did he say that the English Bishops present at the Council are equally divided—himself, Ullathorne, Chadwick and Cornthwaite being infallibilists, against Errington, Clifford, Amherst, and Vaughan, who are fallibilists. He read extracts from Protestant papers, stating that papal infallibility is the logical outcome of Catholicism; to such miserable weapons was he driven for defending his cause. Clifford, who followed him, had an easy task in exposing these misrepresentations and falsehoods. One point in his speech his hearers missed: he said that the mischief the definition threatened the Church and the mischief it had already done to the interests of religion in England, might be gathered from the letter of an illustrious English statesman, for the authority of which he could appeal to an Archbishop there present. This Archbishop was Manning himself, and the allusion was

to a letter addressed to [pg 585] him by an English minister, saying in substance that in England it was the most vehement Protestants, and those most notorious for their hostility to the Catholic Church, who eagerly desired to see infallibility and the Syllabus made into dogmas, and that the present policy of Rome had so greatly increased the anti-Catholic feeling of the country that every step taken by the Government to extend the rights of Catholics and improve the social condition of Catholic Ireland met with the most persistent opposition.

The Italian Valerga, titular Patriarch of Jerusalem, delivered on Tuesday, May 31, a more spirited, piquant and insolent speech, which I will give a report of in my next letter.

The great debate may last till the middle of June, when it is hoped that the chapter on the primacy may be carried without difficulty, and the special debate on infallibility be brought to a successful end before the middle of July. But there is sure to be a lively and protracted discussion on the primacy, which may easily exhaust the patience of the majority, for the continuance of the present situation is a deep humiliation for the Pope and *Curia*. The Opposition, whose existence at first was so boldly denied, and of which there was [pg 586] originally only a germ in the Episcopate, subsequently developed in Council through the clumsy tactics of Rome, places the Roman See in an unwonted and what is thought an intolerable light. What Pius IX. and the Jesuits reckoned on accomplishing, first in three weeks, then in four months, at Easter, at Pentecost, on the feast of St. Peter and St. Paul, by acclamation, by unanimous consent, is not done yet and seems to recede further and further. The Roman people are losing their reverence for the Pope, though they await the doctrine with equanimity. They say, “Si cambia la Religione,” and laugh good-humouredly. But I heard the words from the mouth of a Roman priest, “L'idola restera al Vaticano, ma l'altare sarà deserto.”

It is certain attempts will soon be made either to cut short the debate or adjourn it and overcome the opposition by some compromise. Such an attempt was made before by a Cardinal, but the Bishop of the minority to whom he applied would not even look at the formula. Then the Dominicans conceived a similar idea, but were answered that there were strong reasons

not only against the wording of particular forms, but against any reference to the question. Such proposals are sure to be repeated in spite of Manning and the fanatics. But [pg 587] the Opposition Bishops cannot entertain them separately without breach of word to their colleagues, though it is always possible that some formula or other may find friends and advocates among them.

The rupture with France is a decisive one. In the first place a Bishop from the North of France has repeated here a conversation he had with a leading statesman in Paris, who said that the attitude of Rome was equivalent to a declaration of war against France, and that the Government had done everything to withhold the *Curia* from its perilous course, but in vain. He himself opposed Count Daru's policy, as he did not wish to prevent what might lead to the separation of Church and State, but now he thought they were free to carry out the separation, as Rome had made it inevitable. The reciprocal obligations of the two Courts would cease, and therefore the occupation of the Roman States by French troops, for the spiritual power the Pope was aiming at was incompatible with secular power. At the same time the French ambassador uttered similar warnings here, and informed the Cardinal Secretary of State that he was ordered to do nothing more to restrain the course of events. Antonelli is said to have replied that he took the same view, but [pg 588] had not influence enough to do anything. It is of course believed here that the present administration in Paris is not strong or firm enough to carry out a policy which would be more after the mind of Prince Napoleon than of the Emperor. But the *Curia* underrates the offence given to France by the quiet contempt with which both Daru's notes were treated.

Meanwhile the incense is being constantly swung before Pius, so that the clouds of homage conceal the abyss to which he is drawing on the Church. There is great agitation going on among the French as well as the Italian clergy, with a view to securing their votes for infallibility and also presents of money. Their expressions not seldom exceed in devotion to Pius everything of the kind ever heard of before; and it seems as if the old canon law sycophants had come back to life, who made no scruple of designating the Pope God and Vice-God. Let us give two examples. One of these true sons of the Church in Italy submits by anticipation to whatever Pius

chooses to define, whether with the approval of the Council or by his own sole authority. Seven priests from Cuneo bring these verses—

Parla, O Gran Pio,
Cio che sona il tuo labbro,
Non è voce mortal, voce è di Dio.

[pg 589]

The international Committee of the minority thought it necessary that a treatise should be expressly composed to discuss the weighty question of moral unanimity being required for dogmatic decrees, and Dupanloup has undertaken the task. He had a pamphlet on the subject printed at Naples and laid before the Fathers. He first proves from history that this condition was never wanting in any Councils which count as œcumenical, and was distinctly recognised and maintained at Trent by the Pope himself. He then examines the opinions of the chief theologians of all ages, including St. Vincent of Lerins and St. Augustine, and Popes Leo I., Vigilius and Gregory the Great, who all agree in making moral unanimity an indispensable condition for a decree on faith. He proceeds to observe that in matters of discipline and canon law a numerical majority is enough, as decisions of that kind may be altered afterwards, but for a dogma there must be moral unanimity of the Council and the Churches to whose faith it bears witness, or else Catholicism would be annihilated. But great theologians and theological schools of former ages opposed papal infallibility, and it is opposed now by a large number of Bishops at the Vatican Council representing great Churches and Catholic nations. A [pg 590] Council is only then infallible when the assembled Bishops of the whole Church bear witness to the faith inherited from the beginning. The majority must therefore either convert the minority to their views by free discussion or give up their design; were they to suppress the minority by mere brute force of numbers, that would be unconciliar and unprecedented in Church history. It is not mere probability but unquestionable certainty that is required for defining a dogma, and a considerable number of distinguished members of the Council have no such firm belief in papal infallibility. To define it in spite of this would be to act as judges and masters of faith, not as its depositaries and witnesses. A minority denying a dogma which had been the

perpetual belief of the Church would be in the wrong, but not a minority repudiating the definition of a doctrine which had never been held an article of faith. Even the Pope cannot by his authority raise the decision of a mere majority to the dignity of a dogma, for he only promulgates decrees on faith “sacro approbante Concilio,” and without moral unanimity the Council has not approved. The words of the Bishop of Orleans are directed principally against the *Civiltà*, which has notoriously laboured to establish the opposite [pg 591] hypothesis, and he asks, “Are we at a Council or not? If we are, the rules of Councils must be observed, or else a great assembly of Bishops is reduced simply to playing the part of a theatrical exhibition.”

Dupanloup goes on to remark on the storms and incalculable evils which the definition of papal infallibility would bring on the Church and the Papacy. He concludes with these words: “If ever moral unanimity was requisite for a dogmatic decision, it is so at a Council like the Vatican, where there are 276 Italian Bishops, of whom 143 belong to the States of the Church; 43 Cardinals, of whom 23 are not Bishops or have no Sees; 120 Archbishops or Bishops *in partibus*, and 51 Abbots or Generals of Orders—while the Bishops present from all Catholic countries of Europe, exclusive of Italy, only number 265, so that the Patriarchs, Primate, Archbishops, and diocesan Bishops of the whole world are outnumbered by the diocesan Bishops of Italy alone.¹⁰⁴ At a Council so composed a mere majority can never decide; and the less so when the personal intervention of the Pope makes itself felt, when the freedom of the Bishops is so seriously hampered, and in so many ways, when the question of infallibility has been so [pg 592] unscrupulously and violently brought forward for discussion by a mere sovereign act—a sort of *coup d'état*—when consciences are tormented and a number of writings are issued which have created a great sensation and give evidence of the anxiety of the faithful, and when lastly the Bishops themselves let a cry escape from their tortured hearts which the whole press re-echoes. Under such circumstances it is impossible to settle the matter by a mere *coup* of the majority; and if it is done all kinds of mischief must be feared. Nor is it I alone who say so; there are 100 Bishops who say, ‘An intolerable burden would be laid on our consciences. We should fear that the œcumenical character of the Council would be called in question, and abundant materials supplied to the enemies of religion for assailing the Holy See and the Council, and that it would be without authority in the eyes

of the Christian world, as having been no true and no free Council. And in these troubled times no greater evil can well be conceived.’ ”

[pg 593]

Fifty-Second Letter.

Rome, June 3, 1870.—Valerga attacked the “Gallicans,” drawing a parallel between the Pope and Christ, and between the Fallibilists and Monothelites. As in Christ the human will co-existed with the divine, so in the Pope may personal infallibility co-exist with moral sinfulness, and to conclude from the former against the latter—to draw an argument from scandals in papal history against the *privilegium inerrantiæ*—is analogous to the error of the Monothelites, who denied the possibility of a human will subject to sin co-existing with the divine will in the same person. Never has the well-known spirit of the Roman *Curia* shown itself so openly and with such technical adroitness as in this carefully elaborated and minute accusation against the Opposition. As Archbishop Purcell of Cincinnati expressed it, it was “*exemplum sophismatum artis ad instar congestorum*,” and great expectations might be [pg 594] formed of its salutary effect on the French. Purcell answered shortly and pointedly that the charge applied equally to the Council of Trent and the sixth, seventh, and eighth Œcumenical Councils, and that he and his colleagues were content to endure the patriarch's anathema in such good company. Even Bellarmine quotes a whole cloud of witnesses against infallibilism, and neither he nor later writers had refuted them. It is a matter of thankfulness to God that he has never suffered this opinion to gain dogmatic authority. Purcell then cited clenching proofs of the public erroneous teaching of Popes, and among them the history of the ordinations and reordinations of Formosus and Sergius. The standpoint which he took as a republican was interesting. He said that the Church was the freest society in the world, and was loved as such by its American sons, for the Americans abhorred every doctrine opposed to civil and spiritual freedom. As kings existed for the good of the peoples, so Popes for the good of the Church, and not *vice versâ*. Perhaps

he was thinking of the words of the absolutist Louis XIV., “La nation ne fait pas corps en France, elle réside tout entière dans la personne du roi.” For “nation” put “Église,” and the words describe precisely the papal system, as it is now [pg 595] intended to be made exclusively dominant by means of the Council.

The most important speech in this sitting, and one of the most remarkable theologically since the opening of the Council, was that of Conolly, Archbishop of Halifax. Formerly an unhesitating adherent of personal infallibility he had come here without having specially studied the question, and under the full belief that the *Allgemeine Zeitung* had calumniated the Roman See in representing this dogma as the real object of the Council. But when he found what was expected of him here, he instituted a searching examination, and thoroughly sifted, as he said, what the classical Roman theologians cite for their favourite doctrine. He now frankly submitted to the Council the result of his studies,—that the whole of Christian antiquity explains the stock passages of Scripture alleged for papal infallibility in a different sense from the *Schema*, and bears witness against the theory that the Pope alone, without the Bishops or even in opposition to them (*etiam omnibus invitis et contradicentibus*), is infallible. But what our Lord has not spoken, even though it was certain metaphysically or physically, can never become the basis of an article of faith, for faith [pg 596] comes by hearing, and hearing is not by science, but by the words of Christ. It is the speciality of Catholicism not to interpret passages of Scripture singly and by mere critical exegesis, but in the light of tradition and in harmony with the Fathers. To found a dogma on the rejection of the traditional interpretation would be pure Protestantism. It is not therefore the words of Scripture simply but the true sense, as revealed by God and attested by the perpetual and unanimous consent of the Fathers, which all are pledged by oath to follow, that must be called the real revelation of God. To cite modern theologians, as Bellarmine does, is nothing to the purpose. I will have nothing, he said, but the indubitable word of God made into a dogma. The opinions of 10,000 theologians do not suffice me. And no theologian should be quoted who lived after the Isidorian forgeries. But no single passage of Fathers or Councils can be quoted from that earlier time of genuine tradition, which affirms the Pope's dogmatic independence of the rest of the Episcopate. If there be any such, let it be shown; but there is none, and

innumerable and conclusive testimonies can be cited on the other side. Even at the Apostolic Council at Jerusalem St. James proved the teaching of Peter by the Prophets, and [pg 597] appealed to it because it agreed with theirs and not on account of his authority. Conolly was ready for his part to believe that no Pope could wilfully and knowingly become heretical,—i.e., persistently hold out against all the rest of the Church; but that did not prove papal infallibility, and to define it would be to bring the Vatican Council into contradiction with the three Councils which condemned Honorius, to narrow the gates of heaven, repel the East, and proclaim not peace but war. To those who said, “Pereant populi sed promulgetur dogma,” Conolly replied that the loss of one soul was serious enough to outweigh all the advantages looked for from the new dogma. He declared, against Manning, that no one was justified in calling an opinion “proximate heresy” which the Church had not condemned as such; for it was a duty to follow and not to anticipate her sentence. A Pope had said that no one should censure a doctrine before the Holy See had spoken, and the Penitentiary had declared in 1831 that the Gallican Articles were not under any censure. He had worked thirty-three years among Protestants, and could testify that what Manning affirmed was the reverse of the truth.

Conolly is a man who is on the whole in tolerable [pg 598] harmony with Roman views, but who is therefore all the more resolved to vote against infallibility. While he forbids the Gallican doctrine being taught in his diocese, he protests here against the Roman. There is evidently a process going on in his mind, which in so cultivated a theologian can have but one result. He ended by declaring that he would accept the definition if the Council proclaimed it, for he was convinced that God was among them. But that merely meant that he was convinced the dogma would never be proclaimed. On the strength of that conviction he was almost the first speaker who briefly but decisively maintained the doctrine to be untenable.

Yesterday, Thursday, Vancsa, Bishop of Fogarasch, of the Greek Rite, quoted the testimonies of Greek Fathers against infallibility, and his speech was thought a remarkable one. Dreux-Brézé of Moulins followed him, and again had the misfortune immediately to precede Strossmayer. He contended that, as the Pope is supreme teacher, and the French call him “Souverain Pontife,” and he is the highest judge, he must be infallible. As

Vicar of Christ, he is also king, for Christ said to Pilate, “Thou rightly callest me king,” and the royal title was affixed to the cross. But if Christ was [pg 599] infallible as king, so is the Pope. He supported all this by texts of Scripture, and spoke against the Fathers who accused the Pope of despotism or maintained that the new dogma would be the formal introduction of the grossest despotism. Without the Pope, who is “*Episcopus universalis*,” and can seldom exercise his office on account of the number of the faithful and of his labours, the Bishops have no jurisdiction, and cannot even absolve without powers derived from him. “Let us therefore go on,” he concluded, “to unity and agreement, and give Cæsar what belongs to Cæsar, and the Pope what belongs to the Pope.”

Strossmayer followed him, and declared that papal infallibility was against the constitution of the Church, the rights of the Bishops and Councils, and the immutable rule of faith. He explained the constitution of the Church according to the holy Fathers and especially St. Cyprian (*De Unitate Ecclesiæ*), who did not hold their jurisdiction to be limited to their dioceses, since by virtue of their character they often had to exercise authority in the concerns of the universal Church, and were obliged to do so, as, *e.g.*, in Councils. This sharing of authority and rights between the Pope and the Episcopate was evident from the controversy between Pope [pg 600] Stephen and Cyprian in the third century about the rebaptism of heretics, in which the latter did not the least admit any personal and absolute infallibility bestowed on the Pope by our Lord. And St. Augustine defended him on the ground that the question had not yet been decided by a General Council, which shows that the sole authority in matters of faith and morals was in his opinion a General Council, united with its head.

Strossmayer took this opportunity of vindicating the French Church admirably from the calumnies and attacks of the Patriarch of Jerusalem. He complained indignantly of a Church which had come forth pure and victorious from the bitterest persecution, and which boasted such great martyrs and confessors, being slandered by the comparison of so-called Gallicanism to Monothelitism, and of those great men being libelled who during life had rendered such conspicuous services to the Church of God, as well as their successors who had made wonderful and exceptional sacrifices for the Church and the Holy See. Strossmayer blamed the Patriarch's vague

and general statements about the constitution of the Church, and advised him to bring arguments from positive tradition, which were alone of [pg 601] any decisive force. He proceeded to insist on the power and necessity of General Councils, especially in our days, and he proved the necessity of their being frequently held from the conduct of the Apostles, from the holy Fathers, and from the Councils of Constance and Trent. But if once the personal infallibility of the Pope were defined, Councils would become superfluous and useless, and the Bishops would be robbed of their authority as witnesses and judges of faith. In the one way the greatest injury would be done to the prosperity of the Church, and in the other the rights of Bishops would be reduced to a mere assent, so that they would hardly any longer be consultors and theologians; but this would be clearly against the unchangeable constitution of the Church and the usage of Councils, as for instance that of Chalcedon, where the Bishops most unmistakeably exercised the office of judges as regarded the Letter of Pope Leo. The Bishops could make no such concession without betraying their authority, and casting a slur on their predecessors at the Council of Trent, who are well known to have so emphatically vindicated their freedom and rights, when the two words “proponentibus Legatis” were inserted by the Legates against their will. And [pg 602] the speaker praised the wisdom of the Council of Trent in resolving to abstain from deciding any questions which might give occasion for discord or for prejudicing the rights and freedom of the Bishops.

In the last part of his speech Strossmayer discussed the Catholic rule of faith, which had been completely changed and violated by the comments of the members of the Deputation of Faith on the *Schema*. The principle of at least moral unanimity was, he said, a sacred one, corresponding to precedent and pleasing to the faithful. There were whole volumes of the holy Fathers extant on this principle, as of Irenæus, Tertullian, Augustine and Vincent of Lerins, who in common with all others maintained that there are three essential conditions for proving a divine tradition and propounding an article of faith, antiquity, universality and agreement. They all thought the tradition of the Roman Church a principal river, whereby the whole earth was watered, but they regarded the traditions of the other Churches also as tributaries by which the river must be constantly fed, or it would in course of time be dried up. They all ascribed the first authority to the

witness of St. Peter's successor, but that authority was only manifested clearly to the Catholic world after being reinforced by [pg 603] the consent of all the other Churches. This divine rule would be completely upset by the personal infallibility of the Pope, to the great injury of faith. If it is said that the definition is earnestly desired by many, it must be replied that it is also desired by the worst enemies of the Church, who openly say in writing and by word of mouth that it is the best means for destroying the infallibility of the Church. That fact alone would explain the alarm and anxiety of so many of the most learned Fathers of the Council. Strossmayer dwelt in conclusion on the danger that would result from the definition for the Southern Slaves and Catholic Croats, who lived side by side with eight million persons out of the unity of the Church. Not only would the return of these separated brethren be barred, but it might be feared that the Catholic Croats would be driven out of the Church. He therefore always hoped, and entreated the holy Father, that he would emulate the example of the humility of St. Peter in his martyrdom, and of Christ who was exalted by his Father because He had humbled Himself to the death of the Cross, and magnanimously have the subject withdrawn.

The speech was listened to with great attention, and became the topic of conversation in all circles at Rome, [pg 604] and even Bishops of the other party paid a high tribute to it. As yet 24 Bishops have spoken against the dogma and 35 for it,—most of the latter having no real dioceses.

Two interesting episodes have intervened. Last week the police refused the Prince Bishop of Breslau his *visa* for Naples, because he could show no permission from the Presidents of the Council to go there. This implied that the Fathers are civil as well as spiritual subjects of the Pope. The Bishop, who was wearied out with the objectless proceedings in the Council Hall, sent to Fessler, the Secretary of the Council, for the requisite permission; Fessler replied that he could not give it, and referred him to the President de Angelis, who tried to represent the whole affair as a mistake. It had not been so ill meant, and at most only the departure of the Orientals was intended to be prevented, he said, and he authorized Fessler to instruct the police to give the permission. But that was the most complete indorsing of what they had done, and proved that the Pope meant to use his temporal power for managing the Council and controlling the actions of the Fathers. On that

account the departure of the Prince Bishop had been hindered, and the whole affair involves the [pg 605] question of ecclesiastical freedom and international right. Does a member of the Council thereby lose or prejudice his rights as the subject of a foreign state, or is the freedom of individual Bishops suspended while taking part in it? So anxious is the Pope to give up nothing which may serve for dominating the Council, that he restricts the Bishops in the most harmless exercise of personal freedom, which at other times he would never have thought of. I will not dwell on the insult in this procedure to the King of Prussia, whose safe-conduct was no more respected than the Emperor Sigismund's at Constance, for a graver question is at stake,—that of international right and freedom of the Council. Meanwhile they reckon on Prussia taking no further notice of the affair, and the Prince Bishop has given up his journey after these difficulties. France, too, has quietly endured a series of insults, and so they hope not to have to abolish the regulation or disavow the police.

Rome cannot admit the principle of international right in this case, without giving up one of her own principles, the Inquisition, according to whose laws foreigners can be arrested, imprisoned, and put to the question. No secular tribunal limits its power, and [pg 606] every Bishop therefore could in theory be brought before it. By papal law the Pope might at any moment have Cardinal Schwarzenberg arrested, and if the right has become inapplicable, that is due to the influence of foreign states and the modern spirit, whose restraints on the full exercise of Church authority it is the office of the Council to remove, as the Syllabus, Bull of Censures, *Schema de Ecclesiâ*, etc., prove. According to Roman canon law, freedom at the Council is inconceivable.

In a former letter I gave an inaccurate account of the Prince Bishop's conduct towards the priest Jentsch, at Liegnitz, being misled by statements in the Roman newspapers.¹⁰⁵ The text of the explanation accepted by the Bishop shows that no principle was conceded or denied, and he said himself that he agreed in substance with Jentsch.

The arrival of Father Hötzl in Rome seemed for a time likely to produce still more serious conflicts, for his affair looked as if it would oblige the minority to give expression to their view of Döllinger's teaching on the

necessity of general consent for the œcumenicity of a Council. Those who had undertaken the instruction [pg 607] of Hötzl cared less for converting him than for using the opportunity to provoke dissension among the minority. He was told that an explanation, not a retraction, was all that was demanded of him, and when the explanation he offered was found unsatisfactory another was proposed to him on May 31. The crucial passage in it was read and examined by leading bishops of the minority, whose names were calculated to inspire complete confidence. Hötzl had some cause to think he had saved honour and conscience, and responsibility to man and God, when he sought the judgment of liberal German Bishops and resolved to abide by it. But though they disliked the passage, they thought it difficult to know how to save a man who had come to Rome in such childish confidence, and did not feel justified under the circumstances in urging him to go to extremities and sacrifice himself to their interests. It was not their place to drive him to a breach with his Order or a loss of personal liberty, at a time when they had not themselves publicly, solemnly and decisively repudiated the doctrine imposed on him. Still less did they want to compromise themselves or break up their harmony before the time. And their hesitation may have led Father Hötzl into his mistake; [pg 608] he was acting in concert with the minority when he signed.

I give only a brief preliminary notice of the most important points in to-day's sitting. After Dinkel, who spoke very well, and Domenec, Bishop of Pittsburg, who was much interrupted, Maret made a longer speech, which he delivered in a very loud voice, as deaf persons are apt to do. In the course of it he declared that it would be called a vicious circle for the less to give power to the greater, as would be done if the Council, which was said to possess a lower authority, were to confer on the Pope—a higher authority—the prerogative of infallibility. Thereupon Bilio struck in very excitedly, crying out “*Concilium nihil dat Papæ nec dare potest, sed solummodo recognoscit, suffragia dat, et Sanctus Pater quod in Spiritu Sancto ipsi placet decedit.*”

In yesterday's sitting a *postulatum* for the close of the general debate was prepared, which is said to have received 150 signatures. After Maret's speech it was at once produced and the close voted. Little more than 60 prelates have spoken, and above 40 were waiting their turn, amongst whom

were Haynald and other considerable persons. The continuation of the debate [pg 609] had been reckoned upon and much was hoped from it; but now that the example has once been set of using the well-known clause in the order of business in the interests of one party, the step may be repeated in every succeeding debate. The Opposition will be driven into greater firmness by this occurrence, which they had foreshadowed in the half-threatening formula at the end of their great Protest. The question is now forced upon them, whether they were in earnest in what they then said.

[pg 610]

Fifty-Third Letter.

Rome, June 4, 1870.—The first impression made on the minority by the violent closing of the general debate led many of them, in discussing it directly after the sitting, to say they would take no further part in the debates. A great meeting was arranged for to-day at Cardinal Rauscher's to decide the question. It was the largest international gathering of the Opposition yet held, including nearly 80 Bishops, but was for that very reason difficult to manage. Two possible courses were discussed—to remain in Rome but take no further part in the debates, as not being free, and vote at the end *non placet* against the infallibilist *Schema*, or simply to issue a protest against the injustice they had suffered, and continue to take part in the proceedings. The former view was supported principally by the

Hungarians, North Americans, the leading French Bishops, and men like Strossmayer, Simor, Haynald, Darboy, [pg 611] Dupanloup, Clifford, Conolly (represented by proxy), and others. They insisted that words were of no further avail, and they should show their sense of the want of freedom by acts, so that, as far as in them lay, no decree should be carried which had not been thoroughly discussed. In this way the œcumenicity of the Council would be denied without coming as yet to a breach in Council or a disturbance in the Church; for they could no longer recognise the Council as legitimate, nor yet retire, for to retire would precipitate the most extravagant decisions and lead to an open conflict. There were many reasons why it could no longer be held legitimate, such as its composition, the order of business, the pressure exercised on the Bishops by the Pope personally or through his officials, the notorious design of getting dogmas promulgated by a majority, etc. It would be simply a degradation to give in any longer to such a farce. In Parliaments speeches were not altogether useless, for if they could not influence votes they enlightened public opinion, but at this so-called Council most of their hearers were quite incapable from their standard of cultivation of appreciating theological arguments, not to add that the moral standard of many among them was such that, even if [pg 612] they were convinced, they would not act on their convictions. And speeches, which were not made public, could produce no effect out of doors. To debate under these circumstances would only be to incur a large responsibility for the entire conduct of the Council. But if the Opposition refrained from discussion and left the field free to the majority, the differences among them would soon be made manifest. The *Curia* could hardly hold out against so serious a demonstration, but if it remained obstinate, no further doubt would be possible in the Church as to the opinion of the minority about the Council.

On the other side it was urged that all which could be gained by such a demonstration would be gained equally by a declaration showing how the forcible closing of the general debate had undermined the foundations and future authority of the Council. They owed it to the world to do more than merely give reasons against the legitimacy of the Council; they must debate and bring forward the objections to the infallibilist doctrine itself, and thus give public testimony of their convictions. Most of the Germans took this view, which many French Bishops readily acceded to, when they observed

that the Hungarian phalanx had been [pg 613] broken up. Perhaps other and more subordinate motives helped to establish this opinion, but many of its advocates are men of no decided resolution, and men who in reality want only a semblance of resistance and are already secretly prepared to yield at the last moment. It was thought strange that at this assembly, which had been summoned to consult on the means of meeting the violent *coup* of the majority, a German Archbishop was present who had joined the enemies of his party in subscribing the proposal for closing the debate the day before.

The draft of the Protest finally adopted against this act of violence had been brought to the meeting by Cardinal Rauscher, and bears marks of the antagonistic elements it combines. Yet it contains one passage, which may perhaps be appealed to hereafter, “Protestamur contra violationem nostri juris.”¹⁰⁶

[pg 614]

Fifty-Fourth Letter.

Rome, June 6, 1870.—There have been indications for some time past that the *dénouement* was likely to be precipitated. The Pope himself declared that it was impossible to keep the Bishops here in July. The great debate, with 106 speakers inscribed, wearied every one, and the tropical heat increases the exhaustion and disgust. But the minority maintained their

resolve to carry on the general debate to the end, while the majority counted on its absorbing the discussion of the separate chapters of the *Schema*, and accordingly Fessler announced that the speakers were at liberty to treat of points which belonged properly to the special debate. His party considered that, if the general and special debate were mixed up in this way, they might insist at the end that the separate chapters required no further discussion, since everything had been said already, and so they might come sooner to the decision they so earnestly desired. Very few speakers have attempted [pg 615] any theological argument—perhaps only Conolly, Dinkel and Maret; and this made it easier to mix up the general and special discussion, which again has helped to give a vague and rambling character to the debate. It was clear that after 106 or more speeches on the preliminary question, there were still five weary debates to come on the preamble and each of the four chapters, so that, unless the discussion was to be forcibly closed, it must either last on through the whole summer, or a prorogation be allowed while the main question was still unsettled. The first expedient seemed hardly practicable, and could only be held out *in terrorem*, so that the Court really had to choose between an act of arbitrary power or a prorogation of the Council, which last would be equivalent to a great victory of the minority. There was no want of attempts to get up an agitation for an adjournment. It seemed a happy escape from grave embarrassments to those secular and untheological counsellors of the Pope, who have given up the notion of infallibility, and on the contrary are convinced that the definition involves the separation of Church and State, the fall of the temporal power and the loss of the accustomed resources of the Papacy. These men do not expect an isle of Delos to rise out of the sea for [pg 616] the Pope when the States of the Church are swallowed up, but they are excluded from any influence on the Council. The more full the Pope is of the one grand subject of his infallibility, the less will he listen to Antonelli, to whom the mysteries in which he is not initiated are a nuisance, and who hates the line taken by Manning and the French zealots and apostolic Janissaries, and would like nothing better than an ambiguous formula leaving things just where they are.

But as soon as the majority became aware that some of the more colourless Bishops of the middle party were working for the prorogation of the Council, they resolved to be beforehand with them. Their *postulatum* for

closing the debate with its 150 signatures was got ready on Thursday the 2d, but was not meant to be presented till the Saturday. But the great excitement at the close of Maret's speech gave them the opportunity for striking the blow on Friday, when the close of the general debate was carried by a large majority. The order of business undoubtedly gave the Presidents the right of putting it to the vote, and moreover they have more than the letter of the law on their side. They might have urged that, as the general and special debates were not kept separate, most of what was now [pg 617] omitted might be supplied afterwards, and the Fathers who had missed their turn would have five other opportunities of speaking. They might have also alleged, in excuse of hurrying the proceedings, the constantly growing impatience and disgust generally manifested in the assembly, and the uselessness of all minute discussion of details. It is enough to mention as indicative of the prevalent feeling of the majority, that they received the Bishop of Pittsburg with derisive laughter when he ascended the tribune, and that they muttered at every affectionate or respectful allusion to the Pope by an Opposition speaker, "Et osculatus est Illum."¹⁰⁷ Under these circumstances Conolly omitted nearly half his manuscript. The majority might have urged the further excuse that far more of their own speakers than of their opponents were excluded by the close of the debate. Some 27 of the latter had as yet spoken against 36 infallibilists, which however, considering that the minority are only a fourth of the Council, tells in their favour.

But if we examine the matter more closely, the Opposition has lost all it had left by the close of the general debate, viz., freedom of speech. It has been sacrificed [pg 618] to the caprice of the majority, for the subsequent debates may be closed in the same way: that on the primacy because it is no new subject, and that on infallibility because the general debate turned wholly upon it. So the Opposition had nothing left them but to protest, unless they would summon courage for a decisive act. But their protest is as feeble as the last; it is simply directed against the abuse of an order of business they had already protested against, and then themselves accepted by continuing to take part in the Council. A party intoxicated with success cannot be restrained or conquered by these paper demonstrations, nor even the sympathy of the Catholic world be gained; a definite and firm principle is requisite for that. After all their experiences it may be called a harmless

amusement for the minority to present protest after protest, with the certainty that they will be laid by unnoticed and unanswered.

The French Bishops of the minority held a meeting on the 3rd, from which they came away troubled and undecided. The Germans take the matter less seriously. Their past presses heavily upon them. They had an opportunity, when the second *regolamento* was issued at the end of February, and again at the Solemn Session [pg 619] at the end of April, of either getting their views accepted or bringing the Council to an end. But they were not then strong enough for that. Now at the eleventh hour a last though less favourable opportunity is offered them. But at the international meeting at Cardinal Rauscher's last Saturday, their views were again set aside, for the assemblage of the whole body of Opposition Bishops brought to light the unpleasant fact of a gulf between the intellectual leaders and the mass of the minority, which makes any real leadership impossible. And this is the more lamentable, because the men who since the opening of the Council have risen to so important a position were almost unanimous; for Hefele and Rivet, Bishop of Dijon, were almost the only ones among them, except Ketteler, who rejected the energetic measure of holding aloof from the debates for the future and protesting by silence. It seems that Hefele wanted to recognise the Council as still having some claim. The other leaders succumbed, unwillingly and predicting evils, to the will of the majority, who were satisfied with the protest drawn up by Rauscher.

But all is not yet lost, and the tactics actually adopted may perhaps in skilful hands be made as effective as the rejected policy. Between Pentecost and the feast [pg 620] of the Apostles from 80 to 90 speakers might make their voices heard. If we consider that more than 100 speakers had enrolled their names for the first and tolerably irregular debate, and that 49 speeches were suppressed, it is clear that the great question of the primacy and infallibility of the Pope would require a much longer time for uninterrupted and complete discussion, and thus the adjournment would remain as probable and as inevitable as before. The Court and the majority would perhaps shrink from depriving the proceedings of all dignity, weight and completeness by a fresh *coup d'église*, as such an attempt might appear even to them too bold and dangerous in the special debate on the principles of the Church. And if such an attempt was made, it would perhaps exhaust

at last even the patience of the patient Germans, and lead them to muster all their forces for the last contest. One must admit that if orthodox Catholicism is only to be saved by an adjournment of the Council this is not much to the credit of the Church. But the reason why so many prefer a prorogation to a decisive conflict is because they fear that many present opponents of the doctrine might at last vote for its definition and betray their consciences through fear of men, and that many [pg 621] who vote against it and insist on the necessity of unanimity would ultimately accept and teach a dogma false in itself and carried by illegitimate means.

I will merely mention, in illustration of this, that it was lately thought very necessary to distribute a *Disquisitio Moralis de Officio Episcoporum*, discussing whether a Bishop does not greatly violate his conscience by voting for a decree to define the personal and independent infallibility of the Pope, without having any previous conviction of its being a revealed doctrine always held and handed down in the Church as such. The treatise is well written, but no such bitter irony against the Episcopate is contained in the pasquinades, and it is obvious that the author has not underrated their weakness from the fact that many Bishops would vote differently if the voting was secret. There are some among them too who doubt if papal absolutism and a power which kills out all intellectual movement is not better than truth and purity of doctrine, and if the responsibility of individual Bishops is not superseded by a decree of the Pope, at least when issued “sacro approbante Concilio.”

To judge from to-day's debate on the preamble, one would imagine the Opposition neither knew how to [pg 622] speak nor how to keep silence. None but the French, who have put down their names to speak, appear to have much desire to take any further part in the discussion. Perhaps they think it ludicrous to take any serious part in a debate which may be suddenly broken off, and speak, as it were, with a halter round their necks. And those who had thought the right plan was to keep silence henceforth were the best speakers of the Opposition; they do not therefore fall readily into a policy they disapproved. Their view is that, as the majority has done its worst and the minority has not the spirit to follow the counsel of its leaders, it is no longer worth while to fight against a result which cannot be permanent.

This weak and vacillating attitude may possibly only be a momentary consequence of the sudden commencement of a discussion which seemed distant and for which they were unprepared. On the other hand the confidence of the majority increases, and they announce the close of the debate on Corpus Christi. If the minority remain as undecided as they were at the Conference at Cardinal Rauscher's, an unfavourable issue must be feared, and this will be their own fault, for sacrificing their cause at the very moment they have for six [pg 623] months been preparing for, through some of them not choosing to be silent and the others not choosing to speak.

The main argument urged against taking further part in the discussion is that the historical and traditional evidences against infallibility had been prepared by men who lost their turn through the closing of the general debate, and cannot be brought forward in the special debate which is only about changes in the text of the decree. The majority have thereby testified their refusal to listen, not to certain speakers, but to a certain portion of the theological argument, and thus they prevent the investigation of tradition which is so unwelcome to them. Only secondary matters can be discussed now, while the main point is left untouched. To many, and especially the Hungarians, this seemed a betraying of the cause. The Hungarians absolutely refuse to take any further part in the debates, for in their eyes the Council has already condemned itself, and they cannot too soon publish their opinion to the world by recording their *non placet*. They are therefore dissatisfied with the Germans, who prevented stronger measures being adopted, and some of them—like Simor, who would not go on attending the sittings—have [pg 624] even refused to sign the Protest to the Pope, because it involves too much deference to the Council. There are accordingly only 81 signatures, for the Archbishop of Cologne has also refused to sign, but on grounds precisely opposite to those of the Archbishop of Gran.

Meanwhile the Vicar-General here is organizing all sorts of demonstrations for the happy result of the Council in the sense of the Court party. There were to be three processions this week, and no pains were spared to induce persons of rank, including ladies, to take part in them. In many cases the attempt failed, for it is idle to deny that a large portion of the Roman

citizens of all ranks turn away with indifference and contempt from St. Peter's, and of course from all religion too.

The *Unita Cattolica* predicts with triumphant confidence that God will yield to their pious importunities (*Iddio obbedira*), the Holy Ghost will fill the Council Hall, descend upon each of the Fathers and work the miracle of making them all boldly confess the infallibilist doctrine. As in the year 33 the people, who surrounded the house where the Pentecostal miracle was wrought, asked, in amazement at the new tongues of the Apostles, "Are these who speak Galileans?" [pg 625] so in 1870 they will hear the Bishops and Cardinals proclaim papal infallibility and will ask themselves, "Are not these the men who wrote as zealous Gallicans?" The Spirit of God will work this "noisy miracle" (*strepitoso miracolo*).

A remarkable Petition has for some time been hawked about, begging the Pope to promote St. Joseph to be General Protector of the Catholic Church. Many have objected that it is unfair to disturb the "riposo di San Giuseppe," but the notion finds much favour in the Vatican.

It is impossible to foresee at this moment how the great decision will turn out. The majority are evidently consolidating their plans, and the argument may be heard among them that, if papal infallibility were an error, the devil would not have stirred up the war which is being carried on against it. But one may still always assume that 120 Bishops will say *Non placet*, unless some miserable formula of compromise is hit upon. But the real decision will be when the Pope determines to ignore these 120 opponents and proceed to the order of the day.

Fifty-Fifth Letter.

Rome, June 10, 1870.—If we look at the many minor subdivisions of the two great parties and consider the individual differences even within that narrower circle, it is impossible to form any approximately sure conjecture about the immediate issue of the contest. All are agreed that the definition must be attempted or the Council prorogued within the next few weeks, and many Bishops are already preparing for departure. The majority, with Manning at its head, insists on the dogma being defined, however numerous and strong the minority may prove, as being the very way to exhibit most clearly the power and right of the Pope to make a new article of faith with only a fraction of the Council; and there can be no doubt that the Pope inclines decidedly to this view himself. He is so completely in the hands of the Jesuits that he will not [pg 627] listen to counsellors like, *e.g.*, Antonelli, who makes no secret in his confidential intercourse of the fact that he has lost all influence in the matter and has no opinion to give. The Pope's feeling towards the Opposition, and especially towards its leaders, grows more bitter every day. Strossmayer he regards as the mere head of a sect (*caposetta*), and he termed another German Cardinal and Archbishop the other day “quell' asino.” The Jesuits make capital out of this disposition of Pius IX. for effecting the ruin of all the men of the old school who yet remain to him from his earlier and more liberal days, while he leaves no stone unturned to win over wavering Bishops to the infallibilist side. He tried to work on the Portuguese lately by a visit, on which a French prelate observed, “On n'a plus de scrupules, ce qu'on fait pour gagner les voix, c'est un horreur. Il n'y a jamais rieu eu de pareil dans l'Église.” The most urgent next to Manning is Deschamps. He has proposed canons anathematizing all those Bishops who claim a share for the Episcopate in the sovereign rights of the Church—a measure expressly aimed at the Opposition and the views professed by Maret both in his book and in the Council.

[pg 628]

Meanwhile some differences have arisen among the majority, branching off at last into what may be called a middle party. Even Pie of Poitiers is no

longer altogether in accord with Manning and Deschamps, and Fessler said lately that a definition could not be carried against 80 dissentient votes. This party disapproves Bilio's treatment of Maret, which is disowned by Cardinal de Luca, who in other respects often speaks openly against Manning. Others, including Cardinals, say plainly in reference to the minority Bishops that the Papacy is threatened with destruction. The definition must, if possible, be prevented by proroguing the Council, and, failing that, the difficulties must be evaded by an ambiguous formula. The prelates who speak thus are too sober-minded not to perceive the political dangers the new dogma would bring with it. They not only think the price too high, but they dread being themselves reduced by the definition under the intolerable dominion of the Jesuit party. They frequently confer with members of the Opposition with the view of devising a compromise.

The French Opposition Bishops have lately had another meeting and resolved to continue to take part in the debates. The little misunderstanding between [pg 629] them and the Hungarians has quite disappeared, and several of the latter—*e.g.*, Simor—are said to be again disposed to speak. And it is thought that many speeches, suppressed by the violent closing of the general discussion, will be delivered at the supreme moment in the debate on the fourth chapter of the *Schema*, which deals with infallibility.

The debate on the separate chapters has reached as far as the third section “on the meaning and nature of the Roman primacy.” As twenty-six speakers are inscribed the discussion may last to the middle of next month, and then will immediately follow the debate on the fourth and most important chapter, which a great number are likely to take part in, and there will be no want of amendments. Conolly will propose the formula that the Pope is infallible “as head of the Church teaching with him” (*tanquam caput Ecclesiae secum docentis*), while others, as Dupanloup and Rauscher, will reproduce the formula of St. Antoninus of Florence, declaring the Pope infallible when he follows the judgment of the Universal Church, “*utens consilio*,” or “*accipiens consilium Universalis Ecclesiae*.” This amendment is said to have been seriously discussed in the sitting of the Deputation on Faith on June 8, [pg 630] though it amounts to pure Gallicanism, for Antoninus says plainly (about 1450), “*In concernentibus fidem Concilium est supra Papam*.” It is certain that the Deputation will labour to make some

changes in the *Schema* in view of the Opposition. Lastly, men like Strossmayer press for an unambiguous denial of the personal infallibility of the Pope.

The more recklessly the Court party are resolved to advance, and the less they care for the destruction of the Church which must result from a decree irregularly enacted, the more are the Opposition disturbed at this prospect, and often made irresolute, but these are only passing moments of temptation. "Conscience before everything," said a German Bishop to me the other day, who was weighed down by his gloomy views of the future of the Church. Even men who are infallibilists at heart speak of the terrible crisis in the Church, and think only God can save her. The most decided I meet are the Hungarians.

In the present debates from four to five speeches are delivered at each sitting. The most remarkable were those of Landriot and Dupanloup. The Presidents are very ready to interrupt, as Bilio did when Verot, Bishop of Savannah, was speaking on the preamble. Verot, [pg 631] who is a man of high character but very singular, submitted and left the tribune, saying, "Humiliter me subjicio." This conduct might suggest to the Presidents that the definition would be hastened by a second grand interruption.

[pg 632]

Fifty-Sixty Letter.

Rome, June 11, 1870.—If the new article of faith is accepted and proclaimed throughout the Catholic world, what will be its retrospective force? On what decisions and doctrines of previous Popes will it set the seal of infallibility? What amplifications and corrections of Catholic theology will it involve? These questions are naturally raised here, not indeed by the Bishops of the majority but by many of the Opposition; only no one is in a position to give even an approximately accurate answer from want of the necessary books, and the Court party reckoned on this “*penuria librorum*,” which Cardinal Rauscher has already complained of. A German theologian who had previously examined and studied the subject, undertook to answer the anxious question of the Bishops, and I send you his collection, which makes no claim to completeness, as a [pg 633] not unimportant contribution to the history of the Council.

The Jesuit Schrader, who is the most considerable theologian of his Order since Passaglia's retirement, and who has been employed both before and during the Council for drawing up the *Schemata*, on account of the special confidence reposed in him by the Pope, has shown, in his great work on *Roman Unity*,¹⁰⁸ that, as soon as papal infallibility resting on divine guidance and inspiration is made into an article of faith, it must by logical necessity include all public ordinances, decrees and decisions of the Popes. For every one of these is indissolubly connected with their teaching office, and contains, whatever be its particular subject, a *doctrina veritatis* either moral or religious. Papal infallibility is not a robe of office which can be put on for certain occasions and then laid aside again. The Pope is infallible, because he is, in the fullest sense of the word, the representative of Christ on earth, and like Christ he teaches and proclaims the truth by his acts as well as his words; in short no public act or direction of his can be conceived of as not having a doctrinal significance. And thus Catholic theology and morality [pg 634] will be enriched by the new dogma with not a few fresh articles of faith, which will then possess the same authority and dignity as those already universally received as such.

There are indeed former papal decisions which, in becoming themselves infallible through the proclamation of infallibility, will in turn cover and guarantee the infallible character of the collective Constitutions of all Popes. The first of these decisions is the statement of Leo x. in his Bull of

1520 against Luther, “It is clear as the noonday sun that the Popes, my predecessors, have never erred in their canons or constitutions.” The second is the declaration of Pius ix. in his Syllabus, “The Popes have never exceeded the limits of their power.” This assertion too will become an infallible dogma, and history must succumb and adapt itself to the dogma. Let us however specify some of the new articles of faith thus declared to be infallible.

1. According to the teaching of the Church, the validity of the sacraments, and especially of ordination, depends on the use of the right form and matter. The whole Church for a thousand years regarded the imposition of the Bishop's hands as the divinely ordained matter of priestly ordination. But Eugenius iv., in his [pg 635] dogmatic decree, decided that the delivery of the Eucharistic vessels is the matter of the sacrament of Orders, and the words used in their delivery the form.¹⁰⁹ If the doctrine of this decree, solemnly issued by the Pope *ex cathedrâ* and in the name of the Council of Florence—which however was no longer in existence—was to be accepted as true and infallible, it would follow that the Western Church for a thousand years, and the Greek Church up to this day, had no validly ordained priests. Nay more, there would at this moment be no validly ordained priest or Bishop in the Church at all, for there would be no succession. And Eugenius gave an equally false definition of the form of the sacraments of Penance and Confirmation.

2. According to the teaching of Innocent iii., in the decretal *Novit*, and other Popes after him, the Pope is able and is bound, whenever he believes a question of sin to be involved, to interfere, first with admonition and then with punishments. He can on this ground reverse any judicial sentence, bring any cause before his own tribunal, summon any sovereign before him, simply to answer for a grave sin or what he considers [pg 636] such, annul his ordinances, and eventually excommunicate and depose him.¹¹⁰

3. God has given to the Pope supreme jurisdiction over all kings and princes, not only of Christendom but of the whole earth. The Pope has plenary jurisdiction over the nations and kingdoms, he judges all and can be judged by none in the world, according to Paul iv. in the Bull *Cum ex Apostolatus Officio*, and Sixtus v. in the Bull *Inscrutabilis*. It is also a

doctrine of faith, to be received on pain of eternal damnation, that the whole world is subject to the Pope even in temporal and political matters, according to the Bull of Boniface VIII., *Unam Sanctam*. Boniface adds that the Pope holds all rights “in scrinio pectoris sui.”

4. According to papal teaching, it is the will of God that the Popes should rule and “govern,” not only the Church, but all secular matters and literally the whole world. Thus Innocent III. says; “Dominus Petro non solum universam Ecclesiam sed etiam sæculum reliquit gubernandum.”

5. According to papal teaching, as proclaimed by [pg 637] Gregory VII. at the Roman Council of 1080, the Popes with the Fathers assembled in Council under their presidency are not only able, by virtue of their power of binding and loosing, to take away and bestow empires, kingdoms and principedoms, but can take any man's property from him or adjudge it to any one.^{[111](#)}

6. According to papal teaching the Pope alone can remit all sins of all men. Thus Innocent III. says in his letter to the Patriarch of Constantinople.^{[112](#)}

7. According to papal teaching the Pope is ruler by divine right of Germany and Italy during the vacancy of the Imperial throne, because he has received from God both powers, the spiritual and the temporal, in their fulness (*jura terreni simul et cœlestis imperii*). So John XXII. has declared in his Bull of 1317.^{[113](#)} On account of this doctrine millions of German and Italian Christians, from 1318 to 1348, were placed under ban and interdict and deprived of the sacraments by the Popes.

8. The Pope by divine right can give whole nations into slavery on account of some measure of their sovereign. Thus Clement V. and Julius II. dealt with the [pg 638] Venetians on account of territorial quarrels, Gregory XI. with the Florentines,^{[114](#)} and Paul III. with the English on account of Henry VIII.'s revolting from him.

9. The Pope can also give full authority to make slaves of a foreign nation merely because they are not Catholics. Thus Nicolas V. in 1454 authorized King Alfonso of Portugal to appropriate the property of all Mahometans and heathens of Western Africa, and to reduce them to perpetual slavery.^{[115](#)}

Alexander vi. in 1493 gave similar rights to the Kings of Spain over all inhabitants of America, when bestowing on them that quarter of the world with all its peoples.^{[116](#)}

10. According to papal teaching it is just and in consonance with the Gospel to rob innocent populations, cities, regions, or countries *en masse*, with the sole exception of the infants and the dying, of divine service and sacraments, by an interdict, merely because the Sovereign or Government of the country has violated a papal command or some right of the Church. Innocent iii., Innocent iv., Martin iv., Clement v., John xxiv., Clement vi., and others have done so.

[pg 639]

11. The Popes as God's vicars on earth can make a present of whole countries inhabited by non-Christian peoples, and hand over all rights of sovereignty and property in them to any Christian prince they please. Alexander v. did this in his Bull addressed to Ferdinand the Catholic and Isabella, as he declares, “auctoritate omnipotentis Dei nobis in B. Petro concessâ ac Vicariatûs Jesu Christi, quâ fungimur in terris.”^{[117](#)} Historically it may be said with perfect truth, that the peoples of the southern and middle regions of America have been made the victims of the theory of papal infallibility. The Spanish Church and nation, as well as the sovereigns, have willingly received and maintained this doctrine, because their claim both to Navarre and America rested solely upon it, primarily on the Bulls of Alexander vi. and Julius ii. With the Gallican doctrine both claims would fall through. Alexander had empowered the Spaniards to make the Indians slaves. All Spanish theologians appeal with Las Casas to “el divino poder del Papa,” as he calls it, as the basis of the Spanish dominion in America, and no one dared to call in question the divine right of the infallible vicar of God, by virtue whereof he had given over [pg 640] millions of Indians to slavery, and thereby to extermination; within eighty years whole countries were depopulated.

12. It is just and consonant with the Gospel to burn to death as heretics those who appeal from the sentence of the Pope to a General Council. So Leo x. declares in his Bull of 1517, *Pastor Æternus* (issued in the fifth Lateran Synod).

13. Leo x. declared in another Bull, *Supernæ Dispositionis*, also published in the Lateran Synod, that all clerics are wholly exempt by divine right from all civil jurisdiction, and therefore not bound in conscience by the civil law.^{[118](#)}

14. According to the teaching of the Church, every Christian is bound before God to do penance for his sins by ascetic exercises of abstinence, self-denial and almsgiving. On Church principles no one can dispense from this obligation, because it rests on divine ordinance. But the Popes teach that it may be relaxed or superseded by means of plenary or particular indulgences granted by themselves. They teach that to take part in a war against enemies of the Holy See and in the extermination of heretics is an effectual means for [pg 641] gaining pardon of sins, and a complete substitute for all works of penance. Thus did Paschal II. instruct Count Robert of Flanders in 1102, that for him and his warriors the surest means of obtaining forgiveness of sins and heaven was to make war upon the clergy of Liège and all adherents of the German Emperor, Henry IV.^{[119](#)} Innocent III. charged King Philip Augustus of France with the conquest of England, after he had deposed King John, as a means for obtaining remission of sin.^{[120](#)} Martin IV. again impelled the French in 1283 to make war on the Aragonese by the promise of plenary remission of their sins.^{[121](#)} And whenever there was a war to be undertaken in the territorial interests of the Holy See, or for the extermination of heretics, the Popes urged men to take part in it as the surest and most effectual means for cleansing them from all their sins and attaining eternal happiness.

15. The Inquisition, both Spanish and Italian, is so pure a product of papal teaching on faith and morals, that there never was an Inquisitor who did not exercise his office by virtue of Papal authority and in the Pope's name, or whose power the Pope could not at any moment [pg 642] he chose have wholly or partially withdrawn. All essential laws and regulations of the Inquisition—the accused being deprived of any advocate to defend him, the admission of infamous and perjured witnesses, the frequent application of the torture, the obliging the civil magistrates to carry out capital sentences of the Inquisitors, the prohibition to spare the life of any lapsed heretic even on his conversion—all this emanates from the direct and personal legislation of the Popes, and has always been confirmed by their successors.

16. Gregory ix., Innocent iv., and Alexander iv. teach that it is in accordance with the principles of morality and the Gospel to condemn a heretic seized by the Inquisition, who has recanted, to lifelong imprisonment.^{[122](#)}

17. Alexander iv. teaches that it is lawful for the Pope to have the goods of those condemned for heresy sold by his inquisitors, and to take the proceeds for himself.^{[123](#)}

18. Innocent iii., Alexander iv., and Boniface viii. teach that it is just and consonant with the Gospel to deprive the sons and daughters of heretics, though [pg 643] themselves Catholics, of their hereditary property. But if the sons themselves accuse their parents and get them burnt, then their inherited property, according to papal doctrine, is exempt from confiscation.

19. According to papal teaching torture is an institution thoroughly in harmony with morality and the spirit of the Gospel, and should be employed particularly against those accused of heresy. Thus Innocent iv. and many later Popes have directed, and Paul iv. ordered the rack to be very extensively used.

20. It is especially just and Christian, according to the teaching and regulation of Pius v. in 1569, to torture persons who have confessed or been convicted of heresy, in order to make them give up their accomplices.^{[124](#)}

21. This same canonized Pope has ordered in a Bull that even the sons of a man who has once offended an inquisitor should be punished with infamy and confiscation of their goods.

22. There is a whole string of papal decrees declaring it a duty of conscience for every Christian to denounce even his nearest relations to the Inquisition, and give them up to prison, torture and death, if he perceives [pg 644] any trace of heretical opinions or of anything forbidden by the Church in them.^{[125](#)}

23. The same Popes have declared it to be just and evangelical, and have ordered, that a relapsed heretic, even if he recants, should be put to death.^{[126](#)} They have further declared it to be moral and Christian-like that in trials for heresy witnesses should be admitted to accuse or give evidence against the

accused, whose testimony would not be admitted in any other court on account of their former crimes or their infamy.¹²⁷

24. According to papal teaching it is just and Christian forcibly to deprive heretics of their children, in order to bring them up Catholics. Thus Innocent XII., by a sentence of the Holy Office at Rome, pronounced null and void the edict of Duke Victor Amadeus of Savoy in 1694 ordering their children, who had been forcibly taken from them, to be restored to the unfortunate and cruelly persecuted Waldenses under his government.¹²⁸

[pg 645]

25. The Popes teach that a sentence once pronounced for heresy can never be mitigated, nor pardon ever granted to any one sentenced to death or perpetual imprisonment for heresy. Thus Innocent IV. rules in his Bull *Ad Exstirpanda*.¹²⁹

26. Up to 1555 it was the teaching of the Popes that only those should be burnt who persisted obstinately in maintaining a doctrine condemned by the Church, and those who had relapsed after recanting into the same or some other heresy. But in that year Paul IV. established the new principle that certain doctrines, if only just put forward and at once retracted, should be punished with death. Thus whoever rejected any ecclesiastical definition on the Trinity, or denied the perpetual virginity of Mary and maintained that the scriptural language about “brothers of Jesus” was to be taken literally of children of Mary, was to be classed with the “relapsed” and to be executed, even though he recanted.

27. Up to 1751, theologians, especially Italians, who defended trials for witchcraft and the reality of an express compact with Satan, together with the various preternatural crimes wrought thereby and the carnal [pg 646] intercourse of men and demons (*incubi et succubi*), used to appeal to the infallible authority of the Popes, the Bulls of Innocent VIII., Sixtus V., Gregory XV. and several more besides, in which these things are affirmed and assumed and the due penalties prescribed for them.¹³⁰

28. If an oath that has been taken is prejudicial to the interests of the Church (*e.g.*, in money matters), it must be broken. So teaches Innocent III.¹³¹

29. The Popes can dispense at their pleasure oaths of allegiance taken by a people to their King, as Gregory VII., Alexander III., Innocent III., and many others have done.

30. They can also absolve a sovereign from the treaties he has sworn to observe or from his oath to the Constitution of his country, or give full power to his confessor to absolve him from any oath he finds it inconvenient to keep. Such a plenary power Clement VI. gave to King John of France and his successors.¹³² Thus [pg 647] Clement VII. absolved the Emperor Charles V. from his oath restricting his absolutism over popular rights in Belgium, and again from his oath not to banish the Moriscos from their home. And Paul IV. announced to the Emperors Charles and Ferdinand that he dispensed their oath to observe the Augsburg religious peace.¹³³

31. In 1648 a prospect of toleration was held out to the sorely oppressed Catholics of England and Ireland, if they would sign a renunciation of the following principles, (α) The Pope can dispense any one from obedience to the existing Government; (β) The Pope can absolve from an oath taken to a heretic; (γ) Those who have been condemned as heretics by the Pope may at his command, or with his dispensation, be put to death or otherwise injured. This renunciation was signed by fifty-nine English noblemen and several ecclesiastics, but Pope Innocent X. declared that all who had signed it had incurred the penalties denounced against those who deny papal authority, *i.e.*, excommunication, etc. And so the penal laws against Catholics remained in force for another century. Paul V. had previously condemned the oath of allegiance prescribed [pg 648] by James I. for the English Catholics, and the execution of a considerable number of them was the result.¹³⁴

32. The Popes teach that they can absolve men from any vow made to God or empower others to do so, and can even give them powers prospectively for dispensing vows to be made hereafter. And thus they have empowered royal confessors to absolve kings from any future vow they may find reason to repent of.¹³⁵

33. The Popes have declared, by granting indulgences, that their jurisdiction extends over Purgatory also, and that it depends on them to deliver the dead who are there and transfer them into heaven. Thus Julius II. bestowed on the

Order of Knights of St. George, restored by the Emperor Maximilian, the privilege that, on assuming the habit of the Order, the Knights “confessi et contriti, a pœnâ et a culpâ et a carcere Purgatorii et pœnis ejusdem mox et penitus absoluti et quittandi esse debeant, planè et liberè Paradisum et regnum intraturi.”¹³⁶ Then or shortly before (1500) the doctrine was first propounded in Rome, that the Popes could [pg 649] attach to certain altars by special privileges the power of delivering one or more souls from Purgatory.

34. The Pope can dissolve a marriage by placing one of the parties under the greater excommunication, and thus declaring him a heathen and infidel. Urban v. did this in 1363, when he excommunicated Bernabó Visconti, Duke of Milan, depriving him and all his children of all their rights and property and absolving his subjects from their allegiance to him, and at the same time pronouncing his wife free to marry again: “Uxorem ejus uti Christianam a vinculo matrimonii cum hæretico et infideli liberavit.”¹³⁷

35. Innocent III. had paved the way for this by establishing the doctrine that the bond between a Bishop and his diocese is stronger than the marriage bond between man and wife, and therefore as indissoluble by man as the latter, and that God alone could dissolve it, and the Pope as God's vicegerent.¹³⁸ It followed that the Pope, and he alone, could also dissolve a validly contracted marriage.

36. According to papal teaching it is praiseworthy and Christian for a man, who has promised a woman [pg 650] with an oath to marry her, to deceive her by a sham marriage, and then break the bond and retire into a monastery. This recommendation (to commit an act of treachery at once and of sacrilege) was given by Alexander III. in 1172, and it has been incorporated in the code of canon law drawn up by command of the Popes.¹³⁹

37. The Popes teach that anyone attending a service celebrated by a married priest commits sacrilege, because the blessing he gives turns to a curse. So Gregory VII. teaches, in direct contradiction to the doctrine of the ancient Church, and even to modern theology.¹⁴⁰ The notion has long since been exploded.¹⁴¹

38. The Popes teach that they have the power of rewarding services done to themselves with a higher degree of eternal beatitude. Thus Nicolas v. promised all who should take up arms against Amadeus of Savoy (the antipope Felix) and his adherents, not only remission of all their sins, but an increase of heavenly happiness, and gave his lands and property at the same time to the King of France.^{[142](#)}

[pg 651]

39. The Popes teach that it is false and damnable to maintain that a Christian ought not to abstain from doing his duty from fear of an unjust excommunication. Clement xi. declares the contrary to be true in his Bull *Unigenitus*, prop. 91.

40. Those who die wearing the Carmelite scapular have papal assurance, resting on a revelation granted to John xxii., that they will be delivered on the next Saturday after their death by the Virgin Mary from Purgatory and conveyed straight to heaven. So says the Bull *Sabbathina*, confirmed by Alexander v., Clement vii., Pius v., Gregory xiii., and Paul v., by the last after long and careful examination, and with indulgences attached to it.^{[143](#)}

41. According to papal decisions it is an excess of extravagance and folly, and a detestable innovation, to translate the Roman missal into the vernacular. It is to violate and trample under foot the majesty of the ritual composed in Latin words, to expose the dignity of the holy mysteries to the gaze of the rabble, to produce disobedience, audacity, insolence, sedition and many other evils. The authors of such translations are [pg 652] “sons of perdition.” Alexander iii. says this *totidem verbis* in his Brief of Jan. 12, 1661.^{[144](#)} Nevertheless the translated missal is in general circulation in France, England and Germany, and is daily used by all the most pious persons.

42. To receive interest on invested money is a grievous sin according to papal teaching, and any one who has done so is bound to make restitution. Papal legislation makes it, under the name of usury, an ecclesiastical offence to be judged by the spiritual tribunals. The principle established by the Popes was, that it is unlawful and sinful to ask for any compensation for the use of capital lent out. And under the head of usury, which was strictly forbidden, was included anything whatever received by the lender in

compensation for his capital, every kind of interest, commercial business and the like. Thus Clement v. pronounced it heresy to defend taking interest, and liable to the penalties of the papal law against heresy.¹⁴⁵ His successors, Pius v., Sixtus v., and especially Benedict xiv., adhered to this condemnation of all taking of interest. The results [pg 653] were that real usury was greatly advanced thereby, that all sorts of evasions and illusory contracts came into actual use, that the wealth of whole countries was damaged, and commercial greatness, banished from Catholic countries, became the monopoly of Protestant countries.¹⁴⁶

[pg 654]

Fifty-Seventh Letter.

Rome, June 18, 1870.—The great merits of Cardoni are at length to receive their fitting reward. He has hitherto been only Archbishop of Nisibis, a city that has long ceased to exist; he has now become keeper of the archives of the Roman Church. He was the principal person intrusted last year with the grand mystery of the fabrication of the new dogma, which required for its success the strictest secrecy; the Bishops, with the exception of course of the initiated, were to be drawn to Rome unprepared and innocent of the design and then to be taken by surprise. Had the real object of the Council become known in the spring of 1869, it might easily have proved a complete failure. It was therefore intrusted to Cardoni's experienced hands,

who managed matters so well in the Commission that the Bishops were kept in the dark, and his lucubrations on infallibility were first printed in April,—it [pg 655] is said after being considerably altered by the Jesuits. The reward of Cardoni is a punishment for Theiner, who has to suffer for his Life of Clement XIV. and for communicating to some of the Bishops a paper on the order of business at Trent. The archives are now closed to him, and he has had to surrender the keys to Cardoni, though he nominally retains his office. Every German scholar knows that Theiner, after coming to Rome, became extremely reserved in his communications and very cautious in his own publications, always suppressing whatever might excite displeasure there, and throw a slur on the Roman authorities. It was much easier under his predecessor Marini—as German and French scholars, such as Pertz, Raumer and Cherrier, and the British Museum can testify—to get a sight of documents or even transcripts, of course for a good remuneration. Theiner, who was inaccessible to bribery, knew that he had an abundance of enemies and jealous rivals watching him, and carefully guarded against giving them any handle against him. But the original sin of his German origin clung to him; he was not a Reisach and could not Italianize himself. There is great joy in the Gesù, the German College, and the offices of the *Civiltà*!

[pg 656]

Theiner's great offence is his letting certain Bishops, viz., Hefele and Strossmayer, see the account of the order of business at the Council of Trent, showing the striking difference between that and the present regulations and the greater freedom of the Tridentine synod. But Hefele had seen the Tridentine Acts in the spring of 1869, and knew about it without Theiner's help.

Meanwhile there is no abatement of the bitter exasperation in the highest circles. The three chief organs of the Court—the *Civiltà*, the *Unità* and the *Univers*—have evidently received orders to vie with each other in their descriptions of the “Liberal Catholics” as the most abandoned and dangerous of men. For the moment nobody is more abominated than a Catholic who is opposed to infallibility and unwilling to see the teaching of the Church brought into contradiction with the laws of his country, which is what they mean by a Liberal Catholic; such persons are worse than

Freemasons. The *Civiltà* says they are more dangerous to “the cause of God” than atheists, and have already proved so. We know how his confessors, La Chaise and Le Tellier, explained to Louis XIV. that a Jansenist is worse and more dangerous than an atheist.

[pg 657]

In convents and girls' schools the new article of faith is already strong enough to work miracles. The *Univers* relates “a miraculous cure wrought through an act of faith in the infallibility of the Vicar of Christ,” at Vienna on May 24. But that is little in comparison with the greater and more difficult miracles which the dogma will have to accomplish. If the English proverb is true, there is nothing more stubborn than facts; to remove them from history or change their nature will be harder than to move mountains. Here in Rome we are daily assured that the dogma has conquered history, but these anticipated conquests will have to be fought out, at least everywhere north of the Alps, and cannot be won without great miracles. But the Jesuits have never of course been without their thaumaturgists, and they have been able to accomplish the impossible even in the historical domain.

The Pope seems peculiarly annoyed at some of the English Bishops opposing infallibility, probably because Manning had told him that the English above all others revered him as the organ of the Holy Ghost. He lately broke out into most bitter reproaches against Bishop Clifford of Clifton, before an assemblage of Frenchmen, most of whom did not even know him by [pg 658] name, and accused him of low ambition, saying that he knew “*ex certâ scientiâ*” the only reason why Clifford would not believe in his infallibility was because he had not made him Archbishop of Westminster. Yet there is perhaps no member of the Council whom every one credits with so entire an absence of any ambitious thought. The spectacle of such conduct on the part of the man, who for twenty-four years has held the highest earthly dignity, produces a painful feeling in some, and contempt in others.

It is indeed disgusting to see the Court party compelling men, most of them aged, to remain here to the great injury of their health at a season when all who are able to do so leave Rome, although many of them are accustomed

to a different climate and feel sick and exhausted. They are treated like prisoners, and not even allowed a holiday without special leave. No such egotistic and unscrupulous absolutism, as what now prevails here, has been seen in the Christian world since the days of the first Napoleon. If there were any persons here besides courtiers who could advise the Pope, as friends, they would have to tell him that his credit before the world demanded that an end should be put to this state of torture, and the Bishops be allowed to depart, many [pg 659] of whom are already dead. But, as was observed before, even Antonelli does not conceal his impotence as regards the Council, and as to others, it may suffice to acquaint Transalpine readers with one detail of Roman Court etiquette. If the Pope sneezes, the attendant prelate must immediately fall on his knees, and cry “Evviva!” in that position. Every man is at last what his *entourage* has made him, and Pius has for twenty-four years had every one kneeling before him, and has been daily overwhelmed with adorations and acts of homage, the effect of which may be read in Suetonius' biographies of the Emperors.

The affair of the Prince Bishop of Breslau, who was not allowed to leave Rome, has been arranged, by Cardinal Antonelli ordering an apology to be made. The regulations about refusing visas were only meant for the Orientals, who are certainly detained in Rome against their will, but in extending the same treatment to German prelates the police had exceeded their instructions and must be severely punished. Förster answered that he did not wish this, and that Cardinal de Angelis in his note had fully approved their conduct. Meanwhile the same thing has been repeated: the visa was refused to the suffragan Bishop of Erlau in Hungary, [pg 660] who wanted to go to Naples, because he had received no permission from the Secretary, Bishop Fessler.

The Franciscan, Hötzl, has made an explanation satisfactory to the authorities, and is now again received into favour, but he is to stay here for the festival of June 29, on which day, as Pius was at least convinced a week ago, the proclamation of the new dogma with all imaginable pomp will take place. We live in very humane times, and so the good Father from Munich has suffered no worse martyrdom than the heat. He has been instructed, the *genius loci* has done its work, his Spanish General has simply reminded him of certain rules of the Order—and so his conversion has been very quickly,

easily and happily accomplished. He was not even threatened, I believe, with the Inquisition, and even there he would not have fared as ill as Galileo in 1633.

You must allow me, before relating the events of the last few days in the Council Hall, to recur to the occurrences of June 3, which I am now better acquainted with, and which have proved to be sufficiently important and eventful to deserve more detailed mention.

On the motion of Cardinal Bonnechose, who belongs to the middle party, Cardinal de Angelis had asked the [pg 661] Pope, directly after the session of June 2, whether he would not permit the prorogation of the Council, in view of the intolerable heat and the too long absence already of so many Bishops from their dioceses. The reply was a decided negative; there should be no adjournment till the infallibilist *Schema* was disposed of. That was a hint to the majority, which they used next day, as the wish to cut short the debates had been loudly expressed for some days previously.

On the same day the Bishop of Pittsburg in North America spoke against infallibility and defended the Catholics of his country, who had hitherto known nothing of this doctrine, but were yet genuine Catholics in life and practice and not in name only, like the Italians. Capalti immediately attacked him and imposed silence. Bishop Dinkel of Augsburg followed. Senestrey, Bishop of Ratisbon, in the previous sitting had assured the prelates, who listened eagerly, that all Germany, so far as it was Catholic, thought as he did, and that every one was deeply penetrated with reverence for the infallible Pope, while it was a mere invention of certain evil-minded persons that there were those in Germany who doubted this divine prerogative of the Vicar of God. The astonishment was great; they [pg 662] had heard so often that the aversion to the new dogma was most deeply rooted and most widely spread in Germany. Dinkel pointedly contradicted his colleague, and warned them against being misled by such tricks. He won great commendation, and his Biblical comments were also found to be well grounded and to the purpose.

Bishop Maret of Sura next ascended the tribune. He like others has made advances since being in the Roman school. If he had to write his work on the Pope and Council now, he would take a far more decided and bolder

line. It was not without reason that he pointedly distinguished the two things, papal infallibility based and dependent on episcopal consent, and the personal infallibility of the Pope deciding alone, as the real subject of the controversy; for during the last few days there have been Bishops who excused their adhesion to the majority on the pretext that they only found the former kind of infallibility in the *Schema*. Maret then showed in what a labyrinth the majority was on the point of involving the Council. Either the Council was to give the Pope an infallibility he did not yet possess, in which case the donor was higher than the receiver by divine and therefore inalienable [pg 663] rights; or the Pope was to give himself an infallibility he had not hitherto possessed, in which case he could change the divine constitution of the Church by his own plenary power; and if so why summon a Council and ask its vote? There Bilio angrily interrupted him, exclaiming to one of the most learned and respected men of the French clergy, the president of the Paris Theological Faculty, “Tu non nôsti prima rudimenta fidei.” And then he gave the explanation I mentioned before, that it did not belong to the Council to bear witness, to judge and to decide, but only to acknowledge the truth and give its vote, and then to leave the Pope to define what he chose by the inspiration of the Holy Ghost. There could be no talk here of majority or minority, but only of the Council. The majority applauded. Maret remained quiet, and asked without changing countenance, after this effusion of Bilio's was at an end, “Licetumne est ac liberum continuare sermonem.” Then all was silence, and he was able to finish his speech without further interruption.

Hereupon followed the violent closing of the discussion by a decree of the majority. The euphemistic language in which the *Giornale di Roma* announced it next [pg 664] day was remarkable:—“Fù terminata la discussione generale intorno alla materia di fede, che cominciata con la Congregazione del 14 Maggio, era stata proseguita per tutte le adunanze tenute nel suddetto spazio di tempo, nelle quali ebbero parlato in proposito 65 padri,” etc.—such an obituary announcement as those which used to be put into the Russian newspapers on the death of a Czar, and which led Talleyrand to say, “Il serait enfin temps que les Empereurs de Russie changeassent de maladie.”

At the international meeting at Cardinal Rauscher's on the 4th, when about 100 Bishops were present, some of the bolder and more vigorous of them thought they ought to show by observing complete silence that there was no freedom at the Council. This view, as was said before, did not prevail; and the alternative of a protest was again adopted. On June 6, when the special debate began, Bishop Verot of Savannah in Georgia was the speaker who incurred the peculiar displeasure of the Court party, and was maltreated by Bilio. He objected to the words of the preamble “*juxta communem et universalem doctrinam*,” as not being true, because the doctrine referred to was not universal or everywhere received, but was only the doctrine [pg 665] of the so-called ultramontane school. At this murmurs arose, and Verot remarked that a previous speaker—Valerga—had been quietly listened to while he talked for an hour and a half about the Gallican school, and compared them with the Monothelite heretics; it was only fair therefore to let him call the other school by its name. Hereupon Bilio, who has assumed the rôle of *ex officio* blusterer and terrorist, interposed in his manner of a brawling monk, saying this topic had nothing to do with the preamble, and could be introduced afterwards in the discussion on the four chapters.

Bishop Pie of Poitiers had proposed to his colleagues on the Commission *de Fide* to put the article on infallibility, which was too crudely worded, into a shape which all could accept, to which Manning and Dechamps replied that it could not be improved upon, and they would allow not the slightest change. And as they had a majority in the Commission, Pie's wish was strangled before its birth.

There is no want of restless activity and agitation in favour of infallibility. The processions to obtain the gift of infallibility from the Holy Virgin and the numerous Saints, whose bones and relics fill the Roman [pg 666] Churches, march with sonorous devotion through the streets; the lazy and lukewarm are urged not to remain idle at so important a time, and there is no lack of intimations of the real profits which the dogma must yield to the city. The Bishops of the minority must have had marble hearts if they had continued proof against so many fervent prayers for their conversion, and wished still to defend their Gallican citadel in spite of the general assault upon it. The Roman parish priests have already presented an address in favour of the dogma, but not—as I hear—till after the opposition among

them had been put down by the highest authority. And now an urgent admonition has been addressed to the University Professors either to signify their desire for the definition or resign their offices. All who receive salaries here have long been accustomed to the soft pressure put upon them from above, and are hastening, with a correct appreciation of the importance of the wish of the authorities, to follow lead. In the last few days we have had an address from 40 Chamberlains of the Fathers of the Council who “prostrate at the Pope's most sacred feet earnestly desire to have the opportunity of sharing the wholesome fruits (*saluberrimi frutti*) of infallibility and [pg 667] the exultation felt by all true believers at the decree.” The text of the address is given in the *Unita Cattolica*.

Meanwhile the chief Pontiff himself speaks in most emphatic terms. The *Tedeschi*, notwithstanding Senestrey's assurances, are in bad odour here. A letter of the Papal Secretary in the *Univers* of June 2 describes the Opposition Bishops as *amateurs de nouveautés dangereuses*, and I understand that in a letter to Chigi, the nuncio at Paris, the Pope speaks of his infallibility as “that pious doctrine, which for so many centuries nobody questioned.” This expression is peculiarly suggestive. That the Pope uses it in good faith is certain, and that he has not gained his conviction by any study of his own is equally certain. He has been deluded by this monstrous lie, which no single even half-educated infallibilist will make himself responsible for, and thus has been driven into his perilous course. No one, who has but glanced at the official Roman historians, such as Baronius or Orsi or Saccarelli, can possibly maintain seriously that there has been no doubt for centuries about papal infallibility. This saying lifts the veil and affords us a glance into the workshop, where the Pandora's basket was fabricated which has now been opened before our eyes. Future theologians [pg 668] will know how to appreciate that weighty saying, “no one for many centuries,” and I for my part would say, like Gratiano to Shylock, “I thank thee for teaching me that word.”

Cardinal Schwarzenberg, who spoke on the 7th against the second chapter, was not, I think, interrupted, as was however the Bishop of Biella, Losanna, on the pretext that he did not keep to the subject. The old man is a doubly unpleasant phenomenon to the Court party, both from his boldness and clearness of view, and as being a living proof that even an Italian may be a

decided opponent of infallibilism. At the international meeting at Cardinal Rauscher's on the 8th it was determined that the third chapter was to be especially attacked in the speeches.

This third chapter deals with matters of very pregnant import. It binds the Bishops to the acknowledgment that all men are immediately and directly under the Pope, which means that the so-called papal system is to be made exclusively dominant in the Church, in place of the old episcopal system, or in other words is to displace the latter, as it existed in the ancient Church, altogether. Bishops remain only as Papal Commissaries, possessed of so much power as the Pope finds good to [pg 669] leave them, and exercising such authority only as he does not directly exercise himself; there is no longer any episcopate, and thus one grade of the hierarchy is abolished. The persons bearing the name of Bishops are wholly different from the old and real Bishops; they have nothing more to do with the higher teaching office (*magisterium*), and have no authority or sphere of their own, but only delegated functions and powers, which the Pope or any one appointed by him can encroach upon at pleasure. Even this is not enough for Archbishop Dechamps of Mechlin, who has now proposed four canons anathematizing all defenders of the episcopal system; this has roused the suspicions even of several Bishops of the majority. These four canons are so significant an illustration of the aims of the party that they deserve to be put on record here:—

(1.) “Si quis dixerit Romanum Pontificem habere quidem in Ecclesia primatum jurisdictionis, non vero etiam supremam potestatem docendi, regendi et gubernandi Ecclesiam, perinde ac si primatus jurisdictionis ab illâ supremâ, potestate distingui posset—anathema sit.

(2.) “Si quis dixerit talem potestatem Romani Pontificis non esse plenam, sed divisam inter S. Pontificem et episcopos, quasi episcopi a Spiritu S. positi ad [pg 670] Ecclesiam Dei docendam et regendam sub unico summo pastore etiam divinitus vocati fuerint, ut in supremâ potestate totius Ecclesiæ capitis participent—anathema sit.

(3.) “Si quis dixerit supremam in Ecclesia potestatem non residere in universæ Ecclesiæ capite, sed in episcoporum pluralitate—anathema sit.

(4.) “Si quis dixerit Romano Pontifici datam quidem esse plenam potestatem regendi et gubernandi, non autem etiam plenam potestatem docendi universalem Ecclesiam, fideles et pastores—anathema sit.”

[pg 671]

Fifty-Eighth Letter.

Rome, June 21, 1870.—What I have to communicate in this letter is so important, that I find it desirable to take it out of the historical order of events and let it precede the detailed account of what occurred between June 8 and 17.

A circumstance occurred on Saturday, which has kept all who are interested about the Council in breathless suspense ever since. Nothing in fact could be more unexpected than that, at the moment when the Opposition, though still maintaining the contest from a sense of conscientious duty, almost despairs of success, a fresh ally should join its ranks in the person of a Roman Cardinal, whose accession is the more valuable because he does not only speak in his own name, but has concerted his speech with the fifteen Bishops of his Order. In fact I hear his speech spoken of in many quarters as the most important and unexpected [pg 672] event in the Council. It must not of course be supposed that Guidi's spirited speech represents adequately the tendencies of the Opposition, but still it must be affirmed that it involves

a complete, and as we believe irreconcilable, breach with the majority. In order to enable people to appreciate the full weight of the speech it is of some importance to premise a brief account of the speaker.

Cardinal Guidi has belonged, almost ever since his entering the Dominican Order, to the convent of the Minerva. For a long time he belonged to the theological professoriate connected with the convent, and enjoyed, as such, the well-earned reputation of great learning and strict orthodoxy. When eleven years ago Pius IX. wished to send thoroughly trustworthy and learned Roman theologians to the University of Vienna, to inculcate genuine Roman science and views on the young clergy, his eye fell on Father Guidi. After working there for some years he returned to Rome, having been meanwhile appointed Cardinal, and was soon afterwards made Archbishop of Bologna; and as the Italian Government promised to place no impediment in the way of his residing there, he actually betook himself to his See. But he soon found that it [pg 673] was not the place for him. The Dominican Order had seriously compromised itself in the notorious Mortara affair, and accordingly the Bolognese rabble broke out repeatedly into the most deplorable demonstrations against the new Archbishop as a member of the hated Order. He therefore returned to Rome, and administered his diocese from hence. And here he was one of the Pope's favourites, only during the last year he has lost favour through his freedom of speech. Since then he has been prosecuting his theological studies in retirement, and it was pretty well known what he thought about the personal infallibility of the Pope. Several months ago he had assembled the Dominican Bishops at the Minerva about this affair. His view prevailed, and when Father Jandel, the General imposed on the Order by the Pope and reluctantly accepted, tried to put a pressure on them, they replied that they were Bishops, and were bound, as such, to consult their consciences when called to act as judges of faith. Then began a notable agitation in the Order, which was already divided into two camps. One arbitrary act followed another. A so-called academy of St. Thomas was opened, and hardly had the President taken his seat, when he made a long speech, expounding the [pg 674] doctrine of St. Thomas and the Order on papal infallibility in the most tactless and violent manner to his episcopal audience. A Dominican Bishop delighted the Pope by getting up an infallibilist address among his episcopal colleagues. Then followed a series of writings defending St. Thomas against

Janus. A member of the Order was forbidden by the General, Jandel, “to speak either publicly or privately about infallibility,” and the *Civiltà Cattolica* of June 18 praised the General for prefixing to the infallibilist writing of a Dominican the approbation that in the Dominican Order papal infallibility has always been held as a Catholic truth.

Under these circumstances people were the less prepared to find Cardinal Guidi, in contrast with his numerous sympathizers in the College of Cardinals, venturing boldly on a step which must embitter his whole existence at Rome. The very first sentence of his momentous speech must have concentrated the anger of the majority on a Cardinal, as they thought, so confused and oblivious of his duty. Guidi began by affirming that the separate and personal infallibility of the Pope, as stated in the amended chapter of the *Schema*, was wholly unknown in the Church up to the [pg 675] fourteenth century inclusive. Proofs for it are vainly sought in Scripture and Tradition. The whole question, he added, reduces itself to the point whether the Pope has defined even one dogma alone and without the co-operation of the Church. No man could claim divine inspiration (*doctrina infusa*). An act might be infallible, a person never. But every infallible act had always proceeded from the Church herself only, either “per consilium Ecclesiæ sparsæ,” or “per Concilium.” To know “quid ubique credatur, si omnes Ecclesiæ cum Romanâ Ecclesiâ concordent,” information is indispensably required. After this examination the Pope sanctions doctrine “finaliter,” as St. Thomas says, and only so can it be rightly said “Omnes per Papam docent.” He then showed from the works of the Jesuits Bellarmine and Perrone, “in definendis dogmatibus Papas nunquam ex se solis egisse, nunquam hæresim per se solos condemnâsse.” As Guidi uttered these words the majority began to make a tumult under the lead of the Italian Spaccapietra, Bishop of Smyrna. The Cardinal saw he could not continue his speech. One bishop cried “birbante” (scoundrel) and another “brigantino.” But Guidi did not let himself be put out of countenance; he answered with astonishing firmness and calmness [pg 676] that he had a right to be heard, and that no one had given to the Bishops the right of the Presidents. “However, the time will come yet for saying your *Placet* or your *Non placet*, and then every one will be free to vote according to his conscience.” Here for the first time his speech was interrupted by loud applause, and the words “Optime, optime” resounded from every side

among the Opposition Bishops. Manning was asked by one of them, who stood near him, “Etes-vous d'accord, Monseigneur?” He replied, “Le Cardinal est une tête confuse.” On this a high-spirited Bishop could not refrain from observing to the powerful Archbishop of Westminster, “C'est bien votre tête, Monseigneur, qui est confuse et plus qu'à moitié Protestante.”

After this pretty long interruption Guidi went on to require a change in the chapter on infallibility “ut clare appareat Papam agere consentientibus episcopis et illis occasione errorum qui sparguntur petentibus, factâ inquisitione in aliis Ecclesiis, præmisso maturo examine et judicio et consiliis fratrum aut collecto Concilio.” This was the true doctrine of St. Thomas; “finaliter” implied something to precede, and the words “supremus magister et judex” pre-suppose other “magistri” and “tribunalia.” He concluded by proposing these canons:—

(1.) “Si quis dixerit decreta seu constitutiones a Petri [pg 677] successore editas, continentes quandam fidei vel morum veritatem Ecclesiæ universæ ab ipso pro supremâ suâ et apostolicâ auctoritate propositas non esse extemplo omnimodo venerandas et toto corde credendas vel posse reformari—*anathema sit.*”

(2.) “Si quis dixerit Pontificem, cum talia edit decreta, posse agere arbitrio et ex se solo non autem ex consilio episcoporum traditionem Ecclesiarum exhibentium—*anathema sit.*”

On sitting down he gave his manuscript to the Secretary, and was soon surrounded by the leaders of the Opposition, some of whom complimented him on his speech, while others expressed their admiration of his courage in resisting the attempts to interrupt him. When a learned Italian Bishop asked Valerga, Patriarch of Jerusalem, what he thought of this speech, he replied audibly with the pun, “Si e squidato,” and on his interrogator rejoining that anyhow the speech contained nothing but the truth, Valerga let slip an expression very characteristic of himself and his party, “Si, ma non convien sempre dir la verità.”

After this speech a large number of Bishops left the Council Hall, and excited groups of prelates might be seen standing about in all directions.

Cardinals Bonnechose and Cullen addressed their very pointless [pg 678] speeches to empty benches. Both pleaded for the proclamation of the fourth chapter, as it stood. Bonnechose, from whom Ginoulhiac and others had expected a very moderate speech, proved that he had completely gone over into Manning's camp, which cannot surprise any one in the case of a man who himself made no secret of his having no clear views on the question. Cullen destroyed by his last speech the impression made by the first, which had been admired, not for its contents but for its strictly parliamentary form.

Cardinal Guidi's courageous speech was destined soon to bear its fruits. The Pope—the dearest object of whose heart is the perfect freedom of the Council, as the official journal stated the other day—sent for him at once, and next day boasted to several Cardinals of having energetically rebuked their undutiful colleague for his heresy and ingratitude, and threatened him with being called on to renew his profession of faith. But the Cardinal may consider himself indemnified for these hard words of the Pope by the homage he received the day after his speech from almost the whole body of the Opposition Bishops who came to visit him. And he knows that the best of them were even worse treated by his Holiness than himself, where it was possible.

[pg 679]

Fifty-Ninth Letter.

Rome, June 22, 1870.—On the 13th the votes were taken on the changes proposed in the preamble, and taken by rising and sitting down.¹⁴⁷ Instead of “Vis et salus Ecclesiæ ab eo (Papâ) dependet” was proposed “Vis et soliditas in eo (Papâ) consistit.” The majority seem to have thought that stronger. The debate began with the speech of the Irish Archbishop of Cashel, a member of the Commission. It is precisely in our days, he said, that it is so necessary for the Pope to have absolute and irresponsible authority, for therein lies the one safeguard, first, against the encroachments of Liberalism; secondly, against the Radical and anti-Church policy of the Governments; thirdly, against the poisonous and unbridled influence of journalism; and fourthly, the absolute Pope can alone meet the ecclesiastical and national enterprises of Russia or subdue [pg 680] the political sects and ward off the Revolution which is impending everywhere. In short, human society requires a deliverer, and this deliverer must be omnipotent and infallible. So it is said in the Commission, and the Irish prelate, who was specially alarmed by Fenianism, spoke in its name. As soon as the Pope with the assent of the Council—or indeed without it—has ruled his own omnipotence and infallibility, the deliverance of mankind is accomplished.

The French Benedictine, Cardinal Pitra, undertook to lift the assembly out of this cloudy region back to the firm ground of facts, viz., the facts disclosed by himself. He expatiated on the collection of canons in the Greek Church, saying that those relating to the Roman See had been falsified, and the Russian Church was above all implicated in this system of forgery, which had brought things to such a pass that there was no authentic collection of canons in the Oriental Church. This was probably intended to serve as a diversion, for the enormous fabrications in favour of papal

omnipotence, which were carried on for centuries and are incorporated in the codes of canon law, had been frequently before referred to in a very suspicious manner in the Council. Even the Bishop of Saluzzo, who is [pg 681] almost a thorough-going Roman absolutist, had called the collection of canons (Gratian's, etc.) an Augean stable. Pitra went on to indulge in an uncommonly fervid philippic against the Machiavellian and persecuting Russia. But he forgot to say one thing, viz., that in no country would the impending decrees be received with such satisfaction as in Russia, nowhere would they give greater pleasure than in that great Northern State which considers itself the happy heir of Rome in the East. So much must be known even in Rome, that on the day the dogma is promulgated all the bells in Mohilew, Wilna, Minsk, etc., will resound to ring the knell of Rome. Pitra was followed by Ramirez y Vasquez, Bishop of Badajoz. He maintained in the style and tone of Don Gerundio de Canpazes, the doctrine that the Pope is Christ in the Church, the continuation of the Incarnation of the Son of God, whence to him belongs the same extent of power as to Christ Himself when visibly on earth. Maret had announced his intention of speaking, with the view of combating the four anathemas of Dechamps, which were so manifestly directed against his book. But Dechamps, on learning this, told the Bishop of Sura that, if he would keep silence, he would withdraw his anathemas, and excused [pg 682] himself by alleging his zeal for the new dogma, assuring Maret that he had a good heart and meant no harm. So Maret renounced his design of speaking.

On the 14th, Haynald, in spite of his bodily suffering, delivered a long polemical speech against the majority, and maintained his reputation of being the best Latin speaker after Strossmayer. Jussuf, the Melchite Patriarch of Antioch, came next with an apology for the Oriental Churches and their liberties. He pointed out in earnest words the danger of their defection, if the present design of taking away their ancient rights was carried out. He produced letters from his home telling him that he had better not return at all than bring back from Rome decrees curtailing their ecclesiastical liberties. And if the Pope chose to send back another Patriarch instead of him, they might be very sure he would not be received. Bishop Krementz of Ermeland observed that Holy Scripture made, not Peter, or as is here understood the Pope, the foundation of the Church, but Christ, and then as secondary foundation the Apostles and Prophets. Only after these

and in dependence on them could this designation be applied to the See of Rome.

It had indeed been already observed among the [pg 683] minority how monstrous it was to make the Pope “the principle of unity in the Church,” as the *Schema* puts it, and that the ancient Fathers speak indeed of an “exordium unitatis” established in the person of Peter, but had never called him, and still less the Bishop of Rome, the principle of ecclesiastical unity, which would be logically inconceivable. In the voting, which was again taken by rising and sitting down, the little band of dissentients disappeared before the consentient mass, and the expression “principium unitatis,” opposed as it is both to logic and tradition, was accepted. Before the voting Bishop Gallo of Avellino had uttered in the name of the Commission some Neapolitan mysticism about Adam and Eve and the mysteries already revealed in Adam and Eve of the Church resting on the Pope.

Cardinal Mathieu was the first speaker on the fourth chapter on infallibility. His long and powerful speech was mainly directed against Valerga, who had outraged the French by his attack on the “Gallican errors.” It was a well-delivered panegyric on the French nation, which had shed the blood of her sons to restore Rome to the Pope, and without whose troops at Civita Vecchia the Council could not remain in Rome. The only doubt is whether this Valerga is worth as much notice [pg 684] as the French have accorded to him. After Mathieu Cardinal Rauscher spoke. His speech was very inaudible owing to the nature of the Council Hall, but was clear and well grounded, and showed how the acceptance of a personal infallibility, by virtue of which every utterance of a Pope must be believed by all Christians under pain of eternal damnation, is equally at issue with facts and with the former tradition of the Church, and must have a fatal effect in the future. He referred to Vigilius, Honorius, the reordinations of Sergius and Stephen, and the contradiction between Nicolas III. and John XXII., and commended the formula of Antoninus requiring the consent of the Church as a condition. He could never assent to the *Schema* without mortal sin. “We knew all that from your pamphlet,” said Dechamps while he was speaking. “But you have never refuted it,” replied Rauscher.

Cardinal Pitra was to have followed, but he was unwell, and the sitting was broken off. The Presidents had issued an instruction that no one should speak out of his turn, and if prevented on the regular day should lose his right altogether. The rule in this case affected the zealous infallibilist Pitra, and accordingly the Bishops were dismissed before the usual hour.

[pg 685]

The two next days, the 17th and 18th, were festivals, and there was no sitting held. As there are already 75 speakers enrolled for the fourth chapter, the promulgation obviously cannot take place on June 29, and the Council will last on into July. There is indeed a simple means of gratifying the desire of the Pope and curtailing the pains of the Bishops, who are now absolutely tortured by the heat: the majority can any day cut short the special debate, as they have already cut short the general discussion. It may of course be objected that this procedure, of depriving the Bishops of their right of speaking and violently imposing silence upon them, overthrows the nature of a Church Council, where every Bishop is meant to bear witness not only to his own belief, but to the tradition of his country and the faith of his diocese. If the Bishops are deprived of this right—and that too where so momentous a question is at issue and there is such diversity of opinion—the freedom essential to a Council is wanting.

The Pope becomes more lavish of his admonitions and instructions every day. In the last Papal *Capella* Patrizzi assured him the faithful were impatiently awaiting the proclamation of infallibility, whereon Pius, in presence of several Bishops of the minority, replied that [pg 686] there were three classes of opponents of the dogma, *first*, the gross ignoramuses, who did not know what it meant; *secondly*, the slaves of princes, he said “of Cæsar,” referring both to Vienna and Paris; *thirdly*, the cowards, who feared the judgment of this evil world. But he prayed for their enlightenment and conversion.¹⁴⁸ This was of course applied here universally to the Bishops of the Opposition. Moreover the Pope had just before had a letter written to certain canons of Besançon, saying that all the objections raised now had been triumphantly refuted a hundred times over, and that as to appealing to the results of historical criticism and the examination of texts, viz., to the huge mass of deliberate falsifications and forgeries, these were “des anciens sophismes ou mensonges contraires aux prérogatives du St. Siége.” The

remark touches Rauscher, Schwarzenberg, Dupanloup, Hefele, Maret, Kenrick, Ketteler (in the pamphlet he circulated), and some thirty more. There is much dispute here as to the paternity of those views which Pius emits both orally and in writing. Has he got them from the *Civiltà*, or are the Jesuit writers of that journal only the [pg 687] pupils of the Pope, who has received this information “by infused science” from the Virgin Mary? On that point opinions differ. The majority, who are quite aware that every one would think it a joke to call Giovanni Maria Mastai a learned theologian, hold to the latter view, and to the well-known picture painted by the Pope's own order, where the “actus infusionis” is represented to the eye. Their favourite watchword is that every one who does not accept the decree is, or in a few days will be, a heretic and enemy of the Church; his *non placet* consummates his separation from her, and hence Manning has already proposed that each of these Bishops should have his excommunication handed him with his railway-ticket when he leaves Rome. Livy says, “Hæc natura multitudinis est, aut servit humiliter aut superbe dominatur;” the “multitude” in the Hall combines both characteristics.

On June 18 the Pope observed a German priest among those admitted to an audience, and asked who he was, when he replied that he was secretary to a Bishop, who is well known for his learning and his fallibilist views. Pius turned away with an exclamation of disgust. Of another very eminent dignitary of [pg 688] similar views he is wont to say in the bitterest terms, that his opinions are prompted solely by personal enmity to himself.

The majority are said to be very impatient, so that many anticipate the violent closing of the debate on Saturday, the 25th. And the greater number of the intending speakers on the fourth chapter, now increased to a hundred, belong to the Court party, who might say that they are only willingly renouncing the pleasure of hearing their own ideas put forward. But then the speeches of Darboy, Place (of Marseilles), Maret, Clifford, Schwarzenberg, Simor, Dupanloup, and Haynald would also be suppressed. Hefele was the first to put down his name, as he was not allowed at the time to answer the fierce attack of Cullen. On his inquiring after some days when his turn would come, he was told that he was the fifty-first in order, as all who came before him in age and rank must speak before he could be

permitted to open his mouth. A little later he was told he came seventy-first, so that his hope of being able to vindicate himself in the Council is almost at an end. Meanwhile he has had a brief reply to the attack of a Frenchman, de la Margerie, printed at Naples.

The minority have resolved to send a deputation to [pg 689] the Pope to petition for the adjournment of the Council, since it is horrible to detain so many aged men, many of whom are sick, by violence in this unhealthy city. They will of course meet with a positive refusal, for the Jesuits and the holy Virgin, who is always appealed to, are for carrying out the compulsory system to the last. But you may judge how the heat and the moral and physical miasmas are working on the Bishops from the fact that there are now only five or six on a bench where thirty Bishops used to sit, though most of the others are in Rome or the neighbourhood. Indeed they are kept prisoners here, and Antonelli said recently to a diplomatist, “Si quelque Evêque veut faire une partie de campagne (like Förster) la police n'a rien à y voir, mais s'il voulait quitter le Concile, alors ce serait différent,” so that every foreign Bishop lives here under the inspection of the police, who are to take care that he does not escape. This statement seemed to the diplomat to whom it was made so seriously to affect the sovereign rights of his Government, that he at once reported it.

The Roman logic, as may be seen from the *Civiltà*, is simply this: the Council is what it is through the Pope alone; without him it can do nothing and is an empty [pg 690] shadow. Freedom of the Council therefore means freedom of the Pope: if he is free, it is free. You may infer what reception will be accorded in the Vatican to the petition just resolved upon for a secret voting on the Papal *Schema*. There could be no more eloquent testimony to the real state of things and the estimate formed of the freedom of the Council, for it is dictated by the knowledge that a secret ballot would give a very considerable number of negative votes, at least 200, if the private expressions of opinion of the Bishops may be relied upon, while no one here ventures to hope for more than 110 or 115 *non placets* in a public voting. There are certainly some hundred, even of the Papal boarders, who would say *Non placet*, if their votes were sheltered by secrecy. Neither the Catholic nor the non-Catholic public has any idea of the extent to which a Bishop in the present day is dependent on Rome, and how difficult or

impossible the administration of his office would be made for him by the disfavour of Rome. The worst off of all are the Bishops under Propaganda, who have simply no rights. For them to speak of freedom, after the Pope has announced his wish, would be ludicrous, and to this category belong not only all the Oriental and Missionary Bishops, but [pg 691] the American and English also. And even for the Bishops of the older Sees, who are under the *Congregatio Episcoporum et Regularium*, and are protected by the common law or by Concordats, the practice of the *Curia* is a field full of man-traps, a belt studded with nails, which only needs to be drawn in by curialistic hands to make the nails pierce the body of the obnoxious Bishop. As things now are here, and after Pius has gone further than any Pope for centuries in glaring partisanship and open threats of enmity against all dissentients, secret voting must appear the only possible means of securing even a shadow of freedom for the decrees of the Council. If the voting is public, the word freedom, as used of the Council, could only be regarded as a mockery. And it is very well known here that the Pope's *entourage* do everything in their power to maintain him in his belief that the Opposition will melt away at last like snow before the sun, and hardly four negative votes will remain.

Last year the theologians summoned for the preliminary work were sent home at the beginning of June, and scarcely one or two even of the directing Commission of Cardinals stayed longer in Rome. Now the 15th or 20th of July is spoken of as the day for the promulgation, [pg 692] and if it should be a little earlier there will still be many of the prelates who will return from Rome ill and with their constitutions permanently shattered. The ancients found the word “amor” reversed in the name of the eternal city (*Roma*), and the Bishops are daily reminded of it. Meanwhile the brilliant recompense of Cardoni's services has rekindled the hopes of the majority; there are fifteen or sixteen vacant Hats, which will be given to those who have deserved best of the new dogma. The merits of the Italians are not conspicuous; they have most of them done moles' work, chiefly as spies, for that business is conducted here to an extent almost unheard of in Europe. Valerga is of course an exception, who has excelled all the Italians as a speaker. After him, Mgr. Nardi has so greatly distinguished himself by his active zeal that a red Hat would seem a fitting ornament of his head, but then there are very suspicious circumstances, only too notorious in Rome.

The men who have done and will do the most important services, who are indeed the modern Atlases to carry the main weight of the new dogma on their lusty shoulders, are of course the Jesuits. Pius is penetrated with the feeling that their services are above all praise and recompense. A [pg 693] Jesuit cannot be rewarded with titles and colours and dresses, but he can receive a Cardinal's Hat. The names of Toletus, Bellarmine, Pallavicini, de Lugo, recall grand memories. Not long before its dissolution in 1736, three of the Order were in the Sacred College together—Tolomei, Eienfuegos and Salerno. That might happen again, and the College would gain in capacity and working power. As Kleutgen cannot be thought of, on account of his trial before the Inquisition, and Perrone is too old, the next candidates would be Curci, Schrader and Franzelin. Father Piccirillo, from his intimate relations to the highest personage, would possess the first reversionary claim, and his services have been rewarded in a manner greatly desired and long aimed at by his Order, for he has received the permission, unprecedented in the history of Rome, to go alone into the secret archives and there work. Such an event would at other times have been regarded at Rome as a downfall of the heavens or a sign of the last judgment, and even now it has produced perplexity and amazement in genuine Roman circles. For every one who passes the threshold of the chamber of archives incurs *ipso facto* excommunication. So the Order is firmly seated in this unapproachable sanctuary. There is no [pg 694] fear of indiscreet publications. Piccirillo, far from publishing anything, will excel in mere negative activity.

Among foreign candidates for the Cardinalate Manning stands out as a star of the first rank in the Roman firmament. He may claim some paternity of the great idea of at last treating the apotheosis of the Papacy seriously, and he long ago suggested to Darboy how nice it would be for the two chief capitals of Europe, London and Paris, each to have its Cardinal, which could be best brought about by furthering the infallibilist definition. But Darboy would hear nothing of it. Next to Manning comes Dechamps of Mechlin; but as the Pope has named him primate, which is indeed a mere title, he is thought here to have had his reward. Spalding, who has deserved so well of Rome, would of course create a great sensation in the United States by the red hat, which has never yet been seen there. Among the French, Dreux-Brézé of Moulins and Pie of Poitiers come first in order.

There is great difficulty about Simor, the ill-advised and ungrateful son who had the Cardinalate, so to speak, in his pocket, and is now causing such distress to the lofty giver. How fortunate, say the Court party, that d'Andrea is no longer [pg 695] alive. Rauscher, Schwarzenburg, Guidi, d'Andrea, Simor—that would be too much. But now for the Germans! There it is difficult to select; all the faithful ones must be rewarded, who have literally sweated and are sweating daily in the interest of the good cause—Fessler, Martin, Senestrey, and then Stahl, Leonrod, Rudigier and the Tyrolese Gasser and Riccabona. The Tyrol has had no Cardinal since Nicolas of Cusa (Bishop of Brixen) and Madrucci (Bishop of Trent), and there most especially would the return of a countryman with a red hat be kept as a national festival.

Margotti has had a denial inserted in the *Univers* of the fact that a Sicilian Bishop related the story of St. Peter and the Virgin Mary in the Council Hall. On this I have merely to remark that it was told me the same evening by three Bishops, none of whom heard it from one of the others, and the speaker was Natoli, Archbishop of Messina. We know what Margotti's assertions and denials are worth.

[pg 696]

Sixtieth Letter.

Rome, June 23, 1870.—On reading the last document emanating from the Council, composed by the most distinguished of the American Bishops, an inexpressible feeling of astonishment comes over me, as often before, at the new and unprecedented spectacle so boldly offered to the startled world, and I again recognise the necessity of accounting to myself for the condition of the Catholic Church which has made this possible, and remembering that the position of the Papacy in the modern Church for some time past has been hardly less novel and strange than this present infallibilist Council.

The two great events of modern history, the Reformation and the Revolution, have made the Papacy what it is,—the Reformation by forcibly driving the Catholic half of Christendom into centralization, the Revolution by removing the last remaining independent powers [pg 697] within the Church, viz., the Gallican Church with the Sorbonne and Parliament. So it came to pass that with the Restoration the Church was surrendered to the discretion of the Papacy, just as at the same time the Roman States, by the withdrawal of all provincial and corporate independence, became a uniform and absolute monarchy. The very spirit of the nineteenth century, without much help from Rome, contributed to the consolidation and strengthening of this new system. The re-awakening and growth of distinct Church feeling in powerful classes of the educated nations, the legitimist ideas of the ruling classes of Europe, and later on the combined Catholic and Liberal interest of the struggle against hostile bureaucracies and the antipathy of parliamentary majorities—principles of reaction and principles of freedom all alike in turn subserved the cause of the Church, *i.e.*, the Papacy. For although Papacy and Church were still not wholly identified in fact, to say nothing of right, the times did not suggest the need for distinguishing between them.

There was opportunity given, one might suppose, for a great display of activity. A fresh creative spirit passed here and there through the new world of the nineteenth century, and not least through the Catholic [pg 698] portion of it, which produced in individuals many fair flowers of art and science, and also of practical piety. It was enough to catch the inspiration, in the sense of the age and of the eternal needs of mankind, and as the wilderness blossoms under the hand of a gardener, there grew out of the

ruins of the Revolution a new era of rich Christian life. But the destiny of Catholicism was to be the reverse. There was indeed then, and is now, urgent need of an immense deal to be done in the Church; to carry on the daily ecclesiastical administration by no means satisfied the requirements of the age, but the Church herself needed and needs reform—reform everywhere from the outer rind to the marrow. But reform, whether in Church or State, generally results from the struggle of rival forces. And the only power surviving in the Church possessed neither the capacity nor the inclination for acts of world-wide import; it seemed to have no sense but for the maintenance and extension of its own dominion. Such Catholic works as the nineteenth century has produced did not emanate from Rome, and were little if at all helped on by her. On the contrary, Rome put a restraint on everything which did not serve directly as an instrument of her power. Every germ of relative independence [pg 699] seemed to be viewed with distrust. Here and there the intellectual labour of a lifetime of Catholic study was simply extinguished. The youth of talent turned from a path which led only to unfruitful conflicts. The once promising seed-plot of original Catholic production became dry, and even the noblest creation of the century, the female orders for nursing the sick, are said by those best informed to show symptoms of decay. There was stillness. From Rome one only heard a monologue. The Bishops' Pastorals were its echo, or were so long-winded and verbose that the simple and noble language of the pronunciamento issued by the newly elected Bishop of Rottenburg was quite a phenomenon. Men boasted of the Catholic unity, which had never been so palpable and so undisturbed as in these latter days, but it was a unity of sleep over the grave of intellectual and all higher ecclesiastical life.

Who will bring us deliverance? asked every one who looked at things independently of the mere force of habit with a clear eye. The answer was that there was no longer any independent power anywhere but in the centre, and therefore deliverance could only come from thence; the lever could only be applied in [pg 700] Rome, and nobody but a future Pope was in a position to do this.

How peculiarly are things disposed! In Rome they had all they could desire. There has never been a time when Catholic Christendom lay so submissively at the Pope's feet. In fact he possessed practically the

prerogative of infallibility, for no one contradicted whatever he might say. The Bishops were disused to learning; there was hardly among them a theologian of note, and therefore they had no spirit for theological convictions of their own. It seemed to be the office of their lives to re-echo the Roman oracles. The daring project of defining the Immaculate Conception met with hardly any serious opposition, though many Bishops could not conceal from themselves that the faith of antiquity and the belief of their own dioceses knew nothing of the new dogma. And then in the Encyclical and Syllabus came a perfect flood of irrational and unchristian propositions. What did the Bishops of Christendom, the judges of faith, do? Some put a more rational interpretation on it, the others took it all for granted as it stood; everywhere the new articles of faith and morality were received as though all were in the most regular order. That was in fact a situation [pg 701] without any precedent, and there was nothing left to wish for but its continuance for ever. The talisman to secure this continuance was discovered in the tenet of papal infallibility, and to make this into a dogma and foundation-principle of the Church has been the grand object to which the thoughts and measures of the last ten years have been directed.

Even this last point might perhaps have been attained by adhering to the practice which has prevailed hitherto of quietly collecting the votes of the *Ecclesia dispersa*, and passing over the isolated opponents still left to the order of the day. Why was the perilous plan of a General Council adopted instead of this? Perhaps with the view of extruding and getting rid of for the future all the doubt still attaching to the assent of the Church dispersed; certainly in the full confidence, after all that had occurred previously, that there was absolutely no demand the Bishops would dare to refuse. The authorities felt in the position, ecclesiastically speaking, of being able to challenge the Holy Ghost Himself to say if He would refuse to set His seal to the deformation of the Church.

All the world knows how the Vatican Council has been managed. It was as if they wished to keep the [pg 702] Holy Ghost a prisoner, with eyes and ears bandaged. But things did not go as they wished. On the contrary this extreme step of the *Curia* roused a reaction, which seems likely to lead to a revolution that will take its place in history and introduce a complete change in the future. Certainly the deliverance is coming from the centre,

but not as was thought and desired, not in peace but in storm, not as a gift of the highest human wisdom but as a nemesis. For it is an old law, equally prevalent throughout the Christian and Heathen world, that pride will always bring its punishment.

We are already in the third stage of this movement. First came, quite unexpectedly, protests against infallibility from the lay world, instead of the accustomed clouds of incense, and then still more unexpectedly the military obedience of the clergy was broken through by the most decided intimations of conscientious sincerity and scientific conviction; and now even the princes of the Church are putting themselves at the head of the Opposition. There is still some difference between the Church dispersed and a great assembly, many as are the restrictions imposed here by fraud and violence on the free expression of opinion. The man of knowledge and character, who would there remain [pg 703] alone and isolated, gains tenfold power and energy here. Consciences are aroused. Many a Bishop who left home with his head wholly or half involved in the haze of Jesuit doctrine, receives the impulse here to unprejudiced study and is irresistibly driven to the side of right and truth. Besides, it is no small thing to have seen the state of things at Rome for six months with one's own eyes.

We shall do well not to raise our expectations too high. The spirit of slavery, which has become ingrained in one generation after another, cannot be scared away in weeks and months from men's minds and the conduct of affairs. So much the more noteworthy is every increase of outward or inward strength in the struggling minority at the Council. And so I return to the work already mentioned, to remark that its contents justify us in reckoning the author, the venerable Archbishop Kenrick of St. Louis, with Strossmayer, Hefele, Dupanloup, Darboy, Schwarzenberg, and Rauscher among the heads of the Opposition.

It is only matter of course that much which has often been said before should be repeated here, which we may pass over, without however omitting to notice the impression which the plain and practical [pg 704] nature of the treatise is calculated to produce. What concerns us more nearly is the distinctness and firmness with which the present claims of the *Curia* are repudiated, as, *e.g.*, in pointing out the injury to episcopal rights

involved in the desired definition. "The Bishops," says the author, "have always been held judges of faith. But assuming that the Pope alone is infallible, the Bishops may indeed assent to his judgments, but cannot exercise any real judicial office, and thus lose a right inherent in the episcopal office. But this right they are in no position to resign, however much they might wish it, for its connection with the episcopal office rests on the institution of the Saviour." In another passage he says, "Appeal is made to the number of theologians, who in the course of ages have defended infallibility. But that does not make it an article of faith. Divine Providence does not permit such opinions, when they have no true ground or do not agree with the records of revelation, to become articles of faith. It has been a view held for centuries that Christ gave Peter and his successors supreme authority in secular affairs also. But there is no one in our own day who does not reject and deplore it and seek for an excuse for it in the circumstances of the age, except the Roman clergy, in whose *Proprium Officium S. [pg 705] Zachariæ* we read the other day, that the Pope by his apostolic authority transferred the sovereignty over the Franks from Childeric to Pepin. And yet the Popes have ventured to make this usurped authority, so far as in them lay, into an article of faith." Then follows a reference to the Bull *Unam Sanctam*, and the similar statements of Bellarmine and Suarez. "On the other hand," Kenrick proceeds, "we find at this Council some Bishops, of whom the present writer is one, who have published and solemnly sworn to a declaration that the Pope, at least in England, possesses no such power. This example might teach those who are pressing for the definition of papal infallibility, that even the most solemn papal decree, and though issued like that of Boniface VIII. at a Synod, is null and void if it be not grounded on God's word in Scripture and Tradition. 'Commenta delet dies, judicia naturæ confirmat.' "

We may recognise in the tone of these remarks, with all their moderation, an advance on the part of the Opposition to greater freedom and distinctness of speech. And this impression is still more confirmed by Kenrick's judgment on the well-known proceedings in and out of Council. "There is yet another argument used," he says, "which I can only refer to with reluctance. It [pg 706] is urged that papal infallibility is so vehemently attacked by its opponents that, if it is not now declared to be an article of faith, it is virtually admitted to have no foundation, and surrendered to the

daily increasing violence of its assailants without protection. Those who so argue forget that they are themselves responsible for having occasioned this deplorable controversy, by announcing to the astonished world that at the Vatican Council two new dogmas would be proposed to the faithful, papal infallibility and the Assumption of the Blessed Virgin, and in a similar spirit publishing works in England and the United States on the Pope's authority, with a view of preparing men's minds for the acceptance of these dogmas. In view of this temerity, which has not only not been rebuked but has even been defended in Bishops' Pastorals, and with a clear perception of the unhappy consequences that must follow from it, men, who deserve eternal remembrance and will obtain praise of God, have lifted up their voice to remind the faithful that in matters of faith no innovation is allowed, that papal infallibility as distinct from the infallibility of the Church has no evidence of Scripture and Tradition, and that the office of Councils is to investigate and not to carry decrees by acclamation. [pg 707] And just because they speak the truth openly, these men are reproached with stirring up the people by the very persons who would eventually have interpreted their silence as assent and have used it as ground for carrying out their own designs. Then again it is urged upon good people that something must be done under the circumstances for maintaining the honour of the Papacy, forgetting that Bishops should have not circumstances but the truth before their eyes, and that it is as little competent to the successors of the Apostles as to the Apostles themselves to do anything against the truth, but only for the truth."

In another passage, after dwelling on the preponderance of the Italian prelates he proceeds, "If they wish to give the decrees of the Council the character of the testimony of the whole of Christendom, without altering the inequality of numbers of the representatives of different nations, there is the precedent of the plan adopted at the Council of Constance with the happiest results, viz., taking the votes by nations or languages and not by heads. And this method would secure the speedier and better settlement of the matters under discussion, for the Bishops of the same tongue or nation know the needs of their Churches better and would [pg 708] understand how to meet them; moreover they could express their views more readily in their mother tongue than is possible in the General Congregation where Latin is obliged to be spoken, which they have perhaps lost their familiarity with through

the long course of an active life, so that they have either to keep silent or to speak under difficulties. And by this means a discussion and searching examination would become practicable, which must necessarily take place at a Council, but which is wanting at the Vatican Council. There is indeed abundant opportunity for making speeches, but the great number of Fathers and the order of business imposed on the Council cuts off all opportunity for submitting any point to a close examination by regular debate with one speaker answering another. Five months have already passed since the opening of the Council, with what result need not be said here. Meanwhile the question of the new definition has roused a great excitement throughout the Christian world, which is still on the increase; some desire the definition, others emphatically repudiate it. Bishops have entered the lists against Bishops, priests have written against their own and against other chief pastors, and won commendation from the supreme [pg 709] authority for doing so. The journals of both parties, with their not always true reports or at least crooked reasonings, keep the whole world in a state of agitated suspense as to what is coming. May one say to what all this will lead and what will be the end of this violent tempest which has so suddenly risen in a clear sky and seems likely to produce much mischief? They are certainly deceived who fancy that the promulgation of the new dogma will at once lay the waves; the contrary is far likelier. Those who would obey the decrees of the Council will find themselves in a most difficult position. The civil Governments will treat them, not without some plausible grounds, as less trustworthy subjects. The enemies of the Church will throw in their teeth the errors said to have been taught by the Popes or sanctioned by their conduct, and will laugh to scorn the only possible answer—that they did not promulgate these errors as Popes but as individual Bishops of Rome. And then the scandalous Church history records of certain Popes will be urged as so many proofs of the internal discrepancy of Catholic belief, for men do not distinguish between infallibility and impeccability, which appear to them inseparably connected.”

[pg 710]

What Kenrick thinks the Opposition ought to do is not expressly stated, but may be gathered from his language. He says indeed that “whoever does not submit to the decisions of an Œcumenical Council does not deserve the name of Catholic,” but he adds, “if the indispensable conditions have been

observed in holding the Council.” And he makes moral unanimity one of these conditions. He does not allow the crude conception which seems to prevail among the majority, that a Council has simply to vote and then the world must reverence the result as the dictate of the Holy Ghost. The infallibility of Councils is to him no miraculous work of inspiration, but a simple result of the constitution the Church received from her Founder, whose assistance will never fail her, if she remains true to Scripture and Tradition and the agreement of the various particular Churches.

Kenrick and all the Bishops who hold firmly with him may meet the impending decision in quietness and confidence, for the defeat of their opponents is certain, whether they persist and define and promulgate the new dogma, or retreat at the last moment. In the former case deliverance will come through a catastrophe whose consequences defy all calculation. And yet even [pg 711] in Rome there do not lack pious minds which, undisturbed by these terrible dangers, desire to see the insolent enterprise carried through, in the belief that the prevalent corruption can only be overcome by a life and death struggle. “Quod medicina non sanat, ferrum sanat.”

[pg 712]

Sixty-First Letter.

Rome, June 24, 1870.—Rome is just now like an episcopal lazaret-house, so great is the number of the prelates who are sick and suffering and confined to their bed or their chamber. And still greater is the number of those who feel worn out and impatiently long to be gone. But there are persons here who calculate thus—that the Italians, Spaniards and South Americans are accustomed to the heat, and bear it very well, and as to the Germans, French and North Americans—“vile damnum si interierint.”

Guidi's speech still occupies men's minds, and forms the topic of conversation in conciliar circles. Men are astonished at the courage of a Cardinal in daring so directly to contradict the Pope. While Pius has word written to Paris that “for many centuries no one doubted the Pope's infallibility,” Guidi declares it to be an invention of the fifteenth century.

[pg 713]

The following account of the dialogue between the Pope and the Cardinal is current at Rome, and it seems to rest on the authority of Pius himself, who is notoriously fond of telling every one he meets how he has lectured this or that dignitary:—

Guidi, on being summoned by the Pope directly after his speech, was greeted with the words, “You are my enemy, you are the coryphæus of my opponents, ungrateful towards my person; you have propounded heretical doctrine.” *Guidi.*—“My speech is in the hands of the Presidents, if your Holiness will read it, and detect what is supposed to be heretical in it. I gave it at once to the under-secretary (*sottosecretario*) that people might not be able to say anything had been interpolated into it.” *The Pope.*—“You have given great offence to the majority of the Council; all five Presidents are against you and are displeased.” *Guidi.*—“Some material error may have escaped me, but certainly not a formal one: I have simply stated the doctrine of tradition and of St. Thomas.” *The Pope.*—“*La tradizione son' io —vi farò far nuovamente la professione di fede.*” *Guidi.*—“I am and remain subject to the authority of the Holy See, but I ventured to discuss a question not yet made an article of faith; if [pg 714] your Holiness decides it to be such in a Constitution, I shall certainly not dare to oppose it.” *The Pope.*—“The value of your speech may be measured by those whom it has pleased. Who has been eager to testify to you his joy? That Bishop

Strossmayer who is my personal enemy has embraced you; you are in collusion with him." *Guidi*.—"I don't know him, and have never before spoken to him." *The Pope*.—"It is clear you have spoken so as to please the world, the Liberals, the Revolution, and the Government of Florence." *Guidi*.—"Holy Father, have the goodness to have my speech given you."

The same afternoon a Spanish Bishop belonging to the extremest Infallibilists said, "Absque dubio facies Concilii est immutata. Oportet huic sermoni serio studere." When Guidi asked how the Cardinals had taken his speech, Mathieu replied, "Cum seriâ silentiosâ approbatione," on which Guidi observed, "Sunt quidam qui idem mecum sentiunt, sed deest illis animi fortitudo."

"La tradizione son' io"—it would be impossible to give a briefer, more pregnant or more epigrammatic description of the whole system which is now to be made dominant than is contained in those few words. All [pg 715] the members of the *Civiltà*, the thick volumes of Schrader, Weninger and the Jesuits of Laach are outdone by this clear and simple utterance. Pius will take rank in history with the men who have known how by a happy inspiration to throw a great thought into the most adequate form of words, which impresses it for ever indelibly on the memory. The formula is worthy to be classed with the equally pregnant saying of Boniface VIII., "The Pope holds all rights locked up in his breast." It is bruited about here from mouth to mouth, and the analogy of Louis XIV., which inevitably occurs to everybody, reaches even further. Every day since I have witnessed the drama being enacted here, has the saying suggested itself to me, "L'Église, c'est moi." Any one who would form a judgment of the state of things here should be recommended above all to read a work like, *e.g.*, Lemontey's *Essai sur l'établissement monarchique de Louis XIV.*, or the instructions of the King for the Dauphin. One sees there how absolute sovereignty, the intoxicating sense of irresponsible power—and spiritual absolutism is far more overpowering than political—leads almost of necessity to the notion of infallibility and divine enlightenment. Louis XIV. says seriously and drily to his son, "As God's representative [pg 716] we have part in the divine knowledge as well as the divine authority."¹⁴⁹ And he warns him that all his own errors had arisen from his too great modesty in giving ear to extraneous advisers. For eight hundred years the question has been

disputed, why the Popes are so short-lived, and the phenomenon has been ascribed to a special divine dispensation which removes them betimes, that they may not be morally poisoned by too long enjoyment of their dignity —“ne malitia mutaret intellectum.”

The minority perceive, on a calmer consideration, that the two canons proposed by Guidi would not provide sufficient security for the episcopate taking part in the teaching office of the Church according to the integrity of her constitution. The second indeed, like a well-aimed arrow, hits the mark. It calls the thing by its right name, and anathematizes the purely personal infallibility of the Pope, independent of the consent of the Church and resting on direct divine inspiration, as a heresy, which it unquestionably is in the eyes of every theologian who knows anything of the Church and her tradition; but then, after the Pope has so [pg 717] openly and expressly committed himself to precisely this view of the Church, it is thought impossible here in Rome, and close to the Vatican, to throw an anathema in his face. And besides the expression in the first canon, that the consentient “consilium Ecclesiæ” is requisite for an infallible papal utterance, is open to the same charge of vagueness as the notorious and much-abused *ex cathedrâ*, and could as easily be explained away into the mere arbitrary caprice of the Pope. It would always rest with him in the last resort to maintain “ex certâ scientiâ” that the “consilium Ecclesiæ” agreed with his own judgment.

A remodelling of the fourth canon has been undertaken, but the new formula is not known. It is however much talked of among the Bishops, and the general view is that it remains substantially unchanged, and still contains the personal infallibility of the Pope independently of the Church. Manning had said that the utmost regard that was possible should be paid to the views of the Opposition in the alteration of the chapter. And so those Bishops still hope for the accomplishment of their desires who, like Ketteler and Melchers, entreat that only one, however sterile, verbal concession may be made, so as to give them a bridge [pg 718] on which to pass over the gulf safely into the camp of the majority.

I lately heard a Roman layman say that what most surprised him among the many wonderful things he had seen here was the contempt for the Catholic

Church which prevails here. For that contempt could not be more emphatically expressed than by the Pope appropriating to himself what according to the ancient doctrine belongs to her, and declaring himself the sole and exclusive organ of the Holy Ghost. It is the same here universally; when one talks with a Roman, the *Curia*, the Pope, is everything, and the Church nothing but the “*contribuens plebs*.” My informant thought it was easy enough to understand the view of born Romans, but difficult to give any rational account of the attitude of the episcopal majority, for it must be clear to every one of them that the promulgation of the new dogma would destroy irrevocably all episcopal independence of Rome, and strip the nimbus from the brow of the Bishop who is a successor of the Apostles. I observed to him that in Romance countries this primitive idea of the episcopate had long since vanished, as he might easily convince himself by asking the next Italian peasant or shopkeeper he met what was his notion [pg 719] of a Bishop. And five-sixths of the majority belong to these countries,

In the Congregation of June 20 the Deputation put up one of its members, Bishop d'Avanzo of Calvi and Teano, to speak. For there was urgent need of promptly meeting the great scandal given by Guidi, and deterring any Cardinal who might be so disposed from following his example. The speaker allowed that in dogmatic decrees the tradition of the Church must be consulted and the Holy Ghost invoked, but how this was to be done was left to the judgment of the Pope. By his second canon Guidi passed over “*ad aliena non Catholica castra*,” exceeded all Gallicans and wanted—he, an Italian, a Dominican and a Cardinal—to canonize Gallicanism. A shudder ran through the ranks of all the Italians who live between Ferrara and Malta, but they remembered for their comfort that the unworthy son of the peninsula had been for some years professor at Vienna, and it was obvious that the German malaria he had caught there was the cause of this matricidal heresy.

Guidi had said that the admonition to Peter to confirm his brethren presupposed something to be confirmed, *i.e.*, that the Pope only confirmed the doctrine already maintained by the Bishops. To this d'Avanzo [pg 720] answered that it was utterly uncatholic, and one must rather begin from above and not from below, and ascribe the authorship and initiation of

doctrine to the Pope, who was immediately inspired by the Holy Ghost; “causa princeps infallibilitatis est assistentia Spiritûs Sancti.” And here followed a statement that must be given word for word: “Supervacaneum est omne additamentum, nulla emendatio in decreto et canone schematis acceptatur; nulla conditio, nulla limitatio admittetur per deputationem; inutilis est igitur omnis labor? ‘Animalis homo non percipit quod de cœlo est.’ ”¹⁵⁰ To say the definition was inopportune was merely pandering to the corrupt portion of society, and especially to the tribe of Government officials. The speaker added emphatically: “Satis fit servis Satanæ, qui sunt gubernantes, negantes ordinem supernaturalem—ergo Decretum est opportunum. In Pontifice Spiritus Domini vivit et agit, Pontifex ergo hôc Spiritu agente errare non potest.” It became known at once in the Council that this declaration, which annihilated so many hopes, had been made in the name and by special command of the Pope, and that “the animal man” meant the Opposition.

[pg 721]

The two next speakers were the titular Patriarchs Ballerini and Valerga. The first said with notable frankness, “Were we to let personal infallibility drop, we should destroy the obedience due to the Pope and exalt ourselves against God Himself.” In other words, the Vice-God orders us to declare him infallible, and of course we obey implicitly.

Valerga's appearance was the beginning of a comedy, which was repeated in subsequent sittings. He wanted to prove papal infallibility by inferences from the Florentine decree, which was received by all; but he was twice interrupted by the Presidents for not keeping to the question. He thereupon left the tribune, not without remarks being made by Opposition Bishops that they saw this treatment was not reserved for them only. The same thing happened on June 22 to Bishop Apuzzo of Sorrento and Archbishop Spaccapietra. On the 20th, towards the end of the debate, Archbishop MacHale of Tuam in Ireland spoke with great severity against the decree, the fatal consequences of which he seems to appreciate better than most of his Irish colleagues. Bishop Apuzzo reminded the Hungarians that they once had a primate (Szelepcsényi, a pupil of the Jesuits) who had summoned a synod to condemn the [pg 722] Gallican Articles of 1682, and that quite recently a Provincial Synod at Colocza had used language of very

infallibilist sound. Haynald took part in that Synod, and he, as well as Rauscher, to whom the same reproach was addressed, had already observed that it would not do to put a strictly logical interpretation on mere complimentary phrases. In the course of his speech Apuzzo became still more abusive. "Those are the sons of Satan," he exclaimed at last, "who say the Bishops are judges in the Church. No! we are but poor sinners." At the same time he proposed a supplement still more peremptory than the chapter. Spaccapietra came to grief in Church history, which is more grossly mishandled at Rome and in the Council Hall, when it is appealed to at all, than anywhere else. This time St. Polycarp's yielding to the Pope about the observance of Easter—he notoriously did just the reverse—was to serve as an example to the Opposition. When the speaker went on to utter fierce invectives against Cardinal Guidi, he was interrupted. He declared he had only something to say against the schismatics, but the President closed his mouth in theatrical fashion saying, "Cedat verbum tintinnabulo." So he left the rostrum.

[pg 723]

Men breathed more freely when, after these hollow declamations, two British Bishops brought the clear practical sense of their race and country to bear on the question and the previous discussion of it. The first of them, Archbishop Errington, who was formerly Cardinal Wiseman's coadjutor but soon got out of favour at Rome, pointedly characterized the vicious nature of the whole transaction; there were speeches on both sides, one affirming, another denying, and no one could feel that he had refuted anything or advanced his cause the least by his words. The Deputation alone had the privilege of referring to the speeches and examining them, and it belonged to the majority, not to the Council; "how it was formed, we know." As a tribunal the Council was bound to institute a calm and searching investigation of facts, tradition and testimonies, and for this only one means was available, which was employed at the former great Councils including the Tridentine, to form deputations from both parties for earnest conference, where scientific examination might take the place of rhetorical harangues—from both parties, for it was idle with Bilio to bid them ignore the existence of two parties. "Modo in hôc Concilio fit aliter et illud ineptissime," he concluded, [pg 724] and he proposed the formula, "Magisterium universalis Ecclesiæ est infallibile."

The next speech, of Vitelleschi, who is Archbishop of Osimo but has never been in his diocese, though it is so near, left no impression; it was an exhortation to vote infallibility unanimously. And then followed Archbishop Conolly of Halifax with a speech such as has seldom been heard here. "Thrice," he said, "have I asked for proof from Scripture according to its authentic interpretation, from Tradition and from Councils, that the Bishops of the Catholic Church ought to be excluded from the definition of dogmas; but my request has not been complied with, and now I adjure you, like the blind man on the way to Jericho, to give us sight that we may believe. Hitherto we have recognised the strongest motive for the credibility of Catholic doctrine in the general consent of the Church notified through the collective episcopate; this has been our shield against all external assailants, and by this powerful magnet we have drawn hundreds of thousands into the Church. Is this our invincible weapon of attack and defence now to be broken and trampled under foot, and the thousand-headed episcopate with the millions of faithful at its back to shrink into the [pg 725] voice and witness of a single man? Let the Deputation prove to us that it has really been always the belief of the Church that the Pope is everything and the Bishops nothing. The Council of Jerusalem did not adopt the formula of Peter but of John, who spoke before him, and in the Apostles' Creed we do not say 'Credo in Petrum et successores ejus,' but 'Credo in unam Ecclesiam Catholicam.' We Bishops have no right to renounce for ourselves and our successors the hereditary and original rights of the episcopate, to renounce the promise of Christ, 'I am with you to the end of the world.' But now they want to reduce us to nullities, to tear the noblest jewel from our pontifical breastplate, to deprive us of the highest prerogative of our office, and to transform the whole Church and the Bishops with it into a rabble of blind men, among whom is one alone who sees, so that they must shut their eyes and believe whatever he tells them."

Was it confidence of victory that moved the Legates to allow the bold and free-minded American, who spoke with the full weight of a deep and laboriously attained conviction, to bring these earnest words to a close without interruption, after they had recently reduced three of their own speakers in succession to [pg 726] silence? I know not. It was the unenviable lot of the Archbishop of Granada, Monzon y Martins Benvenuto, to follow Conolly. No one expects at this Council ideas or facts

from a Spaniard, but merely bombast and abject protestations of homage. Since they no longer have Queen Isabella and the throne has been vacant, these prelates have transferred their undivided devotion to the Pope, and among the reptiles here they are the most cringing after the Neapolitans. Monzon said he thirsted for new dogmas, and the infallibility of the Pope did not satisfy him; he earnestly desired a second dogma, viz., the divine and inviolable nature of the States of the Church.

It was reported two days ago that Cardinal Morichini, who formerly as nuncio breathed some German air, intends to speak in Guidi's sense, but since the scene between the Pope and Guidi has become known, it is generally thought that no Cardinal will be so foolhardy as to express any other opinion in Council than that of the inspired Pope. Meanwhile there are new speakers enrolled, among whom are Haynald, Strossmayer, the Bishops of Dijon, Constantine, Tarentaise, etc. The number considerably exceeds a hundred, but Errington has only too much reason for saying the debates are like [pg 727] a boy riding a rocking-horse—movement without advance.

You may imagine what capital the Jesuits make out of the speech of the Dominican Guidi. They are the supreme and thoroughly devoted body-guard of the Roman See, and can alone be implicitly trusted. And in fact nobody thinks it possible that a Jesuit should speak in Council like Guidi, as neither does any one here credit a Jesuit with sincere conviction of what he says; it is always known beforehand what he will say on any question, viz., what the Order considers for its interest and imposes as a corporate doctrine on its individual members. The sons of Ignatius remember now that the Dominicans have never been trustworthy. As early as 1303 the French appeal from Pope Boniface VIII. to a General Council was supported by 130 Dominicans at Paris, and at the Councils of Constance and Basle they took the most active part in the measures against papal omnipotence and in framing the mischievous canons of the fourth and fifth sessions of Constance; they joined Savonarola in opposing Alexander VI. and preferred being burned to submitting. And again they gave powerful aid in France to the establishment of the Gallican doctrine. And what, say the [pg 728] Jesuits, is the great Church history of the Dominican Natalis Alexander but

an arsenal from which to this day the opponents of infallibility get their weapons?

Preparations are already being made for the festivities which are to accompany the promulgation of the new dogma. The Romans—the native population—cannot understand why a part of the Bishops resist it so stoutly, and no less mysterious to them is the fiery zeal of foreigners, especially Frenchmen, in its favour. Their view is that infallibility, as being likely to bring large sums of money into Rome, is certainly a profitable and praiseworthy affair, and they are accordingly ready for noisy demonstrations of joy. Plenty of sky-rockets will go up, there will be illuminations, the pillars of the churches will be clothed in red damask according to the local usage, and numberless wax-candles will be burnt. Some enthusiasts think the fountain of Trevi will that day flow with wine instead of water, and it is hoped that at nightfall a transparency of the famous picture painted by the Pope's command to represent his infallibility will be shown to the faithful people. And next time the French Veillotists choose to cry in the streets “Long live the infallible Pope!” some Romans will join the cry.

[pg 729]

The festivities will absorb large sums of money, and the financiers are not without anxiety; for however lucrative the new dogma may prove by and bye, for the moment it is an unproductive capital, and the annual deficit of thirty million francs cannot be covered by promises of future prosperity. It has now been determined, since the huge bankruptcy of Langrand-Dumonceaux, who had been named a Roman Count, has created some alarm, to take in the Rhenish and Westphalian nobility with the ecclesiastical unions there as sureties, and thus to negotiate a loan of twenty million francs “*al pari*.” The noble presidents of the unions are said to have already signified their willingness.

The rewards of those for whom there are no Cardinal's hats are already under consideration. It is said that about a hundred Bishops will be named “assistants at the Pontifical Throne” in recognition of their services. Others will be made “*protonotarii apostolici*,” most of them only “*protonotarii sopranumerarii non participant*.” Several priests especially zealous for the

good cause will be made titular Bishops, and others “prelati domestici” and “monsignori,” or “camerieri segreti,” etc. Then there are the distinctions by means of colours, and soon we shall be able to measure a man's zeal for [pg 730] the new dogma at the first glance by seeing whether he wears the “abito paonazzo” or violet or scarlet. And there are exceptional decorations for use in church kept in reserve, like what the Archbishop of Algiers had given him.

The attitude of Ketteler creates astonishment and is studied as a riddle to which no solution can be found. The Pope said to-day, “Io non capisco, cosa vuole quel Ketteler, che un giorno distribuisce delle brochure contro di me e contro della mia infallibilità, e che il giorno dopo scrive nei giornali che sia pieno di devozione per me, e che crede alla mia infallibilità, pare che sia proprio mezzo,” and thereupon he made a gesture indicating that the Bishop of Mayence was not quite right in his head.

In fact Ketteler is the only man here who perplexes a reporter or historian. He has a work printed and distributed, in which infallibility is declared to be an unscriptural and unecclesiastical doctrine, and he says in his attack on me that according to his view Scripture and Tradition (*i.e.*, the two only sources for the Church's faith) do not justify its dogmatic definition. Yet he affirms that he was always an infallibilist believer and will soon be more so than ever. It is [pg 731] difficult to report on the performances of a theological gymnast who seems rather to balance himself in mid air than to have firm ground under his feet. Here it is thought that he follows the counsel of his powerful patrons in the German College and the Gesù, who have made him understand that the new dogma will certainly be proclaimed, and that he would do well to change as speedily as he can from an inopportunist to a zealous advocate and executor of the decree. He has lately been reproached by an influential theologian (Gass) with making his own Church worse than it is by his doctrine that the Catholic Church knows of no duty of obedience against conscience. It will certainly never occur to me, now or at any future time, to have recourse to the conscience of Bishop Ketteler; that would indeed be the last refuge one would fly to!

Sixty-Second Letter.

Rome, June 30, 1870.—In the middle ages ecclesiastical controversies were decided by the ordeal of the cross. The representatives of both parties placed themselves before a large cross, with their arms stretched out in the form of a cross, and he whose arms first sank, or who fell exhausted to the ground, was conquered. The heat and the Roman fever have replaced this ordeal at the Council. The process which is to test the result has been going on for six weeks, and the majority will evidently come out of it with flying colours. It is composed chiefly of Italians and Spaniards of both hemispheres, who can bear such things much better than northerners, and as it is four times as numerous as the minority, gaps made in its ranks by sickness and death are soon filled up, and the phalanx remains firmly closed, while the Opposition receives the news of the sickness or departure of one of its members as heralding [pg 733] its growing discouragement and final defeat. How well the authorities understand the inestimable value of this new ally, the heat and mephitic exhalations, is shown by the laconic but significant words of the papal journalist, Veuillot, in his 125th Letter on the Council, “Et si la définition ne peut mûrir qu'au soleil, eh bien, on grillera.” As before, so now again Roman orthodoxy seems to have called fire to its aid, and for Bishops, who do not wish to be roasted according to Veuillot's wish, flight is the only alternative.

Cardinal Guidi has received the most peremptory orders from the Pope to make a formal retraction of his speech in Council. The form and occasion

of making it he may arrange with the Legates. He has already had an interview with Bilio. The Pope has forbidden him to receive visits, that he may be free to consider without distraction the greatness of his error. Solitary confinement is adopted in the penal legislation of other countries too as an efficient instrument of reformation. Guidi has told the Presidents that he is ready to give an explanation of his speech in a public sitting, if they will announce beforehand that he does so by the Pope's desire; but he can make no retraction. Jandel, the Dominican General, intends now to deliver a speech [pg 734] in refutation of Guidi's theory, which has been composed for him in the Gesù. Many think that Guidi will be deterred from letting things come to extremities by the terrible example of Cardinal Andrea, who was worried to death. A Cardinal, who lives out of the Roman States, may maintain a certain independence or even opposition, as the precedent of Cardinal Noailles shows, but in Rome this is impossible. As Archbishop of Bologna Guidi would be under the protection of the Italian Government, but thither he will never be allowed to return.

Heat, fever and intrigues—this is a brief description of the state of Rome, as regards the Council. The heat and pestilential miasmas are unendurable for foreigners from the north; already six French and four American Bishops have been obliged to save their lives by departure, and of those who stay in Rome a third are unable from their bodily ailments to attend the sittings. A Petition to the Pope is now in course of signature praying for a prorogation, on account of the danger to the lives of many foreign and aged prelates at this season of the year. I give you the text, but will observe that I hear most refuse to sign, some thinking the case a hopeless one, others of very ill repute in the [pg 735] Vatican fearing their adherence would only make it more so. The Petition runs thus—

“Beatissime Pater! Episcopi infrascripti, tam proprio quam aliorum permultorum Patrum nomine a benignitate S. V. reverenter, fiducialiter et enixe expostulant, ut ea, quæ sequuntur, paterne dignetur excipere:

“Ad Patres in Concilio Lateranensi v. sedentes hoc habebat, die xvii. Junii, Leo x. Papa ‘Quia jam temporis dispositione ... concedimus’ simulque Concilium Pontifex ad tempus autumnale prorogabat.—Pejor certe inpræsentiarum conditio nostra est. Calor æstivus, jam desinente mense

Junio, nimius est, et de die in diem intolerabilior crescit; unde RR. Patrum, inter quos tot seniores sunt, annorum pondere pressi, et laboribus confecti, valetudo graviter periclitatur.—Timentur inprimis febres, quibus magis obnoxii sunt extranei hujusce temperiei regionis non assuefacti.

“Quidquid vero tentaverit et feliciter perfecerit liberalitas S. V., ut non paucis episcopis hospitia bona præberentur, plerique tamen relegati sunt in habitationes nimis augustas, sine aëre, calidissimas omninoque insalubres. Unde jam plures episcopi ob infirmitatem corporis abire coacti sunt, multi etiam Romæ infirmantur [pg 736] et Concilio adesse nequeunt, ut patet ex tot sedibus quæ in aulâ conciliari vacuæ apparent.

“Antequam igitur magis ac magis creverit ægrotorum numerus, quorum plures periculo hic occumbendi exponerentur, instantissime postulamus, B. Pater, ut S. V. aliquam Concilii suspensionem, quæ post festum S. Petri convenienter inciperet, concedere dignetur.

“Etenim, B. Pater, cum centum et viginti episcopi nomen suum dederint, ut in tanti momenti quæstione audiantur, evidens est, discussionem non posse intra paucos dies præcipitari, nisi magno rerum ac pacis religiosæ dispendio. Multo magis congruum esset atque necessarium brevem aliquam, ob ingruentes gravissimos æstatis calores, Concilio suspensionem dari.

“Nova vero Synodi periodus ad primam diem mensis Octobris forsitan indicari posset.

“S. V., si hoc, ut fidenter speramus, concesserit, gratissimos sensus nobis populisque nostris excitabit, utpote quæ gravissimæ omnium necessitati consuluerit.

“Pedes S. V. devote osculantes nosmet dicimus S. V. humillimos et obsequentissimos famulos in Christo filios.”

Attempts have already been made by word of mouth to secure some compassion from the Pope for the severe [pg 737] sufferings of the Bishops, but wholly in vain. His comments on the members of the minority, if rightly reported here, are so irritable and bitter that I scruple to mention them. But I

must relate what occurred to-day at a farewell audience given to some Maltese Knights, who had come to exercise their privilege of keeping guard at an Œcumenical Council. The Pope first turned to an English member of the Order and wished him success in the scheme for introducing it into England, and then expressed his sympathy for that nation in his confident expectation of the speedy and innumerable conversions promised by Manning, adding the remark that the Italians were somewhat volatile. And the mildness of the expression, compared with former ebullitions of anger, proved that the infallibilist line of the Italian Bishops had covered in his eyes the political sins of the nation. But then he turned to the Germans, who were present in the greatest number, with the words, "I piu cattivi sono i Tedeschi, sono i piu cattivi di tutti, lo spirito Tedesco a guastato tutto." Even that was not enough, but a Bohemian knight who was present had to listen to a stream of invectives against the conduct of Cardinal Schwarzenberg, which made a very unpleasant impression on him. [pg 738] As a French Bishop said to me to-day, it is a humiliating spectacle to see a man who, at the very moment when he is assimilating his office to the Godhead, recklessly displays the little weaknesses and passions which people are generally ashamed to expose to view.

It was clearly shown in the Congregations of 23d and 25th June that the majority only continue to tolerate the speeches of the Opposition as an almost unendurable nuisance. Loud murmurs alternated with the ringing of the Presidents' bell. When Bishop Losanna of Biella, the senior of the Council, was speaking against burdening the Christian world with the new dogma, the Legate tried to ring him down. He entreated that at least out of regard for his advanced age they would let him finish the little he still had to say. In vain. The Legate went on ringing and the Bishop speaking, so that the assembly for some time was regaled with a duet between a bell and an—of course inaudible—human voice.

In the Congregation of the 23d Bishop Landriot of Rheims made a long speech in the interests of mediation and mutual concessions, which showed careful study, but was received with every sign of displeasure by the majority: he also proposed what Errington had [pg 739] wanted, that a Commission formed from both parties should examine the whole tradition on the subject and report the result to the Council. At this cries of "Oho,

oho!” rose from the majority. Discouraged and intimidated the Archbishop concluded with the declaration that, if the Pope pleased to confirm the *Schema*, he submitted by anticipation, at which the faces which had grown black brightened up again and the apology for the French Church which he ended with was condoned.

The most remarkable speeches in the sitting of 25th June were those of the Bishop Legate of Trieste and Ketteler of Mayence. The first had the courage to say plainly that the manipulation of Scripture texts, which were pressed into the service of the new dogma in glaring contradiction to the authentic interpretation of the Church, was a sin. Ketteler's speech created the greatest sensation from its decided tone, and its not betraying the contradiction in which he seems to find himself involved after his public declarations in Germany. I must indeed reckon on my report again displeasing and angering him, for this “mobile ingegno usato ad amar e a disamar in un punto” is wont to take it very ill if his bold transitions do not leave the same impression on others which floats before his own [pg 740] memory. But I will fulfil my duty as historian of the Council in spite of this. Ketteler urged that nobody had alleged any clear evidence for a personal and separate infallibility of the Pope being really contained in Scripture, Tradition and the consciousness of all Churches; it was only the opinion of a certain school—“placita cujusdam scholæ” he repeated several times emphatically. The Pope certainly had the right of proscribing doctrines which contradicted the dogmas already decided by the Church, but by no means the totally different right of formulating a new dogma without the consent of the episcopate. It was the greatest absurdity to believe or say “Pontificem in pectoris sui scrinio omnem traditionem repositam et infusam habere.” At these words murmurs arose in the assembly; all had shortly before heard and repeated to one another the Pope's assertion, “La tradizione son' io.” Then Ketteler attacked the theory of Cardinal Cajetan, the well-known first opponent of Luther, that Peter alone among the Apostles had a “potestas ordinaria” to be transmitted to his successors, while the “potestas specialis” conferred by Christ on the rest expired at their death, so that the Bishops are not successors of the Apostles but derive all their authority from the [pg 741] Pope. This mischievous system had been adopted by a certain school, and the *Schema* before them was drawn up in accordance with it and in contradiction to all Catholic tradition. It placed the Bishops in the same

relation to the Pope as priests occupied towards Bishops, which was unheard of. He protested against the whole system, and desired that in every dogmatic decree Holy Scripture and Tradition should be taken full account of: the Pope needed the co-operation of the Bishops as representatives of tradition. It was utterly wrong to believe that the *depositum fidei* was committed to the Pope alone.

If the force and clearness of Ketteler's speech evoked deep and serious reflection, an amusing episode occurred at the close of the sitting. The Irish Bishop Keane of Cloyne ascended the tribune. There is a story told of a German city whose sapient councillors carried the sunlight out of the street in sacks to light their town-hall, which had no windows; and so Keane informed his hearers that St. Peter brought the whole body of tradition with him to Rome well stored up; here and here alone it was still kept, and every Pope took what was required from the stock which he possessed as a whole genuine and entire.

[pg 742]

Those who wish to prosecute psychological and ethical studies should come to Rome. Here they may observe how the three great powers of the world, as St. Augustine calls them, “Errores, amores, terrores,” work together in full harmony and activity; the last especially will aid the victory of the first—for how long He only knows who rules the destiny of man.

[pg 743]

Sixty-Third Letter.

Rome, July 2, 1870.—The Pope's reported answer to those who spoke to him of the sufferings of the Bishops and their danger of death, and the consequent need for proroguing the Council, is passing from mouth to mouth. I should consider it a sin to publish it. Were it true, one would have to treat the man who could so speak as the Orsini treated Boniface viii. in his last days. If it is not true, it is very remarkable that the Romans have no hesitation in circulating it and really credit their Pope with it. This and the disdain bordering on simple contempt with which the Romans look down on the Bishops are among the indelible impressions they will take back with them over the Alps.

In the sitting of 28th June Bishop Vitali of Ferentino in the Roman States first inveighed against the long speeches of the Bishops, and then broke into a dithyrambic [pg 744] panegyric on his master, the Pope, who, like the Emperor Titus, was the “*deliciæ orbis terrarum*.” He was somewhat abruptly interrupted by the Legates in the middle of his rhapsody. Ginoulhiac, Archbishop of Lyons, who is the most learned member of the French episcopate after Maret, next delivered an ably and carefully composed speech, which was not interrupted. He appealed to the words and example of former Popes who had acknowledged—like *e.g.*, Celestine i. in 430—that they were not masters of the faith but only guardians of the traditional doctrine, and that not singly but in unison with all Churches and their Bishops, as was clearly expressed in the decree. Pius vi., strong as was the pressure put upon him by France, delayed a long time the issue of the decree against the civil Constitution of the clergy of 1790, because, as he wrote to the King, the Pope must first conscientiously ascertain how the faithful will receive his decision. But a large section of Catholics were not at all disposed to receive this *Schema*, and the decree would evidently evoke the bitterest hostility to the Church where it did not already exist, and immensely increase it where it did. Pius vi. then said that, if the Roman See, the centre of the Church, lost its authority through exaggerating its claims, [pg 745] all was lost. Pius ix. should take care that this doctrine did not

become a snare to innumerable Catholics. He concluded by commending the formula of St. Antoninus, which requires the consent of the episcopate.

In the sitting of 30th June a member of the almost extinct third party among the French, Sergent, Bishop of Quimper or Cornouailles, came forward. He proposed adding to the *Schema*, which might then be accepted, words requiring the co-operation for decisions on faith of the “*episcopi, sive dispersi sive in Concilio congregati*.” But he insisted on the superiority of the Pope to a Council according to the decree of Leo. x.,—or, as he said, the fifth Lateran Council, and defended the order of business imposed on this Council by Pius ix. But here he touched on a very sore place; the Bishops sit here under the continual conviction of having their hands tied in an illegitimate and tyrannical fashion, and knowing that the order of business is in direct contradiction to the independence of the ancient Councils. The Legates must have felt that the Opposition would say, “*Hæc excusatio est accusatio*,” and that it would give the requisite handle for again renewing their written protests by word of mouth now at the decisive moment. Sergent was therefore called to order.

[pg 746]

After the Bishop of Aversa, who spoke as an ordinary infallibilist, Bishop Martin of Paderborn came forward and created a sensation. A German infallibilist, like Martin, who was not kneaded and dressed in the Jesuit school, is an interesting and curious phenomenon of itself, and produces somewhat the same impression as an European who voluntarily lives among savages and adopts their language and customs. But Bishop Martin's appearance was remarkable on other grounds also. It was long since any one had been heard in the Council who spoke in so angry a tone and with such noise and visible endeavour to supplement his stammering utterance by the action of hands and feet. It was a difficult labour that Martin achieved, like a singer drowning his own voice, and doubly meritorious in these melting days. And here I may make a remark that should have been made before: the Hall has really gained lately in acoustic qualities, from having an awning stretched over it which acts as a sounding-board.

Martin shouted into the Hall that the personal infallibility of every Pope was inseparable from the primacy, for the Pope was the supreme legislator,

and therefore he must of necessity be divinely preserved from all error. The Bishops of the minority were amazed at this statement, for none of them had expected a German Bishop [pg 747] to declare the whole code of the Inquisition, as promulgated by the Popes from Innocent III. to Paul V., infallible and inspired. But there was still better behind. Two German witnesses for infallibility were cited, Dr. Luther, on account of his letter to the Pope in 1518, and Dr. Pichler of 1870. Up to 1763 all Germans were staunch infallibilists, but then Febronianism came in and for a time obscured this light of pure doctrine, which had previously shone so bright in Catholic Germany. But an orthodox reaction had followed, thanks to the excellent catechism of the Jesuit Deharbe, the Provincial Synod of Cologne and several Pastorals. Martin then referred to Döllinger, and reproached him with having in his earlier works—which were not named—taught papal infallibility, whereas he now assailed it. The Bishop, who is a member of the Deputation, then proposed a formula he had devised, “*Traditioni inhærentes docemus Pontificem, cum universalem Ecclesiam docet, vi divinæ assistentiæ errare non posse.*” But that was not enough, without smiting down the opponents of the doctrine by a solemn anathema, as follows, “*Si quis dixerit non nisi accedente consensu Episcoporum Romanum Pontificem errare non posse, anathema sit.*” He moreover agreed with Spalding and Dechamps that parish priests and others having cure of souls [pg 748] should be required by a special admonition addressed to them to impress this doctrine of infallibility on their people often and emphatically from the pulpit.

The speech was delivered in the tone and manner of a confessor dealing with a hardened sinner in his last moments, and the Germans, from whose ranks the speaker had issued,—men like Rauscher, Haynald, Strossmayer, Hefele—sat shamefaced with their eyes on the ground, while the delight of the Italians and Spaniards could be read on their countenances at this humiliation of the nation which prides itself on the superior culture of its clergy. But they were surprised at Martin's concluding declaration that no doubt in Germany great dangers for the Church would follow from the promulgation of the doctrine. It was mentioned in the Council Hall that, in a widely circulated school-book which had passed through eleven or twelve editions, Martin had taught the exact reverse of the doctrine he now so noisily and peremptorily maintained; but then it was observed in excuse for

him that the heterodoxies of this book, though it bore his name, were no fault of his, as he had simply transcribed it from the papers of the late Professor Diekhoff, which were left in his charge.

[pg 749]

Sixty-Fourth Letter.

Rome, July 5, 1870.—Rome is an excellent school for Bishops; a course of seven months at the Council produces wonderful results. One illusion after another is laid aside and an insight gained into the working of the huge machine and the forces that put it in motion, and the Bishops learn at last, though it be laboriously and not without tears, why they were summoned and what services alone are demanded of them. The historian Pachymeres relates that, when the people of Constantinople demanded a Council in 1282 in order to judge the unionist Patriarch, Bekkus, Bishop Theoktistus of Adrianople said that they treated Bishops like wooden spits on which Bekkus might be roasted, and which might then be thrown into the fire.¹⁵¹ A very similar feeling has come over many Bishops here; they know that if they say *Non placet* at last, they will be cast into the fire, after they have helped by their [pg 750] reluctant practical recognition of both the first and second order of business—destructive as both are to all real freedom—to forge the new spiritual yoke. And then they find their schoolroom a very

narrow and uncomfortable one, and have at last discovered that it looks very like a prison cell.

It is but a game of moves and counter-moves as on a chessboard, only that no one dares to incur the penalty of high treason by saying “Check to the king,” or lifting a finger for such an audacious move. The minority were so confounded and irritated by the abrupt closing of the general debate, because they hoped to prolong it till prorogation became inevitable. For nobody doubted in April and May that this would follow at the end of June, and the notion was sedulously fostered by the official staff of the Council—the Legates and Secretary Fessler—and by the Pope himself. It is not long since Pius said to a French Bishop, “It would be barbarity on my part to want to keep the Bishops here in July.” And thus the Opposition, whenever they were shaken and disturbed by some violent act, let matters be hushed up and never gave any practical effect to their protests and complaints. But now the Court party say that it would indeed be tyrannical cruelty to keep us [pg 751] here, under ordinary circumstances, imprisoned in this furnace full of fevers, but it is justified by the abnormal situation. The grand and saving act of the infallibilist definition, which is to quicken the whole Church with new powers of life and introduce the golden age of absolute ecclesiastical dominion, cannot any longer be held in suspense. “You surely will not wish,” said Cardinal de Angelis to a Bishop who was urging the necessity of a prorogation, “that the Pope, after spending so many thousand scudi on the Bishops, should now be left alone in the Vatican without any recompense.” And Antonelli thinks the Bishops have only themselves to blame for their present suffering condition; why have they wasted so much time in speeches?

Since that shocking saying of the Pope's, which I referred to in my last letter, has become known here, the Bishops have abandoned as hopeless the design of making a direct appeal to him for the prorogation of the Council on the score of the health and lives of its members. And this conviction has been further strengthened by the insolence of the Court theologian, Louis Veuillot. “Let yourselves be roasted, since it is only through this fiery ordeal that the precious wine of infallibility can be matured,” he exclaims to them, [pg 752] and they know now that they are inside a door over which the inscription is written

“Lasciate ogni speranza voi ch' intrate.”

And now there is a new cause of alarm. It is said—perhaps the report is spread on purpose—that at last no Bishop will be allowed to depart till he has signed a bond laid before him declaring his entire and unconditional submission. We actually hear that, by a recent decision, leave of absence is only to be given to the Bishops in case of serious illness, that is, when they are no longer equal to the journey. Several prelates therefore have already inquired of the ambassadors of their Governments, what means of protection they could afford them in case of such violence being exercised. The ambassadors will be obliged to write home for further instructions, as it seems no such case had been foreseen as possible to occur. But so many astonishing and seemingly impossible things have happened during the last seven months that such an act would no longer excite even any particular surprise.

Guidi still appears in Council and shows himself in his votes an independent thinker and by no means a humiliated or broken man, but in his convent he is guarded like a prisoner and constantly urged by threats [pg 753] and persuasions to recant. When a remark was made to the Pope about his harsh treatment of this man, who still as Cardinal shares the numerous privileges of his order, he is reported to have said, “I summoned him, not as Cardinal, but as brother Guidi, whom I lifted out of the dust.” Guidi had drawn great displeasure on himself before by joining Cardinals Corsi and Riario Sforza in making representations to the Pope against the alteration introduced by his order in the sequence of the subjects for discussion, by which means the infallibilist *Schema* was interpolated before its time. He lived in the Minerva with certain Bishops of his Order, Milella, Pastero, Alcazar and Manucillo, and their mutual conferences led to the matured conviction that the personal infallibility of the Pope is a novel doctrine, of late invention and unknown even to the great Thomas and the Thomist school, chiefly introduced in substance by the Jesuits. Guidi appeals to the fact that years ago he has taught this at Vienna, as was or easily might have been known. If he keeps firm, and Cardinal Silvestri, who often votes with the Opposition, joins their side in good earnest—five dissentient Cardinals, including Mathieu, Rauscher and Schwarzenberg—more Italian Bishops than the Court would like, may [pg 754] say *Non placet*. It is already

remarked that they earnestly inquire among themselves whether the German and French minority are likely to remain firm at the decisive moment and not melt away, in which case they would be ready to vote with them. You may imagine how intensely Guidi is hated here. For the moment he might make O'Connell's boast his own when he said he was "the best abused man in the British Empire." What Persius said is equally true of the clerical "turba Remi" now,—“sequitur fortunam ut semper, et odit damnatos.” I may mention in illustration of the view prevalent among the majority, that Manning the other day told one of the most illustrious Bishops of the minority he had no further business in the Catholic Church and had better leave it. Even in the Council Hall Bishop Gastaldi of Saluzzo exclaimed to the minority that they were already blotted out of the book of life.

The internal history of the minority since the end of June consists mainly of their endeavours to avert the departure of the timid and home-sick and those attacked by fever. Hitherto leave has been given them readily enough when asked, but it is said this will not be so for the future. The Prince Bishop of Breslau, Förster, [pg 755] was urgently entreated to remain, and he seemed to be persuaded, but now he is gone,¹⁵² and so are Purcell of Cincinnati, Vanca, Archbishop of Fogaras, Greith of St. Gall, and others—a serious loss under present circumstances. The feeling of self-preservation at last overpowers every other; and what answer can be given to a man who says, when required to stay and help to save the truth, “If I am ill in bed with fever on the critical day, my vote is lost”? Moreover the burning atmosphere peculiar to Rome, impregnated with exhalations from the Pontine marshes, oppresses and enervates mind as well as body and cripples the energy of the will.

So on the 1st July an understanding was arrived at among the Opposition Bishops. It was felt more and more clearly that to go on with the speeches was a sterile and dreary business. For one solid and thoughtful speech from, *e.g.*, Darboy, Strossmayer, Haynald, Guidi, Dupanloup, Ginoulhiac, Ketteler or Maret, one had to listen for long hours to the effusions of Spanish, Sicilian and Calabrian infallibilists, and the speeches of this party sound as if their authors had first studied [pg 756] the dedicatory epistles to the Popes which the Jesuits prefix to their works, and strung together the sonorous phrases contained in them. Moreover the conduct of the Legates

had become palpable partisanship. For several days they offered demonstrative thanks to every speaker who gave up his turn; the bitterest attacks of the majority on their opponents passed unrebuked, and the murmurs and signs of impatience whenever infallibility was called in question grew more and more pronounced. It became evident that there was nothing really to be gained by prolonging the speeches, when all hope of getting the Council prorogued had to be abandoned.

At the sitting of July 2 the affair was to have been brought to a settlement. The minority had sketched out a notice in the Council Hall, stating that all speakers on their side withdrew, and handed it to Cardinal Mathieu to communicate to the French, but they declined to accept it, saying every one should be free to decide for himself. And so, on that day, out of twenty-two Fathers only four spoke, including Meignan of Chalons and Ramadie of Perpignan.

But it soon became irresistibly evident to both parties that it was advisable for them to put an end to [pg 757] the oratorical exercises. The Legates had frequently used the formula of the Index when a speaker gave up his turn, saying, “laudabiliter orationi renunciavit,” or “magnas ipsi agimus gratias.” The majority had two reasons for wanting the speeches to go on—first the wish of particular individuals to signalize themselves and lay up a stock of merits deserving reward; and secondly, that the Northern Bishops might succumb to the rays of the July sun, as Homer's Achæans sunk under the arrows of Apollo. But they were made to understand that the Pope would account their simple “*Placet*, sans phrase” a sufficient service, and reward it according to their wish.

Moreover they felt secure about the eventual attitude of the minority, or at least a considerable portion of them, for it was known that two German Bishops had said, “We shall resist to the last moment, but then we shall submit, for we don't wish to cause a schism.” This gave great joy to the Court party. I heard a monsignore say, “These are our best friends, more so than those who already vote for and with us, for their coming over at the critical moment can only be ascribed to the triumphant and irresistible power of the Holy Ghost poured out through the Pope upon the Council; each [pg 758] of them is a Saul converted into a Paul, who has found his

Damascus here at Rome, and becomes a living trophy of the vice-godship of the Pope and the legitimacy and œcumenicity of this Council. We can desire nothing better for our cause than these late and sudden conversions.” And thus at last an understanding satisfactory to all parties was come to; on July 4 all the speakers enrolled withdrew, only reserving their right of presenting their observations in writing to the Deputation.

[pg 759]

Sixty-Fifth Letter.

Rome, July 7, 1870.—I must go back a few days and tell you something more of the speeches made since St. Peter's Day. It is for the interest of the contemporary world and of posterity that the Roman system of hushing up and deathlike silence should not be fully carried out, and that it should be known what truths have been uttered and what grounds alleged against the fatal decision of the majority and rejected by them.

Soon after Bishop Martin a man spoke who had gained the highest respect from all quarters, Verot, Bishop of Savannah, a really apostolical character, compared in America with St. Francis of Sales. On a former occasion, on June 15, he had pointedly criticised the conduct of the Court party and the attempt to surrender all that yet remains of the ancient constitution of the Church to a centralized papal absolutism. “If,” he said, “the Pope wants to

possess and exercise a direct and immediate jurisdiction in my diocese, only [pg 760] let him come over to America himself, and bring with him plenty of the priests who are so abundant here to my country where there are so few; gladly will I attend him servant and observe how he, riding about in my huge diocese, judges and arranges everything on the spot.” And, as some Bishops of the majority had given out the favourite Roman watchword, that historical facts must yield to the clearness and *a priori* certainty of doctrine, Verot replied briefly, “To me an ounce of historical facts outweighs a thousand pounds of your theories.” This time he was not interrupted, as he had always been before,—by most no doubt not understood. Maret too, in the sitting of July 1, attacked the projected absolutism which the Church was now to be saddled with. In the political world, he said, it is done away with and disappears more and more under a common feeling of repugnance, and now it is for the first time to be confirmed in the Church, and Christians, “the children of heavenly freedom,” are to be reduced, after the protection afforded by the consent of the episcopate is abolished, to spiritual slavery, and forced into blind subjection to the dictates of a single man. He said this in more courteous language than this brief epitome gives scope for.

[pg 761]

Among the most important speeches was that which followed, of Bishop David of Saint Brieuc in Bretagne. It was one of the speeches of a kind I said in an early letter would not be tolerated, the result has refuted me. The Bishop said that the proposed article of faith was first invented in the fifteenth century, when a new form, different from that ordained by Christ, was given to the Church, at the expense of the inalienable rights both of the Bishops and the faithful. If the hypothesis of papal infallibility really belonged to the deposit of faith, it must have been defined and universally acknowledged in the earliest ages, as it would evidently be a fundamental doctrine indispensable for the whole Church. The parallel drawn between this and the lately defined and previously undetermined and open doctrine of the Immaculate Conception is quite irrelevant. It is clearly evident, he added, that this new attempt to exalt the Papacy will produce the same disturbance as the earlier one in the sixteenth century. A sign of it is the sudden and rapidly growing alienation of the French clergy from their Bishops, which is instigated from a distance. Passing on to a vindication of

the much abused Gallican doctrine, he showed that the former Popes themselves declared it to be allowable and [pg 762] only reprobated the attempt to make it into a special and separate rule of faith for the French Church alone.

The Spanish Bishop of Cuenca, Payà-y-Rico, followed, and began by affirming in the bragging and bombastic style of his country, that in Spain the infallibilist doctrine had always prevailed. This was a glaring falsehood; it would have been enough to cite against him the names of Tostado, Escobar, Victoria, and others, the Spanish Bishops and theologians at Trent, and the fact that the Inquisition first made the doctrine dominant in Spain. But immediate replies are not permitted in the Council Hall, and the majority were so charmed with his disclosures that they loudly applauded him. Encouraged by this he turned round upon the Opposition, observing that a short interval was still allowed them to come over to the majority, and that, unless they made a good use of it, their only choice lay between a subsequent meritorious submission or condemnation for heresy.

The minority, who meet daily either in national or international conferences, were engaged in drawing up a formula requiring the consent of the episcopate as indispensable, but soon gave this up and resolved to abstain from any demonstration, as they could gain nothing by it. Several thought this would compel the [pg 763] majority, if they really wanted to gain the concurrence of the Opposition, to make proposals on their side for some tolerable formula. But at present that is highly improbable.

In the sitting of July 5, where the only business was to vote on the third chapter, in consequence of the general withdrawal of the speakers, an unexpected occurrence intervened. Some days before Bishop Martin of Paderborn had proposed in his own name and that of some of his colleagues that in a Supplement, designated as a *monitum*, the doctrinal authority of the Bishops should be mentioned, but only incidentally and in a sense compatible with the Pope's prerogative of personal infallibility. When the Pope heard of this, he was much displeased, and peremptorily ordered that a canon should be laid before the Council for acceptance enouncing emphatically and under anathema the papal omnipotence over the whole Church. The Deputation had already had the third canon printed and

distributed in the following amended form:—“Si quis dixerit, Romani Pontificis Primatum esse tantum officium inspectionis et directionis et supremam ipsius potestatem jurisdictionis in universam Ecclesiam non esse plenam, sed tantum extraordinariam et mediatam—anathema [pg 764] sit.” But in order to carry out the Pope's command, the Bishop of Rovigo, as a member of the Deputation, read the canon in a more stringent form, which in fact left the extremest absolutist nothing to desire, but which was not in the printed text and was either not heard or not understood by the greater part of the Bishops, while yet it was to be voted on on the spot—in contradiction to the distinct directions of the order of business. This more stringent version of the canon runs thus:—

“Si quis dixerit, Romanum Pontificem habere tantummodo officium inspectionis vel directionis, non autem plenam et supremam potestatem jurisdictionis in universam Ecclesiam, tum in rebus, quæ ad fidem et mores, tum quæ ad disciplinam et regimen Ecclesiæ per totum orbem diffusæ pertinent; aut eum habere tantum potiores partes, non vero totam plenitudinem hujus supremæ potestatis; aut hanc ejus potestatem non esse ordinariam et immediatam sive in omnes ac singulas Ecclesias, sive in omnes et singulos pastores et fideles—anathema sit.”

A more shameless outwitting of a Council has never been attempted. Archbishop Darboy at once rose and protested against this juggling manœuvre, and the [pg 765] Legates were obliged, humiliating as it was for them, to let the matter drop for the present; but the addition will be brought forward again in a few days.

A proof has lately forced itself on my attention of the confusion of mind habitual to many of the Bishops of the majority. I asked one of them, who had expressed his surprise that so much fuss was made about this one dogma, whether he had formed any clear conception of its retrospective force and examined all the papal decisions, from Siricius in 385 to the Syllabus of 1864, which would be made by the infallibilist dogma into articles of faith. And it came out that this pastor of above a hundred thousand souls imagined that every Pope would be declared infallible, not for the past but for the future only!¹⁵³ But he was somewhat perplexed when I mentioned to him on the spur of the moment merely a couple of papal

maxims on moral theology, which were now to be stamped with the seal of divinely inspired truths.

On Saturday the 9th the special voting is to take place on the emendation just mentioned of the third chapter of the third canon in the interests of papal [pg 766] absolutism, and on the same day or Monday the whole of the third chapter and the amendments on the fourth are to be voted on; on Wednesday, the 13th, the votes are to be taken on the whole *Schema* “en bloc.” As yet the Opposition can still be reckoned at 97, exclusive of Guidi and the Dominican Bishops, who may not improbably come to its aid at the critical moment.

One of the witticisms circulating here, for which the Council affords matter to genuine Romans, is the following, that in the sitting of July 4 there was a great uproar among the Bishops, they were all set by the ears and the Pope himself ran away, and why all this? “E perchè tutta questa cagnara? perchè il Papa vuole esser *impeccabile*, e i vescovi non lo vogliono.”

[pg 767]

Sixty-Sixth Letter.

Rome, July 14, 1870.—I must again interrupt my narrative of the occurrences and speeches between June 5 and 10 to communicate the

details of the great event of the session of July 13—an event which has falsified all expectations on both sides, and created a sensation and astonishment in Rome which it will take people some time to recover from. Even beyond the Alps, in spite of the all-absorbing question of the war, it will rouse interest and joyful surprise. In the last few days before the critical morning of the 13th there was much discussion among the Bishops of the various nations as to whether they should vote a simple “No” or a conditional “Yes,”—a *Non placet* or a *Placet juxta modum*. It was not merely the fourth chapter that was in question, which deals with infallibility, but the whole *Schema* on the Papacy, which contains also the [pg 768] much-decried third canon of the third chapter, establishing for the first time the theory of the universal episcopate of the Pope, the very theory Pope Gregory the Great characterized as an abomination and a blasphemy. It was known that the Bishops who are mere dilettantis in theology—and their number is legion, as is natural under the present system of episcopal appointments—would greatly prefer voting *juxta modum*, i.e., with a conditioned “Yes.” That would always leave them free to reserve their further decision till the public voting “coram Sanctissimo” (as the Pope is here called), when only a direct “Yes” or “No” can be voted. Each of them could present in writing the conditions or wishes on which he desired to make his *Placet* dependent, and then say “Yes” or “No” according to his pleasure in the Solemn Session, if his suggestions were disregarded—“Yes,” if he wished to direct the lightning flashes of the angry Jupiter to other heads than his own; “No,” if he could summon manliness and courage enough at the last moment. The Court party and the majority had neglected no means of impressing on the recalcitrants the uselessness of their negative votes and the personal disadvantages to themselves. Every one was told, “It is determined irrevocably to take no account [pg 769] of your ‘No,’ and to go on to the promulgation of the dogma. Supported by at least 500 favourable votes, and throwing the surplus weight of his own vote into the scale, the Pope, on the 17th or 24th July, will walk over your heads amid the presumed acclamations of the whole Catholic world; and how lamentable and hopeless a situation will yours be then! You are then heretics, who have incurred the terrible penalties of the canon law; you have surrendered at discretion, bound hand and foot, to the mercy of the deeply injured Pope. Consider, ‘Quid sum miser tunc dicturus, quem patronum rogaturus?’ ”

Thus they were worked on individually. And more drastic methods were employed as well. It was asserted that two documents had already been drawn up in the Vatican, which every Bishop would be compelled to sign before being allowed to leave Rome; the one a profession of faith comprising the new article of infallibility, and the other an attestation of the perfect freedom of the Council throughout its whole course. Whoever refused to sign either would thereby at once incur papal censures. "We shall thus have," they were told, "your *Non placet* and your 'free' acknowledgment under your hand of the article of faith you denied a few days before, and [pg 770] shall show it to the world. Do you wish then morally to annihilate yourselves in public opinion?"

As the Bishops who are resolved to give a negative vote knew well the more timorous temper of many of their colleagues, who were half-ready to be persuaded and half-ready to succumb, and remembered the Scriptural saying that "a high priest must have compassion on our infirmities," some of them drew up a formula stating the basis on which the timid might vote *Placet juxta modum*. In the preamble of the *Schema* the word "principium" was to be exchanged for "exordium," and instead of "vis et virtus in eo (Papâ) consistit," was to be put "præcipue in eo consistit;" the third canon of the third chapter was to be wholly omitted, and the word "episcopalis" left out of the chapter, and lastly, the formula of St. Antoninus was to be substituted for the fourth chapter. The proposed document ends with "Secus in Solemni Sessione dicturus sum, *Non placet*."

On July 12 the Bishops of the minority held the most largely attended international conference which has yet taken place; about 70 were present. Three prelates, two German and one French—Ketteler, Melchers and Archbishop Landriot of Rheims—proposed that all should vote *Placet juxta modum*, but at the same time [pg 771] hand in a precise and decided formulae the condition of their assent, with a declaration that, if their demands were rejected or inadequately complied with, they should be obliged to vote *Non placet* in the Solemn Session. This would have substantially secured the complete victory of the majority and the *Curia*. Every one would have naturally said, "Your 'Yes,' however conditioned, can only bear the sense that in the main point you agree with the *Schema*, and that main point lies in the two new and great articles of faith, which

hang together and must shape the future of the Church, the universal episcopate of the Pope and his infallibility. By saying *Placet* you affirm these two new dogmas, and after that it will matter little what particular collateral wishes or conditions you may choose to add. Whether they are acceded to or not, you must in consistency say 'Yes' on the great day of the public profession, when only a simple affirmative or negative vote can be given."

The three Cardinals, the two primates Simor and Ginoulhiac, Strossmayer and others, spoke out repeatedly and emphatically against this mischievous proposal which would at the last moment have frustrated all their hopes, and annihilated the results of seven months' [pg 772] sufferings and labours. A decisive impression was produced by the remark of the Archbishop of Milan, that there were many infallibilists who on various grounds would vote conditionally, and this peculiar kind of vote, which was better adapted to courtiers than Bishops, had better be left to them. "The only befitting course for us," he said, "who are convinced of the falsehood of the doctrine, is to say 'No.' " This was unanimously accepted. Tarnoczy, who for some time back has withdrawn from his German and Hungarian colleagues, and votes regularly with the majority, was not present. Cardinal Schwarzenberg said he should be glad if one of the Cardinals voted *Non placet* before him, but if this did not happen he should be the first, and should count it a distinction to stand at the head of this noble band.

It was remarkable how generally the view prevailed that scarcely ten opposing votes would really be given when the time came. No means were spared, by rumours and inventions, to spread terror and despair among the ranks of the Opposition. Thus the report was circulated in foreign journals—where you will have read it—as well as here, that a "sauve qui peut," and "débandade" had become the watchword of the Opposition, [pg 773] and not thirty would be left on the day for voting. We see now that this was all pure invention. Even Förster's departure, which I reported myself, had not taken place; only Greith had gone. When Darboy had an audience of the Pope the day before the voting, and said that there was a considerable number of Bishops who would join him in saying *Non placet*, the Pope replied, "Perhaps many will vote *juxta modum*, but certainly not above ten *Non placet*." For some time past Pius has notoriously known everything

with absolute certainty, even the temper of distant countries. The formulas put into the Pope's mouth by the Roman Chancery, “*proprio motu*” and “*ex certâ scientiâ*,” have been transmuted by the habit of twenty-four years into actual flesh and blood with him.

At the beginning of the sitting the news had spread among the majority that the negative votes would be much more numerous than had been supposed on the evening before. On this Dechamps of Mechlin went to the heads of the Opposition and entreated them with humble gestures and whining voice to vote *juxta modum*, saying there was really some disposition with the authorities to insert the “consensus” and “testimonium Ecclesiarum” into the fourth chapter. The trick was [pg 774] too barefaced to succeed, and sharp words were spoken on the other side. One of the Bishops said to the new primate, “C'est une impudence sans exemple,” and Darboy called the attention of the three Cardinals to this treacherous attempt at the last moment to divide and perplex the Opposition. Now began the voting “sub secreto,” as it was again called, and the sub-secretary Jacobini read the names of the Fathers from the pulpit. And then a wholly unexpected phenomenon came to light: out of 600 Fathers present in Rome—there were 764 in January—only 520 had appeared, and it was at once known that very many of the absentees had stayed away from dislike to the *Schema*, and to avoid the disagreeable consequences of a negative vote.

The line taken by the Orientals in the voting excites surprise here. The Propaganda has spared no means of exercising a strict supervision and control over them, and yet the upshot is that the most influential of them have voted *Non placet*, some *juxta modum*, and others have absented themselves. In fact all the real Eastern Bishops—*i.e.*, those who represent dioceses—have voted against the dogma. Every one acquainted with the state of things in Asia foresees that the promulgation of the dogma, [pg 775] which will follow in spite of this, will lead to the definitive separation of the Uniate Churches in the East. But that makes not the slightest impression on the Pope and the Jesuits.

When the names of the *juxta modum* voters were read out, the President said “quorum, quantum possibile erit, habebitur ratio.” That sounded like open mockery: it meant, “We (the Deputation) have already settled among

ourselves what is impossible, viz., making the co-operation of the episcopate a condition, but still there are some possible things. If, *e.g.*, any Bishops wish to have ‘inerrantia’ substituted for ‘infallibilitas,’ perhaps they may be gratified.” But even concessions of that sort are doubtful, for one cannot give the lie to Bishop Gasser of Brixen, who has distinctly declared that “nec verbum addetur nec verbum demetur amplius.”

Among the conditional voters are Dreux-Brézé, certainly only because the decree is not strong enough for him. The whole Hungarian Episcopate remained firm in its opposition. The Austrians know now why Rudigier and Fessler were given them as Bishops. I send you with this the authentic list of the Fathers who did not vote with a simple *Placet*. It shows that it [pg 776] was just the Bishops of capital cities, as well as North American, Irish, English, and beyond expectation many North Italian prelates, who voted against the dogma. Only one, strictly speaking, was wholly false to his professions, the Bishop of Porto Rico.

The Pope is still sure that at the last critical moment a divine miracle will enlighten the benighted minds of the opponents and suddenly reverse their sentiments. The Holy Ghost will and must do this. Pius seems to have clear assurances on that point. He had lately a remarkable conversation about it with a French Bishop, whom he had never seen before. As he regards every opponent of the dogma as his personal enemy, he received him as such and reproached him with being Cæsar's friend instead of the Pope's; the Bishop replied that his white hairs testified to his having nothing to fear or hope for, but simply to follow his conscience, which constrained him with many of his colleagues to vote against the new dogma. “No,” exclaimed Pius, “you will not vote against it; the Holy Ghost at the decisive hour will irresistibly enlighten you, and you will all say *Placet*.”

When the French Government in 1733 had the cemetery of La Chaise surrounded with soldiers, to [pg 777] stop the miraculous cures at the grave of the Abbé Paris, the inscription was found one morning over the entrance

De par le roi défense à Dieu,
De faire miracle en ce lieu.

On the 17th or 24th July 1870 there might be written over the entrance of the Council Hall—

De par le Pape ordre au bon Dieu
De faire miracle en ce lieu.

The echo of the Vatican, Veuillot's *Univers*, has just been accusing the Bishops of the minority of ruining the papal treasury by prolonging the debates on infallibility through their opposition, and thus obliging the Pope to go on supporting his 300 episcopal foster sons, and buy his infallibility late and at a high price, when it ought to have been cast into his lap by spontaneous acclamation at the first. A physician has now been discovered for the treasury which has sickened under the infallibility affair. Rothschild is said to have been here and concluded a loan of forty million franks. As the deficit only amounts to thirty million, there remain ten million for fireworks, illuminations and church-decorations, the journey-money of trusty Bishops, and the like. But now the war is impending, and with [pg 778] it the withdrawal of Peter's pence and perhaps still worse.¹⁵⁴

The following voted *Non-placet*:—1. *Prague*, Cardinal Prince-Archbishop Schwarzenberg; 2. *Besançon*, Cardinal Archbishop Mathieu; 3. *Vienna*, Cardinal Prince-Archbishop Rauscher; 4. *Antioch*, Patriarch Jussuf, of the Melchite Rite; 5. *Babylon*, Patriarch Audu, of the Chaldean Rite; 6. *Gran*, Archbishop [pg 779] and Primate of Hungary, Simor; 7. *Lyons*, Archbishop Ginoulhiac; 8. *Tuam*, Archbishop MacHale; 9. *Olmütz*, Prince-Archbishop Fürstenberg; 10. *Trabezund*, Bishop Ghiureghian, of the Armenian Rite; 11. *Munich*, Archbishop Scherr; 12. *Bamberg*, Archbishop Deinlein; 13. *Seert*, Bishop Bar-Tatar, of the Chaldean Rite; 14. *Halifax*, Archbishop Conolly, of the Capuchin Order; 15. *Lemberg*, Archbishop Wierzczeyski, of the Latin Rite; 16. *Paris*, Archbishop Darboy; 17. *Kalocsa*, Archbishop Haynald; 18. *Milan*, Archbishop Nazari di Calabiana; 19. *Tyre*, Archbishop Kauam, of the Melchite Rite; 20. *Biella (Italy)*, Bishop Losanna; 21. *Autun*, Bishop Marguerye; 22. *Ivrea (Piedmont)*, Bishop Moreno; 23. *Dijon*, Bishop Rivet; 24. *Metz*, Bishop Dupont des Loges; 25. *Iglesias (Sardinia)*, Bishop Montixi; 26. *Acquapendente* (formerly in the Roman States), Bishop Pellei; 27. *Trieste*, Bishop Legat; 28. *Orleans*, Bishop Dupanloup; 29. *Vezprim*,

Bishop Ranolder; 30. *Mayence*, Bishop Ketteler; 31. *Bosnia and Syrmia*, Bishop Strossmayer; 32. *Budweis*, Bishop Jirsik; 33. *Breslau*, Prince-Bishop Förster; 34. *Kerry*, Bishop Moriarty; 35. *Leontopolis, in partibus*, Bishop Forwerk, Apostolic Vicar of Saxony; 36. *Plymouth*, Bishop Vaughan; 37. *Clifton*, Bishop Clifford; [pg 780] 38. *Nice*, Bishop Sola; 39. *Parenzo and Pola*, Bishop Dobrilla; 40. *Kreutz (in Croatia)*, Bishop Smiciklas, of the Ruthenian Rite; 41. *Augsburgh*, Bishop Dinkel; 42. *Gurk*, Bishop Wiery; 43. *Caltanissetta (Sicily)*, Bishop Guttadauro di Reburdone; 44. *Vacz (in Hungary)*, Bishop Peitler; 45. *Marianne (Syria)*, ——— of the Melchite Rite; 46. *Chatham*, Bishop Rogers; 47. *Csanad and Temesvar*, Bishop Bonnaz; 48. *Pittsburg*, Bishop Domenec; 49. *Luzonia*, Bishop Colet; 50. *Sura, in partibus*, Bishop Maret; 51. *St. Brieuc*, Bishop David; 52. *Trèves*, Bishop Eberhard; 53. *Coutance*, Bishop Bravard; 54. *Lavant*, Bishop Stepischnigg; 55. *Soissons*, Bishop Dours; 56. *Akra*, Bishop Mellus, of the Chaldean Rite; 57. *Siebenbürgen*, Bishop Fogarasz; 58. *Châlons*, Bishop Meignan; 59. *Valence*, Bishop Gueullette; 60. *Perpignan*, Bishop Ramadié; 61. *Paleopolis, in partibus*, Bishop Mariassy (*Hungary*); 62. *Petricola or Little Rock (United States)*, Bishop Fitzgerald; 63. *Marseilles*, Bishop Place; 64. *Cahors*, Bishop Grimardias; 65. *Osnaburgh*, Bishop Beckmann; 66. *Szathmar (Hungary)*, Bishop Virò de Keydi Polany; 67. *Munkacs*, Bishop Pankovics, of the Ruthenian Rite; 68. *Bayeux*, Bishop Hugonin; 69. *Raab*, Bishop ———; 70. *La Rochelle*, Bishop Benedetto; 71. *Nancy*, Bishop Foullon; 72. [pg 781] *Constantine (Algiers)*, Bishop de las Cases; 73. *Oran (Algiers)*, Bishop Callot; 74. *Gap*, Bishop Guilbert; 75. *Ermeland*, Bishop Crementz; 76. *Rochester*, Bishop MacQuaid; 77. *Louisville*, Bishop Kenrick; 78. *Cassovia*, Bishop Perger (*Hungary*); 79. *Agathopolis*, Bishop Namszanowski, Provost of the Prussian Army in Berlin; 80. *Montreal (Canada)*, Bishop Bourget; 81. *Grosswardein*, Bishop Lipovniczky; 82. *Fünfkirchen*, Bishop Kovacs; 83. *Steinamanger*, Bishop Szenczy; 84. *Rottenburg*, Bishop Hefe; 85. *Ajaccio*, Bishop Sante Casanelli d'Istria, and three more whose names were omitted in the official catalogue.

There voted *Placet juxta modum*:—1. De Silvestri, Cardinal-Priest; 2. Trevisanato, Cardinal Patriarch of Venice; 3. Guidi, Cardinal Archbishop of Bologna; 4. *Salsburg*, Archbishop and Primate Tarnoczy; 5. *Oregon City*, Archbishop Blanchet; 6. *Nisibis, in partibus*, Archbishop Tizzani; 7. *Tyre and Sidon*, Archbishop Bostani, Maronite; 8. *Manila*, Archbishop Melithon-

Martinez; 9. *Granada*, Archbishop Monzon y Martins; 10. *Avignon*, Archbishop Dubrevil; 11. *New York*, Archbishop MacCloskey; 12. *Cologne*, Archbishop Melchers; 13. *Melitene, in partibus*, Archbishop Mérode; 14. *Rheims*, Archbishop Landriot; 15. *Sens*, Archbishop [pg 782] Bernardou; 16. *Burgos*, Archbishop Yusto; 17. *Ventimiglia (Italy)*, Bishop Biale; 18. *Columbica, in partibus*, Bishop Verolles, Apostolic Vicar in Leao-Tung (China); 19. *Canopo, in partibus*, Bishop Besi; 20. *Sira*, Bishop Alberti, Apostolic Delegate in Greece; 21. *Zenopolis, in partibus*, Bishop Moccagatta, Apostolic Vicar in Xan-Tung; 22. *Lipari*, Bishop Ideo; 23. *Birmingham*, Bishop Ullathorne; 24. *Vancouver*, Bishop Demers; 25. *Mileto*, Bishop Mincione; 26. *Moulins*, Bishop Dreux-Brézé; 27. *Gezira*, Bishop Hindi, of the Chaldean Rite; 28. *Hadrianopolis, in partibus*, Bishop De la Place, Apostolic Vicar in Tsche-Kiang; 29. *Tarnovia*, Bishop Pukalski (Galicia); 30. *Chartres*, Bishop Regnault; 31. *Urgel*, Bishop Caixal y Estrade; 32. *Monterey*, Bishop Amat; 33. *Tanes, in partibus*, Bishop Salzano, Dominican; 34. *Newcastle*, Bishop Chadwick; 35. *Lacedonia*, Bishop Majorsini; 36. *Todi*, Bishop Rosati; 37. *Avellino*, Bishop Gallo; 38. *Amelia*, Bishop Pace; 39. *Nola*, Bishop Formisano; 40. *Imola*, Bishop Moretti; 41. *Zamora*, Bishop Condé y Corral; 42. *Avila*, Bishop Blanco, Dominican; 43. *Savannah*, Bishop Verot; 44. *Cuenca*, Bishop Payà y Rico; 45. *Cajazzo*, Bishop Riccio; 46. *Teramo*, Bishop Milella, Dominican; 47. *Nocera*, Bishop Pettinari; 48. *St. Christophori*, Bishop [pg 783] De Urguinaona; 49. *Clariopolis, in partibus*, Bsciai, Apostolic Vicar in Egypt, of the Coptic Rite; 50. *Erzeroum*, Bishop Melchisedechian, of the Armenian Rite; 51. *Monte Fiascone*, Bishop Bovieri; 52. *Savona*, Bishop Cerruti; 53. *Agathonica, in partibus*, Bishop Pagnucci; 54. *Ascalon, in partibus*, Bishop Meurin, Society of Jesus; 55. *Dionysia, in partibus*, Bishop Gentili; 56. *Cattaro*, Bishop Marchich; 57. *Serena*, Bishop Orrego; 58. *Mardin*, Bishop of the Chaldean Rite; 59. *Tiberias, in partibus*, Bishop Valeschi; 60. *Guardi*, General of the Ministers of the Sick; 61. The Abbot of the Camaldolese in Etruria.

The following abstained from voting, though in Rome at the time:—
Cardinals: 1. Mattei, 2. Orfei, 3. Quaglia, 4. Hohenlohe, 5. Berardi, 6. Antonelli, 7. Grassellini; 8. The Patriarch Harcus of Antioch, of the Syrian Rite; 9. The Archbishop and Primate Salomone of Salerno; 10. The Maronite Archbishop Aun of Beirout; 11, 12. Two other Archbishops; 13.

Aleppo, Archbishop Matar, of the Maronite Rite; 14. *Venezuela*, Archbishop Guevara; 15. *Utrecht*, Archbishop Zwysen; 16. *Tours*, Archbishop Guibert; 17. *Rodi, in partibus*, Archbishop Pace-Forno, Bishop of Malta; 18. *Mardin*, Archbishop Nasarian, of the Armenian Rite; 19. *Alby*, Archbishop Lyonnet; 20. *Iconium, in partibus*, Archbishop Puecher [pg 784] Passavalli; 21. *Guadalaxara*, Archbishop Loya; 22. *Amida*, Archbishop Bahtiarian, of the Armenian Rite; 23. *Tournay*, Bishop Labis; 24. *Terni*, Bishop Severa; 25. *Veglia*, Bishop Vitezich; 26. *Almira, in partibus*, Bishop Carli, Capuchin; 27. *Montauban*, Bishop Doney; 28. *Cava*, Bishop Fertilla; 29. *Curia, in partibus*, Bishop Grioglio; 30. *Segni* (Papal State), Bishop Ricci; 31. *Paphos, in partibus*, Bishop Alcazar, Dominican Vicar Apostolic; 32. *Vicenza*, Bishop Varina; 33. *Salford*, Bishop Turner; 34. *Catanzaro*, Bishop de Franco; 35. *Bergamo*, Bishop Speranza; 36. *Savannah*, —; 37. *St. Angelo in Lombardy*, Bishop Fanelli; 38. *Dromore*, Bishop Leahy, Dominican; 39. *Glarus*, —; 40. *Birta, in partibus*, Bishop Pinsoneault; 41. *Fernes*, Bishop Furlong; 42. *Anagni*, Bishop Pagliari; 43. *Siguenza*, Bishop Benavides; 44. *Ceramo, in partibus*, Bishop Jeancard, Suffragan of Marseilles; 45. *Polemonia, in partibus*, Bishop Pinchon; 46. *Lipari*, Bishop Athanasio; 47. *Apamea*, Archbishop Ata, of the Melchite Rite; 48. *Mindus, in partibus*, Bishop Papardo del Parco; 49. *Bursa*, Bishop Tilkian, of the Armenian Rite; 50. *Astorga*, Bishop Arguelles y Miranda; 51. *Comacchio*, Bishop Spoglia; 52. *Charlottetown*, Bishop MacIntyre; 53. *Vallis Pratensis*, — (?); 54. *Lamego*, [pg 785] Bishop de Vasconcellos Periera de Mello; 55. *Montpellier*, Bishop Curtier; 56. *Barcelona*, Bishop Monserrat y Navarro; 57. *Amatunto, in partibus*, Bishop Galezki, Apostolic Vicar in Cracow; 58. *Kilmore*, Bishop Conaty; 59. *Priene, in partibus*, Bishop Cosi; 60. *Tuy*, Bishop Garcia y Anton; 61. *Puno*, Bishop Huerta; 62. *Adelaide*, Bishop Shiel; 63. *Albany (America)*, Bishop Conroy; 64. *Concordia*, Bishop Frangipani; 65. *St. Hyacinth*, Bishop Laroque; 66. *Dubuque*, Bishop Hennessy; 67. *Vannes*, Bishop Becel; 68. *Goulburn*, Bishop Lannigan; 69. *St. Germani bei Monte Cassino*, — (?); 70. *Verdun*, Bishop Hacquard; 71. *Eg a, in partibus*, Bishop Reynaud; 72. *St. Giov. di Cuyo*, Bishop Achaval; 73. *Cirene, in partibus*, Bishop Canzi; 74. *Rodiopolis, in partibus*, Bishop Tosi; 75. *Buffalo*, Bishop Ryan; 76. *Adramyttium, in partibus*, Bishop Gibbons; 77. *Coria*, Bishop Nu ez; 78. *Heliopolis*, Bishop Nasser, of the Melchite Rite; 79. *Titopolis, in partibus*, — (?); 80, 81. Abbates nullius; 82, 83. Burchall, President of the Benedictine Congregation in England; 84.

The Abbot of Janow, Apostolic Administrator in Russia; 85. Montis Coronæ; 86-91. These names could not be announced on account of the great confusion.

[pg 786]

Sixty-Seventh Letter.

Rome, July 16, 1870.—As I had to report in my last letter, the attempt of the Legates and the Deputation to outwit and catch the minority by a violation of their own order of business had all but succeeded. Darboy and Strossmayer frustrated this plot, on which it is literally true that the fate of the Church was staked. For the third canon of the third chapter had been brought forward in so enlarged and altered a form, that it involved in substance the abolition of the entire episcopate, as an integral constituent of the Christian Church, and substituted for it the papal “totality,” as the theologians of the seventeenth century called it; *i.e.*, the theory that in the whole Church there is one sole individual who is in exclusive possession of all plenary powers and all ecclesiastical rights. The weight and importance of the doctrine thereby designed to be [pg 787] for the first time imposed on the Church cannot even be made intelligible in a few words. Most readers are naturally unaware of the sense attached in canon law and the language of the *Curia* to the words, “*potestas immediata et ordinaria*.” Well! they mean that all Christians, whether laymen or clerics, are personally subjects, body and soul, of their lord and master, the Pope, who can impose on them without restriction whatever commands seem good to him. There are, besides the Pope, who exercises immediate authority by virtue of his universal episcopate, papal commissaries in the separate dioceses, who call themselves Bishops, and are so named by the Roman Chancery. They exercise the powers delegated to them by the one true and universal Bishop, and carry out the particular orders they receive from Rome. According to this view the whole Church has, properly speaking, no other right or law or order but the pleasure of the reigning Pope. This is the most perfect form of absolutism ever yet excogitated in any man's brains.

The order of business prohibits any alteration in the text of the decrees being voted upon without previous discussion in Council. That however was now attempted, and the violation of the order of business by [pg 788] the Legates themselves was so flagrant, the design of fraud so palpable, that the incident continued to be the subject of general conversation up to the 12th July. When the plot had miscarried, it was alleged in excuse that the previous discussion had been forgotten!—forgotten precisely in the case of the most important article yet brought forward, and of a change of such immeasurable weight that one may truly say no discussion of equal weight and influence has been passed in any Council during 1800 years. The affair of course made a great sensation. The words “deceit” and “lying” were used more than once in the national meetings of the Opposition Bishops, and it was urged that the whole Deputation *de Fide* were accomplices of the Legates in this unworthy trick, and that the Bishops were being compelled in a truly revolting manner to vote on alterations of the most comprehensive kind, which had only been communicated to them the day before. A short memorandum was issued by the French Bishops, which recommended that this opportunity should be seized for leaving Rome. It runs as follows:—

“(1). L'heure de la Providence a sonné: le moment décisif de sauver l'Église est arrivé. (2.) Par les additions [pg 789] faites au III. canon du 3^{me} chap. la Commission *de Fide* a violé le règlement qui ne permet l'introduction d'aucun amendement sans discussion conciliaire. (3.) L'addition subreptice est d'une importance incalculable; c'est le changement de la constitution de l'Église, la monarchie pure, absolue, indivisible du Pape, l'abolition de la judicature et de la co-souveraineté des évêques, l'affirmation et la définition anticipée de l'infailibilité séparée et personnelle. (4.) Le devoir et l'honneur ne permettent pas de voter sans discussion ce canon, qui contient une immense révolution. La discussion pourrait et devrait durer six mois, parce qu'il s'agit de la question capitale, la constitution même de la souveraineté dans l'Église. (5.) Cette discussion est impossible à cause des fatigues extrêmes de la saison et des dispositions de la majorité. (6.) Une seule chose, digne et honorable, reste à faire: Demander immédiatement la prorogation du Concile au mois d'Octobre, et présenter une déclaration, où seraient énumérées toutes les protestations déjà faites, et où la dernière violation du règlement, le mépris de la dignité et de la liberté des évêques seraient mis en lumière. Annoncer en même temps un départ, qui ne peut

plus être différé. (7.) Par le départ ainsi motivé d'un nombre considérable [pg 790] d'évêques de toutes les nations, l'œcuménicité du Concile cesserait et tous les actes, qu'il pourrait faire ensuite, seraient d'une autorité nulle. (8.) Le courage et le dévouement de la minorité auraient, dans le monde, un retentissement immense. Le Concile se réunirait au mois d'Octobre dans des conditions infiniment meilleures. Toutes les questions, à peine ébauchées, pourraient être reprises, traitées avec dignité et liberté. L'Église et l'ordre moral du monde seraient sauvés.”

But the majority of the Opposition did not assent to this; they resolved to present another Protest, which the Court party might apply, like its predecessors, “ad piper et quidquid chartis amicitur ineptis.” It was drawn up by Bishop Dinkel of Augsburg, and signed, so far as I know, by all of them.

On the evening of the 9th July a proposal of a new formula of infallibility was distributed to the Bishops; it was apparently designed to split up the Opposition, and was broad, declamatory, full of quotations, and lavish of assurances that the Roman See has always administered its supreme teaching office in the most excellent manner and proclaimed nothing but truth. Now, it was added, since there has been a great deal of contradiction, [pg 791] it is necessary to define that its *ex cathedrâ* decisions are infallible, and its decrees on faith and morals irreformable by virtue of the divine promise given to it. This new production was discussed in the French and German conferences and rejected, although one of the most influential German Bishops, Ketteler, had taken it under his protection. He assured them that the Deputation had unanimously resolved that no change or concession by a hair's-breadth should be allowed in this form of words, for to deny papal infallibility involved a denial of the primacy altogether.

Meanwhile the Jesuit Franzelin had received orders from the highest authority to revise afresh the formula adopted by the Deputation, with which Schrader is said to be very ill satisfied.

In the sitting of July 11, first the Bishop of Trevisa, as a member of the Deputation, defended the notorious decree in the third canon of the third chapter, which is to revolutionize the whole constitution of the Church in the sense of papal absolutism. Then the votes were taken, by rising and

sitting down, on the weightiest and most pregnant article that has been laid before any Council for 600 years, and the uncertainty in this method of voting, wholly unprecedented in Church history, was [pg 792] so great that according to the majority only 50 or 60 voted against it, while the minority reckon between 90 and 100 adverse votes.

Then Bishop Gasser of Brixen made a speech three hours long in the name of the Deputation on the infallibility decree, which in its new form—and this he declared to be the *ultimatum*—had been enriched with an anathema against those who “*contradicere præsumpserint*.” Gasser was unwilling to be left behind by Manning, Dechamps, Dreux-Brézé and the Spaniards. He vindicated the doctrines of Cardinal Cajetan against Ketteler.

Meanwhile Cardinal Guidi had been so powerfully belaboured, that it had frightened him, and he now voted for the third chapter with the majority. The process which had been found so effective in France, of raising their diocesan clergy against fallibilist Bishops, had been applied to him too by means of agents sent to Bologna. The apostasy of Archbishop Tarnoczy of Salzburg, who also voted with the majority, excited grief but no surprise. While the occupant of one of the oldest Sees of Germany, the successor of Arno, Pilgrim and Colloredo, flung away his own rights and those of his successors like so many hollow nutshells, even [pg 793] Cardinal Silvestri voted against the third chapter and the anathema attached to the fourth.

The result of the 13th July has acted like an earthquake, shaking and confusing for the moment men's heads and plans of operation. Even if half the voters *juxta modum* are abstracted, as belonging to the majority, there remain 31 votes among them in favour of essential changes in the fourth chapter, changes which the Deputation has declared to be absolutely inadmissible, and which, if admitted, would offend one section of the majority. This last consequence would not of course matter at all; a single word from the Pope would set it aside at once, for it is self-evident that no Bishop who is convinced of his unconditional inerrancy could hesitate for a moment to vote for a decree sanctioned by him. Still the perplexity is great. If the decree, as voted by the majority, is brought forward at the public session, some 120 negative votes may be expected. But the Pope is resolved to become infallible “*senza condizione*,” as he says.

It is now often said that on the day of the Solemn Session the Holy Ghost will yet most assuredly work a wonderful miracle and convert the Opposition so suddenly that, although they had entered the Council Hall [pg 794] resolved to say “No,” they will say “Yes.” Some, including Antonelli, vote for conciliatory measures and concessions, which however the Deputation on Faith declares to be impossible. The other very numerous party says on the contrary that the unexpected force and extent of the opposition to so fundamental a dogma makes an anathema all the more necessary. A new plan of operations has now been hit upon, which is greatly favoured by the recent deaths. The grand Session for proclaiming the dogma had been fixed for the 17th, and many among the minority were with great difficulty persuaded to remain till that critical day. But now the 25th is talked of.¹⁵⁵ At the same time the report is circulated and confirmed by Antonelli, that there will be no prorogation even at the end of July or beginning of August, but the Council will continue, though many Bishops, on requesting leave, will be permitted to depart. It is urgently necessary, according to Antonelli, to settle the questions about the Oriental Rite. Yet for centuries the Court of Rome has not troubled any Council with these affairs, but settled and regulated them by itself, as is testified by a whole series of papal decrees. And after infallibility [pg 795] is proclaimed, it is utterly superfluous to keep hundreds of foreign Bishops here on that account. But it is known that the new dogma will lead to the separation of the Orientals, and so their Bishops are to be kept here longer as hostages, and the name of the Council is to supply the pretext. And it is hoped that the French and German Bishops will the more certainly ask leave and go home, so that the Opposition may be reduced to a small handful. The Pope himself appears greatly to desire this, as was at once inferred from his remark that the Archbishop of Paris is staying on a long time.

Five Bishops, including Förster of Breslau, actually took their departure on the 14th.

[pg 796]

Sixty-Eighth Letter.

Rome, July 17, 1870.—All the Bishops of the minority have left Rome, after presenting a statement of their attitude towards the decrees on the Papacy. They made a last attempt, immediately before going, to move the Pope at least not to hurry on the affair but to grant some respite by proroguing the Council. At twelve o'clock to-day he received a deputation headed by Darboy and Simor. Darboy, who spoke first, represented to him the great and manifold dangers the definition would unquestionably give rise to for the whole Church. Hitherto Pius had met all suggestions of scruple by appealing to his “I am Tradition”—his already assured infallibility. This time he did not do so. He fell back on the ground of its being “too late.” Matters had gone too far, and the whole Christian world was now too much occupied and too powerfully excited about the question. Besides, the Council had [pg 797] already passed a decree by a considerable majority, and he was therefore in no position to put a check on the Council, which was now in full swing and urgently pressing for a final decision on this question. The promulgation of the decree of the majority will accordingly follow to-morrow.

The Orientals have subscribed the declaration of the minority. Two German Bishops only, Melchers and Ketteler, have withheld their signature and presented a separate declaration of their own to the Pope. The manifesto of the minority runs thus:—

“Beatissime Pater!

“In Congregatione generali die 13 h. m. habitâ, dedimus suffragia nostra super schemate primæ Constitutionis dogmaticæ de Ecclesiâ Christi.

“Notum est Sanctitati Vestræ 88 Patres fuisse, qui, conscientiâ urgente et amore Sanctæ Ecclesiæ permoti, suffragium suum per verba *non placet* emiserunt; 62 alios, qui suffragati sunt per verba *placet juxta modum*, denique 70 circiter qui a congregatione abfuerunt atque a suffragio emittendo abstinuerunt. His accedunt et alii, qui, infirmitatibus aut aliis gravioribus rationibus ducti, ad suas diœceses reversi sunt.

“Hâc ratione Sanctitati Vestræ et toto mundo suffragia [pg 798] nostra nota atque manifesta fuere, patuitque quam multis episcopis sententia nostra probatur, atque hoc modo munus officiumque quod nobis incumbit persolvimus.

“Ab eo inde tempore nihil prorsus evenit quod sententiam nostram mutaret, quin imo multa eaque gravissima acciderunt, quæ nos in proposito nostro confirmaverunt. Atque ideo nostra jam edita suffragia nos renovare ac confirmare declaramus.

“Confirmantes itaque per hanc scripturam suffragia nostra a Sessione publicâ die 18 h. m. habendâ abesse constituimus. Pietas enim filialis ac reverentia quæ missos nostros nuperrime ad pedes Sanctitatis Vestræ adduxere, non sinunt nos in causâ Sanctitatis Vestræ personam adeo proxime concernente palam et in facie patris dicere *non placet*.

“Et aliunde suffragia in Solenni Sessione edenda repeterent dumtaxat suffragia in generali Congregatione deprompta.

“Redimus itaque sine morâ ad greges nostros, quibus post tam longam absentiam ob belli timores et præsertim summas eorum spirituales indigentias summopere necessariii sumus; dolentes, quod, ob tristia in quibus versamur rerum adjuncta etiam conscientiarum [pg 799] pacem et tranquillitatem turbatam inter fideles nostros reperturi simus.

“Interea Ecclesiam Dei et Sanctitatem Vestram, cui intemeratam fidem et obedientiam profitemur, D. N. J. C. gratiæ et præsidio toto corde commendantes sumus Sanctitatis Vestræ

“devotissimi et obedientissimi filii.

“ROMÆ, 17 Jul. 1870.”

[pg 800]

Sixty-Ninth Letter.

Rome, July 19, 1870.—On the evening of the 15th a deputation of the Bishops of the minority waited on the Pope, consisting of Simor, Primate of Hungary, Archbishops Ginoulhiac, Darboy and Scherr (of Munich), Ketteler and Rivet, Bishop of Dijon. After waiting an hour they were admitted at 9 o'clock in the evening. What they tried to obtain was in fact much less than the Opposition had hitherto aimed at: they only asked for the withdrawal of the addition to the third chapter, which assigns to the Pope the exclusive possession of all ecclesiastical powers, and the insertion in the fourth chapter of a clause limiting his infallibility to those decisions which he pronounces “*innixus testimonio Ecclesiarum*.” Pius gave an answer which will sound in Germany like a maliciously invented fable,—“*Je ferai mon possible, mes chers fils, mais je n'ai pas encore lu le Schéma; je ne sais pas ce qu'il [pg 801] contient.*” And he then requested Darboy, who had acted as spokesman, to give him the petition of the minority in writing. He promised to do so, and added, not without irony, that he would take the liberty of sending with it to his Holiness the *Schema*, which the Deputation on Faith and the Legates had with such culpable levity omitted to lay before him, when it wanted only two days to the promulgation of the dogma, thereby

exposing him to the peril of having to proclaim a decree he was ignorant of. This Darboy did, and in a second letter to the Deputation severely censured their negligence in not even having communicated the *Schema* to the chief personage, the Pope.

Pius added further, whether ironically or in earnest I know not, that if only the minority would increase their 88 votes to 100, he would see what could be done. He concluded by assuring them it was notorious that the whole Church had always taught the unconditional infallibility of the Pope. Bishop Ketteler then came forward, flung himself on his knees before the Pope, and entreated for several minutes that the Father of the Catholic world would make some concession to restore peace and her lost unity to the Church and the episcopate. It was a peculiar [pg 802] spectacle to witness these two men, of kindred and yet widely diverse nature, in such an attitude, the one prostrate on the ground before the other. Pius is “totus teres atque rotundus,” firm and immoveable, smooth and hard as marble, infinitely self-satisfied intellectually, mindless and ignorant, without any understanding of the mental conditions and needs of mankind, without any notion of the character of foreign nations, but as credulous as a nun, and above all penetrated through and through with reverence for his own person as the organ of the Holy Ghost, and therefore an absolutist from head to heel, and filled with the thought, “I and none beside me.” He knows and believes that the holy Virgin, with whom he is on the most intimate terms, will indemnify him for the loss of land and subjects by means of the infallibility doctrine and the restoration of the papal dominion over states and peoples as well as over Churches. He also believes firmly in the miraculous emanations from the sepulchre of St. Peter. At the feet of this man the German Bishop flung himself, “ipso Papâ papalior,” a zealot for the ideal greatness and unapproachable dignity of the Papacy, and at the same time inspired by the aristocratic feeling of a Westphalian nobleman and [pg 803] the hierarchical self-consciousness of a Bishop and successor of the ancient chancellor of the Empire, while yet he is surrounded by the intellectual atmosphere of Germany, and with all his firmness of belief is sickly with the pallor of thought, and inwardly struggling with the terrible misgiving that after all historical facts are right, and that the ship of the *Curia*, though for the moment it proudly rides the waves with its sails swelled by a favourable wind, will be wrecked on that rock at last.

The prostration of the Bishop of Mayence seemed to make some impression on Pius. He dismissed the deputation in a hopeful temper. It was of short duration. For directly the report got about that the Pope was yielding, Manning and Senestrey (*de grands effets par de petites causes*) went to the Pope and assured him that all was now ripe, and the great majority enthusiastically set on the most absolute and uncompromising form of the infallibilist theory, and at the same time frightened him by the warning that, if he made any concession, he would be disgraced in history as a second Honorius. That was enough to stifle any thought of moderation that might have been awakened in his soul.

[pg 804]

The sitting of July 16 was held to consider the proposals of those who had voted *juxta modum*. The Legates had promised to pay as much consideration as was possible to their wishes, and they redeemed their pledge by striking out one passage and inserting another. The majority decided, on the motion of certain Spaniards, which was adopted by the Deputation on Faith, to strike out the words at the opening of the fourth chapter, saying the Pope will define nothing “*nisi quod antiquitus tenet cum cæteris Ecclesiis Apostolica Sedes.*” This was felt to impose too narrow limits on the Pope's infallibility and arbitrary power of defining. And as the minority had the day before expressed to the Pope their special desire that the consent of the Church should be laid down as a requisite condition of doctrinal definitions, it was now resolved, in direct contradiction to their wishes, again on the motion of Spanish Bishops, not only to leave the words “*definitiones Pontificis ex sese seu per sese esse irreformabiles,*” but to add to them “*non autem ex consensu Ecclesiæ.*” And thus the infallibilist decree, as it is now to be received under anathema by the Catholic world, is an eminently Spanish production, as is fitting for a doctrine which was born and reared under the shadow of the Inquisition.

[pg 805]

In the last sitting of the Congregation three Bishops of the Deputation on Faith spoke, the Neapolitan D'Avanzo, Bishop of Calvi and Teano, Zinelli, Bishop of Rovigo, the author of the notorious addition to the third chapter of the third canon, and Gasser, Bishop of Brixen. D'Avanzo was jocose: “As,” said he, “the angel bade the Apostle John swallow a book, telling him

it would make his belly bitter but taste sweet as honey in his mouth, so must we Bishops swallow this infallibilist *Schema*, and I have done so already. It will no doubt give many of us a stomach-ache, but we must act as if we had honey in our mouths.” Gasser, who as a speaker is “se ipse amans sine rivali,” to quote Cicero's saying about Pompey, made a speech of endless length, exhausting the patience of his hearers; but there was some gold mixed with all this dross. Such was his declaration that Councils had hitherto been useful only for people of unsound faith, who did not chose to believe the Pope's *ipse dixit*, which every good Christian had always believed. But now “quid credendum sit unice ab arbitrio Pontificis in posterum dependebit.” On this a well-known Hungarian Bishop could not refrain from observing to his neighbour, “Si etiam infallibilitas Pontificis contenta esset in Sacra Scriptura [pg 806] magis compromitti non posset quam hoc levissimo ac ineptissimo sermone, quo auditores ex integro jam lassos ad vomitum movit et martyres reddidit.”

An amusing scene occurred at the close of this sitting, the last attended by the Bishops of the minority. A printed address was read out and distributed to the Fathers, in which the Legates complained in the strongest language of certain works describing the course of the Council. Two were named and characterized as “calumnious,” both published at Paris. The one, by Gaillard, was *Ce qui se passe au Concile*; the other was by a man distinguished alike for intellect, eloquence and learning, a member of the Council, who has had almost unique opportunities of seeing through the whole business. It is the work I have before mentioned, *La Dernière Heure du Concile*, in which the personal intervention of the Pope and the pressure brought to bear by him are forcibly depicted in strict accordance with truth. This pamphlet had already created a great sensation, and when the Legates called on the Bishops to join them in condemning it, the Italians and Spaniards, who—being for the most part ignorant of French—had not read it, immediately shouted out “Nos condemnamus.” “We do not,” cried the Bishops of the minority. Two copies of [pg 807] the address were then handed to each of them, one of which they were ordered to return with their names subscribed. The result was not successful; Haynald told the Legates, in the name of the Hungarian Bishops, that they had better first translate *La Dernière Heure* into Latin, and then he and his colleagues would see whether it was really as bad as the Cardinals maintained.

All the Bishops from South and Central Italy who could be whipped up, or who had previously obtained leave of absence on account of illness or age, were peremptorily recalled for the Solemn Session of July 18. Of the Cardinals, Hohenlohe was absent. The rest appeared, including Antonelli, but only three, Patrizzi, Bonaparte and Pambianco, threw a certain spontaneity and energy of voice and manner into their *Placet* by standing up to deliver it. Guidi was the one most observed; he sat there with an oppressed and abstracted air, and his scarcely audible *Placet* escaped with difficulty from his lips. The two negative voters were Bishops Riccio of Cajazzo and Fitzgerald of Little Rock. When the Monsignore who was repeating the names and votes had credited one of them with a *Placet* out of his own head, the Bishop shouted in a stentorian voice, “No; *Non placet!*”

[pg 808]

As all the Bishops of the Opposition but two stayed away, and an *abest* was the answer to every name of the slightest note that was called, the Holy Ghost had no opportunity for working a miracle of conversion, and all went prosaically and smoothly as the wheels of a watch, without any sensation. Each of the stipendiaries has discharged his obligation, and the Pope and Monsignori find that the Council has cost large sums, but think the money is well spent and will bring in abundant interest. The most remarkable case of desertion was that of Bishop Landriot of Rheims. Not one of the Bishops had been so open-mouthed, or had announced his fallibilist opinions with such copious flow of words to everybody he came across. He now says, like Talleyrand, that he has only deserted before the rest. Clerical Rome, so far as I can yet make out, is not in any very exalted state of enthusiasm; that is prevented by the political conjunctures, which give Antonelli and Berardi a good deal to think about. De Banneville has indeed given the most consoling assurances to Antonelli; the 5000 French troops at Civita Vecchia, who had received orders to hold themselves ready for recall to France, are to be at once replaced by 5000 more—recruits it is believed. Paris wishes just now to be on [pg 809] the best terms with Rome, who may well prove a useful ally in what the *Monde* has already designated a religious war against Protestantism. Meanwhile they are pleased at the Vatican to have erected their *rocher de bronze* beforehand. The Bishops have—ostensibly of their own free will—abdicated in favour of the monarch, to receive back from him so many rights and commissions as he may think good to delegate to

them. The revolution in the Church is accomplished “to enrich *one* among all.” Pius himself is more than content; his supreme desire, the crown of his life and work, is attained.

During the voting and promulgation a storm burst over Rome, and made the Council Hall so dark that the Pope could not read the decree of his infallibility without having a candle brought. It was read to an accompaniment of thunder and lightning. Some of the Bishops said that heaven thereby signified its condemnation of Gallicanism, while others thought Pius was receiving a divine attestation, as the new Moses who proclaimed the Law of God, like the old one, amid thunder and lightning. It is remarkable that the days of the opening and closing of this Council were the two darkest and most depressing Rome has [pg 810] witnessed during the eight months of its session. It rained without intermission, so that the promised illumination was partly given up and partly proved a lamentable failure. There were few but monks, nuns and Zouaves, during the session in the very empty-looking church. When the Pope at last proclaimed himself the infallible and absolute ruler of all the baptized “with the approbation of the holy Council,” some bravos shouted, several persons clapped, and the nuns cried in tones of tender rapture, “Papa mio!” That was the only semblance of a demonstration. If any spark of enthusiasm really glimmered in the souls of the Romans, it was quenched by the downpour of rain. The keen-witted Roman, who is accustomed to speak of this Pope with a certain good-humoured irony, as a sort of comic personality, thinks there is no harm in gratifying the wish of the old man who has set his heart on this infallibility; that will hurt nobody. All the most important members of the diplomatic bodies stayed away, in obedience to the instructions of their governments. Neither the ambassadors of Austria, France, Prussia or Bavaria were present. The Belgian and Dutch consuls and an agent of some South American Republic attended. The decrees of July 18, establishing [pg 811] under anathema the two new dogmas, are the following:—

“(a.) Si quis itaque dixerit, Romanum Pontificem habere tantummodo officium inspectionis vel directionis, non autem plenam et supremam potestatem jurisdictionis in universam Ecclesiam, non solum in rebus, quæ ad fidem et mores, sed etiam quæ ad disciplinam et regimen Ecclesiæ per totum orbem diffusæ pertinent; aut eum habere tantum potiores partes, non

vero totam plenitudinem hujus supremæ potestatis, aut hanc ejus potestatem non esse ordinariam et immediatam sive in omnes ac singulas Ecclesias sive in omnes et singulos Pastores et fideles—anathema sit.

“(b.) Sacro approbante Concilio docemus et divinitus revelatum dogma esse definimus: Romanum Pontificem, cum ex cathedrâ loquitur, id est, cum omnium Christianorum Pastoris et Doctoris munere fungens, pro supremâ suâ apostolicâ auctoritate doctrinam de fide vel moribus ab universâ Ecclesiâ tenendam definit, per assistentiam divinam, ipsi in beato Petro promissam, eâ infallibilitate pollere, quâ divinus Redemptor Ecclesiam suam in definiendâ doctrinâ de fide vel moribus instructam esse voluit; ideoque ejusmodo *Romani Pontificis definitiones esse ex sese, non autem* [pg 812]*ex consensu Ecclesiæ irreformabiles*. Si quis autem huic Nostræ definitioni contradicere, quod Deus avertat, præsumpserit—anathema sit.”

In the work against infallibility circulated here by the Bishop of Mayence occurs the following passage: “Will it not seem to all nations that the authority of all Bishops is suppressed and sentenced to death, only in order to erect on such vast and manifold ruins the unlimited authority of the one Roman Pope?” When these lines were written, the Bishop and his theologian had no notion, or at least no knowledge, of the third anathema of the third chapter, which was afterwards made still more rigorous. They were only thinking of infallibility, but what would they have said, had they known that the Bishops would be required to subscribe to the abolition of the episcopate and the transference of all conceivable ecclesiastical powers and rights over the 180 million of Catholics in principle and in detail to the Pope alone, as a new article of faith imposed under anathema? And yet this is what happened on the 13th and 18th July 1870. That the ordinary and immediate jurisdiction of the Bishops still survives, is indeed affirmed in the decree, but the affirmation is contrary to fact. It would be in inevitable collision [pg 813] with the constantly encroaching jurisdiction of the Pope; the earthen vessel dashed against the iron.

The Jewish general and historian, Josephus, relates how he was shut up with forty companions in the valley of Jehoshaphat, and summoned to surrender by the Romans. They resolved to die first. The Bishops are not offered this alternative, but threatened with both at once. They are bidden to

submit and then kill themselves, to subscribe the decree of the majority, and thereby sign the sentence which degrades and annihilates them, under pain of incurring anathema. That is the demand. The situation is an unprecedented one. And what of the 532 real or titular Bishops who have made the 13th and 18th July “dies nefasti” for the Church, and renounced so many rights and duties for themselves and their successors, like a cast-off garment? Perhaps it lightens their hearts and is a pleasant feeling to them to be able to say, “Thank God, I need not trouble myself any more about doctrine, tradition, or dogma; henceforth the one infallible oracle in the Vatican will attend to all that, and he again will devolve the burden on the lusty shoulders of the Jesuits, as he has done before. And how sweet and convenient it is to be a mere executor of papal [pg 814] decrees, while one's episcopal income remains untouched, and to be able to cover one's-self with the Medusa shield of a papal order in every difficulty, and every conflict with clergy, people or governments!” I heard a Bishop of this party say the other day, “Now first begin the golden days of the episcopate.”

It is reported that on the very day after the promulgation several Bishops experienced a certain reaction of sobriety, a feeling like what German students are wont to attribute to cats, and inquired of the high dogma-fabricating parties, the Legates and some members of the Deputation, whether they were really bound to believe, confess and teach all that is contained in the Syllabus, the Bull *Unam Sanctam*, etc., as *e.g.*, the subjection of the secular powers to the Pope, the Church's power of inflicting bodily punishment with Pius who reigns gloriously, the burning of heretics with Leo x., *et id genus omne*. They are said to have been answered with a well-known Roman proverb, “*Toto devorato bove, turpe est in caudâ deficere*”—“You have swallowed the whole ox of papal infallibility, and the last Spanish addition with it, and you need not strain at the tail, *i.e.*, the consequences; that indeed is the best part of this ox.”

[pg 815]

The Bishops of the minority agreed before leaving Rome that they would none of them act alone and independently, in such further steps as would have to be taken concerning the decrees of the majority, but would all continue to correspond and act in concert. Meanwhile the Council has not been prorogued, but leave of absence is given to Bishops who can allege

urgent reasons up to November 15. Perhaps in the interval the builders of the new Jesuit-Papal Zion, who stay behind, will prepare many a surprise for the Catholic world.

Future historians will begin a new period of Church history with July 18, 1870, as with October 31, 1517.

Are we really at the end of the drama? It appears so. On the same spot where, 1856 years ago, the first monarch of the world, Augustus, bade the attendants on his death-bed clap their hands in token of the rôle being well played out to the end, the Roman courtiers on July 18 have saluted by clapping of hands the first man proclaimed infallible monarch of the world by 532 spiritual satraps. The eight months' campaign has terminated in the preliminary closing act of July 18; the absolute Papacy celebrates its financially dear-bought, but otherwise easily obtained, triumph over [pg 816] the Church, which now lies defenceless at the feet of the Italians. It only remains to follow up the anathematized enemy, the Bishops of the minority, into their lurking-places, and compel each man of them to bend under the Caudine yoke amid the scornful laughter of his colleagues of the majority. Anathemas, the “ultima ratio” of Rome, have already been discharged at the fugitives, and every such shot of the Infallible is itself infallible.

[pg 819]

Appendix I.

There seem to me to be three points to be considered in reference to this *Schema*: its origin, its contents and scope, and its practical results.

And first as regards its origin and presentation to the Council at this time, it is enough to mention two facts, from which it may be judged whether the affair has been conducted regularly and in accordance with the dignity and rights of this venerable assembly.

It is certain that the fourth chapter, dealing with the infallibility of the Pope, is the turning-point of the whole *Schema*. For whatever is brought forward in the former chapters about the power and origin of the primacy in Peter and its continuance in the Popes, about which there is no difference among us,—and certainly in the first and second chapters this seems to exceed the right measure—is unmistakeably connected with the infallibility in the fourth chapter. So entirely is this infallibility the grand object of the Vatican Council, that some have indiscreetly asserted it is in a sense the sole object. And with reason, for the [pg 820] fabrication of such a dogma must always remain the weightiest act of an Œcumenical Council; and moreover the other questions to be dealt with are either of far less importance, or have long since been settled and only require revision, as, *e.g.*, questions about the being and attributes of God, the reality and need of revelation, the duty of faith, and the relation of faith to reason. Yet this serious question of infallibility was neither indicated in the Bull convoking the Council nor in the other public announcements referring to it, and with good reason, because on the one hand the Catholic world had no desire for a settlement of this question, nor was there any other ground producible for meddling with what had always hitherto been a subject of free inquiry among theologians, and on the other hand there are many and grave evils, partly endangering the salvation of souls, which the Pope out of his care and affection has thought it more needful to deal with.

It is certain that the first stirring of this question came from without, from religious and secular journalists, and that too in an impertinent manner, against all ecclesiastical and traditional precedent and all rules of

hierarchical order and usage, by seeking to put a pressure on the conscience of the Bishops through demagogic agitation, and to intimidate them with the prospect of intrigues in their dioceses which would make the government of them impossible. Nay, matters have come to such a pass that the Fathers of the Council, however piously and courageously they may be simply following their conscience, are accused of [pg 821] having paid an improper deference to party opinion, by promoting the introduction of the infallibility question in consequence of these violent agitations, and all of us appear to have lost something of dignity and freedom through the tumult raised before the doors of the Council-chamber. And such a judgment, which is in the highest degree mischievous and injurious to our honour, can hardly be endured without damage and disgrace to this venerable assembly, an assembly which must act independently and not under pressure from without, which must not only be, but appear to be, free.

It is further certain that the question brought before us to-day has been introduced against the natural and logical order of the subjects in hand, and thereby the cause itself is prejudiced. The rest of the *Schema de Fide* ought first to have been submitted to our consideration, on which we have already debated and have the arguments of both sides so fresh in our memory that the final discussion would have been all the easier. Then again the *Schema de Ecclesiâ* begins quite incorrectly with the primacy. Neither its first compilers nor any theologians before now were of opinion that the treatise on the Church should begin with that. And furthermore, our studies have been directed to the questions intended to come on for consideration according to the order originally announced.

And lastly, it is certain that the precipitate introduction of the question of infallibility by reversing the original order has contributed to the injury rather than the honour of the Holy See. For as, according to the [pg 822] Bull *Multiplices inter*, motions are to be sent in to a special Congregation, which then reports to the Pope, who either accepts or rejects its decisions, it follows that the authors of this motion have compelled the Holy Father to make a decision in his own case and in reference to a personal prerogative, and have thereby—no doubt unintentionally—failed to show a fitting regard for his high position, if they have not rather directly injured it.

If I am right on all these points—and such appears to be the case—it is impossible to discuss and decide upon the question of infallibility, thus originating and thus introduced, without paving the way for the insults of unbelievers and the reproaches which threaten the moral authority of this Council. And this should the more carefully be avoided, because writings and reports directed against the power and legitimacy of the Council are already current and widely circulated, so that it seems more likely to sow the seeds of contradiction and disunion among Christians than to quiet men's minds and lead to peace. If I may venture to add a practical remark to this portion of my speech, I should say that some have with good reason declared this question to be inopportune, and that there would be equally good reason for abstaining from any decision, even if the discussion of it were opportune.

On the contents and tendency of the *Schema* I shall make only a few observations.

The *Schema* does not deal with the infallibility of the Church, which we all believe, and which has been [pg 823] proved for twenty centuries, but lays down as an article of faith that the Pope is, alone and of himself, infallible, and that he possesses this privilege of inerrancy in all matters to which the infallibility of the Church herself extends. It must be well understood that the *Schema* does not refer to that universally admitted infallibility, which is the invincible and inviolable strength of dogmatic decrees and decisions binding alike on all the faithful and all their pastors, and which reposes wholly and solely on the agreement of the Bishops in union with the Pope, but that it refers—though this is not expressly stated—to the personal, absolute and exclusive infallibility of the Pope. On the former kind of infallibility—that of the Church—complete harmony prevails among us, and there is therefore no ground for any discussion, whence it follows that it is the second kind of infallibility which is in question here. To deny this would be to disguise and distort the doctrine and spirit of the *Schema*. And moreover, the Pope's personal infallibility is not maintained there as a mere opinion or commendable doctrine, but as a dogma of faith. Hitherto the opportuneness and admissibility of entertaining this question has been disputed at the Council; that dispute is now closed by the Pope's decision that the matter can no longer be passed over in silence, and we have now to

consider whether it is or is not opportune to declare the personal infallibility of the Pope a dogma.

To deal rightly with this subject and come to a decision, it is requisite that the formula or definition of the doctrine should be laid before us, that it should be [pg 824] proved by sure and unquestionable evidence, and finally, that it should be accepted with moral unanimity.

There is the greatest difficulty in fixing the form or definition of the doctrine, as is shown by the example of those who first composed and then revised the *Schema*, and who seem to have expended much—perhaps fruitless—labour upon it; for they indulge in ambiguous expressions which open the door to endless controversies. What is meant by “exercising the office of the supreme teacher of Christendom”? What are the external conditions of its exercise? When is it certain that the Pope has exercised it? The compilers of the *Schema* think of course that this is as clear as, *e.g.*, the œcumenicity of a Council. But they thereby contradict themselves, for a Council is only then held œcumenical by the body of the faithful scattered over the world when the Bishops are morally unanimous, and therefore infallibility would still depend on the consent of the episcopate if the same principle is to be applied to papal decrees. The authors of the *Schema* either eliminate this consent or they do not. In the former case they are introducing an innovation, and an innovation which is unprecedented and intolerable; in the latter case they are only expressing an old and universally received view and fighting a man of straw. But in no case can they pass over in silence the necessity or needlessness of the consent of the episcopate, for that would be to infuse doubts into the faithful and throw fresh difficulties in their way in a question of such vast importance and all that at present hinges on it.

[pg 825]

The compilers only define the subject-matter of papal infallibility by saying that it is identical with the infallibility of the Church. But that explanation is inadequate until the Council has defined the infallibility of the Church. Hence it is clearly a logical fallacy to prefix the *Schema* on the Primacy to that on the Church. Of the infallibility of the Church we know that it always acts within the proper limits of its subject-matter, both because the common

consent of the Bishops is necessary and because the Church is holy and cannot sin, while the compilers of this *Schema* on papal infallibility on the one hand, according to their own statement, exclude the consent of the Bishops, and on the other hand have not undertaken to prove that every Pope is holy and cannot sin.¹⁵⁶

But if a form of definition was really discovered, it would have to be confirmed by solid and certain proofs. It would have to be shown that this doctrine of personal infallibility is contained in holy Scripture, as it has been always interpreted, and in the tradition of all centuries, that it has the moral assent not merely of some but of all Fathers, Doctors, Bishops and Theologians, and that it is in perfect harmony with all decisions and acts of the General Councils, and therefore with the decrees of the fourth and fifth sessions of the Council of Constance—for even supposing they [pg 826] were not œcumenical, which I do not admit, they would show the mind and common opinion of the theologians and Bishops.¹⁵⁷ It would further have to be proved that this doctrine is neither contradicted by historical facts nor by any acts of the Popes themselves, and lastly that it belongs to that class of truths which the Council and Pope in union can decide upon, as having been acknowledged for revealed truth always, everywhere and by all.

All this our *Schema* omits. But when the question is of defining a dogma, the Fathers must have sufficient evidence laid before them and time allowed them for weighing it. As it is, neither the original nor the revised draft of the *Schema* supply such arguments as might illustrate the matter and clear up all doubts, and as little is sufficient time allowed—as is generally notorious—for unravelling this complicated question, solving its difficulties and acquiring the necessary information about it. In such a matter, where a burden is to be laid on the conscience of the faithful, a hasty decision pronounced without absolute certainty is dangerous, while there is no danger in a fuller discussion and in not deciding till it can be done with complete certainty of conscience.

It would finally be necessary that the doctrine of the personal and independent infallibility of the Pope, after being clearly expressed and certainly proved, should be accepted by the Fathers with moral unanimity; [pg 827] for otherwise we must fear that the definition would be regarded as

a papal constitution and not a decree of a Council.¹⁵⁸ It is a duty to impose a truth of faith on all Christians, but this difficult and sacred right can only be exercised by the Bishops with the greatest caution. And therefore the Fathers of Trent, as you all know, whatever sophistical objections may be raised, did not pass their decrees on dogmatic questions by numerical majorities, but with moral unanimity. I content myself now with referring to the perplexity of conscience among the faithful, which must arise from passing this dogma over the heads of the minority, and thus giving a handle for questioning the validity and authority of this Council.

Two leading remarks may suffice on the practical consequences of the dogma, for the only object of bringing forward the personal infallibility as an article of faith is to make the unity of the Church more compact and the central authority stronger, and thus to supply an efficient remedy for all abuses.

As regards unity and central authority, I must first make the general observation that they exist and must be preserved, not however in that shape which we may fancy or which approves itself to our reason, but as Jesus Christ our Lord ordained and as our fathers have maintained it. For it is no business of ours to arrange the Church according to our good pleasure and to alter the foundation of the work of God. The necessary unity in faith and that of the common central authority [pg 828] under fatherly guidance exists and has always existed among Catholics, or else one would have to say that there had been some essential defect in the Church of the past, which all will certainly deny.

The unity of doctrine and Church communion and the central authority of the Pope remain then unshaken, as they always flourished and flourish still without any dogmatic definition of infallibility.

Let it not be said that this unity will hereafter be closer when the central authority is stronger, for this inference is fallacious. Mere unity is not enough, but we must have that unity and that measure of it which the nature and scope of the thing, as well as the law and the necessity of life, demand. Else the thing itself might lamentably perish by being forced into too rigid an unity, from its inward vitality being cramped, disturbed and broken through the external pressure. Thus even in civil matters the unity of

freemen, who act for themselves under the law, is indeed looser but more honourable than the unity of slaves tormented under an arbitrary tyranny. Permit us to retain that unity which belongs to us by the ordinance of Christ, and that means of unity—viz., the central authority of the Pope—which our forefathers acknowledged and honoured, who neither separated the Bishops from the Pope nor the Pope from the Bishops. Let us loyally hold fast to the ancient rule of faith and the statutes of the Fathers, and the more so since the proposed definition is open to many grave objections.

And again we can hardly doubt that this expedient [pg 829] would be powerless for healing the evils of our time, and it must be feared would rather tend to the injury of many. The matter must not be regarded only from a theological standpoint, but also in its bearings on civil society. For we in this place are not mere head-sacristans or superiors of a monastery, but men called to share with the Pope his care for the whole Church; allow us therefore to take the state of the world into our prudent consideration.

Will personal and independent infallibility serve to rouse from their grave those perished Churches on the African coast, or to wake the slumbers of the East, which once bloomed with such flowers of intellect and virtue? Will it be easier for our brethren, the Vicars-Apostolic, to bring the heathen, Mahometans, and schismatics to the Catholic faith, if they preach the doctrine of the Pope's sole infallibility? Or will the proposed definition perhaps infuse spirit and strength into Protestants and other heretics to return to the Roman Church and lay aside all prejudices and hatred against it? And now, first, for Europe! I say it with pain,—the Church is everywhere under ban. She is excluded from those congresses where nations discuss war and peace, and where once the authority of the Holy See was so powerful, whereas now it is bidden not even to proclaim its views. The Church is shut out in several European countries from the Chambers, and if some prelates or clergymen here and there belong to them, this appears a rare occurrence. The Church is shut out from the school, where grievous errors advance [pg 830] unchecked; from legislation, which manifests a secular and therefore irreligious tendency; and lastly, from the family, where civil marriage corrupts morals. All those who preside over the public affairs of Europe avoid us or hold us in check.

And what sort of remedy do you offer the world, which is diseased with so many uncertainties about the Church? On all those who are seeking to shake off from their indocile shoulders even the burdens imposed on them from of old and reverently accepted by their fathers, you would now lay a new, and therefore difficult and odious, burden. All those who are of weak faith are to be crushed by a new and inopportune dogma, a doctrine never hitherto defined, and which, without any amends being made for the injurious manner of its introduction, is to be defined by a Council of which many say that its freedom is insufficiently attested. And yet you hope to remedy everything by this definition of personal and exclusive infallibility, to strengthen the faith and improve the morals of all. Your hopes are vain. The world either remains sick or perishes, not from ignorance of the truth and its teachers, but because it avoids it and will not accept its guidance. But if it now rejects the truth, when proclaimed by the whole teaching body of the Church, the 800 Bishops dispersed over the world and infallible in union with the Pope, how much more will it do so, when the truth is proclaimed by one single infallible teacher, who has only just been declared infallible? For an authority to be strong and effective, it is not [pg 831] enough for it to be claimed; it must also be accepted. And thus it is not enough to declare that the Pope is infallible, personally and apart from the Bishops, but he must be acknowledged as such by all, if his office is to be a reality. What is the use, *e.g.*, of an anathema, if the authority which pronounces it is not respected? The Syllabus circulated through Europe, but what evils could it cure even where it was received as an infallible oracle? There were only two large countries where religion ruled, not in fact but *de jure*—Austria and Spain. In both of them this Catholic order fell to the ground though commanded by the infallible authority; perhaps indeed in Austria on that very account.

Let us take things as they are. Not only will the independent infallibility of the Pope not destroy these prejudices and objections which draw away so many from the faith, but it will increase and intensify them. There are many who in heart are not alienated from the Catholic Church, but who yet think of what they term a separation of Church and State. It is certain that several of the leaders of public opinion are on this side, and will take occasion from the proposed definition to effect their object. The example of France will soon be copied more or less all over Europe, and to the greatest injury of

the clergy and the Church herself. The compilers of the *Schema*, whether they desire it or not, are introducing a new era of mischief, if the subject-matter of papal infallibility is not accurately defined, or if it can be supposed that under the head of morals the Pope will give decisions on the civil and [pg 832] political acts of sovereigns and nations, laws and rights, to which a public authority will be attributed.¹⁵⁹ Every one of any political cultivation knows what seeds of discord are contained in our *Schema*, and to what perils it exposes even the temporal power of the Holy See.

To explain this more minutely in detail would take too long and might be indiscreet, for were I to say all, I might easily bring forward things it is more prudent to suppress. However, I have delivered my conscience, so far as is allowed me, and so let my words be taken in good part. I know well that everything in the world has its difficulties, and one must not always shrink from action because greater evil may follow. But I put the matter before the reverend fathers, not that they may instantly conform to my opinion, but in order that they may give a full and ripe consideration to the arguments of all parties. I know too that we must not childishly quail before public opinion, but neither should we obstinately resist it; it is wiser and more prudent often to reconcile one's-self with it, and in every case to take it into account. I know, lastly, that the Church needs no arm of flesh, yet she does not reject the approval and aid of civil society, and did not, I think, look back with regret from the time of Constantine [pg 833] to the time of Nero. So much for the practical consequences of the *Schema*.

Finally, my desire is (1.) that the *Schema* should be deferred for a later discussion, because it has not been introduced into the Council in a sufficiently worthy manner; (2.) that it should meanwhile be revised, and the limits of infallibility more accurately marked out, so as to leave no handle for future sophistries and attacks; (3.) but, best of all, that the question of infallibility should be let drop altogether on account of its manifold inconveniences.

Appendix II.

LETTERS ON THE COUNCIL FROM FRENCH BISHOPS. [¹⁶⁰](#)

I.

Votre judicieuse dissertation est pleine de sens et de la meilleure critique; mais c'est bien de cela qu'il s'agit aujourd'hui! On veut se tromper et tromper; le reste importe peu. Ce qui importe le plus, ce qui nous sauvera, je l'espère, mieux que toutes discussions avec des gens de mauvaise foi ou de parti pris, c'est d'établir des bases incontestables et de faire que la saine opinion publique soutienne les vrais intérêts de l'Église.

1. Le Gallicanisme n'est pas une doctrine, pas même une opinion, c'est une simple négation de prétentions nées au onzième siècle, et une résistance à ces prétentions, au nom de la tradition ancienne et constante des Églises. L'ultramontanisme, au contraire, est une doctrine, une opinion qui est venue s'entre sur le vieux tronc et qui a poussé des jets de croyances positives. Muselée au Concile de Florence, écartée au Concile de [pg 835] Trente, cette opinion reparaît furieuse au Concile du Vatican.

2. Le Gallicanisme est improprement nommé. Son *veto* appartient à toutes les nations Catholiques. L'Espagne en soutenait la force antique, Saint François de Sales en vengeait les droits au nom des privilèges de la maison de Savoie, et aujourd'hui, nous autres Français, nous l'avons trouvé faible chez nous, en comparaison de sa vitalité en Allemagne, en Autriche, en Hongrie, en Portugal, en Amérique, et jusqu'au fond de l'Orient.

3. Notre faiblesse, en ce moment, ne vient ni des Écritures, ni de la tradition des Pères, ni des monumens des Conciles Généraux et de l'histoire. Elle vient de notre défaut de liberté, qui est radical. Une minorité imposante qui représente la foi de plus de 100 millions de Catholiques, c'est-à-dire de presque la moitié de l'Eglise universelle, est écrasée par le joug imposé de réglemens restrictifs et contraires aux traditions conciliaires. Par des députations que nous n'avons pas réellement choisies et qui osent introduire dans le texte discuté des paragraphes non discutés, par une commission

pour les interpellations imposée par l'autorité; par le défaut absolu de discussion, réplique, objection, interpellation; par des journaux que l'on encourage pour la traquer, pour soulever contre elle le clergé des diocèses; par les nonciatures qui viennent à la rescousse, quand les journaux ne suffisent pas pour tout bouleverser, c'est-à-dire pour ériger en témoins de la foi les prêtres contre les évêques, et ne plus laisser à ces juges divins que le rôle de députés du clergé secondaire avec [pg 836] mandat impératif, et blâme si on ne répond pas au mandat. La minorité est écrasée surtout par tout le poids de la suprême autorité qui fait peser sur elle les éloges et encouragemens qu'elle adresse, *par brefs*, aux prêtres, et par toutes les manifestations à Dom Guéranger contre M. de Montalembert et autres.

4. La majorité n'est pas libre; car elle se produit par un appoint considérable de prélats qui ne sauraient être témoins de la foi d'Églises naissantes ou mourantes. Or, cet appoint, qui se compose du chiffre énorme de tous les vicaires apostoliques, du chiffre relativement trop fort des évêques Italiens et des États Pontificaux, cet appoint n'est pas libre. C'est une armée toute faite, toute acquise, endoctrinée, enrégimentée, disciplinée, que l'on menace, si elle bronche, de la famine ou de la *disponibilité*, et l'on a été jusqu'à donner de l'argent pour ramener quelques transfuges. Donc, il est évident qu'il n'y a pas de liberté suffisante.—La conclusion ultérieure est qu'il n'y a pas *œcuménicité nette et plausible*. Et ceci n'infirme en rien les vrais principes: l'Église est et reste infaillible dans les Conciles Généraux; seulement il faut que les conciles présentent tous les caractères d'œcuménicité; convocation légitime, liberté pleine pour les jugemens, confirmation par le Pape. Si une seule de ces conditions manque, tout peut être révoqué en doute. On a eu le Brigandage d'Ephèse, ce qui n'a pas empêché d'avoir eu ensuite un vrai Concile de ce nom. On pourrait avoir *Ludibrium Vaticanum*; ce qui n'empêcherait pas de tout réparer dans de nouvelles et sérieuses assises....

[pg 837]

Vous pourrez répandre ces réflexions, je crois que le grand remède aujourd'hui nous doit venir du dehors ...

II.

Je n'ai point parlé une seule fois, je ne parlerai pas davantage dans la suite. Je n'aime ni les gens qui posent, ni les choses complètement inutiles. *J'agis* depuis quatre mois, et je crois avoir rendu quelques services par ce moyen qui en dépit de toutes les entraves, nous a donné trois représentations, une commission internationale, des commissions de nations et 137 signataires¹⁶¹ qui succomberont avec honneur et horions, si l'on continue à nous traiter aussi mal.

Je crois inutiles tous efforts pour résister à l'aveuglement de l'orgueil moyen-âge, toutes Notes diplomatiques, toutes menaces qui ne sauraient aboutir, et dont je déplorerais le premier l'exécution, si elle était possible. Le remède n'est pas là; on se jouera de tout, et on ira triomphalement aux abîmes.

Quand on a affaire à des gens qui ne craignent qu'une chose, il faut se servir de cette chose,—c'est-à-dire de l'opinion publique.

Il faut par ce moyen établir ce qui est vrai—point d'autorité parceque point de liberté. Le défaut de liberté. Le défaut de liberté, gros comme des montagnes, crève les yeux; il repose sur des faits notoires, appréciables pour tous, et sa constatation publique est la seule planche de salut dans la tourmente inouïe que subit l'Église.

[pg 838]

A notre arrivée, tout était fait sans nous. Toutes les mailles du réseau étaient serrées, et les jésuites qui ont monté le traquenard ne doutaient pas un instant que nous y serions pris. Ils voulaient nous faire poser par enchantement la pierre angulaire de leur fronton, et se seraient chargés ensuite, sans nous, de bâtir le portail de leur édifice en un clin d'œil.

Nous avons donc trouvé un règlement tout fait,—c'est-à-dire des menottes. Pour faire droit à nos plaintes, on a serré de plus belle, et nous jouissons de l'ancien brodequin que Louis XVI. a supprimé. Pour être vrai, il faut dire que les tourmenteurs ont fait la chose avec toute la grâce imaginable. Nous avons trouvé une majorité toute faite, très compacte, plus que suffisante en nombre, parfaitement disciplinée et qui a reçu au besoin instructions, injonctions, menaces, prison, argent. Le système des candidatures officielles est distancé de 100 kilomètres.

Une commission, la plus utile, celle où l'on peut adresser ses réclamations, a été créée et imposée d'office.

Mais il faut dire à sa louange qu'elle ne fonctionne pas, parce qu'elle ne répond jamais ou qu'elle ne répond qu'aux membres de la majorité. Nous avons été libres de nommer les autres commissions, c'est-à-dire que la majorité fictive a pu les créer à l'aide de listes dressées et lithographiées.

Restait la parole; mais à quelles conditions? Défense de répliquer un mot, de discuter, d'éclairer. Si on voulait parler, il fallait se faire inscrire, et le lendemain, ou deux jours après, quand tout était refroidi, on pouvait [pg 839] venir ennuyer l'assemblée par un discours. Défense alors de sortir du thème donné aux écoliers (excepté pour MM. de la majorité) et quand on a tenté de parler de liberté, de règlement, de commission, d'acoustique, de décentralisation, de désitalianisation, on a vu se produire les scènes tumultueuses qui ont démoli les Cardinaux Rauscher et Schwarzenberg, les Évêques de Colocza, de Bosnie, d'Halifax, tandis qu'on trouvait bon que Moulins, Belley et d'autres introduisissent de force la grande question à propos de la vie des clercs.

La pauvre petite minorité est en butte aux injures, aux calomnies, et traquée par la *Civiltà*, *l'Univers*, *le Monde*, *l'Union*, *l'Osservatore* et *la Correspondance de Rome*. Ces journaux sont autorisés et encouragés. Ils soulèvent contre nous le clergé de nos diocèses, et ce clergé applaudit. Un de nous a osé écrire contre son collègue, est-il n'a pas reçu un blâme officiel.

Mais voici ce qui achève d'opprimer notre liberté: elle est écrasée de tout le poids du respect que nous portons à notre chef.

La question est pendante; elle n'est pas même à l'ordre du jour, les juges de droit divin sont réunis et attendent pour la traiter. Or, en pleines assises, le chef se sert de sa haute et divine autorité pour blâmer devant les prêtres qui lui sont présentés *leurs* évêques *mineurs*. Il fait l'éloge funèbre de M. de Montalembert devant 400 personnes; il écrit à Dom Guéranger, à l'Abbé de Cabrières de Nîmes, qui s'est dressé devant l'Évêque d'Orléans, aux diocèses dont les prêtres font des Adresses pour forcer la main à *leurs mandataires*; [pg 840] et il fait tout cela en termes tels que *la Gazette du Midi* et *tutti quanti* déclarent qu'il n'est plus permis ni aux évêques ni à personne de soutenir le contraire; et on appelle cela de la liberté!

On nous menace de passer par-dessus une minorité imposante, contrairement à toute la tradition, de fouler aux pieds la règle suprême de saint Vincent de Lerins: *Quod ubique, quod semper, quod ab omnibus*. On prêche que l'unanimité morale n'est pas nécessaire, que le chef est maître de tout, et que nous devons rendre des services et non point des sentences, faire de l'affection quand il s'agit de la foi. Voilà notre liberté! Un Cardinal me disait pour conclusion: "Mon cher, nous allons aux abîmes."

Tout cela est capable d'ébranler les faibles, de désagréger ce qui tient à si peu.

Je crois vous avoir peint la position ce qu'elle est. Priez pour nous, faites valoir la chose, parce qu'elle est *vraie*, parce que je crois servir l'Eglise en vous la révélant.

Après mes souffrances de cet hiver, je ne pense pas pouvoir affronter les chaleurs.... D'ailleurs, Dieu seul peut nous sauver.

Appendix III.

DIFFICULTÉS DE LA SITUATION A ROME. [162](#)

I.

La question de l'infaillibilité pontificale, devenue, contre l'attente universelle, l'objet capital du Concile du Vatican depuis son ouverture, ne semble pas toucher encore à une solution immédiate. Cette grave question qui devait, au dire de certains hommes, être définie par acclamation dès les premières séances du Concile, puis le jour de l'Epiphanie, puis, après de courts débats, pour la fête de Saint Joseph ou le 25 Mars jour de l'Annonciation; différée de jour en jour à raison des énormes difficultés qu'elle rencontre, à la grande surprise des partisans de l'infaillibilité, doit enfin, nous dit-on, être, sans nouveau délai, résolue solennellement le 29 Juin, jour de la fête du Prince des Apôtres. Si telle est véritablement la pensée des Présidents du Concile, il semble difficile qu'elle puisse se réaliser. Quelques jours seulement nous séparent de cette solennité, et près de cent orateurs sont inscrits pour traiter cette question devant le Concile. Dans cette situation, il faut qu'on choisisse entre trois partis: ou supprimer [pg 842] toute discussion, ou proroger le Concile, ou exiger qu'il poursuive ses travaux jusqu'à ce qu'enfin toutes les difficultés soient pleinement éclaircies, et que tous les Pères puissent donner leur suffrage en parfaite connaissance de cause.

Supprimer, ou du moins restreindre la discussion de telle sorte que la conscience d'un nombre considérable de Pères qui sentent vivement toute la gravité de la question et les difficultés de tout genre dont elle est hérissée, ne soit pas pleinement satisfaite, ce serait violer toutes les règles des délibérations conciliaires que nous voyons de siècle en siècle pratiquées avec la liberté et la maturité la plus complète. Rien ne saurait dispenser d'un examen approfondi, lorsqu'il s'agit d'imposer un dogme nouveau à la croyance des fidèles; et, au dire des théologiens, toute définition rendue sans une discussion préalable qui porte jusqu'à l'évidence le caractère de doctrine révélée dans le point mis en délibération, demeure par cela même frappée de nullité. Il suffit de parcourir rapidement les actes des Conciles

Œcuméniques pour se convaincre des patientes recherches, de la sage lenteur qu'ils ont apportées à leurs délibérations; et il est incontestable que les questions à résoudre dans ces grandes assemblées étaient loin de présenter les difficultés qui se rencontrent dans celle qui s'agite en ce moment. Le monde Chrétien n'ignore pas cela, et il ne verrait pas d'un œil indifférent un jugement solennel, en une matière qui touche à la constitution même de l'Eglise, prononcé à la hâte et par un coup de majorité.

[pg 843]

Sans doute ceux qui tiennent dans leurs mains la direction du Concile, se persuadent que la question est depuis longtemps assez discutée pour qu'on sache à quoi s'en tenir sans de plus amples recherches; et, parce qu'à leurs yeux l'infaillibilité du Pape est une vérité, ils regardent toute nouvelle discussion comme une pure formalité que rien ne commande impérieusement. Mais par cela même que la question est discutée depuis plusieurs siècles, et que l'on discute encore avec science, érudition et bonne foi, il faut conclure évidemment que la lumière n'est pas encore faite à ce point qu'on puisse dire que telle est incontestablement la tradition antique et universelle.

Si à leurs yeux l'infaillibilité du Pape est une vérité certainement révélée, et qu'ils tiennent à précipiter la définition par égard pour certaines impatiences, ils ont un moyen bien simple de les satisfaire, sans commettre une violation des lois conciliaires. Dans le système ultramontain, le Pape étant infaillible, et, du consentement de tous les catholiques, l'Église universelle ne pouvant jamais accepter l'erreur et y adhérer, toute définition *ex cathedrâ* sera inmanquablement suivie de l'assentiment de tout le corps de l'Église. Pie IX., assure-t-on, est profondément convaincu de son infaillibilité comme Pontife suprême. Eh bien! de deux choses l'une: ou il faut que le concile agisse en concile, et par conséquent avec circonspection, pesant avec une attention scrupuleuse les raisons graves, les faits, les textes allégués de part et d'autre; ou le Pape, en vertu de son autorité apostolique, par un acte des plus solennels, doit trancher [pg 844] toutes les difficultés et définir lui-même le dogme de cette infaillibilité qu'il croit être un apanage essentiel de la dignité suprême dont il est revêtu. Pourquoi ne pas tenter cette expérience? Si l'Église adhère à sa décision, son infaillibilité est très canoniquement établie: si elle n'adhère pas, il est évident qu'il ne peut

prétendre à ce privilège. La question est alors définitivement établie, et toute dispute cesse. Jusqu'ici, aucune décision nette, précise et solennelle sur ce point n'a été donnée; hésiter sur l'emploi de ce moyen, ne serait-ce pas douter de cette infailibilité? Et si, en l'écartant on veut que le Concile prenne lui-même la responsabilité d'une définition dogmatique, il est alors de toute convenance, de toute justice, de toute nécessité qu'il ne prononce qu'après l'examen le plus approfondi.

L'état des esprits dans le Concile et hors du Concile, les discours prononcés, les écrits nombreux publiés de part et d'autre, prouvent évidemment, aux yeux de quiconque juge sans parti pris et avec une parfaite impartialité, que la question, depuis 1682, pour ne pas remonter plus haut, n'a pas encore fait un seul pas; elle en est toujours au même point. L'étude la plus attentive de la Tradition n'a pas donné de nouvelles lumières à ceux qui sont capables de ces études, et sans doute l'état de la question dans cette sphère mérite une attention tout exceptionnelle, et bien différente de celle que prétend attirer sur soi un enthousiasme factice ou irréfléchi.

II.

La prorogation du Concile serait donc la mesure la plus rationnelle et la plus prudente. Mais les impatiences provoquées, enflammées de plus en plus par toute sorte de manœuvres, comment les contenir? Ces feuilles, ces écrits, cette propagande pieuse, qui les excitaient par la promesse d'une satisfaction prochaine, tout cela ne va-t-il pas devenir l'objet d'un mépris universel, pour avoir leurré si longtemps les âmes honnêtes et religieuses d'une espérance si lente à se réaliser? Mais que faire! Telle est la difficulté de la situation qu'on a si imprudemment créée. S'il faut que le Concile décide, il ne reste plus qu'à le proroger, pour qu'il puisse un peu plus tard reprendre ses travaux avec toute la patience et la liberté d'esprit qu'ils réclament: ou bien il faut qu'il les poursuive actuellement sans désespérer, jusqu'à ce qu'enfin tout soit mûr pour le jugement à prononcer.

Mais ici deux tristes réflexions se présentent à l'esprit. D'abord, quelle rigueur,—le mot n'est pas excessif, et on l'a entendu sortir de la bouche de bonnes femmes Romaines, au moment où les vénérables Pères faisaient cortège au Sauveur du monde porté en triomphe à la procession solennelle de la Fête-Dieu;—quelle rigueur ne serait-ce pas de retenir plus longtemps, dans cette saison de chaleurs accablantes, sous un climat que les Romains eux-mêmes se hâtent de fuir à cette époque de l'année, des vieillards épuisés par l'âge, par les infirmités, par les fatigues de tout genre, fatigues du corps, [pg 846] fatigues de l'esprit, angoisses de l'âme en présence des plus terribles dangers pour leurs troupeaux particuliers, pour l'Église universelle, pour la société tout entière; des vieillards qui sentent le poids énorme de cette responsabilité, qui entendent tous les jours la voix de l'opinion publique, et la voix plus puissante et plus pénétrante de la religion alarmée; des vieillards, parmi lesquels plusieurs ont déjà succombé, plusieurs autres sont atteints de maladie, tous sont privés de l'air vivifiant du pays natal, des soins particuliers que ne sauraient donner des mains étrangères, des

consolations qu'un pasteur fidèle trouve toujours au milieu d'un peuple qui l'aime.

Les séances en Congrégation Générale, continuées presque tous les jours sans interruption, durent, depuis huit heures et demie du matin jusqu'à une heure de l'après-midi. Le devoir de la prière, la récitation de l'office canonial, la méditation des matières à discuter, la préparation des discours à prononcer, rien de tout cela ne peut être suspendu. Des jeunes gens robustes ne résisteraient pas longtemps à ce travail si multiplié, si continu, à l'effort d'une attention soutenue pendant les longues heures des séances conciliaires sur des questions qui ne pèsent pas uniquement sur la pensée, mais aussi et plus encore sur la conscience, et enfin à l'action accablante des fortes chaleurs, dont l'intensité, par l'agglomération de six cents prélats, redouble sans mesure dans une salle d'ailleurs extrêmement inconfortable sous tous les rapports. On entend les plus vigoureux de corps et d'esprit déclarer qu'ils [pg 847] sont à bout de forces. Et l'on persisterait encore à les retenir!

Mais il y aurait encore là quelque chose de plus grave. Retenir les évêques jusqu'à ce qu'une définition de l'infaillibilité pontificale ait pu être rendue après une discussion parfaitement libre, et aussi longue qu'on doit l'augurer du nombre des orateurs inscrits et des questions graves et nombreuses qui se rattachent à cette définition, c'est leur dire: évêques, il faut vous résoudre à mourir ou à bâcler en toute hâte un jugement duquel dépendent les destinées de l'Église et du monde. Oui, mourez, accablées par l'ennui, la fatigue, le climat dévorant, l'âge et les infirmités; ou, si vous tenez à vivre encore, foulez aux pieds les règles les plus sacrées des conciles, sacrifiez votre conscience, et avec la vôtre celle de plusieurs millions d'âmes!

Sous le rapport de la liberté de discussion, bien des choses dans le Concile du Vatican ne ressemblent pas aux anciens Conciles Généraux, toujours vénérés dans l'Église. Au dedans, au dehors, un parti a exercé sur les Pères une pression toujours croissante. Au dedans, des règlements mal faits, des interruptions sans cause, dont le résultat inévitable était de décourager les hommes les plus fermes, et d'empêcher ou d'affaiblir la manifestation de la vérité; une certaine fraction de l'assemblée, turbulente, impétueuse, arrêtant par des murmures les prélats les plus vénérables dont la doctrine ne se pliait pas à ses idées; les présidents fermant les yeux sur ces faits et n'ayant de

sévérités que pour les adversaires de l'infaillibilité; la discussion brusquement [pg 848] arrêtée au gré de ceux qu'elle déconcertait. Au dehors, des journalistes qui ne cessaient de prodiguer l'insulte aux évêques contraires à leurs opinions.

Rome est tout émue d'un fait récent concernant l'un des membres les plus éminents du Concile, le Cardinal Guidi, Archevêque de Bologne, précédemment religieux Dominicain, et très célèbre professeur de théologie dans la capitale du monde Chrétien. Il avait parlé dans le Concile sur la question de l'infaillibilité, exigeant pour celle des définitions pontificales le concours de l'épiscopat. Le jour même, il est mandé et admonesté du ton le plus sévère. "Saint-Père, a répondu le cardinal, j'ai dit aujourd'hui ce que j'ai enseigné au grand jour pendant plusieurs années à votre collège de la Minerve, sans que jamais personne ait trouvé cet enseignement repréhensible. L'orthodoxie de mon enseignement avait dû être attestée à votre Sainteté lorsqu'elle daigna me choisir pour aller à Vienne combattre certains docteurs allemands dont les principes ébranlaient les fondements de la foi catholique. Que mon discours d'aujourd'hui soit soumis à l'examen d'une commission de théologiens; je ne redoute pas ce jugement." Des paroles menaçantes pour le cardinal ont terminé cet entretien. Le matin, après la séance, un prélat domestique disait dans la salle même du Concile: après un pareil discours, le cardinal devrait être enfermé pendant dix jours dans un couvent pour y vaquer aux exercices spirituels.

La puissance absolue du Pape, son opinion visible, le pouvoir arbitraire qu'exercent les présidents, la pétulance [pg 849] de certains prélats, trop notoirement passionnés et violents; tout cela pèse sensiblement sur les membres les plus sages de l'assemblée qui ne peuvent s'empêcher de s'en plaindre avec tristesse dans des entretiens intimes. Faut-il s'étonner que plusieurs, le fait est très certain, expriment le désir d'un vote secret, s'il était possible?

C'est avec une douleur profonde que nous racontons toutes ces choses. Mais la situation de l'Église en ce moment est telle qu'on ne peut se dispenser de parler. Au Concile du Vatican se traite une question de l'ordre le plus élevé. Chacun a le droit de savoir comment est conduit ce grand procès, qui est le procès de tous. Il s'agit de la paix du monde, il s'agit aussi de choses qui

sont au-dessus de tous les intérêts périssables, de la foi, de la conscience et du salut éternel des âmes.

[pg 850]

Appendix IV.

LETTER OF A FRENCH BISHOP TO COUNT DARU.

On sait à Rome que vous aviez l'intention de rédiger une note ou un memorandum qui devrait être appuyé par les puissances.

Si vous agissez, vous serez appuyés. Ici les diplomates se plaignent de votre inaction.

Mais il faut agir immédiatement, on veut introduire l'infailibilité après Pâques.

Vous ne pouvez rien faire par le M. de Banneville. Ses collègues ne le comptent pour rien, sinon pour un obstacle.

Il ne faut pas vous mettre exclusivement sur le terrain des canons des Ecclesia. On vous répondrait, soit en supprimant les Canons auxquels vous vous opposez; soit en disant que cela ne vous touche pas, à cause du concordat; soit, enfin, en les expliquant dans un sens qui vous paraîtra

satisfaisant, quitte à décréter après tous les Canons, tous les Syllabus qu'ils voudront, et les plus formidables. Mais il y a un terrain où vous êtes invincibles, et sur lequel les puissances vous suivent. C'est celui de la liberté du [pg 851] Concile et du droit publique de l'Église, sous la protection duquel vos évêques sont venus à Rome.

Cette liberté n'existe plus. Ce droit est violé sur un point que plus de 100 évêques ont déclaré de la dernière importance.

Leur protestation vous donne un point de départ et des arguments invincibles.

Ces évêques déclarent que le Règlement est contraire à la loi de l'Église sur le point décisif de la Majorité. Car ce droit, depuis Nicée jusqu'à Trente, déclare que la règle indisputable et certaine pour les définitions dogmatiques c'est l'unanimité morale, et non la majorité.

Un nombre immense de faits confirme leur protestation:

Les scènes de violence faites à Haynald et à Strossmayer.—Les Présidents n'ont pas cherché à protéger leur droit et liberté de parole, tout au contraire.

La précipitation de la discussion par les Présidents.

Le Schema de Fide, 4 chapitres, 20 pages, canons avec anathèmes, a été distribué 24 heures seulement avant l'ouverture de la discussion, on a voté sur 47 amendements en 5 quarts d'heure.

Le lendemain de là scène avec Strossmayer, on a lu un *Monitum*, non pas pour admonéter les interrupteurs, mais pour recommander aux orateurs de se presser, de peur qu'ils n'ennuyent l'assemblée, et n'en provoquent des manifestations.

Ce *Monitum* est une provocation aux interruptions. Quelquefois un évêque est reçu avec des murmures avant de commencer.

[pg 852]

Les demandes de la Minorité:

D'une salle où on puisse les entendre.

De bureaux, pour les discussions préliminaires, qui enverraient des Commissaires à la Députation.

De la liberté d'imprimer leurs discours et mémoires pour les distribuer parmi les pères.

Que les auteurs d'amendements puissent les expliquer et les défendre dans la Commission, et puissent avoir le droit de répondre dans les discussions.

D'un procès-verbal des séances.

Sur la majorité et l'unanimité.

Toutes ces demandes sont restées sans réponse et sans effet.

La pression exercée sur les Orientaux.

La scène faite au Patriarche Chaldéen.

L'emprisonnement intimé à l'Archévêque d'Antioche et au chef de sa communauté.

L'arrestation et les coups donnés au prêtre, secrétaire de l'Arch. de Diarbelaïr.

Les menaces aux Melchites, Maronites, et Chaldéens.

Le langage tenu par le pape lui même. Les cas de Montalembert et de Falloux.

Les lettres du pape à Guéranger, Cabrières, etc., traitant les Évêques de l'Opposition en ennemis.

Les allocutions publiques roulant presque toutes sur l'Infaillibilité.

Les cadeaux faits aux Vicaires Apostoliques en les priant de ne pas l'abandonner.

Attitude de la presse approuvée par le Vatican, exploitant ces lettres, et appelant les évêques à se retracter, en les dénonçant à leur clergé.

[pg 853]

Même le journal officiel de Rome traitant la minorité d'alliés des Franc-maçons. Après tout cela, il n'y a pas de liberté au Concile.

L'ambassadeur que vous enverrez en recevra des preuves péremptoires. Les autres puissances sont déjà plus avancées que la France: la Prusse, la Hongrie, même la Turquie.

A nom de l'ordre public menacé par l'inévitable refus de reconnaître ce Concile. Au nom de votre droit, ayant rendu possible la réunion du Concile, de protéger la liberté de vos évêques.

Dire—

“Ce Concile ne peut pas continuer dans les conditions actuelles.

“Nous protestons dès à présent contre la Non-liberté manifeste du Concile.

“Achevez ce que vous avez déjà commencé.

“Il y a des points sur lesquels vous pouvez espérer l'unanimité morale, sans violation de liberté.

“Tenez une session publique sur les *Schema de Fide* et de Discipline assez pour sauver votre honneur.

“Et prorogez une assemblée qui, aux yeux des évêques et du monde, ne possède plus ces conditions d'ordre et de liberté sans lesquelles ce n'est pas un Concile.

“Nous désirons que nos évêques retournent dans leurs diocèses jusqu'à ce que les conditions soient plus favorables pour la célébration d'un Concile.”

Appendix V.

PROTESTATION CONTRE LE PROJET DE PRÉCIPITER LA DISCUSSION.

(Presented early in May.)

Permettez, Monseigneur, que je proteste ici contre un tel projet, s'il existe, et que je consigne entre vos mains ma protestation. Saisir ainsi, irrégulièrement et violemment, le Concile de cette question, c'est absolument impossible.

Cette discussion immédiate de l'Infaillibilité Pontificale, avant toutes les autres questions qui la doivent nécessairement précéder, ce renversement de l'ordre et de la marche régulière du Concile, cette précipitation passionnée dans l'affaire la plus délicate, et qui par sa nature et ses difficultés, exige le plus de maturité et de calme, tout cela serait non seulement illogique et absurde, inconcevable, mais encore trahirait trop ouvertement aux yeux du monde entier, chez ceux qui imaginent de tels procédés, le dessein de peser sur le Concile, et pour dire le vrai mot, serait absolument contraire à la liberté des évêques.

Comment une telle question, sous-introduite tout à [pg 855] coup dans un chapitre annexé à un grand *Schema*, le dessein de ceux qui nous ont été soumis, passerait avant tous les schemata déjà étudiés, avant toutes les autres questions déjà discutées, et non encore résolues par le Concile.

Des questions fondamentales, essentiellement préliminaires à toutes les autres; Dieu, sa personnalité, sa providence, Jésus-Christ, sa divinité, sa redemption, sa grâce, l'Église, on laisserait tout cela de côté pour se précipiter sur cette question, dont nous n'avions entendu parler avant le Concile presque qu'à des Journalistes, dont la bulle de convocation ne parlait pas, dont le *Schema* sur l'Église lui-même ne disait pas un seul mot.

Et l'examen de cette nouvelle question, si compliquée, cette discussion, si nécessaire, cette définition si grave, tout cela se ferait à la hâte, violemment, au pied levé. On ne nous laisserait ni le temps ni la liberté d'étudier un point si important de doctrine avec gravité et à fond, comme il doit l'être. Car aucun évêque ne peut, sans blesser gravement sa conscience, déclarer de foi, sous peine de damnation éternelle, un point de doctrine de la révélation duquel il n'est pas absolument certain. Ce serait, Monseigneur, dans le monde entier, une stupeur et un scandale. Ce serait de plus autoriser trop manifestement les calomnies de ceux qui disent que dans la convocation du Concile, il y a eu une arrière pensée, et que cette question qui n'était pas l'objet du Concile, au fond devait être tout le Concile. Ceux qui poussent à de tels excès oublient clairement toute prudence: il y a un bon sens et une bonne foi publique qu'on ne blesse pas impunément.

[pg 856]

Sans doute on peut passer par dessus toutes les recriminations des ennemis de l'Église; mais il y a des difficultés avec lesquelles il faut nécessairement compter. Eh bien! Éminence, si les choses venaient à se passer de la sorte, je le dis avec toute la conviction de mon âme, il y aurait lieu de craindre que des doutes graves ne s'élèvent touchant la vérité même et la liberté de ce Concile du Vatican.

Que les choses se passent ainsi, on le peut, si on le veut: on peut tout, contre la raison et le droit, avec la force du nombre.

Mais c'est lendemain, Éminence, que commenceraient pour vous et pour l'Église les difficultés.

Par un procédé aussi contraire à l'ordre régulier des choses, à la marche essentielle des assemblées d'évêques qui ont été de vrais Conciles, vous susciteriez incontestablement une lutte dans l'Église et les consciences sur

la question de l'issue œcuménique de notre assemblée: c'est à dire, tout ce qu'on peut imaginer aujourd'hui de plus désastreux.

Ceux qui essayent d'engager le Pape dans cette voie, en l'abusant et le trompant, sont bien coupables. Mais je ne doute pas que la sagesse du Saint-Père ne déjoue toutes ces menées.

[pg 857]

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bearing on the controversies of the day, and contains a great deal of what, to the immense majority of English, if not also of German readers, will be entirely new matter, grouped round a common centre-point which gives unity and coherence to the whole, that it falls strictly within the province of this journal.”—ACADEMY, *October 9*.

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are to be decided at the Council, as well as to serve as a contribution to ecclesiastical history.”—MORNING POST, *October 20*.

[pg 858]

“The concluding words of the volume, coming as they evidently do from a great leader of thought among German Catholics, are so startling and suggestive that we give the passage as it stands, while exhorting our readers to lose no time in procuring and carefully perusing the whole volume for themselves.”—CHURCH HERALD, *October 20*.

“It is our intention to deal with this book hereafter as it deserves, for we have reason to believe, we will not say to know, lest we should imitate the vicious example of Janus, that the work is a fabrication of English and German hands. Its name has been well chosen; Janus had two faces, which nationally may mean English and German, but in morals signifies a character not highly estimable for truth.”—TABLET, *October 16*.

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“It is of great importance at such a crisis that the public mind should be thoroughly informed as to the points on which the judgment of the Council is to be asked, or, to speak more correctly, as to the monstrous claims of the Papacy to which it is expected to give its formal submission. Especially is it

desirable to understand clearly the exact position occupied by the 'Liberal Catholics,' men who are not prepared to forsake their Church nor to declare war against all progress, and who, despite many discouragements, still cling to the belief that it is possible to find some mode of reconciliation between 'Catholic' principles and modern ideas, and who resent such fanatical outbursts as that of Archbishop Manning even more bitterly than Protestants themselves. We attach, therefore, great value to a little volume just issued on the 'Pope and the Council,' by Janus, which contains a more complete statement of the whole case than we have anywhere met with."—NONCONFORMIST, *October 27*.

"Beginning with a sketch of the errors and contradictions of the Popes, and of the position which, as a matter of history, they held in the early Church, the book proceeds to describe the three great forgeries by which the Papal claims were upheld—the Isidorian decretals, the donation of Constantine, and the decretum of Gratian. The last subject ought to be carefully studied by all who wish to understand the frightful tyranny of a complicated system of laws, devised not for the protection of a people, but as instruments for grinding them to subjection. Then, after an historical outline of the general growth of the Papal power in the twelfth and thirteenth centuries, the writers enter upon the peculiarly episcopal and clerical question, pointing out how marvellously every little change worked in one direction, invariably tending to throw [pg 859] the rule of the Church into the power of Rome; and how the growth of new institutions, like the monastic orders and the Inquisition, gradually withdrew the conduct of affairs from the Bishops of the Church in general, and consolidated the Papal influence. For all this, however, unless we could satisfy ourselves with a mere magnified table of contents, the reader must be referred to the book itself, in which he will find the interest sustained without flagging to the end."—PALL MALL GAZETTE, *October 29*.

"It is very able, learned, compact, and conclusive. The subject of Papal Infallibility is admirably treated, with a thorough mastery of Church history. We commend it to the perusal of all who take an interest in the progress of ecclesiastical questions, and wish to become more nearly acquainted with the Romish Church, its doings, pretensions, decrees—especially with the conduct of its successive heads. It is a perfect storehouse of facts brought

together with telling effect. Let the voice of these German Catholics be listened to by enlightened Englishmen of all creeds, and they will be in no danger of ensnarement from the plausible rhetoric of Ultramontanism, whose principles are opposed to our free institutions—to the glory and strength of England.”—*ATHENÆUM, October 30.*

“In France, in Holland, and in Germany, there has already appeared a multitude of disquisitions on this subject. Among these several are the acknowledged compositions of men of high standing in the Roman Catholic world,—men admittedly entitled to speak with the authority that must attach to established reputation: but not one of them has hitherto produced a work more likely to create a deep impression than the anonymous German publications at the head of this notice. It is not a piece of merely polemical writing, it is a treatise dealing with a large subject in an impressive though partisan manner—a treatise grave in tone, solid in matter, and bristling with forcible and novel illustrations.”—*SPECTATOR, November 6.*

“It is, as all our readers know, a history of how the Papal claims have grown from their modest germs in the *fifth*, down to their full development in the *sixteenth* century. This history, too, is accompanied by a corresponding exhibition of the inconsistency of these claims with actual facts. But the work is done with such elaborate care, and with such a well-marshalled and complete view of the historical facts of the case, that it may well be bought and read irrespective of the circumstances which have called it forth. It is a full, able, and learned bill of indictment against Popery proper.”—*LITERARY CHURCHMAN, November 13.*

“This book, characterized by great ability, singular grasp, and scholarship, demonstrates, with proof infallible, that the Ultramontane doctrine of the Pope's infallibility is the centre of an arch based upon error, raised by cunning craft, settled and cemented by shameless treachery. And this most damaging exposure of Popery proceeds from divines calling themselves ‘faithful Catholics.’ No Ultramontane is able to sneer at the scholarship of the book; nor can they take off the edge of its blows by ascribing it to the malice of Protestants.”—*RECORD, November 17.*

“Yet on this and other documents of the same kind, the whole fabric of Papal power and assumption has been built up. The forged donations of

Constantine, Pepin, and Charlemagne are the title-deeds by which its possessions are held, and the *Liber Pontificalis*, and Isidorian decretals, are the authorities on which it rests for the assertion of a power inconsistent alike with the rights of God and the liberties of man. We know of no book in which [pg 860] the whole process is exposed with the same completeness and in the same brief compass, and we commend it to our readers as one from which they will derive an amount of valuable information for which otherwise they might search in vain.”—ENGLISH INDEPENDENT, *November 18*.

“The book before us is making England and Germany ring with valiant and wise words of warning, which ought to make the representative of St. Peter weep tears of honest grief over past and present, the crooked policy of the one and the headstrong ambition of the other. As a rule, we may say that anti-Papal literature is of the lowest grade of literary merit, filled with illogical and inconclusive reasoning, and characterized by ignorance, bigotry, and cant. The present work is a splendid exception, severe in tone, but not unduly so, clear in statement, and unsparing in its dissection of the contradictions involved in modern Ultramontane theories. Its German authorship secures for it patient and exhaustive treatment of the subject; its Catholic origin places its statements far above the ordinary suspicions of unfairness, while it raises our admiration for the love of truth, which could lead men to oppose so bravely the current of popular Roman thought.”—CHURCH TIMES, *November 26*.

“Now, what this book of Janus proves is, that all these *à priori* reasons for Papal Infallibility are absolutely worthless. They are beaten off the stage entirely and altogether. There is not the smallest atom of ground for them to stand upon.”—CHURCH REVIEW, *November 27*.

“This work, written by continental Roman Catholics of the liberal school, will be read in Protestant England with the deepest interest, and on more accounts than one. Accustomed as we are so much to view this great Church system of Rome with feelings of antagonism, it is well we should know and learn to sympathize with able and earnest men within its body, who are keenly alive to its weaknesses, and are anxiously seeking for light as to how Christianity, as they have received it, may help to solve the perplexities of the age. We should hope that no Protestant who reads this

able treatise will feel differently. At the same time, it has no little value for us Protestants, in days when our Protestantism is so scornfully arraigned among ourselves; for if anything can justify our position and deepen our gratitude to a merciful Providence that has ruled our history, it is a candid work like this, proceeding from what we must call the opposite camp.”—CONTEMPORARY REVIEW, *December*.

“Rumour will, no doubt, be busy with its conjectures as to the name which lurks beneath the *nom de plume* of ‘Janus.’ We do not intend to offer any contribution towards the elucidation of the mystery, unless it be a contribution to say that the book bears internal evidence of being the work of a Catholic, and that there are not many Catholics in Europe who could have written it. Taking it all in all, it is no exaggerated praise to characterize it as the most damaging assault on Ultramontanism that has appeared in modern times. Its learning is copious and complete, yet so admirably arranged that it invariably illustrates without overlaying the argument. The style is clear and simple, and there is no attempt at rhetoric. It is a piece of cool and masterly dissection, all the more terrible for the passionless manner in which the author conducts the operation.”—TIMES, *December 3*.

Footnotes

- [1.](#) [It may be well to add, to preclude misconceptions, that both Letters and Articles are exclusively the work of Catholics.—Tr.]
- [2.](#) The weight to be attached to the *Civiltà* on all questions connected with the Council may be gathered from the Brief of Pius IX. of Feb. 12, 1866, printed in the *Civiltà*, Serie vi. vol. vi. pp. 7-15. The Pope declares that this journal, expressly intrusted with the defence of religion and with teaching and disseminating the authority and claims of the Roman See, is to be written and edited by a special staff to be named by the General of the Jesuits, who are to have a special house and revenues of their own. The previous censorship, as is known in Rome, is exercised with particular care, so that nothing appears without the approbation of the *Curia*.
- [3.](#) [Cardinal Reisach was absent at the opening of the Council, and died soon afterwards, Dec. 26, 1869, in Savoy.—Tr.]
- [4.](#) [See Introduction to The Pope and the Council, pp. 1-4.—Tr.]
- [5.](#) [Cf. *The Pope and the Council*, p. 6.—Tr.]
- [6.](#) These fears, as is well known, were not realized at Fulda.
- [7.](#) The Cardinal's subsequent attitude has not justified this hope. Freppel too, as Bishop-designate of Anjou, has now declared himself for the infallibilists.

- [8.](#) This design does not seem to have been persevered in.
- [9.](#) *Corresp. de Rome*, 1869, p. 384: “L’infallibilité du Pape, décidant en matière de foi *ex cathedrâ*, c’est-à-dire comme maître de l’Eglise étant déjà admise par tous les vrais catholiques, un décret du Concil fera juste l’effet d’une confirmation d’une chose universellement sue et crue.”
- [10.](#) “Præsidentia auctoritativa dicitur ... insuper cum auctoritate coactivâ compescendi etiam per censuras ecclesiasticas, et alia juris media contradictores et rebelles et contumaces, prout ex constitutione xi. Martini v., etc.”
- [11.](#) “Juramentum contra utilitatem ecclesiasticam præstitum non tenet.”—Lib. ii. tit. 24, c. 27; Sext. Lib. i. t. 2, c. 1.
- [12.](#) Cf. “Janus,” p. 230.
- [13.](#) [The third Lateran Council.—Tr.]
- [14.](#) The Scotch pronounce Latin much as the Germans do.
- [15.](#) [Even this must be taken with reserve.—Cf. *infra*, pp. [174](#), [175](#).—Tr.]
- [16.](#) [Most of the rights originally inherent in the episcopate are now reserved to the Pope, who only allows Bishops to exercise them during good behaviour, by virtue of “faculties” renewed every five years. Cf. “Janus,” p. 422, note.—Tr.]
- [17.](#) [This must be taken with some reserve, as will be seen further on.—Tr.]
- [18.](#) “Obligatam hærentemque sanctiori Pontifici velut in pectore Societatem.”—Bolland, *Imago*, p. 622.
- [19.](#) [The German College is conducted by the Jesuits.—Tr.]
- [20.](#) [Archbishop MacHale does not seem to have justified this anticipation.—Tr.]
- [21.](#) Excommunications *latæ sententiæ*, as distinguished from excommunication *ferendæ sententiæ*, are those which immediately take effect on the commission of the forbidden act,

without requiring any sentence of Pope or Bishop to be pronounced.

- [22.](#) When the news arrived from Paris of the abolition of the Pragmatic Sanction, *i.e.*, of the reforms of Basle.
- [23.](#) [This formula, often mistakenly supposed to occur in the Papal Coronation service, refers to the traditional length of St. Peter's pontificate—twenty-five years. No Pope has yet reigned to the end of his twenty-fifth year, and only one has entered on the beginning of it. Pius IX. completes his twenty-fourth year on June 16, 1870.—Tr.]
- [24.](#) [This point is forcibly dwelt on by Count Daru in his memorandum, which the Pope refused to lay before the Council.—Tr.]
- [25.](#) “Animas eorum qui in solo peccato originali, vel mortali actuali decedunt, in infernum descendere, pœnis tamen disparibus puniendas.”
- [26.](#) “Imprimis itaque fide Catholicâ, tenendum est illorum animas,” etc. The author seems really to believe that the Rationalistic tendencies of the age can be cured with an emetic.
- [27.](#) [Cardinal Reisach, who was formerly Archbishop of Munich, used to say he had almost forgotten how to speak German.—Tr.]
- [28.](#) “Supremam ideoque ab errore immunem esse Romani Pontificis auctoritatem, quum in rebus fidei et moram ea statuit ac præcipit quæ ab omnibus Christi fidelibus credenda et tenenda, quæve rejicienda et damnanda sunt.”
- [29.](#) “Per l'infallibilità, essendo l'Abbate Mastai, l'ho sempre creduto, adesso, essendo Papa Mastai, la sento.”
- [30.](#) [This reads almost like a prophecy, when we remember how afterwards, and on slighter provocation than is here supposed, hundreds of the Infallibilist Bishops danced like maniacs round the pulpit when Strossmayer and Schwarzenberg were speaking, yelling and shaking their fists at them.—Cf. *infr.* Letter [xxxii.](#)—Tr.]

- [31.](#) [Archbishop Darboy's interposition stopped the conspiracy being carried out at the first General Congregation, and four American Bishops disconcerted a second similar plot on St. Joseph's Day, March 19.—Cf. *infr.* Letter [xxxvi](#).—Tr.]
- [32.](#) “In specie ne Concilium declaret vel definiat infallibilitatem summi Pontificis, a doctissimis et prudentissimis fidelibus S. Sedi intime addictis vehementer optatur. Gravia enim mala exinde oritura timent tum fidelibus tum infidelibus. Fideles enim ... corde turbarentur magis quam erigerentur, ac si nunc demum fundamentum Ecclesiæ et veræ doctrinæ stabiliendum sit; infideles vero novarum calumniarum et derisionum materiam lucrarentur. Neque desunt qui ejusmodi definitionem logice impossibilem vocant et ad ipsam Ecclesiam provocant, quæ ad instar solis splendorem lucis suæ monstrat quidem, sed non definit. Jure denique quæritur, cui usui ista definitio foret, de cujus sensu, modo et ambitu ampla inter theologos controversia est.”
- [33.](#) [Monsignor Nardi said this *totidem verbis* to an Anglican clergyman who was inspecting the Council Hall.—Tr.]
- [34.](#) “Questo puzza di schisma.”
- [35.](#) [Compare with this account of the freedom of the Council the letters of two French Bishops, published in the *Times* of May 3, and the *Journal des Débats* of May 10.—Tr.]
- [36.](#) *Études de Théologie*, Janvier 1868, p. 26:—“Le Concile n'imposait rien à notre foi, qui n'eût obtenu à peu près l'unanimité des votes. L'obligation de croire est une chose si grave, le droit de lier les intelligences est un droit si auguste et si important, que les pères pensaient n'en devoir user qu'avec la plus grande réserve et la plus extrême délicatesse.”
- [37.](#) *Is Healthful Reunion Impossible?* By E. B. Pusey, D.D. Rivingtons, 1870.
- [38.](#) [Gratry's four Letters have been translated by the Rev. T. J. Bailey.—(Hayes).—Tr.]
- [39.](#)

[Cf. *supr.* pp. [90](#), [91](#). The *Tablet* made the same assertions in both cases.—TR.]

[40.](#) *Adversus eos qui Sanctissimum R. Pontificis studium et Vaticani Concilii celebrandi necessitatem vituperant.* Romæ.

[41.](#) [Some idea of it may be formed from the answer made some months ago by a distinguished English Prelate at Rome to an Anglican friend, who had quoted the words of one of the Opposition Bishops, “You need not quote *them* to me; *they are no more Catholics than you are*,”—thus excommunicating at one swoop the very flower of the hierarchy of his Church.—TR.]

[42.](#) [The *Curtisanen* were clerical place-hunters, who came to Rome to beg or traffic for benefices. Cf. “Janus,” p. 341.—TR.]

[43.](#) [The Bull *Apostolicæ Sedis*.—Cf. *supr.* pp. [100](#), 1, 5, 6.—TR.]

[44.](#) “Damnamus perversas eorum cavillationes qui dicere audent externum quidem obsequium, non autem internum mentis cordisque assensum, R. Pontificis judiciis esse præstandum.”

[45.](#) It will of course be understood that the 300 boarders (cf. *supr.* p. [128](#)) are divided among the Prelates mentioned above.

[46.](#) *Istoria del Concilio de Trente*, xix. 15. 3: “Facendosi quelle sole definizioni nelle quali i padri conspirassero ad un parere.”

[47.](#) [Liverani published a striking pamphlet on the abuses of the *Curia* some years ago.—TR.]

[48.](#) Joshua ix. 21.

[49.](#) Purgat. xxvii. 104.

[50.](#) “Ove accadesse collisione tra le definizioni del Concilio ecumenico e le leggi dello Stato, queste cesserebbero per ciò solo di avere *qualsiasi* vigore obbligatorio,” p. 262.

[51.](#) So Pius VI., in his Brief of 1791, directed against the new laws of the French Assembly for securing religions freedom. Therein the distinction is still drawn between heathen and Jews on one side and Protestants or heretics on the other, that the former cannot be compelled to receive baptism, but the others, “qui se Ecclesiæ per

susceptum Baptismi Sacramentum subjecerunt, cogendi sunt” (*Collect. Brev. Pii VI.*, Aug. Vindel. 1791, i. 34). Benedict XIV. declared the same before in 1749 (*Bullar. Mag.*, Romæ, ed. Coquel, T. xvii. p. 272). And Pius VII. afterwards, in his Brief of 1803 (Kopp, *Die kath. Kirche des 19 Jahrh.*, Mainz, 1830, p. 429). “According to Scripture, Councils and Tradition, heretics remain subject to the laws of the Catholic Church.”

[52.](#) Job xiii. 7.

[53.](#) The idea is thrice repeated; “fideles tam seorsim singuli quam simul omnes officio ... veræ obedientiæ obstringuntur,” is said once again in the *Schema*.

[54.](#) *Correspondance*, Paris, i. 247.

[55.](#) [A writer in the Cologne *Rheinischer Merkur* of May 14, a newly started organ of Liberal Catholic principles, conducted entirely by priests, learnedly discusses the question “whether St. Thomas Aquinas taught Papal Infallibility,” and comes to the conclusion that, in spite of the influence of these forged authorities on his mind, he did not.—Tr.]

[56.](#) Navagero, *Relazione*, p. 389 in the Venetian Collection, ed. Alberi, i. 7.

[57.](#) “Ammantar la pigrizia di superiorità, sottrarsi alla noja d'esaminar le quistioni col disprezarle, sono vezzi troppo comuni in Italia, e il beffarsi di questi pesanti Tedeschi, che vanno a cercare la fin dei fini. Ma in tal caso rassegniamoci a vederci trattati, da questi di negligenza e di spensierataggine quando accettiamo a occhi bendati carte, falsificate da tristi speculatori o da sbadati raccoglitori,” etc.—*Archivo Storico Italiano*, 1860, xii. 19.

[58.](#) [It was originally intended for public use also, and is still recited publicly by Cathedral Chapters and religious communities. Some portions of it, as Vespers and Compline, are often used in parish churches also, especially in France.—Tr.]

[59.](#) [Cf. “Janus,” pp. 60-62, 275-8.—Tr.]

[60.](#)

The proposal of two Rhenish Prelates for a common declaration against Döllinger's paper on Infallibility was rejected in the meeting of German Bishops. The chief opponents were Hefele, Eberhard, Raynald, Strossmayer and Förster, who maintained that, certain arguments apart, Döllinger represented in the main the views of most German Bishops on the subject. It was further insisted, in express repudiation of the stand-point of mere "inopportuneness," that the addresses already signed by the Infallibilists were directed in principle against the doctrine of the Church. The two Prelates declared nevertheless that they would not separate themselves from their colleagues who had signed those documents.

[61.](#) Tac. *Annal.* xv. 53.

[62.](#) I take this opportunity of observing that the *Mémorial Diplomatique*, which has the credit of supplying the world regularly with methodical fictions from Rome, has also given a spurious reply of Antonelli's to Beust's note. Perhaps one of your Paris correspondents can explain the rare persistency of that journal in habitually making game of the French with lies and inventions which are immediately exposed. Here in Rome many are disposed to seek the authors of them in the office of the *Civiltà* or in the *Gesu*.

[63.](#) *Pastoral on Infallibility of the Roman Pontiff* (Longmans), p. 126.

[64.](#) It is also quoted in the *Journal des Débats* of March 12. [This same Bishop opened the debate on the *Schema de Romano Pontifice* by arguing that the Pope must be infallible, because St. Peter was crucified head downwards. Cf. *infr.* Letter [xlvi](#).—TR.]

[65.](#) The *Unita Cattolica* of March 12 makes its Roman correspondent say that to-day the Bishops are signing in crowds a Petition to the Presidents of the Council, demanding that the discussion of the article on infallibility may take precedence of all other business, because they long to put an end at one blow to the scandal of the Liberal Catholics and Gallicans. But Margotti's journal at the same time urges patience on its readers, because decorum must be preserved, as far as may be.

- [66.](#) [It seemed better to give the Letter itself, as published “by permission” in the *Standard* of April 7, rather than to translate the secondhand, though remarkably accurate, paraphrase given in the German text. It addressed to Bishop Ullathorne.—Tr.]
- [67.](#) [Archbishop Errington was Cardinal Wiseman's coadjutor with right of succession, but was arbitrarily deprived of the post by the Pope, on his declining to resign it. His name was the first of the three sent to Rome by the Chapter of Westminster for the vacant Archbishopric on Cardinal Wiseman's death, the other two being Clifford and Grant. All three were passed over in favour of Dr. Manning.—Tr.]
- [68.](#) [This explanation, that the Requiem “was intended rather as a political demonstration than a religious act,” was elaborately insisted on in the *Tablet* of March 28, which added the guarded but equally gratuitous statement that “the Bishop of Orleans, *it appears*, intended to speak at the funeral service;” winding up with the somewhat remarkable comment that “the prudence and the charity (!) of Pius IX. have been equally conspicuous in the affair.” The world hardly seems to see it.—Tr.]
- [69.](#) *Reform der Kirche an Haupt und Gliedern.*
- [70.](#) [The correctness of this prediction was conspicuously illustrated in the *coup* of June 3. Cf. *infr.* Letter [lii](#).—Tr.]
- [71.](#) This word (*niederträchtigen*) was lately used by a German Bishop.
- [72.](#) The original text ran: “Quâ sane benignitate ipsius ac providentiâ factum est, ut ex Œcumenicis omnibus Conciliis, et ex Tridentino nominatim amplissima in universam Catholicam Familiam utilitas dimanaverit;” the amendment of Dreux-Brézé runs: “Quâ sane benignitate ipsius ac providentiâ factum est, ut *licet omnibus Ecclesiae necessitatibus per ordinarium Summi Pontificis regimen et magisterium satis fuerit provisum*, tamen ex Œcumenicis omnibus Conciliis,” etc.
- [73.](#) [It is understood to have been Bishop Clifford of Clifton.—Tr.]
- [74.](#) See *Times* for April 2, 1870.

- [75.](#) [The English *Tablet* and *Dublin Review* have received similar papal commendations.—Tr.]
- [76.](#) “Relapsus flammi ex lege addixit,” says the Dominican Bzovius in his Panegyric *Paulus V. Borghesius*, Rome 1626, p. 57.
- [77.](#) [It will be seen that Simor, with the other Hungarian Bishops, eventually voted among the *Non-placets* and signed their protest. Cf. Letters [lxiv](#), [lxv](#).—Tr.]
- [78.](#) “Quoniam vero satis non est, hæreticam pravitatem devitare, nisi ii quoque errores diligenter fugiantur, qui ad illam plus minusve accedunt: omnes officii monemus servandi etiam Constitutiones et Decreta quibus pravæ ejusmodi opiniones, quæ isthic diserte non enumerantur, ab hac Sanctâ Sede proscriptæ et prohibitæ sunt.”
- [79.](#) “Schematis de fide catholica conclusio, quæ incipit ab his verbis: *Itaque supremi Pastoralis*, etc., cum de eâ in ultimâ Congregatione generali non satis explicite actum fuerit, adhuc debet subjici Patrum suffragiis, antequam ad ferenda suffragia de toto Capite iv. procedatur. Ideo monentur Reverendissimi Patres, ut nunc in finem *Emendationes de capite quarto* hujus Schematis propositas etiam ad proximam Congregationem generalem secum deferre velint.”
- [80.](#) [Conditional votes, as will be seen, are not allowed in Solemn Sessions, but only a simple *Placet* or *Non placet*.—Tr.]
- [81.](#) [Cf. *supr.* p. [348](#).—Tr.]
- [82.](#) [See an exhaustive article on the subject from a Catholic pen in the *North British Review* for October 1869.—Tr.]
- [83.](#) [He refused to do so.—Tr.]
- [84.](#) This proved to be a mistake.
- [85.](#) “Elle estime justement qu'elle a le devoir de ne pas favoriser la diffusion de l'erreur ou des attaques contre l'autorité des Vicaires de Jésus-Christ.”
- [86.](#) The infallibilists are of course luckier. Their writings are readily printed and circulated. At the same time with the writings

mentioned above, Archbishop Spalding has published a letter to Dupanloup, emphatically denying that he had spoken against the opportuneness of the dogma in the paper he drew up with several other American Bishops, and declaring himself a zealous advocate for it.

[87.](#) [English readers may be referred to Renouf's *Case of Honorius Reconsidered*. Longmans, 1869.—Tr.]

[88.](#) It is now understood to have been written by Dr. S. Mayer under his direction.

[89.](#) [See *Pastoral on Infallibility of Roman Pontiff*. Longmans, 1869.]

[90.](#) “Animadvertendum quippe est, quod in publicâ Sessione juxta Litteras Apostolicas *Multiplices* inter d. d. Novembris 1869 Num. VIII., quo modus procedendi in Sessionibus publicis præscribitur, non liceat aliter suffragium dare, nisi pure et simpliciter per verba: *Placet* aut *Non placet*, excluso alio quovis modo.”

[91.](#) [Cf. *Janus*, pp. 382-4.—Tr.]

[92.](#) [Since, that is, the Lateran synod of 1517 under Leo X.—Tr.]

[93.](#) Tac. *Annal.* II.

[94.](#) Antonelli's, notoriously.

[95.](#) “Animés d'un profond respect pour l'autorité *légitime* du S. Siège, nous sommes obligés d'autre part de préserver de toute atteinte présente ou future les rapports entre l'église et l'état (as lately settled by the Concordat and the Constitution). Nous joignons nos instances aux remontrances du Gouvernement français et nous nous croyons appelés à le faire d'autant plus, que dans le sein du concile lui-même une grande partie des représentants de l'Église d'Allemagne, dont le dévouement religieux est bien connu, atteste par son attitude que nos craintes sont loin d'être vaines.”

[96.](#) “Si, diciamolo altamente, Pio IX. credette aver ricevuto speciale missione di definire la Immacolata Concezione e la infallibilità pontificia.”

[97.](#) “Jure tam divino quam humano laicis nulla potestas in ecclesiasticas personas attributa est.”

- [98.](#) See Raynald. *Annal.* xix. ann. 1493, 22.
- [99.](#) “Hæc conditio pro Concilio Vaticano eo magis urgenda esse videtur, cum ad ferenda suffragia tot Patres admissi sunt, de quibus non constat evidenter, utrum jure tantum ecclesiastico an etiam jure divino ipsis votum decisivum competat.”
- [100.](#) It appears from a passage in Letter [lii.](#) that this severe judgment on the Prince Bishop was based on an erroneous report of his conduct in the papers.
- [101.](#) “Jamvero infallibilitatem S. Ap. Sedis et Romani Pontificis ad doctrinam fidei pertinere ex allatis fidei documentis constat, et contrariæ illi sententiæ a magisterio Ecclesiæ non semel fuerunt improbatæ. Cujuscunque ergo scientiæ etiam historiæ ecclesiasticæ conclusiones Rom. Pontificum infallibilitati adversantes, quo manifestius hæc ex revelationis fontibus infertur, eo certius veluti totidem errores habendas esse consequitur.”
- [102.](#) “Al male dominante della licenza dei tipi, per cui il giornalismo nega e bestemmia ogni giorno, bisogna contraporre il salutare rimedio del Papa infallibile, che ogni giorno può insegnare, condannare, definire, senza che mai sia licito ai cattolici dubitare de' suoi oraculi.”
- [103.](#) [The English Jesuit, Father Gallwey, says they will be like “the daily provision of manna” to the Israelites.—TR.]
- [104.](#) He should have said “the Italian prelates.”
- [105.](#) Cf. *supr.* p. [517](#).
- [106.](#) It will be seen from the protest afterwards published that this passage was greatly toned down.
- [107.](#) Matt. xxvi. 49.
- [108.](#) *Von der Römischen Einheit*, Wien. 1866, vol. ii. pp. 444 seq.
- [109.](#) See the decree of Eugenius in Porter's *Systema Decretorum*, p. 535, and in Raynaldus.
- [110.](#) “Ad officium nostrum spectat de *quocumque* mortali peccato corripere quemlibet Christianum; et, si correptionem

contempserit, per distictionem ecclesiasticam coercere.”—*Decretal. Novit*, c. 13, De Judic. [Cf. *Janus*, p. 158.]

- [111.](#) *Concil.* ed. Labbé, x. 384.
- [112.](#) Innoc. *Epist.* ii. 209, p. 473, ed. Paris.
- [113.](#) Raynald. *Annal.* xv. 156.
- [114.](#) Raynald. *Annal.* an. 1376, 1.
- [115.](#) See Bull *Romanus Pontifex* confirmed by Callixtus III. in 1456 and Sixtus IV. in 1481.—Morelli, *Fasti Novi Orbis*, p. 58.
- [116.](#) See Bull *Inter Cæteræ* in Raynald. *Annal.*
- [117.](#) Raynald. *Annal.* an. 1493, 19.
- [118.](#) Harduin. *Concil* ix. 1756.
- [119.](#) Baron. *Annal. Eccl.* an. 1102, sect. 18.
- [120.](#) Rog. Wendover, *Hist.* iii. 251.
- [121.](#) Raynald. *Annal.* an. 1283-4.
- [122.](#) *Litera Apost. Summorum Pontif. pro offic. S. Inquis.*, Venet. 1607, p. 3.
- [123.](#) *Ib.* p. 39.
- [124.](#) Del Bene, *Decreta et Constitt. Pontif.* in his *De Offic. Inquis.* ii. 647.
- [125.](#) [That this is no mere abstract theory, even in quite recent days, may be seen from Blanco White's account of his mother's agony of mind when she began to suspect his opinions and feared it might become her duty to denounce him to the Inquisition.—TR.]
- [126.](#) *Decr.* v. 7, 9, and Lucius III. and Alexander IV. in *Lib.* vi. 5. 2. 4.
- [127.](#) *Ib.* 5, 2, 5.
- [128.](#) Carsetti, *Storia del Regno di Vittorio Amadeo di Savoia*, Torino, 1856, p. 178. The Pope said it was “cosa da non potersi dir senza lagrime.”
- [129.](#) Guerra, *Pontif. Constit.* i. 177.

- [130.](#) See, *e.g.*, Tartarotti, *Apologia del Congresso*, etc., p. 176.
- [131.](#) *Decr.* ii. 24, 27.
- [132.](#) D'Achery, *Spicileg.* iii. 714. ["Vobis et successoribus vestris Regibus et Reginis Franciæ in perpetuum indulgemus, ut confessor religiosus vel sæcularis quem veſtrûm vel eorum quilibet duxerit eligendnm, vota per vos forsitan jam emissa, *ac per vos et successores vestros in posterum emittenda* ... necnon juramenta per vos præstita, *et per vos et eos præstanda in posterum*, quæ vos et illi *servare commode non possitis*, vobis et eis commutare valeat in alia opera pietatis." Two cases are reserved, viz., vows of chastity and vows *taken to the Pope*.—Tr.]
- [133.](#) Bzov. *Annal. Eccl.* an. 1555, p. 306, ed. Colon.
- [134.](#) Dodd, *Church History of England*, iii. 288; *Tractat. Dogmat. et Scholast. de Ecclesiâ*, Romæ, 1782, ii. 245.
- [135.](#) D'Acheray, *Spicileg.* iii. 721.
- [136.](#) *Acta Sanct. Bolland.* Ap. 23, p. 157.
- [137.](#) Spondani, *Annal. Eccl. Contin.* ii. 595.
- [138.](#) *Decr. de Transl.* c. ii. 3, 4. [Cf. *Janus*, pp. 55, 56.]
- [139.](#) *Decr.* iv. 1, 16.
- [140.](#) *Dist.* 81, c. 15.
- [141.](#) *Concil. Gangrens.* can. 4.
- [142.](#) *Concil.* ed. Labbé, t. xiii. pp. 1322, 3.
- [143.](#) See Amort, *De Indulg.* i. 146.
- [144.](#) D'Argentré, *Collectio Judiciorum*, Paris, 1728, iii. 297.
- [145.](#) *Clementin.* i. 5, De Usuris, tit. 5.
- [146.](#) [On this subject, as also on persecution, the reader may profitably consult *Papal Infallibility and Persecution; Papal Infallibility and Usury*. By an English Catholic. Macmillan, 1870.—Tr.]
- [147.](#) [This had been protested against by the minority. Cf. *supr.* pp. [327-8](#).]

- [148.](#) The text of the speech, as it is now printed in the journals, has been subsequently corrected and toned down.
- [149.](#) “Il est sans doute de certaines fonctions où, tenant, pour ainsi dire, la place de Dieu, nous semblons être participants de sa connaissance, aussi bien que de son autorité,” etc.—Lemontey, p. 151 (éd. de Bruxelles).
- [150.](#) 1 Cor. ii. 14.
- [151.](#) *Pachym.* II. 20, ed. Bonn.
- [152.](#) According to a letter of his which reached Breslau the 12th July, permission to depart has been refused him.
- [153.](#) [The same strange confusion of thought seems still to prevail among some fervid infallibilists of the English and Irish Episcopate, to judge from their pastorals issued since the decree of July 18.—TR.]
- [154.](#) Meanwhile the *Unita* of July 15 has already begun to indicate the wholesome political fruits which may be looked for from the dogma of infallibility. Gallicanism, which demanded fixed guarantees against papal decisions, has paved the way, according to Margotti, for constitutionalism and parliamentarism; for after a Pope whose decrees *ex cathedrâ* are not irreformable, comes a king limited by the Constitution, and then the era of parliamentary revolutions and political storms is introduced. But now the bright example set by the Bishops in their submission to the infallible Pope will restore not France only, but the whole of Europe. From them the nations will learn to submit as children to their sovereigns, the kingdom of unrighteousness will pass away, and the kingdom of God succeed. That is plain speaking; absolutism in the Church will lead to absolutism in the State. Margotti then surrenders himself to the most brilliant hopes, predicts unprecedented miracles, and records those which have been already wrought for infallibility during the Council, or will immediately be wrought. We cannot venture to withhold them from our readers. First, it seemed impossible to attain an agreement of the Bishops on the proclamation of infallibility; all wanted to speak, and the discussion seemed likely to be endless.

But the Holy Ghost unexpectedly interposed; above sixty Bishops waved their right to speak, and the *Schema* was voted and approved. Secondly, a great opposition of all the governments was feared, who only kept quiet while they watched the quarrels of the Bishops themselves in the Council. But scarcely had the Bishops shown themselves unanimous, when the Hohenzollern question turned up, which absorbs everybody's attention, and leaves the Church in peace. The third miracle is still in the future—the dogma will suddenly dissipate the menaces of war, because the word of God, like the Son of God, only comes into the world in the midst of universal peace.

- [155.](#) The impending war led to its being held earlier.
- [156.](#) [On the essential connection between the infallibility and the impeccability of the Popes, see *Janus*, pp. 113 *sqq.*, and Maret, *Du Concile Général*, vol. ii. ch. 13.—Tr.]
- [157.](#) [The decree of Constance defines that “every lawfully convoked Œcumenical Council representing the Church derives its authority immediately from Christ, and every one, the Pope included, is subject to it in matters of faith, in the healing of schism, and the reformation of the Church.” It was carried in full Council without a dissentient voice.—Tr.]
- [158.](#) [That in fact is exactly what Antonelli calls it in his circular.—Tr.]
- [159.](#) This is emphatically asserted in a sermon preached last year at Kensington by Archbishop Manning, where he says, speaking in the Pope's name, “I claim to be the Supreme Judge and director of the consciences of men; of the peasant that tills the field and the prince that sits on the throne; of the household that lives in the shade of privacy *and the Legislature that makes laws for kingdoms*—I am the sole last Supreme Judge of what is right and wrong.”
- [160.](#) These letters are taken from the *Journal des Débats* of May 6 and 11. The Bishops of Marseilles and Montpellier are said to be the writers.

[161.](#) Lire: spartiates.

[162.](#) From the *Gazette de France* of June 28. The Vicar-General of an eminent French Bishop, who had been at Rome, is the reputed author.

*** END OF THE PROJECT GUTENBERG EBOOK LETTERS FROM
ROME ON THE COUNCIL ***

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